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Chosen in Christ to Be Saints

I: Fundamental Moral Theology

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Abbreviations

Biblical Abbreviations

Acts	Acts of the Apostles	*1 Jn*	2 John
Am	Amos	*2 Jn*	2 John
Bar	Baruch	*3* Jn	3 John
Col	Colossians	*Jon*	Jonah
1 Cor	1 Corinthians	*Josh*	Joshua
2 Cor	2 Corinthians	*Jude*	Jude
1 Chr	1 Chronicles	*Jdt*	Judith
2 Chr	2 Chronicles	*Judg*	Judges
Dan	Daniel	*1 Kings*	1 Kings
Deut	Deuteronomy	*2 Kings*	2 Kings
Eccl	Ecclesiastes	*Lam*	Lamentations
Eph	Ephesians	*Lev*	Leviticus
Esth	Esther	*Lk*	Luke
Ex	Exodus	*1 Macc*	1 Maccabees
Ezek	Ezekiel	*2 Macc*	2 Maccabees
Ezra	Ezra	*Mal*	Malachi
Gal	Galatians	*Mk*	Mark
Gen	Genesis	*Mt*	Matthew
Hab	Habakkuk	*Mic*	Micah
Hag	Haggai	*Nah*	Nahum
Heb	Hebrews	*Neh*	Nehemiah
Hos	Hosea	*Num*	Numbers
Isa	Isaiah	*Ob*	Obadiah
Jas	James	*1 Pet*	1 Peter
Jer	Jeremiah	*2 Pet*	2 Peter
Job	Job	*Phil*	Philippians
Joel	Joel	*Philem*	Philemon
Jn	John	*Prov*	Proverbs

Ps	Psalms	*Rev*	Revelation
Rom	Romans	*1 Tim*	1 Timothy
Ruth	Ruth	*2 Tim*	2 Timothy
1 Sam	1 Samuel	*Titus*	Titus
2 Sam	2 Samuel	*Tob*	Tobit
Sir	Sirach	*Wis*	Wisdom
Song	Song of Song	*Zech*	Zechariah
1 Thess	1 Thessalonians	*Zeph*	Zephaniah
2 Thess	2 Thessalonians		

Other Abbreviations

AAS	*Acta Apostolicae Sedis*, Vatican City: Typis Polyglottis, 1909 -.
Ad Gentes	II Vatican Council, Decree on the Missionary Activity of the Church *Ad Gentes Divinitus*, 7-XII-1965.
Apostolicam Actuositatem	II Vatican Council, Decree on the Apostolate of the Laity *Apostolicam Actuositatem*, 18-XI-1965.
ASS	*Acta Sanctae Sedis*, Roma 1865–1908.
Catechism/CCC	*Catechism of the Catholic Church*, Vatican City: Libreria Editrice Vaticana, 1992.
CCL	*Corpus Christianorum. Series Latina*, compiled by the Abbey of Saint Peter in Steenbrugge, ed. Turnholt (Belgium): Brepols, 1954 -.
C.G.	St. Thomas Aquinas, *On the Truth of the Catholic Faith (Summa Contra Gentiles)*, trans. Anton C. Pegis, James F. Anderson, Vernon J. Bourke, and Charles J. O'Neil, New York: Hanover House, 1955–57. http://dhspriory.org/thomas/ContraGentiles.htm
Christifideles laici	John Paul II, Apostolic Exhortation *Christifideles Laici*, 30-XII-1988.
CIC	*Code of Canon Law,* promulgated by John Paul II, 25-I-1983.
CSEL	*Corpus Scriptorum Ecclesiasticorum Latinorum*, Vienna: 1886 -

Dei Verbum	II Vatican Council, Dogmatic Constitution Dei Verbum on Divine Revelation, 18-XI-1965.
De Malo	Saint Thomas Aquinas, *Quaestio disputata De malo*, in *Quaestiones disputatae*, vol. II, Taurini-Romae: Marietti, 1965.
De Veritate	Saint Thomas Aquinas, *Quaestio disputata De veritate*, in *Quaestiones disputatae*, vol. I, Taurini-Romae: Marietti, 1964.
De Virtutibus in Communi	Saint Thomas Aquinas, *Quaestio disputata De virtutibus in communi*, in *Quaestiones disputatae*, vol. II, Taurini-Romae: Marietti, 1965.
Dignitatis humanae	II Vatican Council, Declaration on Religious Liberty *Dignitatis humanae*, 7-XII-1965.
Dominum et Vivificantem	John Paul II, Encyclical *Dominum et Vivificantem*, 18-V-1986.
Donum Veritatis	Congregation for the Doctrine of the Faith, Instruction on the Ecclesial Vocation of the Theologian *Donum Veritatis*, 24-V-1990.
DS	Denzinger, H. - Schönmetzer, A., *Enchiridion Symbolorum Definitionum et Declarationum*, Herder, Barcinone - Friburgi B. - Romae 1976.
DTC	*Dictionnaire de Théologie Catholique*, under the direction of A. Vacant, E. Mangenot and E. Amann, ed. Paris: Letouzey et Ané, 1930–1950.
Evangelium Vitae	John Paul II, Encyclical *Evangelium Vitae*, 25-III-1995.
Fides et Ratio	John Paul II, Encyclical *Fides et Ratio*, 14-IX-1998.
Gaudium et Spes	II Vatican Council, Pastoral Constitution on the Church in the Modern World *Gaudium et Spes*, 7-XII-1965.
In Decem Libros Ethicorum	Saint Thomas Aquinas, *In Decem Libros Ethicorum Aristotelis ad Nicomachum Expositio*, Taurini-Romae: Marietti, 1964.

Lumen Gentium	II Vatican Council, Dogmatic Constitution on the Church *Lumen Gentium*, 21-XI-1964.
Mysterium Ecclesiae	Congregation for the Doctrine of the Faith, Declaration *Mysterium Ecclesiae*, 24-VI-1973.
NBA	Nuova Biblioteca Agostiniana, Rome: Città Nuova.
Optatam Totius	II Vatican Council, Decree on Priestly Formation *Optatam Totius*, 28-X-1965.
Pastores Dabo Vobis	John Paul II, Post-Synodal Apostolic Exhortation *Pastores Dabo Vobis*, 25-III-1992.
Perfectae Caritatis	II Vatican Council, Decree on the Renewal of Religious Life *Perfectae Caritatis*, 28-X-1965.
PG	*Patrologiae Cursus Completus. Series Graeca*, Paris: J.P. Migne, 1857 - .
PL	*Patrologiae Cursus Completus. Series Latina*, Paris: J.P. Migne, 1844 - .
Presbyterorum Ordinis	II Vatican Council, Decree on the Ministry and Life of the Presbyterate *Presbyterorum Ordinis*, 7-XII-1965.
Reconciliatio et Paenitentia	John Paul II, Apostolic Exhortation *Reconciliatio et Paenitentia*, 2-XII-1984.
Scriptum super Sententiis	Saint Thomas Aquinas, *Scriptum super Sententiis*, Paris: Vivès, 1872–1880.
Sacrosanctum Concilium	II Vatican Council, Constitution on the Sacred Liturgy *Sacrosanctum Concilium*, 4-XII-1963.
SC	Sources Chrétiennes, Paris: Cerf, 1946 - .
S.Th.	St. Thomas Aquinas, *Summa Theologicae*, 2nd Ed. Translated by Fathers of the English Dominican Province, London: Burns, Oates & Benziger, 1912–1936.
Veritatis Splendor	John Paul II, Encyclical *Veritatis Splendor*, 6-VIII-1993.

Introduction

A Note on the English Edition

This book is the English translation of the volume: Colom, Enrique, and Angel Rodríguez Luño, *Scelti in Cristo per essere santi. I. Morale fondamentale.* 1st reprint of the 3rd edition, Rome: Edizioni Università della Santa Croce, 2008. It is the first volume of four which make up the moral theology manual developed by the professors of the Department of Moral Theology of the Pontifical University of the Holy Cross (Rome).
The translation into English of the Introduction and Chapter I was done by Gerald Malsbary. The rest of the book and the final revision of the entire text is the work of our collaborator Thomas Daniel Howes. To him goes our recognition for the dedication and competence with which he accomplished his task.

The Authors

A Note on the Italian Edition

This book is designed as a manual for the study of fundamental moral theology. It is addressed primarily to those who are undertaking a required course of study in Catholic theology at seminaries or ecclesiastical colleges. The editorial and typographical style, the choice of topics, and the extent of material covered are intended to meet the needs of such students. Nevertheless, we trust that the book will likewise be of interest for those who pursue theological and moral studies at a non specialist, though nonetheless serious level.
The didactic purpose of our work calls for a clear presentation of the principles provided by Revelation and Catholic doctrine for the understanding of Christian life, distinguishing such principles from our own precise philosophical and theological formulation of them. Theologians are well aware that the distinction between doctrine and theological reflection is not always kept, since at times it is not easy to formulate doctrine in terminology that is not to some degree already theological or even philosophical. Such a distinction

nonetheless exists, and is necessary in order to adequately reflect both the necessary fidelity to Catholic doctrinal identity and the desired freedom of theological research. This interest in clearly tracing the boundary between Catholic doctrine and our personal reflection is what motivates our frequent references to biblical foundations, to the teachings of the Second Vatican Council—especially its doctrine of the universal call to holiness—as well as to more recent interventions of the magisterium with regard to moral questions, such as *Veritatis Splendor*, and the *Catechism of the Catholic Church*.

The reader will soon discover that although this book is founded on Catholic doctrine, it is not simply a kind of "theologically neutral" exposition of that doctrine. In fact, our intention has been to carry out for the first time an exposition of Catholic moral theology on the basis of the most recent developments in what is referred to today as "virtue ethics," following a line of moral research that has been strongly represented in English speaking countries as well as in Italy and Germany for the past fifteen to twenty years. In the course of reading this book, the reader will come to understand its nature and motivations, but for now we would like to offer the following provisional sketch.

Virtue ethics, as we understand it, is not simply a method for articulating a special moral theology; on the contrary, just *how* moral theology should be articulated remains an unsolved problem, that we hope to confront as we go along. Nor do we conceive of it as a "weak" or "light" version of a non-cognitivist ethics which (accepting the impossibility of any true moral theory) retreats to the study of character, or to a psychology of the virtues. To put it in simpler terms, we do not conceive of virtue ethics as "an ethics without norms" that will only remain at the level of vague exhortations. Virtue ethics, as we understand it is a line of research that takes up the quandaries (*aporiai*, in Greek philosophical language) of modern normative ethics, that is to say, of an ethics that is completely focused on obligation, on norms, and on acts as analyzed from the point of view of an external observer (i.e., an "ethics of the third person"), and proposes instead an ethics that in its structure recalls classical ethics and presents itself as an alternative (in structure, at least, if not necessarily in content) to an ethics of obligation or "casuistic" ethics. This line of research provides, among other advantages, for a rediscovery of the scientific validity of what was the mature moral theory of Thomas Aquinas—namely that contained in the *Summa Theologiae*—which nevertheless needs to be brought up to date on some particular points.

The fundamental characteristic of our approach is that the center of ethical theory consists in the practical (and not merely theoretical) consideration of the good of human life considered in its totality, the good that had traditionally been referred to as the *finis ultimus*. The most basic task of moral

philosophy would consequently consist in helping persons locate themselves on a plane of reflection that contemplates human life as a whole, and, starting from this perspective, might then be in a position to distinguish the priorities to be assigned to the various activities that make up one's life as a whole and to clarify the criteria according to which one should govern the use and actualization of human goods; this ordering of priorities and these criteria of rational governance form the essential content of the moral virtues. To enter into the concrete problems of normative ethics without having first undertaken this preliminary clarification about the type of life we wish to lead would be equivalent to building the second floor of a building before building its foundations and first floor. Our approach therefore presupposes that the human good can be rationally investigated and *a fortiori* theologically investigated. Theological research, on the basis of Revelation, can avail itself of a more precise and complete answer to the question about what is the ultimate meaning of human life, in whose light fundamental concepts of morality acquire a sharper image and a more exact contextualization.

The pedagogical purpose of this book has encouraged us to proceed cautiously (for some perhaps too cautiously, for others, not cautiously enough). Before the new building is completed, it is better not to demolish the old one and then say we should not have torn it down completely after all. In other words, many concepts and distinctions of casuistic morality are still very useful for students and theologians, and perhaps always will be, provided they be updated and duly placed into a new framework. We are aware that some passages of this book will strike the reader as being rather eclectic. This is a risk that we consider worth taking for the reason that, as just explained, this is a first attempt that is necessarily imperfect, which puts a priority on the didactic purpose as well as the radical development of the theological approach we have assumed, but without giving up on a significantly coherent methodology and thematization which seems to us to be adequate, at least in terms of the current state of research.

We would like to conclude by explaining our ordering of the material. The first chapter constitutes our introduction to moral theology, explaining its object and its sources. In this chapter is conveyed our precise position on the epistemological status of moral theology as a practical wisdom. The First Part studies the universal call to holiness, the ultimate end of Christian morality, consisting in the fullness of divine filiation and which is realized in the following of Christ (Chapter II); next, the discussion moves to a panoramic vision of the fundamental lines of conduct whereby the believer seeks union with Christ through his own actions and according to his conditions and circumstances (Chapter III). This part is articulated according to the biblical notion of "call and response," which in any case cannot be absolutized if the nature of the

moral life is to be described precisely as a human and moral phenomenon. It is true that the Christian discovers a definite divine call behind ethical imperatives, but it is also true that the Christian moral life does not consist in replying "yes" or "no" to a question expressed in terms of a definite and unambiguous context. If the moral life is not to be reduced to a struggle to avoid serious sins, it is also, and above all, an active seeking, the power of individually determining one's mode of living with imagination and courage, such that all our actions become a means of attaining union with Christ.

The Second Part, more analytical in character, treats of moral anthropology, that is, the sum total of natural structures and active principles infused by God that make it possible for the human being—as the image of God—to be an acting moral subject who works out a plan of life that is coherent with his own well-being as a human being and a Christian. In this third edition we have modified both the structure and contents of this part. The themes we study are the following: the freedom of the children of God (Ch. IV), the inclinations, feelings, and emotions (Ch. V), the nature and evaluation of moral action (Ch. VI), and the moral virtues and gifts of the Holy Spirit (Ch. VII).

The Third Part analyzes the normative dimension of the moral activity of the human being. Both the internal cognitive principles and the external aids come under consideration, permitting the believer to identify and refine the conduct suitable for realizing the end to which he is destined. Also to be examined are: the moral law (Ch. VIII), human laws that make it explicit and more ultimately determine its context (Ch. IX), and conscience (Ch. X). Finally, detailed consideration is given to sin, the act by which the human being distances himself from Christ, and conversion, which entails a return to Him (Ch. XI).

We hope that our labors will prove to be of some utility for the reader, and that the suggestions and just criticisms of our colleagues have helped us improve the quality of the service we hope to render in this work: it is thanks to them, in fact, that we have introduced notable changes in this third edition.

The Authors

Chapter 1

The Nature, Object, and Sources of Moral Theology

The Christian moral life is itself the presupposition and point of departure for any reflection upon it. In order to understand the nature of moral theology it is therefore necessary to set forth at the very beginning a few brief considerations about Christian living (§ 1); then, taking account of this reality, we will examine the epistemology of moral theology (§ 2) and its sources (§ 3).

1.1 The Christian Moral Life

The Christian moral life is the life of man in Christ, or, more exactly, the life of the human being as a child of God through the Holy Spirit. This is, in substance, a gift of God, received at first with faith and baptism, which however requires the free acceptance and collaboration of the human person

1.1.1 *Children of God through the Holy Spirit*

With faith and baptism, a person is truly incorporated into the crucified and glorified Christ, and reborn to a sharing of the divine life, as the Apostle says: "You were buried together with Him in Baptism, and in Him also rose again- through faith in the working of God, who raised Him from the dead" (*Col.* 2, 12).[1] The human being is freed from sin and receives the first sanctifying grace, a true participation in the divine nature[2] which configures the person

[1] Conc. Vat. II, Decree *Unitatis redintegratio*, no. 22. *Cf.* also *Lumen Gentium,* no. 7, and Council of Florence, Bull *Exsultate Deo*, 22 Nov. 1439–the origin of the celebrated formula of baptism as "Gate of the spiritual life" (DS 1314).

[2] Cf. 2 *Pet* 1:4.

ontologically with Christ and makes her truly become a child of God.[3] Faith in Christ, along with baptism, brings about a complete change of the person; and provides the gift of a new life, a real participation in the very life of the Son of God. *With faith and baptism is received*, definitively, *the grace of divine filiation, which is the foundation of Christian life. Divine filiation implies, in fact, the reception of the supernatural principles of the new life: sanctifying grace as the remote vital principle, and the theological virtues, infused moral virtues, and gifts of the Holy Spirit as the immediately operative principles.*
The grace of divine filiation received in baptism is in reality only a beginning, the seed of a new life animated by an intrinsic dynamism toward development and growth until the attainment of "mature manhood, to the extent of the full stature of Christ."[4] The followers of Christ "by God's gift ... must hold on to and complete in their lives this holiness they have received."[5] This 'completing' or 'perfecting' is *a moral undertaking that strives for an ever greater identification with Christ, with his sentiments*[6] *and his words,* [7] *with his mode of living and thinking, while observing his commandments and his teachings,*[8] *with the same obedience and the same love shown by Jesus before the will of His Father.*[9] The principal agent of such moral progress is the Holy Spirit—the Sanctifier—with whom we are free collaborators, and the final goal of our growth in Christ is the eschatological consummation of participation in the Trinitarian life, to which we were destined in Christ before the creation of the world.[10]
We are saying, then, that along our path in this world, we C*hristians are called to develop and express by and in our works the divine life,* from the moment that this is communicated to us in baptism with the grace of the Holy Spirit. It should be made clear, the Christian life does not consist in external works, as considered isolated in their material factualness. Rather, the Christian life is a life—a life that Christ lives in us,[11] completed by the principles of justice, love and action that inspire the life of Christ (the imitation of Christ) and which constitute the Christian virtues, and principally charity, that is, the love of Christ, the bond of Christian perfection that is to be sought above all other things.[12]

[3] Cf. *Gal* 4:4–7; 1 *Jn* 3:1–2; *CCC* 1213.
[4] *Eph* 4:13.
[5] *Lumen Gentium* 40.
[6] Cf. *Phil* 2:5.
[7] Cf. *Jn* 6:63; 12:48; 14:10; 15:7.
[8] Cf. *Mt* 7:21–27, *Jn* 15:10, *Rev* 14:12.
[9] Cf. *Jn* 6:38; 8:29; 15:10.
[10] Cf. *Eph* 1:4.
[11] Cf. *Gal* 2:19–20.
[12] Cf. *Col* 3:14; 1 *Cor* 13. "All sanctity and perfection of a soul consists in the love of Jesus Christ our God, our highest Good and Savior ... according to St. Francis de Sales, some locate perfection in the austerity of their lives, some in prayer, others in the

1.1.2 *The Sacramental and Ecclesiastical Character of the Christian Moral Life*

It is necessary to reflect, even if somewhat briefly, on the sacramental and ecclesiastical basis of the Christian moral life. We can take our point of departure with a twofold consideration: on the one hand, God wants salvation to reach all men of all times[13]; on the other hand, the means chosen by God to do this is the Incarnation of His Son, and this implies that the saving words and actions of Christ happened in a concrete place and time. *The sacramental character of the whole plan of salvation proceeds from the divine design to extend the effect of salvation through a sensibly-grasped mediation instituted by Christ Himself,* by virtue of which spatio-temporal distances are overcome. Such human mediation is constituted of the Church, the "universal sacrament of salvation"[14], and the sacraments, the sensible and efficacious signs of grace, instituted by Christ and safeguarded and administered by the Church.

We have already mentioned the role of *baptism* in the Christian life. This makes us at once members of Christ and members of the Church[15]: all those baptized in Christ are one in Christ Jesus.[16] The other sacraments are no less important. *Confirmation*, among other things, introduces us more profoundly into divine filiation, works the full outpouring of the Holy Spirit and His gifts, and at the same time renders our bond with the Church more perfect.[17] The *eucharist* is the "fount and apex of the whole Christian life"[18] or the "center and root of the spiritual life of the Christian".[19] This brings about a deep and intimate union with Christ, makes present the sacrifice on Mount Calvary and applies its benefits, increases grace and keeps one from sin, restores lost powers, reinforces the unity of the Church, and gives a pledge of future glory.[20] Extremely important for the moral life is the *sacrament of penance*, which permits the recovery of grace and the merits lost on account of sin, renews the soul and makes for a new beginning of the moral life, constituting in addition an efficacious means for the formation of the moral conscience. It

frequenting of the sacraments, still others in alms giving; but they are mistaken: perfection consists in loving God with all your heart." (Saint Alphonsus Liguori, *Pratica di amar Gesù Cristo,* cap. 1,1; vol. 1 of *Opere*, (Turin: G. Marietti, 1880), 749, our translation.

[13] Cf. 1 *Tim* 2:4.

[14] *Lumen Gentium* 48e, *Ad Gentes* 1. As is well known, such an expression means that the Church is truly an instrument of salvation, and not only the community of those who are already saved. Ecclesial mediation works salvation and is the ordinary means of salvation.

[15] Cf. Council of Florence, Bull *Exsultate Deo*, cited in DS 1314.

[16] Cf. *Gal* 3:27–28.

[17] Cf. *CCC* 1302–1303.

[18] *Lumen Gentium* 11. See also John Paul II, *Ecclesia de Eucharistia* (April 17, 2003).

[19] St. Josemaría Escrivá, "The Eucharist, Mystery of Faith and Love" (April 14, 1960), in *Christ is Passing By* (Princeton, N. J.: Scepter Publishers, 2002).

[20] Cf. *CCC* 1366, 1391, 1393–1396 and 1402.

is not possible here to emphasize the important role of the other sacraments, or the more recent studies on the role that they play in the Christian moral life.[21]It should suffice for now to keep in mind that the Christian life has a sacramental basis, without which it would either not be possible or would disappear.[22]

But the *saving mediation of the Church* is not limited to the administration of the sacraments. The teachings and moral examples of the Lord are meant as well to overcome spatio-temporal distances and cultural barriers, becoming contemporaneous and relevant for each of us, even to the point of involving us completely. This takes place *by way of preaching and the living moral tradition of the Church*, the "necessary mediation by which the individual believer learns the *Way of the Lord* transmitted by apostolic exhortation."[23] *The life of the Church,* understood as the road traveled by the Christian community through history under the magisterial authority of the legitimate pastors and with the stimulus represented by the saints recognized as such by her, is the *privileged hermeneutical space of Christian moral experience.* The life and moral tradition of the Church also respond to the human need to undertake an understanding of morality on the basis of an *ethos* rooted in and shared by a community,[24] but it is not only this. The apostles and their successors received from Christ the command to transmit His moral instruction faithfully,[25] making it concrete and applying it to the particular circumstances of each society and epoch, and Christ Himself promised the assistance of the Holy Spirit in order to keep the identity of the transmitted message intact.[26] *There exists in the Church, therefore, a magisterium, and also a moral magisterium, which by the will of Christ is truly normative for the conscience of the believer.*[27] We shall later concentrate on the nature, modality

[21] Cf. with regard to the eucharist: L. Melina, "Ecclesialità e Teologia Morale", *Anthropotes* 5 (1989): 16–19; idem, *Cristo e il dinamismo dell'agire. Linee di rinnovamento della Teologia Morale Fondamentale*, (Mursia-Roma: Pontifical Lateran University, 2001) 203–220; D. J. Keefe, "La *Veritatis Splendor* e il fondamento eucharistico della morale", *Rivista di Teologia Morale*, 110 (1996): 209–220.

[22] "Communion with God, which is the hinge on which the whole of the spiritual life turns, is the gift and fruit of the sacraments. At the same time it is a task and responsibility which the sacraments entrust to the freedom of the believer, so that one may live this same communion in the decisions, choices, attitudes and actions of daily existence" John Paul II, Apostolic Exhortation *Pastores dabo vobis* (March 25, 1992) no. 48.

[23] C. Caffarra, *Viventi in Cristo*, 4th ed. (Milan: Jaca Books, 1986), 69.

[24] Cf. G. Abbà, *Quale impostazione per la filosofia morale? Ricerche di filosofia morale I*, (Rome: LAS, 1996) 12–16. From the theological point of view: J. Ratzinger, *Le Fonti della Teologia morale*, Documenti CRIS 54 (Rome: 1985) 13–14. On the epistemological aspects of the tradition of the moral life and research, *cf.* A. MacIntyre, *Three Rival Versions of Moral Enquiry: Encyclopaedia, Genealogy and Tradition* (Notre Dame: Notre Dame University Press, 1990).

[25] Cf. *Mt* 28:18–20; *Mk* 16:15–16; *Acts* 26:17–20.

[26] Cf. *Lk* 24:47–49; *Jn* 14:26; *Acts* 1:8; 15:28.

[27] Cf. *Lumen Gentium* 24–25. See also the Declaration *Mysterium Ecclesiae* and the

and significance of the Church's moral magisterium and on other questions related to that theme.[28] For the present it is sufficient to note that the relationship between the human person and Christ in which the Christian moral life consists "is not considered and established by the believer himself in an individualistic solitude",[29] but is established within the Church and in communion with her.

We must add that the Church is not only the ambit or "means" whereby the Christian message normally came to meet us on one day or another. The ecclesial community is its permanent abode, inseparable from life in Christ. Saint Paul sets up a strict parallelism between being children of God through faith in Christ Jesus and baptism,[30] and all being "one in Christ Jesus".[31] "To be one" does not only mean having a common faith, but being all united as the Body of Christ: "so we, though many, are one body in Christ and individually parts of one another".[32] The Pauline analogy between the human body and Christ/the Church is meant to clarify how union with Christ is not possible without all being formed into the Body of Christ together. This opens up a perspective of deep participation and communion of a mystical character that involves all Christians. *In Christian life, ecclesial communion is not only a form of respect or an element to keep in mind. It belongs to its very essence.* Christ cannot be divided. Lack of awareness of ecclesial belonging, and still more, division as such, would constitute an attack against the very essence of our being and living in Christ.

1.1.3 *Christian Morality and Human Morality*

If the Christian moral life begins with baptism, the same cannot be said about life or moral experience in general. There is an ethical experience and an ethical reflection that exists prior to Christianity and also independently from the Old Testament revelation (such as Aristotelian ethics for example), because *the human being, by his natural condition, is a moral being, and is therefore capable of understanding the distinction between good and evil as such.* Human moral competence is not objectively exterior to the divine plan of salvation, because man was created through Christ and in view of Christ.[33] Nevertheless, being predestined to communion with God in Christ presupposes that man is not God, but a non-divine being having its own

Instruction *Donum Veritatis*, as well as *Veritatis Splendor* 110–117 and the *CCC* 85–87 and 888–892 and (more specifically on the moral magisterium) 2032–2040.

[28] See below, subsection 1.3.2.

[29] C. Caffarra, *Viventi in Cristo* (1986) 63.

[30] Cf. *Gal* 3:26–27.

[31] *Gal* 3:28.

[32] *Rom* 12:5.

[33] Cf. *Col* 1:16–20; *Eph* 1:4.

creaturely integrity which has to be known and understood. Consequently it seems legitimate to ponder the relationship between Christian morality and the human moral structure, or if you will, about the specific moral structure of the Christian, who is a moral subject for two reasons: insofar as he is human and insofar as he is Christian. This is a question which has received a variety of answers throughout the history of moral theology, and which has given rise to a debate in recent years about the specific nature of Christian morality, and subsequently, regarding "moral autonomy in a Christian context";[34] with which we shall occupy ourselves shortly. In the meantime, we shall take up only the simplest and most immediate aspects of the question, which will form the basis for a more adequate treatment of more specific points in a subsequent discussion.

We find a first strong indication in the summary of Jesus' message found in *Mark* 1: 15: "This is the time of fulfillment. The kingdom of God is at hand. Repent, and believe in the gospel." With the Savior's preaching the time of waiting is over, and a new time begins in which the fulfillment of the Messianic prophecies will take place. A profound transformation of the human being is being called for ("repent": *metanoeîte*, *paenitemini*) as well as a living and operative reception of all that the words of the Savior are teaching, announcing, communicating. Two concepts are relevant to our point: *newness* and *fulfillment*.

This first indication is made complete with another message conveyed in the Sermon on the Mount: "Do not think that I have come to abolish the Law or the Prophets. I have come not to abolish but to fulfill I tell you, unless your righteousness surpasses that of the scribes and Pharisees, you will not enter into the kingdom of heaven."[35] The reference to the Law of Moses (which also contains the necessary foundations of the natural moral law, especially the Decalogue) and the Prophets is a double one: the intention is not to abolish them, but to bring them to fulfillment (*plērôsai*: to complete, to perfect, or to complete by way of action[36]). This is taken to mean that with

[34] For some preliminary information about the first of these two debates, *cf.* R. Garcia de Haro, *La vita cristiana. Corso di Teologia morale Fondamentale* (Milan: Ares, 1995) 35–39. For a more extensive treatment see F. Compagnoni, *La specificità della morale cristiana* (Bologna: Dehoniane, 1972); T. Lopez and G. Aranda, "Lo especifico de la moral cristiana: I (Valoración de la literatura sobre el tema) and II (El tema en la Comisión Teológica Internacional)", *Scripta Theologica* 7 (1975) 687–767 and 8 (1976) 663–682; P. Delhaye, "Existe-t-il une morale spécifiquement chrétienne? La réponse de Vatican II", *Seminarium* 28 (1988) 405–420; A. Fernandez, *Teologia Moral. I* (Burgos: Aldecoa, 1995^2) 191–237. On the second debate see: O. Bernasconi, *Morale autonoma ed etica della fede* (Bologna: Dehoniane, 1981); on the state of the question after the encyclical *Veritatis Splendor cf.* A. Rodríguez Luño, "*Veritatis Splendor* un anno dopo. Appunti per un bilancio (I)", *Acta Philosophica* 4 (1995) 242–259, with abundant bibliography.

[35] *Mt* 5:17,20.

[36] Cf. R. Schnackenburg, *Il messagio morale del Nuovo Testamento*, Nuova edizione,

regard to the Law of Moses (and implicitly also with regard to the natural moral law[37]) the *Christian message is* yes something new, but *something new without rupture, a newness that is also a fulfillment.* Christian morality exceeds human morality and the law of Moses, but at the same time brings them to their fulfillment.

If the good of man is retained and brought to its fullness when it is elevated to the level of divine filiation, then, in one respect, the Christian message intrinsically possesses a universal significance, and is recognizable by all—with the help of grace—as the most complete expression of the truth about man: "Only in the mystery of the incarnate word does the mystery of man take on light".[38] In another respect, Christianity implies a very deep appreciation of the realities of human moral virtues, including them as a necessary presupposition of the Christian moral life.

However, the human moral virtues are not just presuppositions. If by human virtues we mean the moral habits that constitute the perfection of man as such, even of non-believers,[39] we will certainly have to think that the development of such human qualities precedes on the logical plane the development of the Christian virtues;[40] in practice, however, the two developments work together and are interrelated in various ways. On the one hand, *the ethical virtues are not only a means for the exercise of Christian virtues, but they are at the same time a consequence and fruit of charity for the Christian person*;[41] on the other hand, faith in Christ, being woven into the dynamism of human action, "also requires a reformulation of the meaning and hierarchy of the virtues. They are not any longer simply the result of human practices, but are infused by God. The active primacy of charity and the other theological virtues changes the meaning of the whole complex of the virtues, crowned as they are by the gifts of the Holy Spirit. With reference to Christ, new virtues come into play, unknown to classical philosophy: humility, obedience, and service (*cf.* Phil. 2 and John 13)."[42] It is significant in this connection that

(Brescia: Paideia, 1989) vol. 1, 85, with bibliography on 82–83.

[37] Referring to the moral precepts of the Old Testament, St. Thomas Aquinas explains that "as grace presupposes nature, so the divine law presupposes the natural law" (*S. Th.* I-II, q. 99, a.2, ad 1). A more direct reference to the human law is made in the first chapter of the *Letter to the Colossians*, in which the fulfillment of the world's purpose, and of man's purpose in particular, really takes place through the work of completion that is in Christ. Cf. for example John Paul II, *Discourse* 28 May, 1986; *Insegnamenti*, IX-1 (1986) 1697–1701.

[38] *Gaudium et Spes* 22: "Nonnisi in mysterio Verbi incarnati mysterium hominis vere clarescit".

[39] One thinks here, for example, of the moral virtues spoken of by Plato and Aristotle.

[40] By Christian virtues we intend both the theological virtues and the infused moral virtues. The nature of these latter will be explained in Chapter VII.

[41] Cf. A. del Portillo, *Consacrazione e missione del sacerdote* (Milan: Ares, 1990^2) 13.

[42] L. Melina, *Cristo e il dinamismo dell' agire* (2001), 198.

Saint Paul considers patience, fidelity, gentleness, and self-control as fruits of the action of the Holy Spirit in the Christian.[43]

If the Christian life is founded in Christ, *perfectus Deus, perfectus homo*[44], God and Man without confusion or separation, then we must avoid all opposition between the human element and the divine element of Christian morality; between reason and faith, between free will and grace. A dialectic that can find no way to affirm the divine element but by a negation or devaluation of the human element or which, vice versa, can only affirm the human element by limiting or devaluing the divine element, would not be compatible with the reality and logic of the Incarnation. The devaluation of the human ethical virtues would make Christian morality less credible, and would not be theologically justifiable even in the perspective of the *theologia Crucis*. If it is true that in the human being there are things which must die beneath the sign of the Cross, it is also true that in the sign of the Cross all that is good and virtuous in man reaches its most complete development.[45] In the Cross of Christ the old man—the *animalis homo* referred to by St. Paul—must die,[46] but not what is true virtue in man: "Whatever is true, whatever is honorable, whatever is just, whatever is pure, whatever is lovely, whatever is gracious, if there is anything worthy of praise, think about these things."[47]

It is true that the normative requirements of the supernatural virtues and those of the human moral virtues are dissimilar when we confront them with the cognitive possibilities of human practical reasoning; this is something that must be kept in mind. But if the differentiation generated by this particular viewpoint is not conceived in a dialectical way, it in no way compromises the unitary character of the Christian moral life, where Christian and human ethical virtues are interwoven at several levels and with rather complex articulations. Such interweaving corresponds in the final analysis to the divine plan of salvation.[48] The whole man is renewed by the grace of divine filiation. In the moral life of the believer there are no purely "human" strata. "Nothing can be foreign to Christ's care. If we enter into the theology of it instead of limiting ourselves to functional categories, we cannot say that there are things—good, noble, or indifferent—which are exclusively worldly. This cannot be after the Word of God has lived among the children of men, felt hunger

[43] Cf. Gal 5:22–23.

[44] Symbol *Quicumque* DS 76.

[45] Cf. A. Del Portillo, *Consecrazione e missione del sacerdote*, 13.

[46] "We know that our old self was crucified with him, so that our sinful body might be doneaway with, that we might no longer be in slavery to sin. (*Romans* 6:6). For the *animalis homo* see 1 *Cor* 2:14.

[47] *Phil* 4:8.

[48] Cf. *Eph* 1:3–10; *Col* 1:13–20. See also I. Biffi, "La prospettiva biblico-cristologica della *Veritatis Splendor*" in G. Russo (ed.), *Veritatis Splendor. Genesi, elaborazione, significato* (Rome: Edizioni Dehoniane, 1995^2) 87–96.

and thirst, worked with his hands, experienced friendship and obedience and suffering and death. '*For in him all the fullness of God was pleased to dwell, and through him to reconcile all things, whether in earth or in heaven, making peace by the blood of the cross.*'(*Col.* 1, 19–20)."[49]

In this book we will be using the expression 'Christian life' or 'Christian moral life', whether we are referring to the area of the infused virtues (theological or moral) or to the area of the human moral virtues, and consequently also to that which has traditionally been called natural law. This latter, in distinction from the infused virtues and their object, does not in principle exceed human possibilities, but it is integrated into Christian life, giving rise to a moral perspective that is something more than the simple sum of one human part plus another divine part, and in which the ethical virtues acquire a salvific meaning. Therefore the Letters of the New Testament cite explicitly as being among the actions that exclude one from the Kingdom of God, the behaviors that are offensive to the human ethical virtues,[50] and the Church considers as contrary to Catholic doctrine the distinction "between an *ethical order* which would be human in origin and of value for *this world* alone, and an *order of salvation*, for which only certain intentions and interior attitudes regarding God and neighbor would be significant."[51] In other words, not only are faith, hope, and charity relevant for salvation: also relevant are the moral virtues, or the "second tablet" of the Ten Commandments.[52] The integration of the ethical virtues in Christian life does not mean, however, that they are normative *exclusively* for Christians, or that their requirements lose their natural communicability by way of rational discourse. Nevertheless, we think that their deepest meaning for human life, while remaining rationally comprehensible, cannot be exhausted by the rational level.

A corollary of what has just been said is that it *does not seem right to understand the relation between faith and moral reasoning as divided them into two mutually exclusive functions*, as if faith could only say something about the interior life (intentions, motivations, will, feelings, etc.), while correct behavior would be the area where reason had an exclusive competency. Faith too can be the ground of good reasoning in the order both of ethical argumentation and of the material content of actions. The rigid distinction between paraenesis and normative ethics, so widely diffused today, should be seriously called into question.

[49] St. Josemaría Escrivá, *Christ is Passing By (*2002), no. 112.

[50] Cf. 1 *Cor* 6:9–10; *Gal* 5:19–21; *Jude* 7. Certain exegetical questions have been raised concerning these texts which do not detract in any way from the validity of what is being affirmed here. *Cf.* also R. Schnackenburg, *Il messaggio morale del Nuovo Testamento*, vol .1, (1989) 302–306.

[51] *Veritatis Splendor* 37. See also A. Rodríguez Luño, "*Veritatis Splendor* un anno dopo. Appunti er un bilancio (I)" *Acta Philosophica* 4 (1995) 242–259.

[52] Cf. Council of Trent, *De Iustificatione*, can. 19–21: DS 1569–1571.

1.2 Moral Theology as the "Science" of Christian Living

1.2.1 *Object and Functions of Moral Theology*

We have already mentioned that the nature of moral theology can be explained and understood only with reference to Christian moral life—an historical result following upon God's communication of himself in Christ, which nevertheless requires the free collaboration of man. The life of the faithful in Christ within the ecclesial community, under the authoritative guide of its pastors, comes first;[53] *moral theology comes later, and constitutes the scientific understanding and systematic exposition of that life. Moral theology is thus a reflective knowledge.* In more concrete terms, it can be understood among the diverse forms of moral reflection working in the light of Christ within the Church,[54] "its specific nature as a scientific reflection on the *Gospel as the gift and commandment of new life,* a reflection on the life which 'professes the truth in love' (cf. *Eph* 4:15) and on the Church's life of holiness, in which there shines forth the truth about the good brought to its perfection."[55]
We are saying, then, that *moral theology is the part of theology that has for its proper object the understanding of the life of the faithful in Christ.* In a now celebrated passage, the Second Vatican Council affirms that moral theology ought to illustrate in a scientific way "the loftiness of the calling of the faithful in Christ and the obligation that is theirs of bearing fruit in charity for the life of the world".[56] Moral theology is intended to bring to "conscious reflection the life that is born of our being in Christ through the Holy Spirit, constantly verifying that life with reference to its principle, which is divine Revelation as witnessed by Holy Scripture and Tradition".[57]
Both the beginning and the growth of moral theological reflection arise in response to needs that are partly common to all theology and partly specific. Man was created in order to understand truth, and this involves a need to think about what he is and what he does. To this need is added the "dy-

[53] We are speaking here of the life of the faithful in Christ within the ecclesial community under the guidance of pastors to make clear that we are concerned here with a theological and normative concept, corresponding to the divine plan, and not a purely sociological one. Behaviors and attitudes that are known to have occurred among Christians, even among the earliest Christians, but which were condemned by the pastors, do not belong to the life of the faithful in Christ. *Cf.* for example 1 *Cor* 5 (incest); 1 *Cor* 11, 17–34 (abuses in the celebration of the Eucharist); *Romans* 14 (misunderstanding and mutual condemnation between the strong and weak in faith).
[54] Cf. *Veritatis Splendor* 29.
[55] *Ibid.* 110.
[56] *Optatam Totius* 16.
[57] C. Caffarra, *Viventi in Cristo* (1986), 72.

namism found in the faith itself",[58] which, by revealing to the human being the ultimate truth about his destiny and the way to reach it,[59] seeks to be understood—*fides quaerens intellectum*—and to be communicated, whether to believers, that they acquire a more profound comprehension, or to non-believers, that they too attain to a knowledge of Christ. *Theological reflection thereby serves to reinforce the life of the faithful and contributes to the development of the Church's apostolic activity.* It responds as well, in a more profound sense, to the need "of Christian life to speak of itself in coherent and reflective human discourse: because in that way, too, the grace of God in Christ might be glorified."[60]

> If it is true for the Christian event as a whole that it is realized in history, then that fact is particularly significant for Christian moral reality. Christian moral action—but this can also be said about human action in general—is a sphere affected to the greatest degree by contingency and by historical, cultural, and scientific/technological changes. Actions are always particular, and their circumstances are always many-sided and variable. Old problems are posed in a new way, and entirely new problems are posed for the first time by the evolution of society and scientific progress. The capacity and the ecclesial responsibility of guaranteeing the substantial identity of Christian life through the centuries was entrusted by Christ to his pastors—the episcopal college *cum Petro et sub Petro*—and only they can teach with authority in the dogmatic and moral field. Nevertheless, the complexity of moral questions makes particularly important the reflective verification of new solutions in the primordial light of Revelation, as well as the projection of that same light upon new problems, ever emerging and still in need of solution. All this is the task of moral theology, which takes shape as a service to the faithful and as an ecclesial vocation to be actualized in collaboration with the pastors and as subject to their ultimate judgment.

1.2.2 *The Epistemological Status of Moral Theology*

The concept of moral theology as the understanding of the life of the faithful in Christ must be clarified more specifically. We need to explain in particular the specific mode of understanding the Christian life that moral theology aims to attain. The Encyclical *Veritatis Splendor* alludes to the complexity of the question when it says that moral theology is "a science which accepts and examines Divine Revelation while at the same time responding to the demands of human reason."[61] Moral theology is concerned "with the good and the evil of human acts and of the person who performs them; in this

[58] *Donum Veritatis* 7.
[59] *Ibid.*
[60] C. Caffarra, *Viventi in Cristo* (1986), 73.
[61] Veritatis *Splendor* 29.

sense it is accessible to all people," but it is also *theology*, the science of God "inasmuch as it acknowledges that the origin and end of moral action are found in the One who 'alone is good' and who, by giving himself to man in Christ, offers him the happiness of divine life."[62]

From the description of the Christian moral life proposed in the first section of this chapter it emerges that *moral theology must have a Christological foundation*. The Christian moral life is adhesion to Christ, and a vital communion with Him, the search for the fullness of divine filiation, and therefore a life lived according to faith. This thesis, which admits of various concrete theological interpretations, has become since *Veritatis Splendor* a doctrinal indication that cannot be abandoned. It is correct to point out that many theologians were working in this direction before the appearance of *Veritatis Splendor*,[63] and in a certain sense the encyclical conveys from such research results which had already obtained broad consensus.

The first chapter of *Veritatis Splendor* only proposes a path to follow, accompanied by some general indications. There is an epistemological problem that remains open to further theological elaboration: namely, how to integrate the rational aspect (natural moral law) with the inner, foundational Christological perspective, and how to elaborate the latter so that it could constitute a point of view that inspires the entire field of ethics and not just one section of it. To be precise, what remains open is the problem of instituting an adequate mediation by means of ethical categories that are at once well-founded and coherent with the Christological perspective. Without such mediation, the foundational discourse easily runs the risk of being entirely inconclusive in practice.[64]

[62] *Ibid.*

[63] Among the works appearing after the Second Vatican Council but before *Veritatis Splendor*, were, for example: H. U. Von Balthasar, *Neuf thèses pour un éthique chrétienne,* in *Enchiridion vaticanum* 5 (1974–1976; Bologna: Dehoniane, 1976) 613–645; C. Caffarra, *Viventi in Cristo* (1986); I. Biffi, "Fondazione teologico-cristologico-ecclesiologica della morale" in the multi-authored *Persona, verità e morale. Atti del congresso Internazionale di Teologia Morale* (Rome, 7–12 April 1986; Rome: Città Nuova Editrice, 1987) 27–35; A. Scola, "Cristologia e morale", in *Persona, verità e morale* (just cited) 539–560; G. Chantraine – A. Scola, "L'événement-Christ et la vie morale", *Anthropotes* 3 (1987) 5–23; D. Tettamanzi, *L'uomo imagine di dio. Linee fondamentali di morale Christiana* (Casale Monferrato: Piemme, 1992); *Id.*, *verità e libertà. Temi e prospettive di morale cristiana* (Casale Monferrato: Piemme, 1993); R. Tremblay, *L'Homme qui divinize. Pour une interpretation christocentrique de l' existence* (Montréal: Paulines, 1993). For a critical review of the works of this period the following should be consulted: M. Doldi, *Fondamenti cristologici della morale in alcuni autori italiani. Bilancio e prospettive* (Vatican City: LEV, 2000), and especially L. Melina, *Cristo e il dinamismo dell' agire* (2001), 91–111.

[64] This defect of moral inconclusiveness is nevertheless very frequently encountered. There are authors for whom moral theology is identified purely and simply with Christology. Others, however, are very sensitive to the specificity of practical knowledge. We are convinced that faith in Christ is the definitive and supreme criterion of life, which enters into the practical reason, by governing and modifying, when necessary, its first practical principles.

In our view it is necessary to reflect upon the rational analytical categories to use, since not all are able to be adequately inserted into the theological perspective we described above. One must note in particular that in the moral reflection of the twentieth century a tendency has become widespread of conceiving moral life as a *fact*—the moral fact—that moral theology would have to explain in a mode analogous to the way the natural sciences explain natural facts.[65] Since the moral fact consists—for the writers who share in this tendency—in the consciousness of values and moral obligations derived therefrom, the task of the moral theologian would be that of grounding moral obligation and of identifying its essential meanings. Moral theology is constituted in this case as knowledge about norms to be observed—that is, as a morality of obligation.

> This conception of moral theology strives to approach the modern scientific mentality, with the good intention of becoming more easily understandable for the men of our time, and simultaneously wants to maintain that moral reflection is a normative science, and not simply a description of human custom. But it is conditioned by the idea that the natural sciences are the model against which all scientific knowledge ought to measure itself, an idea that encourages the understanding of moral praxis through a method that distorts its nature and specificity. In fact, the moral life is not a *fact* that can be understood from the perspective of an outside observer. This perspective constrains the study and evaluation of human action as the action of a third person (Roger has carried out the action x; is such an action licit or illicit? What norm does action x fall under? How can the validity of such a norm be established, as well as the obligation to obey it?). We are speaking then of an ethics pursued from the "perspective of the third person".[66] This perspective brings about an ethics of obligation, which, among other things, studies from the outside a reality such as human action, which originates and acquires its moral character within the heart of

This does not mean, however, that one can always deduce what to do here and now from the ontological condition of being a child of God. A mediation is needed to arrive at a moral judgment, in which the natural moral law plays an important role. The extreme opposite position does not in any way seem acceptable to us, that is to say, the position of all those who think that faith in Christ, or our condition of being sons of God in Christ, says absolutely nothing about the content of concrete ethical action, which would instead be the exclusive camp of the autonomous reason. The Christological foundation rightly understood would have to sweep aside these opposing positions. The alternative between "reason or faith" is not admissible in morality at any level. Rather, we must say "both reason and faith", not as a sum or juxtaposition, but as an effective integration. The integration is attained neither by those who maintain autonomous reason alone nor by those who reduce moral theology to Christology.

[65] Cf. the pertinent considerations on this problem proposed by G. Abbà, *Quale impostazione per la filosofia morale?* (1996), 10*ff.*

[66] On the difference between the ethical perspectives of the first person and of the third person, *cf.* A. Rodríguez Luño, *Etica* (Firenze: Le Monnier, 1992) nos. 142, 148–149.

man.[67] This contradiction gives rise to noticeable ambiguities, even at the theoretical level of action.[68]

We hold, by contrast, that the moral problem, "is not so much about rules to be followed, but *about the full meaning of life.*"[69]The analytical categories required by moral theology ought to be congruent with a *vision of the moral life precisely as a life, as a way of acting that is understood and evaluated primarily with reference to an end towards which the moral subject guides himself, and only secondarily with reference to a rule.* Christian moral life is an activity through which the Christian works out, on the basis of faith and the other Christian and human virtues, an order or plan of life which determines the mode and the measure according to which various goods are sought, used or realized, in order for Christian sanctity to be capable of concrete actualization; in other words, such an order permits the believer to identify the actions and behaviors that execute here and now, and in a concrete way, life in Christ.

This is all an existential reality, lived out in a conscious way, but not ordinarily with reflection. *Moral theology grasps this order, which is immanent in Christian living, and brings it to conscious and scientific reflection,* [70] *making explicit its principles and internal logic, verifying its agreement with Revelation, and promoting its communicability.* Attention is therefore concentrated on its end, which is the good of human life understood as a whole, and which the moral subject exhibits daily with her concrete behavior. In this way, moral theology takes on the internal perspective of the moral subject who is the author of her own conduct, which is to say, the "perspective of the first person", and of the internal intentional dynamism that informs human actions. This perspective is rich in implications for work in moral theology, as the reader will be able to see throughout this book.

What we have been saying means that *moral theology is elaborated as an "operative science",*[71] *a practical theological science or at least a knowledge that*

[67] Cf. Mt 15:16–20.

[68] In this connection the indication of *Veritatis Splendor* is crucial: "In order to be able to grasp the object of an act which specifies that act morally, it is therefore necessary to place oneself *in the perspective of the acting person...* By the object of a given moral act, then, one cannot mean a process or an event of the merely physical order, to be assessed on the basis of its ability to bring about a given state of affairs in the outside world."

[69] *Veritatis Splendor* 7.

[70] The distinction formulated by Cajetan is of relevance here, between *ratio practica in actu exercito* (the spontaneous act of the practical reason) and *ratio practica in actu signato* (reflective act of the practical reason, i.e., reflection of the practical reason upon its own operations). *Cf. Commentarium in "Summam Theologiae",* I-II, q. 58, a. 5, comm. VIII, in the Leonine edition of the *Summa Theologiae* (Typographia Polyglotta S.C. De Propaganda Fide: 1891).

[71] *S. Th.* I-II, q. 6, prol.

possesses some of the methodological characteristics of the practical sciences. This poses the question as to how a practical science can be part of theology, traditionally considered a speculative or theoretical science about God. Saint Thomas himself poses this question, and in the works that express his most mature synthesis of his theological thought he offers a satisfying solution to the problem, even if it has not always been very well understood. When he studies the scientific status of theology in general, Thomas notes that moral philosophy is a practical science. Nevertheless he maintains that theology, occupying itself principally with God, is a theoretical science that can study at one and the same time the object of the theoretical philosophical sciences as well as the object of the practical philosophical sciences, because theology studies both from a formally superior and common perspective: insofar as they are the contents of divine Revelation.[72]

> But the Thomistic solution has an internal articulation that needs to be clarified with some precision. For St. Thomas the object of theology is God, certainly, but not just God in Himself but also insofar as He is the principle and end of created things, and especially man.[73] Now, the particular relationship between God and man explains how within theology there is room for a *moralis consideratio*. [74] As St. Thomas explains in the important prologue to the *Secunda pars,* man is the image of God, so that, like God his exemplar, man is also the principle of his own actions, and like God, is free and the master of his own actions. Moral theology studies the structures and the aids that God gives to man, so that man can be the true originator of the conduct that will lead him to his end. And thus Abbà notes that "the practical knowledge that we have as authors of our own good works, that is, our *phronesis* or *prudentia*, and the practical science that we build upon that, is a participation in that *ratio* whereby God governs creatures and man in particular, that is, the eternal law. *In just this way, practical wisdom or prudence, and moral science become our mode of knowing the eternal law. There can be a true and proper moral and practical science about man as the author of his own actions in a theology about God.* The unique divine knowledge, participated in by our intellects, by remaining substantially one because of the pronouncements of divine Revelation upon which it depends as upon its own principles, becomes articulated in a speculative or theoretical science about God and his works (*Prima pars*[75]), and about Christ, the incarnate Son of God and his theandric works, (*Tertia pars*), and in a practical science about man and his human works (*Secunda pars*) ... in this way, the Aristotelian perspective of the first person can be adopted in theology".[76]

[72] Cf. *S. Th.* I, q. 1, a. 3, ad 2 and ad 4.
[73] Cf. *S. Th.* I, q. 2, prol.
[74] *S. Th.* I-II, q. 6, prol.
[75] The author is referring here to the parts of the *Summa Theologiae*.
[76] G. Abbà, *Quale impostazione per la filosofia morale?* (1996) 60–61 [italics have

In our judgment, the ethical approach known today by the name of "ethics of the first person" or "virtue ethics"[77] is one that is better able to develop the mediation that is needed for the epistemological status of moral theology. We are in agreement with Melina when he writes that the category of virtue "offers the rational and human presupposition for a christocentric morality of *caritas*, which permits us to overcome a morality of pure obligation and to unite the natural dimension to the supernatural. The perspective of the first person, proper to a morality of the virtues, is the only one that allows us to grasp adequately the moral point of view as praxis, through which the subject is called to actualize himself as a person. The organic unity of the Christian moral life does not nullify the difference between the natural human order of the virtues and the supernatural order of charity. The rational dimension of the virtues, assumed in the superior logic of charity, is respected in accordance with its proper demands. In the christocentric perspective, the human and the divine are united "without confusion and without separation."[78] The category of virtue furthermore permits us to understand how faith in Christ enters into and transforms the principles of the practical reason, such that Christ becomes concretely the true internal principle of moral action.[79]The virtues practiced and taught by Christ become the practical principles of moral action.

1.2.3 *Moral Theology and Dogmatic Theology*

While underlining the special nature of moral theology in the preceding section, we affirmed at the same time the unitary nature of theology. *Moral knowledge is unitary, because divine Revelation is unitary, by the light of*

been added].

[77] Other than the work by Abbà already cited, *Quale impostazione per la filosofia morale?*, we are especially indebted to the following works by the same author: *Lex et virtus. Studi sull' evoluzione della dottrina morale di san Tomasso d'Aquino* (Roma: LAS, 1983); "Una filosofia morale per l'educazione alla vita buona", *Salesianum* 53 (1991) 273–314; *Felicità, vita buona e virtù. Saggio di filosofia morale* (Roma: LAS, 1995^2); "L'originalità dell' etica delle virtù", *Salesianum* 59 (1997). Furthermore, see M. Rhonheimer, *Natural Law and Practical Reason: A Thomistic View of Moral Autonomy* (New York: Fordham University Press, 2000); *Praktische Vernunft und Vernünftigkeit der Praxis. Handlungstheorie bei Thomas von Aquin in ihrer Entstehung aus dem Problemkontext der aristotelischen Ethik* (Berlin: Akademie Verlag, 1994); A. MacIntyre, *After Virtue* (South Bend, Indiana: University of Notre Dame Press, 1986^2); *Whose Justice? Which Rationality?* (South Bend, Indiana: Notre Dame University Press, 1988); *Three Rival Versions of Moral Enquiry: Encyclopedia, Genealogy and Tradition* (1990); A. Rodríguez Luño, *Etica* (1992), and *La scelta etica. Il rapporto tra libertà e virtù* (Milan: Ares, 1988); and the most recent refinement of the latter's work: *Ética General* (Pamplona: EUNSA, 2001^4). In all these works, further relevant bibliographies can easily be found.

[78] L. Melina, *Cristo e il dinamismo dell'agire* (2001), 198.

[79] This perspective will be developed below, without departing from the limits of general ethics, in Chapter II, subsection 2.3.4. and section 2.4; in Chapter VII, subsection 7.5.1 and in Chapter VIII, subsection 8.4.2 and 8.4.3).

which theology studies the theoretical truths to believe and the practical truths that permit the personalizing of the behaviors that agree with the truths of faith. The unity of theological wisdom is complex and intrincate, but is always a true and real unity. One cannot speak or write about everything at the same time. For pedagogical reasons—reasons connected, that is, to study and teaching—theology has been divided into various parts (dogmatic theology, moral theology, biblical theology, etc.), and these parts in turn are divided into various "treatises". But the same pedagogical experience teaches us that the comprehension of any theological theme requires frequent reference to questions that belong to other parts or other treatises. This need is especially evident in moral theology. *It is not possible to approach the study of moral theology without keeping in mind its Christological, ecclesiological, and sacramental foundations.*

Typically dogmatic questions such as creation and predestination in Christ, original sin and concupiscence, redemption and justification, the last things, the action of the Holy Spirit in the Church and in the individual believer, etc. are essential points of reference for the moral theologian. Equally necessary is recourse to the Old and New Testaments and spiritual theology, also intimately connected to moral theology. By definition, in fact, however insuperable the pedagogical difficulties might be, it cannot be denied that the study of moral theology requires the profession and the consideration of the entire Christian faith, "which is not simply a set of propositions to be accepted with intellectual assent. Rather, faith is a lived knowledge of Christ, a living remembrance of His commandments, and a *truth to be lived out.* A word, in any event, is not truly received until it passes into action, until it is put into practice. Faith is a decision involving ones whole existence. It is an encounter, a dialogue, a communion of love and of life between the believer and Jesus Christ, the Way, the Truth, and the Life (cf. *Jn* 14:6). It entails an act of trusting abandonment to Christ, which enables us to live as he lived (cf. *Gal* 2:20), in profound love of God and of our brothers and sisters."[80]

1.3 The Sources of Moral Theology

The sources of moral theology are substantially the same as for theology in general. They are also the object of study for a specific theological treatise, known as fundamental theology.[81] We can limit ourselves here to recalling

[80] Veritatis *Splendor* 88.

[81] For an organic and complete synthesis, see F. Ocáriz - A. Blanco, *Teologia fondamentale*, (Rome: Apollinare Studi, 1997). For further elaborations see R. Latourelle, *Telogia della rivelazione* (Assisi: Citadella, 1970[3]); J. Ratzinger, *Elementi di teologia fondamentale* (Brescia: Morcelliana, 1986); R. Latourelle- R. Fisichella, (eds.) *Dizionario di Telogia fondamentale,* (Assissi: Citadella, 1990).

the most important points, concentrating above all on the issues that most directly concern moral theology.

1.3.1 *Divine Revelation*

Sacred Scripture and Tradition — The specific source and the perennial foundation of moral theology, as of all theology, is divine Revelation. In the words of the Second Vatican Council, "Sacred theology rests on the written word of God, together with sacred tradition, as its primary and perpetual foundation. By scrutinizing in the light of faith all truth stored up in the mystery of Christ, theology is most powerfully strengthened and constantly rejuvenated by that word".[82] Theological knowledge is the human effort of understanding and scientifically delving deep into the content of Revelation as acquired by faith. Theology is the science of faith. In faith, theology finds both its own proper principles of content (*fides quae*) as well as the light which inspires it (*fides qua*) and renders possible its deeper rational understanding. The theological object of study cannot beome an "object of reason except on the condition that reason believes and to the measure in which reason remains under the influence of faith."[83] The inner dynamism of theological knowledge was expressed by Saint Augustine in the celebrated formula, "*credo ut intelligam et intelligo ut melius credam*"["I believe in order to understand and I understand in order better to believe"].[84] From this it can be seen that faith is both the end of theology and its intrinsic governing principle.

Divine Revelation finds its complement in Christ Jesus, who commanded the Apostles to preach to all persons the Gospel, which is the source of all saving truth and moral teaching".[85] These Apostles, "and the men of their circle" did this by word of mouth or in writing.[86] *Revelation was transmitted from an apostolic origin therefore, both by sacred Scripture and sacred Tradition.* "Hence there exists a close connection and communication between sacred Tradition and sacred Scripture. For both of them, flowing from the same divine wellspring, in a certain way merge into a unity and tend toward the same end. . . .therefore both [sacred Tradition and sacred Scripture] are to be accepted and venerated with the same sense of loyalty and reverence."[87] It is important to realize that Tradition is a living reality, which "develop[s] in the Church with the help of the Holy Spirit. . . For there is a growth in the understanding of the realities and the words which have been handed down.

[82] *Dei Verbum* 24.
[83] J. H. Nicholas, *Sintesi dogmatica*, (Vatican City: LEV, 1991). Vol. I, 22.
[84] St. Augustine, *Sermo*, 43, 7 -9; NBA 29, 757–761.
[85] *Dei Verbum* 7.
[86] Cf. *ibid.*, 7.
[87] *Ibid.*, 9.

This happens through the contemplation and study made by believers, who treasure these things in their hearts (see Luke, 2:19, 51) through a penetrating understanding of the spiritual realities which they experience, and through the preaching of those who have received through Episcopal succession the sure gift of truth."[88] This means, among other things, that the sacred Scripture, written by way of divine inspiration and entrusted to the Church, is read and understood as it has been read and interpreted by the Church.[89] In this sense, sacred Scripture without Tradition is *formally* insufficient, which is to say, without Tradition, the canon of Scripture could not be recognized as such nor would its correct interpretation be guaranteed. But as to whether it is *materially* insufficient, that is, insufficient also from the point of view of its content, is a debated question which it is not in our purview to resolve here.[90] What is certain is that both are interconnected to such a degree that each cannot exist without the other.[91]

The Magisterium of the Church — Christ promised the assistance of the Holy Spirit so that the Church could preserve the deposit of divine Revelation intact, both in *believing* and in *teaching*, that is to say, in faith both professed and exemplified. *The task of authentically interpreting and preserving the Word of God in the name of Christ, was entrusted uniquely to the living Magisterium of the Church.* The magisterium is not above the Word of God, "but serves it, teaching only what has been handed on",[92] always in reliance on the Holy Spirit. The Second Vatican Council has underlined the intimate bond between Scripture, Tradition, and the Magisterium. "Sacred tradition, Sacred Scripture and the teaching authority of the Church, in accord with God's most wise design, are so linked and joined together that one cannot stand without the others, and that all together and each in its own way under the action of the one Holy Spirit contribute effectively to the salvation of souls."[93]

> The office of teaching in matters of faith and morals belongs to the bishops in communion with the Roman Pontiff, and to the Roman Pontiff by himself. These authorities "are to be respected by all as witnesses to divine and Catholic truth",[94] even when they do not intend to define a teaching dogmatically.[95] It should also be recalled that the teachings

[88] *Ibid.*, 8.
[89] Cf *2 Pet* 1:20–21.
[90] Cf. F. Ocariz - A. Blanco, *Teologia Fondamental* (1997), 83–108.
[91] Cf. *Dei Verbum* 10; *CCC* 74–83.
[92] *Dei Verbum* 10.
[93] *Ibid.*
[94] *Lumen Gentium* 25,1.
[95] Cf. *CIC*, canon 752; *Donum Veritatis* 23,3. The Constitution *Lumen Gentium* provides clarification on the ordinary magisterium of the Pope as follows: "This religious submission of mind and will must be shown in a special way to the authentic magisterium of the Roman Pontiff, even when he is not speaking ex cathedra; that is, it must be shown in such a way that his supreme magisterium is acknowledged with

of the magisterium are binding for the theological faith of the believer when the magisterium exercises the charism of infallibility (absence of error guaranteed by divine assistance).[96] Acts of both the solemn and ordinary universal magisterium[97] are endowed with this charism. Acts of the *solemn magisterium* are the definitions "ex cathedra" made by the Roman Pontiff[98] along with the definitions made by the Episcopal College in unity with the Roman Pontiff and approved by him (in an Ecumenical Council, for example).[99] On the other hand, there is an infallible teaching of the *ordinary universal magisterium* when the individual bishops "even though dispersed through the world, but still maintaining the bond of communion among themselves and with the successor of Peter, and authentically teaching matters of faith and morals are in agreement on one position as definitively to be held."[100] We should add that with regard to the power of the magisterium, that not only the nature of the act of the magisterium must be considered, but also the varying degree and type of the doctrines taught and the type of adherence required. It has been noted that the Instruction *Donum Veritatis*, in referring to the *Profession of faith and the oath of fidelity,* has introduced a remarkable clarification of the matter by distinguishing three great categories of truth.[101] This must be kept in mind for a correct interpretation of the documents of the Church's magisterium.

reverence, the judgments made by him are sincerely adhered to, according to his manifest mind and will. His mind and will in the matter may be known either from the character of the documents, from his frequent repetition of the same doctrine, or from his manner of speaking."

[96] For some important clarifications regarding the doctrine of infallibility, see *Mysterium Ecclesiae* 2–5.

[97] Cf. First Vatican Council, Dogmatic constitution *Dei Filius* 24, April 1870, cap. 3: DS 3011; *CIC* can. 750.

[98] Cf. First Vatican Council, Dogmatic Constitution *Pastor Aeternus*, 18 August 1870, cap. 4: DS 3073–3075. This instruction of the First Vatican Council is a dogma of the faith. *Cf.* also *Lumen Gentium* 25,3, which should be read in its entirety.

[99] "This [infallibility of the Bishops together with the Roman Pontiff] is even more clearly verified when, gathered together in an ecumenical council, they are teachers and judges of faith and morals for the universal Church, whose definitions must be adhered to with the submission of faith." *Lumen Gentium* 25,2. "The infallibility promised to the Church resides also in the body of Bishops, when that body exercises the supreme magisterium with the successor of Peter. To these definitions the assent of the Church can never be wanting, on account of the activity of that same Holy Spirit, by which the whole flock of Christ is preserved and progresses in unity of faith." *Lumen Gentium*, 25,3.

[100] *Lumen Gentium* 25, 2.

[101] Cf. *Donum Veritatis* 23. The *professio fidei et iusiuirandum fidelitatis* (" Profession of Faith and Oath of Fidelity") was published by the Congregation for the Doctrine of the Faith in 1989: *AAS* 81 (1989) 104 *f.* For a further explanation that also takes into account the canonical aspects, *cf.* John Paul II, *Motu proprio* "*Ad tuendam fidem*" , 18 May 1998 and the Congregation for the Doctrine of the Faith, *Nota dottrinale illustrative della formula conclusive della "professio fidei"*, 29 June 1998.

The Magisterium and Theology — It pertains to the nature of theology, as a rational exploration of the revealed mystery, to have an adequate understanding of the existing relationship between the magisterium and the Church that is free from distortions and dialectical oppositions; this is a task for theologians as well as the people of God. In the strict sense, the magisterium does not constitute an autonomous source of theology. The source and norm of theology is divine Revelation, and the role of the magisterium must be considered in relation to that. In its intimate connection with Sacred Scripture and Sacred Tradition,[102] which reflects the plan of the Creator, the magisterium precedes and governs theological work in the same way as it does so for the faith. *For theology, the magisterium is not a non-scientific authority in opposition to rational research, but constitutes, rather, the necessary presupposition for it.* At the same time, it is true that "theology is not simply and exclusively an auxiliary function of the magisterium".[103] It is not limited to repeating or summarizing doctrine to the extent that they are taught by the magisterium. *Theology has its own dynamism, rooted in the striving toward truth and the rational understanding that is proper to man and to the faith as such,* in such a way that theology is concerned both with reinforcing the Christian life of the faithful and with the necessary task of 'giving account of the hope that lies within it' for those who still do not know Christ.

> Moreover, "the unity of faith, in function of which the Magisterium has the authority and ultimate deliberative power to interpret the Word of God as written and transmitted, is the primary value, which, if respected, does not lead to the suffocation of theological investigation, but rather provides it with a stable foundation".[104] It is also important to keep in mind the ecclesial character of theology: for it to attain its goal, "theology can never be reduced to the 'private' reflection of a theologian or group of theologians. The living environment of the theologian is the Church, and to remain true to its identity, theology can do no less than participate intimately in the context of the life of the Church, in its teaching, in its holiness, in its prayer."[105] The sense of belonging responsibly to the Church always allows for an adequate resolution of tensions that occasionally arise between theological research and the teaching of pastors,and resolves them in a way that will not be traumatic for the faithful;[106] such tensions are, up to a point, inevitable in all the realities that involve human beings, but if they go beyond a certain size or character they are nothing but manifestations of a lack

[102] Cf. *Dei Verbum* 10.
[103] J. Ratzinger, *Natura e compito della teologia* (Milan: Jaca Books, 1993), 92.
[104] John-Paul II, "Speech to Participants in the Plenary Assembly of the Congregation for the Doctrine of the Faith", November 24, 1995 [here, trans. from the Italian] no. 2: *Insegnamenti*, XVIII-2 (1995) 1214.
[105] *Ibidem.*
[106] Cf. *Donum Veritatis* 21–41.

> of faith and love toward the ecclesial mediation that Christ willed and guaranteed.
> On the other hand, the functions of pastors and theologians are distinct.[107] Pastors do not enter into scientific-theological debates, unless it is necessary on occasion for the benefit of the faithful, and then only, as it were, indirectly; likewise, it is not the business of theology to govern the community of the faithful. What is demanded of theology is that it be good theology, that is, that it fulfills its mission with scientific rigor, a mission that is founded in the faith and regulated by the faith, and seeks a more profound understanding of faith, but without being in any way false to its pastoral destination.[108]

By definition, then, the magisterium and theology, while having diverse roles, have ultimately the same end: to preserve the People of God in the truth which sets them free. This common service to the community of the faithful, and to all humanity as well, both grounds and inspires a relationship of mutual collaboration between the two.[109]

1.3.2 *The Content of Revelation and the Competence of the Magisterium in Moral Matters*

Revelation, the Magisterium, and Morality — The gospel was preached by the Apostles and their successors as "the source of all saving truth and moral teaching".[110] This affirmation of the Dogmatic Constitution on Divine Revelation of the Second Vatican Council expresses in general terms what has always been the mind of the Church: *the Gospel is also the source of "all moral teaching"*; and the use of the formula *in rebus fidei et morum* ("in matters of faith and morals") has become traditional, with reference either to the content of Revelation or to the area in which the Magisterium of the Church is doctrinally and authoritatively competent.[111]Furthermore, the existence of a moral teaching of revealed content and of a specific doctrinal competence on the part of the ecclesiastical Magisterium has been universally and peacefully affirmed by moral theology up to the first half of the twentieth century.

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[107] Cf. *Pastores Dabo Vobis* 53.
[108] Cf. *Ibidem.*
[109] *Ibid.*, 55.
[110] *Dei Verbum* 7.
[111] The expression *in rebus fidei et morum* occurs at least as early as the Council of Trent (*Cf.* DS 1507), and has been repeated, in slightly variant forms, by all ecclesiastical documents on the subject to our own day, for example, by the Constitution *Pastor Aeternus* from the First Vatican Council, by the Constitutions *Lumen Gentium*, no. 25 and *Dei Verbum* of the Second Vatican Council, by the Declarations *Mysterium Ecclesiae* and *Professio Fidei*, by the Instruction *Donum Veritatis*, and by the Encyclical *Veritatis Splendor*. The expression has also been used in dogmatic definitions (*cf.* DS 3074).

The specific competence of the magisterium in the field of morality is, above all, a reality of the two millenia long history of the life of the Church.[112] From the theological point of view, such a reality is fundamentally explained by two considerations. *The Magisterium of the Church is competent in the ethical realm a) as the guardian and interpreter of Revelation (and therefore of the ethical content of that Revelation), and b) insofar as Christ directed the Apostles and their successors to preach his message of salvation: and the observance of the entire moral law is necessary for salvation.* [113] On the basis of this second reason, the Church has also affirmed its competency in matters of the natural moral law,[114] without, nonetheless, having to invalidate the theoretical question as to whether there also exist true ethical requirements of the natural moral law which are not in any way revealed or which are not bound to the guardianship and exposition of the deposit of faith.

"Autonomous Morality" — In the years following the Second Vatican Council, a theological orientation began to emerge, known as "autonomous morality" or "autonomous morality in a Christian context",[115] which proposed a re-thinking of the relationship between human morality and Christian morality. The solution to the problem was a tendency to deny the competence of the Church's Magisterium in the realm of concrete moral norms of the natural moral law, which in turn presupposed the refutation of the basis of such competence, that is, the relevance of such norms to the deposit of revelation and their relevance for salvation. An important debate resulted from this,[116] and some proponents of this orientation came to sustain some mani-

[112] There have been interventions by pastors of the Church on moral questions since Apostolic times, and also with regard to the natural moral law. This is clear in the letters of the New Testament. By way of example, see the following passages: DS 2038, 2039, 2044, 2045, 2060, 2061, 2062, 2108, 2109, 2114, 2115, 2126–2128, 2130–2144, 2148–2151, 3336–3338, as well as the social Encyclicals.

[113] Cf. Paul VI, *Humanae Vitae*, July 25, 1968, no. 4, and *Donum Veritatis* 16.

[114] Cf. Paul VI, *Humanae Vitae*, July 25, 1968, no. 4, and the documents cited in the first note of the same Encyclical. On the study of other texts of the magisterium and for a comprehensive view of the problem, *cf.* F. Ocáriz, *La competenza della Chiesa "in moribus"* in Various Authors, *Humanae vitae: 20 Anni dopo*.(Milan: Ares, 1989) 125–138. With respect to studies carried out after *Veritatis Splendor*, *cf.* J.A. Martínez Camino, "La fe que actúa" (Gal. 5,6). Fe e razón en la "*Veritatis Splendor*" and E. Carrasco Rouco, "Iglesia, Magisterio y Moral", in G. Del Pozo Abejón, (ed.) *Comentarios a la Veritatis Splendor* (Madrid: BAC, 1994), found respectively at pp. 383–402 and 429–474; R, Fisichella, "Teologi e Magistero", in R. Lucas Lucas, (ed.) *"Veritatis Splendor". Testo integrale e commento filosofico - teologico* (Cinsello Balsamo: Paoline, 1994) 153–168. A. Sarmiento, "Determinaciones de la autoridad de la Iglesia sobre la moral", *Ius Canonicum* 40 (2000) 53–71.

[115] Representatives of this orientation are A. Auer, *Autonome Moral und christlicher Glaube* (Dűsseldorf: Patmos, 1971; in 1984 a second edition was published with replies to the chief criticisms; this was translated into Italian as: *Morale autonoma e fede cristiana*, [Cinsello Balsamo: Paoline, 1991]) and F. Bőckle, *Fundamentalmoral* (Munich, 1977; Engl. trans. by N. D. Smith, *Fundamental Moral Theology* (New York: Pueblo, 1980).

[116] For a summary view, *cf.* F. Citterio, "Morale autonoma e fede cristiana. Il dibattito

festly erroneous positions, which were the motivation for the intervention of the Roman Pontiff in the encyclical *Veritatis Splendor*.

> The encyclical *Veritatis Splendor* clearly affirmed that we must speak of a "rightful autonomy of the practical reason",[117] but at the same time affirmed in a manner equally convincing that some Catholic moralists were proposing an interpretation of the autonomy of the human moral reason which contained "positions incompatible with Catholic teaching".[118] These positions are explained in nos. 36 and 37 of the encyclical, although in reality the connection between faith and morality is a theme that recurs throughout. The essential teaching of nos. 36 and 37 can be collected under five points:

1. It is made clear at the very beginning—and it is a very important clarification—that the criticized orientation "has certainly never attempted to set human freedom against the divine law or to question the existence of an ultimate religious foundation for moral norms."[119]

2. The criticized orientation, has, nonetheless, introduced a profound change in the *mode of understanding* the relationship between the human reason and God, by denying the two principal ways by which this relationship has been established in traditional Catholic morality: "disregarding the dependence of human reason on Divine Wisdom and the need, given the present state of fallen nature, for Divine Revelation as an effective means for knowing moral truths, even those of the natural order, [some] have actually posited a *complete sovereignty of reason* in the domain of moral norms regarding the right ordering of life in this world."[120] In other words, the concept of a creative reason has been proposed that would establish what is right or wrong in the field of worldly action according to the ever-changing requirements of particular historical situations. From this follows the affirmation that "such norms would constitute the boundaries for a merely 'human' morality; they would be the expression of a law which man in an autonomous manner lays down for himself and which has its source exclusively in human reason. In no way could God be considered the Author of this law, except in the sense that human reason exercises its autonomy in setting down laws by virtue of a primordial and total mandate given to man by God."[121]

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continua, I" , *La Scuola Cattolica*, 108 (1980) 509–581; O. Bernasconi, *Morale autonoma ed etica della fede*; J. Langan, "The Christian Difference in Ethics", *Theological Studies* 50 (1989) 131–150. For a full theoretical discussion, see M. Rhonheimer, *Natural Law and Practical Reason* (2000).

[117] *Veritatis Splendor* 40.

[118] *Ibid.*, 37.

[119] *Ibid.*, 36.

[120] *Ibidem.*

[121] *Ibidem.* Please note that this last statement does not contradict what *Veritatis Splendor* states in point 1. The representatives of "autonomous morality" do not deny that the moral law has some relationship with God, but they affirm that God is not its Author *except in the sense specified.*

3. This position was then employed as a fundamental criterion for Biblical hermeneutics, since their concept of reason is incompatible with the possibility of a Revelation, on God's part, of moral precepts respecting concrete moral norms.[122] "This has then led to an actual denial that there exists, in Divine Revelation, a specific and determined moral content, universally valid and permanent."[123]

4. The Christian authors who are coming under criticism maintain that this new concept of autonomy ought to be restricted to the plane of moral normativity, and for this purpose it is to be carefully separated from the normative plane of religion and salvation. There is consequently a distinction between ethical truths and the truths of salvation, a distinction which *Veritatis Splendor* considers contrary to Catholic doctrine.[124]

5. From the positions indicated in points 3) and 4) there is derived in a logically coherent way "the denial of a specific doctrinal competence on the part of the Church and her magisterium with regard to particular moral norms which deal with the so-called "human good",[125] since such an interpretation rejects the two reasons which ground such competence in principle: it is denied that the *depositum fidei* contains a specific and concrete moral teaching, and it is denied that the concrete norms of the natural moral law are an integral part of the message of salvation that the Church brings to all persons in virtue of Christ's own mandate.
   After the publication of the encyclical, the authors who believed that they were being called to correction affirmed that no Catholic moral theologian had ever maintained such positions.[126] But this defense does not hold up in the face of a critical comparison of the encyclical with the major works written by these authors[127] both before and after its publication.[128]

[122] By "moral precepts" is intended the norms regarding the natural ethical virtues or the natural moral law, since other aspects of morality are not included in the discussion. The authors mentioned do not, for example, deny that Christian morality calls for a new understanding of the subject and of the end of moral action.

[123] *Veritatis Splendor* 37.

[124] Cf. *ibidem*, with reference to canons 19–21 of Session VI of the Council of Trent: DS 1569–1571.

[125] *Veritatis Splendor* 37.

[126] See the book, *Moraltheologie im Abseits? Antwort auf die Enzyklika "Veritatis Splendor"*, ed. D. Mieth (Freiburg-Basel-Vienna: Herder, 1994), which contains an exasperated criticism of the Encyclical.

[127] For a study of the encyclical in relation to "autonomous morality", *cf.*A. Rodríguez Luño, *Veritatis Splendor, un anno dopo. Appunti per un bilancio (I)* (1995), 242–259. On pages 248–254 can be found a detailed comparison with Böckle's *Fundamentalmoral*.

[128] On February 2, 1996, *L'Osservatore Romano* published a critical note on the book edited by D. Mieth, cited in note 127 above. In the article it is affirmed among other things that "according to this fundamental interpretation, one is not obliged to think of the encyclical *Veritatis Splendor* as an authentic expression of the Church's magisterium. One is convinced that *Veritatis Splendor* can be made into the object of a *quaestio disputata*, and we are encouraged to favor public dissent toward a pronouncement of the ordinary magisterium of the Roman Pontiff. In this

Faith and Morality — The basic problem is the mode of understanding human morality in relationship to God and to Christian morality, or, according to the language employed in *Veritatis Splendor,* the relation between faith and morals. This is a fairly complex issue, and although we have already expressed in general terms the position which seems to us to be the most adequate,[129] there are still other more specific aspects which still need to be clarified. The problem can admit of a variety of concrete solutions that are all doctrinally acceptable. The position of "autonomous morality", on the other hand, has some notable values which, according to *Veritatis Splendor,* "belong to the best tradition of Catholic thought."[130] In fact, it was intended to favor dialogue with modern culture, by underlining the rational character[131]—and consequently the universally comprehensible and communicable character[132]—of the natural moral law, as it has also emphasized its interior character,[133] which could not be understood as a heteronomy.[134] But *Veritatis Splendor* also indicates the definite boundaries beyond which Catholic doctrine is left behind.

These are principally the following:

1. It is not permitted to pass from the autonomous epistemological principle of the human reason with regard to the natural moral law (the "rightful autonomy of the human reason") to the affirmation of the ontological autonomy of human morality, and thus to the denial that the natural moral law is a divine law.

2. It is not permitted to pass from a specifically "Christian" horizon (in the sense of something "exclusive" or "special") on the plane of faith and grace (sometimes referred to as the "transcendental level") to the affirmation of the irrelevance for salvation of certain kinds of behavior related to the natural ethical virtues (justice, temperance, etc.).

3. It is not permitted to pass from the cognitive autonomy of human reason, which is relative in practice, to the denial of the presence in divine Revelation of ethical demands of the natural moral law. In other words, the concept

way, a theologically and ecclesiastically incorrect attitude is encouraged (*cf. Lumen gentium* 25, 1), and at the same time, the exactness of the diagnosis and doctrinal discernment employed in *Veritatis Splendor* are only confirmed by the facts. The exorbitant criticism of this book expresses a conviction that moral questions cannot be the object of the Church's magisterium by the very nature of their matter (*ratione materiae*)."

[129] See above, paragraph 1.1.3.

[130] *Veritatis Splendor* 36.

[131] Cf. for example, A. Auer, *Autonome Moral und christlicher Glaube*, 15–54.

[132] Cf. for example, F. Bőckle, *Morale Fondamentale*, 249 and 252.

[133] Cf .*Veritatis Splendor* 36.

[134] Cf. *Ibid.,* 41.

of autonomy cannot be stressed to the point that God, in order to respect the freedom of His creature, would have no choice but to withdraw from the life and the world of human beings in such a way that there were an empty space in God that corresponded to the legislative autonomy of man, a space in which "nothing is written."[135] And now—according to the supporters of an "autonomous morality"–what appear to be concrete moral instructions in Sacred Scripture, must be explained in another way: as norms shared in by the cultural environment of the sacred writers and which would therefore be changeable norms, etc.[136] This is not the sense in which God has entrusted the world to man, in order to govern and shape it.[137]

4. As a corollary, there is no foundation for denying the competence of the magisterium of pastors in the moral realm. This does not mean, however, that we should not also keep in view the relative epistemological autonomy of the human reason as regards the natural moral law ("the rightful autonomy of the practical reason," according to *Veritatis Splendor*). In fact, the magisterium of the Church customarily limits itself to teaching the doctrinal content that the pastoral circumstances of every age show as advisable to emphasize, to counter the doubts and misunderstandings that can harm the faithful, and to encourage them to take up positions, but without proposing authoritative arguments in the concrete. In the majority of cases, it is the business of moral theology to identify and deepen the arguments that are suitable for making doctrinal instruction more readily comprehensible.[138]

[135] Cf. the correct observations of M. Rhonheimer, "Autonomia e teonomia moral según la encíclica *Veritatis Splendor*", in G. del Pozo Abejón (ed.), *Commentarios a la 'Veritatis Splendor'*, 543–578. What Revelation teaches us is that God not only does not, in fact, withdraw from the moral life and history of humanity, but enters into the world to the extent of sharing—in Christ—our human condition and becoming an example for living.

[136] Distinct from this is another very real problem that has been raised by some writers: in the Sacred Scriptures—including the letters of the Apostles but especially the Old Testament—we find apparently situated at the same level normative affirmations that have only a transitory meaning alongside other affirmations of perennial validity. Rational discernment and good sense is always necessary. But above all, the teachings of Christ are what furnish the criteria for an adequate discernment. This is why it is crucial to read the Old Testament in the light of the New, and to read the difficult passages of the New Testament as they have been read in the Church since the time of the Apostles; in the last analysis, an adequate understanding of the role of Tradition is decisive.

[137] The Biblical question, furthermore, is especially confused since, on the one side, the supporters of autonomous morality say that their position only takes seriously the difficulties that the exegetes have had in finding a revealed *ethos*, and thus Fuchs writes: "Modern exegesis affirms that, in general, the more concrete moral affirmations contained in Scripture cannot be considered to be moral norms revealed by God, and cannot be proposed by the Church as infallible." (J. Fuchs, *Responsabilità personale e norma morale* [Bologna: Dehoniane, 1978] 202). On the other hand, many competent exegetes affirm that the difficulties in this sense proceed rather from the moralists: *Cf.* G. Segalla, *Introduzione all' etica biblica del Nuovo Testamento* (Brescia: Queriniana, 1989), 21, and R. Schnackenburg, *Il messagio morale del Nuovo Testamento* (1989), vol. 1, 17–30.

[138] Cf. for example the encouragements in this sense offered by John-Paul II in his

In this connection it is necessary to add two final considerations. In the first place, it appears crucial, in considering all the material of this nature, to have the ability to conceive of the relations between faith and reason and between natural knowledge and Revelation in a non-dialectical manner. It is not true that this world is only related to reason and the other world to faith, anymore than the idea that the arena of argumentation is only to be identified with reason while the realm of faith pertains only to the will or emotions. God has revealed certain things regarding our moral action which the reason would also arrive at *per se*.[139] Scheeben's way of explaining the interrelationship between faith and reason seems to us particularly suggestive: such a relationship is not dialectical but "spousal", so that Christ can be considered as "*the Man-God that results from two principles of activity*, that of the divine nature and that of human nature, *as a type of the relationship between reason and faith as two principles of knowing*".[140] In the final analysis, it is a question of taking seriously the logic of the Incarnation. Secondarily, we think that the problem has been remarkably complicated by the excessively normativistic approach assumed in "autonomous morality". The study of the ethical content of Revelation from the point of view of the end of the moral life and of the virtues would have been much easier.

1.3.3 *Natural Reason and the Philosophical and Human Sciences*

Human Reason and Moral Theology — We now know that "true theology proceeds from the faith and aims at leading to the faith".[141] Between the very beginning point of faith and the more profound understanding of faith that one strives to reach, lies the application of reason to the content of revelation, or the rational exploration of faith—and this is the work of theology, properly speaking. *The ordered and systematic exercise of reason is an essential part of theology.* But this is true, not in the sense of a simple juxtaposition of two cognitive powers, but in the sense in which both of them give way to what is known as theology, a human wisdom, but founded on principles that have been divinely revealed. Scheeben correctly wrote that "the one

Apostolic Exhortation *Familiaris Consortio* (Nov. 22, 1981), no. 32, 5 and in the Encyclical *Evangelium Vitae* 98, 3.

[139] Cf. First Vatican Council, Dogmatic Constitution *Dei filius*, cap. 2: DS 3005.

[140] M.J. Scheeben, *I misteri del Cristianesimo* (Brescia: Morcelliana,1960, 3rd ed.) 797. On the relationship between faith and reason, *cf.* A. Rodríguez Luño, "La risposta del pensiero metafisico alla crisi dell'etica contemporanea: l'essere come libertà", in G. Chalmeta (ed.), *Crisi di senso e pensiero metafisico* (Roma: Armando, 1993) 73–89; A. Rodríguez Luño, "Pensiero filosofico e fede cristiana. A proposito delll' enciclica *Fides et ratio*", *Acta Philosophica* 9 (2000) 33–57.

[141] *Pastores Dabo Vobis* 53.

saying, *fides quaerit intellectum*, is not fully intelligible without the addition of the other saying: *intellectus quaerit fidem*; *fides* and *intellectus* mutually require and complement one another to form the organic unity of a wisdom that proceeds from God and centers on the truths revealed by Him. Through *fides* I accept the word of God; through *intellectus* I understand it: but only through both at the same time do I acquire for myself the wisdom of God expressed in the word of God, and become one who knows that wisdom."[142] *The unity and the harmony between reason and faith thus becomes the distinguishing characteristic of good theology, and on the basis of this criterion the Church has expressed its preference for using Thomas Aquinas' philosophy of being.*[143] This is a preference that certainly does not entail an exclusiveness that is closed to the advances that have since been made in the history of philosophical thinking.

In the course of this work, we have already referred twice to the relationship between faith and reason. The theme is so important for theology that a few more clarifications are necessary. A fruitful formulation of the relationship between faith and reason must include two further fundamental aspects. 1) Christian revelation transcends and at the same time includes the entire historical-philosophical horizon of man. It is true that in revelation the most important questions of man are answered, but it is also true that revelation greatly exceeds such questions in such a way that it cannot be conditioned, anticipated, limited, or interpreted on the basis of human questions. This is how any "philosophism" is avoided—that is to say, a subordination of the word of God to the criterion of a entirely philosophical hermeneutics. 2) On the other hand, the vindication of the freedom (or love) and absoluteness of a God Who reveals Himself cannot be accomplished by denying to reason the power of exploring the essential consistency of created realities. This means avoiding the nominalist error of seeing things as if they were a pure singular *fact* and fully contingent in their existence as mere objects of the will of God, in which there is little to be known, since they do not contain any necessary truth, or still less, any universal truth.[144] Existence would then be a contingent fact with no explanation beside the will of God, who puts them in existence outside of Himself. This would lead to the destruction of truth—enabling an indefinite plurality according to the variety of hermeneutical perspectives assumed—and the fundamental principle of philosophical realism would be denied: that is,

[142] M. J. Scheeben, *I misteri del Cristianesimo* (1960), 777–778.

[143] Cf. *Optatam totius*, no. 16. For a commentary on the principal teachings of the Church on this point, *cf.* L. Clavell, *Metafisica e libertà* (Rome: Armando, 1996) 93–112 and 123–137. The profound and unbreakable bond between the consciousness of faith and the consciousness of reason and the perennial freshness of Aquinas' thought in this area were strongly emphasized in the encyclical *Fides et ratio.*

[144] On nominalism, see the excellent study by L. Polo, *Nominalismo, idealismo y realismo* (Pamplona: Eunsa, 1997).

the principle that *veritas supra ens fundatur* ("truth is founded on being"). In other words, we must avoid the contradiction of wanting to emphasize the absoluteness of God through a philosophical procedure that ultimately *limits* that absoluteness profoundly, since in practice a limit is imposed—the limit of God not being able to cause any effects that have their own proper consistency. Nominalism reasons in this way: just as every universal consists in its own properties, then the universal cannot be real, because it cannot be created, which is to say, there could not be a simple effect of a total cause, since it also possesses its own consistency. For the nominalist, the absoluteness of God is preserved only if existence signifies uniqueness and contingency. History is witness of the great losses that this perspective—though seemingly a very "theological" perspective—has caused theology, and moral theology in particular (consider, for example, the voluntaristic understanding of the divine law). In conclusion, much attention needs to be paid to this matter, since the balance between reason and faith is a very delicate one; easy to accept in theory, but difficult to realize concretely in the theologian's praxis.

Philosophical Ethics and Moral Theology — In order to apply these general considerations to moral theology, it is necessary that we recall once more the principle of *newness without a rupture*,[145] in virtue of which it is true that the knowledge of our moral being cannot be exhausted in any rational exploration, since the ultimate significance of the moral life only comes to be known in the perspective of Christ.[146] But it is also true that the grace of divine filiation, although exceeding the human condition, does not alter it (grace perfects nature without destroying it); similarly, without the unchanging subsistence of the human condition, grace could not be received or understood in its specific reality as a gratuitous gift.[147] We must conclude therefore that *an exact knowledge of the natural moral condition of the human being, which is the object of philosophical ethics, is indispensable for moral theology.* In the words of John Paul II: " *Moral theology* has perhaps an even greater need [with regard to fundamental theology] of philosophy's contribution. In the New Testament, human life is much less governed by prescriptions than in the Old Testament. Life in the Spirit leads believers to a freedom and responsibility which surpass the Law. Yet the Gospel and the Apostolic writings still set forth both general principles of Christian conduct and specific teachings and precepts. In order to apply these to the particular circumstances of individual and communal life, Christians must be able fully to engage their conscience and the power of their reason. In other words,

[145] See above, section 1.1.3.

[146] Cf. *Col* 1:16–17.

[147] On the ontological foundation of moral action (both natural and supernatural), with particular reference to Thomas Aquinas, see E. Colom, *Dios y el obrar humano*, (Pamplona: Eunsa, 1976), esp. pp. 13–31.

moral theology requires a sound philosophical vision of human nature and society, as well as of the general principles of ethical decision-making."[148] While philosophical ethics will never constitute the ultimate hermeneutical principle for understanding Christian living, it should supply the foundations that make possible and facilitate theological comprehension. A philosophical ethics, for example, that looks at moral reality from a positivistic angle, as a kind of normative restriction coming from outside the human being, would not permit the understanding of Christian life as a development of the divine grace that exists in our hearts through baptism. There are at least four great themes for which philosophical ethics is of fundamental importance: moral epistemology, the concept of the moral subject, the theory of action, and the theory of normative principles.[149]

> *Moral epistemology.* Man can be identified with Christ in his way of seeing, valuing and feeling,[150] and therefore of acting to the measure in which faith, hope and charity, as well as the ethical virtues, become principles of his practical reasoning. To understand how this reality functions it is necessary to grasp the role of the virtues as vital principles of moral knowledge attainable by the practical reason, and not merely as habits that facilitate the putting-into-practice of what the reason or conscience has decided on its own, independently of the virtues. It is a matter, then, of making explicit a moral epistemology that is not rationalistic or normativistic, but centered around the knowledge of the good of human life as a whole and around the virtues; not abstract, but anchored in the real, salvation-historical situation of the human person.[151]
>
> *The concept of the moral subject.* This entails the concept of the person as a moral agent. In *Veritatis Splendor,* for example, the moral subject, represented by the figure of the rich young man, possesses characteristics that make him incompatible with the familiar figures of the modern studies of moral subjectivity, such as the "utilitarian subject" or the "autonomous subject",[152] in whom consciousness of the truth is either not attainable or does not play a dominant role. The rich young man has a fairly precise idea of what would be the complete good for man (eternal life), which he seeks with interest, and he understands that particular behaviors are judged by the extent to which they agree with that type of life. His lack of generosity puts him into a contradiction with what he bears within himself, and consequently he goes away sad. By contrast, it

[148] *Fides et Ratio* 68.

[149] For a complete exposition of our way of looking at these ethical problems we refer the reader to A. Rodríguez Luño, *Ética General* (2001) (the text of the fourth Spanish ed. is substantially different from the first ed., which alone has been translated into Italian, and which has been cited previously).

[150] Cf. *Phil* 2:5.

[151] Cf. *Veritatis Splendor* 64.

[152] Cf. G. Abbà, *Quale impostazione per la filosofia morale?* (1996) 239–274.

is particularly important to attend carefully to the characteristics of the autonomous subject, since such attention to the subject is presupposed by moral theological theories that are centered on the dialectic between law and freedom or between law and conscience, and more generally by ethical theories that revolve around the concept of duty or obligation. Such theories conceive of the subject as a freely-deciding agent whose inner constitution has rendered him radically indifferent, and in such a way that ethical demands are necessarily understood as being extrinsic and imposed; it is not understood how in a mistaken choice the subject's intimate practical nature and intimate aspirations—as a human being and as a child of God in Christ—are contradicted. An anthropological foundation needs to show in detail how the practical nature of the human subject is really constituted.

The theory of action is viewed in conjunction with the concept of the acting subject. The concepts of the utilitarian subject and the autonomous subject already imply a certain theory of moral action. Without an adequate analytical description of action that renders clear just what one's moral identity depends upon, the degree of responsibility one has for the subsequent effects, etc., there cannot be any solution to the various problems relating to moral cooperation, indirect action, praeter-intentional causality of effects, etc.

Finally, we come to the question of *normative principles*. Beyond any doubt, practical requirements of the Christian life can be spoken of in terms of norms, and there need to be such norms for catechesis and pedagogical purposes. But the problem is whether such language as this was originally the most suitable language for expressing the Christian life, the *lex gratiae*, the development in action of the theological virtues and gifts received by a child of God in Christ. Our answer is that norms are only a derived mode of expressing the requirements of Christian life, which in origin are requirements of virtue—of the theological and the moral virtues—and not simply considered as an alternative mode of ethical classification or categorization (these are not what the virtues are), but as the real principles that underlie the entire mode of functioning and perceiving of the moral reason illuminated by faith, that is, of the moral reasoning of a child of God. The virtues are, thus, the true normative principles of the Christian life. This fact has notable consequences, even for an adequate mode of describing moral actions, which, in terms of the virtues, cannot be described in merely physical, pre-moral ways. This avoids a minimalist conception of ethics, and guarantees a connection with spirituality. It is also the manner of speaking presupposed in the Letters of the New Testament, in the works of the Fathers, of the great saints and many important spiritual authors.

The Use of the Human Sciences — Finally, we consider the auxiliary, but still important role played by the human or social sciences (psychology,

sociology, etc). Nobody is unaware of the importance they have for permitting a better understanding of the actual conditions in which the Christian moral life develops.[153] With regard to these sciences it must be kept in mind that "because the Church's morality necessarily involves a *normative* dimension, moral theology cannot be reduced to a body of knowledge worked out purely in the context of the so-called *behavioral sciences.* The latter are concerned with the phenomenon of morality as a historical and social fact; moral theology, however, while needing to make use of the behavioral and natural sciences, does not rely on the results of formal empirical observation or phenomenological understanding alone".[154] Their use, nevertheless, is governed by the criteria of theological epistemology.

[153]VOn the role of the social sciences in ethics see A. Rodríguez Luño, *Etica* (1992), nos. 55–60.
[154] *Veritatis Splendor* 111.

Part I

The Vocation of Man to Participate in the Trinitarian Life in Christ

Chapter 2

Chosen in Christ before the Creation of the World: The Universal Call to Holiness

2.1 Dogmatic Theology and Moral Theology in the Face of the Question of the Meaning of Human Existence

2.1.1 The Dogmatic Doctrine on the Final End of Human Life

The question of the ultimate meaning of human existence (from where do I come, to where will I go?) has always stimulated philosophical and theological reflection. It can be investigated both from a speculative and a practical point of view. Metaphysics and theology confront it from a speculative point of view, that is, from a perspective of reflection in which man becomes fundamentally driven by the desire for things to present themselves as they actually are, while at the same time putting temporarily in brackets other existentially relevant considerations.

A speculative investigation, of a prevalently metaphysical nature, into the ultimate meaning of human life was done by Saint Thomas Aquinas in the First Part of the *Summa Theologiae*. Considering the creative action of God, he asks what could be the end or goal of creation and therefore of the things created, including humans. Saint Thomas rightly

> notes that imperfect agents tend always, with their acts, toward the acquisition of some thing. But this is not the case with God. "To the First Agent, Who is agent only, to act for the acquisition of some end; He intends only to communicate His perfection, which is His goodness; while every creature intends to acquire its own perfection, which is the likeness of the divine perfection and goodness. Therefore the divine goodness is the end of all things."[1]

Natural reason can reach the conclusion that God creates in order to manifest His glory and to communicate His perfection. The glory of God is also the end of created things, which they nonetheless reach in different ways. The intelligent creatures, like man, "attain it in a more special way, that is, through their proper operation of understanding Him. Hence, this must be the end of the intellectual creature, namely, to understand God."[2]

Such rational truth is confirmed by Revelation, and constitutes the Catholic dogmatic doctrine concerning the final end of creation. "Scripture and Tradition never cease to teach and celebrate this fundamental truth: 'The world was made for the glory of God' (Cf. Dei Filius, can. # 5: DS 3025), for God has no other reason for creating than his love and goodness: 'Creatures came into existence when the key of love opened his hand' (St. Thomas Aquinas, *Sent.* II, prol.)."[3]

The dogmatic doctrines on the elevation of man to the supernatural order, on original sin, and on redemption complete the theological response to the question concerning the meaning of human existence. "God, in his infinite goodness, has ordained man to a supernatural end,"[4] directing him to the vision of His essence. With his fall from grace, man lost the original holiness and justice in which he was established[5] and also disrupted his due order in relation to his last end.[6] God in His mercy, when the fullness of time had come,[7] sent to humankind Jesus Christ, His Son, "that He might both redeem the Jews, who were under the Law, and the 'gentiles, who did not follow after justice, might attain to justice' [Rom. 9:30], and that all men 'might receive the adoption of sons' [Gal. 4:5]. 'Him God has proposed as a propitiator through faith in his blood, for our sins' [Rom. 3:25], and not for our sins only, but also for those of the whole world [I John 2:2]."[8]

All men, therefore are destined to acquire in Christ communion of knowledge and love with God through the work of the Holy Spirit. With beautiful and

[1] *S. Th.* I, q. 44, a. 4.
[2] *C.G.* Bk. 3, Ch. 25.
[3] *CCC* 293. See also: *Gaudium et Spes* 12.
[4] Vatican Council I, Dogmatic Constitution *Dei Filius*, c. 2: DS 3005.
[5] Cf. Council of Trent, *De Peccato Originali*: DS 1510 ff.
[6] Cf. GS 13
[7] Cf. *Eph* 1:10; Gal 4:4.
[8] Council of Trent, *De Iustificatione*, c. 2: DS 1522.

profound words, the Second Vatican Council expresses this idea: "The truth is that only in the mystery of the incarnate Word does the mystery of man take on light [Christ, the final Adam, by the revelation of the mystery of the Father and His love, fully reveals man to man himself and makes his supreme calling clear [All this holds true not only for Christians, but for all men of good will in whose hearts grace works in an unseen way. For, since Christ died for all men, and since the ultimate vocation of man is in fact one, and divine, we ought to believe that the Holy Spirit in a manner known only to God offers to every man the possibility of being associated with this paschal mystery."[9]

2.1.2 The Moral Consideration of the Final End of Human Existence

The preceding considerations of a dogmatic character are undeniable to any Catholic moralist. It may be a surprise then that St. Thomas Aquinas, in the first questions of the moral part of the *Summa Theologiae*,[10] takes up this problem of the final end almost starting from scratch, with a dialectic-inductive methodology that does not seem to suppose the above-mentioned dogmatic basis. This problem has led to varying interpretations.

> A very balanced interpretation is that proposed by Günthör.[11] According to this author, the reader of the first questions of the moral part of the *Summa Theologiae* "is immediately struck by the great distance which separates it from the response of Sacred Scripture to the question of fundamental morality. The latter, in fact, is a response to the history of salvation, i.e. it brings attention to the call that God has revealed and still reveals to men. Its perspective is therefore concrete and theocentric, because it speaks first of all of the saving action of God in our regard, and only afterward makes a call to right action as a response of man to God's initiative. The line of thought of St. Thomas is instead abstract, philosophical, and in a certain measure, anthropocentric, inasmuch as he sets off from an analysis of the structures of man who is separated from his final end."[12] The formulation of St. Thomas invites itself to different objections: for one, it runs the risk of remaining a philosophical theory of happiness rather than a theology of God's salvation; furthermore, the eudaemonistic system can lend itself to a hedonistic—or at least egoistic—vision, in which man seeks "his" happiness instead of loving God in Himself and for Himself; in the end this is anthroprocentric: "The end of all is man, who arrives at his own

[9] *GS* 22.
[10] Cf. *S Th* I-II, q. 1–5.
[11] Cf. A. Günthör, *Chiamata e risposta. Una nuova teologia morale*, 4th ed. vol. I (Rome: Paoline, 1982), 173–186, our translation.
[12] *Ibid.*, 174.

> beatitude, something which is man's thing and not God's."[13]
> After having brought out the fundamental lines of the Thomistic study of the final end of man,[14] Günthör observes rightly that these objections are based on a misunderstanding of the true thought of St. Thomas, who rather possesses the merit of bringing to light "the correspondence between the final end alloted to us by the fact of grace, and the deep structural attraction of man for its attainment. If the Scriptures speak of communion with God which he has already given to us as a gift [Thomas comes to tell us that this vocation does not seize men who are not already predisposed. In fact, it carries them toward the satisfaction of their most intimate yearning. The great contribution of St. Thomas to the foundation of the Christian moral life consists specifically in the fact that he shows in what way such a vocation corresponds to the intimate structure of man."[15] Günthör concludes his valid study affirming that there exists nevertheless a diversity of perspectives regarding what has been outlined. One treats here, however, of two perspectives that do not exclude, but rather complete each other. "In effect, whenever one limits himself exclusively to the biblical perspective, they are not properly doing theology, which is a scientific penetration of Revelation. Likewise, whenever one attends only to the vision of St. Thomas, he runs the risk of developing the philosophical-speculative aspect of theology in a unilateral manner."[16]

It would seem to us that to begin moral theology with a study of the final end of human life that is not simply a reproduction of the results reached by dogmatic theology—since the study is being done with a different method and viewpoint—is an indispensable demand of the perspective "of the first person" proper to moral theology as a practical science.[17] The study of the final end must be fit into and re-elaborated by the perspective of man who, as image of God, is a true subject, agent, and author of his own conduct,[18] and whose actions lead himself toward his complete and definitive good.[19] The ultimate meaning of existence is a reality that, in the Thomistic moral perspective of the "first person", remains intrinsically linked to all other moral realities and structures (e.g. virtues, norms, conscience, sin, etc.), which could not be

[13] *Ibid.*, 182. For the preceding two objections see 180–181. The idea that Aristotelian eudaemonism could be accused of ambiguity and of being an egoistic perversion of the fundamental moral question was proposed again recently by W. Pannenberg, *Fondamenti dell'etica. Prospettive filosofico-teologiche*, (Brescia: Queriniana, 1998). A critical evaluation of this objection is that of M. Rhonheimer, *Ethik als Aufklärung über die Frage nach dem Guten und die aristotelische 'Perversion des ethischen Themas'. Anmerkungen zu W. Pannenbergs Aristoteleskritik*, *Anthropotes* 13 (1997) 211–223, with the reply of Pannenberg, *Eine Antwort*, *Anthropotes* 13 (1997) 485–492.

[14] Cf. A. Günthör, *Chiamata e risposta*, 175–179.

[15] *Ibid.*, 180.

[16] *Ibid.*, 186.

[17] Cf. what was said in Chapter I of this book under sections 1.2.2, and 1.3.3.

[18] Cf. *S Th* I-II, Prol.

[19] Cf. *S Th* I-II, q. 1, a. 6.

adequately understood without considering their essential relation with the final end.[20]

> The history of moral theology demonstrates in an irrefutable way that if the above-mentioned dogmatic foundations do not become inserted into and re-elaborated in the "perspective of the first person", even if remaining as undesputed dogmatic data, they will end up performing no role in moral theology. A negative consequence of such a project is that the treatment of the final end disappears completely or, at least, almost completely. This carries with itself a change in the meaning of the principal moral concepts. In an "ethics of obligation", in fact, men come to be conceived as subjects who do not feel themselves attracted to any ultimate good. They are autonomous decision makers whose freedom of indifference has no other motive to respect the moral law than the authority of God who imposes it.[21] The role of the practical reason is then to take note of the commandments and to decide to obey them, once the conscience has determined that the commandments are truly binding here and now, after having evaluated all of the circumstances.[22] Between ethical demands and the final end, in this perspective, there does not exist an intrinsic relation, this is the reason the commandments eventually become a positive and extrinsic datum for man, concerning which there is little to understand and from which he is to liberate himself as soon as possible. The practical reason, however, is no longer competent to elaborate an order in the acts of the will in view of the known final end, a final end which is both desired by man and at the same time binding.[23] The virtues, then, become superfluous, and superfluous becomes also the active role of the practical reason which needs to be prepared and facilitated on the intellectual, affective, and dispositional level by the virtues.[24]

It is necessary, therefore, to start off with a consideration of the role that the end plays in the moral life, beginning with natural ethical experience, in order to re-present under such a light the Christian teaching concerning the ultimate meaning of human life.

[20] This is vigorously brought to light by A. MacIntyre in *After Virtue* (1984). See also: E. Cófreces and R. García de Haro, *Teología Moral Fundamental* (Pamplona: Eunsa, 1998) 119–156.

[21] On the characteristics of an "ethics of obligation," cf. G. Abbà, *Quale impostazione per la filosofia morale?*, and S. Pinckaers, *Le fonti della morale cristiana* (Milan: Ares, 1992).

[22] In Chapter X, section 10.3 we will see how this vision has given place in Catholic theology to a conception in which the moral conscience and the moral law are seen as being opposed to one another and in a certain sense, competitive: what is in favor of one is opposed to the other and vice versa.

[23] For St. Thomas, the practical reason elaborates such an order, which precisely constitutes the object of the study of morals: cf. *In decem libros Ethicorum*, lib. I, lect. 1: 2–3.

[24] This point will be studied in detail in Chapter VII.

2.2 The Good of Human Life Taken as a Whole in Natural Ethical Experience

It often happens that a person will come to see his life with a sense of deep dissatisfaction and even frustration. Perhaps in the past this person did not make condemnable choices from the point of view of moral norms (did not kill or steal, was always faithful to his spouse, etc.), but still this person has a clear perception of his life as something he would like to do over. This person may feel the bitterness of loneliness and feel that perhaps his choice to have privileged work rather than the family was deeply mistaken. His greater energies were given to professional work, which tended especially toward economic sufficiency, and the passing of time demonstrated that such busy activity had done little for him, and in the end, if the person could go back, he would not take the same path.

Classical morality maintained that its principal work consisted in avoiding these comprehensive and irremediable failures and this, in a more positive or general way, through the orientation of personal choices in view of the full success of human life. The human aspiration to the good is an aspiration that follows the reason, and is marked by the same transcendental, and one may wish to say, infinite breadth that is characteristic of the reason. Therefore, it is an aspiration which starts the reason moving in search of the truth about the Good. The human good, in all of its breadth, can be an object of investigation and of rational foundation. Such an investigation can be accomplished, leading a person to a level of reflection in which—elevating himself above immediate and perhaps pressing demands of the present moment—he may comprehensively contemplate his own life taken as a whole. Here we deal with a reflection of the good of human life in its entirety. Only in light of this reflection can one's own priorities and choices be reconsidered and, if need be the case, modified.[25] This is the motivation that leads us to embark on an analysis of the purpose of action, which we will run through briefly.

"Every art and every investigation, and likewise every practical pursuit or undertaking, seems to aim at some good: hence it has been well said that the Good is That at which all things aim."[26] This consideration, with which Aristotle opens the *Nicomachean Ethics*, brings to light that every action, and every operative human project, tends to an end or aim considered to be good or suitable. Investigation in this line makes known that single human actions structure themselves according to sequences that are more or less unitary, in which certain actions or certain goods are ordained to others. Rational

[25] For a formulation of classical ethics c.f. J. Annas, *The Morality of Happiness* (New York: Oxford University Press, 1993).

[26] Aristotle, *Nicomachean Ethics*, I, 1: 1094 1–3.

reflection makes apparent that in this series of actions or of goods (ends) ordained toward others, one cannot proceed to infinity. There must exist a perfect good, a good that is desired and sought for itself and not for the sake of something else, and this is generically called happiness.

> St. Thomas explains it as such: "Now there is to be observed a twofold order in ends: the order of intention and the order of execution: and in either of these orders there must be something first. For that which is first in the order of intention, is the principle, as it were, moving the appetite; consequently, if you remove this principle, there will be nothing to move the appetite. On the other hand, the principle in execution is that wherein operation has its beginning; and if this principle be taken away, no one will begin to work. Now the principle in the intention is the last end; while the principle in execution is the first of the things which are ordained to the end. Consequently, on neither side is it possible to go to infinity since if there were no last end, nothing would be desired, nor would any action have its term, nor would the intention of the agent be at rest; while if there is no first thing among those that are ordained to the end, none would begin to work at anything, and counsel would have no term, but would continue indefinitely."[27]

This classical explanation could be the object of an important objection. Experience seems to teach that there does not exist a unique final end or supreme good, but there exist rather diverse activities and spheres of human activities, each of which has its own final end. For example, the totality of actions that a doctor sets himself to do as a doctor, have as their end to procure the health of the sick. Certain actions done by the doctor on Sunday have instead as their ends rest, leisure, and so on. Could it not be that the different final ends of different activities are also the diverse ends of man as capital goods of particular spheres of life?

This objection appears weaker after continued reflection. On the one hand, it is to be noted that some human activities have a role which is merely instrumental; whereas others may cause deep satisfaction, but even in these, still not every aspiration will be satisfied, because there are other things that people desire and for this reason they will still continue to act. It does not seem that the ends of such an activity can be considered as goods willed absolutely for themselves. But it remains above all the fact that throughout life the final ends of different activities enter into conflict with one another: the demands of work, which are also economic demands, can conflict with the demands of rest and of health, or perhaps the care due to one's own family, or still yet with certain moral or religious convictions. In the face of such a conflict, it is necessary to choose, that is, it is necessary to limit some activities to take better care of others, etc. According to which criteria, i.e. in view

[27] *S. Th.* I-II, q. 1, a. 4.

of which good, should the different activities be ordained? The criteria for ordering these choices presuppose that one has an idea of the contribution that each activity (work, family, moral or religious convictions, health, etc.) can give to the full success of his own life, i.e. to his own happiness. This is a true problem, for the sense of failure or of frustration, of which we spoke at the beginning of this section, proceeds precisely from not having known to establish the due order and the due priorities for the different activities that make up human life.

Therefore, the question is inevitably asked: what is the final end or perfect good of human life taken as a whole, the good that renders life worthy of being loved, without lacking anything?[28] It is a question about human happiness, of what is truly good for man. This question does not necessarily presuppose that human happiness must consist in a single good or a single activity to the exclusion of others. But it is believed that the response that will be given to such a question will define a way of life that is better than the others, understanding as a way of life the program or criterion that defines which goods—and according to which priorities, measures and types—must be desired and carried out. It is thought, ultimately, that moral reflection will help us to understand how a happy life can be achieved, the satisfying life which we long for ourselves and for all the people we love; and also to understand how we can avoid the types of life which render us unhappy, disgraced, and hopeless, the types of life we would not want for ourselves or for those dear to us.

Though rational inquiry cannot always rationally justify all the possible preferences between different goods,[29] it is still able to justify that, in the light of what truly constitutes the final good of human life, a certain order and proportion must be established between the different human activities,[30] and it can, above all, identify certain modes of rational regulation for all activities, which then must be respected in all circumstances.[31] In this way, one can determine which are the proper virtues for man in order to live a better life.

Previously we presented and evaluated the response philosophy has given throughout the centuries to the question of the final end of man.[32] The foregoing reflections intended to uniquely define the perspective of investigation in which moral theology is inserted, a perspective that finds in divine Revelation the response that completely brings to light the problem of the ultimate

[28] Cf. Aristotle, *Nicomachean Ethics*, I, 7: 1096 a 12 - 1098 b 9.

[29] For example, it would not be possible to justify in the abstract that it is better to dedicate one's life to the study and teaching of mathematics, or to the practice of a sport or musical instrument.

[30] That is, between professional work, family life, health, religious practices, etc.

[31] Justice, for example, is a criterion to be respected in continuity with every interest and good.

[32] Cf. A. Rodríguez Luño, *Ética General* (2001), 115–154.

meaning of human life, and that also provides a criterion for establishing its own priorities, as well as for directing in a concrete way life's most important choices.

2.3 Holiness: the Fullness of Divine Filiation for the Christian, as the Final End of Human Life

The question which must now be given a response is the following: according to Christian faith, does there exist some human activity or at least some program or type of life that is desirable in itself and not for the sake of something else? It is not enough to repropose the already mentioned dogmatic data. It would serve little to reiterate that the world and man were created for the glory of God, or that man is called to the vision of God, if it is not said in such a way that man—who is an active agent who reflects on his own life considered as a whole—can draw from it operative guidance. Does speaking of the vision of God as the final end of man mean that Christians must abandon all their daily activities to retire in the desert for the work of contemplation? Or does it mean that the present life is like a child's game in anticipation of the arrival of the moment when we reach, in the Great Beyond, the vision of God? Or is it that our end, while being fully achievable only in the next life, can also be imperfectly—and in a less developed way—reached in this life, provided our earthly activities are ordered and organized in a certain way and with a certain spirit?

Among the diverse responses found in Sacred Scripture and the Catholic moral tradition, it seems to us that it is the concept of holiness that can best establish an articulate response to our question. We can take our starting point from the *Letter to the Ephesians*, which contains one of the most complete summary formulas. God the Father "chose us in him [Christ], before the foundation of the world, to be holy and without blemish before him. In love he destined us for adoption to himself through Jesus Christ, in accord with the favor of his will, for the praise of the glory of his grace that he granted us in the beloved."[33] From these words, holding our consideration to their significance in the plane of morals, we can draw the conclusion that the aspiration to absolute good is categorized and lived by the Christian as an aspiration to holiness, understood as the fullness of divine filiation, that begins in the earthly following and imitation of Christ. As a child of God, the Christian is called already in this world to be "*alter Christus, ipse Christus*,"[34] in perfect obedience to the

[33] *Eph* 1:4–6.

[34] Holiness as the fullness of divine filiation and the subsequent call to be "alter Christus,

Father's will, living according to the virtues that Christ has taught with his life and words and that are gratuitously given to us with baptismal grace as a seed that is destined to grow.
The concept of Christian holiness—or its synonym sanctity—contains a rich and complex semantic analogy.[35] In any case, holiness is appropriate for signifying the goal of Christian aspirations; though, while in its full realization it represents a unique unitary activity (the direct vision of God in glory), in its earthy realization it implies a comprehensive program of life and therefore a set of criteria for regulating human activities (the virtues). However, this does not mean that just from the concept of Christian holiness one can analytically deduce all the moral rules. Rather, it is necessary to remember that the concept of holiness is to be inserted into an investigation spurring from the question concerning the good of human life in its entirety, and not into research of a normative character provoked by a concrete and difficult situation to resolve. Holiness is the end that gives meaning to the Christian life. The problem of rules comes afterwards, and we shall deal with it further on.[36]
We shall thus commence a detailed study of the meanings of Christian holiness.

2.3.1 Teachings Concerning Holiness in the Bible

Old Testament — Holiness in the Old Testament is centered around the holiness of God: "There is no Holy One like the Lord";[37] in fact, holiness constitutes the characteristic proper to the divine Being.[38] The Hebrew word *qadosh* that expresses the concept of holiness comes from a root word which means to cut or to separate: for God is Holy on account of His radical separation and transcendence.[39] But this does not mean that divine holiness is static or inimitable: it manifests itself dynamically in all His works, and people must live according to

ipse Christus" are concepts which are strongly underlined by St. Josemaria Escrivá: cf. F. Ocáriz, "Vocazione alla santità in Cristo e nella Chiesa" in *Santità e mondo, Atti del Convegno teologico di studio sugli insegnamenti del beato Josemaría Escrivá* (Roma, 12–14 October, 1993), eds. Manuel Belda, et al. (Vatican City: Lib. Ed. Vaticana, 1994) 29 and in the same volume is the far-reaching study of A. Aranda, "Il cristiano, 'alter Christus', 'ipse Christus'," 101–147.

[35] See, for example, the items "sanctification" and "holiness" in the thematic index of the *Catechism of the Catholic Church*.

[36] Cf. Chapters VII, VIII and IX. Not even the concept of Christian holiness has the pretense of explaining the origins of the general distinction between good and evil. This is a distinction possessed by man before entering into contact with Revelation, even if it can be developed further based on Revelation Cf. Chapter I, under section 1.1.3, and, later on, Chapter VIII, section 8.2.

[37] *1 Sam* 2:2.

[38] Cf. *Isa* 6:3.

[39] Cf. *Sir* 43:27–32; *Ezek* 1:26–28.

its model: "Be holy, for I, the Lord your God, am holy."[40] Moreover, the Old Testament shows different aspects of holiness: the prophets especially underline its soteriological character inasmuch as it reveals God's love and makes known to men their sins from which they are to be liberated.[41] In the priestly literature, but not only in it, holiness comes to be considered in relation to cult or worship: the place where the Lord manifests Himself is holy, as well as the temple, the priests, the sabbath, and the feast days.[42] Israel, as the elect people, separated from other people for the fact of being of God, is a holy people,[43] and the insistence on Israel being a people consecrated to the Lord is emphasized even more in Deuteronomy.[44] From another perspective, the wisdom books link holiness to wisdom which is as a light that comes from the Lord to guide the Holy Ones.[45] Nonetheless, the holiness of the creature, which is participation in the divine holiness, is not purely passive but rather requires the repudiation of impurity and the disposition to act with consistent moral conduct,[46] even though it remains God's task to sanctify men.[47]

New Testament — In the New Testament, the concept of holiness has a very wide range of meaning.[48] For now we can point out that there are some passages in which the term is used with a sense that reflects its prevalent use in the Old Testament. So the name of God,[49] His covenant,[50] His follower,[51] the angels,[52] the prophets,[53] the Scriptures,[54] and the Law[55] are called holy, among other things. But what seems more characteristic of the New Testament is that holiness appears linked to the Holy Spirit who, while being a gift of the Messianic age, carries the believer to a participation in the holiness of God which up to that time was unthinkable. Following this direction—leaving aside lexical investigations and assuming the perspective of systematic moral theology—we can distinguish: 1) the initial ontological holiness or sanctity; 2) Eternal Life as the eschatological fulfillment of Christian holiness, which

[40] *Lev* 19:2; cf. Ex 22:30; *Lev* 11:44; *Num* 15:40; *Ps* 17:24–27.
[41] Cf. *Josh* 24:19; *Isa* 12:2,6; 30:15; 43:3; 49:7; *Hos* 11:1–4,8–9; *Zeph* 3:9–15.
[42] Cf. *Ex* 3:5; 35:2; *Lev* 21:8; 23:4; Josh 5:15; *Neh* 8:11; Ps 64:5.
[43] Cf. *Ex* 19:6; *Lev* 20:26.
[44] Cf. *Deut* 7:6; 14:21; 26:19; 28:9.
[45] Cf. *Prov* 9:10; *Wis* 7:27; 9:4,9–18; 10:10.
[46] Cf. *Ex* 19:22; *Lev* 19:3–37.
[47] Cf. *Sir* 45:2–4.
[48] A complete study must examine in the New Testament writings the use of terms like hághios (holy, sacred), haghiázô (to sanctify), haghiasmós, haghiótês and haghiosynê (holiness), hieróthytos (consecrated), hósios (holy), hosiótês (holiness), and anósios (not holy).
[49] Cf. *Lk* 1:49.
[50] Cf. *Lk* 1:72.
[51] Cf. *Eph* 1:18; Col 1:12; *Rev* 18:20.
[52] Cf. *Mk* 8:38; *Lk* 9:26; *Acts* 10:22.
[53] Cf. *Lk* 1:70.
[54] Cf. *Rom* 1:2.
[55] Cf. *Rom* 7:12.

represents the full and definitive development of the initial holiness; and 3) the moral and spiritual holiness which is the path that goes from the initial holiness to the final holiness, which at the same time represents already a certain development and participation in eternal life.

2.3.2 The Divine Gift of Initial Holiness

Just as in the Old Testament where holiness was a participation in the holiness of the Lord, so in the New Testament Jesus, as the Holy One of God, renders the Church and the Christians to be participants in His holiness, that is, they become sanctified in Christ Jesus through identification with Him and by the cleansing of the Spirit.[56] The Christians even came to call themselves "saints" or "holy ones". St. Paul refers to the faithful of Corinth as those "who have been sanctified in Christ Jesus."[57] This meaning of sanctity, at least in a direct sense, does not have a moral meaning, but comes to be used in a sense analogous to other expressions such as "the perfectly mature,"[58] "the called,"[59] "the chosen,"[60] or "those who believe."[61] This brings to the light, in fact, the gift of initial holiness received by those who have accepted the faith and have received baptism. The Christians were purified and sanctified by grace—the formal ontological principle of the life of the faithful—and enriched with Christian virtue. Guided by the Holy Spirit,[62] they have received their first configuration with Christ, becoming children of God[63] and participants in the divine nature.[64]

> In this sense (but not only in this sense) the Church is called "holy". "The Church This is because Christ, the Son of God, who with the Father and the Spirit is hailed as 'alone holy,' loved the Church as his Bride, giving himself up for her so as to sanctify her; he joined her to himself as his body and endowed her with the gift of the Holy Spirit for the glory of God." (*LG* 39). The Church, then, is 'the holy People of God,' (*ibid.*, 12) and her members are called "saints." (cf. *Acts* 9:13; *1 Cor* 6:1; 16:1)."[65]

According to this use of the term, holiness is not the final end of human life, but rather the initial divine gift that renders it both possible and obliging to

[56] Cf. *Lk* 4:34; Jn 6:69; *1 Cor* 6:11; *Titus* 3:5; *1 Pet* 2:4,9.
[57] *1 Cor* 1:2; cf. *1 Cor* 6:1–2,11.
[58] Cf. *1 Cor* 2: 6; *Phil* 3:15.
[59] Cf. *Rom* 1:7; 8:28; *Eph* 4:1.
[60] Cf. *Eph* 1:11; *Col* 3:12.
[61] Cf. *Rom* 1:16; *2 Tim* 1:10.
[62] Cf. *Rom* 8:14; *Gal* 5:18.
[63] Cf. *Jn* 1:12–13; *Rom* 8:14–17.
[64] Cf. *2 Pet* 1:3–4.
[65] *CCC* 823

tend toward holiness as it is understand in the other two discussed senses of the term; these other senses will be explained in what follows.

2.3.3 The Eschatological Fulfillment of Christian Holiness

The divine gift received by the faithful (divine filiation, grace, the Christian virtues) can be compared to a "grain of mustard seed" destined to grow and become a large bush, or else it can be compared to yeast which leavens the dough.[66] The final goal toward which such a development tends is presented by Revelation in eschatological terms, making use of different concepts to do so. We shall then study the principal concepts employed.

Eternal Life — Eternal life, a reality we profess in the creed of the faith, represents the eschatological fulfillment of Christian holiness. The faithful that enjoy the vision of God in eternal life are called "saints,"[67] and being also called Saints are those solemnly proclaimed to be so by the Church, those who "practiced in a heroic way the virtues and lived in faithfulness to the grace of God," and these are proposed for our veneration as models and intercessors.[68] In the New Testament writings, even if with different levels of emphasis, eternal life is presented as the term, fulfillment, or crowning of a life that already begins in this world—the life of the children of God—that has precise ethical demands. In the Synoptics eternal life is promised to those who will have certain attitudes in relation with their neighbors and earthly goods: "Blessed are the poor in spirit, for theirs is the kingdom of heaven [are the clean of heart, for they will see God."[69] In the fourth Gospel, sometimes eternal life is spoken of as something that has already begun: to have eternal life is to belong to Christ through faith, love, and the observance of the commandments,[70] and is possessed in some way by those who eat the bread of life;[71] but, above all, it appears linked to the resurrection promised by Christ,[72] and its nature becomes expressed in terms of knowledge: "Now this is eternal life, that they should know you, the only true God, and the one whom you sent, Jesus Christ."[73] Finally, eternal life is the ultimate reason for the mission of Christ: "For God so loved the world that he gave his only Son, so that everyone who believes in him might not perish but might have eternal life."[74]

[66] Cf. *Lk* 13:19–21.
[67] Cf. *Rev* 20:6.
[68] Cf. *Lumen Gentium* 48–50; *CCC* 828.
[69] *Mt* 5:3:8.
[70] Cf. *Jn* 3:15–18; 8:12; 12:50.
[71] Cf. *Jn* 6:51,58
[72] Cf. *Jn* 5:27–29; 6:39–40; 11:25–26.
[73] *Jn* 17:3.
[74] *Jn* 3:16.

The nature of eternal life put in terms of knowing God is also found in the First Letter of John[75] and in St. Paul.[76] Both sacred authors teach that eternal life will be the full manifestation of the life of the children of God.[77] In St. Paul, divine filiation is linked to the idea of inheritance, and the reception of the Son's Spirit demonstrates that we are truly children of God: "So you are no longer a slave but a child, and if a child then also an heir, through God."[78] The filial condition involves a walk of life according to the Spirit, without allowing oneself to be pulled down by the desires of the flesh. "Now the works of the flesh are obvious: immorality, impurity, licentiousness, idolatry, sorcery, hatreds, rivalry, jealousy, outbursts of fury, acts of selfishness, dissensions, factions, occasions of envy, drinking bouts, orgies, and the like. I warn you, as I warned you before, that those who do such things will not inherit the kingdom of God."[79]

The Kingdom of God — Principally in the synoptics, the Kingdom of God (in Mk and Lk) and the Kingdom of heaven or Kingdom of the Father (in Mt) express both the eschatological and at the same time imminent character of Christian holiness ("eschatological in the phase of realization", according to the formula of J. Jeremias[80]). The Kingdom of God is a future reality, as well as a present reality that approaches us; that comes and bursts into our life. "A special feature of the announcement of Jesus is that he sees already in its occurrence, and in His works, the bursting through of the dominion of God (*Lk* 11:20; Mt 12:28) and yet still awaits its completed form (as the Kingdom of God). This last feature is alluded to in the parables of the festive and nuptial banquets (*Lk* 12:38; *Mt* 8:11; *Lk* 14:16–24; *Mt* 22:2–10), of the harvests (parables of growth), the Our Father prayer, "Thy kingdom come!" (*Lk* 11:2; Mt 6:10), and also in the certainty of Jesus on the vigil of his death (Mk 14:25 and parallels). Jesus announced the coming of the dominion of God for the immediate future, but without exactly fixing its timeframe."[81] The principal dimension of the announcement of the kingdom of heaven is undoubtedly eschatological: the participation in the future Kingdom of God.

[75] "When it is revealed we shall be like him, for we shall see him as he is." (1 *Jn* 3:2).

[76] "At present we see indistinctly, as in a mirror, but then face to face. At present I know partially; then I shall know fully, as I am fully known." (*1 Cor* 13:12)

[77] "See what love the Father has bestowed on us that we may be called the children of God. Yet so we are. The reason the world does not know us is that it did not know him. Beloved, we are God's children now; what we shall be has not yet been revealed. We do know that when it is revealed we shall be like him, for we shall see him as he is." (1 *Jn* 3: 1–2).

[78] *Gal* 4:7. In reality, even in the Gospel of Mark there is present the idea of inheritance. The question of the young rich man is formulated as such: "Good teacher, what must I do to inherit (klêronomêsô) eternal life?" (*Mk* 10:17).

[79] *Gal* 5:19–21; cf. *Rom* 2:7.

[80] Our translation

[81] R. Schnackenburg, *Il messaggio morale del Nuovo Testamento* (1989), vol. I, 35.

Such participation is seen as a gift of God,[82] that man can only receive when he becomes like a child.[83] In this sense the Kingdom of God is eternal life, and both expressions come to be used indistinctly: "If your foot causes you to sin, cut it off. It is better for you to enter into life crippled than with two feet to be thrown into Gehenna. And if your eye causes you to sin, pluck it out. Better for you to enter into the kingdom of God with one eye than with two eyes to be thrown into Gehenna."[84] The idea to "enter into the Kingdom of God" is used frequently,[85] and the conditions for entering the kingdom are the same that are requested for "entering into life" or for "inheriting life".
The Kingdom of God is also the Kingdom of Christ.[86] It is linked to the person of Jesus. The position one takes with regard to Jesus and His words determine the position in which man will find himself at the end of his life: "Everyone who acknowledges me before others I will acknowledge before my heavenly Father. But whoever denies me before others, I will deny before my heavenly Father."[87] The realization of the Kingdom of God commences with the preaching of Jesus; and the positive response to the appeal of Christ—the following of Christ—is the path for entering the kingdom. To make present Christ's appeal to all people constitutes the mission of the Church.

> The Church is the seed of the Kingdom of God on earth. "To carry out the will of the Father, Christ inaugurated the Kingdom of heaven on earth and revealed to us the mystery of that kingdom. By His obedience He brought about redemption. The Church, or, in other words, the Kingdom of Christ now present in mystery, grows visibly through the power of God in the world [with the gifts of its Founder and faithfully guarding His precepts of charity, humility and self-sacrifice, receives the mission to proclaim and to spread among all peoples the Kingdom of Christ and of God and to be, on earth, the initial budding forth of that kingdom. While it slowly grows, the Church strains toward the completed Kingdom and, with all its strength, hopes and desires to be united in glory with its King."[88]
>
> The Church is, therefore, the universal sacrament of salvation and of holiness:[89] "God, however, does not make men holy and save them merely as individuals, without bond or link between one another. Rather has it pleased Him to bring men together as one people, a people which acknowledges Him in truth and serves Him in holiness."[90] Holiness is a personal effort, but not individualistic: since it is a participation in the

[82] Cf. *Lk* 12: 32.
[83] Cf. *Mk* 10: 15.
[84] *Mk* 9: 45–47.
[85] Cf. *Mt* 5:20; 7:21; 18:3; 23:13; 25:10.
[86] Cf. *Lk* 22:29–30; *Eph* 5: 5.
[87] *Mt* 10:32–33; cf. *Mt* 7:22–23.
[88] *Lumen Gentium* 3 and 5.
[89] Cf. *Lumen Gentium* 48; *Ad Gentes* 1 and 5; *Gaudium et Spes* 43; etc.
[90] *Lumen Gentium* 9.

> trinitarian life of Jesus, it realizes itself in the Church, which is Christ's mystical body. It is in the Church, in fact, that by means of grace, we obtain holiness; and indeed, all of its activities direct themselves, as to its end, to the glorification of God in Christ and the sanctification of people.[91] From here the ecclesial character of Christian life is apparent, and consequently, the ecclesial character of its systematic study, moral theology. We must then strongly underline the necessary role of the Church in the correct development of moral theology.[92]

The Father's House — The idea of the Father's house especially highlights that the final and definitive holiness is the fullness and goal of the life of the children of God, which is expressed in the attitude of complete docility to the Father's will demonstrated by Christ. "In my Father's house there are many dwelling places. If there were not, would I have told you that I am going to prepare a place for you? And if I go and prepare a place for you, I will come back again and take you to myself, so that where I am you also may be. Where [I] am going you know the way."[93] The Father's house is the definitive dwelling place of the faithful with Jesus along with the Father.

> Only those that Christ has liberated from sin, those that are children and no longer slaves, have a permanent dwelling in the Father's house: "Amen amen, I say to you, everyone who commits sin is a slave to sin. A slave does not remain in a household forever, but a son always remains."[94] In the beautiful parable of the prodigal son, the conversion of the sinner is presented as a return to the Father's house,[95] and this also allows us to see how this concept gives evidence that the eschatological fulfillment is already developing in our earthly life.

The Full Participation in the Holiness of God — The participation in the holiness of God also connects the actual situation of the faithful with its eschatalogical development, adding to it the prospect of the imitiation of God, that was already present in the Old Testament.[96] The First Letter of Peter exhorts:"Therefore, gird up the loins of your mind, live soberly, and set your hopes completely on the grace to be brought to you at the revelation of Jesus Christ. Like obedient children, do not act in compliance with the desires of your former ignorance but, as he who called you is holy, be holy yourselves in every aspect of your conduct, for it is written, 'Be holy because I [am] holy."[97] These words intend to strengthen hope, purify the desire from all egoism, and

[91] Cf. *Sacrosanctum Concilium* 10; *Lumen Gentium* 48; *CCC* 824, 1877, 2030.
[92] Such a role is highlighted several times in this book: cf. Chapter I, section 1.1.2 and 1.3.1; Chapter IX, section 9.2; etc.
[93] *Jn* 14:2–4.
[94] *Jn* 8:34–35. See Chapter IV, under section 4.3.3.
[95] Cf. *Lk* 15:11–32.
[96] See section 2.3.1.
[97] *1 Pet* 1:13–16.

to show that Christian conduct must be holy conduct; only this, in fact, will allow us to enter into union with God, the Holy One, to whom we were called. So there is a double sense in which an intimate relation is established between holiness and glory: ascending and descending. In fact, God communicates His glory to man, calling him to participate in the divine holiness[98] and man seeks out the glory of God responding to divine grace through holy conduct, because God is "glorified in His saints."[99]

Holiness as the Definitive Good of Human Life — The concepts of eternal life, the Kingdom of God, the Father's house, holiness and others like them—either considered in their first announcement or when the faithful who are inclined to lukewarmness or exposed to temptation are reminded of them—intend to illuminate the Christian moral life in light of what constitutes the comprehensive and definitive good. With such a reminder, the faithful are exhorted to moral effort and vigilance: "Watch, therefore; you do not know when the lord of the house is coming, whether in the evening, or at midnight, or at cockcrow, or in the morning. May he not come suddenly and find you sleeping. What I say to you, I say to all: 'Watch!'."[100] To "watch" is to reorder, once more, the desire toward that which is truly and definitively good—the communion of knowledge and of love with God—and, consequently, to re-examine under such a perspective one's own values and choices, even in a decisive and radical way if necessary.

> And so Jesus teaches: "If your hand causes you to sin, cut it off. It is better for you to enter into life maimed than with two hands to go into Gehenna, into the unquenchable fire."[101] It is in light of the eschatological completion of life that the hand can be wisely valued; it is the same for the "foot" and the "eye" of which He speaks in the successive verses. The unfaithful steward[102] is praised by his master, "for acting prudently (fronímôs),"[103] that is to say, because he had known to think prudently at the moment in which his stewardship would have been taken away, after which there would not be the possibility of manipulating the received goods. The rich man is instead rebuked for having used his wealth, thinking only of the present and not also of the future: "But God said to him, 'You fool, this night your life will be demanded of you; and the things you have prepared, to whom will they belong?'."[104] The reflection on one's own life and on one's own choices in the light of the eschatological completion of life, and the lack of such a reflection, determine whether one's use of received goods is prudent

[98] Cf. *1 Pet* 1:3–7, and *CCC* 2809.
[99] *2 Tim* 1:10.
[100] *Mk* 13:35–37.
[101] *Mk* 9:43.
[102] Cf. *Lk* 16:1–8.
[103] *Lk* 16:8.
[104] *Lk* 12:20.

> or foolish. Significant in this regard is the connection, in the parable of the prodigal son, between the distance from the father's house and the son's wasting of his inheritance "on a life of dissipation."[105] The thought and the desire of the definitive dwelling in the Father's house works to purify the heart, which then feels liberated from the pressing stresses of earthly goods.

2.3.4 Moral Holiness

The holy conduct illustrated in the aforementioned biblical citations is precisely moral holiness. It represents the development of the initial holiness, through good and excellent acts, that tends toward its eschatological completion. Moral holiness is the holiness of action.[106] The development through action of one's condition as a child of God, a condition received with faith and baptism, carries out, in an analogous way, a general metaphysical principle that regards every living being and man in particular: action involves a development and a completion of one's own being, a development which at the same time flows out of that same being.

> From this point of view it can be rightly seen that through good works—already on the natural ethical plane—we reach a greater likeness with the Lord: "God said: Let us make man in our own image and likeness; and it is added: And God made man: he made him in the image of God, He made them male and female and he blessed them. The fact that it said: He made him in the image of God, and He was silent about His likeness indicates that man since the first creation obtained the dignity of the image, while the perfection of the likeness was reserved for him for the end, in the sense that he must obtain it, imitating God with his own hard work; so that having been conceded from the beginning the possibility of perfection by means of the dignity of the image, he can in the end realize the perfect likeness by means of works."[107] It can then be seen—with the terminology used by Origen and some Fathers—that the possibility to achieve a likeness with God derives from being created in His image. Holiness, like all goods, proceeds from the Creator, as He infuses in being the capacity to act, provides the necessary capacity for the same action, and points out to man his final transcendent end.[108]

What God willed with the creation of spiritual beings is that they may reach their own fulfillment, not in a passive way, but as participants of the divine

[105] *Lk* 15:13. See also the comment of John Paul II in the Encyclical *Dives in Misericordia*, (Nov 30, 1980), 5.

[106] On this theme see E. Colom, "L'agire morale, cammino di santità. Una riflessione attorno all'enc. Veritatis Splendor," in *Annales Theologici* 7 (1993) 281–322.

[107] Origen, *De Principiis*, 3, 6, 1: SC 268, 237.

[108] Cf. *Jn* 3: 3:27; Acts 17:25–28; *Jas* 1:17; S Th I: q. 22, a. 1; St. Thomas, *In librum Beati Dionysii De Divinis Nominibus Expositio*, (Taurini-Romae: Marietti, 1950), 7, lect. 4, 733.

work. It is especially important to understand that such a divine plan is intrinsic to the creative act and, consequently, forms part of the most intimate nucleus of each person: it can be said that the human being needs moral behavior and that man's action is none other than an exposition of his own being; for this reason there exists an intimate relation between the human person, the perfection to be reached, and the human or moral act. "The moral imperative that is born from the tension between present and future, and precisely by one's view of Jesus, receives thereby a particular dynamic power. It necessarily leads us to behave in this world according to the prescriptions of Jesus [driving force which leads us forward, which, despite every resistance and all personal failings, does not lead us to yield or abandon hope. It will be, in fact, once again God who carries His dominion to completion, and will draw to full realization that which is seen in a symbolic way in the person and works of Jesus."[109]

> We shall not yet move to a detailed analysis of the demands of Christian holiness. For the moment what interests us is to provide a description that is more general, in such a way as to render intelligible what it means that sanctification, or the reaching of moral holiness, constitutes the proximate final end of human life, that is to say, the only type of life which is reasonable to will in itself in light of Revelation; this life not being subordinated to any other earthly good or condition, and being ordained solely toward definitive communion with God in eternal life and, in the last analysis, to the glory of God, which is the absolute final end of man.

From a material point of view, moral holiness is not a particular activity that can be placed alongside others. Moral holiness is sought and reached through and in the accomplishment of normal human activities: professional work, family life, social and political activities, religious duties, etc. From a formal point of view, it consists in the principles that inspire and bring to completion such activites—charity being the chief principle—and also in the mode in which they are accomplished, i.e. in the criteria by which they are regulated, whether they are activities or goods that are accomplished or acquired. Moral holiness is a type of life or, if one prefers, a way of life that admits of multiple modes of practical realization. Diverse, at least partially, are the way and contents of moral holiness to which are called a faithful lay spouse with respect to a celibate person; and the life of both is, and must be, different in many aspects to that of a priest or a member of a religious congregation, and so forth.

That which is common to all is that Christian holiness consists in all cases of an imitation and following of Christ, configuring oneself always more to Him, until arriving at the fullness of charity which is the essence of Christian

[109] R. Schnackenburg, *Il messaggio morale del Nuovo Testamento* (1989), vol. I, 43.

perfection.[110] It needs to be repeated that there does not exist a unique or privileged concrete form of following Christ: to follow Christ is to act in such a way that the theological and moral virtues, the virtues practiced or taught by Christ, be respectively the deep inspiration and criteria of the practical regulation of activities and life that each carries out following his own vocation. But it should be borne in mind that holiness is always excellence, and therefore the realization of the virtues should not be understood in a minimalist sense as a battle against the sinful actions which they oppose, but should be deepened and consolidated to the point of achieving the maximum expressions which God allows and which He asks each person to achieve.
Before concentrating our attention on the following of Christ and the specification of its content, we must first reflect on the the doctrine of the universal call to holiness, which we have not yet mentioned until now.

2.3.5 The Ecclesial Doctrine on the Universal Call to Holiness

Although from the biblical and dogmatic point of view the call to holiness was always an undisputed fact, the reproposal of this doctrine in the Second Vatican Council, in all its practical and moral value, was considered, and really was, a true theological novelty.[111] The novelty consists in having proposed holiness, with all of its implications of excellence, as the practical and achievable end for all Christians, even those who—being the overwhelming majority—are not called by God to the priestly state or consecrated life.
Although one could say that the doctrine of the Second Vatican Council constituted an important event in the history of Christianity, it is also true that it was prepared by the inspiration of the Holy Spirit in the life of the Church itself, through the theology of earthly realities, the liturgical renewal with its reflection on baptism and its sanctifying character, the experiences of the lay apostolate, and the vitality of pastoral phenomena like Opus Dei.[112] The

[110] Cf. *Col* 3:14.

[111] John Paul II, referring to this text, comments: "The Second Vatican Council has significantly spoken on the universal call to holiness. It is possible to say that this call to holiness is precisely the basic charge entrusted to all the sons and daughters of the Church by a Council which intended to bring a renewal of Christian life based on the gospel. This charge is not a simple moral exhortation, but an undeniable requirement arising from the mystery of the Church" (*Christifideles Laici*, 16).

[112] "The history of the Church and of the world unfolds through the action of the Holy Spirit who, with the free cooperation of men, directs all things toward the fulfillment of God the Father's saving plan. A clear manifestation of this divine Providence is the constant presence down the centuries of men and women faithful to Christ, who with their life and their message, shed light on various periods of history. Among these distinguished figures, Blessed Josemaria Escrivá has an eminent place, for as I had occasion to stress on the solemn day of his beatification, he reminded the contemporary world of the universal call to holiness and of the Christian value which professional work can have in the ordinary life of each

latter is characterized by the emphasis it gives to the sanctifying value of professional work and in the accomplishment of the ordinary duties of the Christian, as one can infer from these especially significant words of its founder: "Ever since 1928 my preaching has been that sanctity is not reserved for the privileged few and that all the ways of the earth can be divine. The reason is that the spirituality of Opus Dei is based on the sanctification of ordinary work." "Opus Dei proposes to help ordinary citizens like yourself to lead a fully christian life, without modifying their normal way of life." "You must understand now more clearly that God is calling you to serve him in and from the ordinary, material and secular activities of human life. He waits for us everyday, in the laboratory, in the operating theatre, in the army barracks, in the university chair, in the factory, in the workshop, in the fields, in the home and in all the immense panorama of work. Understand this well: there is something holy, something divine hidden in the most ordinary situations, and it is up to each one of you to discover it."[113]

All of this is not just a mere theoretical postulate, but generates day by day the firm and concrete desire to accomplish this ideal in ordinary life, as teaches the fifth chapter of *Lumen Gentium*. This chapter begins by pointing out the ultimate foundation of such a commitment: the holiness of God—Father, Son, and Holy Spirit—that Christ has transmitted to the Church; "In the Church, everyone whether belonging to the hierarchy, or being cared for by it, is called to holiness, according to the saying of the Apostle: 'For this is the will of God, your sanctification' (*1 Thess* 4:3; cf. *Eph* 1:4)".[114]

The successive point develops this idea, putting the holiness of the faithful in connection with Jesus, the master and model; the Holy Spirit, who leads us to love God and our neighbor from within; the sacramental life (baptism); the virtues; and prayer. This section speaks also of the relation between initial holiness (or sanctity) and moral holiness: "The followers of Christ are called by God, not because of their works, but according to His own purpose and grace. They are justified in the Lord Jesus, because in the baptism of faith they truly become sons of God and sharers in the divine nature. In this way they are really made holy. Then too, by God's gift, they must hold on to and complete in their lives this holiness they have received."[115]

Next to be remembered is that holiness is one and the same for all: "The classes and duties of life are many, but holiness is one—that sanctity which

person." (John Paul II, *Address by John Paul II to the Symposium, Pontifical Atheneum of the Holy Cross.* (October, 14 1993) http://www.josemariaescriva.info/article/address-to-the-symposium2c-pontifical-atheneum-of-the-holy-cross

[113] San Josemaría Escrivá, *Conversations with Monsignor Escrivá de Balaguer*, ed. 2 reprinted, (Shannon, Ireland: Ecclesia Press, 1972), 34, 24 and 114. For a deeper theological look, see the entire volume first cited, *Santità e mondo*, and its bibliography.

[114] *Lumen Gentium* 39.

[115] *Ibid.*, no. 40.

is cultivated by all who are moved by the Spirit of God, who obey the voice of the Father, and worship God the Father in spirit and in truth. These people follow the poor Christ, the humble and cross-bearing Christ in order to be worthy of being sharers in His glory."[116] Therefore diverse grades of the vocation to holiness should not be distinguished, since such a call is for all an invitation to Christian fullness: "Every person must walk unhesitatingly according to his own personal gifts and duties in the path of living faith, which arouses hope and works through charity."[117] The paragraph continues with a reference to bishops, priests, other clerics, lay-persons—with a special allusion to spouses–, and those who live in more difficult conditions and suffer greatly. It concludes by saying: "All Christ's faithful, whatever be the conditions, duties and circumstances of their lives—and indeed through all these, will daily increase in holiness, if they receive all things with faith from the hand of their heavenly Father and if they cooperate with the divine will. In this temporal service, they will manifest to all men the love with which God loved the world."[118] The chapter closes by illustrating the paths and means of holiness and, after having spoken of some concrete vocations, insists again that: "All the faithful of Christ are invited to strive for the holiness and perfection of their own proper state. Indeed they have an obligation to so strive."[119]

From here derives the invitation to seek God above all things, with all one's heart, with all one's soul and with all one's might: every person is called to love God with a maximum intensity.[120] This makes up the basis of Christian holiness: the love of Christ that leads us to respond with a maximum love toward God and toward our neighbor, that is made a reality in the present situations and moments throughout the course of a lifetime. Fixed limits should not be placed on this growth, because no person merits to be called good who does not desire to be better, and from the moment in which a persons stops desiring to be better is when he ceases to be good: [121]"What you are may always displease you, if you want to reach what you are not. In reality, where you are pleased with yourself, that is where you will remain. If you have said that you are done, then you are truly lost."[122]

Charity carries with itself an intrinsic tension toward growth for which there cannot be pre-established limits posted. It is not possible with love, especially

[116] *Ibid.*, no. 41.
[117] *Ibid.*
[118] *Ibidem.*
[119] *Ibid.*, no. 42.
[120] Cf. *Deut* 6:5; *Mk* 12:30.
[121] "Minime pro certo est bonus, qui melior esse non vult, et ubi incipis nolle fieri melior, ibi desinis etiam esse bonus" (San Bernardo, *Epistola* 91, 3: Opera, Ed. Cistercians, (Rome 1974), vol. VII, 240, rr. 18–19).
[122] Saint Augustine, *Sermo* 169, 15, 18: NBA 31/2, 803, our translation.

love of God, to do too much: "The commandment of love of God and neighbor does not have in its dynamic any higher limit, but it does have a lower limit, beneath which the commandment is broken."[123] In the face of the loving and paternal generosity of God, an egoistic attitude on the part of man caught up in himself would not make sense. The profundity of the gift of God makes it such, that in the final analysis, either we love God above all things and we seek to continually develop this love, or we love ourselves more than God.[124] We are therefore invited to respond to a gift that requires our full participation, having love as the rule of all our desires and actions. "Christian perfection has but one limit, that of not having any."[125]

2.4 The Following of Christ as the Essential and Original Foundation of Christian Holiness

2.4.1 Christ as the "Way, the Truth, and the Life"

We shall now concentrate our attention on the earthly realization of the vocation to holiness (moral holiness), because such a realization is a moral and spiritual work that has need of being illumined and directed by theological reflection.

As we know, the Christian moral life is the walk toward the Father's house,[126] that has in Christ its fundamental point of reference.[127] Christ is He who both renders it possible and at the same time constitutes its human and divine end, norm, and model. He is "the way, the truth, and the life."[128] Jesus is "the way" to the Father's house in that He is the personal mediator of salvation and inasmuch as He is the norm of life. He is the way because He is "the

[123] *Veritatis Splendor*, 52; cf. *S Th*, I-II, q. 64, a. 4.

[124] "Two cities have been formed by two loves: the earthly by the love of self, even to the contempt of God; the heavenly by the love of God, even to the contempt of self. The former, in a word, glories in itself, the latter in the Lord." (Saint Augustine, *De Civitate Dei*, Bk. 14, c. 28): Translated by Marcus Dods. From Nicene and Post-Nicene Fathers, First Series, Vol. 2. Edited by Philip Schaff. (Buffalo, NY: Christian Literature Publishing Co., 1887.) Revised and edited for New Advent by Kevin Knight. http://www.newadvent.org/fathers/120114.htm.

[125] San Gregory of Nyssa, *De Vita Moysis*: PG 44, 299 D.

[126] Cf. *Jn* 14:2–3.

[127] For a comprehensive vision concerning the vocation to follow Christ, see: N. Cabasilas, *La vita in Cristo*, (Rome: Città Nuova, 1994): a critical edition can be found in SC 355 and 361; C. Spicq, *Dio e l'uomo secondo il Nuovo Testamento*, (Rome: Paoline, 1969); L. Scheffczyk, *L'uomo moderno di fronte alla concezione antropologica della Bibbia*, (Torino-Leumann: Elle Di Ci, 1970); D. Tettamanzi, *Verità e Libertà*, c. II a IV; A. Fernández, *El mensaje moral de Jesús de Nazaret*, (Madrid: Palabra, 1998).

[128] *Jn* 14:6.

truth", that is, the personal revelation of the Father and of His design of love toward humankind. Finally, in walking and remaining in the truth one arrives at the "life", which is the finish line. In Pauline terms, Christ is our "wisdom, righteousness, sanctification, and redemption:"[129] wisdom that teaches us to walk according to the design of God; interior righteousness and sanctification, which are the liberation from sin and misery which He obtained for us through the sacrifice of the Cross, and for this reason He is also our redemption.

Christian holiness therefore consists, in its earthly realization, in the following of Christ. "It is Jesus himself who takes the initiative and calls people to follow him. His call is addressed first to those to whom he entrusts a particular mission, beginning with the Twelve; but it is also clear that every believer is called to be a follower of Christ (cf. Acts 6:1). Following Christ is thus the essential and primordial foundation of Christian morality: just as the people of Israel followed God who led them through the desert towards the Promised Land (cf. Ex 13:21), so every disciple must follow Jesus, towards whom he is drawn by the Father himself (cf. *Jn* 6:44). This is not a matter of merely disposing oneself to hearing a teaching and obediently accepting a commandment. More radically, it involves holding fast to the very person of Jesus, partaking in his life and destiny, sharing in his free and loving obedience to the will of the Father."[130] He assumed the human condition in all things but sin in order to render it—through His Passion, Death, Resurrection and Ascension—a participant in His glorification.[131] Christ has recapitulated in Himself all that which man had scattered with sin.[132] In Him is renewed, in a definitive manner, the salvific yes of the Father, with a new and eternal covenant that culminates in the eschatological participation in the glory of God.[133]

The risen Christ sends the Holy Spirit who sustains our condition as being children of God, makes us joint heirs of Jesus Christ, and reconciles creation with the Creator and with humanity itself, inasmuch as the latter participates

[129] *1 Cor* 1:30.

[130] *Veritatis Splendor* 19.The encyclical adds: "By responding in faith and following the one who is Incarnate Wisdom, the disciple of Jesus truly becomes a disciple of God (cf. *Jn* 6:45). Jesus is indeed the light of the world, the light of life (cf. Jn 8:12). He is the shepherd who leads his sheep and feeds them (cf. *Jn* 10:11–16); he is the way, and the truth, and the life (cf. *Jn* 14:6). It is Jesus who leads to the Father, so much so that to see him, the Son, is to see the Father (cf. *Jn* 14:6–10). And thus to imitate the Son, 'the image of the invisible God' (Col 1:15), means to imitate the Father." (*Veritatis Splendor*, 19).

[131] Cf. *Titus* 2:13–14; *Gaudium et Spes* 38; *CCC* 602–603.

[132] Cf. *Eph* 1:10; *Ad Gentes* 3.

[133] "He who believes in Christ becomes a son of God. This filial adoption transforms him by giving him the ability to follow the example of Christ. It makes him capable of acting rightly and doing good. In union with his Savior, the disciple attains the perfection of charity which is holiness. Having matured in grace, the moral life blossoms into eternal life in the glory of heaven" (*CCC* 1709).

in the dominion that Christ has over it.[134] The dominion of Christ over sin and its consequences entails eternal life even now in an inchoate form of the future glorification that is not yet completed.[135] Man, following Christ, cooperates with the gifts of the Holy Spirit in order to reach the glory to which he is predestined by God the Father, while he purifies the corruption of creation so that it also can participate in the glory of the children of God.[136]

2.4.2 The Following of Christ as Life According to the Christian Virtues Leading to the Fullness of Charity

We shall now pain ourselves to explain what it means, in operative terms, to follow Christ. As it was emphasized earlier, to follow Christ means concretely to live according to the Christian virtues, that is to say, according to the virtues taught with the words and example of Christ, "perfectus Deus, perfectus homo." Moral theology is none other than an explanation of this reality, of its anthropological presuppositions, of its normative implications, and of its modes of realization.

The theological and moral virtues are at the same time intrinsic principles—possessed as habits—of life in Christ, its norm and in a certain sense also its end (they are an end inasmuch as progressing in the Christian virtues and identifying oneself with Christ are, in practice, the same thing). Naturally, the role of the vital principle of Christian existence is preeminently found in the theological virtues—faith, hope, and charity–, which render man able to believe, to desire, and love God in Christ through the Holy Spirit. The theological virtues purify and elevate the human will and conscience, directing them toward the end of Christian life.[137] They modify the criteria according to which the moral virtues regulate activity as well as the attainment and use of human goods in such a way as to render union with Christ possible through them.[138] The moral virtues are not norms in the sense in which human laws are norms, but are norms inasmuch as they are cognitive, appetitive, and

[134] Cf. *Rom* 8:19–23; L*umen Gentium*, 4 and 48; *Gaudium et Spes*, 39 and 43; *Veritatis Splendor*, 108.

[135] Cf. *Jn* 5:24–25; *1 Jn* 3:2; *Lumen gentium* , 2.

[136] Cf. P. O'Callaghan, "*L'agire dello Spirito Santo, chiave dell'escatologia Cristiana*", in *Annales Theologici* 12 (1998) 327–373.

[137] An entire treatment of the theological virtues and their essential role in the Christian life is to be found in a study of special moral theology. It does not belong to fundamental morals to go into a detailed study of them.

[138] This theme will be explored in depth in sections 7.4–7.7 of Chapter VII, which is dedicated to the study of the infused moral virtues. Now it is enough to point out that many moral teachings of the New Testament regard precisely the right attitude to have with relation to the different goods that man needs. We will speak more of this in the next chapter.

dispositional principles of the practical reason (prudence), concerned not just with choosing rightly, but also with loving and feeling rightly, according to a complex structure which will be explained in Chapter VII.

Worth underlining is the central role of the virtue of charity.[139] It expresses the moral value of the person and the level of his union with Christ. Union with Christ through love is above all human values and is not to be identified with their harmonious sum. Through the theological virtues and the gifts of the Holy Spirit, but especially through charity, a union with God is possible in this life which is the greatest good of which man is capable in this world. He who has experienced it would be disposed to any kind of sacrifice in order to not lose it. Even if the union consists essentially in love—in charity—it gives rise to a true contemplation of Christ and of God. By contemplation, we do not mean an extraordinary mystical phenomenon, but the effort and capacity to discover God in every event—great or small—of one's own life, even in the midst of many temporal preoccupations,[140] without forgetting that He is present at the center of the soul in grace, as St. Augustine says: interior intimo meo, more inward to me than my most inward part.[141] Here then could be included friendship with the Lord through prayer, acts of piety, and worship;[142]knowledge of Jesus by identifying oneself with Him as St. Paul particularly emphasized;[143] the association with and imitation of those who teach us to associate with and imitate Jesus: Mary, Joseph, the angels, and the Saints.[144]

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[139] Cf. G. Gilleman, *Il primato della carità in teologia morale*, (Brescia: Mocelliana, 1959); F. Ocáriz, *Amor a Dios. Amor a los hombres*, (Madrid: Palabra,1973).

[140] "There is need of only one thing", the loving pursuit of the Lord: cf. *Lk* 10:42. To be underlined is the necessity of contemplation so that the Christian, in whatever situation he finds himself in life, can reach holiness: this theme will be developed more in Chapter III, under section 3.4.3.

[141] *Confessions*, 3, 6, 11: NBA 1, 66.

[142] The theme of the dialogue of man with God runs through all of the Bible, from the Creation (*Gen* 1:27–29; 2:16,19,23) to the last verses (*Rev* 22:17,20), as is evidenced by the dialogue between God and Noah (*Gen* 6:13 ff.), with Abraham (*Gen* 12 ff), with Isaac (*Gen* 26), with Moses (*Ex* 3 ff); the prayer of David (*2 Sam* 7:18–29), of the prophets (*Isa* 6:6–11; *Lam* 5; *Hab* 3), of Jesus (*Mk* 1:35; *Lk* 5:16; 9,:18; 21:36–37), of Mary and the Apostles (*Acts* 1:14; 3:1), of the first Christians (*Acts* 12:5,12); so also the liturgical laws of Exodus teach about it (chs. 25–31 and 35–40), as do the priestly code and the law of sanctity of Leviticus, the post-exilic liturgy (*Neh* 9: 5–10, 40), the Christian liturgical assemblies (*1 Cor* 11:2–14, 40), up until the liturgy of the heavenly Jerusalem (*Rev* chs. 4, 5, 6, etc.).

[143] A summary of his teachings can be found in Phil 3:1–14, where he notes the sublimity of the knowledge of Jesus—in contrast to which all else can be considered as "so much rubbish"—and the necessity of only being glorified in Jesus Christ, conforming oneself to His life and death in order to be able to share in His resurrection, and the reward that God calls us to receive in Him (Cf. *Jn* 13: 15; 2 Tim 3:15; 1 Pet 2:21).

[144] In this regard, it can help much to know the life and writings of the Saints that have already made their walk toward the Lord: cf. *Sir* chs. 44–50; *1 Cor* 11:1; *Phil* 3:17; *1 Thess* 1:6; *Heb* 11; 12:1–2; *Lumen Gentium*, 49, 52–69; *Apostolicam Actuositatem* 4; *Veritatis Splendor* 93.

> It is worth the effort to include some reflections, taken from a homily of St. Josemaria Escrivá, that illustrate effectively the nature of ordinary contemplation that is achievable for every Christian who wishes to make a serious effort at following Christ. "First one brief aspiration, then another, and another till our fervor seems insufficient, because words are too poor gives way to intimacy with God, looking at God without needing rest or feeling tired. We begin to live as captives, as prisoners. And while we carry out as perfectly as we can (with all our mistakes and limitations) the tasks allotted to us by our situation and duties, our soul longs to escape. It is drawn towards God like iron drawn by a magnet. One begins to love Jesus, in a more effective way, with the sweet and gentle surprise of his encounter [
> Our heart now needs to distinguish and adore each one of the divine Persons. The soul is, as it were, making a discovery in the supernatural life, like a little child opening his eyes to the world about him. The soul spends time lovingly with the Father and the Son and the Holy Spirit, and readily submits to the work of the life-giving Paraclete, who gives himself to us with no merit on our part [I am not talking about extraordinary situations. These are, they may very well be, ordinary happenings within our soul [Such prayer and behavior do not take us away from our ordinary activities. In the midst of our noble human zeal they lead us to Our Lord. When men offer up all their cares and occupations to God they make the world divine [A thirst for God is born in us, a longing to understand his tears, to see his smile, his face. [a thirsty traveller who opens his mouth to the waters of the fountain" (cf. Sir 26:12).
> Along with this self-surrender, our apostolic zeal is enkindled and grows day by day; it also sets others on fire with its desire, because goodness is diffusive. It is not possible for our poor nature to be so close to God and not be fired with hunger to sow joy and peace throughout the world, to spread everywhere the redeeming waters that flow from Christs open side, and to begin and end everything we do for Love. [ry way of living as Christians."[145]

Charity is the form of all the virtues;[146] it is both the mediated principle of all the good works and also their fruit.[147] Therefore, given the multi-dimensionality of the life that must be lived in Christ, the following of Christ—while unifying the Christian life—is not one-dimensional, nor can it be reduced to a single type of human activity: it requires the carrying out of activities in different human dimensions according to a virtuous ordering that, in its more concrete expressions, depends also on circumstances and especially on the particular vocation of each person. It is its relation with the personal

[145] Saint Josemaría Escrivá, *Friends of God* (Dublin: Four Courts, 1981), nos. 296.306–312.
[146] Cf. *S. Th.* II-II, q. 23, a. 8. The exact meaning of this thesis will be discussed in Chapter VIII, under section 8.4.3.
[147] Cf. *S. Th.* I-II, q. 65, a. 3.

vocation to union with Christ that determines the profound and definitive value of human action. As St. Thomas explains, "When one of two things is the type of the other, the attention of the soul to the one does not hinder or lessen its attention to the other: thus a physician while considering urine is not less but more able to bear in mind the rules of his art concerning the colors of urine. And since God is apprehended by the saints as the type of all things that will be done or known by them, their attention to perceiving what are sensible, or to contemplating or doing anything else will nowise hinder their contemplation of God, nor conversely."[148] Union with Christ, while being a transcendent good destined to endure for eternity, is accomplished or not accomplished by the person in his moral regulation of the diverse human activities and the diverse personal and social goods.

2.4.3 The Unitary Identity of Christian Morality as the Following of Christ

We must finally discuss the problem, very controversial in contemporary theology, as to whether the walk toward Christian holiness—which we have described—is capable of being the basis for a morality with a sufficiently unitary characterization. Among scholars, there is almost universal agreement that within the New Testament there exists an ethics with a specific identity and unity that is detectable in its Theological-Christological foundation and in its eschatological motivation.[149] But the opinions are much more varied concerning the possibility of finding in the Sacred Scriptures a unitary and perennially valid ethics, with regard to its content and instructions, concerning personal, interpersonal, and social behavior.[150]

> In fact, it is evident, on one hand, that the authors of the New Testament writings elaborate the preceding oral traditions in a concrete historical-cultural situation in view of the needs of the young Christian community, keeing in mind their respective environment;[151] on the other hand, we also live in a concrete context, quite different from that of the Christians in the first generations, in which new problems emerge that the Sacred Authors could not have taken into consideration. The question arises as to whether the following of Christ brings with it a concrete, universal, and immutable morality that is valid for our time. This problem become so complex today because of the "normativistic

[148] *S. Th.* suppl., q. 82, a. 3, ad 4. Thomas applies this reasoning to contemplation in paradise; anyhow, in an analogous way, one could apply it to loving contemplation in this life.

[149] Cf. G. Segalla, *Introduzione all'etica biblica del Nuovo Testamento*, 234–235.

[150] This theme will be taken up again in a more complete fashion in Chapter VIII when the New Law, the *lex gratiae*, is studied.

[151] Cf. R. Fabris, "Morale del Nuovo Testamento", in *Nuovo Dizionario di Teologia Morale*, (Cinisello Balsamo: Paoline, 1990), 799.

> preunderstanding" that often accompanies the study of the New Testament. Some theologians start from ethical premises that human moral knowledge is primarily an activity produced by norms, and then search the Sacred Scriptures for a systematic and perfectly elaborated moral "code" containing also a completely casuistic account ready for every epoch, even our own. But it seems to us that such a "preunderstanding" is not adequate for the nature of moral knowledge and for the ways in which it comes about.

Moral knowledge regards primarily the question of which type of life is best or, if one prefers, what is the ultimate good of human life taken as a whole. The best life springs about from certain modes of accomplishing and ordering human activities, and of using and managing personal and social goods. These regulating modes are vital principles of the human practical reason: the virtues. On the foundation of these virtues, the reason, following its spontaneous and not yet reflexive operation (ratio practica in actu exercito),[152] is able to identify programs of action as well as singular actions that accomplish here and now the desired type of life.[153] Now, considering things from this point of view, the unitary identity of Christian morality is guaranteed by the fact that the New Testament contains an indication of the type of life proper to the Christian—life in Christ, the following of Christ–, that encompasses all of a person's life and not only an area of it; its eschatological purpose; and the Christian principles of the practical reason—the Christian theological and moral virtues–, on the basis of which one is able to identify the Christian way of living in every circumstance and situation.[154] Naturally, the moral knowledge so obtained can be expressed also in universal normative terms in the modern sense of the word, but such statements are always a derived reality, even if they are most important for pedagogical (catechetical) effects and to communicate moral knowledge.[155] However, what is really of importance is not so much the more or less systematic form which such practical principles explicitly have in the New Testament, but rather the fact that these principles (the Christian virtues) are given to the Christian with grace, in such a way that they constitute themselves as real and vital principles of the Christian's

[152] Cf. Chapter I, section 1.2.2.

[153] We shall see throughout this book that the virtues, as we understand them here and as it seems to us that St. Thomas understood them, are not simply habits, in the usual sense of the word. They are not only nor principally habits that permit one to easily do the good that was specified independently of them, but they are in the first place principles according to which and through which the practical reason can reach a certain knowledge, in the practical sense, of the good to be done or the evil to be avoided.

[154] "whoever claims to abide in him ought to live (just) as he lived" (1 *Jn* 2:6); cf. *Jn* 13:34; *Eph* 5:2.

[155] In Chapter VIII, under section 8.2.2 and 8.2.3 the difference between spontaneous activities of the moral reason based on practical principles and the reflexive formulation of moral precepts will be explained.

knowledge and moral behavior.

We retain, in synthesis, that Christian morality as identification with Christ through the Holy Spirit possesses a well defined unitary identity, so long as it is understood in the sense which we have now explained. The Sacred Scriptures, and in particular the New Testament, contain under the form of moral teaching a more than sufficient illustration of the practical principles which the Christian receives with grace and which render him a child of God. To bring these vital principles to reflexive and scientific awareness, explaining their inner logic and their possible abstract and normative applications, is the work of moral theology.[156] But the theological and moral virtues, as real principles of Christian morality, are the cornerstone for arriving at a theological understanding of the real specific identity of Christian moral life, as a following of Christ. In fact, moral theology requires a "careful inquiry rooted unambiguously in the word of God. In order to fulfill its mission, moral theology must turn to a philosophical ethics which looks to the truth of the good, to an ethics which is neither subjectivist nor utilitarian. Such an ethics implies and presupposes a philosophical anthropology and a metaphysics of the good. Drawing on this organic vision, linked necessarily to Christian holiness and to the practice of the human and supernatural virtues, moral theology will be able to tackle the various problems in its competence, such as peace, social justice, the family, and the defense of life and the natural environment, in a more appropriate and effective way.[157]

[156] Cf. Chapter I, section 1.2.
[157] *Fides et Ratio* 98.

Chapter 3

Moral Conduct as the Response of Man to the Divine Call

3.1 Moral Conduct and Christian Holiness

A purely philosophical analysis sees moral life as an effort in which man intends to carry out, through his actions, the complete and definitive good of his existence. For such a purpose, it leaves completely exhausted the practical reason, which is able to perform a concrete operative "translation" of the final end, specifying the priorities, the measure and the modes in which the diverse goods and various activities which make up human life must be desired and accomplished.[1]

In the light of Revelation, we understand that, in the call to holiness that occurs in the configuration with Christ, the complete human good is assumed, purified, elevated, and completed, but not altered. *The Christian moral life is lived as an active pursuit of holiness, supported by the grace of the Holy Spirit.* The natural practical capacity of the human reason is enriched by the breadth of meaning and by the concrete moral teachings of Revelation. The natural human operative resources are analogously rectified and elevated by the Christian virtues. All moral existence can be then more profoundly understood as the response of man to the divine gift which has made him become—along with the other members of the Christian community and, potentially, all people—a child of God in Christ through the Holy Spirit.

[1] Cf. Chapter II, section 2.1.2 and 2.2.

It needs to be understood correctly in what sense the Christian moral life is a response to a divine call. In a certain way, all moral life pertains to the call that God directs to man, whether he is aware of it or not, through the natural conscience and the natural desire for good.[2] But in the Christian is found also a clear awareness of having been the object of a divine communication that requires correspondence. He also knows himself to be the intended recipient of precise moral teachings, which illustrate the fundamental paths of his response. But it should not be thought that every single action of the Christian is a response to a divine request with precise and unequivocal content. Better yet: in reality it is so, but it is inasmuch as the Christian sees in God the origin and foundation of every good, and believes that the following of Christ may be implemented as an obedient effort toward all that appears to be good, both in the light of the natural reason (natural moral law[3]), and in the light of faith (the Gospel law[4]), even if in reality the Christian normally acts under the light which results from a collaboration between these two cognitive principles. What we are compelled to underline is that *the Christian is not spared the active and creative effort of identifying the ways of reaching union with Christ through his own works and activities.*

All of moral theology has the task of helping the Christian to perform this active and creative effort. At this point we can trace only a few general lines that may offer a synthetic and dynamic vision of what will be seen further on from an analytical perspective throughout this book and in special moral theology.[5]

3.2 The Moral Cooperation of Man with the Gift of God

It can be affirmed in general terms that every free initiative of God toward us requires the *free response of man.*[6] *Even in what we have called initial holiness there is already a first and fundamental response of man:* the free acceptance of the justice of God through faith in Jesus Christ wherein justification takes place.[7] We shall not consider this perspective any further, because for now we

[2] Cf. *Veritatis Splendor* 7.

[3] Cf. Chapter VIII, section 8.2.

[4] Cf. Chapter VIII, section 8.4.

[5] Undoubtedly many of the themes of this chapter presuppose knowledge of the themes of freedom, sin, concupiscence, and other such matters which will be studied further on. It seems fitting to us to offer now a synthetic vision, making the assumption that the reader has at least a general understanding of these topics.

[6] Cf. *CCC* 2002.

[7] Cf. *CCC* 1991 and 1993. See also, in reference to Saint Paul, R. Penna, *L'apostolo Paolo. Studi di esegesi e teologia*, (Cinisello Balsamo: Paoline, 1991), 645–657.

shall occupy ourselves more directly with the person who, with his life and always under the influence of grace, simultaneously expresses and develops the gift with which he was sanctified and renewed.

Faith, which follows charity and the desire to arrive at full communion with God (hope), must be faithfully preserved each day: *neither can the first acceptance of faith be considered as something acquired once and for all.* As Saint Augustine writes, "All proceeds from God, not however with us remaining as sleepers, as reluctant of making any effort, almost unwillingly. Without your will, there will not be God's justice in you. Undoubtedly the will is nothing but your own, justice is only of God. Without your will the justice of God can still be there, but it will not be in you if you are opposed to it [you, will not render you just without you."[8] On man depends, ultimately, cooperation with the divine gift, that manifests itself in the decision to live, primarily and above any other interests, as holy in Christ Jesus.[9] The effort to live in Christ involves two aspects: to eradicate what takes us away from the Lord and to practice what leads us closer to Him.

> The Apostolic Letters distinguish between these two aspects. The *Letter to the* Ephesians, for example, describes them as "putting away the old self" and "putting on the new self": "that you should put away the old self of your former way of life, corrupted through deceitful desires, and be renewed in the spirit of your minds, and put on the new self, created in God's way in righteousness and holiness of truth."[10] In the *Letter to the Galatians* the first aspect is seen as a battle against the desires of the flesh; the second, as life according to the Spirit.[11] The *First Letter to the Thessalonians* asks the faithful to abandon the passions and sins of the pagans who do not know God, and to behave in a manner pleasing to God, seeking to always make progress.[12] *The Letter to the Romans* speaks of not conforming oneself "to this age" and of being transformed and renewed, "that you may discern what is the will of God, what is good and pleasing and perfect."[13] Ultimately, both the effort to battle against sin and vice, and the practice of the virtues and use of the means of sanctification are necessary.

[8] Saint Augustine, *Sermo* 169, 11, 13: NBA 31/2, 795, our translation

[9] Cf. *1 Cor* 1:2; see also, R. Schnackeburg, *Il messaggio morale del Nuovo Testamento*, vol. II, (1989), 85–86.

[10] *Eph* 4:22–24.

[11] Cf. *Gal* 5:16–17.

[12] Cf. *1 Thess* 4:1–5.

[13] Cf. *Rom* 12:2.

3.3 The Negative Aspect of the Moral Effort: "Put Away the Old Self of Your Former Way of Life"

3.3.1 The Battle against Sin

In speaking of the "negative aspect" of the moral effort, we are adapting to a common mode of speech, that must however be understood well. In Christian life, the negation always proceeds from a previous affirmation and is ordered toward a further and full affirmation. It is written well that in the Christian announcement sin is not "a primary theme, but is an indirect theme that is reflexive: a theme that occurs, obviously, but does not take the foreground [at least the first letter to the Corinthians where we have this archaic formula of faith: "Christ died for our sins in accordance with the scriptures; that he was buried; that he was raised on the third day in accordance with the scriptures; that he appeared to Kephas, then to the Twelve" (*1 Cor* 15, 3–5). Here we have right away the mention of sin, but it is put in a secondary position in light of the fact that Christ died for this reason. The confession of faith is Christological."[14]

This consideration, far from softening the importance of sin, emphasizes it, while placing it in the proper perspective. Whoever lives in Christ is dead to sin: "If, then, we have died with Christ, we believe that we shall also live with him [As to his death, he died to sin once and for all; as to his life, he lives for God. Consequently, you too must think of yourselves as (being) dead to sin and living for God in Christ Jesus. Therefore, sin must not reign over your mortal bodies."[15] Between the life of man in Christ and sin exists an absolute opposition. Sin is opposed to the holiness of God and to life in Christ; it represents the "no" of man to the divine call to holiness. Sin is a distancing of oneself from God who in Christ came and approached us.[16] Therefore the battle against sin constitutes the first, radical, and immediate requirement of the divine call to holiness.

> This is one of the first things that strikes us in the moral teaching of the letters of the New Testament. Thus, for example, St. Paul reminds the Thessalonians of it: "This is the will of God, your holiness: that you refrain from immorality, that each of you know how to acquire a wife for himself in holiness and honor, not in lustful passion as do the Gentiles who do not know God; not to take advantage of or exploit a brother in this matter, for the Lord is an avenger in all these things, as we told you before and solemnly affirmed. For God did not call us to impurity

[14] R. Penna, *L'apostolo Paolo. Studi di esegesi e teologia* (1991)., 379, our translation.
[15] *Rom* 6:8,10–12.
[16] Given the capital importance of sin, Chapter XI will be dedicated to its treatment.

but to holiness. Therefore, whoever disregards this, disregards not a human being but God, who (also) gives his holy Spirit to you."[17] No less radical is the warning of the *First Letter of John*: "You know that he was revealed to take away sins, and in him there is no sin. No one who remains in him sins; no one who sins has seen him or known him. Children, let no one deceive you. The person who acts in righteousness is righteous, just as he is righteous. Whoever sins belongs to the devil, because the devil has sinned from the beginning. Indeed, the Son of God was revealed to destroy the works of the devil. No one who is begotten by God commits sin, because God's seed remains in him; he cannot sin because he is begotten by God."[18] Those who follow Christ do not sin. The absence of sin pertains to the reality of divine filiation itself. To sin is to reject divine filiation and to offend the love of God who bestows it as a gift.

3.3.2 Lukewarmness as Failure to Respond to the Christian Vocation

The Christian vocation, inasmuch as it is a vocation to accomplish holiness in the world, must overcome another obstacle beyond sin that is in appearance less serious, but in practice more insidious: lukewarmness or acedia, "to which pertains the negligence of a man who declines to acquire spiritual goods on account of the attendant labor."[19]The lukewarm person does not want to offend the Lord gravely, but neither does he want to seriously put forth the effort to have union with Christ throughout his life. Such a person may not clearly say "no" to the divine calling, but habitually holds onto a response of "later" or "tomorrow," but that tomorrow never comes. His weak love of God considers every effort to be too difficult. This explains the strong words that Scripture uses regarding such a person: "I know your works; I know that you are neither cold nor hot. I wish you were either cold or hot. So, because you are lukewarm, neither hot nor cold, I will spit you out of my mouth."[20] The point is that *the lukewarm person forgets the great love that God has shown him, leaves aside the dynamism toward growth which is intrinsic to charity,*

[17] *Thess* 4:3–8.

[18] *1 Jn* 3:5–9.

[19] *S. Th.* I-II, q. 84, a. 4, ad 5. Lukewarmness should not be confused, however, with a state of interior dryness, because it pertains to a condition of voluntary spiritual languor that is characterized by a withdrawal from the effort to grow in one's own holiness.

[20] *Rev* 3:15–16. "[an author says] that lukewarmness is an ethical fever, which is not very scary, because it is known right away; but it is so malign that one is healed of it with difficulty. The comparison is very appropriate, because lukewarmness renders the soul insensible to the remorse of conscience, so it will happen, that because one is made insensible to the remorse of venial sins, so with time this person will be rendered insensible to mortal sin." (Saint Alphonsus Maria de Liguori, *Sermoni compendiati*, XIX, 12: *Opere*, vol. III, (Turin: Giacinto Marietti, 1880), 426.)

and is satisfied with how he is and what he does. "For you say, 'I am rich and affluent and have no need of anything,' and yet do not realize that you are wretched, pitiable, poor, blind, and naked."[21] Lukewarmness or the "bourgeois attitude" is ultimately the failure to respond to the vocation of holiness, and undoubtedly represents a failure.

> The lukewarm person is carried away by a temptation to think that the path toward happiness is a happy medium between Christian holiness—seen as too burdensome—and a distancing of oneself from God—seen as a dark road with no exit. The lukewarm person wants to be "good", but ignores his filial relation with the Lord, primarily concerns himself with earthly goods (money, power, material well-being, etc.), does not give ear to inspirations of grace, is superficial, often irresponsible in the carrying out of familial, professional, and social works; he does not demonstrate any consideration of his spiritual growth and is fatigued by any efforts to do anything that goes beyond what can be seen or touched.

The remedies against lukewarmness can be found in the next passage of Revelation:[22] 1) to convert oneself with all one's heart to God and to make fruitful His gifts: "I advise you to buy from me gold refined by fire so that you may be rich, and white garments to put on so that your shameful nakedness may not be exposed, and buy ointment to smear on your eyes so that you may see;" 2) to carry with generosity the Lord's Cross and accept passive mortifications fully: "Those whom I love, I reprove and chastise;" 3) to renew one's efforts towards holiness: "Be earnest, therefore, and repent;" 4) to listen to, with a firm intention of acting on, the call of the Lord: "Behold, I stand at the door and knock. If anyone hears my voice and opens the door, (then) I will enter his house and dine with him, and he with me." This last remedy must be accomplished in two complementary ways: a) by improving one's prayer, "because the more we think about spiritual goods, the more pleasing they become to us, and forthwith sloth dies away;"[23] b) by frequenting the sacrament of confession and through spiritual direction, in order to have a more clear perception of what God asks of us.

3.3.3 The Battle against Concupiscence

The freedom of man is the freedom of a being composed of spirit and flesh, immersed in temporality, and is a freedom not fully decided by a single choice, but painstakingly throughout one's life. So, while it is a walk, the person must concern himself with his own salvation in fear and trembling,[24] and what

[21] *Rev* 3:17.
[22] Cf. *Rev* 3:18–20.
[23] *S. Th.* II-II, q. 35, a. 1, ad 4.
[24] Cf. *Phil* 2:12.

inevitably results is the battle to overcome resistance and uphold one's own decisions, for in this life it is always possible to turn backwards.[25] On account of original sin, such moral effort causes fatigue: the natural ordination toward God is contrasted by the disorder caused by original sin and by actual sins; this principle of disorder in the moral life, called "concupiscence" or "*fomes peccati,*"[26] is attributed to the "flesh."[27]

> Such moral disorder makes itself known above all in the immoderate love of oneself and in the will for self-affirmation, and maximally in the closing of oneself off to God which is in pride:[28] the worst of all concupiscence is found in the inordinate love of self, which embodies itself in diverse human appetites (both spiritual and sensitive) and leads toward sin. "It is St. Paul who describes in a particularly eloquent way the tension and struggle that trouble the human heart. We read in the *Letter to the Galatians*: 'But I say, walk by the Spirit, and do not gratify the desires of the flesh. For the desires of the flesh are against the Spirit, and the desires of the Spirit are against the flesh; for these are opposed to each other, to prevent you from doing what you would' (Gal 5:16ff). There already exists in man, as a being made up of body and spirit, a certain tension, a certain struggle of tendencies between the 'spirit' and the 'flesh.' But this struggle in fact belongs to the heritage of sin, is a consequence of sin and at the same time a confirmation of it. This is part of everyday experience. As the Apostle writes: 'Now the works of the flesh are plain: fornication, impurity, licentiousness drunkenness, carousing and the like.' These are the sins that could be called 'carnal.' But he also adds others: 'enmity, strife, jealousy, anger, selfishness, dissension, party spirit, envy' (Gal 5:19–21). All of these constitute the 'works of the flesh.' But these works, which are undoubtedly evil, Paul contrasts with 'the fruit of the Spirit,' such as 'love, joy, peace, patience, kindness, goodness, faithfulness, gentleness, self-control' (Gal 5:22). From the context it is clear that for the Apostle it is not a question of discriminating against and condemning

[25] Cf. *Lk* 9:62.

[26] "Etymologically, 'concupiscence' can refer to any intense form of human desire. Christian theology has given it a particular meaning: the movement of the sensitive appetite contrary to the operation of the human reason. the apostle St. Paul identifies it with the rebellion of the 'flesh' against the 'spirit' (cf. Gal 5:16,17,24; Eph 2:3). Concupiscence stems from the disobedience of the first sin. It unsettles man's moral faculties and, without being in itself an offense, inclines man to commit sins (cf. Council of Trent: DS 1515)" (*CCC* 2515).

[27] "Flesh" in the sense of the old self, of the person marked by the disorder of sin: cf. Chapter XI, subsection 11.6.3. On the battle against the flesh in Saint Paul, see R. Schnackenburg, *Il messaggio morale del Nuovo Testamento*, vol. II, (1989), 53–56.

[28] So it is written in the Vulgate and the Neo-Vulgate: "*Quoniam initium omnis peccati est superbia*" (*Ecclus-Sir* 10:15), of which the NAB version differs : "For pride is the reservoir of sin" (*Sir* 10,13). Citing Sirach, Augustine and Thomas write: "*Initium quippe omnis peccati superbia*» (Saint Augustine, *De Civitate Dei*, 12, 6: NBA 5/2, 158). "*Initium omnis peccati superbia vel amor proprius*" (*S. Th.* I-II, q. 84, a. 2, ad 3).

> the body, which along with the spiritual soul constitutes man's nature and personal subjectivity. Rather, he is concerned with the morally good or bad works, or better the permanent dispositions—virtues and vices—which are the fruits of submission to—in the first case– or of resistance to—in the second case—the saving action of the Holy Spirit. Consequently, the Apostle writes: 'If we live by the Spirit, let us also walk by the Spirit' (Gal 5:25)."[29]

A direction toward holiness cannot be maintained without a battle to overcome disordered interior movements. Already in the Old Testament life on the earth is compared to military life, as a battle between the woman's descendant with that of the serpent, along with many other passages of battle allegory.[30] The theme is taken up again in the New Testament, both with the metaphor of war,[31] and with that of sports competition,[32] as a battle leading up to the full victory of Christ in the eschatological battle.[33] The Second Vatican Council also reminds us: "For a monumental struggle against the powers of darkness pervades the whole history of man. The battle was joined from the very origins of the world and will continue until the last day, as the Lord has attested (Mt 22:39). Caught in this conflict, man is obliged to wrestle constantly if he is to cling to what is good, nor can he achieve his own integrity without great efforts and the help of God's grace."[34] The Christian, however, is not moved by a earthly desire for perfection; his goal is not self-affirmation in his domination of disordered nature, but in loving God above all things and identifying himself with Jesus Christ by means of the grace of the Holy Spirit. The ascetic battle is principally an effort of transformation in Christ. Therefore, it is an optimistic and more direct effort for doing good and avoiding evil: "Do not be conquered by evil but conquer evil with good."[35]

3.4 The Positive Aspect of the Moral Effort: Renewal in the Spirit and the Means of Sanctification

The positive aspect of the moral effort is that of better responding to the profound nature of the carrying out of the divine call to holiness. The moral life is primarily spiritual progress that tends to an always more intimate union with Christ. This union is called "mystical", because it is a participation by means

[29] *Dominum et Vivificantem* 55.
[30] Cf. *Gen* 3:15; *Job* 14:14; *Ps* 2; 17:40–41; *Wis* 5:16–22; *Isa* 59:16–18.
[31] Cf. *Mt* 10:34–36; *2 Cor* 10:3–5; *Eph* 6:10–17; *1 Tim* 1:18; *1 Pet* 2:11.
[32] Cf. *Acts* 20:24; *1 Cor* 9:24–27; *Phil* 3:14; *Hb* 12:1; *Rev* 3:11–12.
[33] Cf. *Jn* 16:33; *2 Cor* 2:14; *Rev* 19:11–21; 20:7–15.
[34] *Gaudium et Spes* 37.
[35] *Rom* 12:21.

of the sacraments—"the holy mysteries"—and, through Him, in the mystery of the Most Holy Trinity. God calls all of us to this intimate union with Him."[36] The Second Vatican Council concludes its exposition of the doctrine of the universal call to holiness with a concise vision of the principal means of achieving union with Christ: "the first and most necessary gift is love, by which we love God above all things and our neighbor because of God. Indeed, in order that love, as good seed may grow and bring forth fruit in the soul, each one of the faithful must willingly hear the Word of God and accept His Will, and must complete what God has begun by their own actions with the help of God's grace. These actions consist in the use of the sacraments and in a special way the Eucharist, frequent participation in the sacred action of the Liturgy, application of oneself to prayer, self-abnegation, lively fraternal service and the constant exercise of all the virtues."[37]

3.4.1 Growth in Holiness

The Christian moral life is a process of progressive sanctification. This is expressed in the New Testament as growth toward union with Christ,[38] or as an always greater filial identification with the will of God the Father[39] or, more simply, as growth in charity, which is the most properly unifying virtue. Thus Saint Paul says to the Phillippians: "And this is my prayer: that your love may increase ever more and more in knowledge and every kind of perception, to discern what is of value, so that you may be pure and blameless for the day of Christ, filled with the fruit of righteousness that comes through Jesus Christ for the glory and praise of God."[40] According to the Apostle, charity is the moving inspiration of the knowledge and moral discernment of the Christian, that orders all his conduct toward the glorification of God through Jesus Christ. In the *Letter to Thessalonians* he expresses it in a similar way and adds that charity, as a principle of the Christian path, proceeds from God: "And may the Lord make you increase and abound in love for one another and for all, just as we have for you, so as to strengthen your hearts, to be blameless in holiness before our God and Father at the coming of our Lord Jesus with all his holy ones."[41]

The progressive identification with Christ and with the Father through charity requires that one follow the commandments.[42] The Gospels report many moral discourses of Jesus, among these the tradition has privileged the "Sermon

[36] *CCC* 2014.
[37] *Lumen Gentium* 42.
[38] Cf. *Eph* 4:13–15.
[39] Cf. *Rom* 12:2; *Col* 1:9–12.
[40] *Phil* 1:9–11.
[41] *1 Thess* 3:12–13.
[42] Cf. *Jn* 14:21,23.

on the mount", which has at its core "the beatitudes"; these, together with the "commandment of love" and the confirmation of the decalogue, can be considered as a summary of Christian moral praxis.[43] This nucleus is clarified and explained in other passages of the New Testament, which also underline the radicality of the whole Christian life.[44] Moral conduct is not, however, a collection of disconnected activities. It does not consist only in doing certain things and not doing others. Rather, the Christian finds himself needing to trace for himself a plan of conduct, a program of life, so that he may accomplish and exhibit life in Christ, where he is called and also where he discovers his human and Christian fullness, in his concrete personal, familial, professional, and social circumstances. *Life in Christ is the criterion with which actions, human and social relationships, and the modes of using goods must be congruent. Everything is presided over by the need for consistency, which gives rise to the "unity of life" of the Christian.*[45]
It is not possible to divide the life of the Chrisitan into two great parts ruled, respectively, by obedience and by freedom, as if to the first would pertain the commanded and forbidden actions of moral norms, and to the second would pertain actions that have nothing to do with morality, in which one could move about "freely", seeking merely human goals or interests. In reality, whoever has been touched by the grace of God conceives of his own existence and activities as means to union with God through Christ: "So whether you eat or drink, or whatever you do, do everything for the glory of God."[46] Even if there exist activities that are considered morally indifferent considered in abstraction, and admitting that one is not always able to actually and explicitly refer all his actions to Christ, *the intrinsic dynamic of the Christian life tends in itself to render always more present, and always more actual and known, the supreme goal of the love of God or,* if one prefers, the filial attitude that discovers in all things the way to "discern what is the will of God, what is good and pleasing and perfect."[47] From filial charity, as from "a spring of

[43] Cf. *Mt* 5:3–12; 19:17–19; 22:36–40.

[44] Cf. *Mt* 5:48; *Jas* 1:4; *1 Pt* 1:15–16. For a comprehensive vision, cf. R. Schnackenburg, *Il messaggio morale del Nuovo Testamento* (1989); C. Spicq, *Théologie morale du Nouveau Testament*, 4th ed., (Paris: J. Gabalda et Cie., 1970); W. Schrage, *Etica del Nuovo Testamento*, (Brescia: Paideia,1999).

[45] On the theme of the unity of the Christian life, see: *Presbyterorum Ordinis* 14; *Perfectae Caritatis* 18; *Christifideles Laici* 30, 34, 59 and 60; San Josemaría Escrivá, *Christ is Passing by* (2002), no. 10. The concept of "unity of life" is characteristic of the teachings of Saint Josemaría Escrivá: see I. De Celaya, "Unidad de vida y plenitud cristiana", in Various Authors, *Mons. Escrivá de Balaguer y el Opus Dei*, (Pamplona: Eunsa, 1981), 303–322; R. Lanzetti, L'unità di vita e la missione dei fedeli laici nell'Esortazione Apostolica 'Christifideles laici', in *Romana* 5 (1989) 300–312, and the bibliography found therein.

[46] *1 Cor* 10:31; cf. *Col* 3:17; *1 Pet* 4:11.

[47] *Rom* 12:2.

water welling up to eternal life,"[48] springs forth the entire moral activity of the Christian, that merits a progressive supply of charity itself and union with Christ.

> As Saint Cyprian writes, "the will of God is that which Christ performed and taught. It is humility in conversation, firmness in faith, discretion in words, justice in actions, mercy in works, discipline in morals; it is to do no wrong and to tolerate wrongs immediately, to maintain peace with the brothers, to love God with all one's heart, to love Him as Father, to fear Him as God, to prefer nothing to Christ, for neither has he preferred anything to us; it is to stand inseparably united in His love, to remain close to His cross with courage and steadiness, when his name and love our questioned, to show in love the constancy which we confess, in controversies the trust by which we walk, in death the patience by which we shall be rewarded: this means to want to be coheirs of Christ, this is to do the command of God, this is to fulfill the will of the Father."[49]

The moral life is therefore nourished, in the first place, by a set of attitudes with respect to God,[50] among which are*:* adoration;[51] oration;[52] the acceptance of the Cross of Christ;[53] thanksgiving;[54] petitionary prayer;[55] docility;[56] behavior proper to the children of God[57] which flows into the trusting abandonment into divine providence;[58] humility;[59] and penitence for sins.[60] *From these proceed the impetus to seek out Christ even in the fulfillment of secular tasks.* Such a movement has some concrete manifestations: as Christ, to strive to do all things well;[61] to sanctify one's daily life;[62]to rule the world

[48] *Jn* 4:14.

[49] Saint Cyprian, *De Dominica Oratione*, 15: CSEL 3, 277–278, our translation.

[50] Cf. *Lumen Gentium* 42.

[51] "The Lord, your God, shall you worship and him alone shall you serve." (*Mt* 4:10). Cf. *Isa* 42:8; *Ps* 49:14,23; *1 Tim* 1:17; *Heb* 13:15.

[52] We shall speak of it below, in subsection 3.4.3.

[53] Cf. *Mt* 16:24–25; *1 Cor* 1:18; *1 Pet* 2:20–21; see below, subsection 3.4.4.

[54] "In all circumstances give thanks, for this is the will of God for you in Christ Jesus." (*1 Thess* 5:18). Cf. *Lk* 17:16–18; *Eph* 5:20.

[55] "At all times bless the Lord God, and ask him to make all your paths straight and to grant success to all your endeavors and plans. For no pagan nation possesses good counsel, but the Lord himself gives all good things. " (*Tob* 4:19). Cf. *Lk* 11:9–13; *Jn* 16:23–24; *1 Thess* 5:17.

[56] Cf. *1 Sam* 15:22; *Mk* 4:20; *Acts* 7:51; *Rom* 5:19; 8:14,26–27; *Gal* 5:25.

[57] Cf. *Jn* 1:12–13; *Rm* 8:14–17; *Gal* 3:26–28; *Eph* 1:5; *1 Jn* 3:1–2.

[58] Cf. *Ps* 30:2–7; *Mt* 6:25–34; *Mk* 11:22–24; *Lk* 12:22–31; *Acts* 27:25; *1 Pt* 4:19; *CCC* 302–314.

[59] "God resists the proud, but gives grace to the humble" (*Jas* 4:6 and *1 Pt* 5:5, which are citations of: *Prv* [Gk.] 3:34). Cf. *Mt* 11:29; *Jn* 13:1–17; *1 Cor* 4:7; Philem 2:5–11.

[60] Cf. *Ps* 50:19; *Isa* 66:2: *Mt* 3:2; 4:17; *Acts* 2:38; *2 Cor* 7:1; *Heb* 10:22.

[61] Cf. *Mk* 7:37.

[62] Cf. *Lk* 8:38–39; *1 Tim* 4:4–5; *1 Pet* 4:11; *Gaudium et Spes* 33. Saint Josemaría Escrivá's teaching and work as founder were very important for the understanding of the

with justice and holiness for the glory of God;[63] to also seek human perfection in one's own works;[64] to use time well;[65] to be responsible in one's efforts;[66] to be hard working;[67] to accomplish one's own familial,[68] social,[69] civic,[70] and professional[71] duties; to perform any given activity with completeness and perfection, even in the particulars;[72] to not conform oneself to a worldly mentality;[73] and to work without thinking only of one's earnings or earthly glory.[74]

Therefore Christian life informs also the social and political dimensions of human life. The recent magisterium has noted that "two temptations can be cited which they [the lay faithful] have not always known how to avoid: the temptation of being so strongly interested in Church services and tasks that some fail to become actively engaged in their responsibilities in the professional, social, cultural and political world; and the temptation of legitimizing the unwarranted separation of faith from life, that is, a separation of the Gospel's acceptance from the actual living of the Gospel in various situations in the world.[75] *The attention toward the human person and toward his good implies a sensibility to know how to judge, in reference to the good of the person or persons, the value of the social and political form that the society in which we live gives to itself; a judgment that also must be able to advance concrete proposals aimed at further improvements of social and political conditions.*[76]

> Perhaps, up until the recent past and in good part as a consequence of the prevalently static character of society, morality underlined the individual duties and undervalued, perhaps because they were not as present as they are today, the social aspects. In an interdependent and

capital theological role played by the sanctification of daily life: cf. W. May, *Santità e vita ordinaria*, in Various Authors, *Santità e mondo*, 43–68.

[63] Cf. *Ps* 8:7–9; *Wis* 9:2–3; *1 Cor* 10:31; *Gaudium et Spes* 34.

[64] Cf. *Lev* 22:20; *Col* 3:22–4:1; *1 Pet* 2:12,15.

[65] Cf. *1 Cor* 7:29; *Eph* 5:16.

[66] Cf. *Prov* 12:10,24,27; *Mt* 25:26–27; *Lk* 17:10.

[67] Cf. *Prov* 20:4,13; *Eccl* 10:18; *Eph* 4:28; *2 Thess* 3:7–12; *Gaudium et Spes* 35.

[68] Cf. *Ps* 126:3–5; *Sir* 3:1–16; 7:19,23–28; *Eph* 5:22–6:4; *Col* 3:18–21; *1 Tim* 5:8; *Gaudium et Spes* 52.

[69] Cf. *Lev* 19:9–18,33–36; *Titus* 2:1–10; *Jas* 5:4; *Gaudium et Spes* 43.

[70] Cf. *Mt* 22:21; *Rom* 13:1–7; *1 Pet* 2:13–17; *Gaudium et Spes* 75.

[71] Cf. *Prov* 24:30–34; *Sir* 7:22; *Eph* 6:5–9. In this regard it is good to remember that the Bible speaks of diverse laborious activities: artisans (*Ex* 31:1–11), housewives (*Prv* 31:10–31), civil servants (*Lk* 3:12–13), judges (*Deut* 19:18–20; *2 Chr* 19:6–7), rulers (*1 Kgs* 10:9; *Jer* 22:1–5), doctors (*Sir* 38:1–15), manual trades (*1 Kings* 7:13–14; *Sir* 38:24–34), masters and servants (*1 Tim* 6:1–2; *1 Pet* 2:18), soldiers (*Mt* 8:5–13; *Lk* 3:14), etc.

[72] Cf. *Eccl* 7:8; *Song* 2:15; *Lk* 16:10; *Gaudium et Spes* 67.

[73] Cf. *Rom* 12:2; *Titus* 2:12; *1 Jn* 2:15.

[74] Cf. *Jer* 9:22–23; *Ex* 33:31; *Hab* 2:9; *Lk* 11:43; 12:21; *2 Cor* 10:17; *Phil* 2:4.

[75] *Christifideles Laici* 2.

[76] These theme will be looked at in more depth in Chapter IX, section 9.1.

> dynamic society like the modern one, the social environment cannot be ignored.[77] Of this proposal the Second Vatican Council warns "that no one ignoring the trend of events or drugged by laziness, content himself with a merely individualistic morality [...]. Let everyone consider it his sacred obligation to esteem and observe social necessities as belonging to the primary duties of modern man. For the more unified the world becomes, the more plainly do the offices of men extend beyond particular groups and spread by degrees to the whole world. But this development cannot occur unless individual men and their associations cultivate in themselves the moral and social virtues, and promote them in society; thus, with the needed help of divine grace men who are truly new and artisans of a new humanity can be forthcoming."[78].

3.4.2 The Sacraments

The effort to conform all the dimensions of human life to the theological and moral virtues, making them become means of union with Christ, is not generated by man nor can it be sustained with human effort alone, as Jesus[79]and the Apostle Paul both teach.[80] We intend now to point out the principal means—sacramental and non-sacramental—through which it is possible for the Christian to follow the loving words of the Lord, "Come to me, all you who labor and are burdened, and I will give you rest."

According to the sacramental character of the economy of salvation,[81] the initial gift of the Christian life is received *ex opere operato* with baptism and confirmation. These two sacraments, along with holy orders, can only be received once in a person's life. Marriage and the anointing of the sick, even if they sometimes can be received more than once (if the first spouse dies or when the Christian finds himself in the peril of death again), are ordained toward completely special effects; while the sacraments of penance and the Eucharist are the means of sanctification *par excellence.*[82]

"Christ instituted the sacrament of Penance for all sinful members of his Church: above all for those who, since Baptism, have fallen into grave sin, and have thus lost their baptismal grace and wounded ecclesial communion. It is to them that the sacrament of Penance offers a new possibility to convert and to recover the grace of justification.[83] Even for those who receive

[77] A more extended study on the relationship between the moral and social life is contained in: E. Colom, *Chiesa e società*, (Rome: Armando, 1996), especially Chapters III and V.

[78] *Gaudium et Spes* 30.

[79] "without me you can do nothing" (*Jn* 15:5).

[80] "I have the strength for everything through him who empowers me" (*Phil* 4:13).

[81] Cf. Chapter I, subsection 1.1.2.

[82] On the sacraments as means of sanctification see: *Sacrosanctum Concilium* 59 and *Lumen Gentium* 11.

[83] *CCC* 1446.

it without having committed a grave sin, the sacrament of penance produces an increase of grace, builds up the spiritual forces for Christian combat,[84] progressively heals concupiscence and the wounds caused by sins of one's past life, contributes to the formation of the conscience, and is an occasion of effective spiritual direction. It is for these reasons *not only a means of healing, but also an important means of sanctification and union with Christ*: applying to the Christian the merits of the Redeemer, it is very effective for the moral and spiritual development of the faithful, such that it constitutes a true "personal encounter with the crucified forgiving Christ;"[85] for this reason, the Church insistently recommends the practice of frequent confession.[86]

Not less important for the Christian life is the sacrament of the Eucharist.[87] The love of Jesus for men manifests itself clearly in his passion and death; in fact, "no one has greater love than this, to lay down one's life for one's friends;"[88] and it is this same love that leads the Lord to seek to draw close and have more intimate union with us. Such a love led Him to "invent" a sacrament that would be a memorial of His passion, presence among men and a special kind of nourishment:[89] "at the Last Supper, on the night when He was betrayed, our Saviour instituted the eucharistic sacrifice of His Body and Blood. He did this in order to perpetuate the sacrifice of the Cross throughout the centuries until He should come again, and so to entrust to His beloved spouse, the Church, a memorial of His death and resurrection: a sacrament of love, a sign of unity, a bond of charity, a paschal banquet in which Christ is eaten, the mind is filled with grace, and a pledge of future glory is given to us."[90] *Thus the Christian life is strictly connected to the Eucharist because in it are contained all of the spiritual goods of the Church and it is placed as the center and root of evangelization and of all Christian life.*[91] It is the center and summit of the Christian life because to it is directed all that the Church and the faithful must accomplish; and it is also the root and source in that it contains not only grace, but the very Author of grace. Consequently, the life of holiness must be an eminently eucharistic life.

[84] Cf. *Reconciliatio et Paenitentia* 28–29.

[85] John Paul II, Enc. *Redemptor Hominis*, 4-III-1979, no. 20.

[86] Cf. *CIC*, can. 988:2; *CCC* 1458.

[87] Please note the recent exposition of the Church's doctrine on the Eucharist: John Paul II, Enc. *Ecclesia de Eucharistia*.

[88] *Jn* 15:13; cf. *Rom* 5:8; *1 Jn* 3:16.

[89] "Just as the living Father sent me and I have life because of the Father, so also the one who feeds on me will have life because of me" (*Jn* 6:57).

[90] *Sacrosanctum Concilium* 47; The citation found therein is from the *Roman Breviary*, for the Feast of *Corpus Domini*, antiphon for the Magnificat, Evening Prayer II.

[91] Cf. *Lumen Gentium* 11; *Presbyterorum Ordinis* 5 and 14; San Josemaría Escrivá, *Christ is Passing By* (2002), no. 87.

The Holy Sacrifice, not only a memory of an event, but rather a *memorial,*[92] a representation –or even better, a re-presentation—of the salvific event of the Cross that renews it and applies it throughout history. *The Mass, therefore, in its connection with the redemptive Sacrifice, is the culminating act of the history of salvation and for each person it is the culminating act of his own salvation and holiness.* The effort for holiness is found intimately connected with the participation in the eucharistic sacrifice; therefore the Church recommends frequent attendance at the Mass and asks the faithful that they participate at it, at least, every Sunday.[93]

A second aspect of the Eucharist is Communion, whereby the Christian unites himself intimately to Jesus and identifies with Him:[94] because such identification coincides with the goal of holiness, it is evident that *Christian holiness cannot prescind from assiduous reception of Communion.* The Eucharist reinforces the human energies in the path toward holiness; prevents perils, difficulties, and sins; facilitates one's ascetic battles; is the pledge of eternal life; and strengthens the union between men.[95] A person must be well disposed in order to receive communion fruitfully[96] and to thank the Lord with deep fervor.

Finally, it should be remembered that Jesus is found truly, really, and substantially present in the eucharistic species. This explains why the Church has multiplied the acts of eucharistic worship: visits to the Blessed Sacrament, expositions and benedictions, processions, eucharistic congresses, etc.; "the Church and the world have a great need of eucharistic worship. Jesus waits for us in this sacrament of love. Let us be generous with our time in going to meet Him in adoration and in contemplation that is full of faith and ready to make reparation for the great faults and crimes of the world[.] [May] our adoration [certainly] never cease."[97]

[92] The word *memorial*, that translates the Hebrew *zikkaron and the Greek upomnéma*, does not mean a memory of the past, but a divine invocation of today in which the salvific plan of the Lord is continued and made present.

[93] Cf. *Sacrosanctum Concilium* 106; *CIC*, can. 1247; *CCC* 2181; John Paul II, Apostolic Letter *Dies Domini*, 31-V-1998 (especially 46–49).

[94] Saint Augustine seemed to hear the voice of the Lord say: "I am the food of strong men; grow, and you shall feed upon me; nor shall you convert me, like the food of your flesh, into you, but you shall be converted into me." (*Confessions*, 7, 10, 16: NBA 1, 201), Translated by J.G. Pilkington. From Nicene and Post-Nicene Fathers, First Series, Vol. 1. Edited by Philip Schaff. (Buffalo, NY: Christian Literature Publishing Co., 1887.) Revised and edited for New Advent by Kevin Knight. http://www.newadvent.org/fathers/110107.htm. Although Augustine does not refer directly here to the Eucharist, this passage nonetheless expresses well the effects of Communion, and St. Thomas interpreted it in this way in: *S. Th.* III, q. 73, a. 3, ad 2. See also Saint Leo the Great, *Tractatus* 63, 7: CCL 138 A, 388.

[95] Cf. *Jn* 6:54; *1 Cor* 10:17–22.

[96] Cf. *1 Cor* 11:29; *CCC* 1385–1387.

[97] John Paul II, Lett. *Dominicae Cenae*, 24-II-1980, 3. The last sentence is our translation from the Latin original: "Adoratio nostra profecto numquam deficiat".

3.4.3 Prayer

"One does not live by bread alone, but by every word that comes forth from the mouth of God:"[98] *the Christian life requires attentive listening to the word of God; therefore one of the last recommendations of Jesus was: "watch and pray that you may not undergo the test,"*[99] and the first Christians followed these directions: "They devoted themselves to the teaching of the apostles [...] and to the prayers."[100] The living and personal relationship with God—Father, Son, and Holy Spirit—obtained in prayer, consists in being in the presence of God and in filial dialogue with Him. Thus *the universal call to holiness can be made concrete in the universal call to prayer, to loving familiarity with the Lord who incessantly invites each man to a mysterious, but real encounter in prayer.* So Jesus did and taught,[101] and so must his disciples also do: the prayer of Christians, like that of Christ, brings to full adhesion the human will with that of the loving will of the Father. It requires conversion and purity of heart, trust and filial audacity, humility, patience, and perseverance.[102] This is what is called contemplation, or rather to have one's "sight" of faith fixed on Jesus, in order to better know his will and to always identify oneself more with Him. Such contemplation does not demand a *fuga mundi (flight from the world)*, but rather one can and must carry it out in ordinary life and through earthly activities: "When our mind is intent on temporal things in order that it may rest in them, it remains immersed therein; but when it is intent on them in relation to the acquisition of beatitude, it is not lowered by them, but raises them to a higher level,"[103] and uses them to establish in each moment a loving dialogue with the Lord.[104]

> Man tends, by nature, toward dialogue, toward communication; and when he does not confer with someone else, he will speak with himself: memories, worries, doubts, desires, dreams, etc. The Christian life must aspire to a continual conversation with the Lord, in a real, deep, and generous way; thus the person detaches himself from egocentrism and makes himself more theocentric: he strengthens divine friendship, develops charity, rectifies his intention, acquires serenity and objectivity, and reinvigorates his moral action. No activity, even being earthly and material, impedes the constant relationship with God:[105] enough

[98] *Mt* 4:4; cf. *Deut* 8:3.
[99] *Mk* 14:38.
[100] *Acts* 2:42.
[101] Cf. *Mt* 11:25–26; *Mk* 1:35; 6:46; *Lk* 3:21; 9:28; 11:1; 22:41–42; *Jn* 11:41–42; 17.
[102] Cf. *CCC* 2600–2615.
[103] *S. Th.* II-II, q. 83, a. 6 ad 3. On the theme of contemplation in ordinary life, with special reference to the teachings of Saint Josemaría Escrivá, see: M. Belda, "Contemplativi in mezzo al mondo", *Romana* 14 (1998) 326–340, and the bibliography cited therein.
[104] "It is necessary to remind ourselves of God more often than we breath" (Saint Gregory of Nazianzus, *Orationes Theologicae*, 1, 4: PG 36, 15 C). Our translation.
[105] "It is possible, even in the market or during a solitary stroll, to make a frequent

> is a quick invocation, a glance at a sacred image, a smile intended for Jesus, a small sacrifice, or the offering of one's activities to God. These acts, however, do not happen spontaneously: a personal perseverance to sustain assiduous dialogue with the Lord is necessary. All saints and spiritual writers speak of the difficulties of prayer: discouragements, activism, distractions, dryness, lukewarmness, etc.; but all remember its importance and necessity in the development of the Christian life.[106]

In order to maintain such continual intimacy with God, it is helpful to dedicate concrete times to meditation and prayer; this is a duty—like that of holiness—that regards every Christian; the Scriptures make clear "the necessity for them to pray always without becoming weary."[107] The existential Christian reality has always witnessed to the need for determinate acts of piety, among which liturgical acts stand out in a particular way. Apostolic and ecclesial practices, the lives of the Saints and mystics, and theological reflection explain the *raison d'être* of such acts and offer lists of such practices directed at maintaining a friendly relationship with the Lord. The Second Vatican Council, taking up all of this tradition and speaking to lay persons, notes that "Only by the light of faith and by meditation on the word of God can one always and everywhere recognize God in Whom 'we live, and move, and have our being' (Acts 17:28), seek His will in every event, see Christ in everyone whether he be a relative or a stranger, and make correct judgments about the true meaning and value of temporal things both in themselves and in their relation to man's final goal."[108]

> Because the practices of piety recommended by various authors differ according to the various spiritualities, it can be said that all coincide with regard to certain essential elements: 1) liturgical prayer and the sacraments; 2) the reading and meditation of the Sacred Scriptures, of spiritual books, and of the lives of the Saints; 3) the methodic practice of meditation and mental prayer;[109] 4) vocal prayer;[110] and 5) the examination of conscience. It should be underlined, nonetheless, that

and fervent prayer. It is also possible in your shop, while buying or selling, or even while cooking." (Saint John Chrysostrom, *Eclogae ex diversis homiliis*, 2: PG 63, 585 A). Our translation.

[106] Cf. *CCC* 2725–2751.

[107] *Lk* 18:1. Cf. Saint Josemaría Escrivá, *Friends of God,* nos. 238–254 and 294–316.

[108] *Apostolicam Actuositatem* 4.

[109] "Mental prayer is none other, for me, than an intimate relation of friendship, frequently taking time to be alone with Him whom we know loves us" (Saint Teresa of Jesus, *Libro della vita*, Ch. 8, 5: *Opere*, 8ª ed., Postulazione Generale O.C.D., Roma 1985, p. 95), our translation.

[110] One cannot forget that when the disciples asked Jesus to teach them to pray, He responds with a vocal prayer, the Our Father: cf. Lk 11:1–4. Nonetheless, the importance of this type of prayer is not found in the exterior expression, but in the interior burst "That our prayer be heard does not depend on the number of words, but on the fervor of our souls" (Saint John Chrysostom, *Eclogae ex diversis homiliis*, 2: PG 63, 583 A): cf. *Mt* 6:7–8.

> these practices are not ends in themselves nor should they be practiced in a disconnected way: one treats here of acquiring a living synthesis that helps one to discover the divine presence in every situation of life; in fact, "fasts, vigils, mediations on the Scriptures, nudity and privations of wealth do not constitute in themselves perfection, but are instruments of perfection, because the end of the effort does not consist in these things, which are instead means at arriving at the end."[111]

3.4.4 The Cross

Jesus "said to all, 'If anyone wishes to come after me, he must deny himself and take up his cross daily and follow me.'"[112] *So all disciples of the Lord carry their cross daily, and in fact, the cross is what separates those who are authentic Christians from those who are not*: "The message of the cross is foolishness to those who are perishing, but to us who are being saved it is the power of God."[113] Hardly could there be a coherent Christian life without a willingness to die with Jesus, to complete in one's own flesh what is lacking in the Lord's Passion.[114] *This is Christian self-denial or mortification: its primordial purpose is identification with the Lord, but for such identification it is necessary to deny one's self, one's own ego.* "The way of perfection passes by way of the Cross. There is no holiness without renunciation and spiritual battle (cf. *2 Tim:*4). Spiritual progress entails the ascesis and mortification that gradually lead to living in the peace and joy of the Beatitudes."[115] Therefore, the Church has established some concrete times for penitential practice and highly recommends voluntary privations such as fasting or almsgiving;[116] furthermore, each person can and must seek out in his own life practices adapted to unite himself to Jesus's cross: mortification of the senses and of the imagination, of the intelligence and the will, the effort to serve others and to accomplish one's duties with perfection, the joyous acceptance of opposition, etc.

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[111] John Cassian, *Collationes*, I, 7, 3: CSEL 13, 14, our translation.
[112] *Lk* 9:23; cf. *Mt* 10:38; 16:24; *Mk* 8:34; *Lk* 14:27; *Jn* 12:24–25.
[113] *1 Cor* 1:18.
[114] Cf. *Jn* 11:16; *Col* 1:24; *1 Pet* 2:21.
[115] *CCC* 2015. "The Church makes her own the Apostle Paul's awareness of the mission he had received: 'Christ... sent me... to preach the Gospel, and not with eloquent wisdom, lest the cross of Christ be emptied of its power... We preach Christ crucified, a stumbling block to Jews and folly to Gentiles, but to those who are called, both Jews and Greeks, Christ the power of God and the wisdom of God' (1 Cor 1:17, 23–24). The Crucified Christ reveals the authentic meaning of freedom; he lives it fully in the total gift of himself and calls his disciples to share in his freedom" (*Veritatis Splendor* 85).
[116] Cf. *Sacrosanctum Concilium* 105, 109–110; *Ad Gentes* 40; *Presbyterorum Ordinis* 12; CIC, can. 1249–1253; *CCC* 1438.

3.5 The Virgin Mary's Role in Christian Sanctification

Without wishing to take up the contents of the dogmatic study of the Virgin Mary, it seems however necessary to bring to light the essential Marian dimension of the Christian life. *The role of Mary in the life of the Church and of individual Christians derives from her singular union with Christ and, in the last analysis, from her divine maternity.* "By her complete adherence to the Father's will, to his Son's redemptive work, and to every prompting of the Holy Spirit, the Virgin Mary is the Church's model of faith and charity. Thus she is a 'preeminent and . . . wholly unique member of the Church'; indeed, she is the 'exemplary realization' (typus) of the Church."[117] But her role does not finish there, because Mary "cooperated by her obedience, faith, hope and burning charity in the work of the Saviour in giving back supernatural life to souls. Wherefore she is our mother in the order of grace."[118] *Mary is truly the spiritual Mother of Christians, and exercises in our regard a constant and efficacious maternal mediation.* This is one of the most proposed doctrines of the Roman Pontiffs,[119] and was recently reproposed by the Second Vatican Council,[120] by the enyclical *Redemptoris Mater*,[121] and by the *Cathechism of the Catholic Church.*[122]

The maternal mediation of Mary is born out of God's good pleasure and "flows forth from the superabundance of the merits of Christ, rests on His mediation, depends entirely on it and draws all its power from it. In no way does it impede, but rather does it foster the immediate union of the faithful with Christ."[123] What the Church understands by the mediation of Mary is that, *according to the design of God, nothing is communicated to us from the immense treasure of the grace of Christ if not through Mary.* "So, just as no one can approach the highest Father except through the Son, so no one can approach Christ except through His Mother."[124] " Since she excels all in sanctity, and by her union with Christ and by her adoption by Christ for the work of man's salvation, she merited for us *de congruo*, as they say,

[117] *CCC* 967.
[118] *Lumen Gentium* 61.
[119] Cf. Blessed Pius IX, Bull *Ineffabilis Deus*, 8-XII-1854; Leo XIII, Enc. *Octobri Mense*, 22-IX-1891: DS 3274–3275; Enc. *Magnae Dei Matris*, 8-IX-1892; Enc. *Adiutricem Populi*, 5-IX-1895; Saint Pius X, Enc. *Ad diem illum*, 2-II-1904: DS 3370; Benedict XV, Lett. Ap. *Inter Sodalicia*, 21-V-1918; Pius XI, Enc. *Quas Primas*, 11-XII-1925; Pius XII, Enc. *Mystici Corporis*, 29-VI-1943; Enc. *Haurietis Aquas*, 15-V-1956: DS 3926; Paul VI, Enc. *Mense Maio*, 29-IV-1965; Ap. Exhort. *Signum Magnum*, 13-V-1967.
[120] Cf. *Lumen Gentium*, c. VIII.
[121] Cf. John Paul II, Enc. *Redemptoris Mater*, 25-III-1987, 28–47.
[122] Cf. *CCC* 963–975.
[123] *Lumen Gentium* 60.
[124] Leo XIII, Enc. *Octobri Mense*, 22-IX-1891: DS 3274.

what Christ merited *de condigno*, and is the first minister of the graces to be bestowed."[125]

> The mediation of Mary has a maternal character. The work of Mary possesses *a fortiori* all of the characteristics that are proper to a good mother: affection, understanding, tenderness, and unwavering love despite all circumstances. On the Cross, Christ experienced the suffering of abandonment foreseen by the redeeming design of the Father. Those who had been following him remained hidden, his enemies were instead surrounding him, watching him, and savoring their apparent victory. Jesus then "cried out in a loud voice, 'Eli, Eli, lema sabachthani?' which means, 'My God, my God, why have you forsaken me?'."[126] The price to pay for our sins appeared in all of its gravity. Nevertheless, even in that moment, the Father did not deprive the Son of the support of His mother, who stood "by the cross of Jesus."[127] Giving Mary to us as Mother,[128] Christ seems to want to explicitly confirm that no one of those who want to follow in His footsteps throughout the centuries will ever be deprived of the consoling and maternal presence of the Virgin Mary. From that moment Mary became the refuge of all Christians, always available, a motive of sure hope, and a presence that never fails.
>
> The Second Vatican Council underlines that Mary is also the model of the Church whom Christians must imitate. "But while in the most holy Virgin the Church has already reached that perfection whereby she is without spot or wrinkle, the followers of Christ still strive to increase in holiness by conquering sin. And so they turn their eyes to Mary who shines forth to the whole community of the elect as the model of virtues."[129] Our Lady is the most clear reflection of the moral life. "By accepting and pondering in her heart events which she did not always understand (cf. Lk 2:19), she became the model of all those who hear the word of God and keep it (cf. Lk 11:28)."[130]
>
> In response to the maternal protection and example offered by Mary, the Christian responds by entrusting himself completely to her. "The Marian dimension of the life of a disciple of Christ is expressed in a special way precisely through this filial entrusting to the Mother of Christ, which began with the testament of the Redeemer on Golgotha. Entrusting himself to Mary in a filial manner, the Christian, like the Apostle John, 'welcomes' the Mother of Christ 'into his own home' and brings her into everything that makes up his inner life."[131]

It needs to be emphasized that from the practical point of view, that is, from the perspective of the Christian who, despite his own limitations, desires

[125] Saint Pius X, Enc. *Ad diem illum*, 2-II-1904: DS 3370.
[126] *Mt* 27:46.
[127] *Jn* 19:25.
[128] Cf. *Jn* 19:26–27.
[129] *Lumen Gentium* 65.
[130] *Veritatis Splendor* 120.
[131] John Paul II, Enc. *Redemptoris Mater*, 25-III-1987, no. 45.

primarily and above all to live his life in growing union with Christ, the *entrustment to Mary constitutes the easiest, fastest, and most sure path for reaching the desired goal.* In this respect, these words of Saint Louis-Marie de Montfort are worthy of reflection: "One of the reasons of which so few souls reach the fullness of maturity in Jesus Christ is that Mary, forever Mother of Jesus Christ and fruitful Spouse of the Holy Spirit, is not formed well enough in their hearts. Whoever wants to have well matured and formed fruit must have the tree of life, that is Mary; whoever wants to have in himself the working of the Holy Spirit must have the fruitful and indissoluble Spouse, the heavenly Mary, who renders it fertile and fruitful."[132] The patron of moralists affirms it even more concisely: "One does not reach God but through Jesus Christ, and one does not reach Jesus Christ but through Mary."[133]

3.6 The Apostolic Dimension of the Christian Vocation

The active response of the Christian to the call to holiness includes also the active participation in the mission of Christ and of the Church. The Christian vocation "by its very nature is also a vocation to the apostolate."[134] We do not speak now specifically of the tasks derived from various ecclesiastical ministries, but rather of the apostolic effort instrinsically connected with the following of Christ that is proper, therefore, for all the faithful, even the lay faithful, as was emphasized by the decree *Apostolicam Actuositatem* of the Second Vatican Council and, more recently, by the Apostolic Exhortation *Christifideles Laici.*

The Church has the purpose of "spreading the kingdom of Christ throughout the earth for the glory of God the Father, to enable all men to share in His saving redemption, and that through them the whole world might enter into a relationship with Christ."[135] All of the activity of the Church ordered toward this end is called the "apostolate". *The radical call to the apostolate derives not from a ministry or from particular circumstances, but from union with Christ the Head,*[136] and therefore all of the faithful contribute to the apostolate, though in different ways and according to their own situations and circumstances. It is not possible to separate the following of Christ from the apostolate: "Just as there is no way to separate Christ, the God man,

[132] Saint Louis-Marie de Montfort, *Trattato della vera devozione a Maria*, 38th ed., (Rome: Edizioni Monfortane, 1987) no. 164.
[133] Saint Alphonsus Maria de Liguori, *Le Glorie di Maria*, Risposta ad un anonimo: *Opere*, vol. I, (Turin: Giacinto Marietti, 1880), 308.
[134] *Apostolicam Actuositatem* 2.
[135] *Ibid.*
[136] Cf. *ibid.*, no. 3.

from his role as redeemer. The Word chose to become flesh in order to save men, to make them one with him. This is why he came to the world; he came down from heaven 'for us men and for our salvation', as we say in the creed. For a Christian apostolate is something instinctive."[137] *The Christian apostolate, in the final analysis, is always evangelization and sanctification.* It is directed, in fact, "to manifest Christ's message by words and deeds and to communicate His grace to the world."[138]

> The apostolate is carried out spontaneously when the faithful set out to order their own activities seeking primarily union with Christ. Clerics accomplish it through the ministry of the word and the sacraments; those in religious life do so through prayer, works of charity, and eschatological witness; the lay faithful through their own Christian life, words, fraternal help, etc. The specific task of the laity is the Christian animation of the temporal order,[139] an important theme that will be treated further on.[140] Now we only wish to underline that the Christian apostolate involves for everyone also "the proclamation and presentation of morality,"[141] that is, proclamation through word and deed of the path to follow in order to be disciples of Christ.
>
> "Just as it does in proclaiming the truths of faith, and even more so in presenting the foundations and content of Christian morality, the new evangelization will show its authenticity and unleash all its missionary force when it is carried out through the gift not only of the word proclaimed but also of the word lived. In particular, the life of holiness which is resplendent in so many members of the People of God, humble and often unseen, constitutes the simplest and most attractive way to perceive at once the beauty of truth, the liberating force of God's love, and the value of unconditional fidelity to all the demands of the Lord's law, even in the most difficult situations."[142] This reality offers a perspective for the teaching and study of moral theology that should never be forgotten.

[137] Saint Josemaría Escrivá, *Christ is Passing By* (2002), no. 122.
[138] *Apostolicam Actuositatem* 6.
[139] Cf. *ibid.*
[140] Cf. Chapter IX, subsection 9.1.5.
[141] *Veritatis Splendor* 107.
[142] *Ibid.*

Part II

The Human Person Called by God: Moral Anthropology

Chapter 4

The Freedom of the Sons of God

4.1 A Comprehensive Vision of the Themes of Christian Moral Anthropology

We studied in Part I the vocation of the Christian to holiness, or rather, the call to participate in the Trinitarian life in Christ. Between the initial justification and the eschatological fulfillment of salvation sits the process of sanctification; the earthly and historical carrying out of the Christian vocation, whose more general aspects were discussed in the last chapter. Before dealing with the study of the normative aspect of moral activity (Part III), the nature and structure of the realities that must be regulated will first be studied analytically (actions, affections, etc.), as well as the mode in which they are regulated. That is to say, we first must study the conditions and structures that make a Christian a being capable of collaborating freely with God, elaborating–with the help of grace—a type of life (moral conduct) that not only is consistent with his identity as a son of God but also permits him to express himself and grow "to the extent of the full stature of Christ."[1]
Christian moral anthropology is not concerned with all the themes of theological anthropology, while the latter is nonetheless presupposed. Rather, the sole object of our attention is the Christian as a moral agent and thus inasmuch as he is free; for this reason, this chapter shall be dedicated to a discussion of freedom. *The Christian sees freedom as part of his self-understanding as a child of God in Christ, and therefore as the freedom of a child that desires*

[1] *Eph* 4:13.

above all to fulfill the will of the Father.[2] A prior study of the dimensions of the philosophical concept of freedom will provide us with the analytical framework necessary for adequately framing this entire theme.

Free behavior has a rather complex articulation. Such complexity unfolds itself along two axes. According to its horizontal axis, free behavior can be conceived as a process of communication between man, the world, and God, which, in its entirety, tends to carry out life in Christ in a concrete way. According to its vertical axis, free behavior represents the culminating moment and the supreme integrating principle of a set of processes, contents, and states of the psyche that, due to the phenomena of interconnection and retroaction[3] that verify themselves in it, possesses a certain circular character.[4]

In this process it is possible to analytically distinguish five fundamental elements.

1. The inclinations and tendencies, which we shall generically call desire, in the sense of being non-deliberated desire, that is, prior to a free choice.

2. The perception regarding the presence or absence of goods to which human desire is referred.

3. The affective reactions (sentiments, emotions, passions) which follow perception. The person reacts positively or negatively depending on the meaning that the perception has in relation to his tendencies.

4. Human acts or free acts, governed by the intelligence and the will, through which the person leads himself (conduct) toward the type of life he has decided to live; governing his own tendencies and responding, positively or negatively, to the call of God.

5. The habits: the principal expressions of the person's freedom, through which he manages to modify, for good or bad, his operative makeup, i.e. the inclinations; tendencies; and the capacity to judge, decide, or execute. Alongside the habits acquired through moral effort, Christian moral anthropology must study the infused habits (the infused moral virtues, the gifts of the Spirit) through which the Christian is guided by the Holy Spirit toward the life of the children of God in Christ. This fifth element—acquired and infused moral habits—closes the circle and becomes in reality the first element of the series, in the sense that in real

[2] Cf. *Jn* 4:34; 5:30; and 6:38 in reference to Jesus. See: *Jn* 7:17 in reference to the Christian.

[3] For example: reflecting on prior choices, changing one's mind, etc.

[4] In virtue of such circularity the study of moral theology presupposes the knowledge of the essential structures of being and of human action: spiritual faculties, sensitive appetites, conscience, etc., themes that are not possible to develop here in all their extension. Only the aspects which directly regard moral behavior will be treated.

> life the human inclinations and tendencies are not found in persons who are in a pure state. We find instead inclinations, tendencies, sentiments, etc., which are modified—for good or bad—by the moral habits, and therefore by the ethical effort of the person and by his cooperation with the saving action of the Holy Spirit.

Of the five elements just cited, the first three will be studied in Chapter V. They are of extreme importance for forming an exact idea of human freedom, its motivations, and of the goods that attract it. *Human freedom is certainly a spiritual reality, but not a pure option of a spirit that stands outside of space and time.* Our will is not a pure initiative, nor is it without roots. Man possesses inclinations and necessities connected with his corporeity, sensibility, and rationality, as well as "inclinations" and demands received with the grace of the Holy Spirit that can be satisfied only with free behavior. So, in the moral life, issues and needs proceeding from what are not free are continually elevated to the level of freedom, where they are always in some way elaborated and transformed, and sometimes corrected or even rejected. Freedom is nourished by motivations that often do not proceed from itself. Among these motivations, some proceed from inferior levels of the human psychophysical complex; others proceed from a superior ambit which is determined by the presence of the Holy Spirit in the Christian. In any case, without considering these elements attentively, it is not possible to have an adequate idea of man—including the Christian—as a moral agent. Man as a moral agent is not an indifferent agent who then comes in contact with a law, nor is he an autonomous subject that carries out transcendental choices outside of space and time.[5]

Two last elements remain to be discussed which are more familiar to moral theology: moral action and the moral habits. To these elements we shall dedicate Chapters VI and VII respectively.

4.2 The Dimensions of the Philosophical Concept of Freedom

Philosophical ethics, and the same goes for moral theology, presupposes the reality of human freedom. If we did not have the real psychological possibility of deciding freely between good and evil, there would not be moral conduct (man would not be able to "conduct" himself) nor could there be imputed any responsibility, and such things as praise or blame regarding our behavior would not make any sense. The juridical and political experience of humanity

[5] On the diverse conceptions of the moral agent in contemporary ethical approaches, cf. G. Abbà, *Quale impostazione per la filosofia morale?* (1996), 239–274.

relies on this same presupposition as well. Now, the existence of various factors which condition human action do not carry any essential argument against this reality of human freedom, for these conditioning factors always leave a certain margin for a final autonomous decision[6] and, as Hans Reiner observes, no one up to this point has succeeded in rigorously demonstrating that such a margin does not remain.[7] The negation of freedom depends on premises of a general nature whose legitimate applicability to the entire scope of reality has never been demonstrated.

It needs to be recognized, nevertheless, that human freedom is a reality so profound, multifaceted and, in some ways, mysterious, that it is easy to understand why it has been, still is, and probably always will be a principal object of man's reflection. It is primarily the task of philosophical anthropology and metaphysics to clarify the myriad theoretical aspects of the concept of freedom.[8] Here we must limit ourselves to mentioning the principal dimensions of the philosophical concept of freedom, in order to be able to adequately frame what Christian anthropology teaches regarding it.

If we consider the expression "we must have freedom in order to be free to be free", we see that *the concept of freedom is used with three different meanings.* The first part ("we must have freedom") means the *absence of restrictions or* coercion; the second part ("to be free") means *freedom of choice, the capacity to choose* autonomously; the third part ("to be free" again) means instead a condition that is the object of choice or of achievement, and represents *a quality of the purely ethical order,* whose nature we must explain further along. Around these three meanings the principal problematic nuclei of the concept of freedom can be divided, though certainly not all of them.

4.2.1 Freedom from Coercion

"Freedom from coercion" or "freedom from restrictions" is the condition of the person who is not compelled or impeded in his action by external agents. A slave, a prisoner, or any who are prohibited by law or by other people from expressing themselves or doing what they want, do not have this type of freedom. *It is a freedom that refers principally to the power to do externally*

[6] For an adequate evaluation of the types of conditionings raised by depth psychology, see A. Lambertino, *Psicoanalisi e morale in Freud*, (Naples: Guida, 1987), 429–474.

[7] Cf. H. Reiner, *Etica. Teoria e storia*, (Rome: Armando, 1971), 36.

[8] For a comprehensive vision of the history of the concept of freedom and the problems connected with it, cf. V. Mathieu, "Voce Libertà", in *Enciclopedia Filosofica*, vol. III, (Florence: Sansoni, 1957), 18–36; F. Inciarte, "Freiheit", in Various Editors, *Persönliche Verantwortung*, (Cologne: Adamas, 1982), 65–83; A. Rodríguez Luño, *Etica* (1992), nos. 111–115. A reader interested in an interdisciplinary approach can consult: F. Russo and J. Villanueva (eds.), *Le dimensioni della libertà nel dibattito scientifico e filosofico*, (Rome: Armando, 1995).

what one has decided to do, although it can also refer to the will inasmuch as it can undergo exterior coercion, for example, through some types of drugs or systems of torture. Diverse moral, political, and legal standpoints of view deal with this type of freedom and its many manifestations.

> The first reflections concerning freedom in ancient Greece before the time of Aristotle moved in this area. Freedom came to be defined in contraposition to that from which it was free, and so a fundamentally political notion of freedom came to be formulated: the citizen is free, he that is neither a slave nor a prisoner of war. In the Modern Age of Europe, this concept of freedom was the principal object of the attention of some philosophers, even if it came about in a very different context than that of ancient Greece. With the advent of modern science, the reduction of causality to material and efficient causality rendered reflection on freedom very difficult, since between the preceding state of the soul and the will that derives from it, a causal relation is established of a material/efficient type, understood as a necessary connection between two events or instances (given the motivation or state of soul A, action B necessarily follows). To affirm the freedom of the will was supposed at the time to deny the existence of this necessary connection between motivation and action and, consequently, causality. Now, since the theoretical exercise of the reason appears ruled by the categories of causality, to affirm freedom in limiting causality would be to support the impossibility of theoretically understanding human action, which would in the end be conceived as the irrational or unpredictable *par excellence.* For this reason, philosophers like Hobbes, Locke, Hume, and Voltaire prefer to think of freedom not as an internal property of the will, but rather as the capacity to externally put into effect what is willed. Freedom would be the power to act as one wills, but not the faculty of willing freely. Leibniz rightly pointed out to them that the true problem was the freedom of the spirit, and not that of the freedom of the arm or the leg, even if Leibniz did not succeed in resolving satisfactorily all of the problems associated with the freedom of the will.

4.2.2 Freedom of Choice

The second meaning of freedom looks no longer for the opportunity to do what which one decides to do, but seeks, rather, the absence of an interior necessity to make one decision or another. It is properly the freedom of the will, which is commonly called psychological freedom. The philosophical doctrine that denies the existence of this freedom is generically called *psychological determinism,* and it sustains, in synthesis, that the apparent choices of man are subjected in reality to an internal necessity, for example, the strongest rational motivation, in the face of which the will would be determined in its act. Indeed, the existence of diverse internal conditions which limit (or even

nullify) psychological freedom cannot be denied; this indicates that human freedom is limited, yet the presence of such conditions does not deny the reality of freedom; personal experience of the human act shows that, in normal conditions, the person freely chooses what she wills.

Freedom of choice, called "free will" by classical philosophy, implies the autonomous position of an act of the will, which situates itself between "I can" and "I am not compelled". On the level of lived reality it is linked to the awareness that, regarding my will, there must exist something that may as well not have existed, or that there does not exist something which could have. On account of freedom of choice, man is the cause and principle of his own acts (Aristotle), or in other words, the master of his own action (Saint Thomas). Man does not necessarily will what he wills, he can choose or take preferences, and when there is no real possibility of choosing he can nonetheless take an interior position: to affirm or deny, or to accept or refuse what is given to him. It is an interior freedom that is even compatible with coercion in extreme cases: the prisoner, for example, still has the freedom to take a position regarding his own situation, accepting it because he considers it a just penalty for his crimes, or by not accepting it because he knows himself to be innocent and unjustly condemned.

> Regarding the freedom of choice, it is possible to conceptually distinguish two dimensions: *self-determination* and *intentionality*. The idea of self-determination expresses faithfully, in our judgment, the essence of the free act.[9] It says in effect that in every free action, *it is I* (and not another person or an internal necessity) *who decides or determines*, and who, moreover, *decides or determines myself, or who I am to become*. The first aspect ("It is for me to decide, and not another in my place") is that recalled by the same concept of freedom. But the second is no less important: in every free action, even if one treats of an action that is directed toward another person or external matter, I decide also who I am; I modify and form my moral being. The second dimension of the freedom of choice, intentionality, is found in the opening of the will toward its object. The will is the faculty which the person uses to achieve his objectives and, in this perspective, freedom implies that the objects presented by the intelligence do not necessarily determine the act of the will. This is the perspective that is unduly made absolute by those who conceive of the discussions concerning freedom as being in the form of an opposition between determinism and indeterminism. With the idea of indeterminism regarding the objects of the will, it is possible to form only a negative (what it is not) and inadequate idea of freedom; for it implies a form of dependence and of determination qualitatively superior to the dependence and independence with respect to the objects of the will: this superior form of determination and dependence

[9] We follow here the analysis of self-determination of K. Wojtyla, *Persona e atto*, (Vatican City: Lib. Ed. Vaticana, 1982), Ch. III.

is *self-determination* or *self-dependence*. The person is not determined by the objects of the will, in that he is determined and ruled only by himself (self-determination). Self-determination would therefore be the fundamental dimension of freedom, while intentionality on the level of the objects is a derived dimension.[10]

Saint Thomas makes a distinction regarding the freedom of choice between the level of exercise and that of specification,[11] comparable to that already indicated between self-determination and intentionality, which we shall not treat of now. Rather, needing to be considered is the fact that for Aquinas the root of the freedom of choice is found in the universality of intellectual knowledge. The known objects are certainly individual, but of them we say that they are respectively a house, a table, etc. We know them, that is, also in their universality—house, table—and, in the final analysis, inasmuch as they are entities and goods. So, just as we hear something insofar as it produces sound, and see it insofar as it gives off light, so we comprehend something inasmuch as it is, and we understand it "practically" when we consider it as a good. The intellectual capacity is in itself related to being and the universal good, and for this it cannot be saturated by individual objects. The universal horizon of the reason—virtually infinite—renders possible the practical reason's freedom of judgment about the goodness of individual things, and makes it so that there always remains a real margin for the self-determination of the will, whose horizon—the motivation of good in general—participates in the virtual infinitude of the intellect. Therefore, no finite good (or infinite, but known in a finite way) is perfectly commensurate to the intellect and to the will so as to produce a necessary judgment or consent.

Usually the cognitive evaluation of concrete goods does not produce any necessity in the will. The person is not necessarily driven by the known goods; rather it is up to her to determine her own self in relation to the goods. It could be said that the personal will forms itself; it gives itself a formal determination while certainly making use of knowledge. It can also be said that the intellect merely introduces the formal determination that the will accepts. In any case, when faced with a good whose attraction seems almost irresistible, the person can will to not consider this good, and think of another thing, etc.: this is the case of those who do not understand "because they do not want to understand" and of those who do not listen "because they do not want to listen." We must conclude that the exercise of the intellect depends on the will, and conversely, that the intellect certainly guides in some way the apparent

[10] Cf. See the interesting observations concerning this in: M. Scheler, *Zur Phänomenologie und Metaphysik der Freiheit*, in Id., *Gesammelte Werke*, vol. X, (Bern: Francke, 1957) 176–177.
[11] Cf. *De Malo*, q. 6.

> transcendence of the will; for the person would reject the intellectual consideration only if such a consideration were held to be opposed in some way to the person's own good. To summarize all of this: the will is preceded by an intellectual act that is not objectively established by the will; nevertheless it depends on the will that such a consideration, and not another, be decisive on the level of practice. It is in this sense that we say that self-determination is the fundamental dimension of the freedom of choice.

4.2.3 Freedom as a Value and Ethical Task

We refer now to the value and moral task represented by the good use of the freedom of choice or, in other words, to the value represented by the free affirmation of the good and, in contrast, to the negativity that is introduced into the spiritual world every time that an intelligent being chooses what he knows to be evil or rejects what he knows to be good. We speak, therefore, not of something that man has by nature, in virtue of his ontological or psychological constitution, but of an object of choice and of achievement on the part of man that can be expressed negatively as a third type of freedom: "freedom-from". If previously we spoke of freedom-from-external-coercion and freedom-from-interior-necessity, now we shall speak of *freedom-from-disordered-impulses; the freedom from sin and from moral misery. It represents the ethical perfecting of psychological freedom: its being consolidated in the good through moral virtue, which is the goal sought by moral education.* Christianity had a very important influence in the formation of this third meaning of freedom, which it sees as the collaboration between human (psychological) freedom and the grace of God, with it not being, however, an exclusively theological concept.[12]

4.2.4 Freedom and Love

Philosophical reflection cautions that the consideration of freedom as "freedom-from", in the three indicated senses, is insufficient. All three cases treat of negative notions that paradoxically need what they deny in order to affirm themselves. We saw freedom, in fact, as a negation of coercion, of necessarily determined interior motivations of the choice, and as liberation from

[12] Concerning this, V. Mathieu writes: "To be free, it is necessary and sufficient to will it: but to say "no" to the will, one must not forget the intrinsic difficulty of such a volition, which does not depend on a simple act of the will, but is, rather, the most difficult of accomplishments. The problem is in succeeding to be free; and to have put grace and freedom in relation to one another was, for the knowledge of such a problem, a precious acquisition; precisely because it has drawn attention to the problems regarding the will [...] Even apart from any theological interest, a concept of "grace" is necessary to help one understand in all its depth, even in plainly philosophical grounds, the problem of freedom." (V. Mathieu, voce *Libertà* (1957), col. 23), our translation.

disordered passions and sin. But even if these three types of "freedom-from" were guaranteed, human life would not yet reach its fullness. Freedom, despite being a great good, does not satisfy the person's will, but is rather a necessary condition for reaching such a good. Without freedom, no good is a human good; but without good, freedom is empty. Freedom is the freedom of a person that "conducts himself": freedom of conduct. And the idea of "conducting oneself" grants importance to the question regarding the journey's destination; to the "why" of freedom. "Freedom-from" opens the door to "freedom-for" and, therefore, for the human good to be affirmed and the evil to be denied. *The study of freedom leads into a consideration of love which, in all of its forms, is always an affirmation of the good.*

In Part I of the book we reflected sufficiently on the response that Christian faith gives to the question concerning the ultimate good of man. Now we can note that a philosophical consideration of freedom can show that it presupposes the transcendence of the human will with regard to the goods that surround it, a reason why the choice, though motivated, is not determined by such conditions. Freedom seems animated by an aspiration toward absolute good. Saint Thomas Aquinas refers to this with the technical concept of *voluntas ut natura* (natural inclination of the will). He designates the intentional horizon of the *voluntas ut natura* with technical expressions that emphasize its potentially infinite breadth.[13]

In its initial natural givenness this aspiration is formal, and implies a *ratio volendi* and not properly a concrete act of the will. In every concrete person such an aspiration is personally developed in different ways, often with a development of a religious character; but in any case such a development is not a stranger to something very similar to faith, which thus shows itself to be an anthropological category of the first order. Moreover, in order to live we also need hope, an expectation of the good which does not always find empirical evidence, because people who lack these expectations become discouraged or disheartened and lack courage and trust, which are both necessary for the moral life. It is thus meaningfully said of such people that they have become demoralized.

[13] For Saint Thomas, the object of the *voluntas ut natura* is "ipsum bonum absolute" (*De Veritate*, q. 25, a. 1), "bonum conveniens aprehensum" (*De Malo*, q. 6, a. un.), "ipsam bonitatem" (*De Veritate*, q. 25, a. 1), "ultimus finis sui in commune" (*Ibid.*, q. 22, a. 7), "se esse completum in bonitate" (*Ibid.*), "bonum in commune" (*S. Th.* I-II, q. 10, a. 1), "finis ultimus, ut beatitudo et ea quae in ipsa includuntur" (*De Veritate*, q. 22. a. 5), "rationem appetibilitatis absolute" (*Ibid.*, q. 25, a. 1). On the Thomistic concept of the *voluntas ut natura* see: T. Alvira, *Naturaleza y libertad. Estudio de los conceptos tomistas de "voluntas ut natura" y "voluntas ut ratio"*, (Pamplona: Eunsa, 1985).

4.3 Freedom in Christian Anthropology

4.3.1 Freedom as a Gift of God in Light of Salvation History

Sacred Scriptures do not contain abstract philosophical reflections on the concept of freedom, even if some considerations of the wisdom literature reach a certain level of abstraction. Particularly *in the New Testament, an existential, or salvation-historical, perspective is prevalent, which sees freedom—shown to be sinful—as redeemed by Christ and called to cooperate with grace in order to freely become a good will and, eventually, a holy will.* In the general biblical perspective, freedom of choice is simply presupposed by what is affirmed about the behavior of individuals or the elect people, even if some explicit statements are not lacking. To be noted, for example, is that of Deuteronomy: "Here, then, I have today set before you life and prosperity, death and doom [Choose life, then, that you and your descendants may live"[14]; and another passage that is a little more abstract from *Sirach*: "When God, in the beginning, created man, he made him subject to his own free choice. If you choose you can keep the commandments; it is loyalty to do his will. There are set before you fire and water; to whichever you choose, stretch forth your hand. Before man are life and death, whichever he chooses shall be given him."[15]

> In the Old Testament, the episode of the Exodus occupies an important place in the study of liberation: God saw the oppression of his people and decided to free them from this situation of suffering and exploitation in order to lead them to the Promised Land.[16] One treats of a liberation that has a socio-political aspect, although it cannot be interpreted in either an individualistic sense nor in the sense of being the liberation of a class, for it pertains to the whole people of God. On the other hand, it is not for man to emancipate himself but to receive liberation from God,[17] although this does not exclude—but rather implies—human mediation.[18] The socio-political liberation, however, does not exhaust the meaning of the Exodus, and neither is it the principal meaning: the liberation is directed toward the Covenant, it has a transcendental value of relationship with the Lord, with its ritual, moral, and juridical prescriptions. The deep meaning of the Exodus is moral-religious; it is not so much a liberation aimed at avoiding human exploitation as it is to show the glory of God, who of course demands the disappearance of all kinds of oppression. This is seen more clearly when one considers that

[14] *Deut* 30:15,19.
[15] *Sir* 15:14–17.
[16] Cf. *Ex* 3:7–9.
[17] Cf. *Esth* 4:17f-z; *Ps* 17:3, 49; *Dan* 6:28.
[18] Cf. *Ex* 3:10–12.

> the Promised Land, more than a geographic area, designates the "people of God" in which reigns justice, as is especially emphasized by the prophets.[19] It is to be further noted, that in the Septuagint, the term *eleuthería* (freedom), used often in opposition to the idea of slavery, is not used in the context of the Israel's liberation from Egypt, nor is it used in the traditions relating to the return from exile.

It should be emphasized that freedom—both freedom of choice, and liberation from oppression—is seen, nonetheless, as a gift of God, always connected to the salvific action of Him who bestows it. The great value of human freedom as a gift of God became a characteristic thesis of Christian anthropology. "Authentic freedom" in man "is an exceptional sign of the divine image."[20] It marks the transcendence of man over the material world: "For by his interior qualities he outstrips the whole sum of mere things. He plunges into the depths of reality whenever he enters into his own heart; God, Who probes the heart, awaits him there; there he discerns his proper destiny beneath the eyes of God".[21] It can be considered that on the human level, i.e. the natural level, freedom is the greatest gift that God has granted to men.[22] *The value of freedom consists in the fact that only it renders possible the free affirmation of good for its own sake, and therefore, the love of God inasmuch as it is the supreme good; the act of free adhesion to the good that constitutes, on the part of the creature, the imitation or participation in the beatifying goodness of God.* Without freedom, union with God through love would not be possible, nor would man's eternal beatitude. "For God has willed that man remain 'under the control of his own decisions' (cf. Sir 15:14), so that he can seek his Creator spontaneously, and come freely to utter and blissful perfection through loyalty to Him. Hence man's dignity demands that he act according to a knowing and free choice that is personally motivated and prompted from within, neither under blind internal impulse nor by mere external pressure."[23] This perspective demands a movement toward freedom as an ethical task and that which we have called "freedom-for", and in such a direction goes, in fact, the Second Vatican Council: "Man achieves such dignity when, emancipating himself from all captivity to passion, he pursues his goal in a spontaneous choice of what is good, and procures for himself through effective and skillful action, apt helps to that end. Since man's freedom has been damaged by sin, only by the aid of God's grace can he bring such a relationship with God into

[19] Cf. *Jer* 31:31–34; *Ezek* 36:24–29.

[20] *Gaudium et Spes* 17; cf. Tertullian, *Adversus Marcionem,* II, 5, 5: CCL 1, 480; Saint Gregory of Nyssa, *De Hominis Opificio,* 16: PG 44, 184 BC; *S. Th.* I-II, Prol.; *Veritatis Splendor* 34.

[21] *Gaudium et Spes*, no. 14.

[22] Cf. Saint Josemaría Escrivá, *Christ is Passing By* (2002), no. 148.

[23] *Gaudium et Spes,* no. 17.

full flower."[24] In a little while, we shall return to this point, but first we shall propose another consideration.

The possibility of adhering freely to the good implies, and cannot but imply, the possibility of not adhering to it. The possibility of love implies the possibility of hate. In the face of the historical experience of evil, which sometimes took on brutal and degrading forms, doubts may arise that human freedom is worth the pain. It is a problem that has tormented the most acute philosophical and theological minds for ages. From the theological point of view we can respond that, if faced with the two possibilities and there were something to ponder, something to consider, then this was done by God once and for all and His wise choice was a yes to man; even knowing that to sustain man the blood of His Son would be shed. All of this means to say that *Christian anthropology, while holding firm the distinction between liberty and libertinism, between freedom as a value and the corruption of freedom, must affirm without any pusillanimity, with "divine" greatness of soul, the value of human freedom: an affirmation on which it is not possible to waver.*

4.3.2 "For Freedom Christ Set Us Free"

As was mentioned, the attention of the Sacred Scriptures, and particularly the New Testament, was focused on the last two dimensions of freedom, namely, freedom from sin and the freedom that expresses itself in love ("freedom-for")—as seen always from the standpoint of salvation history. A point of the highest importance is treated here on account of its soteriological, anthropological, and moral implications.

The central idea is that *all humanity can be free from sin only if, and in the measure in which, it accepts the salvific action of God in Christ.* This is brought to light with particular force in the *Letter to the Romans,* Saint Paul's most complete and articulate exposition of the Gospel. In this letter the present reality, the events of the past, and those that we await in the future are read in light of faith in Christ the Redeemer, whose work can be understood in its depth only in reference to the power of sin, which had reduced humanity to slavery—a sin that is the personified power (*hamartía* is in the singular) so characteristic of this Pauline letter.[25] Summarizing

[24] *Ibid.*; cf. *CCC* 1730–1733.

[25] Cf. St. Lyonnet, *Péché*, (Paris: DBS VII, 1966), 495; J.D.G. Dunn, *La teologia dell'apostolo Paolo*, (Brescia: Paideia, 1999), 130–134. On this theme, one may see also: G. Badini, *Il peccato nella teologia di San Paolo*, in P. Palazzini (ed.), *Il peccato*, (Rome: Ares, 1959), 95–122; L. Ligier, *Péché d'Adam et péché du monde*, 2 vol., (Paris: 1961); P. Grelot, *Péché originel et rédemption à partir de l'épître aux Romains. Essai théologique*, (Paris: Desclée, 1973); F. Varo Pineda, "El concepto teológico de pecado en la Epístola de San Pablo a los Romanos (Reflexiones en torno a Rom 1, 21 y 10, 3)", in Various Editors, *Reconciliación y penitencia*, (Pamplona: Eunsa, 1983), 417–430.

the significance of this, Prat writes: "Sin, having entered into the world and established itself as in a fortress, reigns their despotically. The empire of evil grows and expands always more; the corruption of the heart takes over the mind, and the perversion of the mind hastens the perversion of morals. Thus are explained, in the eyes of Paul, the progress of idolatry and the flood of vice."[26]

> From this state of subjection, humanity could not free itself. Saint Paul does not doubt that sin is stronger than the Law of Moses and the moral wisdom of the best pagan philosophers. If we consider human power alone, it has to be said that all of humanity was in slavery, Jew and non-Jew;[27] indeed, broadening the perspective, we could say we are all sinners without the help of the "power of God for the salvation of everyone who believes."[28] These affirmations are not professions of anthropological pessimism, but concise expressions of faith in Christ the Redeemer, and in the universality and necessity of the salvific works prepared and announced by the Law and the Prophets.[29]
>
> *Rom* 1:18–3:20 contains a massive indictment of the human race,[30] a judiciary process that often resorts to the style of a diatribe.[31] The indictment is addressed without doubt to all of humanity, Jew and Gentile: "for we have already brought the charge against Jews and Greeks alike that they are all under the domination of sin."[32] In appearance it speaks only of the human race before the coming of Christ, but in reality it is directed toward the entire human race—before and after the coming of Christ—if the latter is considered in its own strength, separately from the saving actions of God that were accomplished in Christ and received through faith.[33] Saint Paul does not mean to sustain the historical claim that there did not exist any righteous Jews or Gentiles before the coming of Christ.[34] This is proven by the reference

[26] F. Prat, *La teologia di San Paolo*, vol. II, (Turin: Società Editrice Internazionale, 1961), 55, our translation.

[27] Cf. *Rom* 3:9–20.

[28] *Rom* 1:16.

[29] Cf. *Rom* 3:21.

[30] Cf. J.D.G. Dunn, *La teologia dell'apostolo Paolo*, 101.

[31] Cf. A. Pitta, *Lettera ai Romani*, nuova versione, introduzione e commento, (Milan: Paoline, 2001), 81–86.

[32] *Rom* 3:9.

[33] This is one of the interpretations proposed by Saint Thomas: "Uno modo quod intelligatur: nullus est justus in se ex seipso, sed ex se quilibet est peccator, ex solo autem Deo habet justitiam" (Saint Thomas Aquinas, *Super Epistolam ad Romanos Lectura*, c. III, lect. II, n. 277; we cite the text of the Marietti edition, Turin-Rome: 1953).

[34] In *Rom* 2:10 it explicitly affirms that those who do good are worthy of glory, honor, and peace, "Jew first" and then "Greek". There is debate as to whom Paul is referring in *Rom* 2:9–10. The apocalyptic perspective needs to be distinguished from the eschatological perspective: cf. R. Penna, "Escatologia paolina. Aspetti originali dell'escatologia paolina", *Annali di storia dell'esegesi* 16, (1999), 77–103;

> to Abraham in chapter four of Romans: "Abraham believed God, and it was credited to him as righteousness."[35] And likewise this could be said of many other righteous persons in the Old Testament. The Apostle instead lays out his conviction of faith that there were not in the past, nor will there be in the future righteous men independent from the saving action of God in Christ. That is to say: there were in the past righteous persons (Abraham, etc.), but they were rendered righteous not by natural reason[36] nor by works of the Law of Moses,[37] as if men could overcome the power of sin without the work of Christ, but they were justified, rather, by faith, i.e. by their acceptance of the "justice of God" in Christ inasmuch as it was revealed to them (in many cases as a promise). Put synthetically: only God can overcome the conditions in which the human race was left after the arrival of sin in the world, and only in accepting through faith the free and gratuitous saving action of God can men be rendered righteous[38]: "Therefore, since we have been justified by faith, we have peace with God through our Lord Jesus Christ."[39]

The spread of sin does not mean that human freedom, understood as psychological freedom or freedom of choice, no longer exists or is completely incapable of doing any good works. This would not be the Pauline perspective. When the Apostle says: "Therefore, just as through one person sin entered the world, and through sin, death, and thus death came to all, inasmuch as all sinned,"[40] he intends to affirm two things and deny two others. He affirms that the regime of sin entered the world with Adam, and that under this regime all sin freely; and he denies just as strongly the fatalism which would consider sin as a merely isolated fact. He affirms the reality of the power of sin, while at the same time the idea that it should not be viewed as a *fatum* or necessity. The power of sin manifests itself in the act of sinning, and the act of sinning is a concession to the power of sin. So Schlier writes that "the regime of sin that from the beginning of history has penetrated into the world,

now also in R. Penna, *Vangelo e inculturazione. Studi sul rapporto tra rivelazione e cultura nel Nuovo Testamento*, (Cinisello Balsamo: San Paolo, 2001), 581–611.

[35] *Rom* 4:3.

[36] Cf. *Rom* 2:14–16.

[37] Cf. *Rom* 3:20.

[38] In this way, Estius also interpreted *Rom* 2:9–10, being opposed to the interpretation of Origen: "Hanc partem [v.10] Origenes de iis exponit sive Judaeis sive gentilibus, qui in Christo non crediderunt, opera tamen fecerunt justitiae, misericordiae, temperantiae, caeterarumque virtutum [". Estius refutes such an interpretation, because "constat enim sine fide Christi neminem posse bene vivere. Sed etsi in Christum non credens aliqua faciat opera bona, non ea tamen esse ejusmodi, quae gloriam et honorem et pacem apud Deum judicem mereantur" (G. Estius, *In omnes D. Pauli Epistolas item in Catholicas Commentarii*, vol. I, Parisiis: Ludovico Vivès, 1891, 42).

[39] *Rom* 5:1.

[40] *Rom* 5:12.

is not an idea or a hypothesis, but rather, it exists in concrete sinful actions. Likewise, the act of sinning is not an exclusively autonomous resolution of a single individual, who now and then falls in a healthy world, but rather, it always carries with it an assent that concretely makes that regime exist. To sin means, in short, to manifest the reality of sin in committing a sinful action."[41]

Only the grace given to those that believe in Christ renders the complete victory over sin possible. The power of sin, which accompanies the choice of the individual in order to manifest itself, draws its origins from the fundamental rupture of the relationship of man with God. Such power is overcome only when that relationship is renewed by the grace of Christ. Nevertheless, even the believer finds in himself an opposition between his interior self and his members; between an interior critical aspiration that distinguishes between the good and evil and another law that resists it and would like to prevent that aspiration from transforming his life for its good: "For I take delight in the law of God, in my inner self, but I see in my members another principle at war with the law of my mind, taking me captive to the law of sin that dwells in my members. Miserable one that I am! Who will deliver me from this mortal body? Thanks be to God through Jesus Christ our Lord. Therefore, I myself, with my mind, serve the law of God but, with my flesh, the law of sin."[42]Freedom from sin is an ethical task for the believer, a battle against the interior division which he experiences each day. But now, in Christ, victory is possible: "For freedom, Christ set us free."[43]

4.3.3 Freedom, Charity, and the Law of Christ

Faith in Christ opens the road to the fulfillment of Christian freedom in love, to a freedom that does not raise up barriers before the needs of one's neighbor, but understands itself, rather, as a gift of putting oneself in the service of others. He that was freed by Christ is at the same time a servant of Christ,[44] subservient to the law of Christ,[45] that is, the law of freedom,[46] and of love: "For the whole law is fulfilled in one statement, namely, 'You shall love your

[41] H. Schlier, *La Lettera ai Romani*, (Brescia: Paideia, 1982), 279.

[42] *Rom* 7:22–25. As is known, Saint Augustine, following some of the Greek Fathers and ecclesiastical writers, interpreted this passage thinking that the divided self was that of those who were not yet justified by faith in Christ. Afterward, primarily on account of the deepening of his thought caused by his polemic with Pelagius, he changed his mind to claim that here Saint Paul refers also to the Christian. For a discussion of the different positions taken by the ancient commentators, see the comment of Estius: G. Estius, *In omnes D. Pauli Epistolas item in Catholicas Commentarii*, vol. I, (1891), 141–143.

[43] *Gal* 5:1.

[44] Cf. *Rom* 1:1; *1 Cor* 7:22; *Phil* 1:1.

[45] Cf. *1 Cor* 9:21.

[46] Cf. *Jas* 1:25; 2:12.

neighbor as yourself.'"[47] *The Law of Christ is the movement toward the good and toward the love that comes from the Holy Spirit. Christian freedom manifests itself as freedom from one's own egoism, as availability for the service of God, justice, and neighbor.*[48] "For the love of Christ impels us [...] so that those who live might no longer live for themselves but for him who for their sake died and was raised."[49] Love for the brothers and sisters, for whom Christ died, can require even that in certain circumstances, in order to live in the fullness of ethical freedom, one not exercise his own freedom of choice.[50] Of notable interest for morality are the references in New Testament letters to freedom as a "pretext" or as a "cloak for maliciousness".[51] Christian freedom can never become "a pretext for living according to the flesh"; rather it encourages, through charity, one to serve God and others.[52] Christian freedom means walking according to the Spirit and it is therefore incompatible with the "works of the flesh."[53] In fact, in walking according to the Spirit and, therefore, distancing oneself from the "works of the flesh", the person reaches the fullness of his human and Christian freedom. Thus, the *free development of charity* that was poured into our hearts through the Holy Spirit,[54] *implies a precise regulation of our relations with others (peace, benevolence, etc.), and of our actions and of our sentiments (joy, patience, fidelity, meekness, self-control);* which is to say that grace gives rise to the consolidation of all the moral virtues, informed by faith and charity. Inasmuch as precise normative demands also derive from this reality, one rightly speaks of a law: the "law of faith",[55] the "law of Christ",[56] or the "law of the Spirit."[57] But inasmuch as this law is not a norm that compels from the outside, but a supernatural vital principle destined to develop itself with spontaneity and naturalness, one can and must speak of a "law of freedom"[58] or, simply speaking, of Christian freedom.[59] In any case, there does not remain any space for the dialectic contraposition between freedom and "the law of Christ" (or "the law of the

[47] *Gal* 5:14.
[48] Cf. *Rom* 6:18–23; *1 Cor* 9:19–22; *1 Thess* 1:9.
[49] *2 Cor* 5:14–15.
[50] Cf. *Rom* 14:13–15; *1 Cor* 8:7–13. See Chapter X, subsection 10.2.1.
[51] Cf. *1 Pet* 2:16 KJB
[52] Cf. *Gal* 5:13; *1 Pet* 2:16.
[53] Cf. *Gal* 5:19–26. For a deeper study of the action of the Holy Spirit in the moral action of the person, see G. Calabrese (Ed.), *Lo Spirito Santo teologo del popolo di Dio,* (Casale Monferrato: Piemme, 1997), especially the article of the editor, 109–147.
[54] Cf. *Rom* 5:5.
[55] Cf. *Rom* 3:27.
[56] *Gal* 6:2.
[57] *Rom* 8:2.
[58] *Jas* 1:25; 2:12.
[59] In this sense Saint Augustine affirms that "*libertas est caritatis*" (*De Natura et Gratia*, 65, 78: NBA 17/1, 476), and Saint Thomas Aquinas: "*quanto aliquis plus habet de caritate, plus habet de libertate*" (*Scriptum Super Sententiis*, lib. III, d. 29, q. 1, a. 8, ql. 3, s.c).

Spirit"), a perspective which is completely foreign to Christian anthropology.[60] An ulterior or converging characterization of Christian freedom can be obtained taking the Johannine path. In the framework of the self-revelation of Jesus Christ as the "way, the truth, and the life,"[61] come to be encompassed the words of Jesus reported by Saint John: "If you remain in my word, you will truly be my disciples, and you will know the truth, and the truth will set you free [is a slave of sin. A slave does not remain in a household forever, but a son always remains. So if a son frees you, then you will truly be free."[62] The theme of the son contains a double reference: "Both to Jesus who, as Son, frees the slaves (cf. V. 36), and to the believers who, in Jesus, must renounce the slavery of sin, behind which hides the devil, and become descendants of Abraham: that is, sons of God, as appears in the dialogue that continues in the successive verses."[63] There is, then, the household image: the slave does not always remain in the house, while the son, however, lives there forever.[64] Ultimately, in addition to the moral dimension of Christian freedom (freedom from the slavery of sin), the Johannine perspective adds the *ontological dimension of the divine filiation* of the Christian in Christ.

Furthermore, the Johannine perspective provides for the collaboration of man who is enclosed in *Christian freedom,* and this is referred to as *walking in the truth.* "I rejoiced greatly when some of the brothers came and testified to how truly you walk in the truth. Nothing gives me greater joy than to hear that my children are walking in the truth."[65] To walk in the truth is to follow Christ, because He is "the living, personal summation of perfect freedom in total obedience to the will of God. His crucified flesh fully reveals the unbreakable bond between freedom and truth, just as his Resurrection from the dead is the supreme exaltation of the fruitfulness and saving power of a freedom lived out in truth."[66]

[60] This is one of the fundamental ideas recurring in *Veritatis Splendor.*

[61] *Jn* 14:6; cf. Chapter II, subsection 2.4.1. On this theme, see: I. De La Potterie, *La vérité dans saint Jean. I: Le Christ et la vérité. L'Esprit et la vérité*, (Rome: Biblical Institute Press, 1977), 242–277. For a more synthetic and accessible study for non-specialists: R. Tremblay, "La 'Verità', condizione per la realizzazione della libertà dell'uomo", in F. Russo and J. Villanueva (eds.), *Le dimensioni della libertà nel dibattito scientifico e filosofico* (1995), 113–126.

[62] *Jn* 8:31–32, 34–36.

[63] R. Tremblay, *La "Verità", condizione per la realizzazione della libertà dell'uomo* (1995), 123, our translation.

[64] The image should be understood in light of the previously underlined double reference: "In the case of Jesus, the expression refers to his home with the Father, in practice, to his divine filiation, with the consequence that the Son is free in the measure in which He is in union with the Father, He lives permanently with Him. In the case of believers, the expression indicates that 'to be free' is, in contrast to slavery, to have an assured place in the house of the Father , that is, to enjoy forever His presence through communion with the Son." (*Ibid.*, 124).

[65] *3 Jn* 3–4; cf. *2 Jn* 4.

[66] *Veritatis Splendor* 87. As is noted, the necessary reference of freedom to the truth is

We can say in synthesis that Christian freedom presupposes freedom of choice or psychological freedom, but adds a new element to it: a stable moral "perfecting", or empowerment, of the capacity to choose with which the Christian can regulate his actions and sentiments in such a way as to be able to accomplish day by day the following of—and union with—Christ. This stable moral empowerment of the freedom of choice is ultimately established by grace and by the theological virtues, and in itself consists of the Christian moral virtues. Of the latter we have more yet to say, however, for the moment it is enough to note that such virtues are not the simple result of human effort, and still less are they expressions of an effort toward human self-affirmation, but rather they are the fruit of the collaboration between human freedom and divine grace given to those who believe in Christ.[67] A true collaboration is dealt with here, in which the two parts are equally necessary and equally insufficient. Grace cannot be directed but to a free creature, and human freedom, after the fall of the first parents, is not alone able to be exercised to freely will the good in all of its fullness, being itself stifled by evil inclinations and sin.

4.4 Transcendental Freedom and the Fundamental Option

In the second half of the twentieth century, some theologians considered it appropriate to distinguish a new and deeper level of freedom called *transcendental freedom*, whose exercise has come to be called a *fundamental option.* Not all conceived of the fundamental option in the same way, but in general such a concept was intended to overcome the atomistic conception of human acts, to deepen the relationship between the person and his singular acts, and to reach a more adequate understanding of the nature of sin.

It is a matter of fact that *some* authors (therefore not all), developing such a notion, formulated theses concerning freedom and sin which merited clear doctrinal reservations. For this reason, the encyclical *Veritatis Splendor* treated of this theme,[68] marking clearly the limits within which the concept of fundamental option is doctrinally acceptable.[69] However, according to this encycli-

vigorously emphasized by the different points of view in this encyclical.

[67] For a deepened understanding of the relation between freedom and grace, with special reference to Pelagianism, see: E. Gilson, *Introduzione allo studio di Sant'Agostino*, (Genova: Marietti, 1989), 182–191.

[68] Cf. *Veritatis Splendor* 65–70.

[69] In this doctrinally acceptable line, see, for example: A. Sarmiento, "Elección fundamental y comportamientos concretos", *Scripta Theologica* 26, (1994), 179–197; G. Gatti, *Opzione fondamentale sì, ma*, (Rome: LAS, 1994). A very interesting study of this notion, centered around the thought of Dietrich von Hildebrand, is: J.M. Yanguas, *La intención fundamental*, (Barcelona: Ediciones Internacionales Universitarias, 1994).

cal, it must be accepted "that the so-called fundamental option, to the extent that it is distinct from a generic intention and hence one not yet determined in such a way that freedom is obligated, is always brought into play through conscious and free decisions. Precisely for this reason, it is revoked when man engages his freedom in conscious decisions to the contrary, with regard to morally grave matter. To separate the fundamental option from concrete kinds of behaviour means to contradict the substantial integrity or personal unity of the moral agent in his body and in his soul."[70]

While recognizing that the concept of fundamental option is doctrinally acceptable within the limits marked by the encyclical *Veritatis Splendor*, we, nonetheless, do not adopt it because it is not consistent with our theological approach. For an ethics of virtue, the concept of fundamental option is not suitable for expressing the true *modus operandi* of the practical reason or of human freedom, and is therefore unfounded and superfluous. Furthermore, we believe that such a notion presupposes a certain philosophical background, determined by the "transcendental" conception of freedom, present undoubtedly in authors who have given it a more profound and consistent formulation, which renders it difficult and artificial to use within the limits marked by the Church's Magisterium.[71] In order to respect these limits, such a concept must be revised, giving rise to a hybrid approach which in the end loses its internal coherence.

> We would like to clarify that our position regarding the theorem of the fundamental option is not in response to the fact that it may have received or could yet receive doctrinally questionable or even erroneous formulations. We retain, rather, that the theorem of the fundamental option, considered in itself and its philosophical presuppositions, is substantially unfounded; it does not correspond to the realities of the conscience nor human moral action. In our judgment, we have adequately expressed previously the reasons for which they sustain this theorem.[72] Concerning the fundamental option, Angelini has written recently: "Similarly and equally problematic seem to be the results from those movements of recent moral theology which are inspired by the anthropology of Rahner. Despite repeated claims to the contrary, such a theology does not appear capable of giving an account of the historical mediation of the fundamental option. The so-called *fundamental freedom* of the person cannot be carried out other than through reference to determinate historical experience; in its historical determination, a particular action may disclose the unconditioned good (God) in varying degrees. The person understands that he has a determinate duty, but

[70] *Veritatis Splendor* 67.

[71] For basic information regarding the genesis of the transcendental point of view, cf. A. Rodríguez Luño, *Etica*, nos. 38–45.

[72] Cf. A. Rodríguez Luño, "Sulla fondazione trascendentale della morale cristiana", in Various Editors, *Persona, verità e morale*, 61–78.

nonetheless, it does not immediately manifest itself adequately to him as the unconditioned good."[73] To this is added a second remark: "The moralists of the 'transcendental' approach tend to establish a disassociation between the transcendental instance of conduct and its "categorial" instance; such a disassociation then impedes the person from giving a rational account of the process spread out in time as freedom knows it. Only through the distinction of time, in fact, is it possible that the person may reach the meaningfulness of time, in which alone his absolute self-determination may become possible—in fact, necessary."[74]

Nevertheless, Angelini adds that the pertinence and necessity of introducing into moral theory the concept of fundamental option cannot be put into doubt, provided that by such a category is not intended "a sort of arcane, transcendental super-choice, as being right alongside the many so-called 'categorial' choices."[75] The category should instead be understood as referring to a formal way of looking at human action: "As a matter of fact, in every free act his ultimate destiny is in question that can never be recognized as a destiny concluded in time."[76] We are in full agreement that in every act the ultimate fate of man is in question. But this was, and must still be, brought to light without need of recourse to a distinction like that between a transcendental level and another "categorial" level—a distinction which does not seem founded, and carries with it the already alluded to problems. It is enough to think of the writings of Saint Thomas, who at the beginning of his treatment of morality asks: "*utrum homo omnia quae vult, velit propter finem ultimum*."[77] Ultimately, we have sought to present the meaning of such a Thomistic thesis, recognizing also the more common objections raised against it. As Angelini emphasized, the fundamental option, rather than effectively showing the connection between the free act and the good accomplished by man, actually finishes by disassociating them: rendering it very difficult to maintain a unitary conception of man as a moral agent. What will be said in the next three chapters should further clarify the position we have taken.

[73] G. Angelini, *Teologia morale fondamentale. Tradizione, Scrittura e teoria*, (Milan: Glossa, 1999), 625, our translation.
[74] *Ibid.*
[75] *Ibid.*
[76] *Ibid.*, 626.
[77] *S. Th.* I-II, q. I, a. 6.

Chapter 5

Tendencies, Sentiments, and Passions

5.1 The Human Person as an Agent with Desires and Passions

We shall begin the study of the makeup of free behavior. In this chapter and in the successive chapter we shall move along from the base on upward along the vertical axis which we described synthetically in the first section of the last chapter.

First of all, the criterion according to which we situate the different experiences of the soul along the vertical axis needs to be clarified. *Moral experience renders us aware of actions or movements that are initiated, planned, and actively monitored by our own I*[1]*, or active personal center of consciousness*; so, for example, we concentrate our attention in order to resolve a mathematical problem or a moral dilemma, we make the effort to remember where we placed a book which we need, or we plan an outline of an article which we are going to write. *But experience also renders us aware of other experiences which are neither initiated nor actively planned by our I. We refer, for example, to the passions, sentiments, and states of the soul which proceed from a stratum of our psyche that stands underneath the level determined by the free initiative of the I,* which Phillip Lersch calls the *base affective stratum.*[2]

[1] Translator's note: The Italian word *Io* can be translated either I or ego. We decided to use the word *I* to avoid some of the connotations attached to the word *ego;* though *ego* will be used at times when it seems most appropriate.

[2] Cf. Ph. Lersch, *La estructura de la personalidad*, 4th ed., (Barcelona: Scientia, 1966), 80–81. This is the Spanish translation of the eighth edition of the German text (Aufbau der Person, Munich: J.A. Barth, 1962). We do not know of any English translation of

In pondering the meaning of this lower stratum of our psyche, it is helpful to not forget that even it has a horizontal dimension, that is, through it man communicates in some way with those who surround him (things, persons, and even God). These phenomena express an exclusively human way of manifesting the relational character proper to personal being. For each person "to be" is "to be with," his being is in reality "co-being," or "co-existing," in the most profound metaphysical sense in which it can have being.[3] We cannot imagine the existence of a person alone in the Universe by himself (either human or divine), without having the clear impression that such solitary existence would be an absurdity and a metaphysical tragedy. "To be-with," in the case of the human person, is carried out in accordance with his essential makeup. The phenomena of which we speak (tendencies, sentiments, passions) mean in this perspective that "being-with," in man, is also carried out as a coming together with others and with one's environment, so as to suffer a reaction or subjective modification caused by the presence or absence of persons or goods. In the last analysis, the human experience of "being-with" is also exercised as affectivity and as passion.[4] Man, therefore, is not only an active, but also a reactive subject and author of his actions.
In order to better understand this properly human mode of personal relation, it is necessary to consider man's corporeity as well as the particularly human synthesis of nature and freedom.

5.1.1 Body and Soul

The human person is a unified whole of body and spirit (body and soul), conditions to which Christian anthropology attributes notable importance.[5] The human body is not independent from the spirit, and neither is the human

this text. "Base affective stratum" is our translation of the technical term rendered in the Spanish translation as the *fondo endotímico*. This technical term shall be used several times throughout this book, sometimes in shortened form as *affective stratum*.

[3] Cf. L. Polo, *Antropología trascendental*. Tomo I: *La persona humana*, (Pamplona: Eunsa, 1999); F. Haya Segovia, *El ser personal. De Tomás de Aquino a la metafísica del don*, (Pamplona: Eunsa, 1997).

[4] In this line of thought, it can be of use to consult the interpretations of the passions proposed by: S. Harak, *Virtuous Passions: The Formation of Christian Character*, (New York-Mahwah, NJ: Paulist Press, 1993). In recent years there has been a rise of interest in moral psychology, which has been studied from diverse perspectives, not all of which have been useful. Cf. O. Flanagan and A. Rorty Oksenberg, eds., *Identity, Character, and Morality. Essays in Moral Psychology*, (Cambridge, MA-London: The MIT Press, 1990); J.J. Kupperman, *Character*, (New York-Oxford: Oxford University Press, 1991); A. Manenti and C. Bresciani, eds., *Psicologia e sviluppo morale della persona*, (Bologna: Dehoniane, 1992); L.A. Blum, *Moral Perception and Particularity*, (Cambridge: Cambridge University Press, 1994); J. Jacobs, *Practical Realism and Moral Psychology*, (Washington, D.C.: Georgetown University Press, 1995).

[5] Cf. *Gaudium et Spes* 14.

spirit independent from the body, while still giving it life. The dependence is so strict that even the most spiritual human activity is in a certain way permeated by bodily conditions in an analogous way to how the body is governed and given form by the spirit.

From the fact that the soul informs a body, it follows that man possesses the functions proper to vegetative and sensible life, beyond that of rational life. The principal functions of vegetative life are nutrition, growth, and reproduction. The sensitive life is characterized by its possessing, furthermore, a perceptive system (external and internal senses) and an appetitive system, through which the living being establishes a relationship with its own environment that tends toward the satisfaction of its vital needs. Through sense perception, the animal receives stimuli which proceed from the environment to which are given an instantaneous appetitive response: that is to say, a response that is automatic and not modifiable. Moreover, rational life, proper to humans, is characterized by intellectual knowledge and by free will. This enables humans to escape the necessity of the stimuli-response cycle, because between the stimuli and the response there lies an intellectual judgment and free decision of the will. These are the principles of human action: both in instances of satisfying vegetative needs, which are no longer regulated solely by instinct but generally remain subordinate to moral control, and in instances proper to the rational life: understanding of the meaning of things, interpersonal love, adhesion to ideals, the promotion of justice, technological development, etc.

> According to the three degrees of life—vegetative, sensitive, and rational—a hierarchy and interconnection is established between the vital human activities, and not simply a juxtaposition. We intend by interconnection the reciprocal dependence that exists between their functions, in such a way that the alteration of one of them provokes alterations in the others. Each degree of life presupposes the inferior degree, and is benefited by the positive development of the degree superior to it. So, on the one hand, the activities of the reason and the will presuppose the execution of knowledge and the sensible appetite, and these operations imply, on their part, the integrity of their organic bases: of the brain, etc. On the other hand, the ordered or disordered exercise of freedom modifies, positively or negatively, the dispositions of the sensible appetites by means of the moral habits (virtues and vices), and can even modify the vegetative functions (e.g. sicknesses that have a strong psychosomatic component).
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> The interconnection of which we speak should not be interpreted simply as causality. Causality takes place between different organisms, each of which constitutes its own integrated whole. But the soul and the body are not two diverse realities that interact with one another, so it is not exactly correct to claim that the soul exercises causality over the body

> or vice versa. Rather, body and soul constitute a single reality—a unified whole—in humans, in which phenomena occur that are initiated sometimes by dimensions more connected with corporeity and sometimes by dimensions which are proper to the spirit, but in the end both pertain to and reflect characteristics of the whole person.

In humans it is difficult to isolate purely sensitive or purely rational functions. From an analytical point of view, the difference between sensibility and rationality is clear, but on the functional and practical level sensibility and reason are exercised together. The phenomena of the human sensitive appetites are in practice different to those found in animals, because in humans they presuppose self-knowledge and the will. It is enough to think of the fact that in the human sensitive appetites there are moral habits that modify their intentionality.

Human corporeity and, in a functional sense, vegetative and sensitive life, imply a structure and set of already given vital activities and needs, which the active center of the person did not choose to possess. They are the realities through which the human person lives and acts and from which frequently proceed motivations, sentiments, and goals that each person elaborates and carries out in his own way. We have here a primary and important source of passivity, of emotions and passions, with it being well understood that passivity cannot be identified with negativity, slowness, or absence of meaning. Far from it, rather it means that the phenomena of which we speak do not come about from the initiative of the person's active source: his *I*.

5.1.2 Nature and Freedom

Even on the level of the higher human operations, those of knowledge and the will, not everything responds to the initiative or free choice of the person. There is on this level a synthesis of nature and freedom, that is to say, of two clearly diverse modes of action characterized, respectively, by a *determination ad unum* and by self-determination.[6] It is not that the concrete acts of the person's will are sometimes chosen freely and other times determined choices *ad unum*. Rather, this means that *the human free will also has a determinate nature*, and in virtue of this nature—and therefore, necessarily before and independently of any choices made by each particular person—the will possesses a (natural) inclination toward its own formal object, the *ratio boni* cultivated by the reason. This object possesses the same potentially infinite breadth as the reason and manifests itself as an aspiration toward happiness. We already know that Saint Thomas refers to such an inclination with the expression "*voluntas ut natura.*"[7] This natural inclination toward the intelligible

[6] Cf. *S. Th.* I-II, q. 10, a. 1, ad 1.
[7] Cf. Chapter IV, subsection 4.2.4.

good constitutes the basic intentional horizon of the human will and is the foundation of its capacity to move itself. It stands at the base of all concrete acts of the human will, which always remain free (*"voluntas ut ratio"*). Nothing can be the object of a free choice if it is not because the reason discovers in it the motivation of a good, whether it be real or only apparent.
The reason also possesses its own natural dimension, which Saint Thomas calls "*ratio naturalis*,"[8] that has as self-evident principles, of both a speculative and practical character, the so-called first principles. We shall occupy ourselves with these when we study the natural moral law. At the moment, it interests us to note that both the composition of body and soul, and the synthesis of nature and freedom, make it so that human freedom is not a pure initiative without roots. Man possesses inclinations and needs linked to corporeity, sensibility, and even rationality, which can be satisfied only by free behavior. *In the moral life, the person must confront and take a position with regard to issues and needs that he did not choose to have—one may think, for example, of the desire for fulfillment or happiness, the need for nourishment, or of the sex drive*—and the same goes for the moral life of the Christian, who must identify a mode of drawing up and accomplishing such goals that is proper to a child of God in Christ.

> The distinction between nature and freedom, valid as a distinction between two modes of action in the sense just explained, cannot be understood, conversely, as a distinction between persons on the ontological plane. In a human there are not, in fact, two beings: one natural and one personal. The human person is not a sum of nature and reason, but an individual of a rational nature. On the entitative level, the term nature does not come understood in a physical or cosmological sense, as a mode of being opposed to spiritual and free being; it is taken, instead, in its rigorously metaphysical usage, as the proper character or peculiar mode of being of an entity, seen as a principle of its specific dynamic. Nature in the metaphysical sense is not *per se* a *principle of uniform operations* (as is the nature with which physics is occupied), but a *uniform principle of operations*, which may very well be free, as is the case with humans. For this reason, the spirit is a nature in no less a degree than an irrational living being. The fact that it is proper to the spirit to be open to the universal does not invalidate the metaphysical concept of a spiritual nature.
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> From what we have said, it follows that the distinction between nature and person proposed by some authors[9] does not seem realistic, and among these authors this notion is strictly linked to the concept of a *fundamental option*. In this perspective, nature would be all that which

[8] Cf. for example *De Veritate*, q. 11, a. 1.
[9] Cf. K. Rahner, *Zum theologischen Begriff der Konkupiszenz*, in Idem., *Schriften zur Theologie*, vol. I, (Einsiedeln: Benziger, 1962), 377–414; F. Böckle, *I concetti fondamentali della morale*, 8th ed., (Brescia: Queriniana, 1981), 45–47.

is given to the human being at a level which is physical, psychological, spiritual, etc., while freedom—or the person—would be considered as the pure capacity for self-determination along with the consequences of its exercise. To nature would pertain all of the inclinations and spontaneous dispositions, while to the person would pertain the actions and dispositions caused entirely by the *I*. Such a contraposition between nature and person which would forcefully divide man, introduces an ambiguity in the determination of moral responsibility (one would not know in what degree that observed conduct could be imputed to the person, for it is mediated by "nature"), and renders particularly difficult a unitary articulation—within ethics, pedagogy, etc.—between the elements offered by philosophy with those given by medicine, experimental psychology, etc. ("Natural Science"); for between the two types of knowledge there tends to be produced the same lack of integration that there would be between the two parts of the human being: the object of these sciences.

It is true that the integration between different human dynamics can sometimes constitute a very difficult ethical-practical problem which must be solved by the moral virtues. But as we shall see immediately, to conceive of the tendencies and sentiments substantially as resistances, and not as basic motivations of freedom, seems rather reductive. In any case, on the ontological level the necessity to integrate diverse psychological and characterological elements in free action, with what this implies in terms of tensions and the search for balance, pertains to the essence of human freedom, and responds in the end to the metaphysical conditions of each finite spirit: the act is different from the agent, and derives from it; the agent is not pure act. Therefore, it is necessary to presuppose in the agent something not set there by himself, for its placement would be an act and an act cannot set its own intrinsic conditions, i.e. those which are determining from within the typical structure of the act. The act of a finite spirit presupposes a spiritual nature. And in this sense, the spirit also has a natural dimension, so that one treats of a nature which is open to being in all its universality (*anima quodammodo omnia*). In the case of the human person, the natural condition is a corporal and spiritual whole; for the human spirit, beyond being finite, is essentially the form of the body.[10] The contraposition between nature and person, of which we are referring, depends on an initial presupposition: that of interpreting the intentional openness of the human spirit as a sort of entitative quasi-infinitude (spirit as complete self-transparency and self-possession) which, in fact, would be limited by a foreign element, denominated as nature. This would all be as if the finitude were an extrinsic condition of the human spirit derived from its union with the body (the body would be, then, the prison of the soul).

[10] Cf. regarding this argument J. De Finance, *Etica generale*, (Cassano Murge (Bari): Tipografica Meridionale, 1984), 459–478.

5.2 Human Desire

Desire is the form in which the vital needs of humans are manifested in their interaction with the world. To each need corresponds an impulse, and vice versa. The animal impulses correspond substantially to vital needs (nutrition, reproduction, and defense). The human tendencies, on the other hand, have a broader subject matter (sociality, the need to love and be loved, the desire to know, religiosity, etc.), which is further expanded in the Christian. In both cases it is true that *the inclinations or tendencies constitute a principle of selection of meaningful objects and, for the human person, a principle of configuration for his own world.* The world of each of us is also the result of our own interests, even if one must add that man, in virtue of having more elevated processes of thought and of the will, can reach a high level of objectivity in the comprehension of himself and his world (even if, in practice, he does not always reach it). This cognitive dimension of desire is also extremely important for the perception of the good which, in lived moral experience, is not only the object of abstract reasoning but presupposes personal conditions and, in particular, an adequate affective balance. The "cognitive" dimension of desire is the anthropological foundation of the cognitive function of moral virtues.

We take on the study of human desire from two diverse, but complementary, perspectives. We shall occupy ourselves in the first place with the Thomistic conception of *natural inclinations*, which bring to light the ontological foundation of human desire. In the two successive subsections we shall assume the standpoint of psychology, in order to then proceed to tracing a "map" of the human *tendential*[11] system.[12]

5.2.1 The Ontological Dimension of Human Desire: The Natural Inclinations

The Thomistic conception of the natural inclinations[13] is a metaphysical concept, and not a psychological one, and it emphasizes the ontological foundation of the human tendencies. Starting from his metaphysical, creationistic conception, Saint Thomas considers that every created nature is ordained or directed toward its own perfection, and such a metaphysical *teleology* is generically called *natural appetite.* We are not treating yet of a conscious inclination or desire, but of an ordering of every being toward its comprehensive

[11] Translator's Note: We use "tendential" as a proper technical term for translating "tendenziale" as an adjective which denotes something pertaining to the tendencies.

[12] We are borrowing, with broad modifications, what was written by A. Rodríguez Luño, *Ética General* (2001), Chapter V.

[13] Cf. *S. Th.* I-II, q. 94, a. 2. A previous study of the natural inclinations had already been accomplished in the *Scriptum Super Sententiis*, lib. IV, d. 33, q. 1, a. 1.

end (a metaphysical teleology), prior to any act or option of the individual. The natural inclination or appetite manifests itself on the level of the psyche in a way adequate to the nature of each being. In animals it is manifested as instinct, in man as a conscious tendency that comes about as a sensible desire and an aspiration of the will.

Saint Thomas occupies himself with the natural inclinations primarily when he treats of the natural law.[14] In such a context, he underlines that *the practical reason "naturally" accepts as human goods all of those goals toward which man is naturally inclined* (the term of the natural inclinations). Therefore, it can be affirmed that the precepts of the natural law are related to the objects of the natural inclinations and constitute their basic moral regulation. The natural inclinations play a primary role in the constitution of the fundamental practical principles.

He distinguishes three main groups of natural inclinations:

1. The inclinations that humans have in common with all living beings: inclinations toward the conservation of being, self-defense, nutrition, etc.

2. Those which they have in common with animals: reproduction and the care of offspring, which in humans are extended to marriage, etc.

3. Those that are proper to man inasmuch as he is a rational being: sociality, friendship, knowledge, love, metaphysical transcendence, etc.[15]

This step in our study, as has been said, is only intended in order to put in evidence the relationship between the natural inclinations and the precepts of the natural moral law. It proceeds rather schematically, and certainly does not have the pretense of providing a complete picture of human goods. For the moral virtues contain the criteria according to which each of the human goods are sought and achieved, and only a detailed study of the particular moral virtues permits one to have a more complete idea of Saint Thomas's vision of fundamental human goods.[16]

5.2.2 The Phenomenology of Human Desire: The Tendencies

The concept of a tendency is used by empirical psychology to describe the dynamic which provides the basic motivations for human conduct. As pertaining to empirical psychology, the concept of tendency places itself at a level

[14] Cf. *S. Th.* I-II, q. 94, a. 2.

[15] Cf. *ibid.* Still useful is the study of D. Composta, *Natura e ragione. Saggio sulle inclinazioni naturali in rapporto al diritto naturale*, (Zürich: Pas-Verlag, 1971).

[16] Cf. *S. Th.* II-II, qq. 47–170.

of conceptualization diverse from that which is proper to metaphysics; and therefore, a tendency is not exactly the same thing as a Thomistic natural inclination. Nonetheless, they are complementary concepts, and it could be affirmed that the tendencies are the dynamic manifestations of the natural inclinations of humans on the level of experienced psychology.
The characteristics of the tendencies are as follows:

1. The tendencies are a psychological reflection of the vital law of communication between humans and the world. In the tendencies, our needs (the natural inclinations) are manifested as psychological necessities (hunger, desire to be esteemed, need to perform work, etc.) which must be satisfied through adequate behavior.

2. The tendencies are experienced as a movement which goes from a personal state of need toward a future state of satisfaction, which comes perceived in a still obscure and confused way and, in this sense, the tendency is something which anticipates and suggests.

3. Every tendency is aimed toward a goal. If the tendency opens itself up to the world as a "search for something," the goal is that "something" that comes to be sought. The sought goal is seen as a value, as a good in the broadest sense of the term, because it responds to our need.

4. The tendency presents itself as something that is given to us. It does not respond to an initiative of the individual; just as our need for food or to live in society do not respond to one of our personal choices. In this sense, it has a passive character.[17]

It is not difficult to understand that the tendencies, taken as a whole, tend toward the development and complete fulfillment of humans, and to have a "map" of the human tendencies would be the same thing as having a complete picture of human goods. Nevertheless, among psychologists there exist various conceptions concerning the concrete goods which integrate human development and perfection. Therefore, psychologists propose different numbers and classifications of human tendencies.

> Some authors sustain a *monothematic* conception of the tendencies, because they trace the entire teleological dynamic of the human psyche to a single fundamental motive, which would be, in the last analysis, the explanation and common denominator of all the phenomena of the *tendential* sphere. An example would be Freud, for whom the libido (sex drive) is the basic theme of the psyche's dynamic. One could also

[17] Regarding this characteristic of the tendencies, cf. P. Lersch, *La estructura de la personalidad* (1966), 99–100.

> mention Epicurus, Hobbes, Bentham, La Rochefoucauld, and Adler as having monothematic visions of human desire.
>
> Others—e.g. MacDougall, Pfänder and Klages— support a *polythematic* classification, in which diverse tendencies or groups of tendencies, not reducible to each other, come to be specified.
> A third group of authors, among whom stands Gehlen, propose an *athematic* conception, which, while recognizing the possibility of specifying a diversity of tendencies on the experiential level, consider them as transitory adaptations for the diversity of situations we experience. It would not be possible to trace a classification, according to these authors, because there does not exist any fixed *tendential* system in humans.

The classification of the human tendencies certainly constitutes a difficult problem for which perhaps there will never be found a solution which satisfies everyone. It is rather difficult to successfully express the richness of human life in a closed and definitive classification, and perhaps neither would it be helpful to try. Regardless, for morality it is important to be able to have at our disposal a descriptive foundation which, while being open and not definitive, is not reductive, that is, which does not exclude *a priori* essential dimensions of life and of human development: for the image itself of man as a moral agent is at stake. We shall adopt the *polythematic* classification proposed by Lersch,[18] which we consider open to further improvements, but which, in any case, seems to us to be sufficiently complete and balanced.

5.2.3 Classification of the Tendencies

Lersch distinguishes between three groups of tendencies: a) vital tendencies, which are the tendency toward activity, the tendency toward enjoyment, the sexual tendency and the experiential tendency to relive one's own emotive experiences; b) the tendencies of the individual *ego*, which comprise the tendency toward individual conservation, the tendency toward possession, the desire for power, the need to be esteemed by others, the desire for revenge, and the desire for self-esteem; c) the transitive tendencies, which are the tendency to be with others (sociality), the tendency to be for others, the creative tendency (creativity), the desire to know, the amatory tendency (tendency for romantic love), the normative tendency, and the transcendent tendencies.
Before briefly discussing the content of each of the tendencies, it needs to be recognized that the classification we present was elaborated by a phenomenological, descriptive perspective. It intends to describe human experiences as they present themselves in attentive observation, and not to establish whether they ought to be that way, or how they ought to be, morally speaking. It is

[18] Cf. *ibid.*, 99–183.

the task of morality to specify the criteria for distinguishing between impulses and sentiments which are ordered from those which are disordered.

Vital Tendencies — The *tendency toward activity* seeks activity and movement for its functional value. The organism has need of movement and it is through activity that life develops. No one manages to remain completely immobile for very long. The need for activity is very particular in children, and tends to diminish with the passing of years. There are, nonetheless, notable individual differences: from those who are hyperactive or restless to those who are sedentary or passive, the latter being those for whom any movement is a cause of anxiety and interior suffering.

The more elementary form of the *tendency toward enjoyment* is the impulse toward pleasure, already present from early childhood. Throughout the development of individual life, the content of this tendency suffers many changes, entering into relation with the content of other tendencies (alongside the pleasure of eating and drinking, the enjoyment linked to higher functions appears: from intellectual knowledge to humor, from affirmation to the pleasure of seeing one's orders followed). This tendency acquires a particular accent in hedonistic behavior, for which enjoyment is constituted as the final end of existence. The hedonist refuses all restraint or responsibility, avoids effort, is not demanding on himself, and in the end has a sense of interior emptiness (it might make one think of the character of Dorian Gray created by Oscar Wilde).

The *sexual tendency* is a basic form of the vital tendencies. It tends toward union with the other sex, and is distinguished from the simple tendency toward enjoyment for its objective reference to the transmission of life and, therefore, to human conservation. Its genetic relationship with the preceding tendencies renders possible that an individual may transfer its dynamic from an ambit of procreation to that of sexual pleasure alone, and then the search for voluptuousness is rendered autonomous, something that has negative consequences for the personal possibility of developing certain transitive tendencies in a mature way.

The aim of the *experiential tendency* is to make oneself aware of his own vitality, interiorly living and reliving the phenomena which arise from his own *base affective stratum* (fondo endotímico), whatever they might be. This tendency manifests itself especially in puberty, in concordance with sexual maturation. It admits of great variability between individuals, and in certain cases can manifest itself as a search for always more exciting experiences.

The Tendencies of the Individual Ego — The *tendency toward individual conservation* is, in its most basic evolutionary form, the instinct for the conservation of the biological-corporal existence of the individual that tends toward nourishment, defense, and flight from danger. But normally it goes

beyond this, leading man to elaborate and produce tools, resources, and all the useful things for life which we consider part of human culture in general.
The *possessive tendency* is in relation with this last tendency, but is only carried out properly in response to competition with other persons, and not dangers which come about from nature or natural disasters. Furthermore, while the instinct of conservation contents itself with maintaining life, the possessive tendency tends toward living better (even better than others), and gives rise to phenomena of hoarding goods which are not strictly necessary. It can be called, in a broad sense, egoism, and acquires various forms from what may be considered a "healthy egoism" to egomania. An egomaniac is cold and indifferent in confrontation with others, easily envious, aggressive, and inconsiderate, or—if the person feels weak—excessively worried for his security. This tends to inhibit the transitive tendency.
The *desire for power* tends towards the taking control of one's own environment, including other persons. It has a genetic relation with the two preceding tendencies, inasmuch as taking control of an environment is a sure means for securing one's own conservation and security, but it acquires its own autonomy in the form of a confirmation of one's own superiority, which goes well beyond the needs of conservation.
The *need to be esteemed by others* is manifested when the person seeks recognition and to be appreciated by others. It does not pertain to any conservation or affirmation of biological-corporal life, but to one's sense of his own value inasmuch as that value is recognized in the judgments of others. Primarily in the period of infancy, but in some measure always, the esteem of others is necessary for the normal constitution of one's personality. The normal and moderate need to be esteemed gives rise to the prudent, simple, and modest person. An exaggerated and disordered manifestation of this is the anxiety of notoriety: this is found in persons who seek, above all, to strengthen their ego through appearances. They will do anything (even faking sickness) to draw the attention and appreciation of others. They are often inflexible, obstinate, and emotionally sensitive persons with whom it is difficult to collaborate. Moreover, they can easily become isolated.
The *vindictive desire* draws a person to want to compensate for the damage done to his own aspirations (legitimate or illegitimate) causing harm to the person who is responsible. It follows the common conviction that "whoever erred must pay" or the law of "an eye for an eye, a tooth for a tooth." It admits of a diversity of forms and can manifest itself also as resentment. If it is well integrated and ordered, it is perfectly compatible with forgiveness and generosity.
The *desire for self-esteem* pertains to the sense of one's own value as a person, necessary for the normal constitution of the personality and for relations with

others. With the arrival of puberty, it manifests itself as a desire for autonomy, independence, and freedom. The exaggerated and disordered sense of one's own value expresses itself in negative (pride) and sometimes comical or even ridiculous forms. The complete absence of self-esteem is characteristic of some criminological typologies.

The Transitive Tendencies — The *tendency to be with others,* or toward sociality, responds to the need to live in society, to communicate, and to share. It is not simply a gregarious instinct: the existence of language makes it so that human life in common is something completely different. It presupposes individuality, and transcends it without negating it. Furthermore, at the level of personal character there exist differences between individuals, along a continuum going from introversion to extroversion.

The *tendency to be for others* means the awareness of a true responsibility toward others: true devotion. In the context of closer and more intimate communities, like the family, the different aspects of this tendency develop, which involve a profound sense of belonging and participation.

The *tendency toward creativity,* in its diverse expressions, is the impulse to leave a mark on the world and in society with the fruit of one's own work, whether that follows the paths of good performance or creative configuration. In any case, what is intended is to make a worthwhile contribution for others and society: to produce an increase in value.

The *desire to know* is the tendency to expand one's own vital horizon through knowledge. It is not simply the desire to know understood as a power or source of power, which would be put in relation with the tendency of the individual *ego*, but rather a search for meaning. From the evolutionary point of view, the aspiration for knowledge is first ordained to individual and social survival, to the conservation and affirmation of the *ego* on the vital, professional, economic, and social plane: as instrumental reason. Extended further, the desire to know is manifest in all its purity and depth as the autonomous search for meaning.

The tendency to love and be loved expresses the most radical interest of man. In part, its subject-matter crosses paths with that of the tendency to be for others. It comprises the diverse forms of friendship, benevolence, and love; as well as their opposites: enmity, malice, and hatred. For the morality of the person, this tendency is of capital importance.

The *normative tendencies* draw one towards abstract values: truth, justice, solidarity, etc., and express the human capacity and need to work for the affirmation of such values, seen as having foundations beyond that of the individual. If it is rightly interpreted, there is no doubt that this tendency represents a true self-transcendence of the person.

The transcendent tendencies seek "in the world a sphere of being that over-

comes the relativity and transience of the individual ego [...] What is sought and investigated is always an absolute."[19] They include the artistic impulse, metaphysical aspiration, and religious seeking. If the phenomenological analysis is limited to noting the existence of these tendencies and the forms which they assume in a determinate cultural or historical context, theological reflection inquires about their foundation. Such reflection discovers in the tendencies the fingerprints left in the human being of the One who created him through, and in view of, Jesus Christ.[20]

The process of specification brings to light these tendencies which draw humans to transcend themselves, and these tendencies possess a particular importance in the moral life. They tend toward participation in the world, but not in the sense of a desire for possession, but rather emphasizing the individual's dependence on and dedication to persons and values. The person feels himself attracted to something which lies beyond his own ego. In particular, the existence of a tendency to be with others and for others illuminates the anthropological foundation of justice and solidarity and, in more general terms, social and political ethics: they presuppose, in fact, the radical recognition of the other as one's equal. That is, man is able to recognize others as equals, and therefore, to promote their good as such, and not only because this has positive repercussions for his own good. This capacity for self-transcendence permits us to escape the annoying tendency to want to found social ethics exclusively on *self-interest.*

The autonomy of the transitive tendencies in relation to the tendencies of the individual ego manifests the importance in itself of the exercise of the reason which tends toward grasping the meaning of life and the world, and toward seeking after the absolute. This exercise of the reason, which we could consider as pertaining to wisdom, cannot be reduced to, or be substituted with, instrumental reason, that is to say, to the exercise of the reason, necessary as it is, oriented toward the control and utilization of nature with the goal of guaranteeing security and the expansion of the ego (desire to possess, for security, for self-affirmation, etc.). For the desire to know the truth does not represent, from the anthropological point of view, something less important and necessary than the goods connected with biological sustenance.

The coordination and integration of the diverse tendencies is not something that is already given, nor is it something that cannot be modified. It is conditioned by individual characterological differences, and also by the conceptions of life which are affirmed in each culture. Every individual temperament and every culture represents a different point of departure, at least partially unique, for reaching the balance and integration required for successful living.

[19] *Ibid.*, 170.
[20] Cf. *Col* 1:16; *Eph* 1:3–7.

The regulation and education of the tendencies is the work of virtue ethics. Furthermore, the Christian moral virtues, in light of the theological virtues, introduce new subject-matter and specific criteria for the regulation of these tendencies.

5.2.4 The Tendencies and the Will

Now we shall put forward the question of how the will ought to be conceived in relation to the tendencies, moving always on the level of a phenomenological description of the phenomena of the soul. Is the will an impulse of the *base affective stratum*, even if specific to man, or is it autonomous with regard to the tendencies we have just studied? As it was said at the beginning of this chapter, phenomenologically *the will* does not appear at first glance to be another tendency, but rather as a superior *command center* that *has the task of regulating "the traffic" of the tendencies, determining which impulse must be carried out and how it must be carried out, and overcoming the resistances that it encounters.* Nonetheless, some authors—for instance, Wundt—retain that the will is none other than a particular emotion, pertaining rather to the *base affective stratum.* Such an identification, however, does not seem acceptable.[21] The tendencies and the other phenomena of the *base affective stratum* have a point in common: they both come about out of a psychological stratum which is not directly controllable by the consciousness of the *I*, and tend *per se* to push the *I* toward a determined goal, anticipating and suggesting a form of behavior. They have a *pathic*[22] *(from the Greek pâschein*, to suffer) character. On the other hand, in willing, man senses in himself an active center which is conscious and unitary and not determined necessarily by any impulse, because it is he himself who actively decides to plan and direct. *In volition, the I experiences itself as an active command center that decides what to do and how to do it.* Raising itself over the pathic phenomena as an island on the sea, the experience of self-control and determination[23] is distinguished from the flux of *base affective* phenomena as stable land to the water in motion.
It is true that many of the types of objects of the will, considered "materially," proceed from the tendencies. Nonetheless, the distinction subsists, because the will appears as the personal decision-maker concerning that which the tendencies suggest. The person accepts or rejects, favors, elaborates, modifies, or suppresses. And then, the will is concerned with the accomplishment of the chosen goal, revealing itself as a force capable of again taking positions in response to internal or external resistances, and also of overcoming them.

[21] Cf. Ph. Lersch, *La estructura de la personalidad* (1966), 435–437.
[22] Translator's Note: We have opted to follow closely the use of this technical term which is, in fact, not a common Italian word and reads as "pathico."
[23] Cf. Chapter IV, subsection 4.2.2.

The autonomy of the will is certainly based on a specific dynamic, an aspiration which follows the reason, and therefore is not of the character of the phenomena of the *base affective stratum*; this dynamic is the "desire"[24] for the good which we previously called the *voluntas ut natura*: the constitutive inclination of the will as a desire for the good grasped as such by the reason. Therefore, the will is also desire, and desire which has a specific type of object, at least from the formal point of view, inasmuch as even the types of objects which proceed from the particular tendencies are now seen and evaluated in their relation to the comprehensive good of the person.

Nonetheless, *the human will is not only desire.* The human will is exercised also in a sense that is different from "receiving" or "tending," and for this we must come to a concept of the will which is not reduced to desire, to a "hyperteleological concept of the will," which is very characteristic of Christian anthropology.[25] For Greek thought, the will is a faculty which is fundamentally one that tends and desires; only knowledge came to be considered as an immanent operation which possesses its own end (the Aristotelian theory of friendship would perhaps oblige us to clarify further, but not to substantially change this last affirmation). Regarding this, "Thomas Aquinas says that more or less all of the philosophers intuited that God is *Logos*, but that God is love no one conjectured. It is clear that if the will is only a tendency and desire, it is not possible to put it in God (a god that desires is a mythical notion or aberrant gnostic illusion), for from this it would follow that God is imperfect, and an imperfect god is a contradiction. Only Christianity knows that God is Love."[26] *Love which consists in the giving of oneself represents a specific exercise of the human will. In the giving of self the elements proceeding from the tendencies can be reunited and purified to an axiologically superior level, particularly those which come about from the ambit of the transitive tendencies.*

5.3 Human Affectivity: Sentiments and Passions

If the tendencies are like an impulse that leaves the person and are projected on the world, orienting a person's pursuits and perception, *the emotions and sentiments are the interior resonance of the tendencies which come after per-*

[24] With regard to the will, we speak of desire in the sense of being deliberated desire, and not as a desire previous to choice, as we understand it with regard to the tendencies.

[25] Cf. L. Polo, "Tener y dar. Reflexiones en torno a la Segunda Parte de la Encícilica 'Laborem Exercens'," in Various Authors., *Estudios sobre la Encíclica "Laborem Exercens,"* (Madrid: BAC, 1987), 223–227.

[26] *Ibid.*, 224.

ception. In the sentiments there is captured and evaluated the response coming from the world to the question contained in the tendencies.
The sentiments have a passive character (they do not respond to the initiative of the I), and for this reason they are called passions in philosophy. The sentiments are not a taken deliberated stance, even if they tend and suggest a position and free behavior to take. In themselves they are organic, psychological, and spiritual reactions caused by the perception of the good (happiness, enthusiasm) or of evil (fear, sadness, worry) in relation to the tendencies. So, for example, given the fact that we have a need to be esteemed by others (and we did not choose to have this need), in response to the praise of an employer there spontaneously follows a feeling of satisfaction; to a reproach, a feeling of sadness or depression.

5.3.1 Phenomenology of the Sentiments

The sentiments or emotions are strictly connected with and dependent on the tendencies, and therefore it is fitting for them to have the same classification as the tendencies. There are sentiments linked to the vital tendencies, such as: pleasure or pain, boredom, repugnance, frivolity, annoyance, panic;—as well as there being sentiments linked to the tendencies of the individual ego: fear, agitation, trust or distrust, jealousy, contentedness or discontentedness, a feeling of inferiority, vengefulness, shame, sense of defeat, remorse, self-disdain. And, finally, there are sentiments linked to the transitive tendencies: sympathy and antipathy, love and hate, respect and disrespect, esteem and contempt, compassion, open-handedness, artistic sentiment, religious sentiment, etc. In order to elaborate a complete phenomenology of the sentiments, we would have to return to look at the different types of objects of each of the tendencies, identifying the particular sentiments associated with each of them. However, in order to avoid repetition we shall skip this step.
Psychology distinguishes sentiments from states of the soul. The first are emotions of brief duration and are punctual, while the second are more persistent. Nonetheless, an exact distinction cannot always be made, because there exist border phenomena. To understand the origin and dynamic of the persistent states of the soul is a rather complex question. Here we shall limit ourselves to note that persistent states of the soul can play an important role in the way a person lives. Consider, for example, persons who have a state of soul which is prevalently joyful or, in contrast, melancholic or almost depressed; or those who have a marked hyperesthesia of sentiment concerning their own power or value; or those who are conditioned by a persistent sense of inferior-

ity. Also well-known are the states of the soul marked by anxiety, pessimism, or a nihilistic sense of the world.[27]

5.3.2 The Passions

Now we shall discuss the appetites and the passions, and thus move back to terminology which is more familiar to moral theology. In living beings that possess knowledge, the natural inclinations manifest themselves as elicited appetites (for psychology, as tendencies), which act in dependence on an object which is intentionally grasped by the senses (sensible appetites) or by the reason (the will).

Saint Thomas gives the name passion to the acts of the sensible appetites. The Thomistic concept of passion does not have the negative connotation which it was later given. All of the acts of the sensible appetites are passions (joy, desire, the flight response, etc.), whether they are positive or negative acts, violent or non-violent, caused by the will, accepted by the will, or completely involuntary. Passion is not, then, in itself a violent impulse toward a morally evil action which renders the rational governance of behavior difficult, but is rather a normal component of human life, which often constitutes the motivational basis of a person's conduct.

Moreover, the term "passion" implies the idea of passivity, of something the person suffers or that happens in him and for which he has not taken an initiative (even if this is not always the case). Saint Thomas dedicates much space to the study of the passions.[28] This is due to the fact that he sees in them movements toward concrete objects here and now suitable to the sensibilities of the acting person, and which for this reason are seen as goods. Their integration into, or "dis-integration" from, the comprehensive good of the person is of capital importance for morality.

The different passions are distinguished according to three criteria:

1. Their generic distinction is based on the distinction between the two appetive faculties in human sensibility: *the concupiscible* appetite or the pleasure impulse, which has as its object the good which is pleasing to the senses, and the *irascible appetite* or the aggressive impulse, which has as its object the pleasing good which is difficult to reach or the evil which is difficult to evade, and which therefore requires effort and battle. According to this criterion, the passions of the concupiscible appetite are always different from those of the irascible appetite.

2. The differences between the objects of the passions inasmuch as they

[27] On the persistent states of the soul, see Ph. Lersch, *La estructura de la personalidad* (1966), 267–309.

[28] Cf. *S.Th.* I-II, qq. 22–48.

are good or evil, and according to the presence or absence of good or evil. The passions which tend toward a pleasing good which is absent (desire) are different from those which tend toward a pleasing good which is present (joy) and of those which tend toward an evil which is present or absent (sadness, flight-response).

3. Only for the passions of the irascible appetite is there a third criterion of distinction, which consists in the different type of movement one makes with respect to the same object: to draw closer to a difficult, yet possible to achieve, good (hope) or to distance oneself from the same good inasmuch as it is thought that it cannot be achieved (discouragement).

Having stated these three criteria, Saint Thomas distinguishes between the following passions:

1. In the concupiscible appetite: a) prescinding from the presence or absence of the object, *love* toward the good or *hatred* toward the evil; b) toward an absent object: *desire* for a good or *avoidance* of evil; c) regarding a present object: *joy* for the good or *sadness on* account of an evil.

2. In the irascible appetite: a) regarding an absent good which is difficult yet considered possible to achieve: *hope*; if it is seen as unachievable: *desperation* or *discouragement*; b) regarding an absent evil which is seen as possible to avoid: *audacity*; if seen as inevitable: *fear*; c) with respect to a present evil: *anger*.

The Thomistic classification of the passions intends to clarify the formal differences between the diverse acts of the sensible appetites, setting off to the side the diversity of goods and evils, that is, the specific subject-matter of the tendencies. Therefore, this leads to a classification which is extremely formal, and of little descriptive use. Desire is, for Saint Thomas, a passion, while from the phenomenological perspective the desire to eat, to know, for revenge, or to make another suffer are very different from one another. Nevertheless, this formalism is intentional. *The Thomistic perspective is not concerned with taking up the task of describing the diverse themes or contents of the phenomena of the soul, but to the task of classifying the role which such phenomena play in relation to the reason.* Aquinas is interested in distinguishing between the passions which impel from the passions which inhibit, because their respective modes of influencing the will are very different. Consider, for example, the different effects on marital consent there are between intense desire and fear. Marital consent given under the influence of fear is not perfectly voluntary and can easily be canonically invalid. In contrast, the strong desire to enter

into a marital bond renders the consent to be even more voluntary, except in the case in which it reaches a point that inhibits the use of the reason.
Nonetheless, it should be noted regarding the passions that when he discusses the moral virtues that must moderate them, Saint Thomas introduces thematic distinctions, according to diverse goods and evils, and so distinguishes, for example, the virtue which regulates the desire to eat (temperance) from the virtue which regulates the desire to know (*studiositas*) and from the virtue which regulates the desire to obtain the esteem of others (humility). This demonstrates that the study of the ethical virtues bears in mind the subject-matter of the different tendencies, just as psychology does.

5.4 The Passions in the Moral Life

5.4.1 The Role of the Passions in the Moral Life

The presence of the passions in human life is an absolutely normal reality, which pertains to the human psychological condition, as was said in the preceding pages. Sentiments and passions were present in the lives of the Saints and also in the life of Christ.[29] It would be rather abnormal if the passions and sentiments were absent; in fact, for this to happen is one of the characteristics of a psychopathic personality. If it is natural that every living being react in some way in the face of that which favors or compromises its own development, it is also natural that man, as a being gifted with sensibility, interiorly relive these reactions. The undisturbed development of one's being, or the acquisition of vital objects, marks interior experience with a positive affective tonality, whereas the frustration of a tendency provokes an affective state which is negative.
Neither does it respond to reality the idea that the passions are in themselves obstacles to the voluntariness of human action. Rather, *the passions of normal intensity are one of the most frequent motivations of voluntary action.*[30] The passions and the sentiments constitute the foundation which, further elaborated and when necessary moderated by the *I*, explains many projects of human action, as well as the psychological and moral character of the person. The passions are not, then, considered fundamentally as an enemy to combat or suppress, but as a part of one's being that is to be integrated and regulated according to the person's well-being, or comprehensive good.
The tendential and sentimental sphere, then, is not in itself something which resists or impedes the free expression of the person. Rather, it seems to us that the affective structure is one of the most clear and—at times—immediate ex-

[29] Cf. *Mt* 26:37–38; *Lk* 10: 21.
[30] Cf. *S.Th.* I-II, q. 6, a. 7.

pressions of the human moral personality. Except in the case of mental illness or of a personality disorder, each person definitively has the affective structure which, little by little, is given to him. It is true that innate temperament and certain educational, cultural, and social conditionings have sometimes a notable influence. However, in the last analysis, the person always maintains the capacity to take a stand in relation to them, and to control—consenting to them or opposing them—their effect on one's character. The fact that the character is formed and modified gradually, and that a point can be reached in which it is not easy to turn back, does not negate in the least that the cause of certain positive or negative personal characterological traits is the person's freedom, under the form of an effort, or negligence, to form one's affectivity.
What must, instead, be underlined above all is the role of the sentiments in the formation of our relationship with others and with the world. The sentiments manifest that we are not indifferent to others or the world. Rather, they cause in us interior reactions which permit us to evaluate their effect on our life and our projects. The joy of finding one's beloved, the fear in response to a new situation, or the shame experienced on account of one of our errors all respond to our way of experiencing and being affected by our encounter with the world and with others. *In the sentiments the world is seen from the perspective of value* and, therefore, the sentiments oscillate between being positive and negative*:* pleasure-pain, sympathy-antipathy, respect-disrespect, etc. Because of their positive or negative tonality, never being neutral, *the sentiments are called upon to play an important role in the perception of what is morally good or evil.*
This important role of the sentiments is, nonetheless, a rather delicate question, because they are, or can be, morally ambiguous. The moral ambiguity of the sentiments responds:

- To the fact that they depend also on the way and level in which a person's affectivity has been educated;

- To the fact that we are referring to a tendency or various tendencies, without being able to express in their content (positive or negative) the role which the relevant tendency or tendencies have toward the integral good of the person. Sentiments do not integrate themselves alone, but the integrating activity of the reason and will is always necessary.

If the tendencies and sentiments are adequately educated, the knowledge furnished by them will be true. With the words of Aristotle: the virtuous one "judges rightly of all things, and in each the truth is apparent to him. For, truly, there are good and pleasing things to each kind of disposition, and perhaps the man of value is distinguished primarily for the fact that he sees the

true in everything, inasmuch as he is the rule and measure of it."[31] Indeed, the cognitive dimension of virtue ethics –namely, the fact that virtues are not only necessary for doing what we know is good but, first and foremost, that they are necessary for knowing what is good to do in a concrete situation— has for its anthropological foundation the anticipative character proper to the question contained in the tendency and in the valuation contained in the sentiment. Moral virtue cultivates the capacity of anticipation and penetration proper to a morally ordered affectivity.

5.4.2 The Passions in Christian Anthropology

The Christian moral teaching sees the passions as natural components of the human psyche.[32] The Sacred Scriptures, in offering a portrait of man as he is, also emphasizes his emotional and passionate elements. At first glance, it could seem that Saint Paul considers the passions in an ethically negative perspective: "Now those who belong to Christ (Jesus) have crucified their flesh with its passions and desires"[33]; however, such an impression is not entirely accurate. He values negatively the "degrading" passions[34] which dominate those who do not know God.[35] In fact, in the context of Sacred Scriptures the passions do not receive a purely negative assessment, for they are attributed to God Himself,[36] and to Jesus.[37]

For the doctrine of the Church, *the passions become positive or negative from the moral point of view "only to the extent that they effectively engage reason and will. [. . .]. It belongs to the perfection of the moral or human good that the passions be governed by reason.* (cf. *S.Th.* I-II, q. 24, a. 3)."[38] In the state of original justice there existed a perfect harmony between the sensitive tendencies and the will; after the original sin, such harmony was altered, so that human nature was deteriorated by concupiscence or the desire for pleasure which comes about by sin and inclines toward sin.[39] Grace did not fully restore the lost harmony, so that fallen man, even if redeemed, does not possess complete self-control over his passions, though—with grace—he is able to overcome grave disorders.[40]

[31] Aristotle, *Nicomachean Ethics*, III, 4: 1113 a 28–32.
[32] Cf. *CCC* 1764.
[33] *Gal* 5:24.
[34] *Rom* 1:26.
[35] Cf. *1 Thess* 4:5.
[36] Cf. *Deut* 28:63; *Isa* 30:27, 30; *Am* 5:21.
[37] Cf. *Mt* 21:12–13; *Lk* 22, 44; *Jn* 11, 33–35.
[38] *CCC* 1767.
[39] Cf. Council of Trent, *De Peccato Originali*, can. 5: DS 1515.
[40] Cf. *Gaudium et Spes*, 17.

The Christian doctrine does not share the idea of some currents of thought—for example, those of the Stoics or Kant—for whom the passions are seen with an aura of suspicion, inasmuch as they would preclude the judgment of the reason and would be incompatible with authentic moral purity: for, this is true only for the disordered passions; ordered passions, instead, contribute to good moral behavior. *What is more in accord with human nature is to order all the passionate movements in a way that the entire man is engaged in the achievement of the good:* "so also does it belong to the perfection of moral good, that man should be moved unto good, not only in respect of his will, but also in respect of his sensitive appetite; according to Psalm 83:3: 'My heart and my flesh have rejoiced in the living God': where by 'heart' we are to understand the intellectual appetite, and by 'flesh' the sensitive appetite."[41] *The impulse toward the good can come out of the tendential sphere: it is not only the case that the passions can obscure the understanding, they can almost make it more acute in order to show the best way to please the beloved.* In such a perspective, Christian life cannot just be conceptual and voluntaristic, it must also take into account human sentiments, otherwise it would not be sufficiently rooted in the person and could easily fall apart (certainly, this does not mean it should be a "merely sentimental" religion). This does not deny that, in the actual economy of salvation, the passions frequently have a negative moral influence, but not because of the passions themselves, but rather a previous voluntary disorder: "Sin [...] produced in me every kind of covetousness."[42] *The disorder introduced by sin makes it so that every appetite seeks its own object independently from the rational order, so that instead of facilitating the right intention of the will, the passions render it difficult, on account of their 'dis-integrated act'*; such insubordination is clear enough from experience, but its origin due to original sin is clearly known only with the help of faith.

Furthermore, personal sins aggravate this disorder, especially in the areas in which sins are more frequent or intense in each person, for example, the tendency to be angry in a person who does not battle to remain calm, or does so weakly, etc. Sin obscures the understanding and causes the disorders of the passion to grow, which then more strongly incline one toward sin: "Rather, each person is tempted when he is lured and enticed by his own desire. Then desire conceives and brings forth sin, and when sin reaches maturity it gives birth to death."[43] In sinful man, the affective disorder is more prevalent and more difficult to resist: "For the flesh has desires against the Spirit, and the Spirit against the flesh; these are opposed to each other, so that you may not

[41] *S.Th.* I-II, q. 24, a. 3.
[42] *Rom* 7:8.
[43] *Jas* 1:14–15.

do what you want."[44] The Church Fathers compare the passions—good and evil—to trees which grow in the field of the soul; they can be easily pulled out of the ground when they are still young, something which is much more difficult when they have been allowed to grow for long; "so are the passions: when they are little, if we want, we tranquilly succeed in pulling them out. But if we leave them be because they are small, they will toughen, and the more they toughen, the more fatigue will they require. If they place their roots deeply in us, not even with great effort can we remove them by ourselves."[45] We can say in summary that also for Christian doctrine the sentiments and passions are most important parts of the human person; they are expressions of his being and moral specificity, and are at the same time one of the scenes where the great battle occurs between the good will and grace on one side, and sin on the other. The decisive point is that of the moral education and formation of the person's affectivity.

5.4.3 The Moral Education of Affectivity

Even if it is true that the sentiments and the passions are moral acts (good or sinful) only inasmuch as they are deliberately provoked or consented to by the person, it is still the case that the sentiments and passions, considered in themselves, are not neutral realities from the point of view of their value. We know that the sentiments and the passions move between a positive and negative pole (pleasure-pain, sympathy-antipathy, respect-disrespect, etc.), and therefore they play an important role in the practical perception of good and evil. The sentiments and the passions, considered in themselves, contain a first evaluative judgment, trace a position to take, and suggest a possible choice of action. In this perspective, *their value depends on the truth or falsity of the evaluation which they contain, that is, they depend on the correctness or incorrectness of the stance to be taken which they trace and on the morality of the line of conduct which they suggest or toward which they push.*[46] Their quality depends, therefore, on their content and on their intensity. It is good to rejoice over, or feel spontaneously attracted by, that which is truly good, and it is not good to react in the same way to that which is evil. Indeed, the positive sentiments are a great help in the moral life, while negative sentiments

[44] *Gal* 5:17. Cf. *Dominum et Vivificantem*, 55.

[45] Saint Dorotheus, *Insegnamenti*, 11, 115: SC 92, 361, our translation.

[46] "Strong feelings are not decisive for the morality or the holiness of persons; they are simply the inexhaustible reservoir of images and affections in which the moral life is expressed. Passions are morally good when they contribute to a good action, evil in the opposite case. the upright will orders the movements of the senses it appropriates to the good and to beatitude; an evil will succumbs to disordered passions and exacerbates them. Emotions and feelings can be taken up into the virtues or perverted by the vices." (*CCC* 1768).

are a notable obstacle, certainly not insurmountable, but significant in the long run. However, even good sentiments can be of an exaggerated intensity. The task of the moral education of the affectivity is to overcome the moral ambiguity of the affective phenomena, of which we already spoke, introducing in them a habitual order (the moral virtues), in such a way that not only will they no longer be an obstacle, but their promptness and immediateness can be cultivated for the good. The ordered sentiment permits one to judge and act with promptness, facility, and penetration, with a deep intuition of the good.

The moral education of the sentiments gives to the person a triple task: to interpret, evaluate, and direct or correct the affective phenomena.[47] To interpret means to try to understand the meaning of what one experiences. At times, it is a rather simple task: if, for example, one gets little or poor sleep for days on account of a sore tooth, it is not difficult to understand the cause of a sense of tiredness or of the lack of energy which makes every task seem difficult. In contrast, sometimes it can be extremely difficult: a person, for whom everything seems to be going well, can experience a sense of deep dissatisfaction, of bitterness, or of interior emptiness for which he cannot find any explanation. And since he cannot understand what is happening, it is impossible to effectively remedy it.

The phenomena, after having been interpreted, are then evaluated. We must put the good or evil which affectively interests us in relation with the comprehensive good of the Christian life, according to the vocation and circumstances of each individual. We think, for example, of a person who has decided to be a doctor. At the beginning of his professional activity he can spontaneously experience fear in response to patients with contagious diseases, or feel terribly burdened to have to frequently witness sick patients die, those with whom he had had a professional relationship whith a strong emotional side: this happens often in oncology. These sentiments manifest an evident difficulty, which the person must know how to evaluate. If he decides to continue the medical activity to which he is called, he will understand that he must learn to live with those sentiments, without being discouraged. He must seek at the same time to give meaning to his own suffering and that of others, to death and to his own activity relating to the dying, in such a way that his work becomes an element which positively contributes to his human and Christian growth. If, instead, the difficulty seems insurmountable, perhaps he will have to consider changing his activity. This evaluation of affectivity is an important normative function of the practical reason.

[47] Cf. regarding this point A. Malo, *Antropologia dell'affettività*, (Rome: Armando, 1999), 216–230.

After the evaluation of the affectivity follows its direction. To direct is, depending on the case, to accept the sentiments, with the spontaneous evaluation which they contain and the line of behavior which they suggest, or else to modify or reject them. So, for example, one rejects or modifies a negative sentiment which does not possess any objective foundation, but which, rather, leads to an injustice with respect to a colleague. This, for example, the person may understand as having come about specifically on account of his envy of a person in the same profession who is better at what he does. Sometimes it will even be the task of the practical reason to arouse or attempt to arouse feelings (consequent passions, of which we shall speak later).

5.5 The Influence of the Passions and the Sentiments on the Will

As we saw in the general outline of behavior, the sentiments and the passions come about first from voluntary action. It is normal, however, that *the passions reawaken independently of the will.* In some cases they can provoke an absolutely involuntary external act which, therefore, would remain without moral value; in such a sense it is affirmed that the morality of the matter does not consist in experiencing a determinate passionate impulse, but rather in allowing one.[48] Nonetheless, normally the will is in grade to exercise a "diplomatic" control or mastery over the passions[49]; we say diplomatic because we do not treat of a complete mastery: there is always the tendency of the sensibility toward its proper object, which the will can redirect toward the good of man. Therefore, *usually, the influence of the passions on action depends on the consent of the will.* On the other hand, the grace of God, profoundly strengthening the will itself, renders it more apt to be the unifying center of the person, and augments its mastery over sensibility; this makes it so that the saints may reach a notable equilibrium regarding the movements of the passions.[50]

[48] Translator's note: In original Italian there is a play on words between feeling (sentire) and allowing (consentire) the passionate impulse.

[49] Cf. Aristotle, *Politics*, I, 5: 1254 b 6.

[50] "How sweet did it suddenly become to me to be without the delights of trifles! And what at one time I feared to lose, it was now a joy to me to put away. For Thou cast them away from me, Thou true and highest sweetness. Thou cast them away, and instead of them entered in Yourself, — sweeter than all pleasure, though not to flesh and blood; brighter than all light, but more veiled than all mysteries; more exalted than all honour, but not to the exalted in their own conceits. Now was my soul free from the gnawing cares of seeking and getting, and of wallowing and exciting the itch of lust. And I babbled unto You my brightness, my riches, and my health, the Lord my God." (Saint Augustine, *Confessions*, 9, 1, 1: NBA 1, 255). Translated by J.G. Pilkington. From Nicene and Post-Nicene Fathers, First Series, Vol. 1. Edited by Philip Schaff. (Buffalo, NY: Christian

The affections which are felt before the will makes a decision in their regard are called antecedent passions. Sometimes they appear spontaneously without any preceding warning, so that they are even less approved by the will (*motus primo primi*); furthermore, when they are felt, they can even precede free decision (*motus secundo primi*). Finally, a movement of the passions can persist for a while even if it has been rejected by the will; in such case it continues to be an antecedent passion. *These antecedent passions can influence the will in a two-fold way:*

1. conditioning the practical judgment of the reason in a way so as to present as suitable, here and now, that which the passions desire; when the passion is disordered it can present as a suitable good an "apparent good," even contrary to a virtue which is possessed; that is, the passion can influence the judgment, leading it to judge a concrete human action in a way contrary to what the person would think habitually or in general;[51] when the passion is ordered, on the other hand, it strengthens the practical judgment to seek the real good.

2. A second way in which the antecedent passions influence the will is in weakening it: the interior energy of the person is not unlimited, and when a passion is very strong it appropriates to itself the capacity of one's attention and operative energy, leaving little space for a controlling action on the part of the will.[52] This does not present much of a problem when the passions and the will are directed in the same direction, but when they are directed in contrary directions, or at least divergent, a robust passion can take control of the person.

Beyond the antecedent passions, which have a great importance in morality, there exist also *consequent passions*, whose movement derives from the will, either because they are instigated by a voluntary resolution, or because once they come about in a spontaneous way they are then freely approved. Finally, a passion can be the reflex of a strong voluntary effort: something called a *concomitant passion.* It is not sought for itself, but appears contemporaneously to the voluntary act; if accepted freely, it becomes a consequent passion.
In the next chapter we shall study in what measure the passions can affect the moral imputability of a voluntary action.

Literature Publishing Co., 1887.) Revised and edited for New Advent by Kevin Knight. http://www.newadvent.org/fathers/110109.htm.

[51] "It depends on the passions that something appear now as a good to be achieved. This is the case for him who through fear of shipwreck it seems good to throw into the city the vessel's cargo; or for him who suffers a strong concupiscence and it seems to him good to perform a dishonest action. Nevertheless, the judgment whereby the person judges that something is good in itself and absolutely, depends instead on the inclination of the habit." (*In Decem Libros Ethicorum*, lib. III, lect. 13, n. 520), our translation.

[52] Cf. *S.Th.* I-II, q. 77, a. 1.

Chapter 6

The Nature, Structure, and Evaluation of the Moral Act

6.1 Concept of the Moral Act

Following the plan which we laid out in the first paragraph of Chapter IV, we now pass to a study of free acts. In these are expressed the freedom of the human person and his response, positive or negative, to the divine call to be saints in Christ.[1] *In the proper sense morality and immorality pertain only to free acts or, more exactly, to the person inasmuch as he acts freely.* Morality (in generic contrast to amorality) and freedom have the same extension: all free acts, and only these, are moral. The fact that what is freely planned or carried out is private, interpersonal, or political does not make any substantial difference: the use or abuse of alcoholic drinks at home, fulfillment or non-fulfillment of professional duties, and the legislative acts by which a political community gives itself juridical structure, are realities which equally pertain to the moral order (understood in a generic sense). The reason for this identical extension is simple: all that is not governed in man in necessary form by instinct or by some type of causal necessity must be designed by the practical reason and chosen by the free will, and precisely this is what it means to be moral.

To be moral or immoral is a specific quality and is, in a rigorous sense, exclusive to the personal will and its acts. The acts of the other human faculties

[1] Cf. *Eph* 1:4–5.

—thoughts, memories, acts of the nutritive or generative faculties, economic activities, etc. and not to mention the instinctive impulses, the passions, and the sentiments—are only moral or immoral inasmuch as they are willed or consented to freely. Both the free acts of the will and the acts of the other faculties that are freely commanded, or to which are freely consented, come to be called *human acts* because it is proper to the human person to have freedom in performing or not performing his acts, to perform them in one mode or another, deliberately determining their intentionality. Human acts are acts of which man is the master.

For these characteristics, human acts are distinguished not only from the tendencies and the sentiments, whose intentionality is determined by the *base affective stratum*, but also from the *acts of man*. *Acts of man* are, for example, physiological processes which are performed without the intervention of the will (e.g. digestion), or actions which are simply reflexes, that is to say, involuntary motor responses to a stimulus which come about from a peripheral sense organ, and not from a personal decision (to pull one's arm away from a hot object which suddenly burns the skin). We deal here, in each case, with processes or actions which occur *in man*, more than being performed *by man*.

All of this can be summarized by saying that what is distinguishing about a human act—and therefore a moral act—is the fact that it is a voluntary act. It still needs to be defined, then, what is a voluntary act and what are its characteristics.[2]

[2] Regarding the theory of action, beyond the studies that will be cited through this chapter, see: G.E.M. Anscombe, *Intention*, (Oxford: Basil Blackwell, 1957); S.L. Brock, *Action and Conduct: Thomas Aquinas and the Theory of Action*, (Edinburgh: T&T Clark Ltd., 1998); J. De Finance, *Saggio sull'agire umano*, (Vatican City: Lib. Ed. Vaticana, 1992); A. Fumagalli, *Azione e tempo. Il dinamismo dell'agire morale,* (Assisi: Cittadella Editrice, 2002); A. Léonard, *Il fondamento della morale*, (Cinsello Balsamo: San Paolo, 1990), Ch.I; T.H. Nisters, *Akzidentien der Praxis. Thomas von Aquins Lehre von den Umständen menslichen Handelns*, (Freiburg–Munich: Alber, 1992); M. Rhonheimer, *The Perspective of Morality. Philosophical Foundations of Thomistic Virtue Ethics* (Washington, DC: The Catholic University of America Press, 2011), ch. III; P. Ricoeur, *La semantica dell'azione*, (Milan: Jaca Book, 1986); D. Westberg, *Right Practical Reason. Aristotle, Action, and Prudence in Aquinas*, (Oxford: Clarendon Press, 1994); W. Zagar, *Acting on Principles: a Thomistic Perspective in Making Moral Decisions*, (New York–London: University Press of America, 1984).

6.1.1 Definition of a Voluntary Act

The voluntary act can be defined as *an act which proceeds from an intrinsic principle and is accompanied by formal knowledge of an end.*[3] We shall now explain the diverse elements of this definition:

1. The voluntary act "*proceeds from an intrinsic principle*"; that is, from an operative faculty of the acting person, which is the will. Voluntary acts come about from the interior of man, and it is this which distinguishes them from forced or violent actions, imposed by an external cause against the will or desire of the agent.

2. *"Formal knowledge of the end" means that the person knows the reason for which he performs the act, and knows it expressly as an object of his action*, evaluating its suitability, in such a way that the pondered knowledge of the object is the origin and cause of the action. Therefore, voluntary action is also distinguished from movements or simple spontaneous processes which arise or occur in the person but do not proceed from a free judgment: e.g. reflexes.

   > Without formal knowledge of the end, or in the measure in which there is not such knowledge, there does not exist a voluntary act. For example, if someone has put among some old papers a check for $500, and I am unaware that this person has done so, when I tear up the papers and throw them away I voluntarily perform the action of "tearing up and throwing away old papers" (because this is what I know myself to be doing), but I do not voluntarily perform the action of "tearing up and throwing away a check for $500." This is so even if it is true that the check was torn up by my own hands, and that I did so without being forced by another. Without formal knowledge of what one does, it cannot be a voluntary act.

3. Lastly, the term "end" generically expresses the proper object of acts of the will. There exists a more restricted use of the term *end*, which we shall study in the second section of this chapter, but now we speak of the end in its widest and most generic use, according to which *end* means the object or term of the act of the will. When this end is reached, the will has completely performed its act and, consequently, the act is finished. Given that the nature of the will (*voluntas ut natura*) is that of being an inclination toward the good recognized by the reason, the end of the voluntary act is always a true good, or at least an apparent good

[3] Cf. *S.Th.* I-II, q. 6, a. 1. "Duo igitur sunt necessaria ad constituendam rationem voluntarii, nempe quot sit a *principio intrinseco, et cum aliqua cognitione finis*" (Saint Alphonsus of Liguori, *Theologiae Moralis*, lib. V, *praeamb.*, 1, 7: *Opere*, Turin: Giacinto Marietti, 1880, vol. VI, p. 6).

(something seen as good) which can be reached, used, or performed by a voluntary action (practical good).

When speaking of the end (or of the object) of an act of the will, it is misleading to immediately think of a thing (a watch, pen, outfit, etc.). For since the goods sought by the person's will normally can be performed, used, achieved, etc. through acts commanded by it, *the end of the will's act is oftentimes a commanded act*, for example, the will chooses the action "buy a pen" or the action "give a pen as a gift," and so the actions "to buy a pen" or "to give a pen as a gift" are the ends of the will's act.

6.1.2 The Tendency of the Will toward the End: Voluntariness

From the definition of a voluntary act explained in the preceding subsection it follows that *an essential constitutive element of the moral act is the conscious and deliberate tendency of the personal will toward its end,* a tendency which from this point on we shall call voluntariness. Voluntariness is therefore a "tending towards," the embodied "aiming at" in every act of the will. Voluntariness is the intentionality constitutive of the voluntary act.
All of moral action theory presupposes an adequate understanding of voluntariness. Not only because without voluntariness there is no voluntary action, but also because the concrete mode which the tendency of the will assumes in each particular action determines such an action as a specific type of action (gift, theft, loan, etc.). In general terms, it is true that all action becomes specified by its object, that is to say, by the specific principle which actuates each particular human operative faculty.[4] Hearing is actuated in response to sound, scent in response to odor, and in response to odor and sound, scent and hearing have no other possible act but to smell and to hear. The person, instead, can respond in a very diverse manner to the same reality (approve of it or disapprove of it, love it or hate it, buy it or steal it), which is the reason for which such a reality, inasmuch as being an object or good to which the will aims, cannot be defined independently from the way in which the person intentionally approaches it, that is to say, it cannot be defined independently from the voluntariness of the person who directs himself toward that reality. So as we said before and say again because it is important, *the end or good, as the object of the will, is not properly a thing, e.g. a watch, but rather an action which uses, or pertains in some way to such a thing*: the watch is a practical good (an end of the will) insofar as it is an object that brings with it pleasure, or insofar as it is an object of sale or theft, or as it is given as a gift to someone as a manifestation of friendship, etc. The good or end of the

[4] Cf. S. Pinckaers, *Il rinnovamento della morale*, (Turin: Borla, 1968), 176–181.

will is, therefore, to use the watch, to buy it, to steal it, to give it as a gift, etc.

It would be a grave error to conceive of or describe moral action from the outside as a simple physical occurrence, without taking account of the interior purpose (voluntariness) out of which it proceeds and from which it is informed. Moral action is not a simple occurrence of the physical world from which certain effects follow. The event and the effects are only the physical component of the action, the body of the action, but voluntary action is constituted also, in the formal sense, by voluntariness, which is likened to its soul. So, for example, if unexpectedly a patient, Peter, dies while undergoing surgery which was correctly performed, we have the action "surgical operation" and the effect "the death of Peter" but this does not equal the voluntary action "killing Peter" because in no moment and under no aspect did the surgeon see the death of Peter as a good (end) to follow nor did he intentionally will it through his own action.

6.1.3 Characteristics of Voluntariness

We can now explicitly highlight the characteristics of voluntariness.

Voluntariness is a deliberate and conscious "movement" toward an object not only because the person "has awareness" of what she does: one can have knowledge of something which is not, however, organized or regulated by herself (as in the case of a heart-beat); *the voluntary act is a deliberate and conscious act because it includes in its intimate structure an intellectual judgment which plans or evaluates as good an action or what is achieved through the action.* Rational knowledge is presupposed in voluntariness, and it is in a certain sense immersed in it (*nihil volitum nisi praecognitum*): the will is a "judging tendency."[5] The reason why this is so is because the will is a rational appetite which can choose an action only inasmuch as it is presented by the reason with an intelligible meaning. Chosen actions are always willed under a rational description, that is to say, under such a description that allows a person's chosen action to make sense.[6]

> Saint Thomas explains that the objects of moral actions are forms conceived and constituted by the reason.[7] He means by this that the object toward which the will aims is not identified with the chosen action or the realized object considered simply as a physical fact, or considered only as acts of a physical faculty (nutrition, generative faculty, etc.), because the moral action is an act of a rational agent, who with the intellect also

[5] Cf. K. Wojtyla, *Persona e atto* (1982), 49 and 173. Italian reads: "tendere giudicando."

[6] This aspect is brought to light and studied in depth by G.E.M. Anscombe, *Intention* (1957).

[7] "Species moralium actuum constituuntur ex formis prout sunt a ratione conceptae" (*S. Th.* I-II, q. 18, a. 10).

> selects intelligible aspects; this explains why the person approaches the object in one way and not another. So, for example, the same action of "turning a blind eye" to the errors of a student in his exposition of a topic can be seen by the professor, depending on the circumstances, as an act of mercy or of undue condescension. A physiologically identical action of the generative faculty can be in one case adultery and in another a legitimate conjugal act. The difference between the first and the second is relevant for the person who chooses the action, but not for a purely naturalistic (medical-physiological) consideration of such an act.

Voluntariness is active in the sense that the way in which a person approaches an end is chosen and decided by the person. It is not a purely passive movement as the *sensitive passions* are. The acts of the will are not passions, but acts or actions, because the relation between the voluntary agent and his object comes to be chosen and set by the agent himself.

In the end, *voluntariness is also always self-referential.* The voluntary action, beyond taking aim of an object in the sense indicated up to now, involves the personal agent, modifying and qualifying him. It is not possible, for example, to steal without being rendered a thief, while instead one can know of a theft or a homicide without being marked by these moral faults. Voluntariness implies a personal identification (an evaluation and a positive position taken with love, or a negative position taken with hate or refusal) with the willed action,[8] which is not the case with knowledge (no one becomes a thief simply because he knows that there was a theft). Voluntariness is the immediate expression of the person. The person remains involved as a person in each act of his will[9], and for this reason *each determination of the will toward an object is always also a self-determination*, i.e. an act through which the person determines himself. It pertains to the essence itself of the will that the personal *I* reclaim for itself what is willed, approving or rejecting it, while it does not at the same time associate itself with what is merely the object of simple knowledge. Voluntariness is never neutral, and if it comes to be described as neutral one can be sure that its most intimate nature is escaping us.[10] This self-referentiality of the human act explains why God "will repay everyone according to his works."[11]

[8] This does not take away from the fact that there exist voluntary acts done with a certain repugnance, as to take a medicine which has a poor taste: the goal sought, is health, and not the taste.

[9] Cf. K. Wojtyla, *Persona e atto* (1982)., ch. III; L. Polo, *Curso de teoría del conocimiento*, vol. II, (Pamplona: Eunsa, 1984), 229.

[10] Cf. *Veritatis Splendor*, 78.

[11] *Rom* 2:6; Cf. *Ps* 61:13; *Prov* 24:12; *2 Cor* 5:10.

6.1.4 Elicited Voluntary Acts and Commanded Voluntary Acts

One calls elicited those voluntary acts exercised directly by the will (to love, to hate, to decide to buy something or to study, etc.). The person, as a spiritual center, takes a stance with regard to an object (loves, hates, approves, disapproves, chooses, decides, etc.). The elicited acts can be referred also to the objects which are in their own power; so, for example, one can love or hate the qualities of another person, one can decide that he has had success in his activities or has failed in them, even if the person who loves or hates cannot do anything to promote or prevent these qualities, successes or failures. But very frequently elicited acts plan or choose realizable and realized actions (one decides to go on vacation in three weeks, or to purchase an outfit, etc.), and they apply the operative faculties (hands for grabbing something, legs for running, etc.) to the accomplishment of what has been decided. A possible misunderstanding of the nature of elicited acts is to think "that they always consist in acts which not only originate immediately from the will but also terminate 'in' the will, never in any power subject to the will; or in other words, to think that *per se* they only constitute volitional relations and never *per se* constitute any other kind of relation, that is, any relation implying any other beyond that of the will."[12] The elicited act of willing to move the legs in order to walk (active use) finishes in the effect of walking, which is already a commanded act.

The accomplishment of the chosen actions are, in effect, *the voluntary commanded acts, that is to say, the acts immediately performed by a faculty which is not the will (the understanding, the arms, the eyes) under the influence and the prompting of the will:* so to read a book, to knock on the table, and to lend someone attention are voluntary commanded actions. These and other commanded acts are planned, chosen, and performed freely by the person, and are, therefore, voluntary actions in a most rigorous sense. The planning and interior choice of these acts constitute their "soul," that which informs, gives life and meaning; the commanded act in its psychological or physical facticity is like the "body" of the action.

Two consequences of this are important for moral theology. The first is that *the elicited acts have a great moral relevance, for they are the principle and foundation of the commanded acts.* Christianity underlines the importance of the "heart," where man expresses himself, at least before God and himself, in a more personal manner than he may do in the physical performance of the act itself. In this sense it is the elicited act which one must consider morally good or evil in its essence, while the commanded act is good or evil

[12] S.L. Brock, *Action and Conduct* (1998), 175.

inasmuch as it participates in the elicited act.[13] The second consequence is that *the moral description of the action must seek to grasp, inasmuch as it is possible, what animates the commanded act:* the elicited act characterized essentially by voluntariness. An action described in this manner: "the muscles of the right arm of the motorcyclist, Peter, contract" is not yet a voluntary action, and cannot be evaluated morally: it is a "body" without a "soul," morally unintelligible; so described, no one could choose it. If that action comes to be described in another mode, for example: "The motorcyclist Peter indicates he is turning to the right by raising his arm," or "Peter insults John with a gesture of his right arm," then the choice of action made by Peter has a human meaning and is susceptible to moral evaluation. Voluntariness cannot be left out of the description of the action, because *voluntariness is the basic level of intentionality constitutive of a voluntary commanded act.* On account of voluntariness, a type of action distinguishes itself from another, which could sometimes be almost identical to an outside observer. Beyond this first constitutive intentionality there can be further intentions, which are not constitutive of the action but morally relevant nonetheless, as we shall explain later in this chapter. Naturally, if a description of an action which has a "body" without a "soul" is to be avoided, equally a description which presents us with a "soul" without a "body" is also to be avoided. The commanded action is, rather, a unitary whole.

> Saint Thomas, and with him many other theologians, calls the elicited acts of the will *internal acts,* and the commanded acts *external acts.* The terms "internal" and "external" are utilized, then, with reference to the will, and so a thought or a voluntary memory (which are commanded acts of the will but performed by a faculty external to it) come to be considered external acts. This is the most correct use of the terminology. Nonetheless, sometimes the qualifications of "internal" and "external" come to be used in reference to that which an outside observer can see. And then a thought or a voluntary memory would be internal acts, while studying, hitting, or stealing would be external acts. In this sense internal sins (evil thoughts, evil desires, etc.) are traditionally distinguished from external sins (theft, violence, etc.).

6.2 The Different Types of Objects of the Will

6.2.1 The Direct Object of the Will

It needs to be clarified that the object of the voluntary act of which we spoke up until now must be called with greater rigor the *direct object of the will,* to distinguish it from the *indirect object*, of which we shall speak shortly. First

[13] Cf. *Scriptum Super Sententiis*, lib. III, d. 23, q. 1, a. 4, ql. 1.

we must propose some qualitative distinctions regarding the direct object of the will, which shall permit us to understand the strictest use of the concept of the end (or intention).[14]

We know that the direct object of the will is the good (real or apparent) grasped by the reason. To the eyes of the acting person, an action, or what is acquired by means of it, can possess the intelligibility of a good in diverse ways: there are, so to speak, various classes of goods. Among these, *the end in the most rigorous use of the term is that which is presented as a good desirable in itself,* that is to say, it is that which interests in itself, and for this it can be in itself a principle of the will's movement. Once the end which gave origin to an act of the will is achieved, such a voluntary act is complete. *The end is, therefore, that which is seen as good or desirable in itself and for this reason it is willed or achieved for itself.* At the heart of this restricted use there needs to be introduced yet a further distinction of a qualitative type: something can be seen as good in itself because it is *honest* or because it is *pleasing.* What is willed in itself because it is objectively good or worthy of being loved (that is to say, because it possesses an objectively relevant value), is an *honest good*; this has an objective character, for the human person recognizes good in it and approves it as such. However, an action or thing can be willed in itself also because it causes in a person a positive affective resonance (pleasure, satisfaction, joy, etc.), and so it is called a *pleasing good.*

Finally, there is a third type of good which is not an end, but is put in relation to the end, and for this reason pertains to the direct object of the will, even if in a secondary way. This third type of good comes to be called sometimes a *useful good*, a *directed good* (Saint Thomas denominates it with the expression *"ea quae sunt ad finem,"* "those things which are directed toward the end"), or simply the *means. The directed good, considered formally as such, is not willed in itself (neither as an honest good or as a pleasing good), but because it is presented as ordained (directed) to the achievement or attainment of the end:* it is, therefore, willed in virtue of another good, in virtue of the end for whose attainment it is useful. So, we submit to painful medical care, not because it may interest us in itself, but because it allows us to recover health. The distinction between ends and means permits us to glimpse one of the most common forms of organizing complex moral behavior: certain actions come to be chosen as means, for the sake of something else. The distinction between the willing of something as an end or as means has many applications in moral theology.[15]

[14] We borrow from what was written in A. Rodríguez Luño, *Etica* (1992), nos. 87–94, limiting ourselves to the essential aspects.

[15] Cf. for example, *Evangelium Vitae*, 62.

6.2.2 The Indirect Object of the Will

Beyond that of the end or of the directed goods (means), which are directly willed by the person, the will can also have an indirect object which, in the measure in which it is foreseen, remains in the realm of its intentionality.[16] *The indirect object is a consequence of action (a collateral effect of the action) which does not interest the person and is in no way willed, either as an end or as means, but is foreseen and permitted inasmuch as it is inevitably linked to what is willed.* Some examples: a person submits himself to a cure for leukemia, which provokes, as a secondary effect, baldness; a woman who would like to have a family allows that her uterus may be extracted on account of a tumor having formed there, and as a consequence becomes infertile. Baldness and infertility are indirect objects of the will, not willed, but rather known and foreseen effects which necessity obliges them to tolerate. Whenever an action carries with itself an indirect negative effect for the person acting or for others, one is placed before the problem of the moral licitness of performing such an action. So Saint Paul encourages the avoidance of any action which, though being licit in itself, has as an indirect effect the scandalizing of those who are weak in the faith.[17] It is the moral issue of actions which have a double effect, which will be studied in section 5 of this chapter.

In order to avoid confusion, *it is good to know how to distinguish between an indirect object (or the indirect voluntary action) and an object willed directly as a means.* If a woman does not want to have children, for it is probable that another delivery may result in her death, and directs a doctor to extract her uterus, the surgical operation is willed directly for the sake of rendering her infertile and the consequent infertility is also willed directly, even if as a means to preserve her health. The fundamental distinctive criterion is as follows: *because the foreseen effect of an action may be considered an indirect object of the will, such an effect cannot be willed as the means (on the level of reality, the cause) which allows the person to obtain or achieve what is really desired.* Any effect which is seen or willed as part of the causal ring between the person and his end is willed directly as a means, i.e. as a directed good. In the last example, the future infertility is willed directly as a means; in the other two examples, rather, baldness and infertility are willed indirectly, so that baldness is not the cause of the cure for leukemia, just as the fact of not being able to have kids is not the cause for which the woman has the tumor extracted out of her body. Speaking properly, the indirect effect is not willed, but permitted, tolerated, or endured.

[16] As an example of the distinction between direct and indirect willing, see n. 57 of *Evangelium Vitae*.

[17] Cf. *Rom* 14:14–21.

In practice, the distinction between the direct object and the indirect object of the will can be at times difficult to establish, and for this reason it can lend itself to abuses. Recognizing this, we still retain that if one proceeds correctly with an attentive and serene analysis, the difference between the two types of object of the will can be established in an objective and controllable way. Even ordinary language is sufficiently sensible to the existing differences in the types of willing. It is enough to examine the semantic forms of some of the words with which we refer to human actions (to will, to approve, to permit, to tolerate, to endure, etc.) in order to have confirmation for what we have explained.

6.3 The Discursive Structure of Voluntary Action

Rational activity is discursive: it involves the passage from one term to another. In the theoretical order, the progress consists in the acquisition of new truths from those already known. In the practical order, an analogous relation is established between the diverse instances of the exercise of the practical reason and the will: from the act of willing to not gain weight, for example, we pass to a deliberation regarding the way in which we can reach such a goal, deciding to do physical exercise or to begin a diet. Saint Thomas, assuming and completing the analysis of Aristotle, Saint Augustine, and Saint John Damascene, elaborated a general scheme of diverse levels of exercising the will.[18] According to Aquinas, to the *first apprehension* of an end follows a delight of the will called *love*. Afterwards one has a *judgment* which evaluates the possibilities and the mode of reaching the end, to which follows a firm decision to obtain it through certain actions: this decision is called *intention*. Moved by the intention, the intellect *deliberates* regarding the means (directed actions) ideal for attaining or accomplishing this end, to which the will can give or not give its *consent*. One must then establish which of these actions are the most appropriate and which can be put into practice immediately (*judgment of choice*), and then one makes the interior decision to act in such a way (*choice*). When it is decided what is to be done here and now, the activities of the diverse operative faculties need to be organized and coordinated (rational *imperio*), and in accord with this plan the will moves the other faculties (*active use* of the will and *passive use* of the other faculties). Then follow the *achievement of the end* and *the delight from its possession*. The first apprehension, love, the intention, and the judgment which precedes it, along with delight and the final fruition, are acts which have as their object the end, what is desirable in itself and for itself; and among these acts, love, intention, and fruition are elicited acts of the will. Consent, choice, and the active use of the faculties are also elicited

[18] Cf. *S. Th.* I-II, qq. 11–16.

> acts of the will, but they have as an object the actions ordained to the end. The more modern interpretations sustain that this analysis is of a structural character, and not psychological. It should not be interpreted, that is, as a set of completed and independent acts, which follow in a fixed and irreversible temporal sequence, but rather as an analytical specification of the modality which the acts of the practical reason and the will acquire. This all gives rise to unitary discursive structure that, according to the particular case, can be exercised in a partial or a complete way.[19]

In the study of voluntary action, moral theology has a particular interest in *choice* and *intention.*[20]

We understand by intention an elicited act of the will consisting in the efficacious willing of an end (something desirable in itself and for itself) which, in its factual reality, is distant from us, so as to not be immediately achievable or reachable, but which must be reached or achieved through a series of actions directed toward it. The end which is the object of the act of intention traditionally comes to be called the *finis operantis.* It is seen and formally planned as the term of directed actions; the intention is the act completer *par excellence.*

> For this reason, Aquinas observes that "when the appetite is immediately directed toward something, there is not an intention for this good, either with regard to the final end or an end ordained to it; only when one intends to arrive at an end through what he wills now does he have an intention for this end."[21] This characteristic of the intention can give rise to confusion. If we separate a series of means that are related to one another by their end, a directed action can appear as an end without really being one. For example: health in itself is a good, and to conserve it I am ready to take a repugnant medicine which, furthermore, I am only able to find in a pharmacy situated at the opposite end of the city. Abstracting from my desire to stay healthy, I could think of my act of taking money, getting a bus, etc. to purchase and take the repugnant medicine as becoming my intended end. But this description of the action is erroneous, because the medicine is not properly an end (it is not willed in itself): it is functionally an end in a certain way—mistaken in this case—of describing the action; here the end and intention is, rather, health.

We call choice the elicited act of the will which has for its object the action immediately achievable in view of the desired end.[22] The object of choice is,

[19] Cf. S. Pinckaers, "La structure de l'acte humain suivant Saint Thomas", *Revue Thomiste* 63/2 (1955) 393–412.

[20] Already Aristotle applied himself to this investigation: cf. for example *Nicomachean Ethics*, VI, 2: 1139 a 32–34.

[21] *Scriptum Super Sententiis*, lib. II, d. 38, q. 1, a. 3. On intention, see *S.Th.* I-II, q. 12.

[22] On choice, see *S.Th.*, I-II, q. 13.

therefore, the directed action which is immediately in my power to do or not do, to achieve in one mode or in another. The choice presupposes various acts of the reason: at least deliberation and practical judgment, and also presupposed in its act is the act of intention. The object of deliberation and of choice cannot be an end, since to deliberate on a good and to choose it entails orienting it toward another end, and therefore it entails choosing it as a directed good (means).

If we compare what we are saying now with what we already know about voluntariness[23], it is immediately seen that *there exist diverse levels of intentionality of action*. So, for example, the action "threaten to kill an officer"– which in virtue of its *constitutive intentionality* (the intentionality proper to choice) is diverse from the action "to ask" or from the action "to thank"—can respond in a concrete case to the intention of obtaining a building permit that one has a right to according to the law, and in another case *to the intention* of obtaining something which this person does not have the right to, and which is actually illegal. The presence of diverse levels of intentionality creates particular problems when the moment for moral evaluation arrives, as will be seen in subsection 6.4.3 of this same chapter.

6.4 The Moral Evaluation of Voluntary Action: The Sources of Morality

After having studied the nature and structure of voluntary action, it is possible to take on an analysis of the elements on which depends the moral evaluation of actions with regard to their matter, or content, elements which traditionally came to be called the *sources of morality*. In section 6 of this chapter we shall study, instead, the elements relating to the psychological perfection of an action which determines not the objective morality of its content, but its subjective imputability.

> We shall now consider the problem to be resolved, making use of some examples. A doctor needs to define and classify the different pathologies (gastric ulcer, diabetes, tuberculosis, malaria, etc.) to be able to identify what is causing each patient harm based on symptoms, clinical history, etc., and to be able to provide the appropriate care. A judge makes use of the definitions and classifications of various crimes (murder, arson, manslaughter, theft, robbery, extortion, etc.) in order to be able to judge the kinds of behavior on which he must pass judgment. Moralists also must make use of definitions and classifications of the proper acts of the virtues and of the acts contrary to them (lying, theft, abortion, contraception, murder, slander, etc.) in order to be able to

[23] Cf. section 6.1 of this chapter.

morally evaluate different kinds of behavior. Each of these analytical categories (lying, theft, etc.) constitutes a *moral species*, and it is the role of the theory of virtues and vices to define them with exactness and to justify their morality. The problem with which we now occupy ourselves is more restricted; we are concerned with knowing on what depends the moral species of free behavior, that is to say, on what elements of action depends, for example, the distinction between an abortion and a licit therapeutic operation, or between contraception and abortion, etc.

6.4.1 The Ecclesial Doctrine Concerning the Sources of Morality

Concerning the sources of morality, there exists not just a centuries old theological tradition of reflection,[24] but also a precise ecclesial doctrine, which was recently brought forth in the *Catechism of the Catholic Church*[25] and in the encyclical *Veritatis Splendor*.[26]

The exposition of the *Catechism of the Catholic Church*, being very concise, is limited by concerns of practicality to enumerate all of the essential elements. The morality of human acts depends on three elements: 1) "The object chosen," that is to say, the object of the act which in the preceding paragraph is called *choice*; 2) "the end in view, or the intention," which is the object of the act which we called *intention*; 3) "the circumstances of the action," whose nature must still be explained. "The object, the intention, and the circumstances make up the 'sources,' or constitutive elements, of the morality of human acts."[27]

The chosen object gives the moral species to the act of the will,[28] and "can by itself vitiate an act in its entirety. There are some concrete acts—such as fornication—that it is always wrong to choose, because choosing them entails a disorder of the will, that is, a moral evil."[29] A good intention can neither render good nor just a type of behavior which is evil in its object; contrarily, an evil intention could render evil an act which, in itself, can be good.[30] The circumstances, which are secondary elements of the moral act, contribute to increase or diminish the moral goodness or evil of an act but they can neither render good nor just an action which is evil in its object (an intrinsically

[24] A good synthesis of theological reflection on the material is offered by Th. G. Belmans, *Le sens objetif de l'agir humain. Pour relire la morale coniugale de Saint Thomas*, (Vatican City: Libreria Editrice Vaticana, 1980).
[25] Cf. nos. 1749–1761.
[26] Cf. nos. 71–83.
[27] *CCC* 1750.
[28] Cf. *ibid.*, 1751.
[29] *Ibid.*, 1755.
[30] Cf. *ibid.*, 1753.

evil action).[31] In synthesis, "a morally good act requires the goodness of its object, of its end, and of its circumstances together."[32]

The exposition of the encyclical *Veritatis Splendor* has a different character, because it does not intend so much to offer a general and simple vision of the doctrine, as to uphold and expand on some points which were recently denied or put into question. The doctrinal nucleus of the section concerning the moral act stands in the affirmation of the existence of intrinsically evil acts (*intrinsece malum*), that is to say, in sustaining that there are concrete behaviors (adultery, abortion, etc.) which are morally evil "*always and per se,* in other words, on account of their very object, and quite apart from the ulterior intentions of the one acting and the circumstances."[33] The term "behavior" is not referring to actions done by someone who is incapable of performing a free choice; when the encyclical speaks of "behavior" it refers precisely to a possible object of free and deliberate choice.[34]This explicit reference to deliberate choice is always present when the encyclical treats of types and classes of actions which are intrinsically evil.[35] It seems evident that the insistence on this way of expressing it was on purpose and has a precise meaning. It affirms also that in the sustaining of the existence of intrinsically evil acts "the Church accepts the teaching of Sacred Scripture."[36] From the existence of actions which are morally evil according to their species, or according to their object[37], comes a second doctrinally relevant thesis: the norms which prohibit such acts are valid *semper et pro semper*, always and for all, without any exception.[38] It is a thesis which is repeated several times.[39]

[31] Cf. *ibid.*, 1754.

[32] *Ibid.*, 1760. We treat of the principle, "bonum causatur ex integra causa, malum autem ex singularibus defectibus" (*S.Th.* I-II, q. 19, a. 6, ad 1). See also *S.Th.* I-II, q. 18, a. 4, ad 3 and q. 19, a. 7, ad 3.

[33] *Veritatis Splendor*, 80.

[34] Cf. J. Finnis - G. Grisez, "Gli atti intrinsecamente cattivi", in Various Authors, *Lettera enciclica "Veritatis Splendor" del Sommo Pontefice Giovanni Paolo II. Testo e commenti*, Quaderni de "*L'Osservatore Romano*" 22, (Vatican City: Lib. Ed. Vaticana, 1994), 227.

[35] Some examples: "One must therefore reject the thesis [...] which holds that it is impossible to qualify as morally evil [...] the deliberate choice of certain kinds of behaviour or specific acts" (VS 79); "circumstances or intentions can never transform an act intrinsically evil by virtue of its object into an act 'subjectively' good or defensible as a choice" (no. 81); "the opinion must be rejected as erroneous which maintains that it is impossible to *qualify as morally evil according to its species the deliberate choice of certain kinds of behaviour or specific acts*" (no. 82); "Judgments about morality cannot be made without taking into consideration whether or not the deliberate choice of a specific kind of behaviour is in conformity with the dignity and integral vocation of the human person" (no. 67); "Such theories however are not faithful to the Church's teaching, when they believe they can justify, as morally good, deliberate choices of kinds of behaviour contrary to the commandments of the divine and natural law" (no. 76).

[36] *Veritatis Splendor*, 81.

[37] Cf. *ibid.*, 79.

[38] Cf. *ibid.*, 82.

[39] Cf. for example nos. 52, 96, 97 and 99.

The encyclical moves forward to furnish some necessary guidelines, both positive and negative, for adequately understanding the doctrinal assertions which have been reiterated up to this point. In a positive sense, such assertions presuppose the thesis that "The morality of the human act depends primarily and fundamentally on the 'object' rationally chosen by the deliberate will"[40]: a thesis best expressed and given foundation by Saint Thomas, but not only by him. Still in a positive sense, but already entering into the field of methodology, there is expressed a particularly important point: "In order to be able to grasp the object of an act which specifies that act morally, it is therefore necessary to place oneself in the perspective of the acting person. The object of the act of willing is in fact a freely chosen kind of behaviour. To the extent that it is in conformity with the order of reason, it is the cause of the goodness of the will."[41] On this foundation, the existent unity between the morality of the choice and the morality of the person is put into relief: the moral object "is the proximate end of a deliberate decision which determines the act of willing on the part of the acting person. Consequently, as the *Catechism of the Catholic Church* teaches, 'there are certain specific kinds of behaviour that are always wrong to choose, because choosing them involves a disorder of the will, that is, a moral evil.'"[42]

Among the negative methodological guidelines, the following two are important. The first regards, at its core, the concept of action: "By the object of a given moral act, then, one cannot mean a process or an event of the merely physical order, to be assessed on the basis of its ability to bring about a given state of affairs in the outside world."[43] The second regards, instead, the constitution of the moral object: "The weighing of the goods and evils foreseeable as the consequence of an action is not an adequate method for determining whether the choice of that concrete kind of behaviour is 'according to its species', or 'in itself', morally good or bad, licit or illicit."[44]

In substance, these brief notes have brought to light the ecclesial doctrine concerning the sources of morality. There are, however, points to explore further, as we shall see in what follows.

[40] *Ibid.*, 78.

[41] *Ibid.* Concerning this aspect one may consult, above all, W. May, "Los actos intrínsecamente malos y la enseñanza de la encíclica 'Veritatis Splendor'," *Scripta Theologica* 26/1 (1994) 199–219, and M. Rhonheimer, "'Intrinsically Evil Acts' and the Moral Viewpoint: Clarifying a Central Teaching of 'Veritatis Splendor'," *The Thomist* 58/1 (1994) 1–39.

[42] *Veritatis Splendor*, 78. The internal citation is of 1761 of the *Catechism*.

[43] *Ibid.*, 78.

[44] *Ibid.*, 77.

6.4.2 The Moral Object

The general principle which lies at the base of the ecclesial doctrine concerning the sources of morality is clear and is peacefully accepted: *each act of the will is fundamentally specified by the object (by the end or good) at which such an act is directly aimed.* The chosen object gives species to the choice (it makes it to be one type of choice and not another); the object (end or good) to which the intention is directed gives species to the act of the intention; and the object (end or good) to which is consented gives species to the act of consent. The moral tradition calls the object of choice the *moral object* or *finis operis* (end of the act); the object of the intention comes to be called instead the *end* or *finis operantis* (end of the person who acts).
The species of voluntary acts is a moral species. The will follows the reason: human choice is deliberated choice, and human intention is equally enlightened by rational judgment. The objects of choice and of intention come to be compared with the natural practical principles of the reason, which are the moral virtues,[45] and from such a comparison there results a moral evaluation.[46]

> When these principles come to be applied to simple behaviors, they do not present any particular problem: the choice normally tends toward a commanded action (for example: to steal an automobile) and therefore the act is specified by it: the choice to steal is specified as theft. But in more complex actions, in which different goods are involved, a doubt can emerge over which are the elements that enter into the essence of the commanded action, and therefore concerning the elements which should be considered the *object* that gives to the choice its moral species. For example: the doctor can prescribe to a married woman, affected by a disease, a medicine that, for all the time that it is taken, will render her conjugal relations to be infertile. The woman may wonder if taking the drug is a therapeutic action or contraception. If it is explained to the woman that it is not contraception, even if that same medicine is taken by other women as a purely contraceptive means, then doubt may arise as to whether in this case there is not the intention, circumstances, or moral object to fundamentally determine the morality of the behavior as being contrary to what is affirmed by ecclesial doctrine. To resolve this and other similar problems we must further explore the nature and role of the moral object, the end, and the circumstances.

The Concept of the Moral Object — A good part of the difficulty for understanding exactly what the moral object is comes about from the error,

[45] "In ratione pratica praeexistunt quaedam ut principia naturaliter nota, et huiusmodi sunt fines virtutum moralium, quia finis se habet in operabilibus sicut principium in speculativis" (*S.Th.* II-II, q. 47, a. 6, corp.).

[46] "Omnis finis a ratione deliberativa intentum, pertinet ad bonum alicuius virtutis, vel ad malum alicuius vitii" (*S.Th.* I-II, q. 18, a. 9, ad 3).

rather frequent, of describing commanded voluntary acts as simple physical occurrences that are followed by certain effects, without taking account of the interior purpose of the choice (voluntariness) from which the commanded act proceeds and which it embodies.[47] This error is sometimes facilitated by the terminology itself, which is not always used correctly. *To speak of the object of the act makes sense in relation to the elicited act of the will (the choice), but not in relation to the external action chosen by the person.* The object of choice is the same chosen external action (to steal an automobile) and not a material "something" of the external action (the automobile).[48] If the moral object were the automobile, the actions "to steal an automobile" and "to give away an automobile" of the same brand would have the same object, which is manifestly false. Moreover, if the moral object of either contraception or the previously cited therapeutic action were simply sterilizing effect of the medicin taken, the conclusion would follow that both are morally identical, and for this reason either both would be morally licit or both would be equally illicit. Instead, it needs to be recognized that *the interior purpose of the agent represents the basic level of intentionality, constituting the formal and decisive element of the external choice's moral object.*

> To understand this we return to the example of the motorcyclist Peter. If we say: "the muscles of Peter's right arm contract," we speak of a physical fact and we give a description of it proper to physiology. Saint Thomas calls that physical event the *materia ex qua* of the voluntary commanded action. But such material, alone, does not yet constitute a voluntary action or a moral object. If instead we say: "Peter signals that he is turning left by raising his arm," we are already speaking of a voluntary action that a sensible person can choose, in which the corporal movement (raising the right arm) responds to and embodies a deliberate plan or purpose which makes sense for him and for others who see it. Saint Thomas employs the technical concept of *materia circa quam,*[49] which is really equivalent to the moral object of the choice, making clear, however, that such an object or *materia circa quam* is in some way a *forma a ratione concepta*;[50] or in other words, the moral object is formally a purpose or operative project conceived and evaluated by the practical reason, and *this insofar as it is chosen.*[51] The

[47] See what was said above, in subsections 6.1.2 and 6.1.4. Keep in mind *Veritatis Splendor*, no. 78 (cited above in citation 43).

[48] Cf. *Scriptum Super Sententiis*, lib. II, d. 40, q. 1, a. 3; *S.Th.*, I-II, q. 20, a. 1, corp. and ad 1; *De malo*, q. 2, a. 4.

[49] "Obiectum non est materia ex qua, sed materia circa quam, et habet quodammodo rationem formae, inquantum dat speciem" (*S.Th.* I-II, q. 18, a. 2, ad 2). "Obiecta, secundum quod comparantur ad actus exteriores, habent rationem materiae circa quam, sed secundum quod comparantur ad actum interiorem voluntatis, habent rationem finium; et ex hoc habent quod dent speciem actui" (*S.Th.*, I-II, q. 72, a. 3, ad 2). See also *S.Th.* I-II, q. 73, a. 3, ad 1.

[50] *S.Th.* I-II, q. 18, a. 10.

[51] One must not think that for Saint Thomas the material and formal elements of

material element of the commanded action, and therefore of the object of the choice (to raise the arm), could be a response or embodiment of different purposes, for example, to threaten someone, and then it would result that the same material behavior would be the *materia ex qua* of a completely different moral action. "For one to indicate that he is turning right" is a very different voluntary action than the action of "threatening someone by raising one's arm." The moral object of the first action's choice is different from the moral object of the second action's choice, and such difference depends solely on the moral object, and not on the intention or *finis operantis*. We have not spoken yet of the intention for which Peter decides to indicate that he turns right or for which he threatens someone with his arm, and we do not have any need of speaking of it when we are dealing only with distinguishing between the action of "one signaling that he is turning right" from the action of "threatening someone." The intentionality (voluntariness) of indicating a right turn and that of threatening are in both cases the intrinsic and constitutive intentionality of the action, which give their actions their moral species, and which the theological tradition calls the *finis operis*. Regarding this intentionality which is constitutive of the action (*finis operis*), the intention or *finis operantis* represents a further intentionality or, in other words, a second level intentionality. The encyclical *Veritatis Splendor* speaks in this regard of the "ulterior intention,"[52] and the Latin edition of the *Catechism* speaks of "intentio superaddita,"[53] in order to indicate that already at the level of choice or the *finis operis* there exists a first constitutive intentionality of the action (we have called it *voluntariness*).

In light of this clarification, the moral act of the action contraception, for example, cannot be described as "to take an anti-ovulatry pill with a little water." This physical act alone would be the *materia ex qua* (certainly not the *materia circa quam*) of the action contraception, but it could be equally the *materia ex qua* of an action which has nothing to do with contraception, e.g. the therapeutic action spoken of in *Humanae Vitae* 15,[54] or else the

the object are two things or two hylomorphic principles (the matter and form of one thing). They are, rather, the formal and materal aspects of the same object, as when one speaks of the material and formal object of a science. Saint Thomas compares them to color and to the body which possesses the color. Both the color (the *ratio visibilitatis*) and the body characterize the entire object, but from a different point of view. Concerning this whole issue, see the in-depth study of M. Rhonheimer, *Natural Law and Practical Reason*, Ch. 2 section 6 and Ch. 7 section 1; cf. especially 116–117.

[52] *Veritatis Splendor*, 80.

[53] *Catechismus Catholicae Ecclesiae*, Editio Typica Latina, (Vatican City: Libreria Editrice Vaticana, 1997), 1753.

[54] "On the other hand, the Church does not consider at all illicit the use of those therapeutic means necessary to cure bodily diseases, even if a foreseeable impediment to procreation should result there from—provided such impediment is not directly intended for any motive whatsoever" (Paul VI, Enc. *Humanae Vitae*, 25-VII-1968, n. 15).

action of protecting oneself from the effects of acts of sexual violence which can happen as soon as an enemy army enters into a city. If we want to know what the action contraception is, or what the moral object of the contraceptive choice is, we must define the purpose (the *forma a ratione concepta*) to which the action responds and which it embodies, and then we must affirm that contraception is any act that "either before, at the moment of, or after sexual intercourse, is specifically intended to prevent procreation—whether as an end or as a means."[55]

In synthesis, this entire problem is resolved by understanding that the choice (which is a voluntary action), like every other human act, is an intentional reality; this expresses in other terms the metaphysical principal *omne agens agit propter finem.* Voluntary action, also described in the abstract as a type of action (theft, murder, slander, etc.), possesses an intentionality (voluntariness) which constitutes it as a particular kind of act. When the constitutive intentionality, or first-level intentionality, comes into contradiction with a moral virtue (justice, temperance, etc.), the action possesses a moral negativity which no further intentions, or second level intentions (*finis operantis*), can rectify. Naturally, there exist many types of action, according to their constitutive intentionality, which are not opposed to any virtue, as is said in what follows.

Moral Typology of the Object — According to their objects, voluntary acts can be: 1) *Good*: if they are in themselves acts conforming to a virtue: as are prayer or helping one's neighbor; 2) *Evil*: if they are in themselves contrary to a virtue: theft, adultery, etc.; 3) *Indifferent*: if they are acts which in themselves do not possess a special reason for being in conformity or contrary to a virtue. Nevertheless, it should not be forgotten that indifferent acts have in themselves a certain moral qualification, otherwise they would be merely physical acts and not voluntary: we deal here with acts that are compatible with the full truth of man, but which in themselves do not promote it. In this perspective they are called *licit* acts, which to be truly good must arise from a good will and be ordained to God by the agent who performs them.

> In reality, there do not exist concrete indifferent acts, for, when human acts are considered in concrete reality, their moral value is already determined by some circumstance or end. Some theologians (for example, Saint Bonaventure) defend the existence of concrete human actions which are morally indifferent; nonetheless, the overwhelming majority—among whom are Saint Thomas and Saint Alphonsus de Liguori—deny this possibility. Saint Thomas concludes his study of this question as follows: "Every human action that proceeds from deliberate reason, if it be considered in the individual, must be good or

[55] *Ibid.*, 14.

> bad."[56] This moral doctrine is a grand stimulus for ordering every personal activity, even those which seem indifferent, toward God.

How is the goodness or evil of the moral act's object know? Certainly, *the source of moral discernment is found in the human reason*: on the foundation of the natural practical principles and of their discursive development, it is able to recognize and distinguish good from evil, virtue from vice.[57] *The natural capacity of the reason is aided by Revelation,* which confirms the teachings of right reason and instructs it with regard to supernatural goods. The Scriptures concretely contrast good works, or fruits of the Spirit or fruits of faith,[58] to works of the flesh: i.e. evil works, perverse works, works of darkness, dead works.[59] And more concisely: "Grave matter is specified by the Ten Commandments, corresponding to the answer of Jesus to the rich young man: 'Do not kill, Do not commit adultery, Do not steal, Do not bear false witness, Do not defraud, Honor your father and your mother.'"[60]
Furthermore, the Magisterium of the Church constitutes another aid for distinguishing good actions from evil ones.[61] "The Magisterium of the Pastors of the Church in moral matters is ordinarily exercised in catechesis and preaching, with the help of the works of theologians and spiritual authors [...]. Alongside the Creed and the Our Father, the basis for this catechesis has traditionally been the Decalogue which sets out the principles of moral life valid for all men."[62] Other examples of this moral teaching are: the precepts of the Church[63]; whatever violates the integrity of the human person[64]; the teachings concerning marriage[65]; the doctrine concerning sexual ethics[66]; and the different encyclicals and documents concerning socio-economic ethics.

6.4.3 The End of the Agent (finis operantis)

The Concept of the End (*finis operantis*) — Even if the object of every voluntary act (intention, choice, consent, etc.) comes to be called an end, the doctrine of the sources of morality reserves the term end for the object of only one of these acts, the intention.[67] *The end (finis operantis) is the objective for which the agent orders his action, that is, that which he wants to obtain*

[56] *S.Th.* I-II, q. 18, a. 9.
[57] Cf. *Veritatis Splendor*, 61.
[58] Cf. *Mt* 5:16; *Rom* 7:4; 8:4–6; *2 Cor* 9:8; *Gal* 5:22; *Col* 1:10; *Jas* 2:17–18.
[59] Cf. *Rom* 7:5; 8:12–13; 13:12; *Gal* 5:19–21; *Heb* 9:14; *1 Jn* 3:12; *2 Jn* 11.
[60] *CCC*, 1858.
[61] Cf. *Veritatis Splendor*, 25.
[62] *CCC*, 2033.
[63] Cf. *CCC*, 2041–2043.
[64] Cf. *Gaudium et Spes*, 27; *Evangelium Vitae,* 57, 62, and 65.
[65] Cf. Enc. *Casti Connubii, Humanae Vitae* and Istr. *Donum Vitae.*
[66] Cf. Congregation for the Doctrine of the Faith, Decl. *Persona Humana*, 29-XII-1975.
[67] It is best to keep in mind what is said above in subsection 6.2.1 of this chapter.

through the chosen action or actions; it is, therefore, the motive principle of the action. Moral theology dedicates particular attention to it, for it is the source from which flow all human works, which are the realization (or less) of the true love of God and of neighbor.[68]

In the Gospel, the moral relevance of the intention that inspires action is emphasized. In fact, it was a doctrine which Jesus explicitly wanted to inculcate in His disciples, because it was in opposition to the moral teaching of His time, both Jewish and pagan. The Gospel passage which perhaps develops this concept the most is the argument Jesus has with the Pharisees regarding the ritual washing of hands before eating; the conclusion is clear: "The things that come out of the mouth come from the heart, and they defile. For from the heart come evil thoughts. . . "[69] The reason for this primacy of interiority is evident: man must seek the true good (ultimately God) with all his heart, all his soul, and all his mind; therefore the most relevant aspect of moral conduct is found in his interior dispositions.[70]

> The end or intention of the agent—the real reason or motive of the action—is not to be confused with other motives which can be accidentally concurrent with it: one may think of, for example, the difference between giving alms only to be seen, and this would be the end (if others were not to see it, the person would not give alms), and giving alms to help one's neighbor, but also with the pleasure of being seen. In fact, along with the principal intention, there can exist concomitant intentions or motives which do not nullify the principal end, but render it more or less pure. In this regard, the importance of battling against disordered concomitant intentions should be underlined. We refer to those intentions which, if they are not fought, often lead to a change in the primary purpose of the will; for example, to work *with* vanity or a concomitant intention of "careerism" can easily turn into working *for* vanity or "careerism."

The presence of different levels of intentionality (intention and choice, voluntas intendens and voluntas eligens[71]) does not break the unity of human conduct. It is true that the act of intention can be exercised separately from the act of choice, as happens when one makes a firm decision to pursue a goal which will be achievable in the future without having thought yet of the means to be chosen to achieve that end. For example, a person in his junior

[68] Cf. *1 Cor* 13:1–7; *Jas* 1:22–27; *1 Jn* 2:4–5; *CCC*, 1752.

[69] *Mt* 15:18–19.

[70] It is good to remember that the moral life comes from the human "heart": Cf. *Lv* 26:41; *Deut* 10:16; 11:16; 30:6; *Ps* 50:8,19; 80:13; 111:7; *Eccl* 11:9; *Wis* 1:6; *Sir* 6:37; *Ezek* 11:19; 44:7; *Joel* 2:13; *Mt* 5:8; 15:8; 22:37; *Lk* 12:34; *Acts* 5:3; 7:51; 8:21; *Rom* 2:29; *Eph* 3:17; *1 Jn* 3:19–21; etc.

[71] These are the concepts used in the *Scriptum super Sententiis*, lib. II, d. 38, q. 1 and lib. II, d. 40, where Saint Thomas offers an in-depth study of the relation between intention and choice.

year of high school decides to become a journalist, but has not thought yet of the manner in which he will do it: to enroll at the University to study Communication Studies, or by spending time doing apprenticeship work for a newspaper and then, if it is requested, pursuing a degree, etc. However, *many other times the intention and the choice of means are two instances of the same movement of the will,* which could be described by one of two extremes: by intending to achieve a goal through determinate means, in which case we speak of the *intention*; or when determinate actions are chosen to achieve that goal, in which case we speak of *choice.*[72]

In absolute terms, the intention of the end (of what is desired in itself) is more meaningful and better reflects the disposition of the acting person's soul than the choice of means. The perspective of morality, nonetheless, is determined by the principle "*bonum et malum sunt in rebus, verum et falsum in mente,*"[73] that is to say, morality sees the different instances of conduct as a process of realization of particular goals having positive or negative value and, from this perspective, the intention is seen as the interior planning of a good that is achieved or negated through the chosen actions.

> The managing director of a manufacturing company, for example, might face a complicated economic problem with the intention of resolving it in a just manner, that is to say, respecting the rights of his workers, shareholders, creditors, etc. Then he establishes a program of action which, in fact, does not respect the rights of all, rather one of the aforementioned sets of people involved comes to be treated unjustly, and so the initial just intention is nullified by the chosen actions. The intention of being just comes to be nullified the very moment in which, in order to accomplish it, unjust actions are chosen. Justice cannot be obtained through an injustice. The distinction between the just goal and the unjust means, which is always analytically possible, should not be overly emphasized, because in reality whoever wants to achieve justice through means which he knows to be unjust, possesses an unjust will. Whoever has planned the execution of a just goal by means of unjust means never had a true intention for justice.[74] The proposed example demonstrates that, in the order of the good, the practical execution of the intention through the choice adds a new value, positive or negative, to the merely planned intention: "good intentions are not enough." The

[72] Cf. *S.Th.* I-II, q. 12, a. 4.

[73] *De Veritate*, q. 1, a. 2.

[74] "Finis autem dicitur ad quem actus proportionatus est; et ita etiam si finis est bonus, et actus bonus; quia actus malus non est proportionatus ad finem bonum. Unde dicit Philosophus in 6 Ethic., de his qui per malos actus bonos fines consequi intendunt, quod quaerunt sortiri finem inconvenienti medio; sicut enim non quaelibet materia est disposita ad quamlibet formam, nec quodlibet instrumentum ad quemlibet effectum, nec quodlibet medium ad quamlibet conclusionem; ita nec quilibet actus ad quemlibet finem" (*Scriptum Super Sententiis*, lib. II, d. 38, q. 1, a. 5).

intention is a principle, to which must be added a proper discernment concerning the concrete manner of accomplishing it.

The selection of what must be done here and now in order to accomplish an intention often presents new difficulties and hindrances which must be overcome. As a result, *the choice, presupposing and preserving the ethical meaning of the intention, adds new elements; the intention becomes reality—or else comes to be negated—through the choice.* A failure on the level of the concrete choice could nullify a good intention, or else it could manifest the weakness or scarce conviction of an intention that has succumbed in the face of its first encountered obstacle. Furthermore, it is to be kept in mind that the execution of the end through directed chosen actions can put in motion a network of connections which cause indirect effects that are not desired, but are, rather, foreseen and tolerated. These undesired, yet foreseen, effects can sometimes be morally significant: we think, for example, of the cases in which the chosen actions ordained toward a just end indirectly cause unjust situations that are more serious than the just end which was directly willed.

From this it is understood that the intention is only a particular part (though very important) of the internal organization and planning of the action. *The intentional planning is not only the establishment of the end, but also the choice concerning the directed actions and the mode of performing them.* In this sense the proper and principal act of virtue is *the right choice,* because virtue requires not only a good intention, but also, and primarily, to carry the intention to completion through right choices, that is to say, through choices which truly execute the virtuous intention.[75] The person would enter into contradiction with himself if he intended to accomplish justice through injustice or purity through impure acts. The unity of the person implies ethical consistency between intention and choice.

These considerations allow one to understand exactly the Gospel teaching that interior intentions manifest themselves through their fruits, which are exterior works: "So by their fruits you will know them."[76] At the end of the Sermon on the Mount, the moral "magna carte" of Christianity, the Lord explicitly said "not everyone who says to me, 'Lord, Lord,' will enter the kingdom of heaven, but only the one who does the will of my Father in heaven [...]. Everyone who listens to these words of mine and acts on them will be like a wise man [...]. And everyone who listens to these words of mine but does

[75] "Principalitas virtutis moralis in electione consistit" (*De Veritate*, q. 22, a. 15, ob. 3). "Haec enim cognitio ad electionem requiritur, in qua principaliter consistit moralis virus" (*Scriptum Super Sententiis*, lib. III, d. 35, q. 1, a. 3, ql. 2). "Proprium virtutis moralis est facere electionem rectam" (*S.Th.* I-II, q. 65, a. 1). "Electio maxime videtur esse propria virtuti" (*In Decem Libros Ethicorum*, lib. III, lect. 5, n. 432).

[76] *Mt* 7:20.

not act on them will be like a fool."[77] That is, from love, or good intentions, there consistently follow good works.[78]

> It needs to be underlined that the works of which the Bible speaks are not something abstract, but very concrete: to be noted the different lists of what must be done or not done, beyond what is said in the Sermon on the Mount, found in: *Rom* 1:22–32; 12:6–21; *1 Cor* 10:7–11; *Gal* 5:19–22; *1 Pt* Ch. 2, 3 and 4; etc. Throughout history there were sects which sought to affirm a morality without the effort of concrete works: nevertheless the attempt to establish a morality on two isolated planes, i.e. a morality of intentions and a morality of works, was always destined to be unsuccessful; it entailed not having understood deeply the dynamic of the will and, still worse, to have disregarded the words of Jesus, for it is clear that such attempts do not have the least bit of scriptural foundation, as was recently affirmed by *Veritatis Splendor*, 82.

The Role of the End in Moral Evaluation — The moral quality of the end for which an action is chosen affects the morality of the action in different ways depending on the moral qualification of the choice. *Actions which are indifferent in their object become good or evil on account of their end.*[79]
Actions that are good in their object (e.g. friendly behavior), on account of their end can *become*: 1) *morally better*: e.g. to make friends out of love of God, for helping a neighbor, for finding companions in a sport; 2) *morally worse*: on account of disordered concomitant motives; e.g. to make friends with (and not for) the vainglory of being more popular; 3) *evil*: e.g. to make friends in order to find accomplices for a robbery. Regarding this, the Gospel speaks of the hypocritical "virtues" of the Pharisees;[80] "an added bad intention (such as vainglory) makes an act evil that, in and of itself, can be good (cf. *Mt* 6:2–4)."[81]
An action which is evil in its object can become more or less evil through the intention: and so Jesus says "*Father, forgive them, they know not what they*

[77] *Mt* 7:21,24,26.
[78] Cf. *Mt* 25:40,45; *Jn* 13:15; *Rom* 2:13; *Heb* 10:24–25; *Jas* 2:18; *1 Jn* 3:18; *Rev* 2:23,26; 22:12. Also the Fathers of the Church: "We must always believe in facts and works, not rhetorical discourses. To speak and to promise is easy for anyone, but it is not likewise easy to perform, moving toward action, one's ideas. Why have I said this? Because, up until this day, there are many who say they fear and love God, while with their works they demonstrate the opposite: God, instead, asks to be loved also with works. For this reason Jesus said to the disciples: 'If you love me, observe my commandments.' For he had first said: 'Whatever you may ask, I will do it', because they might not believe that it was enough to ask, he added: 'If you love me'. 'Only under such a condition—he says—will I do it'" (Saint John Chrysostom, *In Ioannem Homilia*, 75, 1: PG 59, 403), our translation.
[79] Cf. *Mt* 15:5–7; *Mk* 7:20–21.
[80] Cf. *Mt* 23:28; *Lk* 11:39 – 12:1.
[81] *CCC*, 1753.

do";[82] *but it can never become good*: "If acts are intrinsically evil, a good intention or particular circumstances can diminish their evil, but they cannot remove it. They remain 'irremediably' evil acts; per se and in themselves they are not capable of being ordered to God and to the good of the person [...]. Consequently, circumstances or intentions can never transform an act intrinsically evil by virtue of its object into an act 'subjectively' good or defensible as a choice."[83]
In reality, the person who knowingly chooses an action contrary to a virtue never has—except in cases of invincible ignorance—a morally good intention: in such cases the intention is only apparently good, and the reasons which are given for acting have, at their base, more the character of self-justifications than reasons for acting in that way.[84]

6.4.4 The Circumstances

Beyond the two principal elements of the moral act, there exist a set of secondary elements that influence its morality: the various personal and environmental conditions, the appearance—attached to the principal intention—of diverse secondary motives, the time or place in which the action is executed, etc. All these elements constitute the moral circumstances, which are also components of the human act but of a secondary moral value. The Bible takes account of this reality when, beyond the essential elements, it reaffirms the importance of such concomitant factors: the value of the widow's mite, the difference in fault between Pilate and the Pharisees, the greater responsibility of the person who is placed in a position of authority.[85] The consideration of the moral circumstances allows us, furthermore, to adequately understand man's behavior in concrete situations, the behavior of a being who acts in his own environment and in continuity with his temporal existence.

> Following *S.Th.* I-II, q. 7, a. 3, the moral circumstances can be grouped into two categories:

[82] *Lk* 23:34; cf. *Mt* 11:20–24.
[83] *Veritatis Splendor*, 81. Saint Paul said that one cannot do evil, even with a good intention (*Rom* 3:8) and Saint Thomas writes: "No evil done with good intention can be excused" (*In Duo Praecepta Caritatis*, 6, n. 1168; cf. *S.Th.* I-II, q. 88, a. 6, ad 3). In fact, "A good intention (for example, that of helping one's neighbor) does not make behavior that is intrinsically disordered, such as lying and calumny, good or just. the end does not justify the means. Thus the condemnation of an innocent person cannot be justified as a legitimate means of saving the nation." (*CCC*, 1753).
[84] "Quando aliquis vult malum propter bonum, illud bonum non est finis actus voluntatis, secundum se considerati, sed est finis a volente inordinate praestitutus" (*Scriptum Super Sententiis*, lib. II, d. 38, q. 1. a. 5, ad 1).
[85] Cf. *Mk* 12:41–44; *Jn* 19:11; *Titus* 1:5–9.

1. 1) Circumstances which regard the moral object:

   - time (*quando*): a late act of service loses some of its effectiveness;
   - place (*ubi*): it is not the same to insult a person in public as in private;
   - quantity of the object (*quantum*): economic value of the stolen goods;
   - effects of the action (*quid*): the alms a person receives save him from grave physical or moral danger.

2. Circumstances which regard the agent:

   - condition of the subject who acts (*quis*): example of the widow's mite;[86] "it is not the same when a person who has the advantage of the Holy Spirit and is filled with His benefits incurs a fault [...] than when the same transgression is done by a person without such privileges";[87]
   - mode of acting (*quomodo*): e.g. the order and intensity of exercising one's duties[88], or else to act deliberately in contrast to acting with obscured reason on account of a vehement passion;
   - means employed (*quibus auxiliis*): for the employment of more effective means implies a greater voluntariness for doing good or evil; e.g. the good Samaritan adopts extraordinary means for helping the injured man;[89]
   - circumstantial motives (*cur*): e.g. to perform a service out of courtesy, but expecting a certain recognition or compensation is less meritorious than doing it for charity and absolute benevolence.[90]

The morality of human action does not only depend on the object or the end, but also on the moral circumstances. However, not all of the morally relevant circumstances are in the physical order, but there are also circumstances of the moral order: a physical circumstance can be morally irrelevant in certain cases (if the thief is married) and relevant in other cases (if the person who fornicates is married). Sometimes it happens that something which would seem to be a circumstance in reality modifies the moral essence of the act and, therefore, is no longer a moral circumstance in a strict sense (e.g. a theft in a Church is a sacrilege: its own moral object). The Council of Trent recognized this when it prescribed that grave sins should be confessed in the sacrament

[86] Cf. *Lk* 21:1–4.
[87] Saint John Chrysostom, *In Matthaeum Homilia*, 26, 7: PG 57, 341, our translation.
[88] Cf. *Lk* 19:17,19.
[89] Cf. *Lk* 10:34–35.
[90] Cf. *Mt* 5:44–47.

of penance along with circumstances capable of changing the species of the acts.[91]

Strictly speaking, moral circumstances exist as accidents of the moral act, whose substantial morality is provided by the object and end. Thus, *they increase or diminish the goodness or evil of the act, without however ever rendering an evil act to be good, or a good act to be evil, and without changing its moral or theological species.*[92]

We just spoke of there being circumstances that cannot be considered accidental elements of the moral act. These are aspects which change the moral species of the action. Therefore, sins of theft do not all pertain to the same moral species: there is simple theft, robbery (with violence), and sacrilegious theft. In general terms it can be affirmed that a circumstance is that characteristic which would have no relation with the moral order if it did not accompany something which in itself already possesses a relation of conformity or opposition with the virtues. For example, that there is much or little money is morally significant only if it is stolen money, that is to say, the amount stolen is morally significant and not the amount of money in itself. In contrast, if a determinate quality is the primary reason for which an action is opposed to the moral order, such a quality constitutes the moral object. For example, if a person interrupts a religious ceremony by singing a popular song (which he could freely sing at home when he likes), it would not be said that the chosen action was that of singing, and that the presence of a religious ceremony was a circumstance of place: the moral action (*genus moris*) that is considered in contrast to the virtue of religion is *the interruption of a religious ceremony,* and singing is a circumstance (the means employed for interrupting the act). The circumstances which change the moral species of the action are in truth elements of the very essence of the act's moral object.[93]

6.4.5 The Development of the Ecclesial Doctrine in Response to the Debate Concerning Proportionalism

The encyclical *Veritatis Splendor* critiques the moral approaches known as consequentialism and proportionalism because they deny the existence of acts which are intrinsically evil, as well as the absolute value of ethical norms which forbid such acts.[94] "[T]he opinion must be rejected as erroneous which

[91] Cf. *De Sacramento Paenitentiae*, ch. 5 e can. 7: DS 1681 and 1707.

[92] Cf. *CCC*, 1754.

[93] Cf. *S.Th.* I-II, q. 18, aa. 10–11. cf. A. Rodríguez Luño, *Etica* (1992), nos. 252–253; Idem, "'Veritatis Splendor' un anno dopo. Appunti per un bilancio (II)" (1995), 61.

[94] The encylical *Veritatis Splendor* understands by consequentialism the ethical conception which "claims to draw the criteria of the rightness of a given way of acting solely from

maintains that it is impossible to qualify as morally evil according to its species the deliberate choice of certain kinds of behaviour or specific acts, without taking into account the intention for which the choice was made or the totality of the foreseeable consequences of that act for all persons concerned. Without the rational determination of the morality of human acting as stated above, it would be impossible to affirm the existence of an 'objective moral order' and to establish any particular norm the content of which would be binding without exception."[95] The encyclical seems to want to put in relief the concrete doctrinal motivation of this expressed judgment, and therefore explicitly affirms that these two ethical theories are not faithful to the doctrine of the Church, inasmuch as their methodologies have justified, as morally good, "deliberate choices of kinds of behaviour contrary to the commandments of the divine and natural law."[96]

Starting from a simplistic conception of the problem raised by proportionalism, it has been affirmed that proportionalism sustains that an action recognized as morally evil in itself can become morally good on account of its end, circumstances, and consequences. Some authors have erroneously thought that this was the encyclical's critique of proportionalism.[97] That is not exactly the case. An editorial published in the "*L'Osservatore Romano*" made it clear that the root of the problem in discussion was regarding the concept of the moral object;[98] and more concretely, in the fact that it becomes deprived by the proportionalists of a fundamental element which we have called voluntariness,[99] and in this sense it becomes "morally neutralized." Thus, for example, Fuchs wrote: "it cannot be said, therefore, that to kill, inasmuch as it is the execution of a human act, is morally good or evil, because to kill in itself does not yet express the intention and end of the moral subject and therefore cannot be a human action in itself."[100] Without this intention one could not distinguish, for example, between killing for the sake of ending someone's life and killing for legitimate self-defense. It must be retained, therefore—adds Fuchs—that "an action, in its materiality (murder, wounding, going to the

a calculation of foreseeable consequences deriving from a given choice" (n. 75). By proportionalism it instead means the ethical conception which "by weighing the various values and goods being sought, focuses rather on the proportion acknowledged between the good and bad effects of that choice, with a view to the 'greater good' or 'lesser evil' actually possible in a particular situation" (n. 75).

[95] *Ibid.*, no. 82. The internal citation is that of the Declaration *Dignitatis Humanae*, no. 7.

[96] *Veritatis Splendor*, n. 76.

[97] Cf. for example R.A. McCormick, "Some early reactions to Veritatis Splendor," *Theological Studies* 55 (1994) 490–491.

[98] "La ricezione della 'Veritatis Splendor' nella letteratura teologica", *L'Osservatore Romano*, 20-V-1995, 1.

[99] Cf. subsection 6.1.2 of this chapter.

[100] J. Fuchs, *Responsabilità personale e norma morale* (1978), 110, our translation.

moon) cannot be justified from a moral point of view without considering the motive for which a person acts. Without this motive, in fact, it is not yet a human action and only a human action can be evaluated as morally good or evil in a proper sense. A pre-moral evil achieved through a human action cannot be willed as such and must be justified in relation to the entire action by proportionate reasons."[101] What follows from this is the conclusion that "a moral judgment can be formulated only from a simultaneous consideration of three elements (actions, circumstances, ends) in themselves pre-moral. The realization of the three elements (a. Taking money from another person, b. Who is very poor, c. To please a friend) is not the combination of three human actions, which can be evaluated separately, but constitutes a single human action."[102] A moral norm, in order to be truly universal, must take account of all three elements in all their breadth, but this is "theoretically impossible," and for this reason in the moment of the application of a norm it will be discovered that its breadth is less than what was thought.[103]
As diverse authors have noted,[104]in the reasoning of McCormick and Fuchs there is an error regarding action theory, which perhaps was inherited from a certain strand of moral casuistry. The error consists in the physicalist consideration of the moral action (the *killing in itself,* which Fuchs speaks about), deprived of the significance of its voluntariness, a void which they try to overcome by adding elements taken from the person's intentionality (*finis operantis*), the circumstances, and consequences of the act. McCormick and Fuchs are right in stating that an action described in a purely physicalist way (without voluntariness) could not be evaluated morally, because it is not a human action, given that human action is an essentially voluntary reality. However, instead of seeking to understand voluntariness (and therefore the morality) as intrinsic to the action (which they took away in order to consider the action as a pre-moral reality) they want to introduce voluntariness (and therefore, morality) only on the basis of the agent's intention, on the circumstances, and the foreseen consequences. As Rhonheimer wrote, for these authors human action—as a voluntary and therefore moral reality—would be the sum of a physical, or physically described, action (the *killing in itself)* plus the attitude of the person toward an end (the *finis operantis* of the manualistic tradition,

[101] *Ibid.*, 111. Fuchs indicates that the last phrases respond also to the thought of Van der Marck, Van der Poel and Knauer.
[102] *Ibid.*, 112.
[103] Cf. *ibid.*
[104] Cf. primarily W. May, "Los actos intrínsecamente malos y la enseñanza de la encíclica 'Veritatis Splendor'"; M. Rhonheimer, "'Intrinsically Evil Acts' and the Moral Viewpoint: Clarifying a Central Teaching of 'Veritatis Splendor'"; Id., "Intentional Actions and the Meaning of Object: A Reply to Richard McCormick", *The Thomist* 59 (1995) 279–311; A. Rodríguez Luño, "El acto moral y la existencia de una moralidad intrínseca absoluta", in G. Del Pozo Abejón (ed.), *Comentarios a la "Veritatis Splendor"* (1994), 693–714.

which *Veritatis Splendor* 80 calls an "ulterior intention") and toward the circumstances and consequences; but the true problem is that, already on the level of action theory, a physical action plus an intention does not give as a result a voluntary action.[105]
Therefore, the clarification made by the above-cited editorial can be understood perfectly: "Providing guidelines for understanding the moral object, the encyclical cautions about consequentialism and proportionalism as theories which conceive of the constitution of the moral object in such a way as to accept, first, an undue moral neutralization of the chosen action and, then, its constant redefinition based on ulterior intentions and consequences. In such a way, an argumentative context is constituted which certainly does not deny the principle that the end does not justify the means, but renders it practically inapplicable. It is this complex methodological operation which is to be absolutely rejected."[106]

6.5 The Morality of an Act's Effects

The voluntariness of an action carries with it, at least in a certain measure, the voluntariness of the effects which come about because of such an action. A moral evaluation of an action must keep in mind the morality of its consequences. The problem that can be presented is very complex. Moral theology has drawn some criteria that may help us solve these problems from the living tradition of the Church and the many concrete experiences and reflections on life contained therein.

6.5.1 The Moral Imputability of the Consequences

The problem we face is in knowing when one is morally responsible for good or bad consequences of an action or omission of action. Even if this theme is rather broad, here we shall limit ourselves to indicate five principles that may help us to resolve the cases that are more frequently presented.[107]

1. We are responsible for the negative consequences of our evil actions, even if these consequences were not foreseen: though having been foreseeable.[108] We could have avoided them if we had done what is good or if we had not done an evil action. When someone throws a person to the ground to rob from him, and as a consequence the attacked person

[105] Cf. M. Rhonheimer, *Intentional Actions and the Meaning of Object* (1995), 286–287.
[106] "La ricezione della «Veritatis Splendor» nella letteratura teologica" (1995), 1.
[107] We follow here the more essential aspects of the more broad study offered by M. Rhonheimer, *The Perspective of Morality* (2011), 385–389.
[108] Cf. *CCC* 1736.

dies from the fall, then the thief is responsible for his death, even if he only intended to rob him: not intending to kill him.

2. The good consequences of evil actions cannot be ascribed as merit to the agent. For example, a thief will not be praised or awarded who, committing theft in a place where he does not expect anyone to be present, collaterally prevents a terrorist from leaving an explosive device there that could have hurt many people.

3. We are not responsible for the *unforeseeable* negative consequences of our good actions.[109] Such consequences are simply not intentional, as long as we really could not predict them. The policemen that uncover a crime and bring a criminal to justice are not responsible if the criminal, once in prison, commits suicide.

4. We are not responsible for the foreseen negative consequences of the omission of an evil or forbidden action. Whoever rejects someone else's bribe is not responsible for the illicit actions which that other person does in order to get what he desires, even if they are more immoral.

5. One is not culpable for the foreseen negative consequences of a good action, so long as the action meets the conditions proposed in our discussion of the principle of double effect.

6.5.2 An Action of Double Effect

A recurrent reality of daily life is the existence of acts which, beyond their desired effects, have also consequences which are not desired, but tolerated for love of the good effect which is sought; this type of action can also be called a "voluntarium indirectum" or "indirect voluntary act."[110] The moral problem is present when one of these effects which are not desired appears as an ethical evil: for example, to sell a gun to someone who can use it to steal something. The question which is posed is: when is it licit to perform an action which beyond its good effects involves something which is morally evil?

We can specify some summary *conditions* which must be fulfilled—all together—in order for it to be licit to perform an action (or to not act) when this also provokes an evil effect.[111] These are:

[109] Cf. *CCC* 1737.

[110] Cf. what was said above in subsection 6.2.2.

[111] We are aware that this approach has been criticized by some authors; nonetheless the critiques seem to regard more the casuistic applications and the almost mechanistic deviations than the moral principles which make up this problem themselves. On the other hand, though diverse practical problems could be resolved with other instruments of moral analy-

1. *The performed act must be good in itself, or at least indifferent:* the morality of the action in itself has priority over the effects; for this reason, before studying the goodness or evil of the effects the act itself must be considered, otherwise any act could be licit which *here and now* can derive positive effects.

2. *Good effects cannot be accomplished through an evil action*: We should not do evil that good may come of it.[112] If good comes about from evil, the evil is not "indirectly voluntary" but rather willed directly as a means.[113]

3. *The person must directly will the good effect* (i.e. have a good intention), and accept reluctantly and tolerate grudgingly the evil effect. Therefore, the person must do whatever possible to avoid, or at least limit, the evil effect. This is so because people do not will things in a general, but rather a concrete manner: in a free agent "the intention is directed to some particular good, if action is to result, for universals cause no movement, but particular things do, since actions go on in their area. Therefore, if a particular good that is intended has attached to it, either always or frequently, a privation of good according to reason [thus voluntary or morally qualified], then the result is a moral evil; and not by chance, but either invariably or for the most part."[114]

4. *There must exist proportionality between what is intended and the evil which is tolerated*: it is not morally justified to risk one's own life to earn a few dollars, nor to put pregnancy in danger in order to avoid smaller problems. This proportionality requires that the good effect be more important: a) the more grave the tolerated evil is; b) the more proximity there is between the performed act and the production of the evil: so it is different to invest one's savings in a publisher which has many immoral publications than it is to invest it in a bank which has partial ownership of that publishing company; c) the greater the certainty of the evil effect: e.g. selling alcohol to a drunk person; d) the

sis, this would not always be possible if one ignored the role of the "indirect voluntary" act. On this theme, see: V. Alonso, *El principio del doble efecto en los comentadores de Santo Tomás de Aquino, desde Cayetano hasta los Salmanticenses*, Roma 1937; J.T. Mangan, "An Historical Analysis of the Principle of Double Effect", *Theological Studies* 10 (1949) 41–61.

[112] Cf. *Rom* 3:8.

[113] See above, subsection 6.2.2.

[114] *C.G.*, III, 6, n. 1905; Cf. *S.Th.* II-II, q. 64, a. 8. For example, whoever studies sexuality—doctors, moralists, etc.—must take necessary precautions so that it does not become an occasion for performing evil: if he has some moral problems as consequence of not having followed the counsel which he has been given, it can normally be said that he lacks a good intention, i.e. the authentic desire to avoid the possible evil effect.

greater one's specific duty to avoid the particular evil is: for example, when the person is a civil or ecclesiastical authority.

6.6 The Psychological Integrity of Human Action and Its Moral Imputability

Having exhausted our study of the evaluation of voluntary action regarding its matter (object, end, circumstances), and its consequences, we now shall move on to concern ourselves with the elements which guarantee or limit the subjective imputability of an action.

6.6.1 Notion of Moral Imputability

To impute means to attribute an action to a person. Imputability is the quality which an action has of being attributed to someone or, more exactly, the state of the person inasmuch as he is the source of the action, in virtue of which this action is to be attributed to him as its author. If the action can be attributed as merit or moral fault we have moral imputability, which does not exactly coincide with juridical imputability.[115] *Only free actions are morally imputable:* man can answer for (give reasons), to himself and to others, only for actions which he himself has planned or organized. That is to say, he should only feel responsible for the actions which can be attributed to him as their author, and in the measure in which he is their author. Now it is of interest to us to study certain conditions and circumstances of the agent which modify the freedom of an action and, consequently, its moral imputability. These are conditions or circumstances of diverse origin which directly or indirectly impact, at least partially, the essential elements of a free act, i.e. formal knowledge of the end and voluntariness, diminishing or even annulling the freedom to act or the act's imputability.

6.6.2 Circumstances Regarding Knowledge that Modify Moral Imputability

Advertence and Its Different Types — Relating to the formal knowledge of the end, we need to first consider the role of advertence (moral awareness-knowledge) and ignorance. *Advertence is the mental act through which the*

[115] Juridical imputability also depends on certain provisions of the civil law. A person can be obligated, by civil law or the sentence of a judge, to pay restitutions for damages caused by an action which was not voluntary, and therefore without having committed a moral fault. In such a hypothesis there is juridical imputability but not moral imputability.

person recognizes what he is going to do or what he is doing, as well as the morality of his action. Regarding moral advertence it is fitting to keep in mind the following distinctions:

1. Regarding its intensity, i.e. for the degree of the person's knowledge of his act and its morality:

   (a) *full advertence*: when the person clearly recognizes both what he does and the morality of his act;

   (b) *partial advertence*: when there are obstacles which render full moral awareness to be difficult, without annulling it; e.g. partial drunkenness, a state of sleepiness or great agitation;

   (c) *inadvertence*: when the obstacle totally impedes the person's awareness.

2. Regarding its mode: this refers to the aspect of the human act grasped by advertence; it is not the same thing, for example, to know the traffic rules and nonetheless not see a stop signal; or to recognize a yellow stripe, but not know that it means that parking is forbidden. For this reason we can distinguish between:

   (a) *advertence (or inadvertence) of the law:* to know (or not know) the existence of a moral law; for example, to know that Sunday Mass attendance is a serious obligation;

   (b) *advertence (or inadvertence) of the fact*: to recognize (or not recognize) a concrete act, while knowing the law relating to it; for example, to know (or not know) that today is Sunday.

3. Regarding its actuality:

   (a) *actual advertence*: knowledge of the act and of its morality in the moment in which the person performs it;

   (b) *virtual advertence*: is present when there previously was an advertence that still influences the act, however it is not present in the moment of acting; for example, the advertence of one's destination when he is traveling. Many of our actions are performed only with virtual advertence.

4. Regarding its extension:

   (a) *distinct advertence (or clear): when there is a precise advertence of the ethical particulars of an act;* for example, to pay a debt while aware of it being an obligation of justice;

(b) *generic advertence (or confused)*: when there is advertence only of the goodness or evil of the act, without exactly distinguishing the specific morality; for example, when it is understood that paying taxes is good, without knowing that it is an obligation of justice.

Moral Principles Concerning Advertence —

1. *An action is morally imputable if it is performed with at least virtual advertence, for this is sufficient for guaranteeing the free nature of the act.* Moreover, it is not possible to always have actual advertence in all our actions. Virtual advertence is also sufficient for committing a mortal sin or performing a heroic virtuous act. Actual advertence is *per se* a cause of greater voluntariness, but *per accidens* a virtual knowledge can generate a more intense moral act; for example, the virtual advertence of a father who works intensely for a long time for his family involves a greater voluntariness than the actual advertence of a little act of courtesy in social life.

2. *Generic advertence of the morality of an action is sufficient for the moral act:* though it is not knowledge of the specific morality of an action, it is a knowledge which nicely distinguishes good from evil.

3. *Partial advertence diminishes freedom, and therefore diminishes the imputability of an act.* In fact, for a sin to be mortal, there must be full advertence, which is not to be confused with reflexive awareness of having offended God: it is sufficient to be fully advertent—but perhaps *in confuso*—that the action is evil, that it is not good to do it, that it is not congruent with the teachings of the Lord, etc. Moreover, partial advertence is not the same as inadvertence; the former, in fact, does not completely take away freedom and, therefore, acts done with it are still partially imputable; for example, a sin which is mortal in itself, if done with partial advertence, becomes venial.

Ignorance — Another problem is that of ignorance. Here there does not exist an obstacle which impedes the application of the act of knowledge which one normally possesses, but, rather, an erroneous understanding of the circumstances of the action and, above all, its morality. That is, an action which is in reality evil is considered good, or vice versa. Ignorance will be studied in Chapter X, when we treat of moral conscience.

6.6.3 Circumstances Pertaining to Voluntariness that Modify Moral Imputability

Non-Voluntary, Involuntary, Mixed Voluntary Actions — At this point we know what a voluntary action is. Right now it needs to be added that an *action is called non-voluntary in order to indicate the simple lack of voluntariness*. The most frequent cause of non-voluntariness is ignorance of the concrete circumstances of an action, principally of its object. Whoever uses a tree as a shooting target and injures a dog, whose presence in proximity of the tree was not recognized, does not hurt the dog voluntarily, for such an effect was never the object of a positive or deliberate act of his will. Such actions do not pertain to the ambit of formal morality, though they can have a certain degree of imputability insofar as non-voluntariness admits of diverse grades.

The concept of an involuntary action adds another element to that of a non-voluntary action. This element is contrariety or opposition of the involuntary action to the act or habitual disposition of the person's will. One of the most frequent causes of involuntary action is violence, but also ignorance of the concrete circumstances of an action. This happens, for example, when a person feels great pain after having realized that he has done, without knowing it, something which he never would have wanted to do, as it was against his own sentiments, convictions, etc.

More frequently the actions are performed by a healthy person, in whom the voluntariness and involuntariness are mixed together: these are called *mixed actions. Mixed actions are free actions that do not however respond to the free initiative of the person.* They are actions done on account of the difficult situation the person finds herself in, and they are done only after having overcome a certain amount of repugnance, for they are opposed to the person's desires, and therefore would not be performed outside of the particular situation in which they are performed. Aristotle fully described this type of action.[116] From the

[116] It is helpful to include here what he has to say: "But with regard to the things that are done from fear of greater evils or for some noble object (e.g. if a tyrant were to order one to do something base, having one's parents and children in his power, and if one did the action they were to be saved, but otherwise would be put to death), it may be debated whether such actions are involuntary or voluntary. Something of the sort happens also with regard to the throwing of goods overboard in a storm; for in the abstract no one throws goods away voluntarily, but on condition of its securing the safety of himself and his crew any sensible man does so. Such actions, then, are mixed, but are more like voluntary actions; for they are worthy of choice at the time when they are done, and the end of an action is relative to the occasion. [base or painful in return for great and noble objects gained; in the opposite case they are blamed, since to endure the greatest indignities for no noble end or for a trifling end is the mark of an inferior person. On some actions praise indeed is not bestowed, but pardon is, when one does what he ought not under pressure which overstrains human nature and which no one could withstand. But some acts, perhaps, we cannot be forced to do, but ought rather to face death after the most fearful sufferings; for the things that 'forced' Euripides Alcmaeon to slay

> moral point of view, it should be added that pressures of a situation do not in themselves eliminate the moral imputability of an action, but sometimes they can reduce or even eliminate it, if the terrors or other passions caused by the proximate peril impede or diminish the use of the reason.

Consent and Types of Consent — *We mean by consent the essential element of voluntariness: the free direction of the will (approval, acquiescence) toward the good (real or apparent) presented by the reason.* Consent is found to be intimately connected with advertence: the latter being a condition of the former. However consent is not a pure redundancy of advertence, for the will can intend the known good more or less intensely, and choose from among diverse goods. Consent pertains both to the intention of the end, and to the choice of the directed actions (means). For practical purposes, the following distinctions are important:

1. *Regarding the degree of consent*:
   (a) *perfect consent*: the will adheres fully to the act, at least in its essential aspects;
   (b) *imperfect consent*: entails the partial adhesion of the will: either because the will does not adhere fully to the object, or because it follows a partial advertence.
2. *Regarding the actuality of the consent*: this is analogous to the divisions for the actuality of advertence (see above), in reference to the will and not to knowledge.

It is also to be remembered that consent can be in reference to the indirect effects of the will, of which we spoke previously.

Moral Principles Concerning Consent —

1. *Imperfect consent, which follows a partial advertence or full advertence, but with an incomplete acquiescence of the will, is sufficient for the morality of the act.* This is so because the will has dominion over its own act and, therefore, if there is advertence and there does not exist violence, the act is to be considered voluntary and imputable. Certainly imperfect consent still diminishes the positive or negative morality of the act.
2. *For mortal sin, which involves a great evil with serious consequences, there needs to be perfect consent;* notwithstanding, as has been said, *it*

his mother seem absurd." (Aristotle, *Nicomachean Ethics*, III, 1: 1110 a 3 - 28; trans. W.D. Ross, http://classics.mit.edu//Aristotle/nicomachaen.html).

is compatible with a certain reluctance and mixed voluntariness. Within the essential perfection of the consent there exist diverse accidental grades: a sin of passion is not the same as a sin of malice; in these cases the intensity of the will influences the degree of the morality, without changing the species of the act.

3. *The reality of our free nature implies that, with normal advertence and if there does not exist external coercion, consent can be said to be perfect when the act is accomplished externally.* In acts which do not have an external manifestation it is more difficult to appreciate the level of perfection of the consent; nonetheless there exist some signs, which can help in cases of *doubt* (i.e. when the person, in good faith, is not sure to have perfectly consented):

    - a perfect consent which changes deep personal behavior is, apparently, clear; in *doubt,* it is presumed that the person in a state of grace did not sin gravely (perhaps he did so only venially), and the person in a state of sin has committed a new sin; analogously if a person who battles to be holy doubts if he has performed an act of worship in a mindless habitual manner, it is probably not the case, but is fully voluntary;
    - with partial advertence, the consent is presumed to be imperfect, even if the act is external; for example, in a state of sleepiness or partial drunkenness;
    - if it is easy to accomplish the exterior act, and it is not done so, it must be supposed to be an imperfect consent.

We shall return to some of these concepts when sin is dealt with specifically (Chapter XI).

6.6.4 Relation of the Passions to Moral Imputability

The Passions in General — It is possible to formulate some principles regarding the influence of the passions on moral imputability that are useful for casuistry.[117] The principles are as follows:

1. *The antecedent passions, in the measure in which they disturb the reason, diminish the responsibility of the act;* for example, an angry person says and does things which he would not do if he were calm. If the passion completely impedes the use of the reason, it annuls imputability, though

[117] Here we use concepts and distinctions which were studied in Chapter IV subsection 4.4.4.

this does not happen frequently; sins committed through antecedent passions are called sins of weakness and, though still potentially mortal, are less grave than those committed deliberately.

2. *Concomitant passion,* which spontaneously follows the voluntary act, *does not affect responsibility;* nonetheless it is a sign of the intensity of voluntariness.

3. *Consequent passions increase imputability, for they were provoked freely in order to act more easily*; for example, to excite one's anger in order to attack with more violence. Here can be included those passions which seem to be antecedent, but in reality are voluntary in their cause, as when a person does not want to reject the thought of a fault commited against him immediately so when he finds the offender again, he is immediately angry.

Special Study of Fear — Fear merits a special consideration, which can have notable repercussions for the will, comparable to those of violence, diminishing and in some cases even annulling moral responsibility.[118] Fear can be serious or mild according to its intensity, which is, however, rather subjective: what is serious for one person, is rather mild for another. It can be just to cause fear in another (a police officer might justly frighten a thief), or it can be unjust, when in itself or its intensity it is not caused by a just or proportionate motive.
Regarding the relation between fear and moral imputability, the following principles can be considered:

1. Fear diminishes voluntariness— though normally does not annul it— according to its subjective or objective gravity; for example, to do good through fear of punishment is less meritorious than to do it with full voluntariness.[119]

2. Positive law does not oblige in cases of grave fear, for it does not oblige *cum grave incommodo*; for example, a person does not sin who does not go to Mass for fear of his life. However, such laws oblige with mild fear; for example, when a person does not go to Mass for fear of getting a chill.

[118] Cf. *CCC*, 1735.
[119] The good done *only* through fear is not meritorious for lack of a good intention; while an evil done *only for fear* is less grave, but is not fully inculpable, for "the love of God entails the obligation to respect his commandments, even in the most dire of circumstances, and the refusal to betray those commandments, even for the sake of saving one's own life" (*Veritatis Splendor*, 91).

3. Negative moral laws (which regard intrinsically evil acts) oblige even with grave fear; for example, it is not licit to apostatize even for fear of death.

4. To overcome fear is a sign of greater voluntariness, as would be the case of helping a person who is very sick, even while having fear of contracting a contagious disease.

5. Fear can render null or at least rescindable certain acts which, for their importance and consequences, require full freedom. So, for example, a marriage contracted under the pressure of a grave fear that is unjustly caused would be invalid.

As we have said, these principles exclusively regard the relation between the passions and moral imputability. From other perspectives other considerations would be possible. It may be enough to consider, for example, that the person who does not succeed in overcoming fear, according to the demands of a healthy realism and due trust in God, should often run into characterological problems that are not of little importance: from anxiety to pusillanimity, from mild neurotic forms to more profound personality disorders. Also from this perspective the virtuous regulation of the passions always comes to coincide with the balance and maturation of the person.[120]

6.7 Meritorious Moral Actions

6.7.1 Merit in Sacred Scriptures

The term *merit indicates the due retribution* for an action or conduct. *Sacred Scriptures rigorously emphasizes that the Creator owes nothing to the creature, but likewise clearly teaches that God rewards good human actions and punishes evil ones.*[121] The Old Testament uses different terms which pertain, with more or less exactness, to the idea of retribution: reward, chastisement,

[120] For the application of the theory of the passions for the task of educating them, see: G. Abbà, "L'architettura delle virtù. Educare a vivere bene," *Studi Cattolici* 35 (1991) 292–297; A. Aguiló, *Educar los sentimientos*, (Madrid: Palabra, 1999).

[121] *Deuteronomy* diligently balances the two aspects: a) the absolute gratuitousness of the provident and redemptive love of God; and b) real human freedom to accept and bring to fruition the divine gifts. Such a doctrine is explicit with regard to the covenant with the people of Israel; however their teachings can be applied to the concrete ethical actions of the person. Re-reading *Deut* 7:7 – 11:32, the following ideas can be outlined:

1. Israel is the beloved people, not for their merits, but for the love and fidelity of God (*Deut* 7:7–8a; 10:14–15); therefore the Lord has delivered it from Egypt (*Deut* 7:8b); so that Israel need not fear other peoples, but remember what the Lord had done for them in Egypt; He asks, however, to destroy all that could induce them toward false gods (*Deut* 7:16, 25–26).

ruin, rendering happy, repaying good actions, punishment, paying for sins, recompense for one's deeds, etc.[122]

Omnipresent in the New Testament is the idea of retribution,[123] that in some way takes place already in this world but, above all, in eternal life: "Amen, I say to you, there is no one who has given up house or brothers or sisters or mother or father or children or lands for my sake and for the sake of the gospel who will not receive a hundred times more now in this present age [[124] The remuneration will be given to "everyone according to his conduct,"[125] but at the same time it must always be recognized that "[w]e are unprofitable servants; we have done what we were obliged to do."[126] The reward depends

2. The Lord will deliver other peoples into the hands of Israel, even if they are more numerous (*Deut* 7:17–24); the people, however, must not think "[a]fter the LORD, your God, has thrust them out of your way, do not say to yourselves, 'It is because of my merits that the LORD has brought me in to possess this land'; for it is really because of the wickedness of these nations that the LORD is driving them out before you. No, it is not because of your merits or the integrity of your heart that you are going in to take possession of their land; but [...] in order to keep the promise which he made on oath to your fathers, Abraham, Isaac and Jacob." (*Deut* 9:4–5).

3. The Israelites must recognize these gifts and repay the Lord's love observing the commandments, which God Himself has promulgated for the good of the people (*Deut* 7:11; 10:12–13), and they must observe them with an attitude of interior docility (*Deut* 10:16); this will consolidate the covenant and will continue the Lord's benevolence, who will love, bless, and multiply the people (*Deut* 7:12–15; 10:20–22); in fact, the promised land is a gift of God, its enjoyment must lead them to praise the Lord and accomplish His law (*Deuit* 8:6–11; 11:1–25).

4. When they shall be in the promised land, they must not think "It is my own power and the strength of my own hand that has obtained for me this wealth," for it was the power of the Lord: another reason to observe the covenant (*Deut* 8, 12–18).

5. If they do not accomplish the Law, the powerful and fearsome God, who acts not with partiality and renders justice (*Deut* 10, 17–18), will punish them (*Deut* 8:19–20) as He did with their fathers (*Deut* 9:7–24); however, it is a merciful punishment, to build up and not to destroy (*Deut* 8:5); in fact the people were not exterminated on account of divine fidelity (*Deut* 7:9; 9:27–29) and on account of Moses's prayer (*Deut* 9:18–20.25–26).

6. Finally, the Lord puts before the people a blessing and a curse, that is, freedom to choose, though he again insists on the necessity of putting to practice the laws and the norms which He had given (*Deut* 11:26–32).

[122] Cf. *Lev* 26:18; *1 Sam* 24:20; *2 Sam* 22:21; *Tob* 13:2; *Prov* 19:17; *Isa* 40:10; *Jer* 15:13; *Ezek* 25:14,17; *Hos* 4:9. It is not necessary to pain ourselves in this regard concerning the evolution which the idea of divine retribution immediately had in the Old Testament. A moment of extreme importance was the reaching, in later Judaism, of a certainty regarding a final judgment and of an afterlife: a context in which an idea of divine retribution was acquired which is closer to that of Christianity's.

[123] Cf. *Mt* 10:41–42; 19:27–29; 20:1–9; 22:1–14; 25; etc.

[124] *Mk* 10:29–30.

[125] *Mt* 16:27; cf. *Rom* 2:6–11.

[126] *Lk* 17:10.

on what God has prepared,[127] for the work of salvation is a gratuitous gift of the love of the Father.[128] Saint Paul recalls that man cannot glorify himself in his own works[129], because it is God who calls each according to his own design, who justifies, and who glorifies.[130] However, real human freedom is not ignored, and it can accept or refuse the divine gift: if it rejects it, it places itself on the road to damnation;[131] if it accepts it, it will be saved through the choice of God, the sanctifying work of the Spirit, and the grace of Christ.[132] Even if the Scriptures make use of a human concept of reward in order to express the reality of merit, the meaning of this biblical notion exceeds the human idea, because God Himself, with His gratuitous anticipatory and consequent gifts, makes it suitable for the person to perform good works: for the Lord "whose goodness towards all men is so great that He wishes the things which are His gifts to be their own merits."[133]. Therefore, "the merit of man before God in the Christian life arises from the fact that God has freely chosen to associate man with the work of his grace. the fatherly action of God is first on his own initiative, and then follows man's free acting through his collaboration, so that the merit of good works is to be attributed in the first place to the grace of God, then to the faithful."[134] The grace of God is the first spring of every human merit.[135] The Saints have always had a living awareness that their merits were pure grace.[136]

6.7.2 The Content of Merit

What is the content of merit? *Man who, helped by grace, gives himself to God in good actions, receives as recompense the gift of the same Lord, that is, a more profound union with the Most Holy Trinity*: "Whoever loves me will keep my word, and my Father will love him, and we will come to him and make our dwelling with him";[137] and this is exactly the grace which makes a person "come to share in the divine nature."[138] To the increase in sanctifying grace is added an *increment of actual grace*, which is a transient aid on the path toward sanctity. On the other hand, because grace is the seed of blessed

[127] Cf. *Mk* 10:40.
[128] Cf. *Jn* 3:16–17; *Rom* 6:23.
[129] Cf. *Rom* 4:2–8.
[130] Cf. *Rom* 8:28–30.
[131] Cf. *Jn* 3:18–20; *Rom* 2:5–9; *2 Thess* 1:6–9.
[132] Cf. *2 Thess* 2:13–17; *Titus* 3:3–7; *1 Pet* 1:1–9.
[133] Council of Trent, *De Iustificatione,* Ch. 16: DS 1548; cf. *Indiculus*, Ch. 9: DS 248.
[134] *CCC*, n. 2008.
[135] Cf. Council of Trent, *De Iustificatione,* Ch. 7 and 16: DS 1530, 1546 and 1547; *Sacrosanctum Concilium*, n. 102; *Lumen Gentium*, 49 and 60; *Gaudium et Spes*, 22.
[136] Cf. *CCC*, 2011.
[137] *Jn* 14:23.
[138] *2 Pet* 1:4.

life, *through merit the first fruits of paradise are more solidly grafted in man.* Thus supernatural merit is the title given to supernatural good acts performed through the increase in the life of grace and through the acquiring of eternal life.[139]

Theology distinguishes between *de condigno* merit, i.e. due in justice, and *de congruo* merit, which supposes a certain suitability, but still takes account of the generosity of the giver. The supernatural order exceeds so greatly human action that *de condigno* merit in a strict sense is proper only to Jesus Christ; regarding the rest of us we can speak instead of *de condigno* merit founded on the gratuitous divine promise, through which, if the person accomplishes good works, and in virtue of the Redemption, he has a right to receive eternal life and the increase of grace and of glory:[140] "Filial adoption, in making us partakers by grace in the divine nature, can bestow true merit on us as a result of God's gratuitous justice."[141] *De congruo* merit is not born from a proportionality—even in virtue of the promise— between action and reward, but from pure divine generosity, inasmuch as it becomes suitable that good works are rewarded. Included in this merit are the grace of conversion, the grace of final perseverance, and the grace which one can merit for others.

Given that the grace of God is the first spring of every human merit, "no one can merit the initial grace of forgiveness and justification, at the beginning of conversion. Moved by the Holy Spirit and by charity, we can then merit for ourselves and for others the graces needed for our sanctification, for the increase of grace and charity, and for the attainment of eternal life. Even temporal goods like health and friendship can be merited in accordance with God's wisdom. These graces and goods are the object of Christian prayer. Prayer attends to the grace we need for meritorious actions."[142]

6.7.3 Conditions for Merit

The conditions for human action to be susceptible of supernatural merit are:

1. That it is a human act: without freedom, there is no merit, because no one merits a reward if he does not act with full freedom and responsibility.

2. That it is a good act: only acts directed a God have the promise of retribution; this does not entail that the action actually be directed toward God, for, as was said, a virtual intention is sufficient; though

[139] Cf. Council of Trent, *De Iustificatione,* can. 32: DS 1582.
[140] Cf. Council of Trent, *De Iustificatione,* Ch. 10 and 16, can. 26: DS 1535, 1545 and 1576.
[141] *CCC*, 2009.
[142] *CCC*, 2010.

renewing a good intention so that it is as actual as possible is a great help in the moral life.

3. That it is an act of the person as *viator*: "For we must all appear before the judgment seat of Christ, so that each one may receive recompense, according to what he did in the body, whether good or evil."[143]

4. That the action is performed by a person in a state of grace: as was said, only charity accomplishes the union with God which is the root of all merit. A person in a state of sin can only have *de congruo* merit.[144]

5. For the same reason, the measure of merit depends on the quality of the person's love.[145] A more arduous action does not entail greater merit in itself, though the degree of difficulty can be a sign of the degree of charity in the act.[146]

6. If the doctrine of merit is understood correctly, the Christian will never become an egotistical "reward seeker": the Christian does not love for merit, but merits because he loves.[147] Nonetheless, because the sought reward is love and union with Christ, the desire to be rewarded is proper to the Christian. Sacred Scripture, in praising Moses (and other righteous persons) for their works, says: "he was looking to the recompense."[148] In the light of these considerations it can be well understood why the thesis that it is a sin to desire merit was condemned.[149] In the depths of the believers soul there will always be a supreme aspiration as sung by the psalmist: "your face, Lord, do I seek!"[150]

[143] *2 Cor* 5:10; cf. *Jn* 9:4.
[144] Cf. Council II of Orange, can. 18 and conclusion: DS 388 e 397; Council of Trent, *De Iustificatione,* Ch. 5: DS 1525; *S.Th.* I-II, q. 114, a. 4; *De Malo*, q. 2, a. 5, ad 7; *De Virtutibus in Communi*, a. 2, ad 18.
[145] Cf. *1 Cor* 13:3; *Jas* 1:12.
[146] Cf. *Sir* 12:1–2; Mt 10:42; 2 *Cor* 9:6; *Heb* 6:10–12.
[147] Cf. *Rom* 14:6–8; *2 Cor* 8:7–8.
[148] *Heb* 11:26; cf. *Lk* 23:51.
[149] Cf. Council of Trent, *De Iustificatione,* can 31: DS 1581; Decree of the Holy Office, 7-XII-1690, 13: DS 2313.
[150] *Ps* 26:8.

Chapter 7

The Moral Virtues and the Gifts of the Holy Spirit

7.1 The Virtues in the Catholic Theological and Moral Tradition

7.1.1 Origins in Greek Philosophy

Virtue (*aretê*) is one of the fundamental concepts of Greek philosophical anthropology and ethics, where it means the *moral excellence of a person.* Originally, the Greek language knew a more broad use of the term virtue, which could express the excellent qualities of things, animals, men, or divinities. Already with Socrates it was employed with a more restricted meaning to refer particularly to moral excellence, understood prevalently as knowledge of the good which could be communicated through teaching. In this line, Plato develops the classification of the four virtues: prudence, fortitude, temperance, and justice,[1] which have gone on to be celebrated in western philosophical thought. In a rather critical dialogue with the Socratic-Platonic tradition, Aristotle carried the doctrine of the virtues to their most complete classical expression. For him, virtue is the habitual and stable (*héxis*) perfection of the human operative faculties: both the intellectual faculties (*dianoetiche* or intellectual virtues) and the appetitive faculties (ethical virtues). Human life lived according to the virtues represents for Aristotle the best mode of living for humans—the good life, or happiness. The stoic tradition would take up the doctrine of the virtues, particularly insisting on the harmony between the life according to the virtues and life according

[1] Cf. Plato, *Republic*, Bk. IV: 427 E, 433 B-C, 435 B, etc.

to nature. In this direction, Cicero's work *De Officiis* was of notable importance for its influence on some Christian writers.

7.1.2 Sacred Scriptures

The Hebrew language does not possess a correspondent term to the Greek word *aretê*. The Greek version of the Old Testament, the Septuagint, uses the word *aretê* to translate certain Hebrew expressions which almost always mean the glorious action of God. In the books of the Maccabees, the term *aretê* is often employed to mean the fidelity of God, as well as courage, virility, and prudence. The Greek influence is rather evident in the book of *Wisdom*: virtue is contrasted with vice,[2] and put in relation with immortality,[3] while the four platonic virtues are also mentioned: "[I]f one loves justice [in a generic sense to mean sanctity], the fruits of her works are virtues; For she teaches moderation and prudence, justice and fortitude..."[4] As far as the Old Testament is concerned, a virtuous man acts with the power and vigor (virtus) of the divine Spirit, as is seen, for example, in the messianic oracle of *Isa* 11:2: upon the Messiah will rest a spirit of wisdom and understanding, of counsel and fortitude, of knowledge and fear of the Lord.

In the New Testament the term *aretê* is seldom used. In *1 Pet* 2:9 and in *2 Pet* 1:3 it is applied to God. In two other passages, *Phil* 4:8 and *2 Pet* 1:5, it refers to the good behavior of Christians. Nonetheless, there are numerous catalogues both of virtues and vices, which summarize the moral attitudes that are congruent, or not, with the Christian life: concretely, in the New Testament there are found at least fourteen catalogues of virtues[5] and twenty-one catalogues of vices.[6] Though the vices listed are many, and not always the same, their common denominator can be recognized as an inordinate love of self, which leads to the satisfaction of the desires of the "flesh": lust and greed, which become sorts of idolatry that produces envy, quarrels, dissensions, etc.

In general terms, it can be affirmed that *the Scriptures underline that the direct effort toward virtue does not begin with man himself, but with God: the Christian virtues are explicitly connected with the action of the Holy Spirit;* they are the "fruits of the Spirit,"[7] because under His influence we await the hope of justification through faith working through charity.[8] For a Christian,

[2] Cf. *Wis* 5:13.
[3] Cf. *Wis* 4:1.
[4] *Wis* 8:7.
[5] Cf. *1 Cor* 13:4–7; *2 Cor* 6:5–10; *Gal* 5:22; *Eph* 4:2–3,32; 5:9; *Phil* 4:8; *Col* 3:12–15; *1 Tim* 4:12; 6:11; *2 Tim* 2:22; 3:10; *Titus* 2:1–9; *1 Pet* 3:8–9; *2 Pet* 1:5–7.
[6] Cf. *Mk* 7:21–22; *Rom* 1:29–31; 13:13; *1 Cor* 5:10–11; 6:9–10; *2 Cor* 12:20–21; *Gal* 5:19–21; *Eph* 4:31; 5:3–5; *Col* 3:5–9; *1 Tim* 1:9–10; 6:4–5; *2 Tim* 3:2–5; *Titus* 1:6–7,10; 3:3; *1 Pet* 2:1; 4:3, 15; *2 Pet* 2:10, 13–15; *Rev* 9:20–21; 21:8; 22:15.
[7] Cf. *Gal* 5:22.
[8] Cf. *Gal* 5:5–6.

not only the origin, but also the end of the principal virtues is God Himself; these are the theological virtues, the soul of the Christian life: "[C]alling to mind your work of faith and labor of love and endurance in hope of our Lord Jesus Christ."[9]

Many passages in the New Testament emphasize that *through the virtues, the Christian walks according to the example of Christ.*[10] The perspective of the virtues can well constitute "the human and rational prerequisite for a Christocentric morality of charity, which allows one to overcome a morality of pure obligation and makes it possible to unite the natural and supernatural dimension."[11]

> Within the study of the virtues in light of the Scriptures, a distinction must be made between virtue as moral excellence and virtue in connection with the philosophical/anthropological doctrine of the habits—as perfections proper to the human operative faculties. From the first point of view, it cannot be denied that the Bible underlines more often ethical excellence as a set of possessed and integrating qualities of the person's moral being and, therefore, the concept of "righteousness" corresponds to the person who practices the virtues and not so much to someone who simply adheres to an external norm. The Old Testament is not lacking in concrete descriptions of virtuous or vicious behavior and the examples of virtuous persons are highlighted: Abraham, Moses, Ruth, Judith, etc.; there is also praise and stigmatization of attitudes proper to the virtues or vices, especially in the prophets and wisdom literature. For example, *Sirach* speaks of fear of God (Ch. 1), patience (Ch. 2), humility (Ch.3), mercy (Ch. 4), sins to avoid (Ch. 7), prudence (Ch. 8), avarice (Ch. 14), lying (Ch. 20), laziness (Ch. 22), lust (Ch. 23), honesty (Ch. 27), temperance (Ch. 31), etc. The New Testament also assigns the title of "righteous" (holy) to different persons: Abel, John the Baptist, Joseph, Zachariah and Elizabeth, Simeon,[12] etc. The Sermon on the Mount appears as a summary of the moral attitudes proper to Jesus's disciples, nonetheless taking account of the fact that Christian life is not an accumulation of disparate good acts, but a unitary interior disposition which is made concrete in singular actions.[13] Between the exalted moral and religious qualities of the Sacred Scriptures and the moral qualities considered virtuous by ethical philosophy there exists a notable convergence. It could not be otherwise, for the perfect-

[9] *1 Thess* 1:3; cf. *1 Cor* 13:13.
[10] Cf. for example *Eph* 5:2; *Phil* 2:5; *Col* 3:13, 17.
[11] L. Melina, *Cristo e il dinamismo dell'agire. Linee di rinnovamento della Teologia Morale Fondamentale (*2001), 198, our translation.
[12] Cf. *Mt* 1:19; 23:35; *Mk* 6:20; *Lk* 1:6; 2:25.
[13] Cf. *Mt* 7:17–20.

> ing of human character is presupposed and included in the perfection of the saint.[14]

On the other hand, for what regards a habit as a category of philosophical anthropology, there is not found an explicit treatment in the Bible. Revelation intends, primarily, to transmit a moral and religious teaching, and not to furnish the philosophical categories suitable for a systematic comprehension of the moral life as a human and Christian phenomenon. This is a problem that remains open to further theological elaboration, as we shall see in what follows. Now we would like to point out that the concept of virtue is more congruent with the moral message of the New Testament than the discussions about moral normative foundations (sometimes deontological, other times teleological) which are so prevalent in contemporary ethics.

7.1.3 The Fathers, the Magisterium, and the Theologians

The Fathers saw in the virtues the stairs to climb from the earth to Heaven and dispositions for achieving identification with the Lord: "The end of a virtuous life consists in becoming similar to God."[15] The virtues are necessary for reaching the goal to which God calls us[16]; and, in turn, they are already a certain actualization of the divine call, inasmuch as they make man similar to the unique and perfect model who is Jesus Christ; the human virtues do this as well, because He is also "perfectus homo." The cardinal virtues which, perhaps under other names, are praised in other passage of the Scriptures,[17] form a part of the Christian tradition. Among the Fathers of the Latin Church, the contributions of Saint Ambrose[18] and Saint Augustine were important. The Augustinian definition of virtue was, in fact, the most used by Christian writers in the Middle Ages: "Virtue is a good quality of the soul through which we live rightly, which cannot be used for evil, and which God produces in us without us."[19] Among the Fathers of the Church, moreover, it was very

[14] A biblical study of humility, temperance, gentleness, prudence, justice, simplicity, poverty, patience, etc., would constitute a further and decisive confirmation of it.

[15] Saint Gregory of Nyssa, *Orationes de Beatitudinibus*, 1: PG 44, 1199 D. Our translation.

[16] "The certain road for reaching beatitude is virtue" (Saint Thomas, *Compendium Theologiae*, Ch. 172: *Opuscula Theologica*, vol. I, (Taurini-Romae: Marietti, 1954), no. 340).

[17] Cf. *CCC*, 1805.

[18] From Saint Ambrose, his work *De Officiis Ministrorum* is important, being inspired by the above-cited work of Cicero.

[19] This definition was formed by Peter Lombard (*Liber Sententiarum*, II, d. 27, c. 5) and was completed by Peter of Poitiers (*Sententiarum Libri Quinque*, III, c. 1) on the basis of the reflections of Saint Augustine in Chapter 19 of the second book of the *De Libero Arbitrio* (NBA 3/2, 275). Saint Thomas Aquinas uses it for an example in *S.Th.* I-II, q. 55, a. 4 and in *De Virtutibus in Communi*, a. 2.

much debated whether or not the acquired human virtues, separated from charity, could be considered true virtues.

The concept of virtue is frequently used by the Magisterium of the Church and by Christian catechesis to refer both to the theological virtues—faith, hope, and love—and to the ethical qualities which, in the Christian, are connected to the former. "The human virtues are rooted in the theological virtues, which adapt man's faculties for participation in the divine nature: for the theological virtues relate directly to God. They dispose Christians to live in a relationship with the Holy Trinity. They have the One and Triune God for their origin, motive, and object."[20] There are many other documents that could be cited which express the moral perfections of man in terms of the virtues.[21] Leo XIII, for example, speaking of Jesus Christ, affirms: "From contemplation of this divine Model, it is more easy to understand that the true worth and nobility of man lie in his moral qualities, that is, in virtue; that virtue is, moreover, the common inheritance of men, equally within the reach of high and low, rich and poor; and that virtue, and virtue alone, wherever found, will be followed by the rewards of everlasting happiness."[22]

Regarding theology, it may be enough to remember that Saint Thomas considers the principles of Christian life (faith, hope, and love) as theological virtues and, with this in mind, his most mature theological synthesis, the *Summa Theologiae*, is structured according to the theological and moral virtues. He not only takes up what was said concerning the virtues in his time period, but also takes up and integrates into a theological context the specific originality of Aristotelian ethics as an ethics of virtue, while introducing into it some important modifications.[23] From the time of Saint Thomas on, the treatment of the virtues was an integrating part of moral theology, even if the specific characteristics of virtue ethics were not always well understood and often were lost along the road. This has created significant problems for moral theology, and even biblical theology, as we have already seen.[24]

> Today, there is no shortage of authors—and in some theological environments it has become commonplace—who retain that the concept of virtue is irreparably marked by a sense of a self-affirmation or purely human ethical achievement which renders it unusable for moral theology. In light of the preceding considerations—and primarily in light of the use of this concept by the Fathers, by the Magisterium, and by the Catholic theological tradition, wherein they have been inserted into

[20] *CCC*, 1812.

[21] An analytical index of Vatican II can show the broad use which the last Council uses of the concept of virtue; see also: CCC, 1803–1829; *Veritatis Splendor*, nos. 48, 52, 61, 64, 73, 76, 82, 93 , and 100.

[22] Leo XIII, Enc. *Rerum Novarum,* 15-V-1891, no. 24: ASS 23 (1890–91) 652.

[23] Cf. what we have said in Chapter I subsection 1.2.2, and the bibliography there cited.

[24] See Chapter I subsection 1.3.2, and Chapter II subsection 2.4.3.

> a context essentially determined by the theological virtues—we retain that there should be no doubts regarding the theological legitimacy of presenting Catholic moral theology as a morality of the virtues.

7.2 The Moral Virtues

7.2.1 Intellectual and Moral Virtues

We shall move now to an initial description of the virtues and their diverse types, in order to deepen our understanding of the concept of moral virtue. *In general terms, virtue can be defined as a good operative habit.*[25] An operative habit is a stable disposition of a human faculty (the intellect, the will, the sensible appetites), through which it is well or poorly structured regarding the actions proper to it. The habits which perfect the human faculties are the virtues; the habits which, instead, denigrate them are the vices. The virtues perfect the operative powers so that they can accomplish good and excellent actions with ease, readiness, pleasure, and naturalness in different circumstances and before diverse objects. Understanding virtue in this sense, Aristotle considers virtue as that which renders good its possessor and his work.[26] All of the virtues, inasmuch as they are operative habits, distinguish themselves from *entitative habits,* which are qualities which well dispose (or poorly dispose) the nature of man, and not the faculties directly; so, for example, sanctifying grace is a supernatural entitative habit, infused by God, which elevates human nature, rendering it a mediated principle of actions proper to a child of God.

Among the operative habits (virtues) there need to be distinguished the *supernatural or infused virtues,* which man receives from God as a gift linked to grace, and *the virtues which are human and acquired* by man through his own exercise and personal effort. We shall occupy ourselves with the infused virtues in section 5 of this chapter. As regards to the human or acquired virtues, they can be either *intellectual or moral*: the intellectual virtues pertain to the reason and perfect it both in its speculative aspect as well as its practical aspect, whereas the moral virtues perfect the will and the tendencies. Prudence,[27] justice, fortitude, and temperance are the principal moral virtues—referred to as the *cardinal virtues.*

> The virtues of the speculative reason are: 1) the habits of the first speculative (intellect) and moral (synderesis) principles; 2) the habit of considering things in relation to the ultimate causes of all reality (wis-

[25] Cf. *S.Th.* I-II, q. 55, a. 3.

[26] Cf. *Nicomachean Ethics,* II, 6: 1106 a 15ff.

[27] Even if prudence perfects the reason, for its object it is a moral virtue, as will be explained in what follows.

dom); and 3) the habit of studying the ultimate causes of each genre of things descending from them to conclusions (the diverse sciences). The habits of the practical reason are: 4) prudence (*recta ratio* agibilium), which determines and dictates what must be done in each concrete case in order to act in a virtuous way, and 5) art (*recta ratio factibilium* – *techne*), which teaches us how to produce determinate objects well. The distinction between prudence and technical knowledge presupposes the distinction between acting (*agere*) and making or producing (*facere*).

The intellectual habits provide the capacity for working well, but do not ensure the right use of this capacity: for it is possible to utilize science or technology to do evil. For this reason, such habits do not fully exemplify the essence of virtues, which must be a quality which renders its possessor morally good. The exception is the virtue of prudence because, although it is an intellectual habit with reference to the faculty to which it pertains (practical reason), it is a moral virtue for its object and inasmuch as rectitude of the will is an essential prerequisite of it. The task of prudence is not that of knowing what would be necessary to do if one desired to do good, but rather to direct right action; its principal act is not judgment, but command, through which it guides the other powers in accordance with the demands of moral virtue. Prudence cannot exist if the person does not first wish to be virtuous, and in this sense it presupposes a good will and, as we shall see, the other moral virtues.

7.2.2 Definition of Moral Virtue

We can now take on the study of what more directly interests moral theology, the moral virtues. It will be a study of the philosophical foundations held by Saint Thomas that will, nonetheless, take full account of the data of Revelation, as well as Christian experience. Such a concept of moral virtue is proper to Aristotle, and was easily taken up by Saint Thomas, because it responds to the topic—so important in Christian life—of the achievement of moral excellence, a theme which arises in both ethical philosophy and moral theology.

Saint Thomas performed the study of the moral virtues on the basis of his psychology of the faculties (the reason, the will, the irascible and concupiscible appetites). We can complete such a study—primarily from a descriptive and phenomenological point of view—in the light of what was said in Chapter 5 regarding the tendencies and sentiments.

Man possesses an innate desire to arrive at the fullness of the human condition. The Christian, in virtue of faith, knows broadly what holiness is, union with Christ: through hope and love he desires and loves such a union. *However, a problem immediately arises as to how to govern the tendencies, and regarding which goods one should tend toward in order to accomplish union with Christ on a daily basis, in the multiplicity of personal and social circumstances: in*

the situations in which one finds himself, oftentimes situations which are new and truly unforeseeable that push him to make a choice often rendered more difficult on account of the tendencies and sentiments involved. In this regard, it is possible to point out some actions which should never be done (intrinsically evil actions, always incompatible with life in Christ). However, *it is not possible to determine in advance all that each man must choose in order to accomplish, day by day, union with Christ,*[28] both on account of the complexity and variability of the good to be performed in diverse circumstances, and also on account of the unique "*tendential*" and characterological equilibrium of each individual person. Individuality implies both richness and limits at the same time: "The reason for the deficiency and inadequacy of man's operative capacities to perform good acts is found in the disparity which individuation introduces between man's operative capacity as such and the operative capacity of this or that individual person."[29]

Definitively, the concretization in operative terms both of the human good and of life in Christ requires that the individual is capable of deliberating and judging correctly regarding circumstances, persons, things, affections, etc., in order to identify and make the right choices. In order to ensure the concrete accomplishment of moral excellence, teachings and general rules are not enough. A special perfection in the order of concrete choices and circumstances is necessary. Such a perfection is *moral virtue,* which therefore comes to be rightly defined as "an elective habit which consists in a middle term relative to us, and which comes to be regulated by right reason in the form in which it would be regulated by the truly prudent man."[30] This definition

[28] Because the good, considered in its personal and historical concreteness, "varies in many ways and consists in many things, there cannot exist in man a natural desire for the good in all its determination, i.e. according to all the conditions required in order for it to be effectively good, given the fact that these vary much according to the person's circumstances, of time, of place, etc. And for this same reason the natural judgment, which is uniform, is also insufficient and it is necessary that through the reason, whose responsibility it is to compare diverse things, man may seek after and judge his own good, determined according to all the circumstances, as must be done here and now" (*De Virtutibus in Communi*, a. 6), our translation. This is also evident in the concrete behavior of Christians; for example, in response to the possibility of circumcising the first disciples, Paul's prudence led him to act in diverse ways in the case of Timothy (cf. Acts 16:3) and of Titus (cf. Gal 2:3), according to the circumstances of the community.

[29] G. Abbà, *Lex et virtus* (1983), 190.

[30] Aristotle, *Nicomachean Ethics*, II, 6: 1106 b 36 - 1107 a 2, our translation. Saint Thomas almost always uses this definition; cf. for example: *Scriptum Super Sententiis*, lib. I, d. 46, q. 1, Exp. textus; lib. III, d. 33, q. 2, a. 3, ql. 1, c. e ad 1; a. 4, ql. 2 c. e ad 1; lib. III, d. 35, q. 1, a. 3, ql. 3; *S.Th.* I-II, q. 56, a. 4, ad 4; q. 57, a. 5; q. 58, a. 1, obj. 2 & ad 2; q. 58, a. 2, obj. 4 & ad 4; q. 64, a. 1; q. 65, a. 1; *In Decem Libros Ethicorum*, lib. II, lect. 4, no. 283; lect. 5, no. 301; lect. 7, nos. 322–323; lib. III, lect. 1, nos. 382–383; lect. 5, nos. 432–433; lib. VI, lect. 2, no. 1129; lect. 10, n. 1271 & lib. X, lect. 12, n. 2119; *De Virtutibus in Communi*, aa. 9 & 13. For a monographic study of this definition, see A. Rodríguez Luño, *La scelta etica* (1988).

contains three elements which we shall study in the following three subsections.

7.2.3 Moral Virtue as a Habit of Good Choice

In the first place, we shall note that *moral virtue is an "elective" habit* (*héxis proairetichê*). Elective means "pertaining to choice," and choice is an act of the will which we have already studied,[31] which consists in the determination of the action to perform in view of a further end. Elective habit means, therefore, a habit of good choice, or rather, a habit of a good choice of action,[32] a stable disposition which permits the identification and making of right and excellent choices in every moment and circumstance, a specific perfection of the human capacity of choosing or preferring. In practical terms, this means three things:

1. *Virtue cannot be conceived as a thoughtless habitual response or as an addiction.* It is not an automatism which mechanistically inclines the person to always repeat the same actions. Ethical conduct as an addiction would be completely insufficient for human and Christian moral life, also for the reason indicated in the preceding subsection.

2. *The proper and principal act of a virtue (even if it is not the only act, as we shall see shortly) is the good choice.*[33] The acts of the intellectual virtues—for example, the formulation of a scientific proposition—are objects of choice (I choose to take on the task of developing a mathematical theorem), but do not in themselves regard choices. Here we mean by choice both the choice of action and also the choice of a sentiment or passion.

3. In order to be able to speak of virtuous actions *there must not only be an exterior act conforming to a norm, but also a determinate mode of action.* Concretely, it requires: a) knowledge of what one does; b) to interiorly choose the action as such, i.e. inasmuch as it is good here and now; c) to act with firmness and constancy, without shrinking before obstacles.[34] With regard to virtue or vice, voluntariness[35] and interior choice must be judged more than exterior action, although virtue demands both; this is because an exteriorly correct action may proceed from virtue, but also from ignorance, chance, or a distorted intention. On the other hand, a virtuous choice might not come to effective fruition

[31] Cf. Chapter VI, Section 6.3.
[32] Cf. M. Rhonheimer, *The Perspective of Morality* (2011), 198.
[33] Cf. *S.Th.* I-II, q. 58, a. 1, ad 2; q. 65, a. 1; *In Decem Libros Ethicorum*, lib. II, lect. 7, n. 322.
[34] Cf. *In Decem Libros Ethicorum*, lib. II, lect. 4, no. 283.
[35] Cf. Chapter VI, subsection 6.1.2.

> because the situation does not demand it or for motives that are extraneous to the will and to the foresight of the person who acts.

In light of these three characteristics, it can be said that *moral virtue adapts itself to the freedom proper to the action that perfects it. Indeed, moral virtues are in themselves a principle of elective (choosing) action:* each person finds choosable the type of action to which he is inclined by his own habit, given that this renders his object to be connatural and lovable to him.[36] For this reason, moral virtue does not bypass deliberation or choice, but rather guarantees that both are good. Virtuous action is performed easily, but not instinctively or automatically, but always in an "elective" way, because this is how the virtues' respective faculties operate.

> It remains to be explained how it is possible to perfect and guarantee the rectitude of a capacity, such as the capacity of choosing, which by nature remains open to diverse possibilities, and whose concrete content cannot be fixed universally or in advance. This complicated problem will be studied shortly (section 7.3 of this chapter), after the other elements of the definition of a virtue have been studied.

7.2.4 The Medium Term or Mean of Moral Virtue

It is said that *moral virtues consist in a medium term (in medio virtus) because their elective act—primarily for what regards the affections—must conform itself to the dictates of right reason,* and the measure imposed by the reason can be surpassed (in a negative way) or not reached (again in a negative way) by the spontaneous movements of the powers lacking in virtue.

> *Regarding the cardinal virtues of fortitude and temperance we treat of a "medium rationis" (a mean of reason),* not because the reason is attracted to a middle point at the moment of establishing what would satisfy the tendencies in a suitable way here and now, but because the judgment of the reason guides the sensible tendencies, whose acts come to be directed toward a middle point. That is to say, it is discovered that these tend toward their object with an impulse which is neither greater or less than that indicated by the reason. For example, the mean of the human virtue of temperance with respect to nutrition consists in the desire of necessary nourishment to preserve health, and this requires both that one avoids gluttony as well as the opposite defect of an unhealthy lack of appetite. *The mean is not the same for each person but it comes to be established by prudence in the particular case according to the condition of each individual;* therefore, in the definition of a virtue it speaks of a "medium term relative to us." In the virtue of justice, whose object is a right (that which is due to another) the

[36] Cf. *S.Th.* I-II, q. 78, a. 2.

> *medium rationis* coincides with the *medium rei*, for here excess and defect in the actuation of a tendency are not what is regulated, but rather a thing (a right) is regulated and this right can be violated through excess or defect: the just person is he who renders to each his own, neither more nor less.

7.2.5 The Regulation of the Mean by Right Reason

According to the definition of moral virtue which we are now studying, the medium term relative to us "comes to be regulated by right reason in the form in which it would be regulated by a truly prudent man." *The act of the virtue (that is to say, the execution of the tendency conformed to virtue) comes to be identified and commanded by a judgment of the reason, and not just any reason, but by right reason, i.e. by the practical reason perfected by the moral virtue of prudence.* We already knew that it is up to the reason to interpret, evaluate, and direct affective phenomena.[37] Prudence is the virtue which perfects the practical reason in the accomplishment of this task. It comes to be rightly called *"auriga virtutum"*, the guide of virtue; in a similar way the Bible praises the prudent person[38] and underlines that prudence pertains to the Lord.[39]

We shall occupy ourselves with prudence several times. For now it is enough to note that the moral virtues, considered all together as being like an organism, are the principle of excellent choice not only inasmuch as they guarantee that such a choice will be made and taken to completion but, even more so, inasmuch as they allow for the identification of the choice to be made here and now. *Moral virtues have an important cognitive aspect, and are not in any way just a simple disposition that helps to accomplish a course of action that has been identified without them.* The anthropological foundation of the cognitive dimension of ethical virtues is, as we know by now,[40] the anticipating character proper to the tendencies and the valuations contained in the sentiments. Ethical virtues take advantage of this anticipation and penetration of affectivity for a good purpose. On the other hand, even if it is possible to achieve knowledge in the abstract of what should never be done because it is opposed to the essential demands of virtue (adultery, for example), and such knowledge can be transmitted through teaching (for instance, catechesis), without the moral virtues it is not guaranteed that such universal knowledge will become in the person a personal conviction, firm and practical, to which he may always adapt himself with his own behavior. Practical moral conscience presupposes a well-educated affectivity. The person in whom such

[37] Cf. Chapter V, subsection 5.4.3.
[38] Cf. *Prov* 3:13, 21; *Sir* 18:27–29; *Mt* 24:45–47; *Titus* 2:5.
[39] Cf. *Job* 12:13; *Prov* 8:14; *Isa* 40:14.
[40] Cf. Chapter V, subsection 5.4.1.

a predisposition does not exist will not adapt himself to the aforementioned moral knowledge in practice, and in the end will neither understand it even in theory.

7.3 The Habitual Perfecting of Choice through the Moral Virtues

7.3.1 The Two Dimensions of Moral Virtue

We shall now move on to explain how the moral virtues can habitually perfect human choices. To put it simply, such a perfecting is only possible if, firstly, the principles of excellent choice are guaranteed and, secondly, obstacles that are opposed to it are removed. Keeping mind of what we studied in Chapters V and VI, the habitual perfecting of human choices requires:

1. The habitual intention of a good end, and the removing of obstacles which are opposed to such an intention. This makes it so that the tendencies and the will are rightly ordered in a stable manner.

2. The habitual capacity of identifying the action or actions through which the right end can be performed here and now, and the neutralization of the elements which get in the way of identifying the right choice. These obstacles are in good part constituted by the influence of the preceding passions on the practical judgment of the reason.[41]

3. The choice and performance of the action indicated by the prudential judgment.

   Consider, for example, a lawyer who works along with other colleagues in a law firm, who is habitually overcome by the deformation of the tendency to be esteemed by others which we have called the *anxiety of notoriety*.[42] The habitual deformation of the intentionality at the base of that tendency is a principle of repeated concrete, mistaken choices: each time that the lawyers must study together a strategy to follow in order to resolve a case entrusted to the firm, this lawyer obstinately holds onto his own opinion, and the desire that his opinion prevail and become shared by the others frequently makes him lose his objectivity, without him clearly being aware of it, and this often leads to not only a few problems and failures. In a virtuous person, on the other hand, the base intentionality of that tendency is habitually ordered, and this means that she certainly desires that her own opinions be received by

[41] Cf. Chapter V, subsection 5.4.4.
[42] Cf. Chapter V, subsection 5.2.3.

> others with respect, even when they are not shared by those same persons, but primarily that they come to be appreciated and evaluated for their real value. The tendency, then, remains dependent on the reality of the things, on the value and reasonableness of the given opinion. This attitude is in itself a principle of right choice, which at least avoids an important cause of errors of judgment.

The habitual right ordering of the tendencies according to the measure of truth and reasonableness (right reason) is the first task performed by virtue ethics, and such a task we shall call the *intentional dimension* of virtue, because it consists in rendering habitually right the base intentionality of the tendencies.[43] The right habitual intention generally cannot have as an object a concrete behavior, because this depends on the circumstances.[44] What is proper to a virtuous person is his habitual search for, and subordination to, truth, justice, and reasonableness (right reason). Nonetheless, this, though being necessary for virtue, is not sufficient. Starting from right intention there must yet be performed the second and more important dimension of virtue, that is, the *elective dimension.*[45]

One can then say that *moral virtue is the habitual desire of right ends (intentional dimension) and choices of action which accomplish them (elective dimension),* because the ends of virtue are fixed and universal (justice, truth, reasonableness, etc.), while the concrete actions necessary for accomplishing them vary in diverse occasions and circumstances.[46] We shall now see more specifically way how the virtues act on both levels.

[43] Cf. *In Decem Libros Ethicorum*, lib. VI, lect. 10, nos. 1269 & 1273. Thus writes a famous commentator of Saint Thomas: "To render the intention of the ends of virtue right pertains to the same virtue, not as their consummated and final act, which is the choice (virtue, is in fact an elective habit), but as their first and undeveloped act, through which the appetite is well disposed for the virtue with respect to its good" (John of Saint Thomas, *Cursus Theologicus*, ed. Solesmes, 1938, Isagoge, vol. I, 171). And in the same sense Cajetan writes: "In electione ipsa clauditur intentio finis, quoniam electio est eorum quae sunt ad finem propter finem [quod in definitione, dum dicitur quae est habitus electivus, implicite dictum est quod etiam intentivus finis est" (Cajetan, *Commentary on the "Summa Theologiae"*, I-II, q. 58, a. 5, Comm. IX).

[44] Thus, in the first cited example, it cannot be said that a virtuous person always renounces her own opinion in order to adopt that of her colleagues. There will be cases in which the person is certain that she is right and, for the good of all, must insist on defending her own opinion. There will be other times in which insisting on one's own opinion would be unreasonable obstinacy.

[45] Once the virtuous lawyer of our example takes on the aforementioned problem with righteous intentions, that is to say, seeking to resolve the problem in accord with truth and justice (and not seeking other ends: for her own opinion to prevail, or to obtain at all costs the most earnings possible, etc.), it must be, in the first place, that prudence determine what is demanded by justice in this concrete occasion, and afterwards the choice recognized by prudence must then come to be made and brought to completion, even if this carries with it sacrifices and difficulties.

[46] For the good of all, sometimes one must insistently defend his own opinion; sometimes it would be unreasonable to do so.

7.3.2 The Intentional Dimension of Virtue: Prudence Presupposes the Moral Virtues

The moral habits perfect, in the first place, the basic intentionality of the tendencies and the will in the measure in which each person has need of them. The ethical virtues, as an interconnected whole, make it so that all of the tendencies studied in Chapter V (tendency toward nourishment, sexual impulse, tendency toward possession, desire to know, tendency toward work, etc.) be turned toward their object (food, sexuality, useful goods, knowledge, work, etc.) not in the absolute, i.e. for any cost or without any measure, but that they habitually seek them within the limits of reasonableness, that is to say, in the measure and mode in which right reason considers them proper for the good of the person who acts and for other persons involved.
Saint Thomas refers to the intentional dimension of virtue when he affirms that the moral virtues are the necessary prerequisites of prudence. He means to say that if the tendencies and the will are not well ordered in a stable way, not only will it not be possible to perform what is good, but neither will the person successfully identify what would be good to do in a concrete case. A person habitually overcome by thirst for power or profit, or else by the desire of controlling others, etc., will act in a mistaken way with great naturalness, without being able to understand that he should have acted differently.

> The other intellectual virtues can still exist without the moral virtues (one can be a good mathematician without being courageous or without being moderate), but this is not the case with prudence. "The reason for this is that prudence is the right reason about things to be done (and this, not merely in general, but also in particular); about which things actions are. Now right reason demands principles from which reason proceeds to argue. And when reason argues about particular cases, it needs not only universal but also particular principles."[47] Saint Thomas explains in what follows that with regard to universal principles we are well disposed by moral knowledge, but the same thing cannot be said with regard to particular principles, so that practical knowledge of the good is subject to the influence of the personal dispositions. And so he concludes: "so, in order that he be rightly disposed with regard to the particular principles of action, viz. the ends, he needs to be perfected by certain habits, whereby it becomes connatural, as it were, to man to judge aright to the end. This is done by moral virtue: for the virtuous man judges aright of the end of virtue, because 'such a man is, such does the end seem to him' (Ethic. iii, 5). Consequently the right reason

[47] By "universal principles" we mean here moral ideas of a general character; for example, justice imposes that we respect the property of others. "Particular principles" are instead the virtuous desires which constitute the point of departure for the concrete and circumstantial reasoning which each individual person performs here and now, and which leads to action.

> about things to be done, viz. prudence, requires man to have moral virtue."[48]

In the same sense, Saint Thomas affirms that *the virtuous ends are the principles of prudence*[49], in an analogous way to how the first speculative principles are the prerequisites of all scientific reasoning. The ends of the virtues are the principles of the personal moral knowledge that directs conduct, or practical knowledge in the strictest sense of the term. By "*virtuous ends*" *we mean here the modes of rational regulation of the tendencies, sentiments (passions), and actions, required for the full success of human and Christian life, and which generically (i.e. without departing from the concrete actions which here and now are required) we call prudence, justice, humility, sincerity, fortitude, generosity, temperance, etc.*[50]

The virtuous end is not a principle of prudence if one considers it as a theoretical proposition that forms the major premise of a syllogism or as an abstract value. *What is properly a principle of practical reasoning is a desire for an end,* insofar as the moral virtues—in their intentional aspect—consolidate the desire for virtuous ends: it is said, then, without these there cannot be prudence. The last practical judgment concerning what is here and now suitable, in fact, cannot avoid taking account of the person's actual desires. The correctness of the final practical judgment can be guaranteed only if the person's habitual rectitude of desire is guaranteed (the intentional dimension of virtue).[51] Nonetheless, the moral virtues are not sufficient alone for there to be prudence. That is, the right habitual ordering of the tendencies of the will is indeed a necessary, but not a sufficient, condition.

In summary, *the intentional dimension of virtue produces a stable orientation of the appetites and tendencies that allows one to deliberate without any obstacles coming from the virtues' ends.* In contrast, vice carries with it poor judgment, not only of this or that act, but fixes in the soul a distorted purpose, which can be translated in its extreme as, "all that is pleasurable should be enjoyed," "all difficult efforts should be avoided," etc., taking as its point of departure those things about which the reason imprudently deliberates in an habitual way. The function of virtue is not therefore merely negative—to

[48] *S.Th.* I-II, q. 58, a. 5.

[49] Cf. *In Decem Libros Ethicorum*, lib. X, lect. 12, no. 2114; *S.Th.* I-II, q. 65, a. 1, ad 4.

[50] Cf. the explanations furnished by G. Abbà, *Felicità, vita buona e virtù* (1995), 244–250.

[51] "From this it results that, in order to have the habit of forming such a judgment, a good habitual inclination of the appetitive faculty is necessary; that is, moral virtue. This is the reason for which prudence, as is called the habit relative to this judgment, even if it is essentially an intellectual virtue, constitutes nonetheless, in a material and prerequisite mode, a moral virtue, inasmuch as it supposes the rectitude of the appetite and has as an object the morally good acts proper to it." (A. Millán Puelles, *Fundamentos de filosofía*, 6th Ed., Madrid: Rialp, 1969, p. 654, our translation).

impede the obstacle of the passion—but also positive: to establish a right desire as a practical principle.

> Something different happens with a person who does not possess either virtue or vice: which is the case, for example, with those whom Aristotle and Saint Thomas call continent or incontinent persons. In these two persons there are present a set of demands of right reason and of concupiscence, and for this reason Aquinas says that they implicitly utilize a practical syllogism that concludes in one way or another according to what prevails on each particular occasion, the reason or the passion. In both cases the reason commands: "You should not commit any sin" and the concupiscence at the same time suggests: "Seek pleasure!" The incontinent man is overcome by the passion, assuming the principle which it proposes, and so deliberates and concludes: "this is pleasurable, therefore, it is suitable for me to do it." The continent man succeeds in resisting concupiscence, deliberates, and concludes according to the demands of reason: "This is contrary to virtue, therefore I shall avoid it."[52]
>
> The continent man does well, but not virtuously, because he lacks the firm and peaceful possession of the principles of good deliberation and action; and for this reason his action remains imperfect, full of battle and restlessness, not fully in harmony with the good life.[53] The incontinent man acts poorly, but with less immoral intent than the intemperate person (who possesses the vice of intemperance). Aquinas affirms that the incontinent person acts *eligens (choosing)* and not *ex electione (from choice)*[54] because his evil action is not the logical result of a stable possession of the principles of evil work, but of a momentary passion—to which he has certainly consented—which compels and distorts the deliberative-elective genesis of the action. The intemperate man, instead, peacefully makes decisions contrary to virtue out of a possessed habit.
>
> All of this is a consequence of the different dispositional influence the passions and habit exercise on the practical reason. Antecedent passion is per se an irrational element which, due to the disorder of sin, tends to disturb the decisional process, being able to render it imperfect or evil. Moral habit is, for its intentional aspect, a principle of the practical activity of the reason freely acquired or preserved, and therefore the reason does not suffer violence from it as regards its psychological normalcy. A good moral habit (virtue) is an imprint of the right reason in the person's affectivity, which permits a peaceful and positive integration of affectivity according to right reason. Vice is, in contrast, the imprint of a reason given over to the attractions of the passions, and so it gives rise to moral evil to whomever consciously and freely

[52] Cf. *De Malo*, q. 3, a. 9, ad 7; *In Decem Libros Ethicorum*, lib. VII, lect. 3, nos. 1328–1353.
[53] Cf. *S.Th.* I-II, q. 58, a. 3, ad 2.
[54] Cf. *S.Th.* I-II, q. 78, a. 4, ad 3.

brings together and organizes its powers in order to procure for himself pleasure or fulfill his egoistic desires.

7.3.3 The Elective Dimension of Virtue: The Moral Virtues Presuppose Prudence

Starting from the stable desire for virtuous ends, prudence can identify the action which here and now accomplishes the virtuous end, in a way that can be chosen and taken to completion (*elective dimension of virtue*). If the intentional dimension of moral virtue is a prerequisite of prudence, then prudence is at the same time a prerequisite of the elective dimension of the moral virtues.

On account of its dependence on the virtuous ends, truth reached by prudence, called practical truth, possesses a particular nature. In a similar way to how the speculative reason is right in the measure in which it conforms to its own principles, practical reason is right when it adheres to its own, which are the virtuous ends; from which it results that *practical truth consists in the conformity of the reason to right appetite, that is to say, to the desire for the virtuous end.*[55] In his commentary on the *Nicomachean Ethics,* Saint Thomas explains that the relationship between right appetite and practical reason is the relationship between the moral virtues and prudence. To say that practical truth consists in the conformity of the practical reason to right appetite is the same as affirming prudence's dependence on the moral virtues. This dependence seems to create a vicious circle, since prudence presupposes the moral virtues and the moral virtues presuppose prudence. The circle is resolved by taking into consideration the two aspects of virtue, the intentional and elective aspects: "The rectitude of the appetite with respect to the end [intentional aspect of virtue] is the measure of the truth of the practical reason [prudence], which itself is measured according to its conformity with right appetite. This truth of the practical reason is then the measure of the appetite's rectitude with regard to the means [elective aspect of the virtues]. For this reason, we call right appetite that which pursues what is indicated by right reason [*vera ratio*]."[56] *In one sense, the virtues are the measure of right reason and, in another sense, right reason (prudence) is the measure of the elective act of virtue.* The apparent circle is resolved, but nevertheless this opens the door to an important problem regarding to the formation of the virtues in man, as we shall soon see.[57]

The concept of practical truth must be understood attentively. It ex-

[55] Cf. *S.Th.* I-II, q. 57, a. 5, ad 3.

[56] *In Decem Libros Ethicorum*, lib. VI, lect. 2, no. 1131. The clarifications within the square brackets are ours.

[57] Subsection 7.4.3 of this Chapter.

cludes not only the idea that a subjectively right intention is enough —with which the person wishes to do well or believes herself to be acting well and is nonetheless found in error—but also the idea that an objectively right intention is enough. The conception delineated up to now, characterized by a strict relation between virtuous ends and prudence, underlines the unity and coherence of the practical reason. The same reason that has as its specific principles the virtuous ends is also that which determines what here and now should be done (prudence). In fact, it can determine what here and now must be done inasmuch as practical reasoning has its point of departure in the desire for virtuous ends and, through a process of always greater concretization, comes to the point of determining the concrete action whereby here and now justice, temperance, etc., are realized. The virtue of prudence renders perfect the maximally concrete moment of the practical reason: the judgment concerning the choice of what to do here and now. The fact that right choice is the principal act of ethical virtue means that in practical reasoning, directed toward action, the desire for the virtuous end (therefore, the right intention) is the initial phase of a process that culminates in the concrete and particular action. A good intention can succumb or go astray before its first encountered obstacle, out of a lack of either conviction or prudence.[58]

From these considerations we can draw two conclusions. The first is that the determination of the action to be done not only is not an ethically neutral activity, but it is the object of the specific virtue of the practical reason as such, the crossroads of all moral action, since, on the one hand, it presupposes the intentional dimension of ethical virtue and, on the other hand, it is the condition of the possibility of their concrete realization. The second conclusion is that the unity and coherence between the intention and choice is the normal operating condition of the practical reason. The reason which determines an end is the same which determines the most suitable action for achieving that end, and the same unity exists between the *voluntas intendens* and the *voluntas eligens*. Practical reasoning starts from the virtuous end (justice, temperance, etc.) and per se concludes in a just and temperate choice.[59] For this reason, according to the normal functioning of human moral action, an erroneous choice presupposes a moral disorder of the will,[60] because the virtuous end (justice, temperance, etc.) is properly affirmed or denied in the concrete choice. Imprudence—i.e. reasoning and practical judgment which conclude in a choice contrary to virtue—is a moral fault, and not a technical error of valuation. Analogously, habitual imprudence is a vice.

[58] Remember what was said in Chapter VI, subsection 6.4.3.

[59] Reason, per se, functions well, also with regard to morals. Saint Thomas affirms that for this reason "perversitas enim rationis repugnat naturae rationis" (*In decem libros Ethicorum*, lib. II, lect. 2, n. 257), and also that "corrupta ratio non est ratio, sicut falsus syllogismus non est syllogismus" (*Scriptum Super Sententiis*, lib. II, d. 24, q. 3, a. 3, ad 3).

[60] Cf. *CCC,* 1761 and *Veritatis Splendor*, 78.

It remains to be added that *to the judgment and command of prudence follows the elective act of virtue, the virtuous choice conformed to the dictates of prudence.* We treat of a choice of action which can imply also an actuation of sensible affectivity, which will then be a consequent passion.[61] It is to be noted, then, that each appetite which can be reached by the control of the command of prudence can as such participate in the virtuous choice. The actuation of the virtuous habits of sensibility are identified, therefore, with a deliberate appetite, that is to say, with a sensible aspiration (desire, joy, fear, etc.) preceded by deliberation and by a commanding judgment of prudence, and for this reason such an actuation is morally excellent.[62]

7.3.4 Virtuous Ends as Natural Principles of Practical Reason

We must now highlight an important question. We know that virtuous choice is regulated by prudence, and that the truth of the commanding judgment of prudence consists in conformity with the virtuous ends. This brings us to the question: How are the virtuous ends determined? What is the measure of the intentional dimension of moral virtue? The response to this question is that *the knowledge of the virtuous ends pertains to the natural reason and precedes prudence, as the understanding of speculative principles precedes science.*[63] The human practical reason has, therefore, some natural principles that constitute the cognitive point of departure for both practical reasoning and the process of forming the virtues. In such a sense, Saint Thomas "affirms that both prudence and the ethical virtues depend on reason inasmuch as it is natural, i.e. inasmuch as it is naturally capable of conceiving and prescribing general virtuous ends of the good life and certain types of actions, absolutely required or excluded by such ends."[64] The natural conception of the virtuous ends is an important part of the "practical nature" of man, and constitutes the fundamental content of the natural moral law, a topic we shall have more to say about in the third part of this book.

[61] Cf. Chapter V, subsection 5.4.4.

[62] Cf. *De Virtutibus in Communi*, a. 4, ad 1. John of Saint Thomas affirms that it is the mission of moral virtues "reddere appetitum sensitivum promptiorem ad recipiendam rectam electionem" (*Cursus Theologicus*, in I-II, d. 15, q. 2, n. 39). See also: Cajetan, *Commentary on the "Summa Theologiae"*, I-II, q. 56, a. 4.

[63] This thesis is sustained by Saint Thomas in *S.Th.*, II-II, q. 47, a. 7; *De Veritate*, q. 5, a. 1 and in *Scriptum Super Sententiis*, lib. III, d. 33, q. 2, a. 3. Regarding these texts, see A. Rodríguez Luño, *La scelta Etica* (1988), 50–55. This is one of the points in which Saint Thomas adds important developments to the Aristotelian theory of the virtues: cf. regarding this point G. Abbà, *Quale impostazione per la filosofia morale?* (1996), 66; M. Rhonheimer, *The perspective of Morality* (2011), Ch. V, section 1.

[64] G. Abbà, *Quale impostazione per la filosofia morale?* (1996), 66, our translation.

7.4 The Organism of Moral Virtue

7.4.1 The Differentiation of the Virtues

The moral virtues, considered together, perfect in a stable way all of the human tendential dynamism, and therefore all the tendencies we have studied up to this point. The mode of differentiating and organizing the virtues depends in good part on the instrument of analysis and classification employed in regard to the tendencies.

The Sacred Scriptures contain references to a wide range of virtuous attitudes, at the summit being the three theological virtues, but it also speaks of moral virtues, such as audacity, purity, courage, fidelity, a good work ethic, humility, sincerity, etc.[65], without, however, employing a specific principle of classification. Plato distinguished between four fundamental virtues: prudence, justice, fortitude, and temperance. Aristotle elaborated a phenomenology of the ethical virtues, making recourse also to descriptive models.[66] The Catholic theological tradition structures the virtues around the four fundamental or cardinal virtues.

The Thomistic classification of the virtues is based on his conception of the soul's faculties (practical reason, will, irascible appetite, concupiscible appetite) and also on the relation that the diverse passions, and the goods toward which they are aimed, have with respect to the reason that must regulate them.[67] Prudence is the fundamental (cardinal) virtue of the practical reason; justice is the cardinal virtue of the will and its operations; fortitude and temperance correspond respectively to the irascible and concupiscible appetites. In relation to the four cardinal virtues there are organized all the other moral virtues as being *subjective, integral, or potential parts.*[68] The *subjective parts*

[65] Cf. *Gen* 13:8–9; 30:33; *Ex* 23:4; *Deut* 1:16–17; *Prov* 28:20; 31:10–31; *Wis* 3:13; *Sir* 2:4; 6:14–16; 7:15; *Isa* 35:3–4; *Zech* 8:16; *Mk* 15:43; *Lk* 6:36–38; *Acts* 20:33–35; *1 Cor* 4:12–13; *Eph* 4:25–32; *Col* 3:12–15; *2 Tim* 2:22–25; *Heb* 10:33–36; *Jas* 3:2–12; *1 Pet* 4:9–11; 5:8; *Rev* 14:4–5.

[66] Cf. for example *Nicomachean Ethics*, III, 5–11: 1113 b - 1119 a.

[67] It could be useful to recall a noted explanation of Saint Thomas: "The good of the appetitive powers is not performed in the same way in every type of human behavior. Such a good is in reference to a three-fold subject-matter: a) to the irascible and aggressive appetites, b) to the impulses toward pleasure, c) to the operations through which we occupy ourselves with external things: such as with acquisitions, sales, renting and loaning. The good of man with respect to the impulses stands in dealing with them in such a way as to not allow oneself to be dragged far from the judgment of reason by them; and so, in relation to the passions which push a person in a way contrary to reason, the good of virtue consists in restraining them, as temperance does by moderating the impulse toward pleasure. In relation to impulses that hold a person back from acting according to the indications of reason, such as fear, the good of virtue will consist in resisting the impulse which holds a person back from acting, as valor and fortitude do. " (*De Virtutibus in Communi*, a. 12, our translation).

[68] Cf. *S.Th.* II-II, q. 48, a. 1.

pertain to distinctions of partial domains within a cardinal virtue: sobriety and chastity are subjective parts of temperance. *Integral parts* are the habits required for the full realization of a cardinal virtue: patience and perseverance are integral parts of fortitude. The *potential parts* are virtues connected to a cardinal virtue that do not fully fulfill the *ratio* of the cardinal virtue: the virtues of religion and piety toward parents are potential parts of justice.

> We shall give a brief overview of the Thomistic classification. The subjective parts of prudence are personal prudence, with which a person governs himself, and governing prudence, proper to those who are leaders, parents, etc. The integral parts are virtues like memory which knows how to draw from experiences of the past, understanding of the present situation, docility, diligence, foresight, caution, etc. Potential parts are the capacity to deliberate rightly (*eubulia*), the capacity to judge rightly in ordinary situations (*synesis*), and that of judging rightly in extraordinary situations (*gnome*), which regulates *epikeia*.
>
> The subjective parts of justice are general or legal justice, commutative justice, and distributive justice. The potential parts are the virtues which either do not perfectly possess the aspect (ratio) of equality proper to justice, like religion, piety toward one's parents, respect for those in authority, and obedience; or which do not imply a duty in a rigorous sense, such as veracity, gratitude, kindness, liberality, etc.
>
> Magnanimity, magnificence, patience, and perseverance are integral parts of fortitude if we consider them as prerequisites of the principal act of fortitude, which is to undertake action or resist attacks that put one's life at risk. If we consider it instead as a virtue which regards secondary objects of fortitude, those four virtues are potential parts.
>
> The subjective parts of temperance are moderation of eating (abstinence), sobriety in drinking, and chastity—which regards the sex drive. The integral parts are decency and honesty. Its potential parts are continence, gentleness, clemency, modesty, humility, moderation of the desire to know and of curiosity (*studiositas*) and the moderation in games, sports or, more generally, fun activities.

Every moral virtue has its own specific mode of regulating actions, tendencies, and passions, and thus its own internal logic: a normative framework which, if adequately developed, allows us to resolve the problems posed by normative ethics.

7.4.2 The Connection of the Virtues

What is called the connection of the moral virtues is the fact that one cannot find virtue in a perfect state without their being the other virtues present. The reason for the connection of the moral virtues is that they all participate in

prudence and, from the Christian point of view, because of their relation with charity: the form and root of all the virtues.[69]

> Saint Augustine speaks of the connection of the virtues as an idea which was widely held: "The doctrine that the virtues are inseparable was embraced by all of the philosophers who proclaimed the same virtues to be necessary for a righteous life [The reason for which they believe that, if one possesses a virtue he possesses them all and if one is deprived of a virtue he does not possess any of them, is without doubt the following: prudence cannot be either lazy, or unjust, or intemperate; for, if it had one of these defects, it would no longer be prudence. In reverse, if prudence is present when it is courageous, just, and temperate, then where it is there will undoubtedly also be the other virtues. In the same way, neither can fortitude be imprudent, nor intemperate, nor unjust; so also temperance must be naturally prudent, courageous, and just, and so also justice is not justice if it is not at the same time prudent, courageous, and temperate. In such a way, when there is one of those virtues, there will also equally be the others; when, instead, these are lacking, that virtue is not authentic, even if it can seem so in some aspect."[70]
>
> Saint Thomas also uses a similar argument, perhaps with greater breadth. He notes, as has already been said, that moral virtue is a certain participation in the right reason of the appetitive powers.[71] Such a participatory relation existing between prudence and the moral virtues explains at the same time the distinction of the virtues (an impossibility if there existed a single ethical virtue) and the connection which exists between them. The moral virtues participate in a certain mode in the unity which the good has in prudence, so that they are formed and developed together and according to a certain harmonious proportion, in a similar way to how the fingers of the hand grow proportionally.

This is even more apparent if one takes account of the fact that the passions and actions regulated by the virtues are found to be in reciprocal relation: the passions "have their rise in certain initial passions, viz. love and hatred, and terminate in certain others, viz. pleasure and sorrow. In like manner all the operations that are the matter of moral virtue are related to one another, and to the passions."[72] Moral virtue, then, can only function as an elective habit of the righteous mean under a prudence which is referred to all sectors of the moral life.

> Temperance, for example, is the elective habit of the right mean regarding sexual pleasure and enjoyment, but not insofar as this mean can be abandoned for the impulse of this or that passion, but in the absolute,

[69] Cf. *1 Cor* 13, 1–13; *Col* 3, 14; *CCC*, 1827–1828; *Veritatis Splendor*, 15.
[70] Saint Augustine, *Epistula* 167, 2, 4–5: NBA 22, 763–765, our translation.
[71] Cf. *De Virtutibus in Communi*, a. 12, ad 16.
[72] *S.Th.* I-II, q. 65, a. 1, ad 3.

> regardless of where the disordered impulse proceeds. Through the connection of the operations and the passions it can happen that someone may perform an intemperate action not out of a desire for pleasure, but for avarice, revenge, etc. So, temperance must safeguard the right mean between the extremes which oppose it per se and between those which oppose it on account of the above-mentioned connection: temperance renders man temperate in the absolute, and not only under a certain aspect.

7.4.3 The Formation of the Virtues

Growth and Diminution of the Habits — *The human virtues (and vices) are acquired and perfected through repeated acts.* Virtues pertain to the powers not insofar as they are active powers, but only in the measure in which they also have a certain passivity. These powers, being moved by a superior power, are disposed by it in a certain way, for all that is moved by another receives a disposition from that agent. If this movement is repeated, the disposition is rendered stable and a habit is formed. Fortitude, for example, is formed in the irascible appetite on account of acts commanded by the reason so that this tendency may act according to the demands of virtue, overcoming its own spontaneous passions when these do not coincide with the dictates of right reason. Therefore, Aquinas affirms that virtue "is a disposition engraved or impressed into the appetitive power by the reason";[73] and the Bible counsels: "Learn to do good."[74]

The virtues diminish and are lost through the performance of acts contrary to them. In this way, a new habit is formed in the power, vice, which annuls virtue, for two contrary forms (intemperance and temperance, injustice and justice, etc.) cannot coexist in the same faculty. *The prolonged absence of virtuous acts can also occasion the debilitation or even the loss of virtue,* for if the effort to reorder the powers according to the dictates of right reason is not constant, acts will necessarily arise which are opposed to them, on account of the instinctive movements which the sensible tendencies preserve.

No human operative habit proceeds exclusively from nature; that is to say, there are no innate operative habits. Nonetheless, *some habits can be called natural, because they proceed in part from nature and in part from acts performed by the person.* There are two such "natural" habits: the habit of the first principles of the speculative reason (*intellectus*) and those of the first moral principles (*sinderesi*). In contrast with the other habits (which are called acquired), these are constituted as natural dispositions in order to judge infallibly, once the terms of judgment are known through ordinary experience.

[73] *De Virtutibus in Communi*, a. 9.
[74] *Isa* 1:17; cf. *Ps* 1:2; *Lk* 16:8; *Rom* 1:25–32.

In a parallel mode to the intellectual habits of the first principles, there is in the will a natural principle of moral rectitude: the natural inclination toward good as known by the reason, which, however, is not a habit in an early stage of development, but rather something which pertains constitutively to the will itself.

The Formation of Prudence — The development of the moral virtues presents an important problem from the practical point of view, one which we have already mentioned.[75] It is the problem of how it is possible to develop prudence.[76] For, in a perfect state, prudence presupposes the possession of all the moral virtues, but these on their part can come about only through the guidance of prudence.[77] This circle, already resolved from the theoretical perspective, creates practical difficulties. This is so both for those who are young and are still in a stage of maturation, and for adults, who from the standpoint of the virtues find themselves in a rather imperfect state while nonetheless being confronted each day with problems and choices on which they must, through effort, take positions, and all of this without counting on the help of the habit of prudence.

Aristotle already put forth this problem, which he resolved with his ethics of the *polis*: those who find themselves in the state we have just described will be taken by the hand—and in a certain sense by force—toward virtue by the law of the *polis*, which came about with such a goal mind. This solution is insufficient today, even if it still holds some validity. Indeed, *the State, the family, the mass media, language, commonly held models of society, etc., exercise*—whether one likes it or not—*an important educative influence, which can be positive or negative.*[78]Moral theology, moreover, adds to this another response: "There is a theological answer for the problem of incomplete prudence: the 'healing of nature' through grace and the revelation of the fundamental moral principles as divine law."[79] *Only the law of Christ* (*lex nova*), which consists primarily in the grace of the Holy Spirit, *can render man perfectly virtuous.*[80]

[75] See above: subsection 7.3.3.

[76] We take account here of what was said in M. Rhonheimer, *The Perspective of Morality* (2011), 229.

[77] Cf. Saint Ambrose, *De Officiis Ministrorum*, 1, 27, 126: Biblioteca Ambrogiana 13, (Rome: Città Nuova, 1977), 101.

[78] It is a problem which must be confronted in the study of human law in Chaper IX; see also what was said regarding traditions of moral life in Chapter I, subsection 1.1.2.

[79] M. Rhonheimer, *The Perspective of Morality* (2011), 229.

[80] We shall occupy ourselves with the law of Christ in Chapter VIII.

7.5 Infused Virtues, Gifts of the Spirit, and Charisms

7.5.1 The Existence of Infused Virtues

Revelation and the doctrine of the Church teach that God transforms redeemed man into a new creature and renders him able to act as a son of the Father in Christ and through the Holy Spirit. This supernatural elevation embraces the person's entire humanity, including his operative faculties. Given that the perfection of an operative faculty is called virtue, as we already know, it is theologically legitimate to speak of supernatural virtues.

The immediate fundamental principles of supernatural life which the Spirit establishes in man are the theological or "divine" virtues, i.e. faith, hope, and charity. Theology and ecclesial doctrine retain as a virtue the very "love of God [that] has been poured out into our hearts through the holy Spirit that has been given to us"[81], and it considers hope and faith virtues as well. *These three divine virtues inform the moral virtues, adapting them to the demands of life in Christ.*[82]

Beyond the theological virtues, diverse passages of Scripture remind us that the moral virtues are also gifts of God.[83] Not a few Fathers and documents of the magisterium, as well as the vast majority of theologians, affirm that *along with received grace, there also exist infused moral virtues.*[84] This would be logical, because for the Christian life it is not enough to have qualities which dispose a person to immediately act in a way directed toward God (theological virtues), but also needed are those capacities which make it so that actions that regard created things be rendered supernatural and meritorious of eternal life (infused moral virtues). These are parallel to the human virtues, but in the supernatural order: infused prudence, justice, fortitude, and temperance.

The following definition of virtue, of Augustinian origin and already cited above, can only be applied to the infused virtues in a rigorous sense: "Virtue is a good quality of the soul through which one lives rightly, which cannot be

[81] *Rom* 5:5.

[82] Cf. *CCC*, 1813.

[83] Cf. *Prov* 2:6; *Wis* 9:10–11 & *Lk* 1:17 (prudence); *Prov* 8:16 & *Isa* 1:26 (justice); *Ps* 17:33 & *1 Tim* 1:12 (fortitude); *Mt* 19:11 & *2 Tim* 1:7 (temperance and other virtues).

[84] Saint Gregory the Great considers the four virtues as being bestowed by the Holy Spirit: cf. *Moralia in Iob*, 2, 49: CCL 143, 106. With regard to the Magisterium, see Innocent III, Ep. *Maiores Ecclesiae Causas*: DS 780; Council of Vienna, Cost. *Fidei Catholicae*: DS 904; *Roman Catechism*, II, 2, 51. Regarding Saint Thomas Aquinas: cf. *S.Th.* I-II, q. 51, a. 4; q. 63, a. 3. The Catechism does not directly speak about the infused moral virtues, and their redaction could lead one to suppose that it may not consider them necessary; nonetheless, such an omission does not automatically mean a denial of their existence.

used for evil, and which God produces in us without us." *These are virtues which are given to the Christian with sanctifying grace and which are distinguished from their corresponding acquired virtues not by the material that they regulate (actions, tendencies, passions), but by the criteria that inspires this regulation.* Christian temperance, for example, regulates a person's consumption of food or drink in order to progress in the spiritual life with a diverse criterion from that whereby human temperance regulates eating in view of the preservation of health, even if there are points of contact between the two: e.g. drunkenness is equally opposed to human and Christian temperance. Faith illuminates in a new way the meaning of human goods and their privation (health and sickness, suffering, absence of economic means, professional failure, etc.), and, therefore, at least partially modifies the criteria for man's attitude regarding them. So, for example, the attitude of the Lord, who "for your sake [...] became poor"[85], illuminates the meaning of poverty and sobriety in the use of goods, and opens the way toward virtuous behavior which would have no meaning without faith in Christ.

On the other hand, theology retains that the *infused virtues give to man the radical capacity to make valid choices toward progress in the Christian life and toward eternal life, but do not give the facility characteristic of an acquired habit.*[86] Therefore, the acquired virtues are absolutely necessary for the Christian.

> It must certainly be conceded that the existence of the infused moral virtues is not a dogmatic matter of the faith concerning which the Church has set forth a definitive judgment. It is rather the more common doctrine among the great classical theologians. The Christian moral life could also be explained differently: grace renders meritorious the exercise of the acquired virtues, the theological virtues elevate and partially modify the regulating criteria of human prudence, and charity remains equally the "form" of all the virtues. However, from our point of view it seems that to posit the existence of the infused moral virtues facilitates our understanding of Christian moral action; furthermore, we have not found in the theological literature any argu-

[85] *2 Cor* 8:9.

[86] Nevertheless, the infused virtues, in a remote way, also give a certain facility of acting in the order of grace; Saint Thomas indicates that the facility to act can be understood in two ways: the promptness caused by a habit, and in this sense the infused virtues do not give a person facility to act; and the facility which derives from strong inclinations toward the object of the virtues, which is proper to the divine gifts (cf. *Scriptum Super Sententiis*, lib. IV, d. 14, q. 2, a. 2, ad 5). In this second sense the supernatural virtues facilitate moral action in two ways: 1) in the same way in which the faculties project toward action, the infused virtues incline toward action supernaturally, through their strong aspiration toward the absolute good; 2) to have infused virtue also entails the disappearance of any vice as properly such, and although there may remain the remote disposition or *fomes peccati,* this is found to be weakened by the firm adhesion to the contrary good, and this renders good action easier. (cf. *De Virtutibus in Communi*, a. 10, ad 14).

mentation which would invalidate what classical theology has said in favor of their existence.

7.5.2 The Gifts of the Holy Spirit

Revelation shows another and more elevated mode of acting, which is verified when God Himself acts in us: "For those who are led by the Spirit of God are children of God [In the same way, the Spirit too comes to the aid of our weakness; for we do not know how to pray as we ought, but the Spirit itself intercedes with inexpressible groanings."[87] In such a sense, the Christian's good works are truly fruits of the Holy Spirit.[88] The Spirit guides the life of the Christian so that, through Christ, "we both have access in one Spirit to the Father."[89] But because this happens, there needs to be a certain stable disposition, a certain "connaturality" in the depths of the person, which renders him ready to accept divine guidance and inspirations. Such stable infused qualities in the soul from God are the *gifts of the Holy Spirit. "These are permanent dispositions which make man docile in following the promptings of the Holy Spirit."*[90] Being based above all on the text of Isaiah, they come to be listed as seven gifts through which the Spirit moves the faithful:[91]

- *Wisdom*: to promptly know and love divine things;
- *Understanding*: to understand in depth the truths of the faith;
- *Knowledge*: to evaluate human things in their relation to the final end;
- *Counsel*: to discern the things to be done;
- *Piety*: to act with diligence and a filial spirit regarding what pertains to one's relationship with God and, secondarily, with other people;
- *Fortitude*: to be ready to reject negative suggestions in perilous situations;
- *Fear of the Lord*: to avoid the stimulations of disordered passions for the purpose of not offending the Lord.

[87] *Rom* 8:14, 26.
[88] Cf. *Gal* 5:22.
[89] *Eph* 2:18; cf. *Gal* 5:25.
[90] *CCC*, 1830.
[91] Cf. *Isa* 11:1–3; *CCC*, 1831.

The Church's tradition has spoken constantly of these gifts.[92] The necessity of the gifts is based on the overflow of the supernatural order, which has need not only of the infused virtues, but also of the impulse of the Holy Spirit. So the Fathers compare the practice of the virtues to navigation using oars, and the gifts to navigation pushed by the wind (the breath of the Spirit); nonetheless, like every example, it would not be ideal to take it to the extreme, for in the Christian life infused virtues and gifts of the Holy Spirit are closely connected and, from the beginning to the end of the walk toward sanctity, both are necessary for responding to the divine call.

7.5.3 The Charisms

The Greek word charism means favor, gratuitous gift, or benefit; and in this sense it is employed in the New Testament fourteen times in the Pauline letters. Thus employed, one could say that grace, the virtues, the gifts of the Holy Spirit, etc., are charisms. But in our modern languages the word *charism* (and its cognates) has acquired a technical meaning, and as such is used in the New Testament only a few times.[93] In this sense *charisms are various gifts—a diversity of charisms*[94]*—that the Spirit distributes as He wishes "for building up the Church."*[95] *Moreover, not all persons receive them,*[96]*, because they are not necessary for each Christian in order to develop in holiness.*
Both the etymology of the word, and the explicit indications of the Sacred Scripture, show that the charisms are gratuitous gifts of God—at times the Holy Spirit is explicitly mentioned—in relation to the supernatural end. "Whether extraordinary or simple and humble, charisms are graces of the Holy Spirit which directly or indirectly benefit the Church, ordered as they are to her building up, to the good of men, and to the needs of the world."[97] They have, then, a very strict relationship with the life of the Church; in fact, *Rom* 12 and *1 Cor* 12 use the example of the body in order to show the diversity, unity, and utility of the charisms. On account of their ecclesial relevance, and

[92] Cf. *Decretum Damasi* of the Roman Synod of 382: DS 178; Roman Catechism, I, 9, 8; Leo XIII, Enc. *Divinum Illud Munus*, 9-V-1897: ASS 29 (1896–97) 644–658; furthermore, all of the Catholic catechisms and the Church's liturgy attest to their existence; and the theologians so as well (cf. *S.Th.* I-II, q. 68). For a deeper look at this, see: M. M. Philippon, *I doni dello Spirito Santo*, (Milan: Ancora, 1965).

[93] In the Italian translation of 1 Cor 12:4 and 31 the word "carisma" is used, whereas in our New American Bible translation, it is rendered "spiritual gift" with the same meaning as we intend here. Cf. also *Rom* 12:6–8 & *1 Pet* 4:10–11.

[94] Cf. *Rom* 12:6; *1 Cor* 12:4.

[95] Cf. *1 Cor* 12:7,11; 14:12; *CCC*, 951. Almost always the charisms are received for the utility and the service of others. (*gratiae gratis datae*: *1 Cor* 14:19), but sometimes they are only useful for the person who receives them: "Whoever speaks in a tongue builds himself up" (*1 Cor* 14:4).

[96] Cf. *1 Cor* 12:28–30.

[97] *CCC*, 799.

the fact that in the indicated texts—and in others[98]—ministerial charisms are mentioned, as well as the rules given by the Apostles for the use of the charisms,[99] it would appear that not only is there not opposition between charism and hierarchy, but rather they are two strictly connected realities.

> "Charisms are to be accepted with gratitude by the person who receives them and by all members of the Church as well. They are a wonderfully rich grace for the apostolic vitality and for the holiness of the entire Body of Christ, provided they really are genuine gifts of the Holy Spirit and are used in full conformity with authentic promptings of this same Spirit, that is, in keeping with charity, the true measure of all charisms."[100] Saint Paul's Letters provide diverse lists of them; together they list twenty charisms: some are prodigious, like healing through the Spirit or the power to work miracles;[101] others involve only a particular aptitude for a certain office, like that of the apostle for inspiring a community, or a prophet for exhorting the faithful, or a teacher for instructing them, etc. Many other passages of the Bible, both from the Old and New Testaments, without using the term, speak of diverse charisms: prophecy, from Moses to John the Baptist;[102] speaking in tongues;[103] the power to work miracles;[104] the power to cast out demons and to heal the sick;[105] the prudence for judging and governing;[106] etc.
>
> While the prodigious charisms became very rare with the establishment of the Church, those which are ordinary and necessary for the development of the life of the Church always exist in it. So writes the Second Vatican Council: "It is not only through the sacraments and the ministries of the Church that the Holy Spirit sanctifies and leads the people of God and enriches it with virtues, but, 'allotting his gifts to everyone according as He wills'. He distributes special graces among the faithful of every rank. By these gifts He makes them fit and ready to undertake the various tasks and offices which contribute toward the renewal and building up of the Church, according to the words of the Apostle: 'The manifestation of the Spirit is given to everyone for profit'. These charisms, whether they be the more outstanding or the more simple and widely diffused, are to be received with thanksgiving and consolation for they are perfectly suited to and useful for the needs of the Church [are appointed leaders in the Church, to whose special competence it belongs. . . "[107]

[98] Cf. *Eph* 4:11–12; *1 Tim* 4:14; *2 Tim* 1:6.
[99] Cf. *1 Cor* 14; *1 Pet* 4:10–11.
[100] *CCC*, 800.
[101] Cf. *1 Cor* 12:9–10.
[102] Cf. *Deut* 34:10; *Lk* 7:26.
[103] Cf. *Acts* 2:4.
[104] Cf. *Josh* 3–13: 7; *Acts* 2:43.
[105] Cf. *1 Kings* 17:17–24; *Mt* 10:1.
[106] Cf. Judg 4:4–6; *1 Kings* 3:12; *Prov* 21:1.
[107] *Lumen Gentium*, 12; cf. *CCC*, 801.

7.6 The Relationship between the Human and Infused Virtues

The relationship between the human and the infused virtues (virtues and gifts) depends on the mutual coordination between nature and grace, and it can be summarized in the following points:

1. Even if there exists a distinction between natural and supernatural moral action, *in the Christian life there is found a reciprocal influence between the human and infused virtues:* both are found in the concrete effort toward holiness.

2. On account of original sin, *man cannot persevere in natural moral good, considered in its completeness, without supernatural help*; consequently, natural virtues can arrive at their perfection only with the help of grace.[108] Along with the Second Vatican Council, it can be affirmed that "[w]hoever follows after Christ, the perfect man, becomes himself more of a man."[109]

3. *Infused supernatural virtues facilitate the attainment of their corresponding human virtues* because the Holy Spirit pushes and drives the person in a state of grace in all of his being. Therefore, when such a person puts into practice the virtues infused in him, he also develops elements of the correlative natural virtues.

4. *The complete dynamism of concrete action for the sake of holiness requires both types of virtue: the acquired and the infused* (including also the supernatural gifts). Neither order is complete without the other, as was said in the second point. For human virtue will never be complete without supernatural help, while at the same time the infused virtues, without the contribution of corresponding human virtues, will lack authentic perfection: grace presupposes nature and, although divinization is an act of God, humans must cooperate. The human virtues, in a certain sense, support and stimulate the exercise of the infused virtues.[110]

7.7 Growth of the Infused Virtues

The growth of the infused virtues, as is the case with their acquisition, does not depend so much on human action, as it depends on the grace of God.

[108] Cf. *CCC*, 1810.
[109] *Gaudium et Spes*, 41.
[110] In fact, we deal here with a natural quality of man, the *habilitas ad gratiam*, which disposes him to receive, or receive more, of the supernatural life: cf. E. Colom, *Dios y el obrar humano* (1976), 92–118.

Nevertheless, the acts of a supernatural virtue ensure its possession.[111] This happens, among other reasons, because they increase the corresponding acquired virtue, which then successively facilitates the use of the infused virtue. For this reason, *man must be personally disposed to such a development,* responding with generosity to the gifts already bestowed by the Lord, since the good works of the person in a state of grace merit an increase in grace and virtue.[112]

For the same reasons it must be said that the properly infused virtues cannot diminish: neither lukewarmness nor venial sin can deprive a person of such virtues or diminish them.[113] Very different is the relationship between the infused virtues and grave sin: with the latter, man loses the supernatural elevation of his being (sanctifying grace) and of his faculties (infused virtues and gifts of the Spirit) because he becomes closed to the source who is God; nonetheless, except when one treats of a sin against faith or hope, these two virtues persist in the person, though in a precarious condition.[114]

An increase in the infused virtues follows an increase of God's grace. *Good works, prayer, and the frequenting of the sacraments carry with them an increase in the infused virtues.* In fact, Sacred Scriptures teach to ask for the virtues in prayer,[115] while the sacraments nourish, strengthen, and express the faith, while disposing the person to exercise charity.[116]

To summarize, the infused virtues are bestowed with grace to all those who believe in Christ but they also require free human correspondence.

[111] "Acts produced by an infused habit, do not cause a habit, but strengthen the already existing habit" (*S.Th.* I-II, q. 51, a. 4, ad 3).

[112] Cf. Chapter VI, section 6.7.

[113] This does not mean that, with regard to the virtues, it is a matter of indifference to act lukewarmly or to sin venially because in so doing the facility of the exercise is diminished; moreover, venial sin predisposes one for mortal sin.

[114] Cf. Council of Trent, *De Iustificatione, Ch.* 15 & Can. 27–28: DS 1544, 1577 & 1578.

[115] Saint Paul prays for the growth in charity of the community in Thessalonica: "May the Lord direct your hearts to the love of God" (*2 Thess* 3:5), and for the faith and hope of the Romans: "May the God of hope fill you with all joy and peace in believing, so that you may abound in hope by the power of the holy Spirit." (*Rom* 15:13). The Apostles asked the Lord for an increase in their faith (*Lk* 17:6), and the father of the epileptic asked him to help him in his disbelief (*Mk* 9:24). For this reason, the Church's liturgy invites us to ask: "Almighty ever-living God, increase our faith, hope and charity" (Collect: 30th Sunday of Ordinary Time); cf. Council of Trent, *De Iustificatione, Ch.* 10: DS 1535.

[116] Cf. *Sacrosanctum Concilium,* 59.

Part III

The Path toward Identification with Christ

Introduction

We saw that every person is called by God to be holy through identification with Christ (Part I). We then studied the natural and supernatural operative principles which allow a Christian to elaborate a program of life consistent with this divine call (Part II). Now what needs to be studied are the normative points of reference whereby the believer disposes himself so that he may effectively achieve his desired goal.

By now we know that the theological and moral virtues, insofar as they are specific principles of the Christian life, are also the rules of the life lived in Christ, present in every morally formed Christian.[1] However, the formation of the virtues in man marked by sin, beyond having natural prerequisites (the natural moral law, participation in the eternal law), has need of divine help (the divine law, especially the *lex gratiae*) to go along with human laws (civil and ecclesiastical), and the teachings of moral knowledge which come to be applied through the conscience. This explains why moral theology, on the foundation offered by Sacred Scriptures, has traditionally framed the study of moral rules within the context of a theology of law (eternal law, natural moral law, divine-positive law, etc.) and of conscience. The moral law (Chapters VIII and IX) and conscience (Chapter X) are precisely the two elements which make up the path toward the acquisition and consolidation of the theological and moral virtues, through which man is united to Christ. This perspective allows us to understand that if it is true that Christian ethics takes due account of the law and conscience, it cannot be structured around moral obligation as being in some way opposed to conscience.[2]

Finally, we shall take a deeper look at the act through which man can distance himself from the path toward Christ, *sin*, and the returning path of *conversion* (Chapter XI).

[1] Cf. Chapter I, subsection 1.2.2 & 1.3.3; Chapter II, subsection 2.4.2 & 2.4.3; Chapter VII, sections 7.2–7.4.

[2] Cf. Chapter I, subsection 1.2.2 and the bibliography there cited. Furthermore, see R. García de Haro, *Legge, coscienza e libertà*, 2nd ed., (Milan: Ares, 1990); S. Pinckaers, *Linee per un rinnovamento evangelico della morale. Una lettura della "Veritatis Splendor"*, *Annales theologici* 10 (1996) 3–68.

Chapter 8

Law within the Context of the Doctrine of the Virtues

8.1 The Salvific Design of God in Christ and Man's Participation in It

The notion of law, especially moral law, finds ample biblical resonances. It is true that a normativistic "hypertrophy" of the moral life and legislative excess in socio-political life resulted in disaffection with the law. Nevertheless, abuse does not dispense us of the necessity of this concept even in the field of morality. For this reason, the existing relationship between virtue and the doctrine of the moral law now needs to be considered in order to emphasize that an ethics of virtue is not an ethics without a moral law. Rather, *the perspective which sees virtues as the foundation and reason for moral norms constitutes, in our view, the most adequate way of interpreting the doctrine of the moral law proper to Christian thought.*

8.1.1 The Original Divine Salvific Plan as the Eternal Law

In Greco-Roman thought there already existed an important reflection regarding the eternal law, particularly in stoicism. There is no doubt that Saint Augustine[1] and other Christian theologians made use of the

[1] Saint Augustine defines the eternal law as "the reason or the will of God which commands to preserve the natural order and prohibits to disturb it" (*Contra Faustum*, 22, 27: CSEL 25, 621).

> definition of it provided by Cicero.[2] However, the stoic formulas do not explain the important role attributed to the moral law by Christian thought. It depends in a rather profound way on the biblical concept of God's law, linked already in the Old Testament to the Covenant between God and His people: we refer here to the "Law and the Prophets" which Jesus claimed to not abolish, but to bring to completion.[3]

In the current state of Catholic moral theology it can be confidently affirmed that the Christian concept of the eternal law cannot be adequately understood if starting from stoic reflections on the cosmic order. *Consideration of the universal salvific design of God as the eternal law constitutes the cornerstone of Christian thought concerning this notion.* That is to say: the decree through which God "chose us in him [Christ], before the foundation of the world, to be holy and without blemish before him,"[4] can and must be called the eternal law. *Law* because it is the *ordinatio* or plan according to which the divine Wisdom, who "reaches from end to end mightily"[5], created the universe and "governs all things well."[6] *Eternal* because we are dealing with "the mystery hidden from ages past in God who created all things,"[7] or the "manifold wisdom of God" which "might now be made known according to the eternal purpose that he accomplished in Christ Jesus our Lord":[8] this law is eternal as the wisdom of God is, with which it is identified.

When treating of the infinite creative wisdom of God, it is clear that it encompasses and measures all of created reality, and in particular the existence and life of humans, reaching them in their singularity. Nothing escapes the divine gaze.[9] Saint Thomas Aquinas makes it more precise that the eternal law is not only the plan of creation, but also the plan which is brought to effect by God's providence. Thus he defines the *eternal law as* "the type of Divine Wisdom, as moving all things to their due end."[10] Furthermore, ecclesial doctrine considers the eternal law as a supreme moral norm, archetype of all goodness, justice, and righteousness. The Second Vatican Council, in fact, affirms: "the highest norm of human life is the divine law-eternal, objective and universal-whereby God orders, directs and governs the entire universe and all the ways of the human community by a plan conceived in wisdom and

[2] Cf. *De Legibus*, lib. 2, Ch. 4, 8.
[3] Cf. *Mt* 5:17.
[4] *Eph* 1:4–5.
[5] *Wis* 8:1; cf. *Sir* 42:15–21.
[6] *Wis* 8:1; cf. *Prov* 8:22–31.
[7] *Eph* 3:9; cf. *Rom* 16:25.
[8] *Eph* 3:10–11.
[9] Cf. J. Sordo and E. Colom, "La ley eterna y su penetración en las criaturas," *Scripta Theologica* 7 (1975) 163–202.
[10] *S.Th.* I-II, q. 93, a. 1; cf. *De Veritate*, q. 5, a. 1, ad 6.

love."[11] The *Catechism* adds that "[a]ll law finds its first and ultimate truth in the eternal law."[12]

> The theological concept of the eternal law is of extreme importance for explaining the theonomic foundation of the moral order. However, from the standpoint of our knowledge, one must take account of the fact that we cannot know directly the *ordinatio* of divine Wisdom *in itself*. His plan is "the mystery hidden from ages and from generations past."[13] It becomes accessible to us only in a mediated way, through the ways foreseen by God's providence in order to render us participants in moral and salvific truth.[14] We shall occupy ourselves in this chapter with the diverse modes of man's participation in the eternal law, first offering a comprehensive vision of the whole, and then focusing on each particular mode of such participation.

8.1.2 The Communication of the Eternal Law: From the Natural Moral Law to the Christian Virtues as the Most Perfect Human Participation in the Plan of Divine Wisdom

> Presupposing here the dogmatic doctrine concerning the gratuitousness of the elevation of man to the supernatural order,[15] we can affirm in general terms that there are two paths which allow us to reach knowledge of God. One path is natural, to which Saint Paul refers when he affirms that "[e]ver since the creation of the world, his invisible attributes of eternal power and divinity have been able to be understood and perceived in what he has made";[16] and the other is supernatural, consisting of the divine Revelation which was revealed gradually and historically.[17] These are, substantially, also the paths to knowledge of the eternal law as the supreme rule of moral conduct.

The first and fundamental participation of man in the eternal law comes to be called in theology the "natural moral law". It consists in the "light of the understanding infused in us by God. Thanks to it we know what must be done and what must be avoided. This light and this law God has provided in

[11] *Dignitatis Humanae*, 3. Cf. Blessed John XXIII, Enc. *Pacem in Terris*, 11-IV-1963: DS 3973; *Veritatis Splendor*, 43.
[12] *CCC*, 1951; see also numbers 1950 & 1952.
[13] *Col* 1:26.
[14] Cf. *1 Cor* 2; *Dignitatis Humanae*, 3.
[15] Cf. First Vatican Council, Cost. *Dei Filius*, Ch. 2: DS 3005; Pius XII, Enc. *Humani Generis*, 12-VIII-1950: DS 3891; *Lumen Gentium*, 2; *CCC*, 1998.
[16] *Rom* 1:20.
[17] Cf. *Heb* 1:1–2; *CCC*, 50ff.

creation."[18] The natural moral law is none other than the incontestable fact that man was created by God as a moral being, and that human reason is, per se, a moral reason, capable of ordering our conduct in view of the human good. In other terms, moral demand immediately arises from the interiority of man, and finds in it a structure which nourishes and sustains it, without which moral demands—and even the language which expresses them—would not only be extraneous, but also completely unintelligible.

We said that *the natural moral law* is the first and fundamental participation of man in the eternal law. First and fundamental in a logical sense, as it *is the original constitution of man as moral subject, which renders both intelligibility and the reception of any other ethical-positive disposition to be possible, whether it be divine or human.* Furthermore, the natural moral law ensures, as we shall soon see, the first principles of ethical virtue. At the same time, however, *the natural moral law is objectively insufficient and fragmentary.* It is insufficient for ordering the social life in common necessary for the attainment of the human good, and for this reason it must be made explicit and given determination by civil law. In practice it is also insufficient for guaranteeing the acquisition of the personal good: for though it may indicate in principle all the demands of the human good, it does not possess the necessary force to prevent certain ethical demands from being obscured due to the disorder introduced by sin into the human operative faculties. On the other hand, the totality of the salvific plan of God being considered, it is obvious that the supernatural good of man—the achievement of union with Christ through hope, faith, and love—completely exceeds the reach of the natural moral law.

The totality of the salvific plan of God in Christ has been the object of a gradual and historical divine revelation (the history of salvation), through which man's progressive supernatural participation in the eternal law has been established: something which commonly comes to be called the divine-positive moral law. The law of the Old Testament possesses a provisional and imperfect character, while being pedagogically very important insofar as it confirms the most essential aspects of the natural moral law and prepares for the work of the Messiah. It is to be distinguished from the law of the New Testament, also called the *lex gratiae* because it primarily consists in the grace of the Holy Spirit given to those who believe in Christ, which finally makes possible the knowledge and practical realization of our life as children of God in Christ.[19]

It needs to be added, for completeness, that the life of Christians within the Church needs a further human regulation, which in good part renders explicit,

[18] Saint Thomas, *In Duo Praecepta Caritatis et in Decem Legis Praecepta*, prologus: *Opuscula Theologica*, vol. II, no. 1129, our translation; cf. *Veritatis Splendor*, 40.

[19] For an initial treatment cf. CCC, 1961–1963 (for the Old Law) and 1965–1974 (for the New Law).

or is a determination of, the natural moral law and the divine law, and this is called ecclesiastical, or canon, law.

From the normative standpoint it must be affirmed that the law of the New Testament preserves and carries to completion the demands of the natural moral law, even if it is not limited to this;[20] it represents, for this reason, the final fullness at which all of the law aims. *From a real point of view, instead, it must be affirmed that the perfect participation in the salvific plan of God is verified (is made a reality) in the virtuous Christian*, that is to say, in the person who is interiorly renewed by the grace which, through the virtues and affected by the action of the gifts of the Holy Spirit, is capable of identifying and accomplishing in each situation the right way of relating to God, to himself, to others, and to the diverse goods which here and now respect and promote his life in Christ. Only in the virtuous Christian is the plan of God's wisdom participated in to such a degree that he would be able to accomplish and effectively evaluate the actions and situations in their specific singularity; in other words, only then does the person reach by his practical knowledge—always within the limits of human possibilities—the characteristic reach of the plan of God's wisdom.[21] This is put into relief by the encyclical *Veritatis Splendor*: "[I]n order to 'prove what is the will of God, what is good and acceptable and perfect' (*Rom* 12:2), knowledge of God's law in general is certainly necessary, but it is not sufficient: what is essential is a sort of *'connaturality' between man and the true good.* Such a connaturality is rooted in and develops through the virtuous attitudes of the individual himself: prudence and the other cardinal virtues, and even before these the theological virtues of faith, hope and charity."[22]

[20] Cf. Chapter I, subsection 1.1.3.

[21] A deeper understanding of this question would be possibe through a study of the Thomistic doctrine of the exemplar virtues in God (cf. *S.Th.* I-II, q. 61, a. 5). Concerning these, Abbà writes: the "eternal law designates God inasmuch as He is the principle who moves and regulates man in his conduct. Now God is this, above all, because in Him are the exemplar virtues, and on such exemplars He conceives of the idea of the human virtues, that is, of the *habitus* that complete the individuals in the order of human nature and participated divine nature. In function of the ideas of virtues He conceives an order that can be partially expressed through the diverse laws, diversely promulgated; laws thought up for a community and issued with educative criteria, and that is, in order to compel individuals toward virtue. Because then God is principle of the acts in their singularity, the eternal law also designates God inasmuch as He conceives of the idea of the fitting perfection of each individual and according to such an idea He guides and moves each individual in the particulars of his life" (G. Abbà, *Lex et virtus* (1983), 259), our translation.

[22] *Veritatis Splendor*, 64.

8.1.3 The Analogy of the Law and Its General Ordination toward Virtue

The comprehensive vision proposed in the preceding subsection is enough in order for one to recognize that *the concept of the moral law is an analogous concept,* that is, it is a concept that has different meanings depending on its particular use, though always preserving a common semantic nucleus. This renders difficult any sort of general discourse on law. In the body of the laws that have moral significance we have divine laws (the natural law, the Old Law, and the New Law)[23] and human laws (the civil and ecclesiastical law) which, nonetheless, must remain connected with the former. Among the divine laws, the natural law and the New Law are substantially internal laws, not written laws, with the first consisting in the natural light of the reason, and the second consisting in the grace that heals and elevates the human person and operates fundamentally through the theological virtues.[24] The Old Law, on the other hand, is a written and external law which in its moral parts responds in good part to the natural moral law, but which, however, is not able to overcome the obstacles found within sinful man.

> We shall not enter here into the debate regarding which law should be considered the principle analogue. It seems opportune to us to observe rather that, from the standpoint of our knowledge, the laws which in themselves, and in their process of elaboration and promulgation, become more known to us are the human laws (civil and ecclesastical laws). This obliges us to be particularly cautious to not fall into the grave error of wanting to conceive of the natural moral law and the New Law along the same lines as civil laws.

While keeping in mind what has been said, it is possible to dedicate some brief considerations to the law in general.[25] The law, any law, is "*aliquid rationis",*[26] it is an operative order elaborated by the reason. Moreover, *law is a rule and measure of action,* and to order actions in view of the good is

[23] "Even if moral-theological reflection usually distinguishes between the positive or revealed law of God and the natural law, and, within the economy of salvation, between the 'old' and the 'new' law, it must not be forgotten that these and other useful distinctions always refer to that law whose author is the one and the same God and which is always meant for man. The different ways in which God, acting in history, cares for the world and for mankind are not mutually exclusive; on the contrary, they support each other and intersect. They have their origin and goal in the eternal, wise and loving counsel whereby God predestines men and women 'to be conformed to the image of his Son' (*Rom* 8:29)" (*Veritatis Splendor*, 45).

[24] As we shall see further on, the New Law is secondarily also a "written" law, inasmuch as it contains the teachings of the Lord (Sermon on the Mount, etc.) handed down in the New Testament and apostolic Tradition.

[25] Cf. *S.Th.* I-II, q. 90.

[26] Cf. *S.Th.* I-II, q. 90, a. 1.

a task *that only the practical reason can accomplish.*[27] Therefore, without excluding the intervention of the legislator's will,[28] the formality of the law is provided by the reason and not the will, which by itself could not be the rule and measure of action. Secondly *the law always aims in some way at the common good*,[29] though this characteristic is a thesis that is subject to diverse interpretations: interpretations that are not necessary for us to consider at the present moment. It may be enough to say that the necessity of the law derives in good part from the relational and social dimensions of man. "Therefore he, in order to perform good acts, not only has need of the internal complement of the virtues, but also of the external aid of society. Now, society furnishes this external aid for the regulation of conduct by means of the law: hence the necessity of a political approach to the concept of law. This necessity remains also in the order of eternal beatitude: even with regard to this, the individual depends on society, which for this reason must be ordered in a way conducive to this end."[30] It should be said, finally, that the *law is directed toward virtue,*[31] *so that*—as has been said before—*only thanks to the virtues does man fully and actively participate in the plan of the divine wisdom, becoming himself capable of rightly ordering his own conduct.* This thesis will come to be further elaborated in this chapter and in the next and, for what regards the political law, it will also be made more precise.

8.2 The Radical Constitution of Man as a Moral Being: The Natural Moral Law

8.2.1 The Natural Moral Law in Catholic Doctrine

The Natural Moral Law in the Sacred Scriptures — *The concept of the natural moral law clearly has a sound basis in Scriptures*, even if it does not come to be explicitly utilized as a technical expression within them. One of the classic examples is above all the *Letter to the Romans.* In the first chapter, Saint Paul sees a direct connection between the more perverse forms of immorality and the refusal of a God who can be known by human reason. It is understood that the immorality of the pagans is worthy of blame, inasmuch as they do not give ear to the human experience of good and evil, an experience which is nonetheless common to all people, even to those who

[27] Cf. *In Decem Libros Ethicorum*, lib. I, lect. 1, nos. 1–3.
[28] Cf. *S.Th.* I-II, q. 90, a. 1, ad 3; q. 97, a. 3.
[29] Cf. *S.Th.* I-II, q. 90, a. 2. It needs to be mentioned that here "common good" is not to be understood only in a socio-political sense, but in a broader sense that regards the structure found under that law.
[30] G. Abbà, *Lex et virtus* (1983), 240, our translation.
[31] Cf. *De Malo*, q. 2, a. 6; *S.Th.* I-II, q. 94, a. 3; II-II, q. 44, a. 2, ad 1 & a. 4.

do not know the law of Moses. In the second chapter, Saint Paul explicitly confronts the question: "For when the Gentiles who do not have the law by nature observe the prescriptions of the law, they are a law for themselves even though they do not have the law. They show that the demands of the law are written in their hearts, while their conscience also bears witness and their conflicting thoughts accuse or even defend them."[32] Those who do not know the *torah* act in conformity to it through nature: it is written in their hearts and it comes to be demonstrated by the testimony of their conscience.[33]

A complementary perspective emerges in the Lord's discussion with the Pharisees concerning the indissolubility of marriage. In confrontation with the indulgence of the Mosaic law, probably made greater by the subtleties of the pharisaic tradition, Jesus refers "to the beginning", that is, to the truth of Creation. "He said in reply, 'Have you not read that from the beginning the Creator made them male and female and said, 'For this reason a man shall leave his father and mother and be joined to his wife, and the two shall become one flesh'? So they are no longer two, but one flesh. Therefore, what God has joined together, no human being must separate.' They said to him, '[t]hen why did Moses command that the man give the woman a bill of divorce and dismiss (her)?' He said to them, 'Because of the hardness of your hearts Moses allowed you to divorce your wives, but from the beginning it was not so. I say to you, whoever divorces his wife (unless the marriage is unlawful) and marries another commits adultery.'"[34] What is interesting in this passage is not so much the testimony of one's conscience—which does not come to be invoked regarding an ethical demand that was partially obscured–, as is Jesus's recourse "to the beginning", understood as an original truth of matrimony according to the creative design of God, which the natural moral law expresses and in which it participates.[35]

The Concept of the Natural Moral Law — The moral reflection of the Fathers and of the great Catholic theological tradition regarding the natural moral law takes as a point of reference the *Letter to the Romans*.[36] The same can be said of the teaching of the Church, even in the first centuries.[37] For a long time particular doctrinal developments concerning the natural moral

[32] *Rom* 2:14–15.

[33] Cf. R. Schnackenburg, *Il messaggio morale del Nuovo Testamento* (1989), vol. II, 69–74; J. Gnilka, *Paolo di Tarso. Apostolo e testimone*, (Brescia: Paideia, 1998), 273–274.

[34] *Mt* 19:4–9.

[35] On the theological importance of this passage John Paul II had some important reflections in the *Wednesday Catechesis* (cf. *Uomo e donna lo creò. Catechesi sull'amore umano*, 2nd ed., (Vatican City: Città Nuova - Lib. Ed. Vaticana, 1987).

[36] Cf. for example Saint John Chrysostom, *Homiliae ad populum Antiochenum*, XII, 4–5: PG 49, 132–135; Saint Thomas Aquinas, *Super Epistulam ad Romanos lectura*, 8th ed., (Taurini-Romae: Marietti, 1953), 2, lect. 3, nos. 215–221.

[37] Cf. for example the Synod of Arles, in the year 473: DS 336.

law on the part of the ecclesiastical magisterium were not necessary, because it was a doctrine peacefully admitted. For some time now the circumstances have changed, and so Leo XIII,[38] Pius XI,[39] Pius XII,[40] John XXIII,[41] and Paul VI[42] occupied themselves abundantly and with great precision with the natural moral law, both in general and with reference to concrete applications. There was equal attention given to it on the part of the Second Vatican Council[43] and the *Catechism of the Catholic Church* promulgated by John Paul II,[44] who in the encyclical *Veritatis Splendor*[45] took up with profundity and critical rigor the entire question.[46]

> The theological discussions concerning the natural moral law that have happened in the second half of the twentieth century are in good part connected to the debate concerning the specificity of Christian morality and, above all, moral autonomy: topics we have already discussed.[47] On the other hand, it also needs to be recognized that the philosophical concept of nature is quite insidious. Its semantic breadth and non-linear history can lead to misunderstandings.[48] It is a matter of fact that even between the great representatives of classical theology (we think, for example, of Saint Thomas and Suárez[49]), there are differing scientific explanations of the natural moral law, which nonetheless converge concerning fundamental theses which are undeniable for Catholic doctrine, and which, substantially, we have already explained.[50]

The *Catechism of the Catholic Church* and the encyclical *Veritatis Splendor*, even without entering into questions of particular schools of thought, have introduced a notable clarification, inclining in substance to the approach of Saint Thomas as it was already re-proposed by Leo XIII. For the *Catechism*

[38] Cf. for example: Enc. *Quod Apostolici Muneris*, 28-XII-1878: DS 3133; Enc. *Diuturnum Illud*, 29-VI-1881: DS 3152; Enc. *Libertas Praestantissimum*, 20-VI-1888: DS 3247.

[39] Cf. Enc. *Mit Brennender Sorge*, 11-III-1937: AAS 29 (1937) 156.

[40] Cf. Enc. *Summi Pontificatus*, 20-X-1939: DS 3780–3781; Enc. *Humani Generis*, 12-VIII-1950: DS 3892, and numerous discourses.

[41] Cf. Enc. *Pacem in Terris*, 11-IV-1963: AAS 55 (1963) 264.

[42] Cf. Enc. *Humanae Vitae*, 25-VII-1968, nn. 4, 11, 16 and 24.

[43] Cf. *Gaudium et Spes*, 16 and 89; *Dignitatis Humanae*, 14; *Apostolicam Actuositatem*, 7.

[44] Cf. *CCC*, 1954–1960.

[45] Cf. nos. 35–53.

[46] In light both of the biblical foundations and the constant reproposal of the doctrine concerning the natural moral law, its existence can be considered a truth of the faith: cf. J.M. Aubert, *Legge divina, leggi umane*, (Rome: Desclée, 1969).

[47] Cf. Chapter I, subsection 1.1.3 and 1.3.2.

[48] In the diverse meanings of the concept of nature and their historical evolution, cf. A. Rodríguez Luño, *Etica* (1992), 191–195.

[49] On the difference between these two theologians, cf. A. Rodríguez Luño, "La virtù dell'epicheia. Teoria, storia e applicazione (I)", *Acta Philosophica* 6 (1997) 227–228 and the bibliography there cited.

[50] Cf. Chapter I, subsection 1.3.2.

"[t]he natural law expresses the original moral sense which enables man to discern by reason the good and the evil, the truth and the lie."[51] The natural moral law is a divine law,[52] whose principle precepts "are expressed in the Decalogue."[53] It is called natural "not in reference to the nature of irrational beings, but because reason which decrees it properly belongs to human nature."[54] In fact, it is none other than *the light of the understanding given to us by God in creation insofar as it permits us to discern what must be done and what must be avoided.*[55]

More complex, but substantially the same, is the argument laid out by the encyclical *Veritatis Splendor*.[56] Man, being created in the image of God, is guided by Providence "'from within', through reason, which, by its natural knowledge of God's eternal law, is consequently able to show man the right direction to take in his free actions (cf. *S.Th.* I-II, q. 90, a. 4 ad 1)."[57] Man actively participates in the eternal law, becoming able to provide for himself and for others. "'This participation of the eternal law in the rational creature is called natural law' (*S.Th.* I-II, q. 90, a. 2)".[58] In other terms, the eternal law is naturally present in the light of the human reason and, at the same time, there exists an "*essential subordination of reason and human law to the Wisdom of God and to his law.*"[59] The magisterium of the Church, therefore, has underlined the relationship which exists between the immanent and transcendent aspects of this law. Thus *Veritatis Splendor* explains it citing Leo XIII: according to this Pope, the natural law "'is written and engraved in the heart of each and every man [prescription of human reason could not have the force of law unless it were the voice and the interpreter of some higher reason to which our spirit and our freedom must be subject.' Indeed, the force of law consists in its authority to impose duties, to confer rights and to sanction certain behavior: 'Now all of this, clearly, could not exist in man if, as his own supreme legislator, he gave himself the rule of his own actions.' And he concluded: 'It follows that the natural law is *itself the eternal law,*

[51] *CCC*, 1954.
[52] Cf. *CCC*, 1955; *Gaudium et Spes*, 89.
[53] *CCC*, 1955.
[54] *Ibid.*
[55] Cf. *CCC*, 1954–1955.
[56] Cf. M. Rhonheimer, *Autonomia morale, libertà e verità secondo l'enciclica "Veritatis Splendor"*, in G. Russo (compiler), *Veritatis Splendor. Genesi, elaborazione, significato* (1995) pp. 193–215; the intervention of M. Rhonheimer, J.E. Smith, B. Fraling, and G. Cottier, in Various Authors, *Lettera enciclica "Veritatis Splendor". Testo e commenti*, (Vatican City: Lib. Ed. Vaticana, 1994); J. De Finance, "La legge morale naturale", in R. Lucas Lucas (ed.), *"Veritatis Splendor". Testo e commento filosofico-teologico* (1994), 268–286; A. Rodríguez Luño, "*Veritatis Splendor" un anno dopo. Appunti per un bilancio (I)* (1995), 242–260.
[57] *Veritatis Splendor*, 43.
[58] *Ibid.*
[59] *Veritatis Splendor*, 44.

implanted in beings endowed with reason, and inclining them *towards their right action and end;* it is none other than the eternal reason of the Creator and Ruler of the universe.'"[60]

The Universality and Immutability of the Natural Moral Law — *Universality and immutability are two properties of the natural moral law constantly recalled by ecclesiastical teaching.* Here we limit ourselves to recall the fundamental aspects of this doctrine. The natural moral law is *universal* in the sense that "*its precepts and its authority extends to all men.*"[61] Such universality finds its foundation, in the final analysis, in the substantial unity of the human reason and its participation in the eternal law. Without a substantially unitary moral reason, it would be impossible to have a true dialogue between cultures, and for there to be a universal recognition of human rights and international law. The universality of the natural moral law does not render illegitimate every differentiation in the more concrete applications. The natural law "can demand reflection that takes account of various conditions of life according to places, times, and circumstances. Nevertheless, in the diversity of cultures, the natural law remains as a rule that binds men among themselves and imposes on them, beyond the inevitable differences, common principles."[62]

The natural moral law is also *immutable* in the sense that it is "permanent throughout the variations of history; it subsists under the flux of ideas and customs and supports their progress. The rules that express it remain substantially valid."[63] The immutability of the fundamental moral principles is not opposed to the historical progress of man's moral conscience, which acquires a more acute sensibility regarding certain values. There exists, in fact, and it is good that it exists, also a progress in the linguistic formulation of natural moral demands, in such a way as to "discover *the most adequate formulation* for universal and permanent moral norms in the light of different cultural contexts, a formulation most capable of ceaselessly expressing their historical relevance, of making them understood and of authentically interpreting their truth."[64] In this case we are dealing with a positive progress in moral science, and not properly with a change in the principles of the natural moral law.

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[60] *Veritatis Splendor*, 44. The internal citations of Leo XIII, are of the encyclical *Libertas Praestantissimum*, 20-VI-1888: *Leonis XIII P.M. Acta*, VIII, Romae 1889, p. 219. On the concept of natural law it can be useful to consult: M. Rhonheimer, *Natural Law and Practical Reason* (2000); J. Finnis, *Legge naturale e diritti naturali*, (Turin: Giappichelli Editore, 1996); S. Theron, *Morals as Founded on Natural Law*, (Frankfurt: Peter Lang, 1987).

[61] *CCC*, 1956.

[62] *CCC*, 1957; cf. *Veritatis Splendor*, 51–52.

[63] *CCC*, 1958.

[64] *Veritatis Splendor*, 53.

The universality and immutability of the natural moral law does not in fact mean that all people perceive in every moment all of the moral principles with equal clarity.[65] Soon we shall see that not all of the precepts of the natural moral law enjoy the same evident quality. One may consider that the natural moral law is "natural" for the human person in a very similar way to how language is natural to him: irrational animals never succeed in speaking, while man has the natural capacity to do it, but this requires, however, a long period of education. As the quality of each person's ability to speak a language depends on education, so the diversity of moral judgments concerning the same behavior sometimes found between different people depends on defects in the moral education each person receives, but this does not constitute an objection against the existence of a natural moral law. What could constitute an objection would be the existence of completely amoral humans, without practical reason, who did not assume when confronted with their own life or that of others a behavior which was evaluative or capable of being judged, even if we were dealing with a behavior which was very deformed on account of certain causes. From the fact that a natural capacity could be developed and exercised in a defective way, it is not licit to conclude that such a capacity does not exist or that it does not exist for all peoples.

8.2.2 The Natural Principles of the Moral Virtues

The Natural Reason and Practical Principles — In the study of the moral virtues we said that in order to overcome the apparent vicious circle between the moral virtues and prudence, we need not only distinguish between the intentional and elective dimensions of the moral virtues,[66] but also to presuppose natural knowledge of virtuous ends, knowledge which constitutes a fundamental part of the natural moral law.[67] Now is the moment to study this point in depth.

Saint Thomas retains, in fact, that *the virtuous ends are known by nature.*[68] Before explaining how and in what sense the ends of virtue are naturally known, we must make an important clarification. *The existence of a natural knowledge of virtuous ends cannot be interpreted as a simple psychological fact (in a naturalistic sense), without moral relevance.* To speak of natural knowledge of ends means that the practical reason has natural *principles*, on which are founded all of its activity, so that in the practical order such ends have the character of principles, that is, of points of departure for the practical

[65] Cf. *CCC*, 1960.

[66] Cf. Chapter VII, subsection 7.3.1.

[67] Cf. Chapter VII, subsection 7.3.4.

[68] Cf. *In Decem Libros Ethicorum*, lib. III, lect. 13, nos. 524–525; lib. VI, lect. 3, no. 1131. The considerations which we espouse in what follows owe much to M. Rhonheimer, *The Perspective of Morality* (2011), 256ff.

reason that are concluded with choice. From this perspective, speaking of ends known by nature is another way of saying ends that are necessarily criteria for moral rectitude.[69]

What was said above allows us to understand that when it is affirmed that some goods are known by nature as ends, this is simply speaking of the natural moral law. This is a natural *ordinatio rationis* toward the good, as a participation in the eternal law. Man has the perception of what is reasonable by nature, independently of any positive law. *The natural moral law is the law which reason possesses by nature, in virtue of which some ends are naturally known by man as such, as principles of the practical activity of the reason.* We can speak in this sense of a *ratio naturalis*, an essential part of man's practical nature,[70] i.e. of the nature proper to man as a rational agent or moral subject. If there did not exist a natural reason, if there did not exist anything in the reason which was determined by nature and a principle of all the rest, then there would not exist any reasonableness in action, but only blind desire.

The First Principle of the Practical Reason — We can examine now the contents of the "law" which the practical reason possesses by nature. *The practical reason has a first and fundamental principle, constituted by the practical perception of the good as that which must be done and of evil as that which must be avoided.* The expression of this principle in the form of a proposition or judgment—*bonum est faciendum et prosequendum, et malum vitandum*"[71]—does not offer an adequate idea of its nature. It is not a simple judgment or proposition, but represents, at a much higher level than the operation of judgment, the first and fundamental expression of the human reason as practical reason, the light in which every practical object is rendered visible inasmuch as it is practical. The fundamental perception of the good, possessed by nature and not through the free choice of the individual, explains why the human reason can conceive of an object not merely as an object of knowledge ("A is A"), but as an object of execution ("I must do A"), i.e. as a good, and it determines the way of approaching the world proper to man as a moral being.

> This first principle is presupposed in all practical reasoning as a point of departure, and performs in the practical order an analogous role to that

[69] This means that "an appetition or striving that is directed toward that which the *reason* 'by nature' recognizes as good is necessarily also 'right'. The freedom that would recognize such a striving only as a mere fact, in order to then question it for its rectitude, would in this way be annihilated as a reason-guided freedom. It would be asking, that is to say, whether the rational is rational, when otherwise the question about rightness has been the same as the question about rationality" (M. Rhonheimer, *The Perspective of Morality* (2011), 259).

[70] Cf. G. Abbà, *Felicità, vita buona e virtù* (1995), 250–253.

[71] *S.Th.* I-II, q. 94, a. 2.

> performed by the principle of non-contradiction in the speculative order. We shall consider the following example. If I start from the premise: "humans have need of food to live", and I add: "I am a human", logic requires the conclusion: "I am one of those who has need of food to live". We treat here of speculative reasoning, which makes me know something about myself. Practical reasoning is constituted instead in light of the original perception of the good as something to do or of evil as something to avoid, as well as the equally practical perception of other goods (for example, life). Thus one arrives logically at the imperative conclusion: "I must eat food".

From the epistemological point of view, it can be added that *the first practical principle is grasped by the intellectual habit called "synderesis".*[72] We are dealing with a habitual knowledge, a theme which possesses notable importance for the theory of knowledge, and with which we cannot concern ourselves at this moment. It interests us, rather, to explain that synderesis also grasps the ends of the virtues with a certain universality, without identifying in a particularized way the concrete demands of justice, temperance, etc.[73] Let us now see how this happens.

The Virtuous Ends as Practical Principles — The moral virtues are types of rational regulation for actions, tendencies, and passions regarding certain goods; for example: interpersonal relationships are regulated by justice, eating and drinking are regulated with temperance, etc. Therefore, *the perception of the virtuous ends is connected to the perception of certain fundamental human goods which are achieved in a certain way:* all the things to do and to avoid pertain to the natural law inasmuch as the practical reason naturally knows them as human goods, and it knows as human goods all that toward which humans are naturally inclined.[74] Therefore *the ends of the natural inclinations are goods for humans only inasmuch as they are known and regulated by the reason.*

> As was said before,[75] Aquinas identified three large groups of natural inclinations. We know that the enumeration is exhaustive, and can be usefully completed. Now what interests us is pointing out that those tendencies do not yet allow us to know properly human goods or the virtues. The reason must understand what is the right way ("reasonable", "conforming to reason") of satisfying the tendencies and of achieving their ends, in such a way that they are integrated into the totality of the person and contribute to her good. Not just any way of feeding oneself is a good for man; not just any sexual union is good for man.

[72] See Chapter VII, subsection 7.2.1.

[73] Cf. *S.Th.* I, q. 79, a. 12; II-II, q. 47, a. 7; A. Rodríguez Luño, *La scelta etica* (1998), 50–55.

[74] Cf. *S.Th.* I-II, q. 94, a. 2. On the natural inclinations see D. Composta, *Natura e ragione. Studio delle inclinazioni naturali in rapporto al diritto naturale* (1971).

[75] Cf. Chapter V, subsection 5.2.1.

> Nutrition as a human good is not something which nature has taught to all animals, so neither is sexuality as a human good something which nature has taught to animals. Only the reason teaches us what are nutrition and sexuality as human goods. The natural inclinations offer only the material or subject-matter which must be further directed by the practical reason.

It is here that the virtues come to play their role. *The virtues are the rational modes of regulation of the natural inclinations and of the goods toward which they tend.* Rational regulation as it refers to nutrition and sexuality is temperance; the rational regulation of what pertains to human life in common is justice, and so forth. It is in this sense that the virtuous ends come to be grasped naturally, that is, as the highest standards according to which the goods that the human tendencies tend toward are desired, managed, and realized so that they may effectively contribute to man's good. There exists, therefore, a natural sense of justice, temperance, etc. which give rise to practical principles that follow the first principle of the practical reason, and that are fundamentally rational modes of regulation both in relation to the natural inclinations and within the natural inclinations. It can be affirmed that in the natural perception of the virtuous ends, the reason and the inclinations converge, relating to each other as form and matter. The inclinations furnish the material, while reason gives the form: and without the latter there would not exist a properly human good conformed to virtue. The necessary regulating intervention of the reason implies that the properly human (moral) good is always an intelligible good.

The virtuous modes of regulating the tendencies' ends are not possessed by the reason as innate ideas. But in their general terms they are easily known, thanks to the natural disposition constituted by synderesis. However, coming to be presupposed is a spontaneous understanding of the meaning of the natural inclinations and of the relation that they have between themselves, with the whole person, and other persons.[76] In sum, *moral good and evil can only be determined, in the last analysis, in reference to virtue. Moral good means conformity to virtue, with moral evil being contrary to it.*

It would be valuable to specify, nevertheless, that *the role of the natural inclinations and tendencies, though being material, is not purely material in the sense that the reason may not find in them an anticipation of meaning.* For this reason it would not be exact to affirm that the only moral regulation of the inclinations and tendencies is that established in each case by

[76] For example, man tends toward sexual union, but also toward friendship, communication, justice understood as equality in giving and receiving, toward fidelity to promises, etc., and all this has much to do with the mode of regulating the execution of the sexual tendency, and therefore with what is honest and due in the ambit of this tendency, and with what is contrary to honesty in the same ambit.

prudence. The practical principles grasped by synderesis, which are in reality the intellectual dimension of the moral virtues, have a normative content and structure that already expresses in a general sense the role performed by each good (nourishment, economic goods, friendship, sexuality) in human life considered as a whole. This normative structure is further developed by moral knowledge, giving rise to more concrete ethical norms. Only then, in the third "moment", does prudence intervene, and it does so maintaining consistency with synderesis and moral knowledge. The practical reason which formulates the prudential judgment is the same reason which grasps the first practical principles and develops them by formulating concrete operative norms. In this process of realization, the reason is always consistent with itself. A concrete moral judgment contrary to practical principles (if a person were to think, for example, that in this concrete case adultery was justified) would not be a rational or prudential judgment, but a judgment deformed by error or the passions. The reason would not be able to recognize itself in it.

The First Principle of the Practical Reason and the First Principle of the Natural Moral Law — What we have said concerning the first principle of the practical reason and the virtuous ends as the subsequent practical principles, explains the genesis of the natural moral law as a spontaneous regulating activity of behavior that the human reason possesses and exercises "by nature". If we look at the full development of this activity, which can be reached in connection with the intellectual virtues (knowledge, wisdom) and, in the Christian, with faith, we must say then that the first principle of the natural moral law, in the sense of being the most important and of being maximally "architectural", is the love of God and neighbor.[77] *The virtues express, then, the modes in which the tendency and the realization of human goods must be regulated so that they are congruent with a will intent on perfection in God both for its possessor and for every human person.*[78]

8.2.3 The Precepts of the Natural Moral Law

In theological literature, and also in documents of the Church's magisterium, there is often mention of *precepts of the natural moral law.* This can be legitimately discussed when one passes from the level of the *direct exercise* of the practical reason ("*ratio practica in actu esercito*"), in which is placed what we have said up to this moment, to the level of the *reflective exercise* of the same reason ("*ratio practica in actu signato*"[79]), when one passes, that is, to the systematic reflection of the practical activity of the human reason,

[77] Cf. A. Rodríguez Luño, *La scelta etica* (1998), 52.
[78] Cfr. G. Abbà, *Felicità, vita buona e virtù* (1995), 196.
[79] Cf. Cajetan, *Commentary on the "Summa Theologiae"*, I-II, q. 58, a. 5, Comm. VIII.

a reflection which pertains to moral science.[80] *It is at this level of reflection that moral science establishes normative statements, that is, propositions in terms of "one must" or "one must not" which express the contents of the principles of the practical reason or of judgments concerning these principles.* For example, the proposition "one must give to each his own" expresses the principle of "justice" at a general level, while the proposition "one must restore what was stolen" expresses a more concrete demand of the same principle. These are the normative statements which are normally referred to when one speaks of precepts of the natural moral law.

Following Saint Thomas, a distinction was established between the diverse categories of precepts of the natural moral law, according to their degree of evidentness or proximity to self-evident principles.[81] These *categories of the precepts of the natural moral law are three:* the first and common precepts; the secondary precepts very close to the first precepts; and the secondary precepts that can be derived from these other precepts only through reasoning which is more or less difficult and complicated.[82] *The first precepts are those which enjoy the most evidentness of all* and regard diverse ambits of action, as for example "one must not do evil to anyone", the golden rule, etc. They respond also to virtuous ends considered in their highest generality. Saint Thomas retains that the first precepts were not promulgated in the Decalogue, since their evidentness would render their promulgation superfluous. *The secondary precepts close to the first precepts* refer already to specific ambits of action, and can be known from the first precepts with simple reasoning, of which all are capable; to this group pertain the precepts of the Decalogue. The precepts of the third category can be based logically on those of the second category through more complicated reasoning, accessible only to the wise, i.e. to the devotees of moral science; according to Saint Thomas "the people receive these principles from God, through being taught by wise men."[83] They are not explicitly contained in the Decalogue, though they may find in the Decalogue the premises from which they are derivable.

> We must retain, therefore, that the natural light of the practical reason reaches some knowledge with immediate evidentness: the first principles and the virtues considered in their more general content. Departing from this first moral knowledge, it arrives discursively to other truths, more or less distant from the first evident principles. But, on the re-

[80] Cf. M. Rhonheimer, *The Perspective of Morality* (2011), 309ff.

[81] It is not entirely easy to get an exact idea of the thought of Saint Thomas on the subject, because the terminology used is oscillating: cf. *S.Th.* I-II, q. 94, a. 6; q. 100, a. 3; II-II, q. 122, a. 1. On the other hand, he did not furnish a list of precepts pertaining to each of the categories, something which, moreover, there would not be much interest for doing.

[82] Cf. *S.Th.* I-II, q. 100, a. 3.

[83] *Ibid.*

flective level of the precepts of which we are speaking, what is decisive for establishing if a moral assertion is an expression or not of the natural moral law, is not so much the immediate or mediate character of the principles, as is the fact of having a *necessary connection with the first principles or the virtues.* If the necessary connection exists, even if people have discovered it only with the passing of time, we are dealing with a precept of the natural moral law; if it does not exist, we will certainly be before an ethical disposition established by an authority, whether it be political, religious, etc.

8.3 The Moral Law of the Old Testament: Covenant, Gift, and Promise

8.3.1 The Old Testament in the History of Salvation

It is frequent in theological literature to speak of the "Law" to refer (*pars pro toto*) to the moral teachings of the Old Testament. Nonetheless, in a rigorous sense, the "Law" is only part of it, concretely, the essential content of the Pentateuch, which the New Testament often calls "The Law of Moses".[84] Alongside the "Law" are mentioned "the Prophets",[85] or "the Prophets and Psalms".[86] In Old Testament biblical theology, generally accepted is a distinction between an ethics of the law, an ethics of the prophets, and a wisdom—or sapiential—ethics,[87] a distinction which, nonetheless, should not be conceived of as a separation, since between the three sources of Old Testament ethics there exist evident connections and points in common.

The entire economy of the Old Testament is primarily ordained to prepare, announce, and signify the coming of the Savior.[88] According to the Pauline expression, the "Law" is good and holy,[89] but considered as a whole it is not definitive. "The law was our disciplinarian for Christ, that we might be justified by faith."[90] It is, therefore, ordained toward Christ, who constitutes its fulfillment: "Christ is the end of the law."[91] "An end not as a lapse into discontinuance—comments Saint Ambrose–, but as the fullness of the Law: this is fulfilled in Christ, from the moment He came not to abolish the Law,

[84] Cf. *Lk* 2:22; Jn 1:17; 7:19; *Heb* 10:28.
[85] *Mt* 5:17; *Lk* 24:25,27; *Acts* 28:23.
[86] *Lk* 24:44.
[87] Cf. E. Testa, *La morale dell'Antico Testamento*, (Brescia: Morcelliana, 1981); W.H. Schmidt, *Einführung in das Alte Testament*, 2nd ed., (Berlin: 1982).
[88] Cf. *Dei Verbum*, 8. For a synthetic vision cf. J.-D. Barthélemy, *Dio e la sua immagine*, 4th ed., (Milan: Jaca Book, 1980).
[89] Cf. *Rom* 7:12.
[90] *Gal* 3:24.
[91] *Rom* 10:4.

but to bring it to completion."[92] The Pauline polemic does not mean that the "Law" is opposed to grace, but it is directed against those for whom it, "despite the coming of grace, persists in maintaining its own domain. If, in fact, it locks up those who would need to turn themselves toward grace, then it depraves our salvation. Like the lamp that shines in the night, if, at the dawn, it were to impede the sight of the sun, not only would it not be something pleasing but instead something harmful, thus the law would be if it were an obstacle to the attainment of that which is best."[93]

Having made this necessary caveat, it should be noted that *the Old Testament is an essential part of the Word of God, and its books preserve perennial elements.*[94] Along with some evidently imperfect things, these books contain instructions and moral examples of permanent and even excellent value. For this reason, the law—and primarily the Decalogue—will come to be widely taken up again, executed, and deepened in the New Testament[95] and in the Christian theological and catechetical tradition. These books, "though they also contain some things which are incomplete and temporary [life, and a wonderful treasury of prayers."[96] "The Church has always vigorously opposed the idea of rejecting the Old Testament under the pretext that the New has rendered it void."[97] The books of the Old Covenant, in fact, were always used in the Church's teachings and liturgy, and the Decalogue, for example, still serves as a basic structure for Christian moral catechesis.

The books of the Old Testament possess, furthermore, a characteristic of immense interest. They *present moral and religious teachings making use of rather diverse literary genres.* Alongside texts of a more strictly legal nature, there exist historical texts with a fundamentally narrative structure, poetic texts, collections of prayers and wise maxims, recounts of the deeds of heroes of the elect people, instructions regarding feasts which commemorate the divine gifts, etc. Modes of expression that sometimes reveal the nature and conditions of the moral life in a rather more exact manner than discourses structured according to the canons of present-day normative morality.

> It should not be forgotten that the study of the moral teachings of the Old Testament present more than a few problems. There are studies of the dating, the literary genre, of the history and redactional composition

[92] Saint Ambrose, *In Psalmum CXVIII Expositio*, sermo 18, 37: PL 15, 1541, cited in *Veritatis Splendor*, 15.

[93] Saint John Chrysostom, *In Epistulam ad Galatas Commentarius*, 3, 5: PG 61, 656, our translation.

[94] Cf. *Dei Verbum*, n. 14; *CCC*, 121.

[95] Cf. for example *Mt* 19:16–22 (and its parallels): the episode of the rich young man, where Jesus makes reference to the precepts of the Decalogue. See the study of this passage in Chapter I of *Veritatis Splendor*. Cf. furthermore *Rom* 13:8–10.

[96] *Dei Verbum*, 15.

[97] *CCC*, 123.

> of the texts, relationships with the literature of the surrounding peoples, relationships between the social evolution of the people of Israel, divine revelation and the reflection on the tradition of divine revelation. These are questions for specialists which we do not intend to delve into here. Lastly, there is the problem of the breadth of material available. Here we shall limit ourselves to offering a comprehensive vision, attentive to the more fundamental elements and, among these, to those which, for their strictly moral nature, are permanent, and therefore absolutely not to be disregarded by a Christian.[98]

8.3.2 The Ethics of the Law

In studies of the Pentateuch it is normal to distinguish between moral, cultual, and judicial precepts. Judicial precepts comprise norms of penal, civil, and procedural law, which are found principally in the "Covenant Code"[99] and in *Deuteronomy*. The cultual norms are contained principally in *Leviticus*, but also in *Exodus* and in *Numbers*: among these we can cite the norms concerning worship,[100] legal purity,[101] and those contained in the "Holiness Code".[102] We find the moral norms scattered throughout *Exodus*, *Leviticus*, and *Deuteronomy*, and they contain prescriptions regarding behavior to observe with one's neighbor, sexual behavior, and, above all, the Decalogue or Ten Commandments, which has come down to us in two versions.[103] *According to the theological tradition, the cultual and judicial norms are to be considered repealed after the coming of Christ.* We shall thus concern ourselves only with the moral norms, which, for what regards their content, substantially comply with the natural moral law,[104] and therefore with the virtues.[105]

[98] We shall make use primarily of the synthesis put together by H. Weber, *Teologia morale generale: l'appello di Dio, la risposta dell'uomo*, (Cinisello Balsamo: San Paolo, 1996, 29–51; R. Cavedo, voce *Morale dell'Antico Testamento e del Giudaismo* e G. Barbaglio, voce *Decalogo*, in *Nuovo Dizionario di Teologia Morale* (1990), 770–786 and 204–218 respectively. Of notable interest, even if being more complex, is the synthesis of the biblical morality of the Old Testament offered by G. Angelini, *Teologia Morale Fondamentale* (2001), 252–388.

[99] Cf. *Ex:*20–23. Also referred to as "The Book of the Covenant".

[100] Cf. *Ex* 34:13–26.

[101] Cf. *Lev* Chs. 11–16.

[102] Cf. *Lev* Chs. 17–25.

[103] Cf. *Ex* 20:2–17; *Deut* 5:6–21.

[104] "It is therefore evident that since the moral precepts are about matters which concern good morals; and since good morals are those which are in accord with reason; and since also every judgment of human reason must needs be derived in some way from *natural reason*; it follows, of necessity, that all the moral precepts belong to the law of nature; but not all in the same way" (*S.Th.* I-II, q. 100, a. 1). The expression "natural reason", which we emphasized, is to be understood according to how we explained it before in subsection 8.2.3.

[105] "Now man is united to God by his reason or mind, in which is God's image. Wherefore the Divine law proposes precepts about all those matters whereby human reason is well

From a general point of view, it should be noted first of all that *the ethics of the "torah" has a religious-theological character.* Faith in YHWH as the only God who has a particular relationship with Israel, understood as a covenant, is the framework in which this *ethos* is inserted, in such a way that all of the ethical prescriptions come to be seen as proceeding from God, and respect for them is seen as the people's part to play within the covenant. Therefore, the moral life does not come to be conceived as an autonomous earthy dimension. It is rather permeated with religiosity understood in a dialogical sense, and possesses an altogether secondary significance in relation to God's initiative and loving election. The divine moral instruction is lived as a gift and as grace, a sign of the closeness and the care of God toward His people. [106]

The Law has a pronounced social character. It is firstly the law given to the people of Israel, to ensure justice, peace, prosperity, and above all fidelity to the covenant sealed with YHWH. The precepts of the Decalogue all aim toward justice: toward justice with God and justice with one's neighbor. After the precepts which refer to God, comes commanded the sanctification of the Sabbath—which possesses a cultual aspect as well as a social aspect (rest must be guaranteed for servants and foreigners)–respect for one's parents, for innocent life, for matrimony, and the property of others; finally one's neighbor comes to be protected from injustices which arise from false testimony in judicial processes and from another's unjust covetousness of his wife or property. The law takes into account the real weakness of the people, and on some points concedes with the "hardness of your heart".[107] Even if *the precepts of the law* oftentimes command or forbid certain actions ("you shall do", "you shall not do"), it is notable, however, that they *intend to lead the people toward virtuous dispositions*: faith and love of God, justice and love toward neighbor.[108] That which stands behind the commandments given by God to the elect people is a request for faith and trust. The people are rebuked when, despite the powerful deeds done by the Lord in their favor, they allow themselves to fall into fear or complaining which show a lack of faith

ordered. But this is effected by the acts of all the virtues" (*S.Th.* I-II, q. 100, a. 2).

[106] Deuteronomy is perhaps the best testimony: "Therefore, I teach you the statutes and decrees as the LORD, my God, has commanded me, that you may observe them in the land you are entering to occupy. Observe them carefully, for thus will you give evidence of your wisdom and intelligence to the nations, who will hear of all these statutes and say, 'This great nation is truly a wise and intelligent people.' For what great nation is there that has gods so close to it as the LORD, our God, is to us whenever we call upon him? Or what great nation has statutes and decrees that are as just as this whole law which I am setting before you today?"(*Deut* 4:5–8). The law is the intelligence and wisdom that will ensure the coming of freedom and peace purchased with the exodus from Egypt.

[107] Cf. *Mt* 19:3–9, regarding divorce.

[108] "Take no revenge and cherish no grudge against your fellow countrymen. You shall love your neighbor as yourself" (*Lev* 19:18). "So you too must befriend the alien, for you were once aliens yourselves in the land of Egypt." (*Deut* 10:19).

and trust. In contrast, that which comes to be praised in the righteous and the heroes of the elect people is their faith.[109]

8.3.3 The Ethics of the Prophets

The prophets energetically underline ethical demands, which are not satisfied—and still less can one flee from them—by cult acts alone.[110] "Their fundamental intuition is that the ethical demand is the primary demand of the true God."[111] Obviously, the prophets are not opposed to cult, but to a cult without soul which could coexist with injustice and a failure to listen to the divine words. In this perspective there is found in the prophets a *strong insistence on social duties,* that is, on justice and on the law: a commitment to the underprivileged, the defense of the weak, and the overcoming of inequalities.[112]

[109] It may be enough to think of the unconditional faith in the word of God emphasized by the *Letter to the Hebrews* (11:2–38): through faith Abel offered to God a sacrifice that was better than that offered by Cain; Enoch, before being transported away, was attested to as being pleasing to God; Noah, divinely warned of things that were not yet seen, constructed an ark to save his family; Abraham was obedient in departing for a place where he would receive his inheritance, and departed without knowing where he was going; by faith he sojourned into the promised land as in a foreign region, living in tents, as also did Isaac and Jacob; Sarah was given the opportunity to become a mother because Abraham considered faithful the one who gave the promise; Abraham, put to the test, offered his only son; Isaac also blessed Jacob and Esau regarding future things, etc.

[110] "I hate, I spurn your feasts, I take no pleasure in your solemnities; Your cereal offerings I will not accept, nor consider your stall-fed peace offerings. Away with your noisy songs! I will not listen to the melodies of your harps. But if you would offer me holocausts,then let justice surge like water, and goodness like an unfailing stream" (*Amos* 5:21–24); cf. *Is* 1:10–17; *Jer* 7:21–23.

[111] R. Cavedo, *Morale dell'Antico Testamento e del Giudaismo* (1990), p. 773, our translation.

[112] "He looked for judgment, but see, bloodshed! for justice, but hark, the outcry!" (*Isa* 5:7). Woe "to those who acquit the guilty for bribes, and deprive the just man of his rights!" (*Is* 5:23). Most harsh is the rebuke of Ezekiel against Jerusalem: "And say: Thus says the Lord GOD: Woe to the city which sheds blood within herself so that her time has come, and which has made idols for her own defilement. By the blood which you shed you have been made guilty, and with the idols you made you have become defiled; you have brought on your day, so that the end of your years has come. Therefore I make you an object of scorn to the nations and a laughingstock to all foreign lands. Those near you and those far off shall deride you because of your foul reputation and your great perversity. See! the princes of Israel, family by family, are in you only for bloodshed. Within you, father and mother are despised; in your midst, they extort from the resident alien; within you, they oppress orphans and widows. What is holy to me you have spurned, and my sabbaths you have desecrated. There are those in you who slander to cause bloodshed; within you are those who feast on the mountains; in your midst are those who do lewd things. In you are those who uncover the nakedness of their fathers, and in you those who coerce women in their menstrual period. There are those in you who do abominable things with the wives of their neighbors, men who defile their daughters-in-law by incest, men who coerce their sisters, the daughters of their own fathers. There are those in you who take bribes to shed blood. You exact interest and usury; you despoil your neighbors violently; and me you have forgotten, says the Lord GOD"(*Ezek* 22:3–12).

There is undoubtedly in the prophets a very lively sense of sin, which is seen as an expression of human pride. Thematically speaking, there are not any substantial novelties in the prophetic *ethos* with respect to the Pentateuch: the prophets evoke the *torah* in an historical and social context in which respect for the law seems to have decreased.

The morality of the prophets should also be seen in a religious context. Behind one's neighbor and social duties stands YHWH. In socially just behavior the presence of the Lord becomes visible: "Did not your father eat and drink? He did what was right and just, and it went well with him. Because he dispensed justice to the weak and the poor, it went well with him. Is this not true knowledge of me?".[113] Above all, faith in God comes to be vigorously emphasized, and from Him proceeds all salvation and security: "For I will trust in the LORD, who is hiding his face from the house of Jacob; yes, I will wait for him."[114]

8.3.4 The Ethics of the Wisdom Books

General Characteristics — The Wisdom Books, with respect to the rest of the Old Testament, present entirely unique characteristics.[115] Their connection with extra-biblical literature (Egyptian, Mesopotamic Babylonian and, for the more recent layers, also Hellenistic literature) is particularly relevant, and their ethical-rational content is prevalent.[116] As evidence for the specificity of the "sapiential ethics" it is normal to refer to Jer 18:18: "It will not mean the loss of instruction from the priests, nor of counsel from the wise, nor of messages from the prophets." *The sapiential ethics of the Wisdom Books contain the counsel of the wise ones of Israel.* In the more ancient layers (Proverbs *10–31), affirmations of an ethical type are quite distant from*

[113] *Jer* 22:15–16.

[114] *Isa* 8:17. An expression which is quite telling of the prophetic attitude is that of Jeremiah; "Cursed is the man who trusts in human beings, who seeks his strength in flesh, whose heart turns away from the LORD. He is like a barren bush in the desert that enjoys no change of season, But stands in a lava waste, a salt and empty earth. Blessed is the man who trusts in the LORD, whose hope is the LORD. He is like a tree planted beside the waters that stretches out its roots to the stream: It fears not the heat when it comes, its leaves stay green; In the year of drought it shows no distress, but still bears fruit" (*Jer* 17:5–8).

[115] Regarding the wisdom literature, see: E. Testa, *La morale dell'Antico Testamento* (1981), 211–283; G. von Rad, *La sapienza in Israele*, (Casale Monferrato: Marietti,1982). For an initial, but good, introduction: A. Minissale, *Siracide. Le radici nella tradizione*, (Brescia: Queriniana, 1988); A. Bonora, *Proverbi e Sapienza*, (Brescia: Queriniana, 1990); J. Rybolt, *Sapienza*, (Brescia: Queriniana, 1997) and *Siracide*, (Brescia: Queriniana, 1997).

[116] The biblical wisdom literature comes from a period of time comprising almost a millennium. A more ancient layer can be distinguished—represented fundamentally by *Proverbs* 10–31, *Job,* and *Ecclesiastes*—which before certain paradoxical facts (the suffering of the just and death) seems to put into crisis the "why" of traditional morality, and a more modern layer to which pertains *Proverbs* 1–9 and the books of *Sirach* and *Wisdom.*

abstraction and deduction. They proceed rather from the experiential observation of real connections, which oftentimes offer a basis for the induction of a general principle. "The wise one transmits, first of all, a culture from which he derives his motivations for behavior. The principal criterion is the success of man in the society of his time. In this sense it can be said that the foundation of sapiential ethics is anthropological, because it is based on experience, and makes use of rationality, it emancipates freedom and tends to guarantee to the person a more balanced and gratifying integration into the world."[117]

In *Proverbs* 1–9 and in the books of *Sirach* and *Wisdom the fundamental value is represented by wisdom,* of which an undoubtedly more theological concept is proposed. The wisdom of which it speaks is divine wisdom. In *Proverbs* 1–9 one arrives at wisdom through listening to the ancient masters, and the ethical contents are the fruit of a centuries long search, "with the difference that they now acquire an almost dogmatic value and they approach, even if still implicitly, toward becoming a type of revelation."[118] For *Sirach* wisdom is the property of God, it is identified with the revelation at Sinai[119] and must be sought with a disposition referred to as "fear of God"; the correlation between wisdom, law, and fear of God is central to this book.[120] The beautiful hymn of Chapter 24 speaks of a personified wisdom who takes His dwelling place in Israel in order to then be spread throughout all the earth. Although it is made concrete in the *torah*, it is present in all the works of God and reaches every people and nation.[121] Finally, the book of *Wisdom* adds the conviction of life after death. And, on such a conviction are the theological and anthropological conceptions of the righteous and the unrighteous put in contrast to each other.

For what regards the properly ethical themes, the Wisdom Books dedicate a very large space. Practically all of the sectors of existence of that time come to be contemplated, even if not in a systematic way. However, what is especially surprising is the mode in which ethical themes are treated. The typically normative language is almost absent. Instead experiences, intuitions, maxims, counsels, and rational arguments come to be communicated. Their aphoristic presentation stimulates reflection. Their motivation is the correspondence

[117] R. Cavedo, *Morale dell'Antico Testamento e del Giudaismo* (1990), p. 780, our translation.

[118] *Ibid.*, 782.

[119] Cf. *Sir* 24:1–32.

[120] Cf A. Minissale, *Siracide* (1988), 30.

[121] "Thanks to this identification there is no longer discontinuity between the wisdom which can be discovered with human experience alone and that which is found in the revelation of the law. If it seems at first sight that wisdom inasmuch as it is identified with the law is nationalized and limited, it is also true that it is seen at the same time in the universal perspective of the rationality of all men, who are invited to approach it. This position of *Sirach* constitutes the principal merit of his book in relation to the legacy of the Old Testament" (*Ibid.*, 31), our translation.

of what is stated with reality, with the experience of conduct in view of the success of human life. Furthermore, the results of the actions are opportunely emphasized, sometimes as expressions of immediate or mediate compensation; nonetheless, one cannot truly speak of it being a utilitarian approach.[122] It also needs to be noted that great attention is given to virtuous and vicious forms of human life, to attitudes, to ways of feeling and valuating, to ways of relating oneself to reality and to the situations which take place in it. Additionally, moral teaching comes to be transmitted through the examples of the great protagonists and through the principal events of the history of Israel.[123] However, its religious horizon remains. For e*verything takes place on the basis of faith in God the Creator,* who has ordered all aspects of existence.[124] Fear of God is "the beginning", the "fullness", the "crown", and the "root" of wisdom,[125] and *life conforming to the law of YHWH constitutes its greatest expression.* Such a life *comes to be seen mostly as a virtuous life:* i.e. prudent, balanced, serene, prescient, temperate, far from excesses, but above all founded on faith and fear of God.

> **Virtues and Vices in Sapiential Ethics** — In our study of the moral virtues we already noted, on the mere level of vocabulary used, the presence of the virtues in the Wisdom Books.[126] Now, considering the reality itself of the virtues, we must acknowledge that they are ubiquitous, at least in the books of *Proverbs*, *Wisdom, and Sirach.* Moral discourse is developed in them according to the approach characteristic of an ethics of virtue. Without the pretense of being exhaustive, we want to offer at least an idea of their principal contents.
>
> *Sir* 3:17–28 contains a beautiful instruction concerning humility and pride, a virtue and vice which are seen in this passage as regarding the way one relates to knowledge. It is not fitting to seek things that are overly difficult or inquire into things that are too grand; the sense of mystery should not be lost (vv. 21–23). "Humble yourself the more, the greater you are" (v. 18), because a humble man is loved by men and pleasing to God; the humble person finds grace before God and "by the humble He is glorified" (v. 19). Disastrous are the consequences of pride: "Their own opinion has misled many, and false reasoning unbalanced their judgment. Where the pupil of the eye is missing, there is no light, and where there is no knowledge, there is no wisdom. A stubborn man will fare badly in the end, and he who loves danger will perish in it. A stubborn man will be burdened with sorrow; a sinner will heap

[122] This is well brought out by H. Weber, *Teologia morale generale* (1996), 49.
[123] Cf. *Wis* Chs. 10–19; *Sir* Chs. 44–50.
[124] This is the central point of the recommended interpretation offered by G. Angelini, *Teologia Morale Fondamentale* (2001), 335–388.
[125] Cf. *Sir* 1:12,14,16,18.
[126] Cf. the passages indicated in Chapter VII, subsection 7.1.2, to which could be added others, especially from the book of *Sirach*.

sin upon sin. For the affliction of the proud man there is no cure; he is the offshoot of an evil plant. The mind of a sage appreciates proverbs, and an attentive ear is the wise man's joy" (vv. 23–28).

Numerous are the reflections dedicated to the use of the tongue. Great is the power of the tongue that it can be used for good and for evil: there is a word which helps and another which harms and kills.[127] Both in speech or in the choice to remain silent[128] are manifested wisdom and foolishness, virtue and vice, love and hate, friendship and envy. He makes good use of the word whoever knows to be silent when it is fitting to do so,[129] who reflects before speaking,[130] who chooses the opportune moment to say what he must say, who safeguards confidential information,[131] who does not confide himself with a fool,[132] who does not scold another person while in the grips of anger.[133] Making poor use of the word is he who speaks at the inopportune time,[134] who speaks too much and tells lies and calumnies,[135] the hypocrite and the flatterer,[136] who is quick to judgment[137] or who abandons himself to obscene speech.[138] For what regards the consequences of evil speech, these words of *Sirach are* emblematic: "A meddlesome tongue subverts many, and makes them refugees among the peoples; It destroys walled cities, and overthrows powerful dynasties. A meddlesome tongue can drive virtuous women from their homes and rob them of the fruit of their toil; Whoever heeds it has no rest, nor can he dwell in peace. A blow from a whip raises a welt, but a blow from the tongue smashes bones; Many have fallen by the edge of the sword, but not as many as by the tongue. Happy he who is sheltered from it, and has not endured its wrath; Who has not borne its yoke nor been fettered with its chain."[139]

Moderation should govern all dimensions of life. In eating and in drinking[140] and, more in general, in all of the passions: "Fall not into the grip of desire, lest, like fire, it consume your strength; Your leaves it will eat, your fruits destroy, and you will be left a dry tree, For contumacious desire destroys its owner and makes him the sport of his enemies."[141]

[127] Cf. *Prov* 18:20–21.
[128] Cf. *Prov* 11:12; 15:28; 17:28; *Sir* 1:21.
[129] Cf. *Sir* 20:5–8.
[130] Cf. *Prov* 12:18; *Sir* 5:11–13.
[131] Cf. *Prov*, 11:13; *Sir* 19:7–12.
[132] Cf. *Sir* 8:17–19.
[133] Cf. *Sir* 10:6; 20:1.
[134] Cf. *Sir* 22:6–7.
[135] Cf. *Prov* 12:17; *Sir* 5:14–6:1.
[136] Cf. *Prov* 6:12–15; 10:10; *Sir* 27:22–24.
[137] Cf. *Sir* 23:9–11.
[138] Cf. *Sir* 23:13.
[139] *Sir* 28:14–19.
[140] Cf. *Sir* 31:12–30.
[141] *Sir* 6:2–4.

There are exhortations to monogamy,[142] to conjugal fidelity, [143] and to chastity,[144] as well as warnings against lust: "For burning passion is a blazing fire, not to be quenched till it burns itself out: A man given to sins of the flesh, who never stops until the fire breaks forth. The rake to whom all bread is sweet and who is never through till he dies."[145] In order to live chastely, prudence in social relations are also recommended: "Avert your eyes from a comely woman; gaze not upon the beauty of another's wife - Through woman's beauty many perish, for lust for it burns like fire. With a married woman dine not, recline not at table to drink by her side, Lest your heart be drawn to her and you go down in blood to the grave."[146]

Work should be done with effort and perseverance: "hold fast to your duty, busy yourself with it, grow old while doing your task,"[147] while avoiding the will to embrace too many things with one's own activity.[148] One must flee from laziness, enjoy with moderation of one's own prosperity, while not trusting too much in it.[149] Greed does no good: "Keeping watch over riches wastes the flesh, and the care of wealth drives away rest [...] The lover of gold will not be free from sin, for he who pursues wealth is led astray by it."[150] The miser loses serenity and misunderstands the true value of wealth.[151] Coming to be illustrated, furthermore, are the maxims and conditions of prudence,[152] justice,[153] meekness,[154] docility,[155] true friendship,[156] solidarity,[157] etc. Effectively it puts into relief the cognitive dimensions of virtue and vice, that is to say, their influence on judgment: "Speak not to a woman about her rival, nor to a coward about war, to a merchant about business, to a buyer about value, to a miser about generosity, to a cruel man about mercy, to a lazy man about work, to a seasonal laborer about the harvest, to an idle slave about a great task: pay no attention to any advice they give. Instead, associate with a religious man, who you are sure keeps the commandments; Who is like-minded with yourself and will feel for you if you fall."[158]

[142] Cf. *Prov* 5:15–21.
[143] Cf. *Prov* 6:20–7:27; *Wis* 3:16–19; *Sir* 23:18–27.
[144] Cf. *Wis* 3:13–15.
[145] *Sir* 23:16–17.
[146] *Sir* 9:8–9.
[147] *Sir* 11:20; cf. *Prov* 22:29.
[148] Cf. *Sir* 11:10.
[149] Cf. *Sir* 14:11–15; 22:1–2.
[150] *Sir* 31:1, 5; cf. *Eccl* 5:9–11.
[151] Cf. *Sir* 13:24; 14:3–13.
[152] Cf. *Prov* 14:15–25.
[153] Cf. *Prov* 17:13–15, 26.
[154] Cf. *Prov* 15:1–4.
[155] Cf. *Prov* 13:13–20.
[156] Cf. *Prov* 17:17; *Sir* 6:5–17.
[157] Cf. *Eccl* 4:9–12; *Sir* 7:32–35; 29:8–12.
[158] *Sir* 37:11–12.

> We can say in summary that, despite its limitations, the ethics of the Wisdom Books offers a fairly comprehensive vision of virtue and vice. On the basis of an acute and realistic empirical observation and of fidelity to divine instruction, sapiential ethics succeed in tracing an image far from negligible of the righteous attitudes of man with regard to personal and material goods, as well as the criteria which inspire right choice.

8.3.5 The Positive Promulgation of the Natural Moral Law in the Old Testament

Classical theology considers that *in the Old Testament there occurred a positive promulgation of the natural moral law, at least in its fundamental contents.*[159] Saint Thomas retained that the moral precepts of the Old Testament are related to virtue,[160] and therefore to the regulation of actions according to their conformity to reason. One deals, then, with the precepts of the natural moral law.[161] Now at this point it is logical to ask ourselves why it was necessary to positively promulgate something which in reality is written in the hearts of all people.[162]

Basing itself on the teachings of the First Vatican Council,[163] the encyclical *Humani Generis* responds thus: "For though, absolutely speaking, human reason by its own natural force and light can arrive at a true and certain knowledge of the one personal God, Who by His providence watches over and governs the world, and also of the natural law, which the Creator has written in our hearts, still there are not a few obstacles to prevent reason from making efficient and fruitful use of its natural ability [of such truths is hampered both by the activity of the senses and the imagination, and by evil passions arising from original sin. Hence men easily persuade themselves in such matters that what they do not wish to believe is false or at least doubtful. It is for this

[159] On some points, as for example the indissolubility of matrimony, the law of the Old Testament adapts itself to the weakness man had in that state, and does not completely express the ethical demands of the natural moral law. This will be fully restored by Christ.

[160] "Therefore it was necessary for the Old Law to include precepts about acts of virtue: and these are the moral precepts of the Law" (*S.Th.* I-II, q. 99, a. 2).

[161] Cf. *S.Th.* I-II, q. 100, a. 1. In the preceding subsection 8.2.3, we considered more specifically the relationship between the precepts of the natural moral law and the Decalogue.

[162] In his response, Saint Thomas considers four motives. "First, because many tumbled into sin because of a contrary custum. And then, with many, the natural reason wherein they were written [the precepts of the natural law] was darkened. Second, because, even if reason prevailed, these persons nonetheless lacked love of the good; and therefore they had to be induced to do good through a compulsion of the obligatory law. Third, so that it would not only be nature which pushed towards the works of virtue, but also respect for the divine commands. Fourth, so that they might be better memorized and often meditated upon in thought." (*Scriptum Super Sententiis*, lib. III, d. 37, q. 1, a. 1).

[163] Cf. I Vatican Council, Cost. *Dei Filius*, Ch. 2: DS 3005.

reason that divine revelation must be considered morally necessary so that those religious and moral truths which are not of their nature beyond the reach of reason in the present condition of the human race, may be known by all men readily with a firm certainty and with freedom from all error."[164] The same doctrine was re-proposed by the *Catechism of the Catholic Church*[165] and by the encyclical *Veritatis Splendor*.[166] *Both in the dogmatic ambit, as in the moral ambit, the object of revelation comprises also truths which are not, per se, unreachable for human reason. Revealed truth is not synonymous with mystery or truth that is not accessible for man.* Revealed truth can also be confirmation of truth that is accessible, in principle, to the reason.

8.4 The Law of Christ

8.4.1 The Law of Christ as "Lex Gratiae"

The messianic prophecies of the Old Testament announce the coming of the kingdom based on a just and complete law,[167] *consisting in an infused interior principle in the hearts of men*: "I will place my law within them, and write it upon their hearts; I will be their God, and they shall be my people. No longer will they have need to teach their friends and kinsmen how to know the LORD. All, from least to greatest, shall know me, says the LORD, for I will forgive their evildoing and remember their sin no more."[168] All this happens with the redemptive work of Christ, who justifies men with a righteousness that overcomes that of the scribes and Pharisees,[169] though not wanting to abolish the law, he changes their heart giving them His Spirit,[170] and renders them to be children of God.[171] Saint Paul speaks of the "law of the spirit of life in Christ Jesus,"[172] with which the economy of the Old Testament comes to be surpassed and abandoned.[173] And so the way toward Christian holiness

[164] Pius XII, Enc. *Humani Generis*, 12-VIII-1950: DS 3875–3876.
[165] Cf. nos. 37–38 and 1960.
[166] Cf. no. 36.
[167] Cf. *Isa* 11:1–5; 32:1–4,15–20; 42:1–4; 51:4–5; *Jer* 23:3–8.
[168] *Jer* 31:33–34; cf. *Ezek* 11:19–20; 36:25–29.
[169] Cf. *Mt* 5:20.
[170] Cf. *Rom* 8:9; *2 Cor* 3:17–18; *Gal* 4:6.
[171] Cf. *Rom* 8:15–17; *Gal* 4:4–7.
[172] *Rom* 8:2.
[173] "Before faith came, we were held in custody under law, confined for the faith that was to be revealed. Consequently, the law was our disciplinarian for Christ, that we might be justified by faith. But now that faith has come, we are no longer under a disciplinarian. For through faith you are all children of God in Christ Jesus. For all of you who were baptized into Christ have clothed yourselves with Christ." (*Gal* 3:23–27).

as the fullness of divine filiation is opened, something of which we already spoke extensively.[174]

The encyclical *Veritatis Splendor* synthetically expresses the ecclesial doctrine concerning this law of Christ: "Going to the heart of the moral message of Jesus and the preaching of the Apostles, and summing up in a remarkable way the great tradition of the Fathers of the East and West, and of Saint Augustine in particular,[175]–*Saint Thomas was able to write that the New Law is the grace of the Holy Spirit given through faith in Christ.*[176] The external precepts also mentioned in the Gospel dispose one for this grace or produce its effects in one's life."[177]

Therefore, two elements in the law of Christ are distinguished. The first and principal element is the grace of the Holy Spirit, which heals the entire person and elevates his operative faculties through the theological and the infused moral virtues. The new law is truly the *lex gratiae*, because the grace of the Holy Spirit is not simply an aid for observing the law, but it is the essential element of the law itself, "consisting in faith that worketh through love."[178] For this reason the new law is fundamentally an interior law, and not a written law, because the Holy Spirit interiorly instructs the faithful;[179] it is also a "law of freedom", as we know by now.[180] *In the second place, the new law is also a written* law; as such it is constituted by the Lord's teachings (the Sermon on the mount, the Beatitudes, etc.) and by the moral catechesis of the Apostles,[181] which can be summarized in the double commandment of love.[182] These teachings regard the things which dispose one for the acquisition or recovery of grace, and the dispositions and works through which grace expresses itself and grows. Saint Thomas, in fact, speaks of the sacraments and the virtues synthetically.[183]

In order to understand the meaning of this doctrine, a possible misunderstanding should first of all be avoided: *the written moral precepts are not secondary in the sense of being less important or not essential; for the grace of the Holy Spirit infused in the heart of the believer necessarily implies to "walk accord-*

[174] Cf. Chapter I, section 1.1, Chapter II and III.
[175] Cf. Saint Augustine, *De Spiritu et Littera*, 21, 36; 26, 46: CSEL 60, 180–190; 200–201.
[176] Cf. *S.Th.* I-II, q. 106, a. 1 corp. & ad 2.
[177] *Veritatis Splendor*, 24.
[178] *S.Th.* I-II, q. 108, a. 1.
[179] Cf. *Jn* 14:26; 16:13–14; *Rom* 8:4–5, 14; *2 Tim* 1:14; *1 Jn* 2:20, 27.
[180] Cf. Chapter IV, subsection 4.3.3.
[181] Cf. *Veritatis Splendor*, 15ff.
[182] Cf. *Mt* 22:40; *Lk* 10:25–27; *Jn* 13:34–35; 15:12, 17; *Acts* 4:32; *Rom* 13:8–10; *Veritatis Splendor*, 14, 17 and 20.
[183] "Accordingly the New Law had no other external works to determine, by prescribing or forbidding, except the sacraments, and those moral precepts which have a necessary connection with virtue, for instance, that one must not kill, or steal, and so forth" (*S.Th.* I-II, q. 108, a. 2).

ing to the Spirit" and it expresses itself through the "works of the Spirit", to which are opposed the "works of the flesh".[184] Already Saint Paul cautioned that Christian freedom is not nor can it be an "opportunity for the flesh", but rather a stimulus for serving all in charity.[185] The "works of the flesh" and the grace—and charity—of the Holy Spirit exclude each other absolutely. With the words of Jesus to the rich young man: "If you wish to enter into life, keep the commandments."[186] However, having excluded possible obscurities, it is necessary to move forward to a positive theological understanding of the law of Christ as a gift of the Holy Spirit and as an interior law.

8.4.2 The Theological Virtues and the Infused Moral Virtues as Principles of Christian Life

"Love and life according to the Gospel cannot be thought of first and foremost as kinds of precept, because what they demand is beyond man's abilities. They are possible only as the result of a gift of God who heals, restores and transforms the human heart by His grace."[187] In its work of rehabilitation and transformation, grace adapts itself to the fundamental structure of human morality. In this, as we already know, the precepts, in the sense of normative statements, are not a primary reality; they are rather reflected normative expressions of the law constituted of the practical reason.[188] In the law of Christ something analogous happens: *the law of Christ is essentially the grace of the Holy Spirit, which carries with itself new principles (the virtues) which assume, complete and elevate the natural principles of the human reason, giving rise to a new interior law of man.*

> In the *lex gratiae* the diverse supernatural gifts[189] accomplish specific functions; therefore, the roles of the theological virtues and those of the infused moral virtues need to be distinguished. Faith enlightens the intellect, and hope and charity elevate and incline the will, so that man can adhere to God with a supernatural love, a participation in the love with which the Son loves the Father in the Holy Spirit. Under the influence of charity, the form of all the Christian virtues[190], the infused moral virtues elevate and modify the regulating criterion (*medium rationis*) of the human ethical virtues, allowing them to regulate the relationship of man with his neighbor, with himself, and with the diverse human goods in such a way as to realize in a practical way the life which is proper to a child of God in Christ. Divine filiation can

[184] Cf. *Gal* 5:16–26.
[185] Cf. *Gal* 5:13–14.
[186] *Mt* 19:17.
[187] *Veritatis Splendor*, 23.
[188] It may be kept in mind what was said above in subsection 8.2.2 and 8.2.3.
[189] See Chapter VII, section 7.5.
[190] Cf. *S.Th.* II-II, q. 23, a. 8.

> be known, desired, possessed, and translated into a practical conduct only because man has received, as a divine gift, grace and the virtues: the operative principles of this life. Without the real possession of such principles even the evangelical and apostolic teachings would be a dead letter that kills.[191] On the other hand, relying on the possession of the vital principles, these teachings are the divine light which teaches us concerning the dispositions, desires, and works which express, consolidate, and increase the divine life infused in our hearts.

It is worthwhile to quote from a significant page of Saint John Chrysostom. "Our life should be so pure as to have no need of any writing: the grace of the Holy Spirit should substitute books, and as these are written with ink, so our hearts should be written with the Holy Spirit. Only because we lost this grace must we make use of writings: but how much better the first way was, God Himself clearly showed us [...] To His disciples, in fact, God did not leave anything in writing, but promised them the grace of the Holy Spirit: 'He—[Jesus] told them—will suggest to you all things' [from Heaven when the new law was promulgated, and the tablets on which He etched in this occasion are well superior to the first ones: for the Apostles did not descend from the mountain carrying, like Moses, tablets of stone in their hands; but they came down carrying the Holy Spirit in their hearts, by grace becoming a living law and book."[192]

This reflection of Chrysostom is rich in implications for moral theology. Recalling to our attention man's weakness, also the Christian's weakness while living in this world, he underlines the practical importance of the external element of the law of Christ,[193] which, preserved and transmitted by the Church, constitutes the necessary normative aid for the formation of the Christian virtues in the faithful and also for resolving the problems which, already on the level of natural morality, the formation of prudence presents.[194] For this reason, *to insist on the importance of the interior element of the law of Christ with the purpose of obscuring or relativizing the normative value of its exterior element would be theologically incorrect*[195] *and pastorally devastating.*

However, it would be equally harmful to lose sight of the importance for moral theology of the prevalently interior character of the law of Christ. A similar error would lead—as it has in fact led—to putting in practice a defective theological methodology and to approaching the moral teachings of the New Testament in an inadequate way. In fact, *the theological value of the inte-*

[191] "Wherefore the letter, even of the Gospel would kill, unless there were the inward presence of the healing grace of faith" (*S.Th.* I-II, q. 106, a. 2).
[192] Saint John Chrysostom, *In Matthaeum Homiliae* 1, 1: PG 57, 13–15.
[193] Cf. E. Kaczynski, *La Legge Nuova. L'elemento esterno della Legge Nuova secondo san Tommaso*, (Rome: Lief, 1974).
[194] Cf. Chapter VII, subsection 7.4.3.
[195] Cf. Council of Trent, *De Iustificatione*, can.19–20: DS 1569–1570.

rior element of the law of Christ comes to be misunderstood from the moment that the cognitive dimension of the Christian virtues are not sufficiently recognized, being demoted to a simple aid for the execution of moral demands which are knowable and known independently of them. A perspective proper to an ethics of obligation then emerges,[196] as well as the "normativistic preunderstanding" which negatively conditions the understanding of the specific identity of Christian morality already at the level of biblical theology.[197]

> In fact, from the moment that one fails to see the moral-theological relevance of the virtuous vital regulation that develops (*in actu exercito*) within the Christian community under the guidance of its pastors, the New Testament comes to be confronted in a reductive and isolated way as a text, and one proceeds to the study it with the only tools—which are nonetheless always necessary—furnished by literary hermeneutics. Problems inevitably emerge regarding the relationship between reason and Revelation, and between absolute validity and historical applicative development, which without the proper moral epistemology of the virtues are not easy to adequately confront, and even more so if one takes as a starting point the baseless theological presupposition that considers as revealed by God only what is not accessible to human reason.[198] But it is especially noteworthy that the "normativistic preunderstanding" that we have discussed finishes by impeding the awareness of the full correspondence between the interior and exterior elements of the new law, given that the first consists in grace, charity, and in the other virtues, while the second is interpreted in a forced way under the perspective proper to an ethics of obligation.

8.4.3 The New Law as the Fullness of the Moral Law

The new law "is the perfection here on earth of the divine law, natural and revealed."[199] *It brings to fulfillment both the natural moral law and the moral law of the Old Testament.* Regarding the latter, the new law "releases their hidden potential and has new demands arise from them [...] proceeds to reform the heart, the root of human acts, where man chooses between the pure and the impure, where faith, hope, and charity are formed and with them the other virtues. The Gospel thus brings the Law to its fullness through imitation of the perfection of the heavenly Father, through forgiveness of enemies and prayer for persecutors, in emulation of the divine generosity."[200] With the new law, the free and eternal decree of God through which we were chosen in

[196] Cf. Chapter I, subsection 1.2.2.
[197] Cf. Chapter II, subsection 2.4.3.
[198] Cf. what was said above in subsection 8.3.5.
[199] *CCC*, 1965.
[200] *CCC*, 1968.

Christ to be children of God arrives at fulfillment and with the help of grace perfect virtue is rendered possible.

> Deeper theological study of this doctrine opens up diverse questions. Concretely, it raises three questions regarding: the status of the natural moral law once it has been assumed by the new law; the relationship between charity and the moral virtues; and the existence or non-existence of specific moral precepts of the new law.

The Christocentric Character and Autonomous Epistemology of the Natural Moral Law — Regarding this problem it is important to find a balance, insofar as two equally important needs must be settled despite seeming to be opposed to one another.

We come to the first term of the problem. By now we know that all the expressions of the moral law have a common origin and a common end. All "have their origin and goal in the eternal, wise and loving counsel whereby God predestines men and women 'to be conformed to the image of his Son' (*Rom* 8:29)."[201] If the call to live in Christ is, by the free choice of God, the center of the eternal law, then the natural law and also the law of the Old Testament are elements or fragments ordered toward the whole, which is the law of the New Testament or *lex gratiae*.[202]

From this it follows that, factually and gratuitously, creation and the subsequent natural moral law are as the first passage of the carrying out of the predestination of man in Christ. With the words of John Paul II, "all the work of creation pertains to the plan of salvation, the mysterious project 'hidden from ages past in God who created all things' (*Eph* 3:9). *Through the act of the creation* of the world, and in particular of humanity, *the plan of salvation begins to be realized."*[203] In fact, it must be added that "predestination"[204] precedes "the foundation of the world", that is, it preceeds Creation, since *this is realized from the standpoint of the predestination of humanity.* Applying to the divine life the temporal analogies of human language, we can say that God wants "first" to communicate Himself in His divinity to the humanity called to be in the world, created in His image and likeness; "first" He

[201] *Veritatis Splendor*, 45.

[202] Cf. on the subject-matter A. Scola, *La competenza del magistero a definire "in re morum". Elementi per una fondazione teologica*, in Various Authors., *"Humanae vitae": 20 anni dopo* (1988), 530; I. Biffi, *La prospettiva biblico-cristologica della "Veritatis Splendor"* (1995)

[203] John Paul II, *Discorso* 5-III-1986, n. 3: *Insegnamenti*, IX-1 (1986) 614–615, our translation.

[204] It is helpful to note that John Paul II clarifies that "predestination" has here the meaning of "choice". It deals with the fact that we were chosen in Christ before the creation of the world, as was said in the *Letter to the Ephesians* and to the *Colossians*.

elects humanity, in the eternal and consubstantial Son, to participate in His sonship (through grace), and only "after" ("in its turn") does He will creation: the world to which humanity pertains. In this way the mystery of predestination *enters* "organically", in a certain sense, *into the entire plan of Divine Providence."*[205]

On this basis it can be affirmed then that the diverse forms of the moral law are "translations" of our predestination in Christ. The natural law does not lose its consistency and its essential rationality, but it is still not extraneous to the Christocentric perspective, rather, it is included in it. Christ, the new Adam, assumes all of the demands of the first Adam, and the natural moral law and the old law are thus recapitulated in Christ. The entire Christ becomes the regulating structure of all the fragmentary forms of ethics. The *lex nova* cannot be reinterpreted in light of the natural law, but instead the contrary should be done. The natural law is included in the law of Christ. This does not imply limiting the validity of the natural moral law to a single religious confession, because what is assumed (the natural moral law) is not abolished nor essentially altered. In being assumed within Christian morality, the natural moral law not only remains in all of its validity, but is furthermore brought to completion and acquires a salvific value.[206] Moreover, there is a perfect correspondence between the universality of the moral law and the universality and immutability of our being chosen in Christ.[207]

We shall now examine the second term of the problem. From the epistemological point of view, i.e. from the point of view of the acquisition of knowledge, the natural moral law continues to possess its own intelligibility in terms of moral reasonableness (*recta ratio*). Even if from the ontological point of view there exists the aforementioned relationship, even if existentially a "human morality" and "Christian morality" form in the Christian an organic unity, from the cognitive point of view the two levels always remain differentiated and relatively "autonomous" in such a way that one can and must speak of a "rightful autonomy of the practical reason"[208]. This means that there exists a level formed by the natural ethical virtues regulated by prudence, and that knowledge of such a level is found within a specific rational methodology that in principle does not have need of a theological methodology.[209] Therefore, the ambit of the natural moral law is *par excellence* the ambit wherein a dialogue with non-believers is always possible, and it is also the ambit

[205] John Paul II, *Discorso* 28-V-1986, n. 4: *Insegnamenti*, IX-1 (1986) 1699, our translation.

[206] Cf. Chapter I, subsection 1.1.3.

[207] Cf. A. Scola, *La competenza del magistero a definire "in re morum"* (1998), 534–535.

[208] Cf. *Veritatis Splendor*, 40; see Chapter I, subsection 1.3.2.

[209] Cf. regarding this aspect of the problem M. Rhonheimer, *Morale cristiana e ragionevolezza morale: di che cosa è il compimento la legge del Vangelo?*, in G. Borgonovo (ed.), *Gesù Cristo, legge vivente e personale della Santa Chiesa*, (Casale Monferrato: Piemme, 1996), 147–168.

in which it is crucial—also for theological motives—to use reason with rigor, making the highest effort to adapt interpretive schemes to what is truly human moral activity. For this purpose, it was rightly observed that, "in order to bring together the natural and supernatural levels and this means to overcome a morality of pure obligation [...], it needs to be rediscovered at the human-natural level that moral rationality that is the necessary and indispensable prerequisite of any morality of charity and of the beatitudes. This rationality is that which is peculiar to the moral virtues."[210]

It remains to be clarified why we said that the epistemological autonomy of the natural moral law is relative. We intended merely to recall that, in fact, the perception of some ethical demands of the natural moral law can be obscured or rendered difficult, and for this reason—as we know—the revelation of some natural ethical demands is "morally necessary." To this it can be added that Revelation permits of a deeper understanding of certain aspects of the natural moral law; for example, the perspective delineated in Chapter 5 of the *Letter to the Ephesians* further reveals the value and reasons for the indissolubility of marriage. We retain, furthermore, that the cognitive dimension of the theological virtues renders easier the right evaluation of certain human situations. Hope, for example, permits prudence to judge rightly if it is worth it to sustain certain efforts or to undertake certain projects.

Charity as the Form of the Virtues — As we know, charity is considered by theology as the form of all the virtues. There exist, however, diverse opinions concerning the exact meaning of this thesis. For some, charity is the supreme motive of moral behavior, it is like the motor and the end, but the good that it pushes one to do is not constituted in any way by it. That is to say, charity compels one to do the good and to order toward God the realized good, but it does not enter in to form a part of the constitution of the good action. The moral good is then an autonomous ambit which can be extrinsically (at the level of the *finis operantis*) ordained to the supernatural end by charity.[211] For others, charity not only motivates, moves, and finalizes the good work from the outside, but it enters in to objectively form a part of the good moral quality of all other virtues or virtuous actions, even if together with other elements. That is to say, every virtue or virtuous action is seen also as a way of expressing love of God and neighbor, as the realization of love in every ambit of human life.[212]

The first opinion responds to the truth in the sense that, even in the new

[210] *Ibid.*, 161.

[211] For this position, cf. C.A.J. Van Ouwerkerk, *Caritas et ratio. Etude sur le double principe de la vie morale chrétienne*, (Nimega: 1956).

[212] Concerning this position, cf. G. Gilleman, *Il primato della carità in teologia morale* (1959) Concerning the entire issue, cf. A. Günthör, *Chiamata e risposta* (1998), vol. II, nos. 307–310.

law, the reason is always a principle of morality insofar as any virtuous act, including charity, requires rational discernment. It is also true that charity is not identified with the other virtues; otherwise there would exist only a single virtue and a single sin, something which is evidently false. However, all things considered, it seems to us that the second opinion is preferable, so long as it is not taken to the extreme. The life of the Christian is unitary, it is not integrated by two autonomous spheres of value, one exclusively human and another entirely determined by charity. Charity exercises a manifold influence that cannot be limited to a motivation or an extrinsic efficient influence. Charity certainly acts as a motivation but, if it is solidly rooted in the heart, begins to determine actions, carrying them well beyond what is strictly due. "This applies above all regarding the knowledge of the particular virtues and commandments. Whoever loves God is united to the source and absolute fullness of moral good. In such a way he understands that he must give himself to Him in every moral decision and become capable of discerning the partial values in whose implementation he gives himself to God. Whoever loves God discovers with fine sensibility the beauty of the particular moral values, in which the holiness of God are reflected, the value of various virtues, and the meaning of the particular commandments."[213] It also seems true to us that there exists an objective connection between the virtues and charity, and that each virtue can be seen as a direct consequence of the love of God and neighbor.[214]

The Existence of Specific Ethical Demands in the New Law — In general terms it seems clear that the law of the Gospel contains new moral demands both with respect to the natural moral law and the law of the Old Testament. The novelty can either regard the contents or at least the mode in which the demands are to be satisfied. In this last sense Leo XIII explained that the commandment of love was called by the Lord a "new commandment" not because it was not contained in the Old Testament, but for the new way in which people must love each other:[215] "As I have loved you, so you also should love one another."[216]

The "novelty" of the Gospel Law does not consist in the fact that all of its teachings are something which never crossed the mind of man. The novelty sits, on one hand, in the transformation of the regulating criteria of the use of human goods (infused moral virtues) and, on the other, in the comprehensive form of the moral life which results of it when it comes to be considered in its deep dynamism animated by the theological virtues, on account of the particular connections that each virtue has with the others (justice with mercy

[213] A. Günthör, *Chiamata e risposta* (1998), vol. II, no. 308.
[214] Cf. Saint Augustine, *De Moribus Ecclesiae Catholicae*, 1, 15, 25: NBA 13/1, 53; Saint Gregory the Great, *Moralia in Iob*, 10, 6, 7–10: CCL 143, 539–544.
[215] Cf. Leo XIII, Enc. *Sapientiae Christianae*, 10-I-1890: ASS 22 (1889–90) 402.
[216] *Jn* 13:34.

and forgiveness; fortitude with charity and fraternal affection; poverty with magnanimity and liberality, etc.).

All this becomes clearer if the radical dependence of the Christian moral life on faith that works through charity is considered.[217] Faith constitutes the fundamental act and at the same time the original force that informs the Christian moral life.[218] Through faith man opens himself freely to the salvific action of God in Christ, remaining encompassed in His paternal goodness, truth, holiness, and justice. Faith is a gift, as it is also the gratuitous salvific initiative of God, while at the same time being a free human act, even the first ethical-religious act of man. Furthermore, faith forms a vital whole with hope and charity. Standing together with charity, faith is living, like a divine force which enlightens and compels one toward the communion with God that constitutes the supreme good of man and, at the same time, transforms and molds the daily life of the believer in all its dimensions: the righteous one lives by faith.[219] The daily duties of life acquire a new sense when they come to be performed in a spirit of faith, as difficulties, suffering, sickness, and failures find a positive meaning in the perspective of the cross of Christ.[220] Duties and difficulties come to be lived in a spirit of obedience to the will of God and so they become a means of identification with Christ, whose nourishment is to do in everything the will of the Father.[221]

Faith is also an unwavering trust. The believer, like Abraham, believes against all hope,[222] even when all signs from the empirical world seem to be in contrast to the convictions of faith. The book of *Job* and, in a different way, that of *Ecclesiastes*, illustrate the behavior of the righteous in the face of trials and the apparent denials of ordinary experience.[223] The believer remains firm in the expectations that motivate his own behavior even when all seems to deny them. In such situations it is well understood that faith is accredited as righteousness,[224] because then it becomes clear that the first and fundamental form of loving God is to believe in Him, to have a firm trust in Him. Faith appears as the most basic and deepest openness of man toward the supreme Good.

Faith brings with it some precise moral duties, for example the duty to profess it and to not renounce it.[225] However, for the understanding of the structure

[217] Cf. *Gal* 5:6.
[218] Cf. F. Tillmann, *Il Maestro chiama. Compendio di morale cristiana*, 4th ed., (Brescia: Morcelliana, 1953), 120.
[219] Cf. *Rom* 1:17.
[220] Cf. *Rom* 8:17–18.
[221] Cf. *Jn* 4:34.
[222] Cf. *Rom* 4:18.
[223] See the reflections of G. Angelini, *Teologia Morale Fondamentale* (2001), 350–367.
[224] Cf. *Rom* 4:3.
[225] Cf. *Mt* 10:32–33.

of the Christian moral life, it interests us to show how *faith inserts itself into the dynamism of the practical reason, enlightening and transforming its principles.* By its very nature, the saving action of God, received in faith, is aimed at someone who already knows something: faith is not received in a vacant human scenario. Faith is not, nor does it give to man, all that man is, that man knows, or that man does; but in the person who receives it, faith becomes the supreme criterion of life, and so it comes to constitute a filter or criterion of judgment according to which what was already good in the person will remain, what was in need of transformation will be transformed, and what should be abandoned is abandoned. In this sense Saint Paul says to the believers of the city of Rome: "Do not conform yourselves to this age but be transformed by the renewal of your mind, that you may discern what is the will of God, what is good and pleasing and perfect."[226] *From a formal point of view, just as all the Christian's life is transformed, so also the capacity of moral discernment is transformed by faith. But this does not mean that all the criteria of behavior inspired by faith are also, from the material point of view (relating to content), completely new.* Saint Paul shows himself open to recalling the moral precepts of the Old Testament which pass the test put to them by faith in Christ, just as he also makes reference to the fundamental sense of right and wrong present in the human race: "Finally, brothers, whatever is true, whatever is honorable, whatever is just, whatever is pure, whatever is lovely, whatever is gracious, if there is any excellence and if there is anything worthy of praise, think about these things."[227]

How does the renewal of the capacity for moral discernment through faith happen? How is faith inserted into the structure of the practical reason? Keeping in mind that the fundamental elements for explaining the activity of the practical reason are the goods toward which the natural inclinations aim, the practical principles (moral virtues) that regulate the use of goods, and the ethical norms or precepts, it seems to us that *the principles of the Christian life (faith, hope, and love) illuminate the value and meaning of the goods with which man is confronted each day*: health and sickness, pleasure and pain, life and death, wealth and poverty, freedom and slavery, marriage and celibacy, etc. This new dimension of value and meaning implies a renewal of the practical principles (the new normative criteria of the infused moral virtues). If the value and meaning of the goods change, the disposition of man regarding their possession or privation must also change. The New Testament shows this reality.

> We shall look at some examples. In light of the relationship with material and economic goods that went along with the life that Christ chose

[226] *Rom* 12:2.
[227] Phil 4:8.

> for Himself, the Christian virtue of poverty is understood: "For you know the gracious act of our Lord Jesus Christ, that for your sake he became poor although he was rich, so that by his poverty you might become rich."[228] The eschatological tension imposes a certain reservation and a certain attitude with regard to earthly goods and situations, as Saint Paul shows to the faithful at Corinth: "I tell you, brothers, the time is running out. From now on, let those having wives act as not having them, those weeping as not weeping, those rejoicing as not rejoicing, those buying as not owning, those using the world as not using it fully. For the world in its present form is passing away."[229] Also with regard to common situations in those times, like freedom and slavery, one can take on a new attitude: "Everyone should remain in the state in which he was called. Were you a slave when you were called? Do not be concerned but, even if you can gain your freedom, make the most of it. For the slave called in the Lord is a freed person in the Lord, just as the free person who has been called is a slave of Christ. You have been purchased at a price. Do not become slaves to human beings. Brothers, everyone should continue before God in the state in which he was called."[230]

Even if we made a complete list of all that is found in the New Testament regarding this, it would never be a closed list. By its very nature the renewal of the mind is an open reality. *The Christian possesses a new measure of evaluation to apply not only to the human goods existing in Apostolic times, but to all the good which will appear in human life alongside* the historical, cultural, and technological development of humanity.

> It is helpful to emphasize that the demands of Christian morality are based in faith and baptism, and involve equally all of the baptized, even in the diversity of their circumstances and vocations. Certain ways of understanding the distinction between commandments and evangelical counsels offer a rather reductive vision of Gospel morality. As Pinckaers writes, the impression can be given that there exists a double morality: one for the people caught in the battle against sin, and another for a reduced group of the "perfect" structured on the basis of the evangelical counsels.[231] On the wake of the Second Vatican Council, which announced the universal call to holiness, the *Catechism of the Catholic Church*[232] and the encyclical *Veritatis Splendor* sought delicately to correct such a vision: "This vocation to perfect love is not restricted to a small group of individuals. *The invitation,* 'go, sell your possessions and give the money to the poor', and the promise 'you will have treasure in heaven', *are meant for everyone,* because they bring out the

[228] *2 Cor* 8:9.
[229] *1 Cor*, 7:29–31.
[230] *1 Cor* 7:20–24.
[231] Cf. Pinckaers, S., *La ley nueva, en la cima de la moral cristiana*, in G. Del Pozo Abejón (ed.), *Comentarios a la "Veritatis Splendor"* (1994), 489–492.
[232] Cf. 2013.

full meaning of the commandment of love for neighbour, just as the invitation which follows, 'Come, follow me', is the new, specific form of the commandment of love of God. Both the commandments and Jesus' invitation to the rich young man stand at the service of a single and indivisible charity, which spontaneously tends towards that perfection whose measure is God alone: 'You, therefore, must be perfect, as your heavenly Father is perfect' (*Mt* 5:48)."[233] From the standpoint of a morality of the virtues, like the one we have proposed, *the distinction between commandments and counsels would be abandoned and, with it, the rigid distinction between moral and spiritual theology.*

[233] *Veritatis Splendor*, 18.

Chapter 9

Civil Law and Ecclesiastical Law

9.1 The Civil Law

The Christian lives her life, as a child of God in Christ, together with other Christians and other persons within civil society, and today the latter is politically organized as a State. *Life in common within the State possesses a relevant moral value and presents specific demands that—according to the law of the Incarnation, though with a completely particular modality—enter in to form a part of the following of Christ.* Therefore, moral theology must treat of it.

> The political dimension of the Christian moral life is a matter of great complexity, for which there exists an endless bibliography. It is the object of a part of moral theology known as the "social doctrine of the Church."[1] Fundamental moral theology can limit itself to examining a few general aspects of this doctrine, which nonetheless are the necessary basis for further in-depth study.

9.1.1 The Attitude toward Authority and the Civil Law in the New Testament

The Gospels — The message and activity of the Lord were essentially religious. He did not participate in, nor did He let Himself get involved in, the political activities of His contemporaries. It is not possible to find in His preaching anything like a properly political alignment, nor what today would

[1] Cf. John Paul II, Enc. *Sollicitudo Rei Socialis*, 30-XII-1987, 41.

be considered a theory of the State. Nevertheless, it is possible to discover at least a significant indication. Jesus is insidiously interrogated by his adversaries regarding the licitness of the payment of taxes due to the Roman rulers. "'Teacher, we know that you are a truthful man and that you are not concerned with anyone's opinion. You do not regard a person's status but teach the way of God in accordance with the truth. Is it lawful to pay the census tax to Caesar or not? Should we pay or should we not pay?' Knowing their hypocrisy he said to them, 'Why are you testing me? Bring me a denarius to look at.' They brought one to him and he said to them, 'Whose image and inscription is this?' They replied to him, 'Caesar's.' So Jesus said to them, 'Repay to Caesar what belongs to Caesar and to God what belongs to God.' They were utterly amazed at him."[2] Jesus's response seems to put a greater emphasis on the necessity of giving "to God what belongs to God," but without doubt it also contains a general indication regarding the demeanor to assume before political authority. Duties toward God are not opposed to duties with respect to the State*: whoever gives to God what is God's can be without contradiction in giving to Caesar what is Caesar's, with the latter certainly excluding idolatry.*

> Schnackenburg summarizes the passage in four points: "a) Jesus does not confer to the emperor (or to the State) the aura of divine gratification, but recognizes his (or its) rights and invites his (or its) subjects to obedience; b) In its own ambit, the State has its meaning as a power capable of guaranteeing order: the ordering that it accomplishes works for the advantage of all (economic advantage, advantage of security); c) Calling the duty toward God as something higher, Jesus creates a reservation with respect to state power: it must not violate God's honor, nor contradict His commandments; d) Jesus does not emphasize that the State is limited and ephemeral, but knows that it is subordinated to the will and power of God."[3]

Apostolic Writings — The Acts of the Apostles present diverse examples of that *reservation regarding human authority: "We must obey God rather than men."*[4] In the Catholic theological tradition, the Pauline instructions found in the *Letter to the Romans* have had great importance, and they seem to go a step beyond what was said in the Gospel: *one cannot render to God what is God's without rendering to Caesar what is Caesar's.*[5] Saint Paul, who more than once had unpleasant incidents with the representatives of the

[2] *Mk* 12:14–17; cf. *Mt* 22:15–22; *Lk* 20:22–26.

[3] R. Schnackenburg, *Il messaggio morale del Nuovo Testamento* (1989), vol. I, 169, our translation. The last point mentioned by Schnackenburg is deduced from the response of Jesus to Pilate: cf. Jn 19:11.

[4] *Acts* 5:29; cf. also 4:19.

[5] "Let every person be subordinate to the higher authorities, for there is no authority except from God, and those that exist have been established by God. Therefore, whoever resists authority opposes what God has appointed, and those who oppose it will bring

Roman authorities, intends to instruct the readers of the letter regarding the correct attitude to have with regard to the State. We are not dealing with merely pragmatic recommendations or those dictated by the opportunity of the moment, because what is given is a precise theological foundation. *Political authority is traced back to God*: it is "established by God" and is "a servant of God for your good"; whoever is opposed to authority "opposes what God has appointed." For this reason, the purpose of civil obedience is not simply the avoidance of punishment, but is done "because of conscience." In the Pastoral Letters obedience to the magistrates and authorities comes to be equally recommended,[6] and these authorities are to be remembered in prayer, so that we may enjoy a calm and tranquil life with complete piety and dignity.[7]

An analogous instruction is given by the *First Letter of Saint Peter.*[8] Without canonizing the political system, *obedience to civil authority also comes to be traced back to the will of God here as well.* Out of love for God, an attitude of submission and collaboration with the legitimate authorities must be maintained, even if at the same time one's own moral identity should be preserved with freedom. The framework is then completed in the book of *Revelation.* This book reflects on the persecutions against the Christians of Asia Minor who refused to give divine worship to the emperor Domitian.[9] *The origin of the State that abuses its power in this sacrilegious way comes to be attributed to Satan.*[10] The angel of God makes exhortations to give glory to God and announces the fall of "Babylon the great."[11] "We have here the other side of the coin regarding the recognition of the State on the part of the Christians:

judgment upon themselves. For rulers are not a cause of fear to good conduct, but to evil. Do you wish to have no fear of authority? Then do what is good and you will receive approval from it, for it is a servant of God for your good. But if you do evil, be afraid, for it does not bear the sword without purpose; it is the servant of God to inflict wrath on the evildoer. Therefore, it is necessary to be subject not only because of the wrath but also because of conscience. This is why you also pay taxes, for the authorities are ministers of God, devoting themselves to this very thing. Pay to all their dues, taxes to whom taxes are due, toll to whom toll is due, respect to whom respect is due, honor to whom honor is due" (*Rom* 13:1–7).

[6] Cf. *Titus* 3:1.

[7] Cf. *1 Tim* 2:1–2.

[8] "Be subject to every human institution for the Lord's sake, whether it be to the king as supreme or to governors as sent by him for the punishment of evildoers and the approval of those who do good. For it is the will of God that by doing good you may silence the ignorance of foolish people. Be free, yet without using freedom as a pretext for evil, but as slaves of God. Give honor to all, love the community, fear God, honor the king" (*1 Pet* 2:13–17).

[9] Cf. *Rev* 13:16–17.

[10] Cf. *Rev* 13:2; 17:7–14.

[11] Cf. *Rev* 14:6–8.

to a power which scorns the glory and commandments of God, one must offer extreme resistance."[12]

The teachings of the *Letter to the Romans,* and those of the *Acts of the Apostles* and *Revelation,* are not incompatible. They represent two consistent applications of the same principle ("Repay to Caesar what belongs to Caesar and to God what belongs to God"), which in its concision is clear and profound, but whose particularized application to situations of each time remains open to further theological understanding.

9.1.2 Personal and Political Morality

Before passing to an exposition of the ecclesial doctrine and to theological reflections on the civil law, it seems helpful to propose an initial clarification of a systematic type. Regarding the attitude of the Christian with respect to the civil law—for example, to the tax law—two kinds of question can be evoked. The first regards the attitude of the individual: whether Tom must pay taxes; whether it is a moral fault to entirely or partially evade paying them; whether there are reasons that could justify a partial evasion of paying taxes on Tom's part, etc. The second regards the morality of the law itself: whether the tax law of this or that country is right; whether those imposed directly or indirectly are more fair; whether taxes must be equal for all or if they must be proportionate to the person's income, etc. Now it seems to us that we are dealing with two types of formally diverse questions, even if being connected, that must be studied with specific methodologies. The diversity consists in the fact that the first type of questions pertains to personal morality (it pertains to the honesty of Tom, his duties toward the state, the possibility that he commits a moral fault or not), while the second type pertains to political morality (it pertains not to the personal honesty of the citizen, but the correctness or incorrectness of a legal arrangement). *Therefore, there needs to be established a distinction between personal and political morality.*[13] Such a distinction can be based in the consideration of the particular way in which political society comprises a whole:[14] the individuals and the groups who compose it always preserve a sphere of action and of their own ends, something which does not happen in other types of wholes, but at the same time there exist actions proper to the political whole as such, resulting from collaboration of the parts in view of the good proper to political society, which

[12] R. Schnackenburg, *Il messaggio morale del Nuovo Testamento* (1989), vol. I, 335, our translation.

[13] For a wider study of the problem, see A. Rodríguez Luño, "Le ragioni del liberalismo", in J. Joblin - R. Tremblay (eds.), *I cattolici e la società pluralista. Il caso delle "leggi imperfette"*, (Bologna: ESD, 1996), 225–238.

[14] It is the way followed by Saint Thomas Aquinas: cf. *In Decem Libros Ethicorum*, lib. I, lect. 1.

is the common good. On this basis, it can be affirmed that *personal morality is occupied with all the actions of the individual, even those which are referred to political society, directing them to the final good of the person* (holiness). *Political morality is occupied instead with actions performed by political society insofar as they are directed toward the common good,* that is to say, it evaluates from the standpoint of the common good the rectitude (or lack thereof) of acts through which political society gives itself a form and organization, whether it be political, juridical, fiscal, administrative, economic, etc.[15]

A complete elaboration of the formal distinction between personal morality and political morality cannot be proposed here. We shall limit ourselves to saying that such a distinction does not imply a separation between morality and politics, just as the concept of an "information ethics" does not respond to an intention of separating informative activity from morality. On the contrary, we intend here to underline that political praxis is an intrinsically moral praxis, and that the common political good is always an expression of the truth of man and concerns his essential sociality, and therefore political activity is an object of the study of morals. At the same time it needs to be affirmed that politics is not an all-encompassing dimension, and moral rectitude cannot be, as we shall see in what follows, reduced to simple legal rectitude. In fact, political morality aims directly at achieving the political common good, which is not identified with the final good of the person, and this is a reason why the *moral* logic that immediately and directly regulates the political world is formally diverse from the logic of personal morality.[16] However, this formal diversity does not impede the fact that political and personal morality are parts of a unitary moral knowledge, since in the end the common political good stands in function to the good of the person. In summary, *political morality is a part of morality for the evident fact that political activity is not the entire moral activity of the Christian, but a sector of it.* It could not be otherwise, since life in Christ is a reality which has notable implications for political activity, while at the same time transcending it.

9.1.3 Value and Purpose of the Civil Law

Morality and Legality — *The moral value at the basis of the civil law pertains to the fact that it promulgates, renders explicit, and determines those demands of the natural moral law that are necessary for making the life in*

[15] Cf. *In Decem Libros Ethicorum*, lib. I, lect. 1, nos. 4–6. Political ethics are occupied also with some actions of the individual person, but not to establish their morality, which is determined by personal morality, but rather to be able to identify their punishability, if this is required for the common good.

[16] "Bonum commune civitatis et bonum singulare unius personae non differunt solum secundum multum et paucum, sed secundum formalem differentiam: alia est enim ratio boni communis et boni singularis" (*S.Th.* II-II, q. 58, a. 7, ad 2).

common we share in a politically organized society possible and adequately regulated.[17]

First, we shall look at the meaning of *promulgation, rendering explicit,* and *determination*, which are three modes in which the civil law connects with the natural moral law. To *promulgate* the natural moral law means to render some of the precepts of the natural moral law public in a legal text and impose their observance, for example, when the civil law considers intentional homicide or theft as being against the law and determines a penalty for them. The natural moral law is *rendered explicit* when the civil law formulates certain conclusions taking as its starting point some of the precepts of the natural moral law, for example, when the civil law recognizes in parents all the duties and rights derived from parental authority. Finally, there is a *determination* of the natural moral law when the civil law chooses one of the different modes of realizing a natural ethical demand, for example, the necessity of guaranteeing safety in traffic can be realized by driving on the right side of the road, as it is done in the United States, or by driving on the left side of the road, as it is done in England.

It is the task of the civil authority to promulgate, render explicit, and determine the natural moral law not because the political authorities are directly the guarantors or the ones responsible for the personal morality of the people, but insofar as this is necessary or helpful for rendering possible the free, just, and peaceful life of people in society. In other terms, "human law is ordained for one kind of community, and the Divine law for another kind. Because human law is ordained for the civil community [for which the Divine law is ordained, is that of men in relation to God, either in this life or in the life to come. "[18] From this it follows that the *ambit of the civil law is more limited than that of the natural moral law,*[19] *since the competence of the former is limited by its end: the common political good.* No morally evil act can be commanded by the civil law, and no morally necessary act can be prohibited; however not all which is good from the moral point of view can be required coercively nor can all which is morally evil be coercively prohibited, but only that which is in some way relevant to the common good of society.

Purpose of the Human Law — The ecclesial doctrine concerning the common good can be summarized in affirming that it *implies the recognition and defense of the fundamental rights of the person, as well as the promotion of peace and public morality.*[20] "Certainly the purpose of civil law is different and more limited in scope than that of the moral law. But 'in no sphere of life can the civil law take the place of conscience or dictate norms concerning

[17] Cf. *S.Th.* I-II, q. 95, a. 2.
[18] *S.Th.* I-II, q. 100, a. 2.
[19] Cf. *Evangelium Vitae*, 71.
[20] Cf. *Dignitatis Humanae*, 7.

things which are outside its competence', which is that of ensuring the common good of people through the recognition and defense of their fundamental rights, and the promotion of peace and of public morality. The real purpose of civil law is to guarantee an ordered social coexistence in true justice, so that all may 'lead a quiet and peaceable life, godly and respectful in every way' (1 Tim 2:2). Precisely for this reason, civil law must ensure that all members of society enjoy respect for certain fundamental rights which innately belong to the person, rights which every positive law must recognize and guarantee. First and fundamental among these is the inviolable right to life of every innocent human being. While public authority can sometimes choose not to put a stop to something which-were it prohibited-would cause more serious harm,[21] it can never presume to legitimize as a right of individuals-even if they are the majority of the members of society-an offense against other persons caused by the disregard of so fundamental a right as the right to life."[22] "Thus any government which refused to recognize human rights or acted in violation of them, would not only fail in its duty; its decrees would be wholly lacking in binding force."[23]

In virtue of its specific task, ordinarily *the civil law shall regulate external acts pertaining in some way to justice, and with a view to the future* (principle of the non-retroactivity of the law). We know, however, that the civil law possesses indirectly a very wide educative and cultural influence.[24] For this reason *the civil law should be evaluated* not only for what it directly commands, prohibits, or permits, but *also for the conception of the person and of life that it expresses. This educative dimension of the civil law constitutes a challenge for Christians, and not only for them, and also needs to be adequately interpreted.* If the political systems considered as a whole are not unjust, widespread opposition to them is not beneficial. Instead, an attentive discernment should be exercised, in a way that Christians manage to strengthen and make prevalent the humanistic and Christian roots of the modern State. This requires a generous and incisive cultural intervention, capable of bringing back a Christian soul to the current political culture.

> In this perspective, a Christian cannot but sense that in reality certain parts of the legislative body express a conception that does not respond to the culture of the rights of the person, and therefore exercises a heavy negative influence on personal and social behavior. Such laws, in fact, contribute to weakening the natural, cultural, political, moral, and religious conditions of personal identity, as well as the loss of the recognition of the ethical significance of politics, culture, and

[21] Cf. *S.Th.* I-II, q. 96, a. 2.
[22] *Evangelium Vitae*, 71.
[23] Blessed John XXIII, Encyclical. *Pacem in Terris*, 11-IV-1963, part II: AAS 55 (1963) 274.
[24] Cf. Chapter VII, subsection 7.4.3.

> communication. Political society easily becomes a simple instrument at the service of the satisfaction of individual interests, and comes to be regulated only by consensus concerning economic and vital values; or else it happens that in legislative and juridical practice the human rights are subordinated to the purposes of a particular side, and through imperfect and unjust laws such rights come to be denied or emptied, losing their function of structuring social life.[25]

9.1.4 The Christian Citizen and the Civil Law

The Obligatoriness of the Civil Law — In general terms, the Christian attitude regarding the civil law is that which is expressed in the *Letter to the Romans: that is, the civil law is morally obligatory.*[26] In principle, Christian morality retains that the civil and political order is "established by God" and "a servant of God" for the good of humanity. Whoever opposes it "opposes what God has appointed." For this reason, obedience to the law is done "because of conscience"; more concretely, obedience to the civil law is a demand of the virtue of justice (legal justice).

Notwithstanding its possible deficiencies, human law is absolutely necessary for safeguarding the common good, which is its *raison d'être.* In many cases prudence and each person's individual initiative would be sufficient for guaranteeing an ordered life in common; however, growing interdependence helps us to see the necessity, in many areas, of a more or less meticulous regulation of diverse matters: it may be enough to think of the economic provisions necessary for civil society, that require a complex tax system, in order to recognize that it is impossible to leave them up to the "good will" of each citizen, who lack a vision of the whole. On the other hand, man has need of a precise framework of reference in which to insert his own relationship—whether it be economic, political, cultural, etc.—with others. It is unimaginable that in each occasion one might think up from scratch a set of behavioral rules that would take account of all the possible implications of such a relationship. Furthermore, it would be naïve simply to count on the natural goodness and

[25] Some valid thoughts concerning the social function of fundamental rights are offered by P. Häberle, *Le libertà fondamentali nello Stato costituzionale*, (Rome: La Nuova Italia Scientifica, 1993). Many theorists of liberalism have difficulty recognizing the "expressive" dimension of the political order, probably under the influence of their polemic with the political romanticism of Herder and Hegel, in which the expressivist principle plays a primary role. They retain that the State must be neutral, while leaving it to the individual, the families, and to other groups to transmit values and ideals. Before any ethical-political evaluation, it needs to be said that experience demonstrates that the State, laws, the social environment, etc. always express some conception, and always exercise an important educational influence, whether it be positive or negative.

[26] Cf. above, subsection 9.1.1.

maturity of persons to leave up to their will the right behavior to adopt in all social relations.

Though there may exist unjust laws, as we shall immediately discuss, we must not forget that the overwhelming majority of the human legal *corpus* is composed of just norms, more or less connected with the moral law, which therefore oblige in conscience.[27] However, it needs to be underlined—in order to not fall into useless rigorisms—that the obligation of conscience of the legal order "is not a mechanical effect of juridical norms. Moral obligatoriness is in direct relation with the value and importance of the social goods safeguarded by such norms, both when one treats of the protection of such goods, and when one deals with the goods that must be obtained. In other words, moral obligatoriness is not a dimension of juridical norms considered in an isolated way, but is an effect of human responsibility in relationship with the social reality, in what refers to both the person's relationship with authority, to reality, and to the social ends of each particular case."[28] *There exists a certain gradualism of obligation that depends on the varying degrees of connection each law has with the common good.*

Unjust Laws — We now shall continue on to the study of the problem presented by unjust laws. *Civil laws which are opposed to the common good are unjust.* So, for example, clearly and gravely unjust are those laws which attack or render legal attacks against the fundamental rights of the person (right to life, political or religious freedom) or against fundamental institutions or social relationships (matrimony and family, parental rights, the exercise of justice, etc.). *Unjust laws do not oblige in conscience, rather, there is moral obligation to not follow their provisions, to not accept them, to manifest one's disagreement with them, and to seek to change them as soon as possible and, if that is not possible, to seek to reduce their negative effects.*

A different problem is that of the *tolerance of evil.* Civil authority has the duty of punitively sanctioning those immoral actions that are harmful to the common good; nonetheless, keeping in mind human weakness, the State can tolerate, as a lesser evil, certain immoral actions whose absolute prohibition could have negative repercussions for the common good, as is the case in certain situations with prostitution:[29] if this is done, it must be ascertained with certainty that such a concession is the only way of effectively avoiding a greater evil for all of society. Logically, "political tolerance of evil" should

[27] Cf. *Gaudium et Spes*, 30 and 74.

[28] A. Del Portillo,"Morale e diritto," *Seminarium* 23 (1971), 736, our translation.

[29] It is this example that Saint Thomas indicates (*S.Th.*, II-II, q. 10, a. 11), citing Saint Augustine (*De ordine* 2, 4, 12: NBA 3/1, 304). However, it should be kept in mind that the common good does not tolerate the infringement of its essential components. For example, attacks against fundamental rights of the person, such as abortion, euthanasia, racial discrimination, etc. cannot be legally tolerated.

not be confused with "legalization" (to consider that which is contrary to the common good as a reality not contrary to the law) and even less so with "moral justification." Therefore, *political tolerance of evil does not justify the performance of the evil act on the part of the individual.* Even if the law did not punish a lesser evil, it is never licit for any person to commit a sin in order to avoid a greater sin. According to what was said before, if from a situation of tolerance there is a passage to the legalization of what is contrary to the common good or even an imposition of it, the Christian is obliged to disobey, to invoke an objection of conscience and, in limited cases, to passively or even actively resist, according to the principle that one "must obey God rather than men."[30]

The *Catechism* thus summarizes this doctrine: "Public authority is obliged to respect the fundamental rights of the human person and the conditions for the exercise of his freedom." "It is the duty of citizens to work with civil authority for the building up of society in a spirit of truth, justice, solidarity, and freedom." "Citizens are obliged in conscience not to follow the directives of civil authorities when they are contrary to the demands of the moral order."[31]

Finally, it should be considered that beyond the laws which are clearly and gravely unjust, there can also exist laws that for their content, or for the procedure by which they were passed, are slightly unjust, or sometimes simply imperfect. It can happen, for example, that a tax law may penalize in a small but relevant measure a category of worker, or does not sufficiently protect numerous families, or may inadequately distribute public resources, or was promulgated without entirely following the procedure set down in the constitution. In this case, we are presented with difficult problems for which it is difficult to give general rules. On one hand, if they are unjust laws according to common sentiment, they do not oblige in conscience; on the other hand, the law is always a principle of order necessary for social life, and disobedience, even when it is not completely unjustified, can easily become a principle of anarchy, of injustice, and sometimes even violence. Therefore, an attentive and responsible evaluation of the situation is necessary—of the pros and cons—before making a decision.

9.1.5 Christians and Politics

The Perspective of Political Morality — According to the distinctions previously proposed,[32] obedience to the civil law is a problem of personal morality; we treat concretely of a duty derived from the virtue of justice. The following of Christ entails a duty of obedience, within the terms indi-

[30] *Acts* 5:29.
[31] *CCC*, 2254, 2255 and 2256.
[32] See above subsection 9.1.2.

cated above. When one must judge if a law is just or not, we are instead in the camp of political ethics, because here the judgment is not regarding what the person should do or not do, but rather the justice of the law that political society has given itself. In modern political systems, in which the citizen participates through voting and in other modes of electing governors and legislators, and contributes in diverse ways to the formation of political orientations and legislative choices, Christians, like other citizens, see themselves continually confronted with problems of political morality: they must continuously reflect, express their opinions and act with regard to the political, administrative, educational, health-care, economic, etc. structures of society. For this reason moral theology has had to occupy itself also with problems of political morality and, in the last two centuries, the ecclesiastical magisterium extensively developed the teachings known as the "social doctrine of the Church."[33] It is the object of a specific theological treatment that, for obvious reasons of space, cannot be presented here.[34] Therefore, we shall limit ourselves to a few general considerations.

In the first place, the roles of the pastors and of the lay faithful regarding political activity need to be distinguished.[35] The pastors have the right and duty of pronouncing moral judgments regarding temporal realities when this is required by faith and Christian morality, "nevertheless, active participation in political parties is reserved to the lay faithful."[36] That is, when we deal with the discussion of different concrete political options, which represent diverse legitimate possibilities of concretely realizing the same base value, the lay faithful act freely according to their conscience.[37]

What can be said in general is that "in order to achieve their task directed to the Christian animation of the temporal order, in the sense of serving persons and society, the lay faithful *are never to relinquish their participation in 'public life',* that is, in the many different economic, social, legislative, administrative and cultural areas, which are intended to promote organically and institutionally the *common good.* The Synod Fathers have repeatedly affirmed that every person has a right and duty to participate in public life, albeit in a diversity and complementarity of forms, levels, tasks and responsibilities."[38]

[33] Among more recent documents touching on our theme, see: Congregation for the Doctrine of the Faith, *Doctrinal Note on Some Questions Regarding the Participation of Catholics in Political Life*, 24-XI-2002.

[34] For a comprehensive vision cf. E. Colom, *Chiesa e società* (1996); H. Fitte, *Teologia e società*, (Rome: Apollinari Studi, 2000).

[35] Cf. *Gaudium et Spes*, 76.

[36] *Christifideles Laici*, 60; cf. Paul VI, Enc. *Populorum Progressio*, 26-III-1967, 81; CIC, can. 287.

[37] Cf. P. Rodríguez, "Pastori e laici: distinzione dei loro ruoli nella Dottrina sociale della Chiesa," in J. Joblin - R. Tremblay (eds.), *I cattolici e la società pluralista* (1996), 158–197.

[38] *Christifideles Laici*, 42; cf. *Apostolicam Actuositatem*, 7, 13 and 24.

The effective exercise of this right and duty of participation requires formation and competence "for the lay faithful who have responsibilities in various fields of society and public life. Above all, it is indispensable that they have a more exact knowledge—and this demands a more widespread and precise presentation—of the Church's social doctrine."[39]

Principles of Political Morality — The attitudes with which the social and political activities of the Christians—especially of the lay faithful—should be addressed, that is, the practice of the ethical-political virtues, depends on their life in Christ. In this regard, the reflections of Saint Josemaría Escrivá are enlightening.[40] The logic of the Incarnation is the perennially relevant and working foundation of the Christian transformation of humanity and the world: "The apostolic task that Christ entrusted to all his disciples leads to specific results in social matters."[41] From this Christological principle flows the vision of what for a Christian means *being situated in and living in the world or, to say it in other words,* the concept of *secularity.* This is translated into what we shall call *the principle of responsibility and participation*: to live in the world means to feel oneself responsible for the world, assuming the task of participating in human activities to give them a Christian configuration. In the accomplishment of this task the autonomy *and value of temporal realities* need to be emphasized, as well as the demand of knowing and respecting their intrinsic dynamic, a fruit of the rationality that the Wisdom of the Creator has impressed in His works.[42]Therefore, it comes to be required of persons to have an adequate understanding of the nature and intrinsic value of social relations, as well as the practical character of social and political activity. It is not the simple enunciation of perennial principles, but a concrete achievement of human and social goods in a determined historical, geographical, and cultural context, characterized by an at least partially unsurpassable contingency.[43]

The autonomy of temporal realities also calls for a marked sensibility for human freedom, conceived as a substantial value, indissolubly united to the principle of responsibility and, therefore, to the principles of participation and solidarity.[44] To freedom should always be united the principle of responsibility, in virtue of which freedom cannot be either a merely formal value or a method, and even less the expression of an atomic-individualist conception of man; the fact that responsibility is seen as inseparably united to the principle of freedom leads to the refutation of any type of social provision that dam-

[39] *Christifideles Laici*, 60; cf. *Gaudium et Spes*, 75.

[40] We borrow some ideas from A. Rodríguez Luño, "La formazione della coscienza in materia sociale e politica secondo gli insegnamenti del Beato Josemaría Escrivá," *Romana* 13 (1997) 162–181.

[41] Saint Josemaría Escrivá, *Christ is Passing By* (1974), no. 125.

[42] Cf. *Gaudium et Spes*, 36.

[43] Cf. John Paul II, Enc. *Centesimus Annus*, 1-V-1991, 57.

[44] Cf. Paul VI, Lett. Ap. *Octogesima Adveniens*, 14-V-1971, n. 50; CIC, can. 227.

ages or suppresses the "subjectivity" of social formations, namely, one which negates freedom or in some way causes irresponsibility.

The Obligation and Mode of Political Participation — To the principles of freedom and responsibility is linked *the principle of participation:*[45] passivity, laziness, the "leave it for someone else" attitude, represent a continually lurking temptation, because work for the common good requires effort and sacrifice. The principle of participation is not just directed towards a few citizens who are professionally employed in politics. It is directed toward all citizens who perform their duties and exercise their rights, and in all cases live consistently with their own conception of the world, of man, and of the common political good, and who associate freely with those who—Christian or not—share their same ideas and are disposed to put them into practice.

To the principles cited above—freedom, responsibility, pluralism, solidarity, participation—there also needs to be added *the principle of truth in charity.*[46] The problems historically linked to religious and moral differences, along with factors of an ideological type, brought origin to the mentality, in some very widespread environments, for which the conviction that there exists a truth concerning the good of the person and of the human community can cause unjust relations of domination and violence between people. From this idea, which we shall not analyze in particular, diverse attitudes can be derived: some consider that it is a good, or at least a necessary lesser evil, for democratic coexistence to have a certain dose of agnosticism or relativism,[47] and for this reason they think that in a public environment it is better to not speak of absolute truth, leading them to require, as a condition for any form of dialogue, the openness of the interlocutor to give up or, at least, mute, his existential convictions constitutive of his own identity. Whoever is not disposed to do so is accused of being a bad citizen, or an enemy of coexistence. In the face of this perspective, some close themselves off to dialogue, because they do not want, or do not know how, to give certain explanations, either out of fear or because they feel themselves subjected to blackmail; others think that the dialogue is a good for which it is worth it to give in, that is, to give up—at least externally and tactically—their own identities, even if it is an attitude which brings with it a certain duplicity, not very true to their own convictions or to those with whom they are having dialogue.

Confronted with these alternatives, the Christian is called to show with his public behavior the compatibility between the highest degree of charity and steadfastness in the truth of faith or morals. "Loving souls for God's sake will make us love everyone: understanding, excusing, forgiving We should have a

[45] "The Christian who neglects his temporal duties, neglects his duties toward his neighbor and even God, and jeopardizes his eternal salvation" (*Gaudium et Spes*, no. 43).

[46] Cf. *Eph* 4:15.

[47] Cf. the critical evaluation of this idea in the encyclical *Centesimus Annus*, no. 46.

love that can cover the multitude of failings contrived by human wretchedness. We have to have a wonderful charity, *veritatem facientes in caritate*, defending the truth, without hurting anyone."[48] Dialogue, collaboration, and charity with those who think differently is always possible. What we deal with here is distinguishing between the intimate relationship of personal conscience with the truth, and the relations between persons. The first relationship is resided over by the normative power of the truth; the second by justice, charity, and the inalienable demands of the dignity of the person. As the firm adhesion to a truth of faith is not fully Christian if it is not united to loyal and loving respect toward those who do not share the same faith, so respect of others is not an authentic ethical virtue if it comes to be exchanged with "confusionism," duplicity, or the giving up of one's identity for tactical motives. The practical and concrete achievement of this equilibrium is an important part of the Christian animation of social life.

9.2 Ecclesiastical Law

In baptism we were generated in the Church's womb as children of God; through baptismal grace we become members of Christ and members of His body, which is the Church.[49] The Church on its part safeguards and dispenses the necessary means for developing in the Christian moral life leading up to the achievement of holiness, and the Church's laws, or ecclesiastical laws, should be counted among these means.

From apostolic times up until our time the Apostles and their successors promulgated laws and decrees regarding the moral life and ecclesial activities (sacraments, the liturgy, the apostolate, etc.) of those baptized in the Catholic Church or received into it.[50] The exercise of such legislative power has a clear dogmatic foundation, attested to by the Sacred Scriptures,[51] the apostolic Tradition, and the constant teaching of the magisterium of the Church.[52]

The laws of the Church are general normative instructions promulgated by the ecclesiastical authority, having legislative power (principally, the Roman

[48] Saint Josemaría Escrivá, *The Forge*, (London - New York: Scepter, 1988), no. 559.

[49] Cf. Council of Florence, Bull *Exsultate Deo*: DS 1314; *CCC*, 2040.

[50] Cf. *Acts* 15:23–29; *2 Thess* 3:6–15; *1 Tim* 5:9,19, as well as the solutions given by Saint Paul in *1 Corinthians* to the different questions that had been submitted to him.

[51] Cf. *Mt* 16:18–19; 18:18; 28:18–20; *Lk* 10:16; *Jn* 13:20; 21:15–17; *Acts* 20:28–32; *Heb* 13:17; *1 Pet* 5:1–4.

[52] Cf. Council of Trent, *De Sacramentis*, can. 8: DS 1621; Pius VI, Cost. *Auctorem Fidei*, 28-VIII-1794: DS 2605; Blessed Pius IX, *Syllabus*, 8-XII-1864: DS 2919, 2920 and 2928; Leo XIII, Enc. *Immortale Dei*, 1-XI-1885: DS 3166–3168; John Paul II, Cost. Ap. *Sacrae Disciplinae Leges*, 25-I-1983, which was issued along with the promulgation of the Code of Canon Law that is now in use.

Pontiff for all the Church and the diocesan Bishop for his own diocese[53]), and which *aim at the promotion and safeguarding of the Church's mission, the just regulation of the activity of believers and ecclesiastical institutions and, in the last analysis, to the salvation and sanctification of people.* The special study of ecclesiastical laws is the task of a specific discipline called *canon law.*[54] Here we shall limit ourselves to some considerations of a general character that may be of help in understanding the role of ecclesiastical laws in the Christian moral life.

9.2.1 Nature and Scope of Ecclesiastical Law

For an adequate theological understanding of ecclesiastical law and its role in the Christian moral life it is helpful to take as a starting point a consideration of the nature and mission of the Church in the context of the divine salvific plan.[55] More concretely, we shall consider two points of special interest: the divine constitution of the Church as a visible and hierarchically ordered society, and its sacramental dimension.

The Divine Constitution of the Church as a Visible Society — "God, however, does not make men holy and save them merely as individuals, without bond or link between one another. Rather has it pleased Him to bring men together as one people, a people which acknowledges Him in truth and serves Him in holiness."[56] For this reason, the fullness of time having arrived, "*Christ, the one Mediator, established and continually sustains here on earth His holy Church, the community of faith, hope and charity, as an entity with visible delineation,*"[57] *and as a society "hierarchically ordered,"*[58] *in which the ministers "are endowed with sacred power"*,[59] a power that must be conceived as a service for edifying and not for destroying.[60] In order to accomplish the mission of the Church, Christ sent the Apostles, as well as their successors: "As the Father has sent me, so I send you,"[61] and conferred on them the office

[53] For the other ecclesiastical authorities, personal and collegial, which have legislative power, cf. CIC, cann. 295, 341, 445–446, 455, 456 and 596.

[54] For a comprehensive vision, cf. J.T. Martín De Agar, *Elementi di diritto canonico*, (Rome: Apollinare Studi, 1996); G. Feliciani, *Le basi del diritto canonico*, (Bologna: Il Mulino, 1984); C.J. Errázuriz, *Il diritto e la giustizia nella Chiesa. Per una teoria fondamentale del diritto canonico*, (Milan: Giuffrè, 2000). For a complete vision of the principal contemporary problems, cf. J. Herranz, "Crisi e rinnovamento del Diritto nella Chiesa," in Pontificium consilium de legum textibus interpretandis, *Ius in vita et in missione Ecclesiae*, (Vatican City: Lib. Ed. Vaticana, 1994), 29–54 (with an extensive bibliography).

[55] Cf. *Optatam Totius*, 16.

[56] *Lumen Gentium*, 9.

[57] *Lumen Gentium*, 8.

[58] *Lumen Gentium*, 20; cf. also no. 9.

[59] *Lumen Gentium*, 18.

[60] Cf. *2 Cor* 13:10.

[61] *Jn* 20:21; cf. *Jn* 17:18.

of teaching, sanctifying, and governing,[62] being a part of this last office the power of legislating,[63] just as he promised them the assistance of the Holy Spirit in the exercise of such functions.

The mission of the Church is principally of a spiritual and supernatural character, [64] and for this reason ecclesiastical law "is in no way intended as a substitute for faith, grace and the charisms in the life of the Church and of the faithful. On the contrary, its purpose is rather to create such an order in the ecclesial society that, while assigning the primacy to faith, grace and the charisms, it at the same time renders easier their organic development in the life both of the ecclesial society and of the individual persons who belong to it."[65] Already this consideration allows us to understand that, even within the limits proper to human law, *ecclesiastical law reaches a more interior dimension of man and is ordered toward the virtues* more directly than what can be done by the civil law.

> With the Church being a society made up of people, the achievement of the common spiritual good requires numerous activities and external means: the teaching of the faith, the administration and reception of the sacraments, the organization of divine worship, missionary activities, etc., which presuppose the interaction of different persons and structures, as well as a material basis. We deal here with external and visible realities that must be socially organized according to justice and charity in terms of their purposes, and which permit us to further understand the role of ecclesiastical law. "Since, indeed, it [the Church] is organized as a social and visible structure, it must also have norms: in order that its hierarchical and organic structure be visible; in order that the exercise of the functions divinely entrusted to her, especially that of sacred power and of the administration of the sacraments, may be adequately organized; in order that the mutual relations of the faithful may be regulated according to justice based upon charity, with the rights of individuals guaranteed and well defined; in order, finally, that common initiatives, undertaken for a Christian life ever more perfect may be sustained, strengthened and fostered by canonical norms."[66]

The Divine Constitution of the Church as Universal Sacrament of Salvation — For a complete theological understanding of ecclesiastical law and its role in the Christian moral life it needs to be remembered that, according to the divine plan, *the Church is the "universal sacrament of salvation".*[67]

[62] Cf. *Lumen Gentium*, 25–27.

[63] Cf. *Lumen Gentium*, 27; CIC, can. 135, 1.

[64] The Church, "is made up of men, just as civil society is, and yet is supernatural and spiritual, on account of the end for which it was founded, and of the means by which it aims at attaining that end. Hence, it is distinguished and differs from civil society XIII, Enc. *Immortale Dei*, 1-XI-1885: DS 3167).

[65] John Paul II, Cost. Ap. *Sacrae Disciplinae Leges*, 25-I-1983.

[66] *Ibid.*

[67] *Lumen Gentium*, 48.

"like a sacrament or as a sign and instrument [union with God."[68] Through the Church, as a visible and hierarchically ordered society, Christ is present and continues to work in the world, spreading "truth and grace to all"[69] to unite people more closely to Himself.[70] *The perspective of the sacramental economy,* which illuminates the nature and mission of the Church, *is indispensable for the theological understanding of ecclesiastical law and its role in the moral life.* Christ lives in the Church and acts through it in "its sacraments, its liturgy, its preaching—in all that it does."[71]

> The path of believers toward imitating and identifying with Christ passes through the "ecclesial mediation" assumed and established by Christ Himself. Saint Cyprian affirms it concisely: "He cannot have God for his Father who does not have the Church for a Mother."[72] In other terms, if Christ said, "whoever listens to you listens to me. Whoever rejects you rejects me. And whoever rejects me rejects the one who sent me,"[73] then the ecclesial dimension is an essential characteristic of Christian moral life, and not simply the sociological space in which it takes place.[74] To "have the Church for a Mother" means that the Christian life includes the formation of "a true filial spirit toward the Church,"[75] the docile acceptance of the preaching of the Gospel and of the teachings of the ecclesiastical magisterium, the reception of the sacraments and participation in liturgical worship, and also the observance of ecclesiastical laws. These are all equally authentic expressions of the "ecclesial mediation" willed by Christ.

The Moral Value of Ecclesiastical Law — In comparison to civil law—which orders the life of men within political society according to justice and therefore constitutes a substantially juridical order even if obligatory in conscience—ecclesiastical law has a wider scope.

On the one hand, *ecclesiastical law orders the life of believers within the Church according to justice, and therefore many ecclesiastical laws regard true duties and true rights,* that is, dispositions that are due or guaranteed ac-

[68] *Lumen Gentium*, 1. For this reason it is affirmed that "the society structured with hierarchical organs and the Mystical Body of Christ, are not to be considered as two realities, nor are the visible assembly and the spiritual community, nor the earthly Church and the Church enriched with heavenly things; rather they form one complex reality which coalesces from a divine and a human element. For this reason, by no weak analogy, it is compared to the mystery of the incarnate Word. As the assumed nature inseparably united to Him, serves the divine Word as a living organ of salvation, so, in a similar way, does the visible social structure of the Church serve the Spirit of Christ, who vivifies it, in the building up of the body" (*Lumen Gentium*, 8).

[69] *Lumen Gentium*, 8.

[70] Cf. *Lumen Gentium*, 48.

[71] Saint Josemaría Escrivá, *Christ is Passing By* (1974), no. 102.

[72] Saint Cyprian, *De Catholicae Ecclesiae Unitate*, 6: PL 4, 502, our translation.

[73] *Lk* 10:16; cf. *Mt* 10:40; *Jn* 13:20.

[74] Cf. Chapter I, subsection 1.1.2.

[75] *CCC*, 2040.

cording to justice and which constitute juridical relations in a proper sense of the word. "There will be a diversity of opinions regarding what is the specific character of the juridical nature of canonical norms, but there is no doubt that one is dealing with a true law. And this, not only because the canonical ordering in obedience to the will of Christ applies the fundamental principle of justice of recognizing and attributing "to each his own" ("*unicuique suum*") in the ecclesial community, but also because it does so with norms which fulfill the triple technical demand of generality, stability, and obligatoriness."[76] With this affirmation an excessively juridical reduction is not performed, because we are always dealing with the juridical dimension of salvific and ecclesial goods.[77]

> For just a few illustrative examples: a parish priest has the duty of justice of applying the Mass for the people entrusted to him every Sunday and holy day of obligation in his diocese;[78] for his own diocese, it is the right of the Ordinary to nominate and approve the teachers of religion or, if it is the case, to demand that they are removed;[79] once a priest has accepted a stipend for celebrating the Mass, he has a duty of justice to apply it for the intention of the person offering the stipend;[80] all of those who through their office have care of souls are held to the obligation of providing that the confessions of the faithful entrusted to them be heard, when it is reasonably requested of them;[81] in case of urgent necessity, all confessors have the same duty, and in the case of the danger of death all priests do;[82] it is the right of all the faithful to freely choose the confessors they prefer;[83] the faithful have the right of manifesting to the pastors of the Church their own needs, above all spiritual ones, along with their desires.[84] Moreover, even procedural laws oftentimes satisfy the fundamental demands of fairness. And finally, it is to be noted that the hierarchical constitution given by Christ to the Church confers to it a basic juridical structure, out of which proceed diverse duties and rights: the necessity of pontifical mandate for the ordination of a bishop; the necessity that the decrees of the ecumenical council are approved by the Roman Pontiff; etc.

On the other hand, the ecclesiastical legislator is aware that *the Church carries out its salvific mediation as custodian and interpreter of the law of Christ,*

[76] J. Herranz, *Crisi e rinnovamento del Diritto nella Chiesa* (1994), 45, our translation.
[77] Cf. C.J. Errázuriz, "Verità e giustizia, legge e coscienza nella Chiesa: il diritto canonico alla luce dell'enciclica 'Veritatis Splendor'," *Ius Ecclesiae* 7 (1995) 277–292, especially 286.
[78] Cf. CIC, can. 534, 1.
[79] Cf. CIC, can. 805.
[80] Cf. CIC, cann. 945ff.
[81] Cf. CIC, can. 986, 1.
[82] Cf. CIC, can. 986, 2.
[83] Cf. CIC, can. 991.
[84] Cf. CIC, can. 212, 2.

and so promulgates laws regarding moral matters that are diverse from justice, regarding acts of the theological virtues or moral virtues such as religion, repentance, etc. These laws can be both the simple positive promulgation of ethical or religious demands of the law of Christ, an act of rendering these demands explicit, or of their determination. These latter two have as an end "to guarantee to the faithful the indispensable minimum in the spirit of prayer and moral effort, in the growth in love of God and neighbor."[85] The normative instructions can simply be recommendations, they can oblige in conscience *sub gravi* or, in more grave cases, they can sanction certain behaviors with a canonical penalty: something which always has a pastoral, medicinal, or preventative purpose, complying with the mission of the Church.

> We shall also propose here some further examples for illustrative purposes. As recommendations, which are not intended to create a precise moral duty added to that which the matter possesses per se, are the exhortation directed toward the faithful to receive the Eucharist with frequency[86] or the earnest recommendation to priests to celebrate the Mass daily.[87] As precepts of a principally moral nature, which per se oblige *sub gravi,* the obligation to participate at the Mass on Sunday and days of obligation;[88] the obligation for all the faithful, once they have reached the age of discretion, to confess their grave sins at least once a year,[89] that of receiving the Eucharist at least once a year in the Easter season,[90] and that of observing fast and abstinence days.[91] As examples of penal laws we can cite the excommunication *latae sententiae* for the apostate, heretic or schismatic,[92] or else for those who procure an abortion, obtaining the effect.[93]

What we have said explains and exemplifies how *the ecclesiastical law is not limited to regulating communal relationships within the Church, since it also regards the Christian personal life.*[94] Therefore, while respecting the distinction between moral laws and juridical norms, "ecclesial discipline responds to a demand that is not entirely exterior and functional; its meaning is not exhausted in ensuring a perfect organization and an efficient functionality of the Christian community. We deal, more in depth, of an interior and essen-

[85] *CCC*, 2041.
[86] Cf. CIC, can. 898.
[87] Cf. CIC, can. 904.
[88] Cf. CIC, cann. 1247–1248.
[89] Cf. CIC, can. 989.
[90] Cf. CIC, can. 920.
[91] Cf. CIC, cann. 1249–1253.
[92] Cf. CIC, can. 1364.
[93] Cf. CIC, can. 1398.
[94] In this sense the conclusions do not seem acceptable arrived at by, for example, P. Huizing, *L'ordinamento della Chiesa*, in Various Authors., *Mysterium salutis IV/II*, (Brescia: Queriniana, 1975), vol. 8, 218; and L. Örsy, *Theology and Canon Law. New horizons for legislation and interpretation*, (Collegeville, MN: The Liturgical Press, 1992), 119–138.

tial demand that derives from the fact that the ecclesial discipline is at the service of communion."[95] The ecclesiastical law, even when it has an exclusively disciplinary purpose, is always an expression of the salvific mission of the Church that pertains to the believer as such, that is, insofar as he is a person who seeks union with Christ, and not only as a "citizen" of the ecclesial community. Ecclesiastical law aims also, and in a rather direct way, at the spiritual good of the believer, at the life of grace and of virtue through which the believer carries out the following of Christ.

9.2.2 The Moral Obligatoriness of Ecclesiastical Law

Ecclesiastical laws bring about a true moral obligation. We deal here with a doctrine of faith[96] that, after the preceding clarifications, does not have need of further proofs for what regard its general terms. Descending more into the concrete, it must be affirmed that not all ecclesiastical norms have the same value "either in themselves or in relation to the changing historical conditions: consequently, their obligatoriness also has a diversity of grades. However, when one treats of laws of the universal and particular Church (norms of the Code of Canon Law, liturgical and sacramental norms, norms promulgated by the bishop for his own diocese), they oblige in conscience, and their infraction can even become a grave moral fault, relative to the greater or lesser importance of what is commanded."[97]

For what regards the nature of what is commanded, there exist fundamental differences. *Some ecclesiastical norms promulgate or render explicit demands of the natural moral law, the Gospel law, or both:* for example, the laws that declare null the marriage between parents and their children[98] or the marriage of a person linked by a bond of a preceding marriage;[99] one deals here with laws that not only oblige *sub gravi*, but that truly *do not admit of exceptions or any kind of dispensation, not even from the Roman Pontiff.* There are, instead, merely ecclesiastical laws, *or determinations in an affirmative form of Gospel law that, though obliging sub gravi, admit of exceptions and dispensations:* for example, a person is not obliged to participate at Sunday Mass when he is prevented from doing so by a grave cause (danger to his health, having to walk a notable distance, a need to care for someone who is seriously ill, etc.). It can be said in general terms that, treating of merely ecclesiastical

[95] Italian Episcopal Conference, *Comunione, comunità e disciplina ecclesiale*, 1-I-1989, no. 47 (the whole text is found in *Enchiridion CEI* 4, pp. 1343–1423), our translation.

[96] Cf. Council of Trent, *De Sacramentis*, c. 8: DS 1621.

[97] Italian Episcopal Conference, *Comunione, comunità e disciplina ecclesiale* (1989), n. 48, our translation.

[98] Cf. CIC, can. 1091.

[99] Cf. CIC, can. 1085. This canon is in reference to a marriage that was ratified (sacramental) and consummated.

laws, the legislator does not intend to oblige if there exists a grave inconvenience. There exist, furthermore, laws that regard something that is light material per se, which do not then oblige "sub gravi."[100]

Finally, we shall point out *some general characteristics of ecclesiastical laws.* Normally, according to the general law of the Church, the general laws enter into force after three months have elapsed from the date of their publication in the Acta Apostolicae Sedis, so long as they do not state the contrary, or the nature of their matter does not imply an immediate obligation.[101] Compliance with purely ecclesiastical laws is required only for those who are baptized in the Catholic Church or received into it, and who enjoy sufficient use of the reason and, if they are not told otherwise, have completed seven years of age.[102] Nonetheless, he is not liable to any penalty who, when he violated the penal law he had not yet completed 16 years of age, and who without fault was ignorant of having violated a law.[103] Contrary to what happens in many civil ordinances, to be considered invalidating or disqualifying are only those laws with which it is expressly established that the act is null or the person is unable,[104] and so it can happen that an act (for example, reception or administration of a sacrament) is carried out illicitly but validly. Ignorance or error concerning the invalidating and disqualifying laws "does not impede their effect unless it is expressively established otherwise."[105]

[100] Nonetheless, it seems important to us to insist on the fundamental principle. "One would have a false conception of canon law and the conscience of the faithful would not be formed rightly if the obligatoriness, even moral obbligatoriness, of the juridical norms of the Church were denied: 'the canonical laws—reminds the Legislator in the Constitution *Sacrae disciplinae leges*—by their very nature must be observed.' And this is the case not only for those norms which translate in terms of direct positive provisions that are of the divine Law (here is reached the highest level of obligatoriness) but also regarding those other norms of human law—perhaps of secondary and technical content—which not without reason come to be equally qualified as "sacrae": "sacri canones," "sacrae disciplinae leges." In fact, also these norms—and we know to not make an exaggerated statement of an overly juridical nature—involve the conscience of the believer by recalling the divine Authority, from which the sacred power of the legislator derives its foundation, which is ultimately connected with every ecclesiastical norm, since—*natura sua*—every canonical norm aspires for the defense of the *Ordo Ecclesiae*, for congruence with the design of Christ regarding the community of believers" (J. Herranz, *Crisi e rinnovamento del Diritto nella Chiesa* (1994), 50, our translation).

[101] Cf. CIC, can. 8.

[102] Cf. CIC, can. 11. Instead, for the law of abstinence from meat on days of penance, those who have completed their fourteenth year of age are obliged to comply; and for fasting on those days, those who have completed their eighteenth year and are not yet 59 years old are to comply (cf. CIC, cann. 1252 and 97).

[103] Cf. CIC, can. 1323, 1–2.

[104] Cf. CIC, can. 10.

[105] CIC, can. 15, 1.

Chapter 10

Moral Conscience

The theological study of conscience presents at least two difficulties that have need of being clarified. The first is constituted by the wide range of meanings which come to be attributed to it.[1] The second consists in the fact that, concerning the role of conscience and the mode in which it must be inserted into the study of fundamental moral theology, there exist within Catholic theology rather diverse opinions. These problems will be studied in sections 10.1 and 10.3.

10.1 Terminological Clarification

In order to introduce order between the different uses with which the concept of conscience is employed in the Sacred Scriptures, in the documents of the ecclesiastical magisterium, and in theological literature, a distinction is useful—at this point classic in Catholic theology—between moral conscience in a comprehensive sense, called *habitual conscience*,[2] and moral conscience in a strict sense, understood as a precise judgment regarding a singular action, called *actual conscience*.[3] *In the first case moral conscience is spoken of in a very wide sense,* which *comprehensively designates the moral awareness of*

[1] See the comprehensive visions offered by E. Kaczynski, "La coscienza morale nella teologia contemporanea", in A. Lobato (ed.), *Crisi e risveglio della coscienza morale nel nostro tempo*, (Bologna: ESD, 1989), 47–80; M. Cassani, "La coscienza morale nella riflessione teologica contemporanea", in Various Authors, *La coscienza morale e l'evangelizzazione oggi. Tra valori obiettivi e tecniche di persuasione*, (Bologna: ESD, 1992), 78–112.

[2] Cf. R. García de Haro, "¿Qué es la conciencia habitual?", *Sapientia* 35 (1980) 435–454.

[3] For a study of these and other meanings of the term conscience, cf. F. Delhaye, *La coscienza morale del cristiano*, (Rome: Desclée, 1968).

man. In this use the conscience includes rather diverse cognitive principles, such as synderesis or the habit of the first moral principles, the natural moral law, the cognitive dimension of the acquired and infused moral virtues, prudence, the *actual conscience* itself, etc., elements which in good part we have already studied. Sacred Scriptures and the Fathers of the Church often utilize this comprehensive concept of conscience.[4] *In contrast, in its restricted sense conscience is* a precise act of the practical reason; concretely *a judgment regarding the moral goodness or badness of a singular act that we are about to perform or have already performed,* which is distinguished from synderesis, the natural moral law, moral knowledge, prudence, and the cognitive dimension of the ethical virtues, even if there remains a strict relationship between it and all of these realities.[5]

10.2 The Christian Doctrine Concerning Moral Conscience

10.2.1 Moral Conscience in the Sacred Scriptures

Old Testament — The Old Testament does not use any specific term to refer to what we call conscience. In the Greek version of the LXX the word *syneídêsis* only appears in three late passages.[6] This does not mean that its content is absent, that is, as the voice of divine judgment which praises good behavior and rebukes bad behavior. Most of the time the Hebrew term *lêb* ("heart") comes to be used instead. And so "David regretted having numbered the people, and said to the LORD: 'I have sinned grievously in what I have done"[7] or it is requested to the Lord: "Create in me a clean heart, O God, And renew a steadfast spirit within me,"[8] where "pure heart" comes to mean

[4] Cf. A. Del Portillo, *Coscienza morale e magistero*, in *Rendere amabile la verità. Raccolta di scritti di Mons. Alvaro del Portillo*, (Vatican City: Lib. Ed. Vaticana, 1995), 377.

[5] Regarding conscience, the following can be usefully consulted: O. Lottin, *Psychologie et Morale aux XIIème et XIIIème siècles*, (Gembloux-Louvain: 1942–1960), vol. II, 103–350; P. Palazzini, *La coscienza*, (Milan: Ares, 1968); D. Tettamanzi, "L'oggettività del giudizio di coscienza", *La Scuola Cattolica* 111 (1983) 426–449; C. Caffarra, *Viventi in Cristo* (1986), 95–111; L. Melina, *La conoscenza morale*, (Rome: Città Nuova, 1987); R. García de Haro, *Legge, coscienza e libertà* (1990); J. Ratzinger, *Coscienza e verità*, in Id., *La Chiesa. Una comunità sempre in cammino*, (Alba: Paoline, 1991), 113–137; S. Majorano, *La coscienza. Per una lettura cristiana*, (Cinisello Balsamo: San Paolo, 1994); A. Rodríguez Luño, *Etica* (1992), Ch. X; Id., *La scelta etica* (1988), Chs. VI-VIII; G. Borgonovo (ed.), *La coscienza*, (Vatican City: Lib. Ed. Vaticana, 1996); M. Rhonheimer, T*he Perspective of Morality* (2011), Ch. V.

[6] Cf. *Eccl* 10:20; *Wis* 17:10; *Sir* 42:18 (some codex use a different word in this last verse).

[7] *2 Sam* 24:10; cf. *Deut* 11:16; *1 Sam* 16:7.

[8] *Ps* 50:12 (*Ps* 51:10 NAB); cf. *Ezek* 36:26–27.

something very similar to what we call "good conscience". In an opposing sense, the Old Testament speaks of a "hardened" or "obstinate" heart: "Hard of face and obstinate of heart are they to whom I am sending you."[9]

It seems important to us to point out, along with Günthör, that *in the Old Testament* (but also in the New) *moral conscience is always a "conscience before God":* "Man stands before the face of God, who is holy, and in this light acquires the awareness of having acted well and rightly, or incorrectly and poorly";[10] this is a known characteristic of the biblical notion of conscience. Furthermore, it should be noted that the phenomenon of conscience comes to be referred to with expressions that indicate the entire man, and not a particular faculty considered in isolation. From this comes the preference for the term *lêb*, which designates the most intimate center of the person, where he enters into relationship with the Lord,[11] accepting or refusing the divine word. Man's attitude in relation to God comes about within the heart, which can be "new", "contrite", "humble," or in contrast "hollow", "darkened", etc.

New Testament — None of the Gospels use a specific term to indicate moral conscience.[12] This phenomenon is referred to especially by the term "heart" (*kardía*) and "spirit" (*pnéuma*), in an analogous sense to that found in the Old Testament, even if the interiority of behavior and moral judgment come to be emphasized with greater vigor.[13] In the hidden depths of the heart are found the genesis of good and evil, and so the human heart is seen in all its ambivalence: "For from the fullness of the heart the mouth speaks. A good person brings forth good out of a store of goodness, but an evil person brings forth evil out of a store of evil."[14]

It is with the Pauline Corpus that the concept of conscience (syneídêsis), widely used in the popular hellenistic environment, makes its entrance into Christian doctrine. A certain attention is required in order to understand the sense in which it comes to be used in the Apostolic Letters. It seems beyond doubt that *conscience is always invoked by Saint Paul as a witness.* In the *Letter to the Romans* the Apostle, wanting to render more credible the suffering he has endured on account of his people's attitude, affirms: "I speak the truth in Christ, I do not lie; my conscience joins with the holy Spirit in bearing me witness."[15] In *2 Cor* 1:12 he equally appeals to the "testimony

[9] *Ezek* 2:4; cf. *Ps* 94:8–10; *Zech* 7:12.

[10] A. Günthör, *Chiamata e risposta* (1982), vol. I, no. 388.

[11] Cf. *ibid.*

[12] On conscience in the New Testament, classic is the study of J. Stelzenberger, *Syneidesis im Neuen Testament*, (Paderborn: Schöningh, 1961). See also: C. Spicq, "La conscience dans le Nouveau Testament", *Révue biblique* 47 (1938) 50–80; R. Schnackenburg, *Il messaggio morale del Nuovo Testamento* (1990), vol. II, 63–76 (with bibliography).

[13] Cf. *Mk* 7:21–23; *Mt* 5:28, regarding adultery committed in one's heart.

[14] *Mt* 12:34–35.

[15] *Rom* 9:1.

of our conscience" and subsequently to the testimony of the conscience of others: "We have renounced shameful, hidden things; not acting deceitfully or falsifying the word of God, but by the open declaration of the truth we commend ourselves to everyone's conscience in the sight of God."[16] Saint Paul makes appeal to the capacity of judgment that is in him and in those he is addressing, because it is present in every person. It is a reliable witness, but it is not up to it to give the last word: "It does not concern me in the least that I be judged by you or any human tribunal; I do not even pass judgment on myself; I am not conscious *(synoida)* of anything against me, but I do not thereby stand acquitted; the one who judges me is the Lord."[17] *Conscience, as a human demand, comes to be given, in a certain sense, new dimensions by Saint Paul: the ultimate demand is the judgment of God.*[18]

In this passage of the *First Letter to the Corinthians* the universality of the conscience is also seen; even among the different interpretive hypotheses, it is beyond doubt that what Saint Paul said regarding himself in *1 Cor* 4:3–4 also pertains to pagans: "Syneídêsis appears as an immanent demand to man, that presents to the conscience his behavior with a positive or negative judgment. The knowledge of good and evil is presupposed here. Its foundation is not however explained; nonetheless it is obvious that, as for the "natural knowledge of God" (*Rom* 1:19ff), Paul is thinking of human reason."[19] Similar is the teaching of *Rom* 2:14–15—which we already studied in its relation to the natural moral law[20]—where conscience appears as a witness of a strictly moral nature.

A new problematic nucleus of extreme interest emerges in the same letters, in the passages in which *the delicate relationships between knowledge, conscience, and charity toward the brothers of weaker conscience* comes to light. The solution given by Saint Paul to the questions which were posited to him bring to light that conscience presupposes knowledge, and it judges according to knowledge; if knowledge comes to be lacking, conscience judges erroneously. He recalls, furthermore, that the conscience of the Christian judges also in light of the faith;[21] and that charity wishes to avoid scandal even to those who have a weak conscience.

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[16] *2 Cor* 4:2.

[17] *1 Cor* 4:3–4.

[18] Cf. R. Schnackenburg, *Il messaggio morale del Nuovo Testamento* (1990), vol. II, 69.

[19] *Ibid.*, 71–72.

[20] Cf. Chapter VIII, subsection 8.2.1.

[21] Still remaining debated is the exact meaning of the phrase "for whatever is not from faith is sin" (*Rom* 14:23). Some, like Saint Thomas, retain that here Saint Paul intends to affirm that all is sin which is done against one's conscience. However, the interpretation of Saint Augustine seems to adhere more to Pauline thought: either faith informs the whole practical life, or one incurs sin. This second interpretation is shared also by R. Schnackenburg, *Il messaggio morale del Nuovo Testamento* (1990), vol. II, 73–74.

> The problem to resolve in *1 Cor* is that of the possibility of eating meat sacrificed to idols, a problem that acquires a social dimension in the Christian community insofar as it could block the road to participation at the table itself, an expression of ecclesial communion. Knowledge teaches us that the idols are nothing, "but not all have this knowledge. There are some who have been so used to idolatry up until now that, when they eat meat sacrificed to idols, their conscience, which is weak, is defiled [on, the brother for whom Christ died. When you sin in this way against your brothers and wound their consciences, weak as they are, you are sinning against Christ."[22] Something similar happens with pagans: "If an unbeliever invites you and you want to go, eat whatever is placed before you, without raising questions on grounds of conscience. But if someone says to you, 'This was offered in sacrifice,' do not eat it on account of the one who called attention to it and on account of conscience; I mean not your own conscience, but the other's."[23] Analogous, though perhaps more far-reaching, is the question clarified in *Rom* 14. This refers here to the "strong" and "weak" in the faith. Neither must the "strong" despise the "weak, nor should the latter judge the former. The former may bear in mind the duty of not scandalizing their brothers; the latter may not judge the former: we shall all be judged equally by God.[24] For what regards food: "Everything is indeed clean, but it is wrong for anyone to become a stumbling block by eating [this is not from faith; for whatever is not from faith is sin."[25]

In the Pastoral Letters conscience expresses the position taken by man with regard to God, which can be either positive or negative. Conscience can be right or wrong, and then it is not possible "to always and absolutely identify the voice of conscience with the voice of God. Conscience and the heart of man are, yes, the voice of moral duty, but they are also personal realities, proper to each individual, an immediate and profound expression of his own will and moral personality."[26] This explains how predicates such as "pure",[27] "good,[28] "contaminated",[29] etc. come to be attributed to conscience. With a greater Christological emphasis, the *Letter to the Hebrews* bases the liberation from an evil conscience on the blood of Christ: "How much more will the blood of Christ, who through the eternal spirit offered himself unblemished to God, cleanse our consciences from dead works to worship the living God."[30] In summary, *moral conscience, in its function as judge and witness,*

[22] *1 Cor* 8:7,11–12.
[23] *1 Cor* 10:27–29.
[24] Cf. *Rom* 14:10–12.
[25] *Rom* 14:20,23.
[26] A. Del Portillo, *Coscienza morale e magistero* (1995), 379, our translation.
[27] Cf. *1 Tim* 3:9; *2 Tim* 1:3.
[28] Cf. *1 Tim* 1:19; *Heb* 13:18.
[29] Cf. *Titus* 1:15.
[30] *Heb* 9:14; cf. also *Heb* 9:9; 10:2,22.

is not a purely neutral reality, but possesses itself a truly moral dimension, as demonstrated by the predicates which come to be attributed to it.

10.2.2 Recent Teachings of the Ecclesiastical Magisterium on Moral Conscience

The most important teachings of the recent magisterium on moral conscience are found in the Constitution *Gaudium et Spes* (no. 16), in the *Catechism* (nos. 1776–1802) and in the encyclical *Veritatis Splendor* (nos. 54–64).[31] We shall occupy ourselves with the latter, which contains a brief, but substantially complete, exposition of the ecclesial doctrine concerning moral conscience. The approach chosen by the encyclical responds to its purpose, that is, to perform a doctrinal discernment concerning certain "'issues regarding the very foundations of moral theology,' foundations which are being undermined by certain present day tendencies."[32] The exposition is clearly divided into three parts, dedicated to the examination of some contemporary doctrinal problems (nos. 54–56), to the exposition of the notion of conscience (nos. 57–61), and to the study of the problems concerning erroneous conscience and the formation of conscience (nos. 62–64).

Contemporary Problems Regarding Conscience — Recalling explicitly the teachings of *Gaudium et Spes* 16, the discourse is inspired by a just vindication of the interiority of the moral demand, with the purpose of clarifying that this vindication does not pose any problem. In fact, it is most important to remember that the "heart", or the moral conscience is "the sanctuary of man, where he is alone with God whose voice echoes within him."[33] What instead comes to be problematic are the tendencies which, opposing human freedom to the law of God, propose "a *'creative' understanding of moral conscience,* which diverges from the teaching of the Church's tradition and her Magisterium."[34]

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[31] Among the literature, in the Italian language, regarding conscience in the encyclical *Veritatis Splendor* we shall point out: L. Melina, *Formare la coscienza nella verità*, in Various Authors, *Veritatis Splendor. Atti del Convegno dei Pontifici Atenei Romani* (29–30 ottobre 1993), (Vatican City: Lib. Ed. Vaticana, 1994), 55–71; Id., *Coscienza e verità*, in Various Authors, *Lettera enciclica "Veritatis Splendor". Testo e commenti* (1994), 196–202; I. Fucek, *La coscienza morale*, in R. Lucas Lucas (ed.), *"Veritatis Splendor". Testo integrale e commento filosofico-teologico* (1994), 299–316; R. Frattallone, *La coscienza "scintilla di verità": dottrina della "Veritatis Splendor" e problematica odierna*, in G. Russo (Compiler), *Veritatis Splendor. Genesi, elaborazione, significato* (1995), 97–128.

[32] *Veritatis Splendor*, 5. See also no. 4.

[33] *Gaudium et Spes*, 16, quoted by *Veritatis Splendor*, 55. This explanation regarding conscience had been emphasized by Pius XII, *Radio Message* 23-III-1952: AAS 44 (1952) 271 and, without doubt, has a great patristic resonance.

[34] *Veritatis Splendor*, 54.

Making appeal to the existing difference between the consideration of universal doctrine and the existential singularity of each action and situation, as well as to the creative and responsible character of the tasks that God presents each person, and to the complexity that the phenomenon of conscience acquires on the psychological, affective, cultural, and social plane,[35] the "creative" interpretation of conscience retains that it would be possible "to do in practice and in good conscience what is qualified as intrinsically evil by the moral law. A separation, or even an opposition, is thus established in some cases between the teaching of the precept, which is valid in general, and the norm of the individual conscience, which would in fact make the final decision about what is good and what is evil."[36]

The Nature of Moral Conscience — On the basis of the teaching of Saint Paul in *Rom* 2:14–15, "*the biblical understanding of conscience, especially in its specific connection with the law*"[37] comes to be made precise: conscience is the unique witness of what happens in the intimate center of man, "a witness of his own faithfulness or unfaithfulness with regard to the law, of his essential moral rectitude or iniquity."[38] The conscience establishes an intimate dialogue within man himself, but more profoundly there is found in it "a *dialogue of man with God,* the author of the law."[39] It is therefore "*the witness of God himself,* whose voice and judgment penetrate the depths of man's soul."[40] The dignity of conscience consists in its being the holy space wherein God speaks to man.

Basing itself on the same Pauline teaching, this encyclical continues on to explain the nature of moral conscience in a strict sense, that is to say, what we called *actual conscience.* Three characteristics of it are mentioned, it is *1) a practical judgment, 2) that ultimately renders present a moral obligation and that* therefore *3) constitutes the proximate norm of personal morality.*

1. Conscience is a "*practical judgment,* a judgment which makes known what man must do or not do, or which assesses an act already performed by him."[41] Through such a judgment, "the application of the law to a particular case"[42]is performed. The emphasis whereby it is affirmed that conscience is a practical judgment intends to highlight that it is not a choice or an option, but an affirmation regarding the morality of

[35] Cf. *Veritatis Splendor*, 55–56. For the study of the psychological complexity of conscience, with particular reference to psychoanalysis, cf. A. Lambertino, *Psicoanalisi e morale in Freud* (1987).
[36] *Veritatis Splendor*, 56.
[37] *Veritatis Splendor*, 57.
[38] *Ibid.*
[39] *Veritatis Splendor*, 58.
[40] *Ibid.*
[41] *Veritatis Splendor*, 59.
[42] *Ibid.*

a particular action ("to now do action 'x' is morally good'; " to now do action 'x' is morally evil") that is situated in the order of practical knowledge, and that as such is situated in the order of being true or false. In the practical judgment of conscience "*the link between freedom and truth is made manifest.*"[43]

2. *Conscience formulates "moral obligation in the light of the natural law: it is the obligation to do what the individual, through the workings of his conscience, knows to be a good he is called to do here and now."*[44] Thus a theologically important claim is furnished, which will permit us to better understand how the concept of moral obligation is to be inserted into fundamental moral theology. We shall return to this point in subsection 8.4.5.

3. *Finally, moral conscience is "the proximate norm of personal morality",*[45] in such a way that if one acts against it he commits a moral evil. The value of the proximate norm, which it is never licit to act against, pertains to conscience not because it is a supreme norm,[46] a *norma normans*, but because, while being a *norma normata*, it is an ultimate (or final) norm, it is inescapable: "The judgment of conscience states 'in an ultimate way' whether a certain particular kind of behaviour is in conformity with the law."[47] When conscience judges with certainty, in the moment in which one acts there is not available a conscience for the conscience, a judgment of the judgment, because then it would go on to infinity: it is the "ultimate norm".

Erroneous Conscience and the Formation of Conscience — Recalling again the Pauline teachings and that of *Gaudium et Spes* 16, the encyclical *Veritatis Splendor* warns that *conscience is not an infallible judge, it can err.*[48] The error of conscience "can be the result of an *invincible ignorance,* an ignorance of which the subject is not aware and which he is unable to overcome by himself",[49] and in that case the conscience does not lose its dignity. In contrast, its dignity is compromised when it is "*culpably erroneous,* that is to say, 'when man shows little concern for seeking what is true and good, and conscience gradually becomes almost blind from being accustomed to sin.'"[50]

[43] *Veritatis Splendor*, 61.
[44] *Veritatis Splendor*, 59.
[45] *Veritatis Splendor*, 60.
[46] Cf. *ibid.*
[47] *Veritatis Splendor*, 59.
[48] Cf. *Veritatis Splendor*, 62.
[49] *Veritatis Splendor*, 62.
[50] *Veritatis Splendor*, 63; the internal citation is of *Gaudium et Spes*, 16.

It is important to understand well the foundation of the classical thesis regarding the obligatoriness of an invincibly erroneous conscience. In each case *conscience derives its dignity and its obliging power from the* truth: from the truth known by man or by what is subjectively and inculpably retained to be true.[51] Nonetheless, inculpable subjective error, even if it is not formally imputable, cannot replace the truth: it "does not cease to be an evil, a disorder in relation to the truth about the good. Furthermore, a good act which is not recognized as such does not contribute to the moral growth of the person who performs it."[52] In this regard it is helpful to "reflect on the words of the Psalm: 'Who can discern his errors? Clear me from hidden faults' (*Ps* 19:12). There are faults which we fail to see but which nevertheless remain faults, because we have refused to walk towards the light (cf. *Jn* 9:39–41)."[53]
From here springs *the necessity of the effort to form one's conscience well.* To do so, knowledge of God's law is indispensable, but not sufficient: a connaturality of the person with the good is also needed; it "is rooted in and develops through the virtuous attitudes of the individual himself: prudence and the other cardinal virtues, and, even before these, the theological virtues."[54] *A further aid for the formation of conscience comes from the Church,* from its life and above all from its magisterium, which is always placed at the service of the conscience.[55]

10.3 The Placement of the Treatment of Conscience in Fundamental Moral Theology

10.3.1 The Two Traditions of Catholic Moral Teaching

It seems to us that the following observation can be widely agreed upon: "It is important to keep in mind the insertion of conscience within a well determined organization of the whole of morality, for its role and its very conception depends on the relations that it entertains with the other elements of the system."[56] Conscience is one of the themes on which the scientific positions we have taken from the beginning of this book[57] have major repercussions, a reason why we consider it helpful to recall the essential terms of the problem.

[51] Cf. *Veritatis Splendor*, 63.
[52] *Veritatis Splendor*, 63.
[53] *Ibid.*
[54] *Veritatis Splendor*, 64.
[55] Cf. *ibid.*
[56] S. Pinckaers, *Coscienza, verità e prudenza*, in G. Borgonovo (ed.), *La coscienza* (1996), 127, our translation.
[57] Cf. Chapter I, subsection 1.2.2.

The study of the origin and historical development of the two scientific approaches at the base of moral theology, to which we referred in chapter I, highlight in a rather clear way that "the Catholic teaching in the moral ambit is constituted by two traditions which have given rise to two diverse systematizations":[58] *the post-Tridentine moral tradition, and an older tradition which found its greatest systematic expression in Saint Thomas.*

> Post-Tridentine morality (casuistic morality) is in some way conditioned by the voluntarism of Ockham: morality is born from the encounter of divine freedom, which is expressed in the obliging law, with human freedom. Even if human freedom should be expressed in obedience, freedom and the law finish by being opposed to one another "as two landowners who dispute over the field of human actions [What is attributed to the one is necessarily taken from the other."[59] In this approach, conscience acquires an always greater importance. It is not a virtue like prudence that is formed with its exercise, but an intermediate instance between the law and freedom. With respect to the law, conscience is passive: it limits itself to receiving the law, presenting it to freedom, and applying it to its acts, signaling in each concrete situation the limit between what is and what is not licit. The law, while being superior to conscience, cannot "be applied without the conscience nor exercise its force without it, because a law is not valid if it is not known and promulgated before the conscience. Even freedom must pass through the conscience in order to define its limits and those of the law."[60] One can then understand why the study of conscience and of the cases of conscience becomes the most important and far-reaching problem of fundamental moral theology.
>
> It must be added that in this approach the law easily comes to be seen in a rather reductive and negative way. The law is an act of God's will, positively understood, without a direct relationship with the nature of things, for which there is little to be understood.[61] The norm is what it is, but it could be differently; consequently, the law is presented as a limit to freedom. Within the practical ambits that are

[58] S. Pinckaers, *Coscienza, verità e prudenza* (1996), 126, our translation. For a more extensive treatment see, from the same author, *Le fonti della morale cristiana* (1992), Chs. X and XI. G. Abbà speaks in this regard of "figures of ethics"; see the extensive study concerning their distinction, origin, and historical development contained in G. Abbà, *Quale impostazione per la filosofia morale?* (1996): according to Abbà, the morality of Saint Thomas is understood as a search for the best life to live; the post-Tridentine casuistic morality is understood instead as a search for the moral law to observe. Regarding the entire theme, see, beyond the bibliography cited in Chapter I, the synthesis proposed by A. Rodríguez Luño, "El primado de la persona en la moral fundamental", in A. Sarmiento (ed.), *Moral de la persona y renovación de la teología moral*, (Madrid: Ediciones Universitarias Internacionales,1998), 41–51.

[59] S. Pinckaers, *Le fonti della morale cristiana* (1992), 317.

[60] *Ibid.,* 322, our translation.

[61] Keep in mind the theological and philosophical problems of voluntarism and nominalism, explained in Chapter I, subsection 1.3.3.

> covered by the law one must obey, while the areas not covered by the law are instead free. Conscience tends, through a thousand interpretive tricks, to continually broaden the ambit of freedom and, therefore, to continually restrict the scope of the law. This establishes an antithetical relationship between law and freedom, tending toward minimalism. In any case, the treatment of the final end, of virtues and prudence, as well as the deepened study of Christian freedom, either disappear or come to be reduced to a formality without great importance.

In the Thomistic approach, which we follow in this book, *morality is based on the theological and moral virtues, perfected by the gifts of the Holy Spirit.* "The practical virtue *par excellence*, the guide of the moral judgment toward its own fulfillment, is prudence, and not conscience, as is instead the case in the modern tradition."[62] Grace, and the theological and moral virtues, are both the content of the moral law and the principles from which the practical reason comes to identify the concrete modes of regulating the goods and human activities in such a way as to render possible in each concrete situation the following of Christ. These directive activities of the practical reason give rise, on the reflective level, to formulations under the form of normative statements (moral norms), but originally the activity of the practical reason consists in the regulation of action and not in the production of norms or in the application of norms to particular cases. In any case, there is no interest in "liberating" practical ambits from the rule of the virtues or from the moral law. In fact, it does not make sense to speak of operative ambits "not covered" by the law, because this would mean that there exist realms of human action that are not regulated by the reason illuminated by faith and therefore not relevant to the Christian vocation.

This does not mean, however, that in the Thomistic approach there is no place for moral conscience: "In Saint Thomas we still find a connection between the virtue of prudence—analyzed with the instruments of the Aristotelian tradition and with the aid of the discernment provided by the monastic tradition—and the doctrine of conscience, derived from Saint Paul and the Church Fathers, in particular Saint Jerome."[63] *It is just that the role of conscience is seen in a diverse way,* as we shall see in what follows.

But first, two clarifications are made necessary. Our critique of casuistic morality is a critique regarding the basic scientific approach, which does not undermine the Christian doctrinal positions contained in it and transmitted by it, and which furthermore recognizes the positive role played by it in a given historical moment and for the sake of very specific pastoral demands.[64]

[62] S. Pinckaers, *Coscienza, verità e prudenza* (1996), 127.

[63] *Ibid.*

[64] Cf. S. Pinckaers, *Le fonti della morale cristiana* (1992), 328–330. Even if in general casuistic morality left the study of the virtues to another theological discipline, asceticism,

It should also be clarified that there exist today critiques of casuistic morality that, far from succeeding in reformulating the basic scientific approach, continue to construct themselves on the more or less antithetical relationship between law and freedom, while however balancing such a relationship in favor of a freedom that tends to be understood in a subjectivist way. The scientific problems remain unresolved in this perspective, and doctrinal problems arise that are mentioned in the encyclical *Veritatis Splendor*.

10.3.2 The Role of Moral Conscience in Theological Virtue Ethics

For what regards the insertion of the treatment of conscience into a morality of the virtues, the interpretation proposed by Abbà seems right to us,[65] according to which the distinction between the direct exercise and the reflective (or reflexive) exercise of the practical reason ("*ratio practica in actu esercito*" and "*ratio practica in actu signato*"[66]) must be recalled. *On the level of its direct exercise, the activity of the practical reason aims at identifying the choice of action which would permit the regulation of the human goods involved in a way conforming to the rule of the virtues* (to justice, temperance, etc.). The habitual perfecting of this activity of the practical reason is the virtue of prudence which, as we know, presupposes not only the knowledge of the virtuous ends, but above all the desire for them.[67]

The judgment of conscience should be placed, rather, on the level of the reflective activity of the practical reason, on the same level, that is, on which the practical principles come to be formulated under the form of the normative statements (precepts) of moral science.[68] Actual conscience is a judgment regarding the concrete action to be carried out or regarding one already carried out based on such reflexive normative statements. The connection of the judgment of conscience with the actual and habitual dispositions of the appetites is less strict than that of prudence, therefore the conscience pos-

Pinckaers rightly points out that in this period "many famous moralists were at the same time also authentic spiritual persons, like Saint Alphonsus" (*Ibid.*, 329).

[65] Cf. G. Abbà, *Felicità, vita buona e virtù* (1995), 276–281.

[66] See Chapter I, subsection 1.2.2.

[67] Cf. Chapter VII, subsection 7.3.2. The direct activity of the practical reason finishes with action, and "to act well it is not sufficient to elaborate a specific norm and to judge that it is sufficiently reflected upon. It is yet necessary that one pass from the consideration *in universali*, typical of conscience, to the consideration *in particulari*, that is, to that consideration in which the premises of reasoning are not simply norms, even if being specific and circumstantial, but are principally the right intentions of the individual agent, actual inclinations of his will and of his passional appetities toward virtuous ends" (G. Abbà, *Felicità, vita buona e virtù*, 1995, 277–278).

[68] Cf. Chapter VIII, subsection 8.2.3.

sesses a prevalently, if not exclusively, cognitive character.[69] The activity of conscience aims at judging rightly on the basis of moral knowledge; prudence, on the other hand, "consists not in thought merely, but in its application to action, which is the end of the practical reason. Wherefore if any defect occur in this, it is most contrary to prudence."[70] In other terms: the immediate end of conscience, as a reflexive activity, is to judge the proposed action according to the truth; the end of prudence, as a direct regulating activity of the practical reason, is to identify, command, and to carry out the right choice. If the latter is not carried out, there is a lack of prudence, but not necessarily an error of conscience, since it is possible that the judgment which guides the choice[71] is opposed to conscience, "as when the desire of a dishonest action clouds the reason so much as to impede it from deciding to reject the action. Therefore, someone makes a mistake in a choice, but not in conscience, given that he acts against his own conscience. It is said that he acts in bad conscience because the deed does not agree with his moral knowledge."[72] Moral evil means precisely that the judgment of choice is not congruent with the judgment of conscience.

> It is not infrequent that someone may call a "judgment of conscience" that which is properly a judgment of choice. This misunderstanding needs to be corrected, for such an identification entails the admission that any human decision could be identified with a judgment of conscience; said otherwise, a generic "good will" would be sufficient for acting "in conscience": this conception is very close to that of creative conscience.

Regarding the distinction between conscience and prudence, we need to consider, secondly, the insistence of many authors, including Thomas Aquinas, on the thesis that *moral conscience is an act and not a* habit, a thesis which cannot be understood—if we do not want to fall into a banality—as the difference between a habit and its own act: this means, rather, that conscience is not the proper and specific act of a single habit, but an evaluative act of the practical reason that can be carried out at diverse levels, which is influenced by diverse habits.[73] The reason carries out such a moral valuation in diverse moments: before acting, after the action, but also prior to the intention and voluntary consent, for prior to each act of the will (whether it be desire, intention, consent, or choice) the reason grasps in it goodness or evil. We recognize that one must not act or that it would be a duty to not act in such a way,

[69] Cf. *Scriptum Super Sententiis*, lib. II, d. 24, q. 2, a 4, ad 2; *De Veritate*, q. 17, a. 1, ad 4.

[70] *S.Th.* II-II, q. 47, a. 1, ad 3.

[71] On the nature of this judgment, see section 6.3 of Chapter VI and the subsections 7.3.2 and 7.3.3 of Chapter VII.

[72] *De Veritate*, q. 17, a. 1, ad 4, our translation.

[73] Cf. *De Veritate*, q. 17, a. 1; *S.Th.* I, q. 79, a. 13, ad 3.

but also that it is not licit to desire such an end or to deliberate about means for achieving it, etc. Conscience is therefore a broader phenomenon than prudence, but for what regards the identification and carrying out of the concrete choice, prudence extends itself to more things and manages more functions than conscience: the latter judges solely the morality of the operative project; prudence, on the other hand, aids in deliberating, judging, choosing, and carrying out, while bringing into play the annexed virtues for such a purpose, all the while making use of judgments of conscience.

10.4 Systematic Theological Study of the Problems of Moral Judgment

The concept of moral conscience in the strict sense (*actual conscience*) proposed by the encyclical *Veritatis Splendor* is in line with the traditional doctrine inspired by Saint Thomas, for whom *conscience is the judgment resulting from the application of moral knowledge to an action to be done or already done.*[74] At a superficial glance, the concept of application could seem to be a mechanical, passive, and given deductive operation, that would finish by banalizing the concept of conscience itself. This is not really the case. The judgment of conscience is an extremely complex act of discernment, in which diverse elements, such as moral knowledge, knowledge of the action and situation, the sense of moral obligation, and the affective components of choice must adequately relate to each other in order to reach moral truth. We dedicate this section to a deeper look at these elements and of their reciprocal interaction, limiting ourselves, for the sake of brevity, to only their essential aspects.

10.4.1 Conscience and Moral Knowledge

Conscience judges on the basis of a preexistent moral knowledge. This means that it presupposes not only the habit of the first moral principles (synderesis), and therefore natural irreflective knowledge of the virtuous criteria for the regulation of actions and of human goods, but also their reflective formulation under the form of precepts or norms.[75] The *habitus* of moral knowledge, therefore, comes to be presupposed. Naturally, this is not intended to state that only professional philosophers or moral theologians are capable of formulating judgments of conscience, but rather that it presupposes a reflective moral knowledge, even if this is normally possessed in a non-scientific way, acquired through reflection, education, social customs, etc. *Moral norms are*

[74] Cf. *De Veritate*, q. 17, aa. 1–2; *S.Th.* I, q. 79, a. 13.
[75] See what was said in Chapter VIII, subsection 8.2.2 and 8.2.3.

one of the principal means for communicating and receiving reflective moral knowledge. Broadly speaking, norms are logically universal propositions that have as a subject an action or the description of an action, and for its predicate expressions such as "morally good", "morally evil", "morally obligatory", or other analogous ideas. *Norms are not only commandments or prohibitions, but also instructions or teachings: by means of more or less simple formulas they transmit knowledge of the principal demands of personal and social virtues.*

> We shall propose some examples. The virtue of justice imposes respect for the rights and goods of others. For what regards the goods of a material character, all can be said synthetically by stating: "do not steal"; or by formulating moral norms in a more specific way like the following: theft is morally evil; in case of extreme necessity it is morally licit to take the necessary goods of another—but only those that are strictly necessary—in order to depart from such a state, since in normal conditions no one can reasonably deny to another what is necessary to avoid dying of hunger or thirst; robbery is morally illicit and more grave than theft, because to the material damage is added a threat or violence against the legitimate owner; he who has stolen is obliged to restore to the legitimate owner the stolen good or, if the good was consumed, its economic value, etc. And in such a manner could all the demands of justice be verbalized. These and other norms allow us to rightly judge particular actions. If we deal with simple actions, synthetic formulae suffice; in order to judge complex actions, for example, the moral licitness of certain commercial or financial operations, more specific norms would be necessary.

The application of moral knowledge is a thing that is far from simple and obvious. *Norms are not the mere expression of a superior will that must be followed even if the world crumbles, but are linguistic expressions of a regulation (ordinatio rationis) that above all must be adequately understood in its terms and in its true meaning.* What comes to be required is an exact understanding of the specific case and of the meaning of the norm itself, in order to be able to overcome possible defects of the normative statement, both because its linguistic expression is not completely exact and because in a concrete case it enters into conflict with other likewise important demands and because the person finds himself in a situation that the norm did not intend nor could it contemplate.[76] We must, nonetheless, point out that *for*

[76] In this regard, there emerge a set of problems, with which we shall occupy ourselves in the following subsections, which pertain to the theory of the reflexive judgment of an action. Like all problems regarding reflexive knowledge, such a theory is principally of interest to moralists and to those who must take on the study of very complex situations. Regarding reflexive knowledge, the theory of the judgment of action presupposes the direct exercise of the practical reason, which with the help of grace and of the Christian virtues manages to identify for each problem its congruent solution. Nonetheless, it is good to remember that

an adequate understanding of the specific moral case the doctrine concerning the sources of morality which were studied in Chapter VI should be kept in mind.

> We shall take up again an example already proposed in that chapter. It could happen that a married woman is directed, as the only possible therapy for a disease, to consume a medicine that could cause as a collateral effect temporary infertility. Reading the package leaflet, the woman understands that it is an anovulatory pill, and thinks that consuming it is morally illicit, since contraception is an action that no circumstance can render legitimate. In this case, it is clear that the woman does not know the moral specifics of "contraception" well. Contraception is "any action which either before, at the moment of, or after sexual intercourse, is specifically intended to prevent procreation—whether as an end or as a means."[77] This definition permits us to understand as morally licit "the use of those therapeutic means necessary to cure bodily diseases, even if a foreseeable impediment to procreation should result there from—provided such impediment is not directly intended for any motive whatsoever,"[78] and this is so not because an exception is admitted, but simply because the judged action is not proposed, neither as an end or as a means, to impede procreation, and therefore it does not enter into the moral specifics of the act of "contraception."

10.4.2 Moral Conscience, Norms of Behavior, Exceptions

The application of norms of behavior on the part of personal moral conscience must take into account the distinction between "legal norms" and "moral norms".[79] Both have moral importance, but their relationship with action and their type of obligatoriness is completely different.

We call "legal norms" those rules of behavior that are constituted of the moral licitness or illicitness—or at least juridical licitness or illicitness—of actions in order to promote or defend a good or an advantageous state of affairs. Examples of "legal norms" are some civil and ecclesiastical laws, as well as some norms established by moral science that do not have their own positivity or negativity independently of such norms: the necessity of safeguarding important personal and social goods justifies a set of rules, according to which actions which do not possess an intrinsic moral value become good or evil. As we explained in Chapter IX, even positive human norms oblige in conscience, but they are norms that generally leave open the possibility of exceptions

this part of moral theology is, after all, of secondary importance.

[77] Paul VI, Enc. *Humanae Vitae*, 25-VII-1968, no. 14.

[78] *Ibid.*, no. 15.

[79] We take this distinction from M. Rhonheimer, *The Perspective of Morality* (2011), 328–336.

or corrections according to epikeia,[80] so long as one finds herself in concrete situations in which the observance of such a norm is not necessary or would even be harmful.[81]

> A good example would be traffic laws. The orderly movement of automobiles, necessary for defending the good constituted by the mobility and safety of citizens, compels the latter, for example, to keep to the right side of the road and to stop before a red light, and to avoid the contrary. But there can be exceptions and also epikeia: on a Sunday in August in Rome, when the city is deserted, it is not a moral fault to not wait at a red light, if visibility is good and there is complete certainty that there exists no danger to oneself or others; in the same conditions it is morally possible to keep to the left side of the road for a few yards in such a way as to avoid an irregularity in the street, etc. All this is possible because there is no intrinsic disorder in these actions, which are good or evil only for their relationship to a rule that is generally functional to obtain an advantageous, or even necessary, state of affairs.

"Moral norms" are, instead, normative statements whose ontological foundation is the ethical positivity or negativity intrinsic to the action that is commanded or prohibited. Serving as examples are the norms that prohibit adultery, abortion, rape, etc. These norms do not make up the moral licitness or illicitness of the action, but, on the contrary, it is the licitness or illicitness of the commanded or prohibited action that establishes the validity of the norm. The moral norm is valid insofar as it truly expresses the real conformity or opposition of a mode of acting with the principles of the reason enlightened by faith, that is to say, with the theological and moral virtues. When a moral norm is observed, we do not limit ourselves to respecting a rule that is generally useful or advantageous for the defense of certain goods, but we rather perform an act of virtue (faith, charity, justice, etc.) or else we omit performing an act that is opposed to it. In a rigorous sense, exceptions are not possible in relation to these norms, because their good or evil is not based in the observance of the norm so as to preserve a value or state of affairs; the good or evil is based in the action itself, which in its intrinsic voluntariness is an act of virtue or an act opposed to it. If in some case it seems that in a properly moral matter an exception should be made, this happens because the action does not in fact fall within the norm (as happened in the former example of the assumption of an anovulatory medicine for truly therapeutic reasons), and in such a case we do not deal with an exception, but a false clas-

[80] We treat of epikeia in subsection d.

[81] It is to be kept in mind what was said regarding the obligatoriness of the civil law (Chapter IX, subsection 9.1.4): it obliges conscience, but its moral obligation is in direct relation with the value and importance of the social goods protected by the norm. In other words, the moral obligatoriness is not a dimension of the juridical norm considered in an isolated way, but is an effect of human responsibility in relation to the social reality.

sification or a defective understanding of the moral category. In the properly moral ambit, the concept of an exception should be abandoned, because it—if understood properly and rigorously—would imply admitting that from time to time "a little injustice", "a little violence", or "a little unchastity" would be morally acceptable, and therefore congruent with following Christ: something which obviously cannot be admitted.

We still need to distinguish between "positive moral norms", or norms which command to do something (honor your father and mother), and "negative moral norms", or norms which prohibit one from doing something (do not commit adultery). We affirm that *negative moral norms oblige semper et pro semper*, in every possible circumstance or situation, because such a choice of behavior prohibited by them "is in no case compatible with the goodness of the will of the acting person, with his vocation to life with God and to communion with his neighbour."[82] *Postive norms,* on the other hand, *oblige semper sed non pro semper*, in the sense that, while conserving their substantial validity, it is not always possible to carry out commanded positive works. "What must be done in any given situation depends on the circumstances, not all of which can be foreseen [result of coercion or other circumstances, can be hindered from doing certain good actions; but he can never be hindered from not doing certain actions, especially if he is prepared to die rather than to do evil."[83]

What has been said allows us to understand that the application of moral knowledge in order to formulate a judgment of conscience requires an active and attentive understanding of the nature, foundation, and meaning of diverse normative statements.

10.4.3 Moral Conscience and the Situation

The judgment of conscience also requires the right understanding and valuation of the situation. The concept of a moral situation was sometimes interpreted and utilized as an expedient for relativizing the absolute validity of "negative moral norms", and therefore to negate the existence of intrinsically evil actions. While containing some positive instances, the *Situational Ethics* which ensued created some important doctrinal problems, which motivated diverse interventions on the part of the ecclesiastical magisterium.[84] However,

[82] *Veritatis Splendor*, 52.

[83] *Ibid.*

[84] Cf. Pius XII, Addresses *of March* 23 and April 18, 1952: AAS 44 (1952) 270–278 & 413–419; Congregation of the Holy Office, Istr. *Contra Doctrinam*, 2-II-1956: DS 3918–3921. For the sake of brevity, we shall not be able to address the epistemological and theological problems of a Situation Ethics. It reflects some foundational limitations of an ethics of obligation, which it seeks to overcome by moving the axis of the balance toward the singular act. A right conception of prudence allows for greater satisfaction of the demands of the unrepeatable singularity of the moral subject while still not relativizing the constitutive

the situation of the moral subject can and must be interpreted positively. It expresses the embodiment, vocation, and sociality of the human moral subject which, far from being a limitation, opens the personal path of each person toward the one truth and one Lord.

There is no doubt that the state of life (single, married, priest, etc), the profession (doctor, judge, soldier) and other characteristics of the person are sources of particular duties and rights. The diverse ethical demands are structured, in practice, like the different levels of a house. The higher levels are added to the lower levels and to the foundation, while the latter sustain the former. Particular duties linked to civil, professional, etc., states presuppose the ethical demands common to the human and Christian conditions. These conditions can sometimes acquire some specific modes (charity, for example, has some specific demands for a doctor, for a priest, etc.), but they cannot be annulled or relativized in their substance by the particular condition of a concrete person.

It should also be noted that *every true moral demand is potentially universal;* this means that such a demand is incumbent upon whoever finds himself in that concrete situation. If a person were to find herself in a situation so exceptional as to truly be the only of its kind in the world, it would still be true that the valid ethical demands for her would be equally valid for any other person who found herself in an identical situation. The quality of being purely unique itself does not change the fact that the ethical demands pertaining to the situation are potentially universal.

10.4.4 The Virtue of Epikeia

The Catholic theological-moral tradition has conceded ample space to epikeia, which perfects moral judgment, allowing for the achievement of truth even in exceptional situations. The study of the classical sources does not leave any doubt regarding the fact that *epikeia was seen, in all respects and in the strictest sense, as a moral virtue,*[85] that is to say, as a quality pertaining to the perfected moral formation of man. This means that epikeia is the principle of choices which are not only good, but truly excellent and optimal: for Aristotle "the equitable (*epieikés*) is just, even better than a certain type of just";[86] for Saint Albert the Great epikeia is "superiustitia".[87] It is not,

principles of the moral reason.

[85] Cf. *S.Th.* II-II, q. 120, a. 1. For a detailed analysis of the classical sources, and of modern proposals we refer the reader to A. Rodríguez Luño, "La virtù dell'epicheia. Teoria, storia e applicazione," *Acta Philosophica* 6 (1997) 197–236 & 7 (1998) 65–88 (with bibliography).

[86] *Nicomachean Ethics*, V, 10: 1137 b 24, our translation.

[87] Cf. Albert the Great, *Super Ethica Commentum et Quaestiones*: *Opera Omnia*, Compiled by W. Kübel, (Münster: 1968–1972), vol. XIV, pars I, 384.

therefore, something worse, a "discount" that should be tolerated. The original placement of epikeia was in the area of behaviors regulated by the civil law, to which the scholastics added behaviors regulated by canon law; in any case, it pertains to perfectible human laws (we called them "legal norms" before). Faithfully adopting the thought of Aristotle and Saint Thomas, Cajetan synthetically explains the nature of epikeia with the following words: "*Directio legis ubi deficit propter universale*",[88] a correction of the law where it is defective on account of its universality. The person who is well-formed morally not only knows which behaviors are commanded or prohibited, but understands also why they are so. However, as the law speaks in universal terms, something may happen that, in spite of appearances, does not pertain to the universal norm, and the virtuous person recognizes this, for she understands that in such a case the literal observance of the law would give place to a behavior that is harmful to justice and the common good, which are the supreme inspiring principles of each law and legislator. It then becomes a duty, where the human legislator has overlooked some circumstance and missed the mark—for the sake of speaking in general terms—to correct the application of the law and to consider prescribed what the legislator himself would say if he were present and would have included in the law if he could have known the case in question (surely, we are assuming that the legislator is seeking the common good with the legislation). And all this is done not because one cannot do better, but because otherwise it would be an unjust behavior and injurious to the common good. Epikeia is not something that can be benevolently invoked, and it has nothing to do with the principle of tolerance, rather, when it is applicable it becomes a rule to follow necessarily.[89]

All are in agreement (from Saint Thomas to Saint Alphonsus) that a law should not be observed when, for a particular case, it is defective *aliquo modo contrarie* and not merely *negative*. That is to say, the law should not be literally observed if its observance gives rise to a behavior that is in some way contrary to justice or the common good; epikeia cannot be invoked, on the other hand, only because the *ratio legis* does not seem to be particularly pertinent or pressing in a concrete case (a simply negative cessation of the *ratio*

[88] Cajetan, *Commentario alla "Summa Theologiae"*, cit., II-II, q. 120, a. 1.

[89] Saint Thomas even retains that justice is predicated *per prius* of epikeia, and *per posterius* of legal justice, since the latter is directed by the former; in fact—he adds–, epikeia is "a higher rule of human actions" (*S.Th.* II-II, q. 120, a. 2). This obviously does not mean that epikeia stands above all good and evil, but simply that when the common criteria of judgment are not present on account of the prior mentioned reasons, the act to perform must be identified by a directive judgment, called by Saint Thomas "*gnome*", which must be directly inspired by higher principles ("*altiora principia*"): the same "*ratio iustitiae*" and the common good, skipping the mediation of the precept that here and now is defective. Epikeia is a "higher rule" insofar as one must directly appeal to moral principles of a higher level in order judge of exceptional cases.

legis). In this regard, Saint Thomas retains that when the literal compliance with the law is damaging to the common good, if the peril is not immanent, recourse should be made to the legislator.[90] In more concrete terms, when can one consider that a law is defective *aliquo modo contrarie*? On the exact meaning of *aliquo modo* there is not a complete agreement. For Saint Thomas and for Cajetan there needs to be a true and proper opposition in the observance of the law to justice or the common good. For Suárez such an opinion is "*nimis rigida et limitata*".[91]He retains that a human law comes to be *aliquo modo contrarie* also in the three following hypotheses: 1) when complying with it, while not being unjust, is very difficult and burdensome: for example, if it implies a serious risk to one's life; 2) when it is certain that the human legislator, while being able to oblige also in such a case, did not and does not have the intention of doing so; 3) when the observance of the law, even if it would not be in any way injurious to the common good, would be detrimental to the good of the person in question, provided that—Suárez clarifies—"the damage is severe and *no demand of the common good forces one to cause or permit such damage."* Suárez clarifies, moreover, that neither irritating laws nor the divine-positive law can be corrected by epikeia.

We come now to the problem of the natural moral law, that is, to the possibility of correcting with epikeia also "moral norms" and not only "legal norms". Cajetan, the Carmelite theologians of Salamanca, and Saint Alphonsus responded yes; Suárez, on the other hand, responded no. But if studied accurately it is seen that the first and the second sustain in reality a substantially identical thesis, that the precepts of the natural moral law as such cannot be corrected by epikeia in any way. It must therefore be concluded, despite some recent interpretations to the contrary, that epikeia cannot be invoked to deny the universal value of "negative moral norms". Such interpretations not only do not find a basis in the adopted classical texts, but they transfer epikeia from its original context (an ethics of virtue) to a problem of contemporary normativistic ethics that is completely extraneous to it. Epikeia finds itself in the context of the prudent identification of the desired end made possible by a virtuous habit. When an ethical demand, which is originally a demand of

[90] This observation demonstrates that a problem lively felt by the contemporary juridical and political conscience does not evade Saint Thomas. If each person feels himself authorized to evaluate the legal provisions in the light of his own idea of the common good and on the exclusive basis of his own circumstances, this would not only finish by arriving at arbitrariness, but to the dissolution of the entire legal system, both civil and ecclesiastical. The sort of judgment whereby each citizen could make appeal to his own specific situation would threaten, like the sword of Damocles, all legal certainty, and societal coexistence would become a little less than impossible.

[91] For the analytical study of the texts of Suárez, Cajetan, the Carmelite theologians of Salamanca who were authors of the *Cursus Theologicus* (the "Salmanticenses"), and of Saint Alphonsus, to which we have made reference, cf. A. Rodríguez Luño, *La virtù dell'epicheia. Teoria, storia e applicazione* (1997).

virtue, comes to be expressed through a human linguistic-normative formulation, which in its generality cannot foresee the exceptional circumstances in which the agent comes to find himself, epikeia permits of a perfect conformity of the concrete behavior with the *ratio virtutis*. For example, a loan should be restituted insofar as restituting it is an act of the virtue of justice. In exceptional cases in which restituting a loan is no longer an act of justice (to return a weapon to a person who manifests the will to commit a crime), where in fact to restitute it would be an act contrary to justice, the virtue of epikeia allows one to arrive at a prudential judgment that here and now she should not restitute the lent item. The just person (who possesses the virtue of justice) cannot but recognize this. Epikeia is necessary precisely because—whatever a literal reading of the normative statement would be—justice and the other ethical virtues do not admit of exceptions.

10.4.5 Conscience and Moral Obligation

Up until now we have spoken little of the meaning of moral duty. While in the philosophical and theological ethics of obligation it is an ethical concept of extreme importance (one thinks of Kant), in an ethics of virtue it plays an important role, but nonetheless a derivative one.[92] For a philosophical ethics of virtue, the moral rule of virtue is a duty, and the same must be said in theological ethics for what regards the rule of the Christian, theological, and moral virtues. However, *duty does not constitute the only, nor the principal, motivation in ethics:* which is instead the role of Charity; neither does it necessarily presuppose the existence of a contrary inclination: rather, duty orients itself in the same line as the person's sensible and spiritual inclinations, as well as that of the dynamism of the grace of the Holy Spirit.

For theology, moral obligation contains a reference to the divine call to holiness, and for this reason it is something more than a sense of duty. Moral conscience is the privileged seat where the theonomous character of moral obligation comes to be perceived in a clear and reflected way. The moral rule of the virtues "is a duty insofar as it has for its normative end God who is the perfect Good; it is also obliging, inasmuch as it is a rule that is in us, while coming from God: through it God makes us aware of the obliging moral order, and for this reason our will is obliged with respect to His will. If a moral rule were only a rule and not also a law, the moral fault would only be a culpable error, the failure of achieving the true end, but not also the violation of an obligation. Instead, we have the awareness that in violating the moral rule we violate an obligation. In Christian thought this awareness that the moral

[92] A comprehensive study of the relationship between virtue and duty, and of the pertinent literature, was achieved by G. Abbà, *Felicità, vita buona e virtù* (1995) To this work we direct the reader who wishes to find a deeper study of this topic.

rule is also an obliging law that comes from God takes the name of moral conscience."[93]

10.5 Modes of Moral Conscience

10.5.1 Classification of the States of Conscience

We can now classify the diverse modes that the judgment of conscience can take on, considering three criteria.[94]

1. *For its relation to judged action* we speak of *antecedent* conscience, which judges of the act that is about to be carried out, commanding it, permitting it, prohibiting it, etc., and of *consequent* conscience, which approves or disapproves an action that is already carried out.

2. By reason of its conformity with the truth, there is a distinction between right or true conscience, which judges with truth the moral quality of an act, and erroneous conscience, which does not reach the truth with regard to the moral quality of an act, esteeming as good an act that in reality is evil or vice versa.

The cause of the error of conscience is ignorance. Ignorance can regard the norm (*ignorantia iuris*), as in the case of the person who does not know that there exists a law which commands that one report to the authorities those who are responsible for certain crimes; or it can regard the fact (*ignorantia facti*), as in the case of the person who does not understand that the action under review is a crime of this type.
In order to evaluate the way in which ignorance can modify moral imputability, it is necessary to distinguish between the diverse kinds of ignorance. *Invincible ignorance* is that which dominates conscience to such a point so as to leave no possibility of recognizing the ignorance and distancing oneself from it. *Vincible ignorance* is that which, considering the circumstances of the agent, can be recognized and removed, but remains because the person does not will to overcome it or because what could be done to overcome it is not done.
Ignorance is invincible: a) when the person does not even suspect that his opinion is wrong and that it, therefore, must be abandoned; b) when, despite reflection, study, and asking questions to prudent and experienced persons regarding a certain problem, one sincerely arrives at an objectively erroneous

[93] G. Abbà, *Felicità, vita buona e virtù* (1995), 253, our translation. The reference of moral conscience to God is emphasized both by the Sacred Scriptures and the teaching of the Church, as we have already explained. This is all very important for the Christian notion of sin, as we shall see in Chapter XI.

[94] We take back up, with some modifications, what was written in A. Rodríguez Luño, *Etica* (1992), nos. 133, 237–244.

solution, even if the person is not at all aware of this. Ignorance is vincible when doubts arise regarding the truth of one's opinion (either out of a certain insecurity of conscience or on account of the contrast between our opinions with those of persons in authority), and, making use of suitable means to discover the truth, one does not act with due diligence on account of laziness, malice, etc. It can also be said that ignorance is invincible in the measure in which it is not caused either directly or indirectly by our own will; and that it is vincible in the measure in which it proceeds from one or diverse acts of the will: to not have willed to understand a certain question, perpetual disregard for the moral aspects of one's professional work, closing oneself to ethical demands, etc.

Invincible ignorance eliminates freedom and the moral imputability of action in the same measure in which this ignorance is extended: it is, therefore, inculpable (whoever shoots at a person whom he did not recognize as his own father is culpable of homicide, but not patricide). The action caused by this type of ignorance is non-voluntary or even involuntary.[95] *Vincible ignorance, however, does not take away the freedom or moral imputability of the action* (in the end, the person does not will the action because he is ignorant, he is ignorant because he wills to be so), *even if at times it can reduce it*; consequently it is culpable, because it presupposes a voluntary moral disorder, at least through negligence. It needs to be evaluated whether this ignorance presupposes in the person a grave or a slight fault, if it responds to an expressed will to ignorance in order to satisfy one's own desires without obstacles (crass or supine ignorance), or if it responds to a negligence that, without taking it away, reduces moral responsibility (simply vincible ignorance).

3) According to the kind of assent, that is, *according to the level of certainty whereby the judgment is made*, one speaks of *certain conscience,* if it judges with certitude that an act is good or evil; of *probable conscience*, if the judgment is not so certain so as to exclude the opposite possibility; and of *dubious conscience,* if one does not know which side to take, and therefore is not able to make a judgment.[96]

10.5.2 Principles for Following One's Conscience

1. *Only certain conscience is a moral rule* and must be followed. Whoever acts against it certainly performs evil, for he contradicts a known moral demand. It is not decisive in this regard that the conscience is true or

[95] Cf. Chapter VI, subsection 6.6.3.

[96] Because doubtful conscience is a *suspension* of judgment, diverse authors do not use such a term in their classification: they call doubtful what we have indicated as probable, and they denominate as probable the conscience that judges with fear of making a mistake, but esteems its own judgment as more probable than not.

false: whoever wills an action judged with certitude as evil, even if it is objectively good, wills what he sees with certitude as evil, and formally commits sin.

2. *Beyond certitude, the conscience must be true or invincibly erroneous in order to be a rule of morality.* In a strict sense, only true conscience is such a rule. Nonetheless, imperfection and human fallibility render it possible that in certain cases man, while exercising due diligence, may without fault esteem as right a conscience that is in reality erroneous. For this reason, even an invincibly erroneous yet certain conscience must be followed. Such a conscience, however, is not a rule in an absolute way, for it obliges only as long as the error remains; furthermore, it obliges *per accidens,* not for itself, inasmuch as it must be followed in the measure in which man invincibly retains it as true. Moreover, as we said before,[97] invincible subjective error, while not being morally imputable, is nonetheless harmful and cannot in any case be a substitute for the truth. The fallibility of human conscience underlines that its formation is one of the most important and urgent moral tasks of the human person.

3. *The vincibly erroneous conscience is not a moral norm.* It is not licit to follow it, for the action consequent to a culpable error is culpable in cause, that is, in the same measure in which the error that precedes it is culpable. One cannot, however, act against it, for that would be what here and now appears as evil. There is, then, an obligation to escape from error before acting. It may then be kept in mind that whoever finds himself in vincible error does not have a certain conscience: perhaps such a person does not recognize the right solution to the problem, nevertheless he understands that what he thinks is something that is not certain, that he must do further research or continue seeking the right solution, etc.

4. *It is not licit to act with a probable conscience.* Whoever acts with a positive uncertainty (grounded on reasons and serious suspicions) regarding the evil of an act, voluntarily exposes himself to do evil, and for this reason this person must confirm his judgment of conscience (reach certain conscience) before passing on to action.

5. *Neither can a doubtful* conscience, which suspends judgment, *be a moral* rule; to be so the conscience must judge with certainty. The same principles should be applied to doubtful conscience as were applied to a probable one.

[97] Cf. subsection 10.2.2.

10.6 Conscience and Holiness

The analysis we have done regarding the notion of conscience has brought to light, in the first place, that it can be identified with the most profound and basic nucleus of the person: it is his heart, the intimate sanctuary where man hears the voice of God; in this sense conscience occupies an important role in the moral life and in the path of identification with Christ.[98] A further examination of the concept of conscience has led to identifying it with the judgment of the practical reason concerning the moral act, which is configured as the ultimate subjective norm regarding moral good and evil; such a meaning would seem to devalue the importance of conscience in Christian life, and it seems to reduce it to the simple ascertainment of the practical truth. This apparent dichotomy is, nevertheless, that proper to a normativistic moral viewpoint that, willingly or not, leads to the contraposition between law/truth and the conscience.[99] In a "first person" morality there is no space for such a dichotomy, it is the person herself in all her truth who performs the judgment of conscience:[100] it is founded on the person and reaches her concrete situation.

In this regard, conscience constitutes and institutes the "personalization" of moral action and renders possible to the human person his own realization, in its unrepeatable singularity and situation congruently with his profound truth as man and as Christian.[101] Therefore, this conception does not reduce the moral value of conscience, but rather situates it in its proper role in the structure of Christian life: carrying out the judgment of conscience, with the help of moral knowledge and of personal dispositions, man in his integrity is found in dialogue with God; and this voice of the Lord, which resounds in his intimate center, indicates to him how he must act, here and now, for the end of identifying himself with Christ. In other words, the purpose of conscience is not simply that of achieving a practical judgment (to know the moral truth), but that of facilitating through such a judgment (made in dialogue with God) the achievement of the human good, the perfection of the person as such. Through conscience, man finds himself capable of knowing in each concrete situation what facilitates his life in Christ and what opposes it; since to follow the voice of conscience is the sure path—in a certain sense, the only path—for

[98] Conscience is a "sort of moral sense which leads us to discern what is good and what is evil an inner eye, a visual capacity of the spirit, able to guide our steps along the path of good" (*Reconciliatio et Paenitentia*, 26).

[99] See subsection 10.3.1.

[100] The full truth about the person has as a foundation and principal component her full relationship with God, although it includes (in a secondary and derivative way) all the set of relationships and qualities that determine the truth of this person, here and now.

[101] Cf. C. Caffarra, *Viventi in Cristo* (1986), 97.

increasing in holiness:[102] moral holiness is developed when the judgment of choice coincides with the judgment of conscience, and sin is nothing other than the disagreement between these two judgments.

The judgment of conscience could be summarized as such: man dialogues with God, in the intimate center of his being, in order to discern the congruence of a concrete action with life in Christ. Such a succinct statement includes very diverse and complex situations. It may involve a bygone act and, in this case, the dialogue approves of it, or perhaps it contests it while at the same time motivating the person to rectify it. It can be a very simple act (to do a small service) and thus the dialogue is brief, almost inexistent.[103] In certain circumstances, before situations of great personal relevance (recognizing one's own vocation, etc.), the dialogue must be more reflective. In any case, the conscience requires a sincere dialogue with the Lord in order to discover, here and now, what He expects from each of us: for this reason conscience calls for a life of prayer, in which "His gaze purifies our heart; the light of the countenance of Jesus illumines the eyes of our heart and teaches us to see everything in the light of his truth [...]. Thus it learns the 'interior knowledge of our Lord,' the more to love him and follow him."[104]

The moral importance of conscience is thus clear, the need of duly forming it and the right of not being forced to act against it. Through conscience, the person constructs—in dialogue with God—the path of his personal vocation, of his own and unique way of living in Christ: the universal call to holiness receives its personal specification from moral conscience.[105] Conscience elicits "in man a sense of responsibility and personality, the awareness of existential principles and their logical development. This logical development in the Christian, that evokes his own baptismal character, generates the fundamental concepts of the theology of man, who knows himself and feels himself to be a child of God, a member of Christ, incorporated into the Church, bestowed with the common priesthood of the faithful, whose fecund doctrine the Council recalled and whereby the Christian's effort for holiness is born, toward the fullness of the Christian life, to the perfection of charity."[106] Consequently, it should not be forgotten that the judgment of conscience, as an echo of the

[102] "Moral conscience does not close man within an insurmountable and impenetrable solitude, but opens him to the call, to the voice of God. In this, and not in anything else, lies the entire mystery and the dignity of the moral conscience: in being the place, the sacred place where God speaks to man" (John Paul II, *Address* 17-VIII-1983, n. 2: *Insegnamenti,* VI-2, 1983, 256). This passage is also cited by *Veritatis Splendor*, 58.

[103] Among persons who love each other, the small deed of one is easily interpretable on the part of another. If a person has an intimate relationship with God, he does need to think for long in order to discern His will.

[104] *CCC*, 2715.

[105] Cf. C. Caffarra, *Viventi in Cristo* (1986), 105.

[106] Paul VI, *Address* 26-IX-1970: *Insegnamenti,* VIII (1970) 937.

voice of God, is always a call to holiness, which demands an authentic docility to the movements the Holy Spirit elicits in each person.
What has been said can be summarized in two maxims: "Never make a decision without stopping to consider the matter in the presence of God." "Seek God within you and listen to him."[107]

[107] Saint Josemaría Escrivá, *The Way*, 36th ed., (Milan: Ares, 1993), 266 and 319.

Chapter 11

Sin and Conversion

The themes studied up to this moment have given us the ability to understand that voluntary action can be morally good or evil, and that such a character depends upon the object, end, and circumstances seen in their relation to the theological and moral virtues: the latter constituting the moral rules of Christian life.[1] Nevertheless, the theological study of sin continues to be necessary because *sin is something more than an ethically negative action.*[2] Sin is the negative response of man to the gift and call of the love of God, which then reveals itself as an unrequited, betrayed, and offended love. As a "no" of the human child to the divine Father, sin is the *mysterium iniquitatis* without which salvation history would not have been what it was. It can be well understood that a reflection on sin is an essential part of Christian doctrine and moral theology, and that it is only with the understanding that comes with faith that the nature of sin can be fully grasped.[3]

[1] Cf. Chapter VI, section 6.4, Chapter VII and above-all Chapter VIII, sections 8.2 & 8.4.

[2] On the concept of sin, always useful is the lecture of Th. Deman, *Péché*: DTC, XII, 140–275 & of P. Palazzini (ed.), *Il peccato* (1959) Furthermore, see: "La Scuola Cattolica" 106 (1978) nos. 3–4 (a monographic issue on "Peccato e peccati nel Nuovo Testamento"); "Annales theologici" 2 (1988), with the following articles: M.A. Tabet, "La distinzione dei peccati secondo la loro gravità nell'insegnamento di Gesù", 3–34, J. Schumacher, "L'uomo tra peccato e redenzione", 35–52, D. Tettamanzi, "La responsabilità personale e le dimensioni sociali del peccato", 53–81 & L. Scheffczyk, "Colpa e riconciliazione nell'orizzonte umano e cristiano", 343–356; A. Günthör, *Chiamata e risposta* (1982)., vol. I, nos. 687–821; R. García de Haro, *La vita cristiana* (1995), 515–609; D. Tettamanzi, *Verità e Libertà* (1993), Chs. XI-XIII; A. Fernández, *Teología Moral. I* (1995), 747–834.

[3] Cf. *Reconciliatio et Paenitentia*, 18.

11.1 Sin and Conversion in the Sacred Scriptures

11.1.1 Old Testament

The notion of sin, along with all the moral thought of the Old Testament, is comprehensible after recognizing the free and gratuitous nature of God's salvific plan. Humankind originally found itself in a state of justice and divine friendship, from which the first parents excluded themselves with the first sin.[4]

> The nature and background of this sin are illuminated well by Barthélemy: Man, "having doubted the goodness of the Father, then sealed that doubt with a deed which confirmed it like a seal at the bottom of an official act. When man performed this deed of eating the fruit, this meant: At its root, I recognized that God is the One who wants to hold me in subjection, and that I must free myself from Him at all costs in order to be a god myself. Eating the fruit implied this interpretation of God's motives. With this deed, the climate of confidence was broken, the climate of filial abandonment into the hands of the Father, he whose love would be our only treasure. Having broken all of this, man knows he broke from the source of life. In fact, a person cannot receive from God a continually renewed life if he does not face Him and become open to Him with all of his being. Now, man, wishing to become a god, deprived himself above all of that relationship of total and confident openness which alone would have ensured him life."[5]

After the first disobedience, sin rose up in the heart of man as a pervasive and destructive power,[6] to the point that "when the LORD saw how great was man's wickedness on earth, and how no desire that his heart conceived was ever anything but evil, he regretted that he had made man on the earth, and his heart was grieved."[7]

However, the Lord did not abandon His plan of salvation and chose the people of Israel to implement it. The Covenant became, then, the new indicator of humanity's fidelity or infidelity.[8] The Lord established a Covenant with Israel, and non-compliance with such a pact was not merely considered a legal shortcoming: *since it was not so much opposition to a norm, as to God Himself.*[9] For with sin man refuses the love offered to him by his Creator and becomes closed in himself, disrupting the familial relationship that God established with him. The prophetic literature makes clear this fact that sin

[4] Cf. *Gen* 3:1–13; see also the study of J.-D. Barthélemy, *Dio e la sua immagine* (1980), 66ff.

[5] J.-D. Barthélemy, *Dio e la sua immagine* (1980), 77.

[6] Cf. *Gen* 4:8, 23–24; 6:11–12; *Jer* 26:3.

[7] *Gen* 6:5–6.

[8] Cf. *Deut* 4:23–31; *Josh* 7:11; *Judg* 2:1–3; *Jer* 11:1–8; etc.

[9] Cf. *Hos* 8:1–2.

is an act of infidelity to divine love: referring to it as an act of adultery.[10] In a derivative way it is also a rupture with the people, insofar as it is an offense against the divine plans concerning it; and for this reason, even injustices against one's neighbor are truly offenses against God.[11]

11.1.2 Synoptic Gospels

The person of Jesus and His message are the New Covenant's point of reference.[12] He makes evident that *sin carries with it a distancing of oneself from God and the will to find one's happiness elsewhere, something which in fact leads to the most abject misery;*[13] and thus he brings to light the interior nature of sin, bypassing the exterior formalism of many of his contemporaries. The Incarnation was designed for the salvation of men, and so an essential part of Christ's mission is to liberate from sin;[14] therefore, the Lord does not reject proximity to sinners, in fact He came precisely to call them, receive them with mercy, and to forgive them.[15] Man, on his part, is asked to have a penitent attitude and not one of self-forgiveness.[16]

The Gospels show as well that there does not exist merely one kind of fault. Rather, Jesus renounces a grand variety of sins: hypocrisy, vainglory, injustice, homicide, adultery, covetousness and pride;[17] nonetheless, it is emphasized that sin is not so much the mere external action, as the perverse interior attitude of the will that is its origin.[18] Such a disordered attitude, nonetheless, does not always have the same gravity: sins which are forgiven with prayer are less serious than blasphemy against the Holy Spirit or the scandalizing of the youth.[19] This distinction, already mentioned in the Old Testament,[20] is also found in the Apostolic Letters.[21]

11.1.3 Pauline Corpus

The Pauline writings are permeated with the doctrine of sin, inserted into the salvific perspective of Christ the Redeemer. Since we have already discussed

[10] Cf. *Isa* 1:2–4; *Jer* 3:1–5; *Ezek* 16:38.
[11] Cf. *Lev* 5:21–26; *Deut* 25:13–16; *Mic* 6:9–13.
[12] Cf. *Mt* 7:21–23; *Lk* 6:46.
[13] For example, in the parable of the prodigal son: *Lk* 15:11–32.
[14] Cf. *Mt* 1:21.
[15] Cf. *Mk* 2:5,16–17; *Lk* 7:48; 15.
[16] Cf. *Lk* 18:9–14.
[17] Cf. *Mt* 23:1–36; *Mk* 7:21–23; *Lk* 20:46–47.
[18] Cf. *Mt* 15:18–19.
[19] Cf. *Lk* 11:4; 12:10; 17:2.
[20] Cf. *Ex* 21:12–14; *Num* 15:29–30; *Deut* 19:4,11–12.
[21] In reference to an incestuous relationship, Saint Paul indicates that it is "immorality of a kind not found even among pagans" (*1 Cor* 5:1); and Saint John speaks of sins which lead to death and of sins which do not lead to death (cf. *1 Jn* 5:16–17).

the typically Pauline conception of sin,[22] we now have the opportunity to be concise as we move forward. Characteristic of Saint Paul is the use of the term sin (*hamartía*) in the singular, as a personified power that operates in man and through him.[23] The evil of men made it possible that sin could have a universal scope and could reign over the entire world, however, this does not excuse the sin of each individual, whether he be Gentile or Jew.[24] The universality of sin springs forth from the disobedience of Adam: "Just as through one person sin entered the world, and through sin, death, and thus death came to all, inasmuch as all sinned."[25] Thus, sin and death are the destiny of those alienated from Christ.

Jesus, in order to destroy the dominion of sin and to liberate men from the "law", defeated sin on the Cross in order that righteousness would be fulfilled in us.[26] In such a way the new life of Christians, sharing in the resurrection of Christ, began.[27] Such a life is applied to persons through Baptism, wherein man dies with Christ to sin and is reborn to a new life in such a real way that we can truly speak of a "new creation".[28] The "new creation", however, is not fully free from the *fomes peccati*[29] and will be, so long as one finds himself in this world, in danger inasmuch as one can still distance himself from God again. For this reason, the Apostle continually exhorts an ascetic commitment in order to resist the pitfalls of sin.[30]

In light of the redeeming work, sin represents the "non-acceptance" of Christ, that is, "non-faith".[31] This does not mean that there exists a single sin, since Saint Paul explicitly affirms the contrary when he lists off the vices which exclude man from the Kingdom of God.[32] What he means to say is that the more profound reality of sin, of any sin, consists in the non-acceptance of the salvific action of God in Christ and, for believers, it consists in the distancing of oneself from Christ in order to follow the works of the flesh.[33] Whoever sins re-crucifies the Lord.[34] In the last analysis, *for Saint Paul sin is the non-acceptance or distancing of oneself from the merciful God who came to meet us in Christ.*

[22] Cf. Chapter IV, subsection 4.3.2.
[23] Cf. for example *Rom* 5:12,21; 6:16–17; 7:9ff.
[24] Cf. *Rom* 2:9; 3:9–10; 11:32.
[25] *Rom* 5:12.
[26] Cf. *Rom* 8:2–4; *Gal* 3:13–14.
[27] Cf. *Rom* 6:8–14.
[28] Cf. *Rom* 6:3–7; *2 Cor* 5:17; *Gal* 6:15.
[29] Cf. *Rom* 7:7–25.
[30] Cf. *Rom* 6:12–19; *Eph* 6:11; *1 Thess* 5:4–11.
[31] Cf. *Gal* 2:15–16; *2 Thess* 1:8–10; 2:12; *1 Tim* 1:15–16; *2 Tim* 3:8–10,15.
[32] Cf. *Rom* 1:29–31; 13:13; *1 Cor* 5:10–11; 6:9–10; *2 Cor* 12:20–21; *Gal* 5:19–21; *Eph* 4:31; 5:3–5; *Col* 3:5–9; *1 Tim* 1:9–10; 6:4–5; *2 Tim* 3:2–5; *Titus* 1:6–7,10–11; 3:3.
[33] Cf. *Rom* 8:7.
[34] Cf. *Heb* 6:6.

11.1.4 Johannine Corpus

The use of the term sin in the singular is also characteristic of John. There exists a quintessential sin: the refusal to accept Christ as light, Truth, etc.[35] God sent His Son not to judge the world, but to save it: Jesus is the Good Shepherd who offers His life for His sheep, who receives sinners and forgives them, while asking them to sin no more, to reject evil works, to believe in the Son, and to walk in the truth.[36] Therefore the failure to recognize Christ as Savior, unbelief, is presented as the sin for which the Spirit will reprove the world, and Jesus continuously forewarns of this danger.[37] In the first letter of John, sin is seen as opposition to love. This letter is marked throughout by the tension between being generated by God, and therefore being free from sin, and the possibility and reality of committing sin, something that if recognized will be remitted by Christ.[38] Moreover, this letter speaks of sin that leads to death, making reference to apostasy and idolatry.[39]

11.1.5 The Remission of Sins

The Revelation of sin is not limited to showing the reality and evil of it, but also highlights the superabundant mercy of the Lord: "Where sin increased, grace overflowed all the more, so that, as sin reigned in death, grace also might reign through justification for eternal life through Jesus Christ our Lord."[40] In this way, sin is a reality that can and must be overcome and conquered, since Christ died so that men might not live according to the flesh: all of this does not come from one's own strength, but from God who, in Christ, forgives men of their faults, that is, if the latter allow themselves to be reconciled with God.[41]

> The formula "remission of sins" is frequent in the New Testament writings: to proclaim it is part of the mission of John the Baptist who shows Jesus to be the Lamb who takes away the sins of the world.[42] It is also the motive for which Jesus made Himself equal in all things to us, which justifies His name and all of his actions up to the culminating moment of the Cross.[43] This forgiveness forms an important part of the mission of the Church[44] and of the *kérygma* of the Apostles;[45] for this reason it

[35] Cf. *Jn* 1:5,10,11; 5:9ff; 6:41ff; 9:13ff; *1 Jn* 2:22–23; 4:2–3; 5:10–12.
[36] Cf. *Jn* 3:17–21; 4:5–42; 5:14; 8:11,24; 10:15; *1 Jn* 1:8–9; *Rev* 1:5.
[37] Cf. *Jn* 3:18–19; 15:22–24; 16:8–9.
[38] Cf. *1 Jn* 1:9.
[39] Cf. *1 Jn* 5:16–17.
[40] *Rom* 5:20–21.
[41] Cf. *2 Cor* 5:15–20.
[42] Cf. *Lk* 1:77; 3:3; *Jn* 1:29.
[43] Cf. *Mt* 1:21; 26:28; *Rom* 8:3; *Heb* 2:17; *1 Jn* 3:5.
[44] Cf. *Lk* 24:47; *Jn* 20:22–23; *Acts* 26:17–18.
[45] Cf. *Acts* 2:37–38; 10:42–43.

is found in the symbols of the faith from the beginning. Man responds to the remission of sins through a conversion that, beyond accepting the grace of Jesus, entails the recognition of one's own faults and the beginning of a new life, a life that is verified in its fruits.[46]

11.2 Principal Moments in the Development of the Ecclesial Doctrine Regarding Sin

Since in the successive paragraphs we must take a deeper look at the diverse aspects of the doctrine of sin, now we shall limit ourselves to offering a synthetic vision of the most significant moments in the formation and exposition of the doctrine of it on the part of the Church Fathers and the ecclesiastical magisterium.

11.2.1 The Fathers

The sacrament of penance is testimony of the knowledge that the Church has always had of sin as enmity with God and a rupture with the ecclesial community. The Apostolic Fathers re-propose the biblical teachings regarding sin, underlining the existence of two ways (that of good and that of evil), composing catalogues of virtues and vices in consonance with the two ways, and openly expressing their conviction that sin constitutes the greatest evil. The Apologetic Fathers insist on the religious peculiarity of sin, in the face of a paganism which conceives it as a simple external action meritorious of punishment; in contrast with Gnosticism they reveal its character as a free personal act, even if being connected with original sin; they propose, moreover, diverse lists of vices and virtues. Finally, Tertullian recalls the sinfulness of internal acts as well, and considers all sin as idolatry and contempt for God.
Saint Augustine elaborates a body of doctrine that in its fundamental features remains with us to this day. Delving further into the teachings of Sacred Scripture and the practice of the Church, and taking account of his own sinful experience and of his battle against the Manichees, Augustine brings to light the psychology of the fault, distinguishing between suggestion, enjoyment, and consent; and affirms that sin comes from a disordered free will when it is deprived of the good and of due moral rectitude.[47] He develops the doctrine of sin as *aversio a Deo* (seperation from God) and *conversio ad creaturas* (disordered tendency toward earthly goods): man is ordained toward the absolute Good, which he reaches also through creatures. When pushed by an inordinate self-love, he seeks satisfaction in finite goods against the will of

[46] Cf. *Mt* 12:33; *Mk* 1:5; *Acts* 19:18; *1 Jn* 1:8–9.
[47] Cf. *De Civitate Dei*, 11, 13–20 & 19, 13, 2: NBA 5/2, 91–103 & 5/3, 51–53.

God, he contradicts the divine law, and separates himself from God;[48] this also has a negative influence on ecclesial and social life.[49] In harmony with the Bible, Augustine joins to the doctrine of sin the trust in the redemption carried out by Jesus, the possibility of receiving forgiveness, and the necessity of personal conversion.

> The patristic legacy lasts throughout the High Middle Ages, a time period that does not register any significant doctrinal or theological development. This is the epoch of the conversion of the barbarian people and of the grand diffusion of private confession. Penitential books were published as catalogues—sometimes quite chaotic—of sins and penances that the confessors must impose for each of them. From the 12th Century on, intellectual activity of great importance resumes—the scholastic renaissance– of which Saint Thomas represents one of the culminating moments of synthesis. In continuity with the Augustinian reflection, Aquinas offered some theological contributions of decisive importance that from that point forward were always in some way present in Catholic theology and in the documents of the ecclesiastical magisterium.

11.2.2 The Council of Trent

The Council of Trent elaborated on the development of the doctrine of sin as a reaction to the protestant doctrine.

> Protestantism points out, in agreement with the Gospel teaching, that the essence of sin consists in opposition to God for the sake of full autonomy; it is born from a lack of trust in the Lord and is reflected in pride, rebellion, and disobedience. This doctrine underlines some central points of Christian harmatology, like the anti-divine character of sin, its gravity, and the heavy influence of sin on the person's moral action and on social life. Nonetheless, in contrast with the Catholic faith, the distinction between original sin and individual actual sins is not very clear in this line of thought: the former would be the corruption of nature that perverts all persons without a possibility of being overcome. This deprivation is then made concrete in the acts of persons as individual sins, and in this specific way it more obviously highlights its character as being subjective and situated in time. Consequently, man would be born and would always remain a sinner: he is not a sinner because he sins, but precisely on account of his "natural" condition as a sinner. And this would also be true for the person in a state of grace, on whom God would simply not impute sin, thanks to the former's trusting faith: he would remain a sinner for the moral quality of his action and, at the same time, righteous on account of the mercy of

[48] Cf. *De Libero Arbitrio*, 2, 19, 52–53: NBA 3/2, 277; *Contra Faustum*, 22, 27: CSEL 25, 621.
[49] Cf. *De Civitate Dei*, 22, 22: NBA 5/3, 379–381.

God due to the merits of Jesus Christ; the person with trusting faith would be *simul peccator et iustus*. It remains to be seen how redeemed man could be truly a "new creation", or in what sense the works of the justified could be called fruits of the Holy Spirit.

The Council of Trent concerned itself with sin primarily on three occasions. In *session V* it expounded the doctrine of original sin. In *session VI*, covering the stages of justification, it reiterated some fundamental points of the Catholic doctrine concerning sin: not only lack of faith, but every mortal sin, deprives one from the grace of Christ; the distinction between mortal and venial sin needs to be maintained; and that sin does not completely destroy human freedom. In *session XIV*, regarding the sacrament of penance, the necessity of confessing each and every mortal sin was pronounced.

11.2.3 The Second Vatican Council

The most recent Council dealt repeatedly with sin, though systematically it principally did so in *Gaudium et Spes*, nos. 13 and 37. Sin has existed in the world since the beginning of history and, as a possibility, always continues to exist; therefore man is prone to evil, and human activities are "constantly imperiled by man's pride and deranged self-love."[50] This is, at the same time, both a fact of experience and a revealed fact: "What divine revelation makes known to us agrees with experience. Examining his heart, man finds that he has inclinations toward evil too, and is engulfed by manifold ills which cannot come from his good Creator."[51] In the face of the secularization of the concept of sin, the Council affirms that sin always stands in opposition to God, and from this opposition arise its other effects: the sinner destroys the due order toward himself, toward other people, and toward the whole of creation.[52]
The last word of the Council regarding sin is not, however, its power, but the announcement of the reconciliation carried out by Jesus: certainly "man finds that by himself he is incapable of battling the assaults of evil successfully, so that everyone feels as though he is bound by chains. But the Lord Himself came to free and strengthen man, renewing him inwardly and casting out that 'prince of this world' (John 12:31) who held him in the bondage of sin."[53] Meanwhile, man must commit himself to the effort against sin, because "all of human life, whether individual or collective, shows itself to be a dramatic struggle between good and evil, between light and darkness."[54]

[50] *Gaudium et Spes*, 37.
[51] *Ibid.*, 13.
[52] Cf. *ibid.*, nos. 13, 15, 16, 17, 37, 39, 40, 58, and 78; *Lumen Gentium*, 11.
[53] *Gaudium et Spes*, 13.
[54] *Ibid.*; cf. *ibid.*, 37.

11.2.4 Other Documents of the Magisterium

The apostolic exhortation *Reconciliatio et Paenitentia*, focuses on three fundamental points: conversion, sin, and the ministry of reconciliation. Here we shall explain, in broad terms, the second part. Man must recognize his own sin not in abstract, but concretely, and evaluate its consequences with the eyes of faith. Sin is the attempt to be powerful without God, if not specifically to be against God; its deepest and darkest essence is disobedience to God and to His law and, consequently, it is also a rupture with one's neighbor. Furthermore, sin, in a true and proper sense, is always an act of the person that, although it can be conditioned, is never determined by external realities. Nonetheless, one can also speak of social sin, in virtue of human solidarity, in three senses: 1) every sin has negative repercussions on the entire ecclesial body and on the whole of humanity; 2) there are certain sins that are more directly opposed to one's neighbor that constitute an offense to God precisely because they offend one's brother or sister; 3) one can speak in an analogous sense of social sin for certain collective situations or behaviors, while knowing that these are the fruit or concentration of many personal sins. With texts of Sacred Scripture and from the living tradition of the Church, the Exhortation recalls of the division of sin into mortal and venial sins and, as a matter of principle, excludes the tripartition of venial, grave, and mortal sins, because between life and death there is no middle way. Similarly to be avoided is the reduction of mortal sin to an act of a fundamental option directly opposing God.[55]

The *Catechism* grants notable attention to the theme of sin, always in relation to the mercy of God, to the redemption executed by Christ, and to the sanctification worked by the Holy Spirit. In fact, sin is spoken of in different sections, concretely when the following are discussed: a) original sin (nos. 385–421); b) faith in Jesus our Redeemer (nos. 422–682); c) faith in the forgiveness of sins (nos. 976–987); d) the sacrament of baptism (nos. 1213–1284) and of confession (nos. 1422–1498); e) sin as an obstacle to the human vocation (nos. 1846–1876); f) the Ten Commandments (nos. 2083–2557): included in this section are sins and vices opposed to each commandment; and g) the final three petitions of the "Our Father" (nos. 2838–2854).

The Encyclical *Veritatis Splendor* also treats of sin, both original and actual. It concretely recalls that only the Gospel can reveal the entire truth about sin: that is, that sin is an offense against God that obscures the human conscience. Furthermore, sins can be avoided with the grace of the Lord, but it is necessary for the person to recognize himself as a sinner and ask divine help.[56]

[55] Remember what was said regarding the Fundamental Option in Chapter VII, subsection 7.1.4.

[56] "The tax collector might possibly have had some justification for the sins he committed,

11.3 The Essence of Sin

11.3.1 Definition

Without any indications to the contrary, what is said subsequently is applied in a proper sense to mortal sin, being that which completely fulfills the *ratio* of sin: see subsection 11.4.1 *The Augustinian definition of sin is traditional in theology: it is "an act, a word, or a desire contrary to the eternal law."*[57] The two aspects of sinful action are highlighted in this definition. The first is that sin is a *human* act, that is, a free act carried out with sufficient advertence and consent: for all that diminishes freedom also diminishes the *ratio* of sin.[58] The second consists in the fact that sin is a human act *contrary to God's law.*[59] In more general terms, it can be affirmed that any human act opposed to the moral law—and therefore also opposed to right reason or to a human, civil, or ecclesiastical law—is a sin. Saint Augustine, in the definition that we are studying, puts it in relation to God's eternal law, that is, the first and supreme moral rule,[60] for two reasons: a) because it is the ultimate foundation of all other laws and therefore virtually contains them all; b) to highlight that, in transgressing any real moral demand, man puts himself in a negative relation with God. If we consider that God's eternal salvific design aims at the holiness of people, that it must be reached through the practice of the theological and moral virtues, we can then also define sin as an *act contrary to the ethical virtues (natural or supernatural), that breaks the communion of man with God in Christ and, consequently, impedes one's definitive arrival at divine filiation.*

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such as to diminish his responsibility. But his prayer does not dwell on such justifications, but rather on his own unworthiness before God's infinite holiness: 'God, be merciful to me a sinner! ' (*Lk* 18:13). The Pharisee, on the other hand, is self-justified, finding some excuse for each of his failings. Here we encounter two different attitudes of the moral conscience of man in every age. The tax collector represents a 'repentant' conscience, fully aware of the frailty of its own nature and seeing in its own failings, whatever their subjective justifications, a confirmation of its need for redemption. The Pharisee represents a 'self-satisfied' conscience, under the illusion that it is able to observe the law without the help of grace and convinced that it does not need mercy" (*Veritatis Splendor*, 104).

[57] Saint Augustine, *Contra Faustum*, 22, 27: CSEL 25, 621; cf. Saint Thomas's comment in *S. Th.* I-II, q. 71, a. 6, and CCC, 1849.

[58] The definition speaks explicitly of an "act", a "word", or a "desire" in order to exclude two possible misunderstandings, that of thinking that sins are only internal acts, or that of retaining that they are only external acts: the sinful act can be internal or external, and it can also consist in an omission.

[59] Cf. *1 Jn* 3:4.

[60] Cf. Chapter VIII, section 8.1.

11.3.2 "Aversio a Deo" and "Conversio ad Creaturas"

At least since Saint Augustine, it has been traditional to distinguish two elements in sin, one formal and another that is quasi material. The element that formally constitutes sin as such is the *aversio a Deo.* The quasi material element of sin is the *conversio ad creaturas.*[61]

The Latin word *aversio* entails separation, detachment, and not properly adversion or hate. It is good to remember this because even if grave sin implies an *aversio a Deo,* not every grave sin carries in the person who commits it an explicit intention of distancing oneself from God. One does not sin out of a will to be opposed to the good or, normally, to trample the Divine law; a person commits sin out of a desire for a finite good not ordered according to the rule of virtue (justice, temperance, etc.). Therefore, sin carries with it a paradoxical and harmful exchange: the sinner wants the limited good that a creature can offer him and, in order to possess it, distances himself from God who is the infinite Good and our true and definitive good, as well as from the source out of which flows the partial goodness that is found in things.[62]

Generally the psychological point of departure of a sinful action is not opposition to God. It happens, rather, that the person is left seduced by a limited good that is contrary to his integral good and, thus, to the divine will, and does not care that to obtain it means opposing a moral rule. Nonetheless, from a theological point of view in agreement with biblical and Christian doctrine concerning sin,[63] the root of it is found in the doubting of God, in not recognizing Him as Lord, Love, and absolute Good. Therefore, *at the base of every sin is discovered a disordered love of self and lack of trust with respect to God, for which man seeks his own satisfaction in the disordered use of earthly goods.* Beyond sinning, man enters into contradiction with his deepest tendency, since "the love of God does not derive from an external discipline, but is found in the very natural constitution of man, as a seed and a force of nature itself."[64]

11.3.3 The Only Real Evil in an Absolute Sense

Every evil is the privation of a good. Evils of a non-moral character (sickness, poverty, etc.) are privations of finite, limited goods. Sin, any mortal

[61] Cf. Saint Augustine, D*e Diversis Quaestionibus ad Simplicianum*, 1, 2, 18: NBA 6/2, 331; *S.Th.* II-II, q. 118, a. 5 & III, q. 86, a. 4.

[62] "Two evils have my people done: they have forsaken me, the source of living waters; They have dug themselves cisterns, broken cisterns, that hold no water" (*Jer* 2:13). Cf. *Gen* 25: 29–34; *Lk* 22:3–6; 23:18; *Rom* 1:25.

[63] Cf. *Deut* 9:22–23; *2 Kigns* 17:14–15; *Jer* 2:5,13; *Eph* 4:17–19; Saint Augustine, *De Libero Arbitrio*, 2, 19, 53: NBA 3/2, 277–279; *Scriptum Super Sententiis*, lib. II, d. 37, q. 2, a. 1, ad 3; *Gaudium et Spes*, 13.

[64] Saint Basil, *Regulae Fusius Tractatae*, Risp. 2, 1: PG 31, 908.

sin, deprives man of the infinite Good, that is, moreover, the complete and definitive good of the human being. It is in this sense that it is affirmed that sin is the only evil in an absolute sense.[65] It needs to be remembered that the dignity of God, offended with sin, is infinite; therefore the damage of sin and the corresponding liability are in a certain sense infinite. The gravity of sin can be observed when one considers the gravity of its punishment (hell), and the seriousness of the Passion of Jesus as a just satisfaction for it.[66]

11.3.4 Why is Sin always a Distancing of Oneself from God?

What has been said allows us to understand that, from the perspective of positive theology, it is an incontestable fact that Sacred Scripture and the doctrine of the Church consider that mortal sin is a distancing of oneself from and rupture with God. However, our current object of investigation does not regard the *what* of sin, but the *why.* Why is every sin a distancing of oneself from God? The problem must be confronted at different levels, and there are at least two things to consider.

In the first place, it must be said that for persons disposed to a good level of moral awareness, the response is not difficult to understand. In our study regarding the natural moral law,[67] we noted that when the moral conscience is fully developed, in connection with the intellectual virtues (knowledge, wisdom) and, in the Christian, with faith, one arrives at an understanding, on the one hand, that the natural moral law is a divine law and, on the other hand and primarily, that its first principle—its most important and "architectonic" principle—is the love of God. The moral virtues then express the modes in which the tendencies, and the exercising and obtainment of human goods must be regulated in order that they be congruent with a will intent on perfection in God both for oneself and for every human person.[68] *The acts opposed to the virtues are objectively incompatible with the tendency of the will toward God, in such a way that to perform such an act and to voluntarily separate oneself from God are truly the same thing.*

[65] Cf. John Paul II, *Allocuzione* 20-VII-1983, n. 4: *Insegnamenti*, VI-2 (1983) 95; *CCC*, 1488.

[66] The *Letter to the Hebrews*, speaking of those who "have once been enlightened and tasted the heavenly gift and shared in the holy Spirit and tasted the good word of God and the powers of the age to come, and then have fallen away," says "they are recrucifying the Son of God for themselves and holding him up to contempt."; and subsequently, after having recalled the chastisements of the Old Testament, he affirms: "Do you not think that a much worse punishment is due the one who has contempt for the Son of God, considers unclean the covenant-blood by which he was consecrated, and insults the spirit of grace?" (*Heb* 6:4–6; 10:29).

[67] Cf. Chapter VIII, section 8.2, especially subsection 8.2.2.

[68] Cf. G. Abbà, *Felicità, vita buona e virtù* (1995), 196.

Before passing to the second consideration, another dimension of the problem still needs to be highlighted. In our study of the law of Christ, or *lex gratiae,* it was explained that "*the law of Christ is essentially the grace of the Holy Spirit, which carries with itself new principles (the virtues) which assume, complete, and elevate the natural principles of the human reason, giving rise to a new interior law of man,*"[69] accompanied by the moral teachings of the New Testament. The Holy Spirit present in the Christian impresses on the soul a real interior dynamism toward virtuous works, and *thus a sinful action (opposed to the virtues, even the moral virtues) is not objectively possible to do without resisting or truly opposing oneself to the divine dynamism (grace) present in our hearts*, which even in its content becomes known to us both by the interior inspirations of the Holy Spirit, and at very least from the moral teachings of Sacred Scripture. In any case, *sin is a real opposition and resistance to the grace of the Holy Spirit.*

We shall now move on to the second consideration. What happens with non-believers, or with believers that out of lack of moral and religious formation are not aware, or at least aware to a rather small degree, of what we have just said? Would it not be possible for them to have a fault that, while being a true ethical error, is not subjectively a sin, that is, an offense against God? On the level of positive theology it should be said that the Church retains that there exists no moral fault that is not at the same time a sin: the so-called "philosophical sin" does not exist.[70] However, it also interests us here to understand why. It needs to be noted, in the first place, that free action is always projected into the horizon of the complete good of the human person, which objectively consists in life in God. This objective fact has some phenomenological manifestations in common moral experience, even in the experience of those who are disposed to minimal moral awareness. *Moral demands present themselves, in fact, with an absolute and unconditioned character that is not fitting, in the proper sense, if not toward God; therefore, they present a "divine character" that perhaps is not seen as divine, but certainly as absolute.* Through this absolute and unconditioned character of ethical demands, God is present in a certain way in each human act (being present is not always the same as there being a clear and explicit knowledge of it); so whoever infringes upon an ethical demand is in some sense aware, according to varying degrees, of infringing upon an order that is not just immanent, precisely because it is also presented as something absolute and unconditioned. A person who is aware of having violated a grave moral demand, may not be explicitly aware of having distanced himself from God, but knows that he has infringed upon

[69] Chapter VIII, subsection 8.4.2.

[70] Cf. Decree of the Holy Office, 24-VIII-1690: DS 2290–2292. In an analogous way, *Veritatis Splendor*, 37 denies the possibility of separating the ethical order from the order of salvation: see Chapter I, subsection 1.3.2.

something absolute and very important present in him: and in acting in such a way one puts himself in negative relation with God. His distancing from the Absolute could never be, for the guilty person, a complete surprise.[71]

> Caffarra puts it well when he writes that "the identity between a morally dishonest act and sin should not be understood in the superficial sense that because the moral value is founded ultimately on God then to act contrarily to it entails opposing oneself to God. But that identity should be understood in the sense that the moral value has in itself and through itself a character that allows it to be representative, *to our eyes,* of God, *and it is for this, its character, that each violation of it is an offense to God Himself.* It is not therefore necessary that whoever performs this violation explicitly thinks of God and explicitly intends to disobey His will as such. In the free decision to violate a moral value, already implicit and present is the decision to disobey His will."[72]

In the final analysis, that the moral good and evil contained within a human action, with the latter being a finite reality, have an absolute and unconditioned character, responds to the fact that *the value of the human act which affirms what is good for man is constituted as a participation and imitation of the absolute good of God, that is to say, as a participation in the holy will whereby God affirms the infinite good that He is in Himself and freely wills man's good as well.* This transcendent dimension of the moral good is confirmed by Sacred Scripture: "you shall make and keep yourselves holy, because I am holy,"[73] and stands also at the base of the natural moral law, which considers the moral perception of the human reason as the kind of participation in divine Wisdom proper to man. This explains why the voluntary distancing of oneself from the moral good is always a distancing of oneself from God, a profound reality that can only be fully understood in philosophical and theological reflection, but for which sufficient evidence can be found in moral experience, though this is not always the same as a clear and explicit knowledge of God, as we have just said.

11.4 Division of Sins

Although the essence of each sin is the denial of God, not all sins are of the same gravity, have the same proximate subject, the same object, an identical origin, etc. Sacred Scripture, the tradition of the Church, and human reason itself demonstrate a diversity of sins, which is to be explained in what follows,

[71] Cf. C. Caffarra, *Viventi in Cristo* (1986), 157–158; A. Rodríguez Luño, *Etica* (1992), no. 265; J. De Finance, *Etica Generale* (1984), 230–231.
[72] C. Caffarra, *Viventi in Cristo* (1986), 158.
[73] *Lev* 11:44; cf. *Lev* 19:2; 20:7; *Mt* 5:48; *1 Pet* 1:14–16.

beginning with the most important, which is the distinction between mortal and venial sin.

11.4.1 Mortal and Venial Sin

On the basis of Sacred Scripture (as already indicated), the tradition of the Church[74]*, Catholic theology,*[75] *and human reason itself, the magisterium of the Church has taught the existence of mortal and venial sins*:[76] "the distinction between mortal and venial sin, already evident in Scripture (cf. Jn 16–17), became part of the tradition of the Church. It is corroborated by human experience."[77]

Analogous Meaning of Sin — When the term "sin" is employed in reference to mortal and venial sin, it needs to be noted that *the term "sin" is used in an analogous sense.* Between mortal and venial sin exists some similitude, but at the same time an enormous difference is manifest, properly for what regards their condition as sin: this difference is not reduced to greater or less gravity, to a difference of degree, but rather that they are sins in an essentially diverse manner, and for this reason we speak in their regard of there being a theological distinction between the sins.[78]

The "ratio" of sin is found fully only in mortal sin and, in an imperfect way, in venial sin: mortal sin is completely incompatible with grace and charity, and therefore implies separation from God, while venial sin is not incompatible with charity, even if it weakens it:[79] mortal sin leads one to lose divine life in his soul, and venial sin merely weakens it and renders difficult the exercise of the infused virtues; as a consequence, only mortal sin precludes entrance into the Kingdom of heaven.[80] It is affirmed "that by a conscious and free act of his [man's] will he can [...] go in a direction opposed to God's will, separating

[74] Cf. Tertullian, *De pudicitia*, 19, 23–25: CCL 2, 1322–1323; Saint Cyprian, *Epistula* 55, 16: CSEL 3, 635; Theodore of Mopsuestia , *Homilia Catechetica* 16, 35.39–44; Council of Carthage, can. 8: DS 230; Saint Augustine, *De diversis quaestionibus*, 30: NBA 6/2, 56–59.

[75] Cf. *S.Th.* I-II, q. 72, a. 5.

[76] Cf. Council of Trent, *De Iustificatione,* ch. 11: DS 1537; *De Sacramento Paenitentiae,* ch. 5: DS 1680; Saint Pius V, Bolla *Ex Omnibus Afflictionibus*, 1-X-1567, no. 20: DS 1920.

[77] *CCC*, 1854; cf. *Reconciliatio et Paenitentia*, 17; *Veritatis Splendor*, nos. 69–70.

[78] Cf. E. Cófreces - R. García de Haro, *Teología Moral Fundamental* (1998), 475, 494–516.

[79] For this reason venial sin "must never be underestimated, as though it were automatically something that can be ignored or regarded as a sin of little importance" (*Reconciliatio et Paenitentia*, 17). Cf. Saint Augustine, *In Epistolam Johannis ad Parthos Tractatus*, 1, 6: NBA 24, 1649; *CCC*, 1863.

[80] The Constitution *Benedictus Deus,* 29-I-1336: DS 1002, reminds that mortal sins merit hell; and the *Catechism* teaches: "Mortal sin destroys charity in the heart of man by a grave violation of God's law; it turns man away from God, who is his ultimate end and his beatitude, by preferring an inferior good to him" (n. 1855); "If it is not redeemed by repentance and God's forgiveness, it causes exclusion from Christ's kingdom and the eternal death of hell" (no. 1861).

himself from God (aversio a Deo), rejecting loving communion with him, detaching himself from the life principle which God is and consequently choosing *death*. With the whole tradition of the church, we call mortal sin the act by which man freely and consciously rejects God, his law, the covenant of love that God offers, preferring to turn in on himself or to some created and finite reality, something contrary to the divine will (conversio ad creaturam)."[81]
Not all mortal sins have, however, the same gravity;[82] Jesus said to Pilate: "the one who handed me over to you has the greater sin,"[83] and Jeremiah said of his contemporaries: "they have stiffened their necks and done worse than their fathers."[84] Any grave sin deprives one of friendship with God, nonetheless the disorder generated can be more or less grave: in fact, sin acts as if it inserted an obstacle between the person and divine love, an obstacle that can be more or less great and that, however great, can always continue to increase. The gravity of the sin, per se, depends on the intensity of the will in accepting the disorder. Nonetheless, the material of the immoral act has a decisive significance, since a more grave object requires, normally, greater voluntariness. In this sense, the objective importance of certain immoral acts carries with it that, in order to choose them, there must be, per se, a full intensity of the will.
Conditions for Grave Sin — *For a sin to be grave, it requires three conditions: grave matter,*[85] *full advertence, and perfect consent;* this constitutes a constant teaching of the magisterium of the Church.[86] All three conditions must be present simultaneously: "The statement of the Council of Trent does not only consider the 'grave matter' of mortal sin; it also recalls that its necessary condition is 'full awareness and deliberate consent.' In any event, both in moral theology and in pastoral practice one is familiar with cases in which an act which is grave by reason of its matter does not constitute a mortal sin because of a lack of full awareness or deliberate consent on the part of the person performing it."[87]
The matter of a sinful action is grave when the moral act is incompatible per se with charity, something which happens in any act opposed to an essential demand of a moral or theological virtue.[88] For the gravity of their matter, sins

[81] *Reconciliatio et Paenitentia*, 17; cf. *Veritatis Splendor*, 70.
[82] "The gravity of sins is more or less great: murder is graver than theft. One must also take into account who is wronged: violence against parents is in itself graver than violence against a stranger" (*CCC*, 1858).
[83] *Jn* 19:11.
[84] *Jer* 7:26.
[85] Not to be forgotten here is that the word "material" means the content of the moral act and, therefore, more directly regards the will of the agent than the physical act being carried out.
[86] Cf. *Reconciliatio et Paenitentia*, 17; *CCC*, 1857.
[87] *Veritatis Splendor*, 70.
[88] Recall what was said in Chapter VI, section 6.4 regarding how one knows which acts

can be: mortal *ex toto genere suo,* mortal *ex genere suo* and light *ex genere suo.* The matter that is grave *ex toto genere suo* is that which, while being important (i.e. opposed to an essential demand of a virtue), is never divisible, for, when it is performed, the person is always dealing with a undivided whole, for example, the honor of God and human life; in this sense, blasphemy, hatred for God, and the taking of innocent life constitute matter that is grave *ex toto genere suo.* Matter that is grave *ex genere suo* is an important matter, but divisible, and that therefore admits of *parvitas materiae*; for example theft and abuse. Matter that is light *ex genere suo* is a matter that per se entails a modest subject-matter: for example, an unhurtful white lie. The nature of full advertence and of perfect consent was studied in section 6 of Chapter VI.

Recent Problems Regarding Mortal Sin — Sin, especially grave sin, raises a number of different questions that do not always have easy solutions: it is not without reason that one speaks here of the *mysterium iniquitatis.*

> It should not be surprising if diverse critiques of the traditional doctrine have been raised recently. As, for example, the theories which affirm: 1) that the theological division of sins was proposed by the scholastics unduly exaggerating the biblical and patristic distinction, for the sake of distinguishing sins that must be confessed from those which did not have to be confessed; 2) that some rigorist theologians mixed up grave and mortal sin; 3) that, furthermore, the theological position is thus mistaken that hastily admits of the possibility of mortal sin, and of passing from a state of grace to that of sin, and vice versa;[89] 4) that, finally, no categorical error, not even in grave matter, is mortal, and neither are those sins which are of weakness or performed in adolescence.

In expressing the nature of sin, the ecclesiastical magisterium, basing itself on solid reasons, warns of those authors who reject "the traditional distinction between *mortal sins* and *venial* sins. They insist that the opposition to God's law which causes the loss of sanctifying grace—and eternal damnation, when one dies in such a state of sin—could only be the result of an act which engages the person in his totality: in other words, an act of fundamental option."[90] Those who defend such ideas seem to accept two important misconceptions: 1) a secularization, which implies a decrease in knowledge of God and His love for the human race, and this leads to a decrease in the sense of sin: these authors think of an overly distant God, without recognizing that grace entails entrance of the person into the divine intimacy, and that "nothing unclean

constitute grave matter.

[89] This critique ignores the traditional teaching that asserted the difficulty of losing the state of grace (*De Veritate*, q. 27, a. 1, ad 9), especially for those who are solidly rooted in the good (*S.Th.* II-II, q. 14, a. 4); however, difficulty is not the same as impossibility.

[90] *Veritatis Splendor*, 69.

will enter it, nor any (one) who does abominable things or tells lies;"[91] 2) an erroneous anthropology that weakens the sense of human freedom, forgetting that it is capable of modifying the deepest intentions of the person and, in fact, of changing them by means of certain particular acts.[92]

> Some complementary observations can then be added. 1) The distinction of sins is not an invention of the theologians, but was proclaimed by the Church: "This doctrine, based on the Decalogue and on the preaching of the Old Testament, and assimilated into the kerygma of the apostles and belonging to the earliest teaching of the church, and constantly reaffirmed by her to this day, is exactly verified in the experience of the men and women of all times."[93] 2) The traditional doctrine of the theological division does not depend on a rigorist approach, but rather on the teaching of Sacred Scripture; for example Saint Paul, speaking of the sins of the flesh, writes with great clarity: "Shall I then take Christ's members and make them the members of a prostitute? Of course not!";[94] and it is frequent in the catalogues of vices to indicate which are the sins that exclude one from the Kingdom of heaven. 3) The Church teaches that even isolated sins and those of weakness can be mortal.[95] 4) On the other hand, being absolutely extraneous to the Bible and to experience is the idea that grace can only be lost by a lucid and radical option, rarely repeated in a lifetime; Aquinas highlights this in speaking of the denials of Saint Peter.[96] 5) Finally, it needs to be remembered that, acting in this way, the Church not only shows herself faithful to Revelation, but also to be profoundly realistic, since she knows that "we hold this treasure in earthen vessels."[97] For this reason, she is not surprised by sins, but wishes that men would repent and frequently approach the sacrament of penance, because it knows that the human heart would otherwise be hardened: as has been said, Jesus does not justify the Pharisee who boasted to not have any fault, but the tax

[91] *Rev* 21:27; cf. *2 Pet* 3:13.

[92] "Clearly there can occur situations which are very complex and obscure from a psychological viewpoint and which have an influence on the sinner's subjective culpability. But from a consideration of the psychological sphere one cannot proceed to the construction of a theological category, which is what the 'fundamental option' precisely is, understanding it in such a way that it objectively changes or casts doubt upon the traditional concept of mortal sin." (*Reconciliatio et Paenitentia*, 17). The same idea is taken up in *Veritatis Splendor*, 70.

[93] *Reconciliatio et Paenitentia*, 17. Also keep in mind what was said in section 2 of this chapter.

[94] *1 Cor* 6:15.

[95] "We reject as erroneous the affirmation of those who consider as inevitable falls in the years of puberty, which would thus not merit to be considered great matters, almost as if there were no grave fault, because ordinarily, they add, passion takes away the necessary freedom that would make an act morally imputable" (Pius XII, *Radiomessaggio* 23-III-1952: AAS 44 (1952) 275).

[96] Cf. *S.Th.* II-II, q. 24, a. 12, ad 2. See also *1 Sam* 14:31–33; *2 Sam* 24:10–15; *Mk* 4:14–19; *Lk* 12:43–48.

[97] *2 Cor* 4:7.

> collector who confessed his sins. When the ecclesiastical magisterium recalls this reality, it does not do so out of inexperience, nor because it misunderstands deep psychology; far from it: the Church, precisely out of its knowledge of human nature, recognizes the diverse gravity of sins, and that there are some which in themselves are incompatible with charity.
>
> Diverse authors have proposed a tripartition of sins, with various names, but which we can identify as: venial, grave, and mortal (or lethal). The second would certainly be a grave disorder of the moral life, but, following from the weakness of freedom, would not carry the imprint of irrevocability; in fact, some think that only a conscious resolution to offend God could be qualified as a mortal sin, and furthermore some maintain yet that such a decision that is so lucid can only be made, in fact, at the point of death. The Church rejects this possibility of identifying mortal sin with an explicit decision against God; rather, regarding the threefold division of sins, it says: "This threefold distinction might illustrate the fact that there is a scale of seriousness among grave sins. But it still remains true that the essential and decisive distinction is between sin which destroys charity and sin which does not kill the supernatural life: There is no middle way between life and death."[98]

Ultimately, it seems to us that the Church bases itself on solid reasons when it affirms that "mortal sin is a radical possibility of human freedom, as is love itself. It results in the loss of charity and the privation of sanctifying grace, that is, of the state of grace. If it is not redeemed by repentance and God's forgiveness, it causes exclusion from Christ's kingdom and the eternal death of hell, for our freedom has the power to make choices for ever, with no turning back."[99] For what regards the distinction between sins, some wise observations of Saint Augustine should be taken into consideration: "There are then some sins that would be retained as being most light, if in the Scriptures they were not presented as more grave than one might imagine".[100] And furthermore: "We do not get to use deceptive scales, on which to weigh what we want and how we want it, and then say: 'This is heavy, this is light.' No, we use the divine scale taken from Holy Scriptures, as from the treasures of the Lord, and with it we measure to see what is heavier. In fact, we do not weigh it, but we recognize the weights established by the Lord."[101] The Church intends primarily to maintain fidelity to the teachings of Sacred Scripture, without however denying the complexity of the subtle nuances that can be hidden in the depth of the individual consciences. For this reason it affirms: "However,

[98] *Reconciliatio et Paenitentia*, 17.
[99] *CCC*, 1861.
[100] Saint Augustine, *Enchiridion de Fide*, 21, 79: NBA 6/2, 571.
[101] Saint Augustine, *De Baptismo contra Donatistas*, 2, 6, 9: NBA 15/1, 327, our translation. Regarding this argument see A. Del Portillo, *Coscienza morale e magistero* (1995), 383.

although we can judge that an act is in itself a grave offense, we must entrust judgment of persons to the justice and mercy of God."[102]

> The paths are not closed to further developments regarding the doctrine of sin, provided that they are well founded theologically and pastorally useful. The theories that we dealt with above, despite praiseworthy intentions of clarifying a very delicate and important matter, create more problems than they succeed in resolving, especially when they utilize categories and divisions which escape all attempts at objective verification or control, with the result of introducing further causes of uncertainty in a matter that in itself is already rather difficult.

11.4.2 Internal and External Sins

External sins are those which are committed with an action that can be observed exteriorly (theft, adultery, etc.). Internal sins remain within the person: in thought, the will, or in the internal senses (imagination, etc.), without being expressed in external actions. The existence of merely internal sins is indicated by Jesus when He teaches: "everyone who looks at a woman with lust has already committed adultery with her in his heart."[103] In fact, the moral act is properly an internal act of the will, therefore *purely interior acts can be sins and even grave* sins: the final two commandments of the Decalogue indeed prohibit such sins.[104] The Old Testament teaches about the wickedness of internal sins,[105] Jesus frequently rebukes the Pharisees who care for exterior honesty and forget interior rectitude,[106] and the doctrine of the Apostles is similar.[107] Moreover, the Church reminds of the necessity of confessing the sins that are more hidden and which are related to the final two commandments in the Decalogue, precisely because it is not uncommon for them to be more dangerous than external sins.[108] Certainly internal sins, even of the mortal kind, are in principle less grave than their corresponding external sins, for their degree of voluntariness is normally less; nonetheless, they are highly dangerous on account of the ease with which they come to be carried out, and for which they can also easily degenerate into vices.
Traditionally, three types of internal sins have been distinguished: consented thought, desire, and satisfaction for a performed act.

1. Consented thought (*delectatio morosa*) is not merely a thought, or merely something imagined, but *a will to think or imagine a determi-*

[102] *CCC*, 1861.
[103] *Mt* 5:28.
[104] Cf. *Deut* 5:21; *CCC*, 2514–2557.
[105] Cf. *Deut* 15:9; *Prov* 12:12; 15:26; *Wis* 1:3.
[106] Cf. *Mt* 23:25–28; *Lk* 11:17.
[107] Cf. *Acts* 8:22; *Eph* 4:17–18.
[108] Cf. Council of Trent, *De Sacramento Paenitentiae*, Ch. 5: DS 1680; *CCC*, 1456.

nate immoral act in its formality as evil; in such a sense, it is different to think about an injurious sin studying moral theology than to consent to a thought that is configured as a concrete injury to Tom. Evil thoughts—pride and vanity, impurity, envy for wealth, etc.–morally poison man, corrupting him in an always growing measure.[109]

2. Desire (*desiderium*): we do not deal here so much with a decision to perform an action, as with *an interior and generic desire which the person welcomes with pleasure.*[110] Evil desire, e.g. a disordered desire for wealth and a thirst for power, distances a person from God and neighbor and puts the person on a dangerous slide toward evil.

3. Satisfaction (*gaudium*) for a performed act: this means *enjoying something carried out in the past without necessarily assuming the decision to carry it out again.* The sin resides properly in the particular satisfaction originated by an evil desire: "He who gloats over evil will meet with evil."[111] The *gaudium peccaminosum* can be the satisfaction in the face of an evil that is carried out or the sadness before an action that has not been carried out, for example, to grieve over having missed the opportunity to have stolen something easily and without risk.

11.4.3 Social Sin and the Problem of Collective Responsibility

Revelation teaches of the existence of a "sin of the world" and of a certain social responsibility for sins.[112] As we know, *social sin can be spoken of in a threefold* sense: each sin, even the more hidden ones, regards all of society; there are sins that affect social life more directly; there exist collective situations that induce persons toward sin.[113] We shall look closer now at these last two aspects[114] and at the problem of collective responsibility linked to them.

> Sacred Scripture, like the rest of human experience, attests to the fact that humans are not isolated beings; for this reason—as was typical in

[109] Saint Gregory the Great said that laziness of the mind also ruins right sense, dissipates one in the desire for pleasures, and kills a love for good works: cf. *Regula Pastoralis*, III, 15: SC 382, 350. Here one could speak of the danger of the morally indecent stories and images of the media, which increase the intentional tendency toward evil; it is good to remember the counsel of Jesus: "if your eye causes you to sin, pluck it out" (*Mk* 9:47), if this show, if this newspaper ... scandalizes you... etc.

[110] This desire is different from an intention that entails an effective will: cf. Chapter VI, section 6.3.

[111] *Sir* 19:5.

[112] Cf. *Ex* 34:7; *Josh* 7; *Jer* 32:18; *Jon* 1:29; *CCC*, 408.

[113] Cf. *Reconciliatio et Paenitentia*, 16.

[114] We shall treat of the social dimension of each sin in subsection 11.7.

> the law of ancient Semitic peoples—the infraction of the law causing damage to someone, even if done without awareness, produced an objective situation of disequilibrium that had to be corrected in some way, because the carrying out of certain rules was vital for the ordered development of society. Nonetheless, it does not seem proven that their exists in the Old Testament an exclusive—or, at least, prevalent—collective retribution, in which the righteous and sinners would have had to receive together the same sanction. This does not exclude the fact that, from the moral standpoint, all may have a certain responsibility toward others: the Lord assumed our moral condition in order to redeem us,[115] and we are all morally united to grow according to the will of God.[116] For this reason each person has some moral responsibility with respect to the conduct of others[117] and sometimes will have to pray: "*Ab alienis [peccatis] parce servo tuo,*"[118] since a person's own action, perhaps with a good will but lacking in prudence, could render him complicit in the sins of others.[119] Later in this chapter, we shall study the problem of cooperation with evil.

Morality depends on the awareness and, above all, free volition of each person. A person does not have to be considered responsible for the good or evil carried out by others or by the majority of the group to which he pertains. Strictly speaking, *moral responsibility in the end always leads back to the individual responsibility of one or more persons.* When one speaks of collective responsibility, normally one does so in an improper sense, and such a way of speaking can run the risk of confusing the concepts, rather than clarifying them.

Nonetheless, *the recognition of the personal character of responsibility should not render us insensible before the cultural and social dimension of certain moral phenomena.* Man, for the simple fact of being man, possesses moral principles only in a germinal state. Their full development requires the equilibrium of the "tendential" system[120]. From an abstract point of view, there exists a true circle between the practical reason and affective equilibrium, because each of these two elements presupposes the other.[121] From the concrete point of view, however, the circle is overcome by the education received in the environment of the community to which the person pertains: the family, civil and economic society, the Church, the State, etc. The customs, laws, and models that are in force in these not only shape our life in common, but

[115] Cf. *Rom* 8:3; *Phil* 2:7–8; *Heb* 4:15; 5:7–9.
[116] Cf. *Col* 2:19.
[117] Cf. *Num* 16:19–22; *Josh* 7:1–12; *2 Cor* 11:28–29; *Gal* 6:1–2.
[118] *Ps* 18:14 (Vulg).
[119] Cf. *1 Tim* 5:22.
[120] Cf. footnote 11 of section 5.2 of Chapter V.
[121] Cf. *S.Th.* I-II, q. 58, aa. 4–5. See also his comment on Book VI of the *Nicomachean Ethics.*

they also express, and forge into new generations, certain modes of perceiving and evaluating, since individuals tend to recognize themselves in the legal and institutional environment in which they are born, and cannot do any less in order to live, and this furnishes for them the categories for interpreting their experience and for reinforcing their identity. To go against the current is perfectly possible, and oftentimes a duty, but will not be the majority tendency in contemporary democratic societies *en masse*. In any case, it is true that personal moral formation possesses social, economic, and political preconditions, and that without an adequate familial and social initiation, the development of personal morality is rendered extremely slow and difficult.[122]

Certainly, *moral conscience always preserves the capacity for judging and deciding freely, but in order to do so it must first be formed, and such a formation occurs in a concrete context, and not in some hypothetical other-worldly space.* As we know by now, the natural moral law is a natural capacity, but it is natural just as the capacity to speak is natural: their development and the quality of their results depend in good part on the communicative context wherein the education occurs.[123] The achievement of personal moral awareness is not independent from the immanent and objective logic found within the *ethos* of the social group, an *ethos* that presupposes the sharing of certain ends and modes of achieving them, of certain models and of modes of imitating them, and which are expressed in the laws, customs, stories, celebrations of events, and characters that best respond to the moral identity of the group.[124]

> These reflections do not intend to put into question personal freedom and responsibility; they intend rather to bring to light what is properly cultural in certain positive or negative moral phenomena (for example, what today is called a "culture of life" and a "culture of death"). We treat of dynamics that, once formed, are relatively autonomous with regard to the choices of individuals, and that insofar as they are human are prevalently communicative. For this reason, in cases of unjust situations, structures, laws, etc. the individual must examine his own responsibility for what he does or, more commonly, what he fails to do, that is, for having remained silent or for having neglected due resistance or contrasting action, for example, for what regards public morality. It needs to be remembered, furthermore, that in the exercise of public responsibility for goods of a public nature, oftentimes individual action is not enough, also necessary is a certain organization, like, for example, the *pro life* movements, consumer groups, etc.

[122] See Chapter I, subsection 1.1.2 and Chapter IX, subsection 9.1.3.
[123] See Chapter VIII, subsection 8.2.1.
[124] Cf. G. Abbà, *Quale impostazione per la filosofia morale?* (1996), 10–17.

11.4.4 Other Divisions of Sins

There are other divisions of sins, of less importance in the study of moral theology, that nonetheless help us to have a more complete idea of the senses in which the notion of sin is employed in this discipline.

1. *Original and actual*: Original sin is that committed by our first parents and transmitted through generation to all people; it is a disorder present in each person from the instant of conception. Actual sin is that committed by the person himself and that for which he is fully responsible.

2. *Formal and material*: The first is a voluntary—and therefore culpable—transgression of the divine law. Material sin is an objectively disordered act in which due voluntariness is lacking, on account of invincible ignorance, external violence, or a failed use of the reason. Material sin does not render the person culpable, but insofar as a disordered act produces objective damage, it must be avoided.[125]

3. *A sinful act and a state of sin (habitual sin)*: A sinful act is an act of the will that chooses against the human good and the moral law. Such an act procures in the person a state (*macula peccati*) that is the disorder left in the sinner, as the guilt and the penalty and, in mortal sin, the privation of grace.

4. *Of ignorance, weakness, and malice*: This refers to the internal factor that induces one to sin. In principle it can be said that ignorance and weakness, usually, diminish voluntariness; while sins of malice are those born out of one's own evil will.

5. *Carnal and* spiritual: Based on whether they tend in a disordered way toward a sensible good (for example, lust) or a spiritual good (pride). Per se, the second are more grave; nonetheless carnal sins are, usually, more vehement, and immediately enticing.

6. *Of commission and of* omission: Each sin brings with it the execution of a disordered voluntary act: if it is translated into an action, it is called a sin of commission; if instead the voluntary act is translated into the omission of something due, it is called a sin of omission.[126]

[125] Cf. *CCC*, 1793; *Veritatis Splendor*, 63.

[126] "So for one who knows the right thing to do and does not do it, it is a sin" (*Jas* 4:17).

11.5 Specific and Numeric Distinction of Sins

Sins are specified according to the virtues or precepts to which they are contrary; for example, homicide is a sin that is specifically diverse from theft. *The numeric distinction indicates the quantity of sins of a certain type which were committed.* Both distinctions are important, because in the sacrament of penance one must be repentant and make manifest the sins in their species and number[127] in the measure in which that is morally possible.

Also for what regards the conversion from sins, which is authentic only if it does not remain as a vague abstraction, the specific and numeric distinction of sins is important. Nonetheless, if a person does not succeed in remembering all of the sins committed since the last valid confession, or is not capable of accurately making all of the specific distinctions explained by moral theology, this should not be a reason for anxiety or scruples. The formal integrity of the confession, necessary for the validity of the sacrament, requires the confession of *all mortal sins remembered after a diligent examination of* conscience, specifying the number in the most exact way possible here and now, while briefly and with simplicity mentioning only the circumstances which are retained to be morally important. The consideration of the commandments of the Decalogue and the precepts of the Church can help a person to make a deep examination of conscience and, therefore, to prepare for the sacrament of penance.

> The numeric distinction of sins does not usually present great difficulty. For some more difficult cases the following principles can be kept in mind. 1) There are diverse acts when the moral unity of the decision is interrupted: a) in the interior acts a temporary interruption is enough: for example, diverse acts of hatred toward a person throughout the day; b) in the exterior acts the actions are numerically distinct in a moral sense when they are understood as diverse: for example, small thefts which are deprived of any connection to one another; c) if, on the other hand, all flow together for the same end, they constitute a moral unity: as an example, whoever follows a strategy of stealing bit by bit ten thousand Euro has committed a grave sin of theft, and not many small venial sins. 2) Regarding indivisible material there are as many moral actions as concrete acts which are performed: as examples of this are acts of unchastity.

[127] Cf. Council of Trent, *De Sacramento Paenitentiae,* cann. 7–8: DS 1707–1708; these canons are recalled by *Ordo Paenitentiae*, 2-VII-1973, Praenotanda, no. 7. See also the *Catechism*, nos. 1456 and 1497. The Council of Trent made it clear that this necessity is a divine right, that is, men cannot change it; and this explains why a generic confession of sins with a general absolution can be performed only in very exceptional cases, and also why this does not take away the obligation of successively manifesting in confession the mortal sins which were pardoned in the general absolution.

11.6 The Cause of Sin

11.6.1 Remote and Proximate Cause

The concept itself of sin, as a moral evil, implies that it has proceeded from a free cause. Given that God cannot be considered in any way the origin of the sin,[128] the cause of sin should be sought in the free creature who committed it. In man it is possible to distinguish between a remote and a proximate cause of sin. The remote cause is the natural defectibility of man and the concupiscence that is subsequent to sin; the proximate cause is the wickedness of the will. The remote cause does not explain every single sin, though it can explain the presence of sin in general. It must then be concluded that "*the root of sin is in the heart of man, in his free will.*"[129]

11.6.2 Sins and Capital Vices

Coming to be called vices are morally evil operative habits, which are thus opposed to the virtues. The vices play on the intellectual, affective, and dispositional level an analogous role, though in an opposing sense, to that played by the virtues. The vices consolidate mistaken modes of perceiving, judging, and appreciating persons and things, which give rise to morally evil choices. The vices are freely acquired qualities that have in themselves a negative moral value, insofar as they constitute strong obstacles for man's success in identifying, desiring, and effectively carrying out conduct that is congruent with the following of Christ. They are, moreover, principles for further sins. Since the beginning of the Fifth Century, Christian writers, as some pagan writers had already done, have spoken of vices and capital sins, making diverse lists of them. With Saint Gregory the Great, the list was established with seven capital sins.[130] Capital comes from *caput* (head), which is as the guiding part of the entire body; for this reason, *the habits and acts that characteristically act as the source and guiding principle of other sins are metaphorically called capital vices and sins.* The expression is utilized, therefore, both for concrete disordered acts, and for their corresponding vices, wherein the origin of other sins is properly found. These vices are: 1) *vainglory* or disordered love of one's own excellence; 2) *avarice* or disordered love of exterior goods; 3) *lust* and 4) *gluttony*, which derive from a disordered love for sensible pleasure; 5) *sloth* (and laziness), which is the refusal of and flight from the necessary effort for obtaining the moral and spiritual good; 6) *envy,* that is, the sadness

[128] Cf. *Sir* 15:11–13; *Jas* 1:13; Second Council of Orange: DS 397; Clement VI, *Errori di Nicola di Autrecourt*, no. 58: DS 1409; Council of Trent, *De Iustificatione*, can. 6: DS 1556.
[129] *CCC*, 1853.
[130] Cf. *CCC*, 1866.

over the good of others considered as one's own evil and delight for the evil suffered by others; 7) *wrath* or violent impatience in the face of opposition.
Pride, or the disordered love of one self, more than being a capital sin, is the root of all sin *ex parte aversionis,* insofar as the distancing of oneself from God comes about from a disordered love of oneself. Complete pride is a grave sin per se, because with it one sets himself against God and, as the root of the sins, it is very detrimental to the spiritual life, since it refuses submission to God and His law. Avarice is the root of all sin *ex parte conversionis*, insofar as each sin presupposes a disordered love for a relative good: "For the love of money is the root of all evils."[131]

11.6.3 Temptation

The Nature of Temptation — To tempt, in a primary sense, means to try the strength of someone and, more concretely, his readiness to do good;[132] nonetheless, here we speak of temptation as the incitement to do evil.[133] The cause of sin, as was said, is the will itself; it, however, can be influenced and lured, though not dominated, by the presentation of apparent goods: *temptation is precisely the instigation to do a moral evil that is masquerading as a good to deceive the will.*
Temptations, if they are not sought and if they are taken advantage of as a motive for moral effort, have a positive significance for the Christian life; the most clear argument is that Jesus Himself "was led by the Spirit into the desert to be tempted by the devil."[134] Temptations, taken on with a supernatural spirit, aid in one's growth in grace, in virtue, and in merit: "Blessed is the man who perseveres in temptation, for when he has been proved he will receive the crown of life that he promised to those who love him."[135]
Types of Temptation — Traditionally, it has been said that temptations come about from the world, the devil, and the flesh. We shall now see more concretely what these mean.

1. *The world*: We are not dealing here with the world as God's creation, which is good,[136] but rather of the world perverted by sin, which behaves as an enemy of God and incites men to be separated from Him.[137]

[131] *1 Tim* 6:10; cf. *Mt* 6:24; *S.Th.* I-II, q. 84, a. 1.
[132] In this sense Sacred Scripture says that God "tempts" (*tentat*) men, a word that in the English version of the Bible is translated with "tries": for example, "God tried them and found them worthy of himself" (*Wis* 3:5; cf. *Ex* 16:4; *Deut* 13:4; *Ps* 25:2). In *Gen* 22:1 it speaks of the trial of Abraham, which is the temptation *par excellence* of the Old Testament: cf. *Jdt* 8:25–26; *Heb* 11:17.
[133] And in this sense God tempts no one: cf. *Jas* 1:13.
[134] *Mt* 4:1; cf. *Heb* 4:15.
[135] *Jas* 1:12; cf. *CCC*, 2847.
[136] Cf. *Gen* 1:31; *1 Tim* 4:4.
[137] "The consequences of original sin and of all men's personal sins put the world as a

2. *The devil*: The devil is the tempter without equal;[138] his task, so to speak, is to induce man into offending God out of hatred for Him: "For our struggle is not," writes Saint Paul, "with flesh and blood but with the principalities, with the powers, with the world rulers of this present darkness, with the evil spirits in the heavens."[139]

3. *The flesh*: The word flesh, in this case, refers to the "old self" marked by sin[140]; one can also use the term concupiscence to refer not to a sensitive appetite, but to an interior inclination toward evil: in this perspective, concupiscence consists in the disorders found in the powers of the soul as a result of sin, both original and actual, i.e. the *fomes peccati*.

Moral Principles — Man cannot avoid having temptations[141] and, considering what has been said, neither would it be a good to not have them.[142] Nevertheless, the instigations toward sin should be combated keeping in mind the following principles: 1) *Temptations cannot be overcome with our efforts alone*;[143] for this reason man must be faithful to the Lord, so that he may persevere in the hour of temptation.[144] 2) *Temptation can always be overcome with the grace of* God: the Lord does not permit that we be tempted beyond our own strength aided by divine grace.[145] 3) *It is necessary that one react promptly in the face of temptations*,[146] because a submissive attitude allows them to take on more strength. Temptations can be resisted in two different ways: a) with acts which are directly opposed to them, and it is counseled to do this in response to temptations against faith, hope, and charity; b) by occupying one's mind on other things, and it is counseled for one to do this with temptations of sensuality, for otherwise they can become more violent.

whole in the sinful condition aptly described in St. John's expression, 'the sin of the world' (cf. Jn 1:29). This expression can also refer to the negative influence exerted on people by communal situations and social structures that are the fruit of men's sins (cf. *Reconciliatio et Paenitentia*, 16)" (*CCC*, 408).

[138] Cf. *Mt* 4:3; *1 Cor* 7:5; *1 Thes* 3:5; Rev 2:10.

[139] *Eph* 6:12; cf. *CCC*, 2851.

[140] Cf. *Rom* 6:6; 7:15–20; *Gal* 5:16–17; *Eph* 4:22; *Col* 3:9; *1 Pet* 2:11.

[141] Cf. *Sir* 2:1.

[142] Cf. *Jas* 1:2–4,12; *1 Pet* 1:6–7.

[143] Cf. *Mt* 6:13; *Mk* 14:38; *Lk* 22:31–32; *Heb* 2:18.

[144] Cf. *Sir* 44:20; *2 Pet* 2:9; *Rev* 3:10; *CCC*, 2849.

[145] Cf. *1 Cor* 10:13; *1 Pet* 1:5; *CCC*, 2848. The Council of Trent recalls: "But no one, however justified, ought think himself exempt from the observance of the commandments; no one ought to make use of that rash saying that was forbidden by the Fathers under an anathema,-that the observance of God's commandments is impossible for one who is justified. For God does not command what is impossible, but rather, by commanding, He both admonishes you to do what you are able to do, and to pray for what you are not able to do, and He aids you so that you might be able" (Decree *De Iustificatione*, Ch. 11: DS 1536; the council takes up here a text of Saint Augustine from *De Natura et Gratia*, 43, 50: CSEL 60, 270). Cf. *ibid.*, can. 18: DS 1568.

[146] Cf. *1 Cor* 10:12; *Gal* 6:1; *Eph* 6:10–20.

4) *To experience temptation is not a sin, only consenting to them* is: the *fomes peccati* makes it so that all people can experience the attractiveness of moral evil; the latter being left *ad agonem*, to be fought, but cannot harm those who do not consent to it.[147] 5) *It is not permissible to voluntarily put oneself into temptation*: if it is not lawful to risk one's corporal life without a proportionate cause, still more is it unlawful to be reckless with one's supernatural life. If there exists a proportionate cause, then one must use all necessary means in order that the danger become remote; moreover, since no one is a good judge regarding his own situation, if it is possible such a person should follow the counsel of a prudent person.

Occasion of Sin — An occasion of sin is the technical term for those external circumstances that occur more or less voluntarily and feature a temptation to sin. The occasion may be: a) proximate, when the danger is serious; remote, when the danger is slight; b) absolute, when any normal person feels such a danger; relative, when it is dangerous only for some persons; c) continuous or discontinuous, if it is habitually present or only in intervals; d) free, when putting oneself in such an occasion depends on one's personal will; necessary, when it depends only on a certain state of life; e) grave or light, according to the theological species of the sin to which the danger pertains.

The same duty of avoiding sin carries with it a duty of avoiding the occasion of sin. Nonetheless, one cannot avoid *every* such occasion, for, as Saint Paul says, "you would then have to leave the world."[148] The moral obligations regarding this topic can be summarized as such: 1) It is gravely obligatory to avoid grave occasions of sin, proximate and free; otherwise one would not have a serious will to avoid sin, something which constitutes per se an offense to God. 2) One must do all possible so that the proximate and necessary occasion becomes remote. 3) Also to be avoided are remote, continuous, and free occasions of sin that corrode the spiritual life and predispose one to grave sin: for example, to watch frivolous shows, to read books of dubious doctrine without necessity, etc.

Whoever does not want to distance himself from a grave, proximate, and free occasion of sin manifests that he does not repent of his own sins, nor does he intend to do all that is possible to avoid them. With such a disposition, one cannot validly receive sacramental absolution.[149]

[147] Cf. Council of Trent, *De Peccato Originali*, can. 5: DS 1515; Saint Pius V, Bull *Ex Omnibus Afflictionibus*, 1-X-1567, n. 50: DS 1950; *CCC*, 2847.

[148] *1 Cor* 5:10.

[149] Innocent XI condemned the following lax proposition: "Sometimes one can be absolved who is found in a proximate occasion of sin that he can leave but does not want to leave, but which he directly and purposefully seeks or exposes himself to" (Decree of the Holy Office, 2-III-1679, n. 61: DS 2161, our translation.). This is based on the words of Jesus: "If your right eye causes you to sin, tear it out and throw it away" (*Mt* 5:29).

11.7 The Effects of Sin

The effects of sin are intimately connected with its essence and are interconnected with one another; they principally derive from the *aversio a Deo* and secondarily from the *conversio ad creaturas.*[150]

The first effect of mortal sin is exclusion from the divine friendship—the *aversio a Deo*–: grave sin deprives one of the inhabitation of the three divine Persons and therefore from supernatural life, sanctifying grace, and charity. Along with grace, one also loses the infused virtues and the gifts of the Holy Spirit, not to mention that faith and hope can remain in an amorphous state, i.e one not vivified by charity. Lost as well are the supernatural merits that had been obtained: "And if the virtuous man turns from the path of virtue to do evil, the same kind of abominable things that the wicked man does, can he do this and still live? None of his virtuous deeds shall be remembered"; [151] nonetheless, these merits can be recovered when the sinner repents and returns to friendship with God.[152] Mortal sin, moreover, merits eternal punishment. *With mortal sin, man, created in order to live in communion with God, also contradicts the deepest truth of his being and his true good.* In the recount of the sin of the first parents there is manifested the intimate conflict that sin introduces into the person:[153] man hides himself from God, he becomes aware of being naked, the land produces for him thorns and thistles, and a relationship of distrust is established between persons. S*in, therefore, negatively influences various human dimensions: theocentric, personal, social, and material dimensions.*[154] These conflicts within the person produce a sentiment of discomfort, that is called a remorse of conscience; such a remorse can help one to repent and to atone for the punishment that is due on account of the sin.[155]

[150] Cf. *Wis* 11:16; 12:23,27; *Ezek* 23:35.

[151] *Ezek* 18:24.

[152] Cf. Pius XI, Apostolic Letter *Infinita Dei Misericordia*, 29-V-1924: DS 3670.

[153] Cf. *Gen* 3:7–19. Regarding the *vulnera* of sin, see E. Colom, *Dios y el obrar humano* (1976), 125–181.

[154] Sin generates in the person a set of divisions, "between man and the nature created by God." (*Reconciliatio et Paenitentia*, 23). "For sin has diminished man, blocking his path to fulfillment" (*Gaudium et Spes*, n. 13), and therefore renders him unhappy: the sinner seeks joy, but because he seeks in in a mistaken way, what he finds instead is unhappiness, as Judas' fate demonstrates. In the final analysis, he finds the profound unhappiness of one who is in contrast to himself; the Old Testament emphasizes it as so: "those habitually guilty of sin are their own worst enemies" (*Tob* 12:10), and "he who strays after them [sinful activities] sins against his own life" (*Sir* 19:4). Cf. *De Malo*, q. 2, a. 11.

[155] "If man does evil, the just judgment of his conscience remains within him as a witness to the universal truth of the good, as well as to the malice of his particular choice. But the verdict of conscience remains in him also as a pledge of hope and mercy: while bearing witness to the evil he has done, it also reminds him of his need, with the help of God's grace, to ask forgiveness, to do good and to cultivate virtue constantly" (*Veritatis Splendor*, 61). Cf. *CCC*, 1781.

The sin of an individual does not only harm the sinner, but also has negative consequences in the ecclesial and civil community.[156] The bond of charity, which unites the members of the mystical body to Christ and to each other, is weakened on account of personal sins: the moral fault distances the sinner from the Church, and this introduces a disorder into the body of Christ. The dogma of the communion of saints entails a communitary influence of the moral action of the individual both when it is good and when it is bad:[157] sinners refuse to collaborate in the edification of the Church and hinder the accomplishment of the divine plan of holiness not only for what concerns themselves, but also for what regards the entire Church, "which they have wounded by their sins."[158] This is also the case with internal sins and for those which are committed directly against God and against themselves. Nevertheless, the antisocial effects of sin are greater when their public repercussion is more direct, as we said regarding social sin and collective responsibility.

11.8 Cooperation with Evil

Notion of Cooperation with Evil — *In a technical sense we mean by cooperation with evil (or with sin) the execution of an act that in some way helps another person to accomplish an immoral action of which the latter person remains the principal author.* Growing social interdependence creates a multitude of relations wherein this moral form is found: judges, businessmen, educators, politicians, but also relatives, friends, etc. On the other hand, as has been said, morality cannot only be measured on an individual basis, because the social dimension is an intrinsic characteristic of the human person; in this sense, it is not enough to "act well" in the individual sphere, but it is also necessary that one's actions have a positive repercussion in society. The problem that now presents itself is that of knowing how far it is possible to collaborate in an effective way, even if involuntarily or at least only indirectly voluntarily, in the execution of what is morally illicit.

In the first place, *cooperation with evil needs to be distinguished from scandal.* "Scandal is an attitude or behavior which leads another to do evil."[159] Scandal supposes a direct influence on the will of another. The one who scandalizes is in some way the cause of the evil will of another person, while cooperation, on the other hand, is an action that facilitates the execution of an evil design that another person has on his own.

[156] Cf. *Heb* 12:15.

[157] "If (one) part suffers, all the parts suffer with it; if one part is honored, all the parts share its joy" (*1 Cor* 12, 26).

[158] *Lumen Gentium*, 11.

[159] *CCC* 2284; cf. also nos. 2285–2287.

Cooperation with another's sin can be willed directly or through free initiative, and as such implies an approval of the other's action (formal cooperation with evil); or it can be tolerated or endured, without this implying an approval of the other's behavior, inasmuch as cooperation derives inevitably from an action that must be done for whatever reason (material cooperation with evil). What often happens, in this second case, is that determinate social circumstances or those relating to work put a person in the condition of making use of another's behavior in order to carry out his own designs with greater ease. *Material cooperation with evil can be either immediate (direct) or mediated (indirect); furthermore, it can be either proximate or remote.*

1. Immediate or direct material cooperation with evil occurs when a person helps another to execute an evil action; e.g. to help a thief to steal, even while not approving of the theft.

2. Mediated or indirect material cooperation with evil occurs when one provides another with an instrument which the other person will use to do evil; e.g. selling wine to a person who will use it to become intoxicated.

3. The distinction between proximate material cooperation and remote material cooperation depends on the physical or moral connection between the action of the person who cooperates and that of the principal author. The manager of a bank who grants loans to a magazine that fosters immoral behavior cooperates in a proximate way; a person who holds his savings in a bank that grants such loans cooperate only remotely. *Immediate material cooperation is always proximate; mediate material cooperation can be either proximate or remote.*

Moral Principles Regarding Cooperation with Evil — *Formal cooperation with evil is always illicit.*[160] *Material cooperation with evil, in general terms, is also illicit,* because the good of the human person, considered also in its social dimensions, does not only demand that each person act according to right reason, but that he do so in such a way insofar as it is in his control, that favorable conditions come about for the good of others, helping and contributing to the best of his own abilities. Sociality has, and must have, an eminently positive sense: it represents an aid of which each person has need in order to grow as a person and to live, day to day, an honest life.
Nonetheless, *there are some circumstances that can render licit certain actions through which one materially cooperates with evil.* In the case of material cooperation with evil, it is not the result of a free initiative to cooperate, but of a certain necessity of achieving a good or avoiding an evil through

[160] Cf. *Evangelium Vitae* 74; *CCC* 1868, 2272, 2282 and 2291.

an action that another uses to accomplish his own immoral plan. The first condition to be met for an action of this type to be potentially licit is that *there really is a need to execute it;* i.e. there does not exist another possibility for accomplishing the necessary good or avoiding the evil that must be avoided. If there is the possibility of acting without cooperating with evil, even if this carries with it a certain effort or presents the person with some discomfort, cooperation with evil will not be morally admissible.

If there exists no other possibility, then the problem can be resolved with the *the same criteria studied* in Chapter VI *concerning the principle of double effect,* because this is its true nature. The action that is performed cannot entail an injury per se to a virtue; the intention must be right; the evil action of another person cannot be the cause (on the intentional level, the means) for which the necessary good is obtained; and there must exist a proportion between the importance and necessity of the good effect to be achieved and the negativity represented by the cooperation (the gravity of the evil with which the person cooperates, the proximity of the cooperation, etc.). There exist actions that are very grave (homicide, abortion, etc.) with which it is never licit to materially cooperate in an immediate way.[161]

In cases in which, following what has been said to this point, it were licit to carry out an action wherein—without wanting to—one cooperates with evil, it remains morally necessary to take opportune precautions to avoid the danger of a moral fall for oneself or for others (scandal).

The problems of cooperation with evil are very frequent today. If they are confronted with a weak moral attitude, the previously mentioned criteria can give rise to a minimalistic casuistry in which, through the able application of a rule, the person could avoid his own moral responsibility. Therefore, we need to be aware of the ethical need of cooperating with good, as well as the moral necessity of preventing and avoiding, in the measure in which it is possible, difficult situations—for oneself, or for others—in which cooperation with evil would become a little less than inevitable.

11.9 Conversion from Sin

The great novelty of the biblical announcement is that the reality of sin is not definitive, that one can obtain the pardon of a God who is "a merciful and gracious God, slow to anger and rich in kindness and fidelity."[162] In fact, "God

[161] Cf. *Evangelium Vitae*, 74. The principle applied there to abortion cannot be universally applied to all moral actions. The material cooperation with the onanism of one'se spouse is immediate, but if there exists a grave cause it is morally licit: cf. Pius XI, Enc. *Casti Connubii*, 31-XII-1930: DS 3718.

[162] *Ex* 34:6–7; cf. *Ps* 101:14; 129:4.7,8; *Isa* 30:18–19; *Mt* 9:13; *1 Tim* 1:13–15.

rejoices in nothing as He does the conversion and salvation of man."[163] The consciousness of sin does not entail, for the Christian, a passive or negative disposition; on the contrary, the reality of this fault emphasizes, by contrast, four convictions solidly rooted in Revelation: the profundity of divine mercy, the necessity of accepting human weakness, the overabundance of grace, and the indispensability of human collaboration.[164]

11.9.1 The Mercy of God

The *mysterium pietatis is greater than the mysterium iniquitatis*: no sin can extinguish the divine mercy; rather, it is precisely the pardoning of sin that marks with precision the love of the Father, through the sacrifice of the Son and the gift of the Spirit.[165] For this reason, *mercy is one of the most recalled attributes of God in the Scriptures.*[166] In fact, the Lord calls sinners (all men) to repentance, mercifully facilitates its actualization, and shows its path: "The process of conversion and repentance was described by Jesus in the parable of the prodigal son, the center of which is the merciful father (Lk 15:11–24): The fascination of illusory freedom, the abandonment of the father's house; the extreme misery in which the son finds himself after squandering his fortune; his deep humiliation at finding himself obliged to feed swine, and still worse, at wanting to feed on the husks the pigs ate; his reflection on all he has lost; his repentance and decision to declare himself guilty before his father; the journey back; the father's generous welcome; the father's joy - all these are characteristic of the process of conversion. the beautiful robe, the ring, and the festive banquet are symbols of that new life - pure worthy, and joyful - of anyone who returns to God and to the bosom of his family, which is the Church. Only the heart of Christ Who knows the depths of his Father's love could reveal to us the abyss of his mercy in so simple and beautiful a way."[167]

11.9.2 "Metánoia"

The mercy and grace of God cancel sin and confer the strength to sin no more. Nonetheless, *He asks of the Christian a penitent* disposition: "To acknowledge one's sin, indeed-penetrating still more deeply into the consideration of one's own personhood-to recognize oneself as being a sinner, capable of sin and

[163] Saint Gregory of Nazianzus, *Oratio* 39, 20: SC 358, 194, our translation.; cf. *Lk* 15:7,10,32.
[164] Cf. *Reconciliatio et Paenitentia*, nos. 19–22.
[165] Cf. *Veritatis Splendor*, 118.
[166] Cf. *Num* 14:19; *Tob* 3:2; *Ps* 102:3–4; 117:1–4,29; *Sir* 2:9,18; *Lk* 1:50,54,78; 6:36; *Rom* 9:16; *2 Cor* 1:3; *Titus* 3:5; *Heb* 4:16; *Jas* 5:11; *1 Pet* 1:3.
[167] *CCC*, 1439; cf. *Reconciliatio et Paenitentia*, 5.

inclined to commit sin, is the essential first step in returning to God."[168] The most employed Greek word in the Bible for this human disposition is that of *metánoia*.

> The image contained within the Semitic word that corresponds to *metánoia* makes one think of a person who recognizes his mistaken path and then turns away, taking a new and diverse direction. Thus, *metánoia* means: a) repentance and sorrow for the sin committed; b) conversion of mind and transformation in one's mode of thinking, that entails trust in God and a firm decision to carry out His will; c) a positive response to divine grace wherein the possibility of being saved is found; and d) a commitment to a new moral attitude, with regard to God and other men, that involves all one's personal energy.
>
> Speaking of the conversion of the sinner, Sacred Scripture emphasizes five ideas: 1) sins distance one from God and make it so that the Lord may abandon His people;[169] 2) the initiative in the work of reconciliation is divine: one cannot arrive at an authentic repentance—and therefore at friendship with the Lord and, definitively, at an integral liberation and salvation—without the grace that comes from God;[170] 3) conversion, more than an external rite, demands a change "of heart";[171] 4) the sinner must recognize and confess his sins;[172] 5) and, furthermore, he must change his life, distancing himself from perverse paths.[173]

Metánoia is not a disposition proper only to the beginning of the Christian life: it must be permanent throughout one's entire existence in order that one may continually convert each time closer to the Lord.[174] Even those who consider themselves to be "righteous" have need of conversion.[175]

11.9.3 The Sacraments of Forgiveness

In the actual economy of salvation *reconciliation with God is possible only in Christ and through Christ, "who overthrows the devil's domain and wards off*

[168] *Reconciliatio et Paenitentia*, 13.
[169] Cf. *Deut* 31:16–17; *Isa* 59:2; *Mic* 3:4; *Mt* 25:12,41; *Lk* 13:25,27; *Eph* 2:1–3; *Col* 3:6–7; *2 Tim* 2:12.
[170] Cf. *Ps* 50:3,4,11,12; *Jer* 32:39–40; *Ezek* 36:25,29; *Hos* 2:21–22; *Lk* 1:16–17; *Jn* 3:3–5; *Rom* 5:8,10; *2 Cor* 5:18; *1 Jn* 3:9; 4:10.
[171] Cf. *Deut* 10:16; *Isa* 55:7; *Jer* 4:4; 24:7; *Mt* 23:27–28; *Lk* 16:15; 18:9–14; *Acts* 8:21–23; *Rom* 8:27; *Jas* 4:8.
[172] Cf. *Ps* 31:5; 37:19; 50:5,8; *Isa* 59:12; *Dan* 9:4–19; *Mk* 1:5; *Acts* 19:18; *Jas* 5:16; *1 Jn* 1:9.
[173] Cf. *Tob* 13:6; *Ps* 142:8–10; *Isa* 1:16–17; *Ezek* 14:6; 18:30–32; *Joel* 2:12–14; *Mt* 7:21–27; *Lk* 3:8–14; *Acts* 3:19; *Gal* 5:16–17,24–26; *1 Thess* 1:9; *Jas* 5:19–20; *1 Pet* 2:1,11; *Rev* 2:5; 3:3,19.
[174] Cf. *Presbyterorum Ordinis*, 5.
[175] Cf. *Mt* 21:31–32; *Lk* 18:9–14; *Jn* 8:33–39; *Acts* 3:25–26; *Rom* 3:23–24; *1 Cor* 10:1–5.12; *2 Pet* 3:9.

the manifold malice of vice."[176] This is a reconciliation that is made concrete *through the Church,* the universal sacrament of salvation.[177] Jesus Christ, with His Paschal Mystery, is the meritorious and efficient cause of conversion and salvation; and for the purpose of perpetuating in time this salvific action He instituted *the sacraments, which justify and transform the* person: they presuppose, nourish, strengthen, and express faith. Furthermore, they do not act merely as an exhortation or occasion to do good, but work with a more intimate efficacy, unparalleled in nature, that directs man toward God, and imprints and perfects the image of the Holy Trinity in his soul. Thus, *Christian morality cannot but be a sacramental morality:*[178] indeed, the first grace received is always through a sacrament, Baptism, at least by desire. Furthermore, the ordinary path for the remission of sins committed after Baptism is the Sacrament of Penance.[179]

11.10 Conversion, the Moral Life, and the Ascetic Effort

Conversion entails a radical reorientation of one's entire life: a return to God with all one's heart, a rupture with sin and repentance for disordered acts that were committed; at the same time, it requires a desire and a resolution to change one's life with the hope of God's mercy and trust in the help of His grace.[180] In fact, the Lord always concedes grace to those who do what they can, though we should not forget that it is also Him who moves human freedom in its dispositions to convert.[181]

The consideration of conversion as a moral and ascetic effort allows us to review the principal themes of fundamental moral theology, even if in an inverse order to that which we have followed up to this point. The full understanding and acceptance without reservation of the divine call to holiness happens with difficulty when there is no previous experience of sin and conversion. On one hand, only for those who feel the necessity of being saved, and understand in a sufficiently clear way from what it is that they have need of being liberated,

[176] *Ad Gentes,* 9.

[177] Cf. *Lumen Gentium*, nos. 9 & 48; *Gaudium et Spes*, 45; etc.; for this reason, speaking of the Sacrament of Penance, John Paul II indicates: while "nothing is more personal and intimate that this sacrament, in which the sinner stands alone before God with his sin, repentance and trust [...], But at the same time one cannot deny the social nature of this sacrament, in which the whole church-militant, suffering and glorious in heaven- comes to the aid of the penitent and welcomes him again into her bosom" (*Reconciliatio et Paenitentia*, 31, IV).

[178] Cf. Chapter I, subsection 1.1.2.

[179] Cf. *Reconciliatio et Paenitentia*, 31, I.

[180] Cf. *CCC*, 1431.

[181] Cf. *Gaudium et Spes*, 17.

is it possible to have an authentic encounter with Christ Jesus, "who became for us wisdom from God, as well as righteousness, sanctification, and redemption";[182] on the other hand, the encounter with the Lord and the verification of our spiritual regeneration are one and the same thing.[183] Regeneration in Christ is a profound event, of an ontological character, that manifests itself morally as a passage from vice to Christian virtue.[184]

Such a passage is not, however, immediate. It is true that Christ becomes the principle of new life,[185] which would not be possible without some initial possession of the theological and infused moral virtues, however the life informed by it begins to be expressed as a battle against sin and concupiscence; a progressive clarification of conscience; an effort to interiorize the normative directions of the moral law; an education of the capacity of judgment, of the will, and of the sentiments; a correction of our attitude in the face of earthly goods; constant recourse to the means of sanctification; an acceptance of the demands of fraternal charity; and an effort to not be led away by discouragement. The normative statements of the moral law constitute in this first phase of the Christian life an indispensable aid. They indicate the limits that the believer must not exceed in the use of goods and in the execution of the various activities that make up one's life, so that it may be effectively lived in the Lord.

The intrinsic dynamism of the grace of the Holy Spirit goes much further. If one is docile in his cooperation with it, he shall experience successive conversions, each of which represents Christ's growth within us. The moral and ascetic effort aims at giving always greater space to the Lord in our existence, in order to arrive at a point in which like Saint Paul we can say "yet I live, no longer I, but Christ lives in me."[186] One passes, then, to the free and full development of the Christian virtues and the gifts of the Holy Spirit, which, as true vital principles, regulate our choices from within so that all the goods and all the activities which perfect our existence might become, with spontaneity and naturalness, effective means to union with Christ.

The path toward union with the Lord is not easy. There are resistances, hesitations, and moments of darkness and crisis that are sometimes also moments of purification and growth. Only after the General Resurrection in Jesus Christ will our transformation into the image of the Son be complete and definitive. Nonetheless, with the help of grace, the call to holiness is already something concretely implementable and to be implemented in this world, because God "chose us in him [Christ], before the foundation of the

[182] *1 Cor* 1:30.
[183] Cf. *Rom* 6:4–6; *Eph* 4:20–31; *Col* 3:1–3,5–10.
[184] Cf. *1 Cor* 6:9–11.
[185] Cf. *Rom* 5:15–18; *Col* 3:4.
[186] *Gal* 2:20.

world, to be holy and without blemish before him."[187] To recall this design of divine love and to render it present for men and women of every epoch is the principal and perennial task of moral theology.

[187] *Eph* 1:4.